

LEVIATHAN

A PARALLEL EDITION · (MAGVS)

THE ENGLISH OF 1651 FACING THE LATIN OF 1668

Thomas Hobbes

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REVISER'S PREFACE

TO THE PARALLEL EDITION

§I

WHY TWO FACES

This edition sets Thomas Hobbes's Leviathan twice on the same opening: the English of 1651 on the right-hand page, the Latin of 1668 on the left. Hobbes made both books. The Latin is no translation hung upon the English for ornament; it is the author at work again, seventeen years on, in another tongue, for another republic of readers — compressing here, expanding there, and in one great structural stroke setting an Appendix of three chapters where the English had closed with A Review, and Conclusion.

A reader with both faces open can watch the same mind argue in two registers. That is the whole case for a parallel edition, and it needs no embellishment. Where the two texts diverge, this edition prints the divergence in its collation notes as evidence. It does not harmonize, and it does not look away.

§II

THE SOURCES, IN BRIEF

The English face is Project Gutenberg eBook #3207 — the text of record of this program, secured at its founding on 2026-11-02 and re-verified by hash at every build; it descends from the Pelican Classics edition, prepared from the first edition of 1651. The Latin face is the Leviathan of the Opera philosophica quae Latine scripsit omnia (Amsterdam: Joan Blaeu, 1668), secured on 2026-11-10 from the Internet Archive (item leviathansivedem00hobb) as that scan's machine-read text, and verified by imprint, dedicatee, and its own printed census before a page was built.

The Latin is therefore, and is labelled throughout, a SINGLE-WITNESS OCR TEXT: machine reading of one scanned copy, not a collated critical text. The full provenance, the hashes of every secured file, the defect register, and the honest list of what was not done stand in the edition's SOURCE LEDGER, kept with the edition's working papers and summarized in the apparatus of this volume.

§III

THE COLLATION METHOD

The unit of alignment is the chapter; within the chapter, paragraphs pair by order, Hobbes's marginal summaries riding with the paragraphs they head. The planner measures both faces and packs each opening so that paired paragraphs face each other;

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when one face runs longer, the opening turns and the drift is measured, not masked — each brick's collation notes print the drift table for its chapters.

The Latin of 1668 is treated in this edition as a collation witness with its own authority — the standing question of this program's founding charter, whether the Latin should be taken as a witness at all, is answered here in the practice: yes, and its differences are the most instructive pages in the book.

§IV

NORMALIZATIONS AND TOLERANCES, DECLARED

The English face changes nothing: reflow and the parent edition's furniture, as there declared. The Latin face reproduces the 1668 text in its own orthography — u and v, i and j stand as the press set them — normalized only by declared classes: the press's long s, which machine reading renders as f, is restored to s under a printed rule table (genuine f, as in forma and finis, is protected; what the rules cannot resolve stands as it was read, and is counted in the apparatus as residue); line-end hyphens are joined; the ampersand classes are resolved (the & of the press is its et; within a word it is the ct ligature; &c is etc.); running heads and the furniture of the folio page are not set as text; decorative initials the machine reading split or lost are restored in brackets and listed. Every one of these is a typographic class, stated once here and binding on every brick.

What the classes cannot honestly carry, the edition prints as apparatus, not as Hobbes. First-edition facsimile collation is UNCHARTED in this edition: loci that need it are flagged, never resolved by preference. No Latin has been fabricated, completed, or retranslated at any locus.

THE FOUR-ELEMENT TEST OF THIS EDITION — Inputs: Gutenberg #3207 (hash of record) and the 1668 Blaeu Latin via Internet Archive leviathansivedem00hobb (hashes in the Source Ledger). Processes: hash assertion, census assertion, seam extraction, declared-class normalization, paragraph pairing, measured spread planning, multi-pass contents stabilization. Outputs: this volume, cumulative by brick, with its build report. Tolerances: no word of Hobbes changed beyond the declared classes; no Latin reading untraceable to the secured text; divergence printed, never harmonized.

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CONTENTS

REVISER'S PREFACE 2

THE INTRODUCTION · INTRODUCTIO 6

CHAPTER I — Of Sense · CAPVT I — De Sensu 10

CHAPTER II — Of Imagination · CAPVT II — De Imaginatione 14

CHAPTER III — Of Consequence, or Train of Imaginations · CAPVT III — De Consequentia sive Serie Imaginationum 24

CHAPTER IV — Of Speech · CAPVT IV — De Sermone 32

CHAPTER V — Of Reason, and Science · CAPVT V — De Ratione et Scientia 46

CHAPTER VI — Of the Interior Beginnings of Voluntary Motion, commonly called the Passions · CAPVT VI — De Principiis internis Motus Voluntarii, quae vulgo Passiones appellantur 58

CHAPTER VII — Of the Ends or Resolutions of Discourse · CAPVT VII — De Discursuum Determinationibus 76

CHAPTER VIII — Of Virtues and Defects Intellectual · CAPVT VIII — De Virtutibus Intellectualibus et Defectibus Oppositis 82

CHAPTER IX — Of the Several Subjects of Knowledge · CAPVT IX — De Scientiarum Distributione 108

CHAPTER X — Of Power, Worth, Dignity, Honour, and Worthiness · CAPVT X — De Potentia, Dignitate, et Honore 114

CHAPTER XI — Of the Difference of Manners · CAPVT XI — De Varietate Morum 130

CHAPTER XII — Of Religion · CAPVT XII — De Religione 142

CHAPTER XIII — Of the Natural Condition of Mankind · CAPVT XIII — De Conditione generis Humani quantum attinet ad Felicitatem praesentis vitae 164

CHAPTER XIV — Of the First and Second Natural Laws, and of Contracts · CAPVT XIV — De Lege Naturae prima et fundamentali 172

CHAPTER XV — Of Other Laws of Nature · CAPVT XV — De caeteris Legibus Naturae 192

CHAPTER XVI — Of Persons, Authors, and Things Personated · CAPVT XVI — De Personis et Authoribus 214

CHAPTER XVII — Of the Causes, Generation, and Definition of a Commonwealth · CAPVT XVII — De Causa, Generatione, et Definitione Civitatis 222

CHAPTER XVIII — Of the Rights of Sovereigns by Institution · CAPVT XVIII — De Iure habentium Summam Potestatem in Civitate per Institutionem 230

CHAPTER XIX — Of the Several Kinds of Commonwealth by Institution, and of the Succession to the Sovereign Power · CAPVT XIX — De Generibus Civitatum per

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Institutionem, et de Successione ad Summam Potestatem 248

CHAPTER XX — Of Dominion Paternal and Despotical · CAPVT XX — De Dominio Paterno et Despotico 266

CHAPTER XXI — Of the Liberty of Subjects · CAPVT XXI — De Libertate Civium 280

CHAPTER XXII — Of Systems Subject, Political, and Private · CAPVT XXII — De Systematibus Civium 302

CHAPTER XXIII — Of the Public Ministers of Sovereign Power · CAPVT XXIII — De Potestatis Summae Ministris Publicis 324

CHAPTER XXIV — Of the Nutrition, and Procreation of a Commonwealth · CAPVT XXIV — De Civitatis Facultate Nutritiva et Generativa 332

CHAPTER XXV — Of Counsel · CAPVT XXV — De Consilio 344

CHAPTER XXVI — Of Civil Laws · CAPVT XXVI — De Legibus Civilibus 358

CHAPTER XXVII — Of Crimes, Excuses, and Extenuations · CAPVT XXVII — De Criminibus, Excusationibus, et Extenuationibus 394

CHAPTER XXVIII — Of Punishments, and Rewards · CAPVT XXVIII — De Poenis et Praemiis 422

The edition is cumulative by brick: the contents grow as the bricks land, and every brick is recorded in the colophon.

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LATINE · 1668

INTRODUCTIO

THE INTRODUCTION

[N]aturam, id est, illam, qua Mundum Deus condidit et gubernat, divinam Artem, eatenus imitatur Ars humana, ut possit inter alia producere artificiale Animal. Cum enim vita nihil aliud sit quam artuum motus, cujus principium est internum in parte aliqua Corporis principali, Quid obstat quo minus dicamus, Automata omnia, sive machinas omnes quae ab Elastris Rotulisque intus dispositis motum habent, ut Horologia in seipsis, habere etiam artificialem vitam? Quid est cor, nisi Elastrum, quid Nervi, nisi chordae, quid articuli, nisi totidem rotulae, motum, qualem voluit artifex, toti corpori impertientes? Neque animal tantum imitatur Ars, sed etiam nobilissimum animalium, Hominem. Magnus ille Leviathan, quae Civitas appellatur, opificium Artis est, et Homo artificialis, quanquam Homine naturali (propter cujus protectionem et salutem excogitatus est) et mole et robore multo major. In quo Is qui summam habet Potestatem, pro Anima est, corpus totum vivificante et movente. Magistratus et Praefecti, artificiales Artus. Praemia et Poenae summae Potestati appensae, et a quibus Membra ad suum cujusque opus perficiendum incitantur, Nervi sunt, qui idem faciunt in corpore naturali. Divitiae singularium hominum sunt pro robore. Salus populi, pro Negotio. Consiliarii per quos ea, quae cognitu necessaria illi sunt, suggeruntur pro Memoria sunt. AEquitas Legesque pro artificiali Ratione. Concordia, sanitas est. Seditio, Morbus. Bellum civile, Mors. Postremo Pacta quibus partes corporis hujus politici conglutinantur, imitantur divinum illud verbum Fiat, sive Faciamus Hominem, a Deo prolatum in principio cum crearet Mundum.

Hominis hujus Artificialis naturam describens, considerabo

1. Materiam ejus, et Artificem, id est Hominem.

2. Quo modo, et quibus Pactis factus est; quae Iura, quae Potestas sive Authoritas ejus est; et in quo residet Potestas summa.

3. Quid est Civitas Christiana.

4. Quid est Regnum Tenebrarum.

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THE INTRODUCTION

INTRODUCTIO

THE INTRODUCTION

Nature (the art whereby God hath made and governes the world) is by the art of man, as in many other things, so in this also imitated, that it can make an Artificial Animal. For seeing life is but a motion of Limbs, the begining whereof is in some principall part within; why may we not say, that all Automata (Engines that move themselves by springs and wheeles as doth a watch) have an artificiall life? For what is the Heart, but a Spring; and the Nerves, but so many Strings; and the Joynts, but so many Wheeles, giving motion to the whole Body, such as was intended by the Artificer? Art goes yet further, imitating that Rationall and most excellent worke of Nature, Man. For by Art is created that great LEVIATHAN called a COMMON-WEALTH, or STATE, (in latine CIVITAS) which is but an Artificiall Man; though of greater stature and strength than the Naturall, for whose protection and defence it was intended; and in which, the Soveraignty is an Artificiall Soul, as giving life and motion to the whole body; The Magistrates, and other Officers of Judicature and Execution, artificiall Joynts; Reward and Punishment (by which fastned to the seat of the Soveraignty, every joynt and member is moved to performe his duty) are the Nerves, that do the same in the Body Naturall; The Wealth and Riches of all the particular members, are the Strength; Salus Populi (the Peoples Safety) its Businesse; Counsellors, by whom all things needfull for it to know, are suggested unto it, are the Memory; Equity and Lawes, an artificiall Reason and Will; Concord, Health; Sedition, Sicknesse; and Civill War, Death. Lastly, the Pacts and Covenants, by which the parts of this Body Politique were at first made, set together, and united, resemble that Fiat, or the Let Us Make Man, pronounced by God in the Creation.

To describe the Nature of this Artificiall man, I will consider

First the Matter thereof, and the Artificer; both which is Man.

Secondly, How, and by what Covenants it is made; what are the Rights and just Power or Authority of a Soveraigne; and what it is that Preserveth and Dissolveth it.

Thirdly, what is a Christian Common-Wealth.

Lastly, what is the Kingdome of Darkness.

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Quod ad primumattinet, permulti sunt qui sapientiam dicunt non legendo libros, sed legendo Homines acquin; et sententiae huic consequenter illi, qui sapientiae siix nullum aliud specimen proserre poslunt, valde sibimetipsis tunc placent, cum quantum prosecerint inspiciendo, censuris m proximos contra charitatem patesecerint. Extat autem praeceptum aliud antiquius, per quod intelligere possent, si vellent, Homines. Alios rectius legere, nempe Nosie hipsum. Quod praeceptum non ita intelligendum est, ut nonnulli putant, quasi aut Potentiorum erga vulgus sastui barbarico, aut humilium erga Potentiores procacitati incivili indulgeret, sed ut doceamur cogitationes passionesque hominum diversorum adeo simiies inter se esle, ut quicunque in seipsum inspexerit, consideraveritque quid faciat ipse, et quare, quando cogitat, opinatur, ratiocinatnr, sperat, timet, etc.. idem simul leget inteliigetque cogitationes pa£ sionesque aliorum omnium hominum a similibus caulis orientium, similes (inquam) passiones, nonsimilia passionumobjecta, quas^ Constitutione et Educatione hominum singularium ita variantur, &absconduntur, ut Cordium suorum charaderes, simulatione, dissimulatione, falsisque opinionibus scribillati et consusi, soli scrutatori Cordium sint legibiles. Quanquam autem consilia hominum cognoscere aliquando poslumus per ea quae faciunt, difficile tamen est sine comparatione cum consiliis propriis, et sine distinctione circumstantiarum quae effecl:us singulos mutare solent, tanquam ii quis literas ignoto charadere legere tentaret sine scriptorisalphabeto. Errabit ergo, aut simplicitate, aut suspitione nimia, prout is quilegit vir probus est vel improbus.

Verum in cognoscendis hominibus singularibus, ot peritissimus sit quis, solos cognoscet eos quibuscum vivit familiariter, qui pauci sunt. At is qui gentemaliquam universam recluruseft, ex seipso cognoscere debet non hunc et illum hominem, sed Humanum genus. Quod etsi fadu difficile sit, difficilius quam addiscere novam Linguam, aut scientiam quamlibet acquirere, si tamen ea quaeego de hac re explorata habeo, recto ordine, et pcrspicue explicavero, mw nuetur difficultas aliis, quibus solus incumbet iabor examinandi, an ea qu» dico, ipsorum cogitationibus congruant. Nara harum rerum alia non est Demonstratio.

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Concerning the first, there is a saying much usurped of late, That Wisedome is acquired, not by reading of Books, but of Men. Consequently whereunto, those persons, that for the most part can give no other proof of being wise, take great delight to shew what they think they have read in men, by uncharitable censures of one another behind their backs. But there is another saying not of late understood, by which they might learn truly to read one another, if they would take the pains; and that is, Nosce Teipsum, Read Thy Self: which was not meant, as it is now used, to countenance, either the barbarous state of men in power, towards their inferiors; or to encourage men of low degree, to a sawcie behaviour towards their betters; But to teach us, that for the similitude of the thoughts, and Passions of one man, to the thoughts, and Passions of another, whosoever looketh into himselfe, and considereth what he doth, when he does Think, Opine, Reason, Hope, Feare, &c, and upon what grounds; he shall thereby read and know, what are the thoughts, and Passions of all other men, upon the like occasions. I say the similitude of Passions, which are the same in all men, Desire, Feare, Hope, &c; not the similitude or The Objects of the Passions, which are the things Desired, Feared, Hoped, &c: for these the constitution individuall, and particular education do so vary, and they are so easie to be kept from our knowledge, that the characters of mans heart, blotted and confounded as they are, with dissembling, lying, counterfeiting, and erroneous doctrines, are legible onely to him that searcheth hearts. And though by mens actions wee do discover their designee sometimes; yet to do it without comparing them with our own, and distinguishing all circumstances, by which the case may come to be altered, is to decypher without a key, and be for the most part deceived, by too much trust, or by too much diffidence; as he that reads, is himselfe a good or evill man.

But let one man read another by his actions never so perfectly, it serves him onely with his acquaintance, which are but few. He that is to govern a whole Nation, must read in himselfe, not this, or that particular man; but Man-kind; which though it be hard to do, harder than to learn any Language, or Science; yet, when I shall have set down my own reading orderly, and perspicuously, the pains left another, will be onely to consider, if he also find not the same in himselfe. For this kind of Doctrine, admitteth no other Demonstration.

PART I. OF MAN

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CAPVT I — De Sensu

CHAPTER I — Of Sense

Cogitationes hominum primo sigillatim, deinde alias ab aliis dependentes, ut in serie considerabo. Ipsarum unaquaeque, alicujus qualitatis vel accidentis in Corpore externo, quod appellari solet Objectum, est Apparitio sive Representatio. Quod Objectum agendo in corporis humani Organa, nempe Oculos, Aures, etc.. pro diversitate Actionis diversas producit Apparitionesl

Origo omnium nominatur Sensus. Nulla enim est Animi conceptio quae non fuerat ante genita in aliquo Sensuum, vel tota simul, vel per partes. Ab his autem primis conceptibus omnes postea derivantur.

Cognitio causae Sentiendi naturalis praesenti instituto non est absolute neceslaria; etiam alio loco de illa satis ampliter tractavimus. Veruntamen, ut praesentis Methodi partes impleantur, de eadem re iterum sed breviter disleremus.

Causa Sensionis est Externum Corpus sive Objestum quod premic unius cujulque Organum proprium, vel immediate, ut in sensu Tallut Sz Guslus, vel mediate, ut in Visu, Audttu, Olsattu, et premendo (mediantibus Nervis et Membranis) continuum efficit motum introrsum ad Cerebrum, et inde ad Cor; unde nascitur Cordis resistentia, et contrapressio seu ocvvtv m&, sive conatus Cordis deliberantis se a pressione per motum rendentem extrorsum; qui motus propterea apparet tanquam aliquid externum. Atque Apparitio hasc sive Phantasma est id quod vocamus Sensionem. Et quantum ad Oculum, Lumen dicitur vel Color j Quod attinet ad Aurem, Sonus; ad Nares, Odor; ad Palatum, Sapor; et ad reliquum Corpus, Calor., Srigtis, Durities, Mollities, et castera pertinentia ad Sensam Tabm. Quae qualitates omnes nominari solent Sensibiles, et sunt in ipso Objedo nihil aliud, prceter materias motum, quo Objectum in Organa Sensuum diversimode operatur. Neque in nobis aliud sunt quam diversi motus. Motus enim nihil generat praeter Motum, et Apparitiones illae, tum vigilantibus, tum dormientibus mera sunt Phantasmata. Praeterea, ut pressio, srictus, pulsio Oculi excirat Phantasma Lucidi, et pressio Auris sonum, ita etiam Objecta quae videmus vel audimus eadem Phantasmara generant per pressionem sed inobservabilem. Nam fj colores illi et soni in ipso Objecto eslent, separari ab illis non po£ ient. Separantur autem, ut manifestum est in reslexionibus visibilium b b b 2, per

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CHAPTER I — Of Sense

CAPVT I — De Sensu

Concerning the Thoughts of man, I will consider them first Singly, and afterwards in Trayne, or dependance upon one another. Singly, they are every one a Representation or Apparence, of some quality, or other Accident of a body without us; which is commonly called an Object. Which Object worketh on the Eyes, Eares, and other parts of mans body; and by diversity of working, produceth diversity of Apparences.

The Originall of them all, is that which we call Sense; (For there is no conception in a mans mind, which hath not at first, totally, or by parts, been begotten upon the organs of Sense.) The rest are derived from that originall.

To know the naturall cause of Sense, is not very necessary to the business now in hand; and I have els-where written of the same at large. Nevertheless, to fill each part of my present method, I will briefly deliver the same in this place.

The cause of Sense, is the Externall Body, or Object, which presseth the organ proper to each Sense, either immediatly, as in the Tast and Touch; or mediately, as in Seeing, Hearing, and Smelling: which pressure, by the mediation of Nerves, and other strings, and membranes of the body, continued inwards to the Brain, and Heart, causeth there a resistance, or counter-pressure, or endeavour of the heart, to deliver it self: which endeavour because Outward, seemeth to be some matter without. And this Seeming, or Fancy, is that which men call sense; and consisteth, as to the Eye, in a Light, or Colour Figured; To the Eare, in a Sound; To the Nostrill, in an Odour; To the Tongue and Palat, in a Savour; and to the rest of the body, in Heat, Cold, Hardnesse, Softnesse, and such other qualities, as we discern by Feeling. All which qualities called Sensible, are in the object that causeth them, but so many several motions of the matter, by which it presseth our organs diversly. Neither in us that are pressed, are they anything els, but divers motions; (for motion, produceth nothing but motion.) But their apparence to us is Fancy, the same waking, that dreaming. And as pressing, rubbing, or striking the Eye, makes us fancy a light; and pressing the Eare, produceth a dinne; so do the bodies also we see, or hear, produce the same by their strong, though unobserved action, For if those Colours, and Sounds, were in the Bodies, or Objects that cause them, they could not bee severed from them, as by glasses, and in Ecchoes by reflection, wee see they are; where we know the thing we see, is in one place; the apparence, in another. And though at some certain distance, the reall, and very object seem invested with the fancy it begets in us; Yet still the object is one thing, the image or fancy is another. So that Sense in all cases, is nothing els but originall fancy, caused (as I have said) by the pressure, that is, by the motion, of externall things upon our Eyes, Eares, and other organs thereunto ordained.

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4 Be Homine. Cap. Ii.

per specula, et audibilium per loca montana. Scimus autem corpus quod videmus in uno tantum loco esle, sed apparentias in plurimis» Quanquam autem aliquando in distantiis parvis ipsum Objectum verum investitum videatur Imagine sua, femper tamen aliud est Objeclum, aliud Objecti Imago. Sensio ergo etc. Phantasma originale omnino idem sunt, facta (ut dixi) preslione Oculi vel alius Organi ab objecto externo.

Philosophi autem Scholiastici locis quibusdam freti Aristotelis, aliud docent, nempe, Species (id est Apparitiones) Visoiies emislas ab Objecto in Oculum eslicere Visionem; item Spectes (id est Apparitiones) Audtbiles emistas ab Objecloin Aurem causam esse Auditionis j causam denique Intelligendi esle quasdam Species fid est Apparitiones) Intellmbiles emislas a re Intellecta. Non hoc dico ut Scholarum Philosopnicarum usum improbans, sed quia deearum in Civitate usu inserius locuturus sum, ostendere etiam quae in illis emendari debent (quorum unum est sermo insignisicans) non putavi ne obiter quidem negligendum esle.

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But the Philosophy-schooles, through all the Universities of Christendome, grounded upon certain Texts of Aristotle, teach another doctrine; and say, For the cause of Vision, that the thing seen, sendeth forth on every side a Visible Species(in English) a Visible Shew, Apparition, or Aspect, or a Being Seen; the receiving whereof into the Eye, is Seeing. And for the cause of Hearing, that the thing heard, sendeth forth an Audible Species, that is, an Audible Aspect, or Audible Being Seen; which entring at the Eare, maketh Hearing. Nay for the cause of Understanding also, they say the thing Understood sendeth forth Intelligible Species, that is, an Intelligible Being Seen; which comming into the Understanding, makes us Understand. I say not this, as disapproving the use of Universities: but because I am to speak hereafter of their office in a Common-wealth, I must let you see on all occasions by the way, what things would be amended in them; amongst which the frequency of insignificant Speech is one.

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LATINE · 1668

CAPVT II — De Imaginatione

CHAPTER II — Of Imagination

Id quod omnino quiescit, nisi ab alio moveatur, perpetuo quieturum esse nemini puto dubium esle. Caeterum quod corpus si moveatur; nisi motus ejus ab alio extinguatur, femper promotum iri, quanquam ratio utrobique eadem sit (nempe nihil posse movere seipsumj non tam facile concedi solet. Mensurant enim homines corpora omnia alia per sua, videntesque seipsos per motum dolori et lassitudini obnoxios esse, idem judicant de aliis motis omnibus; quasidesesla cuperent tandem siia sponte requiescere; neque considerant an non sit motus aliquis in quo consistit quietis desiderium. Atque hinc oritur doclrina illa Scholarum, Desiendere corpora §ravia propter appetitum quiescendi et conservandi naturam suam in tis locis qui sibi maxime conveniunt, appetitum et Scientiam boni et mali fui (qua homines plerumque carent) rebus inanimatis imperiteascribentes.

Simul ac corpus movetur movebitur (nisi aliud corpus obstet) in aeternum. Neque id quod obstat motum hunc in instante, sed in tempore et gradatim extinguit. Sicut in mari videmus sieri ut ceslante vento, non statim ceslant fluctus, ita quoque in motu illo contingit qui est in partibus internis hominis tunc cum videt, somniat etc.. et ^ ' r Post-

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CHAPTER II — Of Imagination

CAPVT II — De Imaginatione

That when a thing lies still, unlesse somewhat els stirre it, it will lye still for ever, is a truth that no man doubts of. But that when a thing is in motion, it will eternally be in motion, unless somewhat els stay it, though the reason be the same, (namely, that nothing can change it selfe,) is not so easily assented to. For men measure, not onely other men, but all other things, by themselves: and because they find themselves subject after motion to pain, and lassitude, think every thing els growes weary of motion, and seeks repose of its own accord; little considering, whether it be not some other motion, wherein that desire of rest they find in themselves, consisteth. From hence it is, that the Schooles say, Heavy bodies fall downwards, out of an appetite to rest, and to conserve their nature in that place which is most proper for them; ascribing appetite, and Knowledge of what is good for their conservation, (which is more than man has) to things inanimate absurdly.

When a Body is once in motion, it moveth (unless something els hinder it) eternally; and whatsoever hindreth it, cannot in an instant, but in time, and by degrees quite extinguish it: And as wee see in the water, though the wind cease, the waves give not over rowling for a long time after; so also it happeneth in that motion, which is made in the internall parts of a man, then, when he Sees, Dreams, &c. For after the object is removed, or the eye shut, wee still retain an image of the thing seen, though more obscure than when we see it. And this is it, that Latines call Imagination, from the image made in seeing; and apply the same, though improperly, to all the other senses. But the Greeks call it Fancy; which signifies Apparence, and is as proper to one sense, as to another. Imagination therefore is nothing but Decaying Sense; and is found in men, and many other living Creatures, as well sleeping, as waking.

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Postquam enim Objectum remotum est, vel Oculus clausus, imaginem tamen rei visie retinemus, quanquam aliquanto obscuriorem. Atque hasc est imago a qua facultatem appellamus Jmaginationcm. Phantasiam Graeci et melius vocant a quocunque Sensu oriatur; Imago autem propria est rerum visibiliura. Imaginatio ergo nihil aliud est quam Sensio deficiens sive Phantasma dilutum et evanidum, et est hominibus cum animalibus caneris sere omnibus communis, sive vigilant sive dormiunt.

Quod amoto Objecto Phantasma sit dilutius, causa non est debilitas aliqua motus facti in actu Sentiendi, sed prasoccupatio Organorum ab Objectis aliisj quemadmodum praedominans fulgor lblis Stellarum Iumen obscurum facit; quae tamen Stellae virtutem lllam, qua videri se faciunt, non minus de die exercent,quam noclu. Verum quia inter multos et varios ictus quos Oculi, Aures, et caetera Sensuum Organa ab externis Agentibus de die patiuntur, solus iclus praedominans est sensibilis, lux Solis praedorninans causa est, quoda Stellarum actionibus minus afrkiamur. Amoto autem Objectro, etsi remaneat quas sada fuerat impressio, succedentibus tamen Objeclis, et operantibus, praeteriti Imaginatio diluitur et obscuratur, sicut vox hominis astrepitu diei. Itaque quanto a Visione, vel Sensione alicujus Objecti, longius est tempus, tanto dilutior est Jmaginatio sive Thantasma. Etiam continua Organorum corporis mucatio progrediente tempore partes aliquot quae in Sensione motae erant, destruit; atque inde contingit eundem in nobis Essettum producere distantiam temporis et distantiam loci. Sicut enim in magna loci distantia obscuriora apparent, quae aspicimus, et sine minutiorum partium distinctione; et Voces debiliores apparent, et inarticulatae; ita quoque post magnam temporis distantiam Imaginatio Praeteriti debilior sit,perdimulque (exempli causa) earum quas vidimus Vrbium multas plateas, et actionum multas circumstantias. Sensionis dtlutionem hanc, rem ipsam indicaturi, nempe ipsum Phantasma, nominamus, ut ante dictum est > Imaginationem 5 quandoautem signisicare volumus dilutionem,.appellamus Memoriam, adeo ut eadem sit res Imaginatio et Memoria, sed propter diversas consideralionem, diversis ««w» nominibus signisicata.

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Memory

The decay of Sense in men waking, is not the decay of the motion made in sense; but an obscuring of it, in such manner, as the light of the Sun obscureth the light of the Starres; which starrs do no less exercise their vertue by which they are visible, in the day, than in the night. But because amongst many stroaks, which our eyes, eares, and other organs receive from externall bodies, the predominant onely is sensible; therefore the light of the Sun being predominant, we are not affected with the action of the starrs. And any object being removed from our eyes, though the impression it made in us remain; yet other objects more present succeeding, and working on us, the Imagination of the past is obscured, and made weak; as the voyce of a man is in the noyse of the day. From whence it followeth, that the longer the time is, after the sight, or Sense of any object, the weaker is the Imagination. For the continuall change of mans body, destroyes in time the parts which in sense were moved: So that the distance of time, and of place, hath one and the same effect in us. For as at a distance of place, that which wee look at, appears dimme, and without distinction of the smaller parts; and as Voyces grow weak, and inarticulate: so also after great distance of time, our imagination of the Past is weak; and wee lose(for example) of Cities wee have seen, many particular Streets; and of Actions, many particular Circumstances. This Decaying Sense, when wee would express the thing it self, (I mean Fancy it selfe,) wee call Imagination, as I said before; But when we would express the Decay, and signifie that the Sense is fading, old, and past, it is called Memory. So that Imagination and Memory, are but one thing, which for divers considerations hath divers names.

Much memory, or memory of many things, is called Experience. Againe, Imagination being only of those things which have been formerly perceived by Sense, either all at once, or by parts at severall times; The former, (which is the imagining the whole object, as it was presented to the sense) is Simple Imagination; as when one imagineth a man, or horse, which he hath seen before. The other is Compounded; as when from the sight of a man at one time, and of a horse at another, we conceive in our mind a Centaure. So when a man compoundeth the image of his own person, with the image of the actions of an other man; as when a man imagins himselfe a Hercules, or an Alexander, (which happeneth often to them that are much taken with reading of Romants) it is a compound imagination, and properly but a Fiction of the mind. There be also other Imaginations that rise in men, (though waking) from the great impression made in sense; As from gazing upon the Sun, the impression leaves an image of the Sun before our eyes a long time after; and from being long and vehemently attent upon Geometricall Figures, a man shall in the dark, (though awake) have the Images of Lines, and Angles before his eyes: which kind of Fancy hath no particular name; as being a thing that doth not commonly fall into mens discourse.

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Memoria multarum rerum, Experientia dicitur. Porro, cum Imaginatio earum rerum tantum sit, quas ante, vel simul, vel per partes sensu perceperimus, Imaginatio illa, quae est simul totius Objecti, Jmaqjnatio Jimplex est, ut quando quis imaginatur hominem, vel equum, quem ante viderat. Imaginatio autem, quae oritur ex fen- b b b 3 sione sione plurinra partium, ut quando a visione hominis uno tempore, et a visione equi alio tempore, concipimus animo Centaurum, Ccmpcfta dicitur. Itaque quoties quis componit Phantasma suda ipsius personaecum Phantasmate adtionum alterius hominis, ut facit is, qui seipsum imaginatur esle Hercttlem aut Akxanctntm (id quod illis aliquando accidit, qui multum versantur in lectione actioiiura Heroicarum) lmaoinatio illa ccmpostta est; et nihil aliud est praster Figmentum animi. Multas etiam aiiae Imaginationes in hominibus, etiam vigilantibus, oriuntur a magna impressione facta sentiendo 5 nam ab intento aspedu in solem relinquitur ante oculos longo-post tempore Imaguncula solis, quasi macula -3 et a longa et vehemente attentione ad Figuras Geometricas apparebunt etiam in tenebris, et vigilantibus ante oculos Lineae Angulique. Quod genus Phantasiasan nomen proprium babeat necne nescio; cum sit res de qua homines non ssepe disterunt. Somnia. Imaginationes dormientium sunt Somma. Atque haec quoque, sicut Imaginationes caeterse, ante extiterunt vel integrae, vel per partes in sensu. Et quoniam in somno Cerebrum et Nervi, quas sunt sensionis Organa necesiaria, ita stupesiunt, ut ab adione externorum Obje6torum moveri facile non possint, dormientibus contingere Imaginatio nulla potest, adeoque somnium nullum, nisi quod procedatab agitatione partium internarum corporis sentientis; qua3 partes interna; (propter connexionem cum Cerebro aliisque Organis) intemperie sua aliquando commovent Organa, faciuntque ut Phantasmata ante facta appareant tanquam vigilanti. Sed quoniam Organa sensuum occluia nunc in somno supponuntur, ita ut objectum aliud novum non sit, quod ea ossuscare poitet, necesle est, ut Sommum, clarius sit in hoc sensuum silentio, quam sunt Imaginationes vigilantium. Atque hinc est, quod difficile sit et multis videatur impossibile, inter sensiim et somnium distinguere accurate. Ego, quoties considero, quod in somniis, neque sazpe neque constanter, eadem Objeda, loca, personas, actionesque, imaginor, quae vigilans; neque tam longam seriem cogitationum cohaerentium reminiscor somnians, quam alias; et quoniam vigilans absurditatem somniorum meorum saepe video, somnians autem cogitationura mearum vigilantis absurditates non video, satis persiiasus sum vigilantera me scire, qubd non somniem, quanquam somnians videor mihi vigilare.

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Dreams

The imaginations of them that sleep, are those we call Dreams. And these also (as all other Imaginations) have been before, either totally, or by parcells in the Sense. And because in sense, the Brain, and Nerves, which are the necessary Organs of sense, are so benummed in sleep, as not easily to be moved by the action of Externall Objects, there can happen in sleep, no Imagination; and therefore no Dreame, but what proceeds from the agitation of the inward parts of mans body; which inward parts, for the connexion they have with the Brayn, and other Organs, when they be distempered, do keep the same in motion; whereby the Imaginations there formerly made, appeare as if a man were waking; saving that the Organs of Sense being now benummed, so as there is no new object, which can master and obscure them with a more vigorous impression, a Dreame must needs be more cleare, in this silence of sense, than are our waking thoughts. And hence it cometh to pass, that it is a hard matter, and by many thought impossible to distinguish exactly between Sense and Dreaming. For my part, when I consider, that in Dreames, I do not often, nor constantly think of the same Persons, Places, Objects, and Actions that I do waking; nor remember so long a trayne of coherent thoughts, Dreaming, as at other times; And because waking I often observe the absurdity of Dreames, but never dream of the absurdities of my waking Thoughts; I am well satisfied, that being awake, I know I dreame not; though when I dreame, I think my selfe awake.

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Quoniam autem somnia pro causa habent aliquarum partium Corporis internarura intemperiem, necesle est ut varias intemperies va- ria efficiant somnia. Atqne hinc est, quod saepe accidit, ut illi, qui cubantes algent, saepislime in somniis timeant, videanturque tibi Imagines videre terrisicas (motus enim a Cerebroad partes alias corporis internas et ab illis ad Cerebrum est reciprocus.) Hinc etiam accidit, quo J, sicut Ira calorem efficit in partibus aliquibus corporis, dum vigilamus; ita etiam dura dormimus, nimius earundem partium calor efficut Jram, excitetque iti Cerebro Pbantaima alicujus hostis. Eodem modo, ut amor in vigilantibus amorem efficit, et calorem in partibus corporis aliquibus internis j ita etiam earundem partium calor in dormientibus imaginem efficit amoris. Somnia denique et vigilantium Phantasmata altera alterius sunt inversa; nimirum motu incipiente dum vigilamus ab uno termino, et ab altero dum Somniamus.

Inter Somnium et cogitationes vigilantium distinguere difficilimum tunc est, quando casu aliquo factum est ut minime animadvertamus, nos dormiide; id quod facile contingit illi, qui facinoris alicujus facti, vel faciendi conscius, et ibllicitus dormit sine circumstantiis exuendi vestes, etc. eundi cubitum; ut qui in cathedra dormir, sedens vel reclinatus. Qui enim ad dormiendum se componit, si forte Phantasma aliquod insolitum aut mirandum videri contingat, non aliud illi videri potest quam Somnium. Marcum Brutwn legimus (qui cum amicus fuislet Julius Oeiaris, et ab eo vitam condonatam acceperat, illum tamen ingrate occiderat) node illa qua; praecessit diem, in quo pugnatum est contra Augustum Caesarem apud Philippos, Phantasma habuisse horribile, quod ab historicis vulgo narratur ut Visio veraj sed ab eo qui consideraverit singulas ejus circumstantias non Visionem sed Somnium fuisle breve judicabit. Sedenti enim in Tentorio, et (propter horrorem facli fui temerarii) tristi et cogitabundo, nec bene sopito, sed dormitanti tantum, propter aerem nonsatis calidum, Somniare facilimum erat de ea re, qua maxime terrebatur, et propter eundem terrorem, paulatim rursus evigiiare, et timul existimare speclrum illud, quod apparuerat, paulatim evanelcere, et quia dormiiste se nesciebat, nescire etiam fuisle Somnium, aut aliud quicquam praeter rem visam. Neque sunt hujusmodi accidentia valde rara; nam etiam qui persecte vigilant, si meticulosi, superstitiosi, fabulis rerum ternbilium occupati sint, et in tenebris soli, ejusdem generis imaginationibus obnoxii sunt, cred jntque se umbras et mortuorum Spiritus ambulantes videre in Ccemiteriis; cum tamen revera nihil videant prseter mera Phantasmata, vel decepti sunt ab homjnibus improbis, qui timore eorum supersti- tioso abutuntur, eo sine ut possint ipsi amicti vestibus desunctorum noctu per Coemiteria aliaque loca consecrata, ad loca transire quae nimium a se frequenter adiri videretur inhonestum.

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And seeing dreames are caused by the distemper of some of the inward parts of the Body; divers distempers must needs cause different Dreams. And hence it is, that lying cold breedeth Dreams of Feare, and raiseth the thought and Image of some fearfull object (the motion from the brain to the inner parts, and from the inner parts to the Brain being reciprocall:) and that as Anger causeth heat in some parts of the Body, when we are awake; so when we sleep, the over heating of the same parts causeth Anger, and raiseth up in the brain the Imagination of an Enemy. In the same manner; as naturall kindness, when we are awake causeth desire; and desire makes heat in certain other parts of the body; so also, too much heat in those parts, while wee sleep, raiseth in the brain an imagination of some kindness shewn. In summe, our Dreams are the reverse of our waking Imaginations; The motion when we are awake, beginning at one end; and when we Dream, at another.

Apparitions Or Visions

The most difficult discerning of a mans Dream, from his waking thoughts, is then, when by some accident we observe not that we have slept: which is easie to happen to a man full of fearfull thoughts; and whose conscience is much troubled; and that sleepeth, without the circumstances, of going to bed, or putting off his clothes, as one that noddeth in a chayre. For he that taketh pains, and industriously layes himselfe to sleep, in case any uncouth and exorbitant fancy come unto him, cannot easily think it other than a Dream. We read of Marcus Brutes, (one that had his life given him by Julius Caesar, and was also his favorite, and notwithstanding murthered him,) how at Phillipi, the night before he gave battell to Augustus Caesar, he saw a fearfull apparition, which is commonly related by Historians as a Vision: but considering the circumstances, one may easily judge to have been but a short Dream. For sitting in his tent, pensive and troubled with the horrour of his rash act, it was not hard for him, slumbering in the cold, to dream of that which most affrighted him; which feare, as by degrees it made him wake; so also it must needs make the Apparition by degrees to vanish: And having no assurance that he slept, he could have no cause to think it a Dream, or any thing but a Vision. And this is no very rare Accident: for even they that be perfectly awake, if they be timorous, and supperstitious, possessed with fearfull tales, and alone in the dark, are subject to the like fancies, and believe they see spirits and dead mens Ghosts walking in Churchyards; whereas it is either their Fancy onely, or els the knavery of such persons, as make use of such superstitious feare, to pass disguised in the night, to places they would not be known to haunt.

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Ab ignoratione hac distinctionis Somniorum, aliorumque Phantasmatum vtvtdorum, a Visione et Sensione, maxima ex parte orta est antiquorum Gentilium Religio, Satyras, Faunos, Nymphas, et similia colentium Spectra; hodieque Opinio, quam habent populi rudes de Lamiis et Lemuribus, et de potentia sorcilegorum. Nam etsi sacrilegiam Potentiam aliquam realem esle non putem,puto tamen ibrcilegos puniri jure posle, cum mala facinora et facere posle credant, et conentur quantum poslunt. Sed ipsum sorcilegium ego non tam potentiam veram esle credo, aut Artem, aut Scientiam, quam Religionem ipgs peculiarem. Quod autem ad Lemures et Spiritus ambulantes attinet, Opinio quae de illis hactenus valuit, de industria (puto) tradita fuit vel non confutata ad usum Exorcilmorum, et lignationum signo Crucis, et Aquae Benedicliab, aliarumque similium inventionum, hominum Spiritualium sustinendum. Dubium tamen non est, quin Phantasmata supernaturalia sieri possint a Deo; quod tamen id ita saepe facit ut timenda sint, magis quam ceslatio mutatiove Naturas, quam Deus etiam sistere vel mutare potest, Fidei Christian^e Articulus non est sed homines improbi ex eo, quoddeus potest omnia, etiam omnia dicere audent quas sibi utilia fore ducunt, etsi falsa esle putent. Sapientisautem est non ulterius illis credere, quam recta ratio, ea, quse dicunt, facit videri credibilia. Si metus hic Spedrorum sublatus eslet, simulque Prognostica a Somniis, aliaque multa quze inde dependent, et quibus homines ambitiosi astutique populo simplici abutuntur, Cives in omni Civitate ad Obedientiam multo magis eruditi eslent, quam nunc sunt.

Est autem hoc Scholarum opus, quae tamen hujusmodi doctrinas sepius promovent, quam confutant. Nescientes enim Imaginationis et Sensionis naturam, docentquaedidicernnt, alii Jmaginationes oriri a seipsis, id est sine causa, alii oriri plerumque a voluntate j cogitationesque bonas inspirari in hominem a Deo; et malas a Diabolo; vel cogitationes bonas insundi in hominem a Deo -3 malas a Diabolo. Dicunt alii, Sensus cum recipiunt rerum species, eas communi Sensui tradere, communem Sensum Phantasiae, Phantasiam Memoria?, Memoriam ludicio, multis verbis nihil intelligi facientes. i-utttziu:. Imaginatio, qua? in homine, aliove animali, a sermone, vel aliis signis voluntariis nascitur, appellatur bndkttm 5 communisque est homini- hominibus cum bestiis. Canis enim, constietudine doctus, vocari se vel abigi a Domino intelliget j quod facient etiam alia multa animalia. yw/e//<?tstsjquihominipeculiarisest, cd/ntel/ctlm nonsolum voluntatis, sed etiara conceptuum tsccogitationum aliorura hominura, per sequelas et contextum Appellationum rerum, in Assirmationcs, Negationes, aliasque formulas loquendi conceptio* Atque de hoc genere Intcllettm dicemus insra.

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From this ignorance of how to distinguish Dreams, and other strong Fancies, from vision and Sense, did arise the greatest part of the Religion of the Gentiles in time past, that worshipped Satyres, Fawnes, nymphs, and the like; and now adayes the opinion than rude people have of Fayries, Ghosts, and Goblins; and of the power of Witches. For as for Witches, I think not that their witch craft is any reall power; but yet that they are justly punished, for the false beliefe they have, that they can do such mischiefe, joyned with their purpose to do it if they can; their trade being neerer to a new Religion, than to a Craft or Science. And for Fayries, and walking Ghosts, the opinion of them has I think been on purpose, either taught, or not confuted, to keep in credit the use of Exorcisme, of Crosses, of holy Water, and other such inventions of Ghostly men. Neverthelesse, there is no doubt, but God can make unnaturall Apparitions. But that he does it so often, as men need to feare such things, more than they feare the stay, or change, of the course of Nature, which he also can stay, and change, is no point of Christian faith. But evill men under pretext that God can do any thing, are so bold as to say any thing when it serves their turn, though they think it untrue; It is the part of a wise man, to believe them no further, than right reason makes that which they say, appear credible. If this superstitious fear of Spirits were taken away, and with it, Prognostiques from Dreams, false Prophecies, and many other things depending thereon, by which, crafty ambitious persons abuse the simple people, men would be much more fitted than they are for civill Obedience.

And this ought to be the work of the Schooles; but they rather nourish such doctrine. For (not knowing what Imagination, or the Senses are), what they receive, they teach: some saying, that Imaginations rise of themselves, and have no cause: Others that they rise most commonly from the Will; and that Good thoughts are blown (inspired) into a man, by God; and evill thoughts by the Divell: or that Good thoughts are powred (infused) into a man, by God; and evill ones by the Divell. Some say the Senses receive the Species of things, and deliver them to the Common-sense; and the Common Sense delivers them over to the Fancy, and the Fancy to the Memory, and the Memory to the Judgement, like handing of things from one to another, with many words making nothing understood.

Understanding

The Imagination that is raysed in man (or any other creature indued with the faculty of imagining) by words, or other voluntary signes, is that we generally call Understanding; and is common to Man and Beast. For a dogge by custome will understand the call, or the rating of his Master; and so will many other Beasts. That Understanding which is peculiar to man, is the Understanding not onely his will; but his conceptions and thoughts, by the sequell and contexture of the names of things into Affirmations, Negations, and other formes of Speech: And of this kinde of Understanding I shall speak hereafter.

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CAPVT III — De Consequentia sive Serie Imaginationum

CHAPTER III — Of Consequence, or Train of Imaginations

Per Seriem Imaginationum intelligo Succeslionem unius Cogitationis ad aliam; quam (ut distinguatur a Discursu verborum) appello Discursum mentafem.

Quindo aliquis de re quacunque cogitat, proxima ejus Cogitatio non tam fortuita est, quam videtur esle; neque omni Cogitationi omnis Cogitatio pariter succedit. Sed ut nullam habemus Imaginationem quae non ante fuit in Sensione vel tota vel per partes, ita nulla est transitio ab una cogitatione ad aliam cujus similis non extiterat ante in Sensione. Cujus rei causa haec est. Phantasmata omnia Motus sunt interni, nempe motuum in Sensione factorum reliquiae. Motus autem qui alii aliis succedunt in Sensione immediate, remanent etiam firaul, etiara post Sensionem. Adeo ut, quoties redit Cogitatio prior, praedominaturque, sequatur posterior, propter cohaesionem materiae motae, quemadmodum aqua super tabulam planam &levem trahitur per viam, qua ducit digitus. Sed quoniameidera rei conceptse sequitur modo una, modo alia res, post multa cogitata sit, ut incertum sit, quae Cogitatio, cui Cogitationi siicceslura sit. Hoc tantum certum est, successuram esle aliquam earum, quae ante {uccesleranl aliquando.

Series Cogitationum, sive Discursus mentalis duplex est, altera £™j£ irregularis, fme ullo Sine proposito, adeoque inconstans, ut in qua frry«/Trt, nulla est Passio quae gubernet etc. dirigat Cogitationes caeteras ad finem desideratum. Tunc autem vagari videntur, &videri alia? ad alias non pertinere, ut in Somnio. Tales plerumque sunt eorum Cogitationes, qui sunt non solum sine comitatu, sed etiam sine omnium rerura sollicitudine, quanquam etiam tunc non cedant Cogitationes, sed sine harmonia sunt, quales sunt pulsus lyraehomini impexito. Veruntamen in hac vagatione animi animadvertere aliquando Lcviat, c c c possu-

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CHAPTER III — Of Consequence, or Train of Imaginations

CAPVT III — De Consequentia sive Serie Imaginationum

By Consequence, or Trayne of Thoughts, I understand that succession of one Thought to another, which is called (to distinguish it from Discourse in words) Mentall Discourse.

When a man thinketh on any thing whatsoever, His next Thought after, is not altogether so casuall as it seems to be. Not every Thought to every Thought succeeds indifferently. But as wee have no Imagination, whereof we have not formerly had Sense, in whole, or in parts; so we have no Transition from one Imagination to another, whereof we never had the like before in our Senses. The reason whereof is this. All Fancies are Motions within us, reliques of those made in the Sense: And those motions that immediately succeeded one another in the sense, continue also together after Sense: In so much as the former comming again to take place, and be praedominant, the later followeth, by coherence of the matter moved, is such manner, as water upon a plain Table is drawn which way any one part of it is guided by the finger. But because in sense, to one and the same thing perceived, sometimes one thing, sometimes another succeedeth, it comes to passe in time, that in the Imagining of any thing, there is no certainty what we shall Imagine next; Onely this is certain, it shall be something that succeeded the same before, at one time or another.

Trayne Of Thoughts Unguided

This Trayne of Thoughts, or Mentall Discourse, is of two sorts. The first is Unguided, Without Designee, and inconstant; Wherein there is no Passionate Thought, to govern and direct those that follow, to it self, as the end and scope of some desire, or other passion: In which case the thoughts are said to wander, and seem impertinent one to another, as in a Dream. Such are Commonly the thoughts of men, that are not onely without company, but also without care of any thing; though even then their Thoughts are as busie as at other times, but without harmony; as the sound which a Lute out of tune would yeeld to any man; or in tune, to one that could not play. And yet in this wild ranging of the mind, a man may oft-times perceive the way of it, and the dependance of one thought upon another. For in a Discourse of our present civill warre, what could seem more impertinent, than to ask (as one did) what was the value of a Roman Penny? Yet the Cohaerence to me was manifest enough. For the Thought of the warre, introduced the Thought of the delivering up the King to his Enemies; The Thought of that, brought in the Thought of the delivering up of Christ; and that again the Thought of the 30 pence, which was the price of that treason: and thence easily followed that malicious question; and all this in a moment of time; for Thought is quick.

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Series Co- postumus methodum quandam, Sc quo modo una Cogiratio ab altera oriatur. Etenim in colloquio quodam circa bellum nostrum civile, quid impertinentius videre poterat quam interrogare (ut interrogatum erat) Denarii Romani quantus valor eslet. Cohaesio tamen iila satis mihi manisesta videbatur. Nam a Cogitatione Beili introducta est Cogitatio de Rege a subditis fuis tradito hostibus; Cogitatio illa Cogitationem genuit de proditione Iesu Christi ad Iudaeos, illa rursus peperit cogitationem de 30 denariis proditionis illius pretio j inde denique facile sequuta est praedicta interrogatio. Atque haec omnia propter celeritatem cogitationis in momento sere temporis.

Secunda constantior est, ut quae ab aliquo sine desiderato reoulata r^uians. elt. Nam lmpreslio racta ab ns rebus, quas cupimus vel metuimus, vivida est et permanens, vel (si paulum forte ceslet) cito redit; adeoque est aliquando fortis, ut Somnum non modo impediat, ied etiam abrumpat. A Desiderio oritur Cogitatio medii ad rem desideratam obtinendam, quale medium videramus ante similem effectum produxiile. Eodem modo Cogitatio medii ad Finem producit Cogitationem mediiad illudmedium, &sic deinceps, donec veniaturad principium aliquod in potestate nostra. Quoniam autem Finis (propter magnitudinem impressionis) iaepe et facile recurrit animo, si caeperint forte Cogitationes evagari, facile rursus in viam reducuntur. Cujus rei oblervatio fecit, ut septem sapientium celebrium unus praeceptum daret, quod hodie tritum est, Reffice Sinetn; per quod, m omnibus adionibus laepius respectandum esie monet ad Finem, ut ad id quod Cogitationes omnes in via ad Finem obtinendum dirigit.

Series Cogitationum regulata etiam duplex est. Altera quando alicujus effectus concepti Caulas et Media quaerimus quibus producitur. Atque haec hominibus cum caeteris animalibus communis est. Altera est, quando imaginati rem quamcunque, esrectus omnes qua> rimus possibiles qui inde produci poltunt; id est usum ejus quaerimus quis esle possit. Hujus generis Cogitationis signum, praeterquam in homine nunquam vidi; curiositas enim haec in naturam incidere vix potest Animalis cui nullae inlunt passiones praeter ieniuales, quales lunt Fames, Sitis, Amor, et Ira. Discursus denique animi quando £ designato Sine aliquo regitur, nihil aliud est praeter Investtgationem, sive facultatem Jnveniendi quae sagacitas quoquectys/mz^appellatur, et est quasi venatio quaedam per iua vestigia alicujus Causae vel Effectus praeientis aut praeteriti. Investigat aliquis id quod perdidit? Ab co eo loco et tempore ubi id se perdidiste animadvertit, recurrit animo a loco ad locum, et a tempore ad tempus, ut reperiat ubi etc. quando rem perditam habuerat, id est ut tempus aliquod et locum certum et dehnitum reperiat, ubi Investigationis statuere initium poslit. Inde rursus Cogitatione per eadem loca et tempora revertitur, ut actionera aliquam vel occasionem aliam inveniat, quae causa esle poterat ut rem quaesitam perdiderit. Atque haec est facultas illa animi quae vocatur Reminiscentia. %tminiscen*

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Trayne Of Thoughts Regulated

The second is more constant; as being Regulated by some desire, and designee. For the impression made by such things as wee desire, or feare, is strong, and permanent, or, (if it cease for a time,) of quick return: so strong it is sometimes, as to hinder and break our sleep. From Desire, ariseth the Thought of some means we have seen produce the like of that which we ayme at; and from the thought of that, the thought of means to that mean; and so continually, till we come to some beginning within our own power. And because the End, by the greatnesse of the impression, comes often to mind, in case our thoughts begin to wander, they are quickly again reduced into the way: which observed by one of the seven wise men, made him give men this praecept, which is now worne out, Respice Finem; that is to say, in all your actions, look often upon what you would have, as the thing that directs all your thoughts in the way to attain it.

Remembrance

The Trayn of regulated Thoughts is of two kinds; One, when of an effect imagined, wee seek the causes, or means that produce it: and this is common to Man and Beast. The other is, when imagining any thing whatsoever, wee seek all the possible effects, that can by it be produced; that is to say, we imagine what we can do with it, when wee have it. Of which I have not at any time seen any signe, but in man onely; for this is a curiosity hardly incident to the nature of any living creature that has no other Passion but sensuall, such as are hunger, thirst, lust, and anger. In summe, the Discourse of the Mind, when it is governed by designee, is nothing but Seeking, or the faculty of Invention, which the Latines call Sagacitas, and Solertia; a hunting out of the causes, of some effect, present or past; or of the effects, of some present or past cause, sometimes a man seeks what he hath lost; and from that place, and time, wherein hee misses it, his mind runs back, from place to place, and time to time, to find where, and when he had it; that is to say, to find some certain, and limited time and place, in which to begin a method of seeking. Again, from thence, his thoughts run over the same places and times, to find what action, or other occasion might make him lose it. This we call Remembrance, or Calling to mind: the Latines call it Reminiscentia, as it were a Re-Conning of our former actions.

Sometimes a man knows a place determinate, within the compasse whereof his is to seek; and then his thoughts run over all the parts thereof, in the same manner, as one would sweep a room, to find a jewell; or as a Spaniel ranges the field, till he find a sent; or as a man should run over the alphabet, to start a rime.

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Accidit aliquando ut quis locum definitum habeat intra quem Investigatio insiituenda est. Tunc autem Cogitationes ejus partes omnesilliuslocideterminati percurrunt, eomodo, ut si quis cubiculumeverreret, ut perditam inveniret gemmam; vel quemadmodum canis venaticus campum pervagatur, donec serae alicujus odorem sentiat, vel ut qui percurrit animo Alphabetum, ut syllabam finalem inveniat homophonam.

Scirequis cupitactionisalicujus futurum eventum? Cogitat ille prudtntl*, praeteritae actionis similes evcntus, ordine, quo illos ante viderat; quia similes actiones, similes eventus plerumque consequuntur. Uc qui scire vult, quid Reo criminis capitalis eventurum est, reminiscitur ea quae consecuta sunt ante in pari crimine, tali ordine cogitationum, Crimen, Minister, Carcer, Iudex, Patibulum, Genus hoc cogitationum, Sravisto dicitur, et Tmdentia et Trovidevtia, Sc quandoque Sapientia; quanquam Conjettura tantum sit, et propter difficultatem circumstantias omnes observandi, satis fallax. Hoc tamen dubium non est, quin, quantoalius alio majorem habet rerum praeteritarum experientiam tanto magis sit Prudens, et ab expectatione lua rarius decipiatur. Vrxsentia tantum existunt in rerum naturajpnettrita in Memoria sola; sed Futura omnino non existunt, ut quae nihil aliud sunt, praeter Figmenta animi, consequentias adtionis Praeteritae ad adionem Fra/entem applicantis; id quod sit maxima certitudine ab eo, cujus maxima est Experientia, quanquam certitudine non plena. Etsi autem quoties Expedationi respondet Eventus vocetur Prudentia, revera tamen Praesumptio tantum est. Praevisio enim rerum futurarum, quae est Providentia, ad illum solum pertinet, cujus consilio futurae sunt. Et ab illo solo, et supernaturaliter, proficiscitur. Alioqui optimus conjeclor, optimus est Propheta j optimus autem conjedor is est, qui maxime versatus est in illis rebus, de quibus conjecturam facit j is enim plura habet conjicienda Signa.

Signam est Antecedtntillventw Eventus consequens, &contra,co«- Qp* ccc 2 stcjuenti

12, De Hominc. Cap. $, sequenti Antecedcns, quando similes consequentia3 observatas ante fuerint: et quanto saepius observatum est, tanro Simttm minusestincertum. Itaque is qui in quolibet genere negotn maximara habec Experientiam, plunma habet Siana quibus possit de futuro tempore conjedturam faccre, et per consequens est Prudentissimus; et tanto Prudentior est, quam qui ad Negotium idem novus accedit, ut nulla naturalis et extemporarii ingenii ope hic illi aequari postii, quanquam forie multi sint juvenes, qui hoc concesiuri non sint.

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Prudence

Sometime a man desires to know the event of an action; and then he thinketh of some like action past, and the events thereof one after another; supposing like events will follow like actions. As he that foresees what wil become of a Criminal, re-cons what he has seen follow on the like Crime before; having this order of thoughts, The Crime, the Officer, the Prison, the Judge, and the Gallowes. Which kind of thoughts, is called Foresight, and Prudence, or Providence; and sometimes Wisdome; though such conjecture, through the difficulty of observing all circumstances, be very fallacious. But this is certain; by how much one man has more experience of things past, than another; by so much also he is more Prudent, and his expectations the seldomer faile him. The Present onely has a being in Nature; things Past have a being in the Memory onely, but things To Come have no being at all; the Future being but a fiction of the mind, applying the sequels of actions Past, to the actions that are Present; which with most certainty is done by him that has most Experience; but not with certainty enough. And though it be called Prudence, when the Event answereth our Expectation; yet in its own nature, it is but Presumption. For the foresight of things to come, which is Providence, belongs onely to him by whose will they are to come. From him onely, and supernaturally, proceeds Prophecy. The best Prophet naturally is the best guesser; and the best guesser, he that is most versed and studied in the matters he guesses at: for he hath most Signes to guesse by.

Signes

A Signe, is the Event Antecedent, of the Consequent; and contrarily, the Consequent of the Antecedent, when the like Consequences have been observed, before: And the oftner they have been observed, the lesse uncertain is the Signe. And therefore he that has most experience in any kind of businesse, has most Signes, whereby to guesse at the Future time, and consequently is the most prudent: And so much more prudent than he that is new in that kind of business, as not to be equalled by any advantage of naturall and extemporary wit: though perhaps many young men think the contrary.

Neverthelesse it is not Prudence that distinguisheth man from beast. There be beasts, that at a year old observe more, and pursue that which is for their good, more prudently, than a child can do at ten.

Conjecture Of The Time Past

As Prudence is a Praesumtion of the Future, contracted from the Experience of time Past; So there is a Praesumtion of things Past taken from other things (not future but) past also. For he that hath seen by what courses and degrees, a flourishing State hath first come into civill warre, and then to ruine; upon the sights of the ruines of any other State, will guesse, the like warre, and the like courses have been there also. But his conjecture, has the same incertainty almost with the conjecture of the Future; both being grounded onely upon Experience.

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Conjectura eventi.

Quod autem iutef hominem et brutum differentiam faciteitentialem, Prudemia non est. Sunt enimanimaliaaliaquaj earum rerum, quae ad finem futura conducunt plura observant et prudentius perlequuntur, unicum annum nata, quam puer decennis. Sicut Prudentia est praesumptio Futuri contracta a Praeteriti temporxs Experientia: ira etiam alia est praesumtio quaedam rerum Prsteritarum sumpta arebusaliis (non Futuris) sed.Praeteritis. Nam qui vidit quibus moribus, et gradibus Civitas aliqua inciderit in bellum civile, et quomodo inde prosligata fuerit; si viderit alterius cujus* cunque Civitatis ruinas, conjecturam faciet, similes mores et bellura simile iliic quoque praecessisse. Sed conjectura haec eandem habec incertitudinem, quam conjectura temporis Futuri.

Kumani animi adus alius nullus est, quod sciam, naturaliter insitus, talis ut adexercitium ejus nulla alia re indigeat, praererquam nasci hominem et usum babere quinque ejus Sensuum. Facultates illx, de quibus paulo post sermo erit, qiueque hominis videntur proprie, Acquilitas sunt, Sc studio industriaque auctae, habentes initium in instrudtione et disciplina, procedentesque ab inventione Vocabulorum etc. sermonis. Nam praeter Sensum et Imaginationem, etc. Cogitationum Seriem, bumano animo nullus alius inest motus; quanquam Sermonis &Ordinis benesicio, easdem facultates promoveri in tantum postunt, ut per eas homo a casteris animalibus omnibus distingui poslit.

Quicquid imaginamur Finitum est. Nulla ergo est idea neque conceptus qui oriri potest a voce hac, Insinitum. Animus humanus Imaoinem inslnitae magnitudinis capere non potest •> neque concipere inscnitam velocitatem, insinitam vim3 insinitum tempus, aut insinitam potentiam. Quando dicimusrem aliquam esle Insinitam^ hoctantum iignisicamus non poste nos.illius rei terminos et limites concipere; neque aiiud concipere praeter nostram impotentiam propriam. Itaque nomen Dei non usarpatur, ut illum concipiamus (estenim lncomprchenlibilis, &,magnitudo potentiaque ejus inconceptibi- lis) sed ut honoremus. Ec quoniam quicquid (ut dixi supra) concipimus, perceptum est, ante in Sensione, nulla ineste homini potest imaginatio rei, quae non iit percipienda Sensibus. Nemo itaque concipere aliquid potest, nisi 11 1 in loco, et finita aliqua magnitudine siroeditum, et divisibile in partes; neque aliquid eflk totuminuno oco, et totum io altcro, tempore codem,- neque duas vel plures reseodem tempore esle poslein eodem loco. Nihil enim horura fuere aut esle potuere in Sensione -, sed sunt orationes insignisicantes, admislae propter authoritatem quorundam Philosophorum errantium, vel scholasticorum fallentium.

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There is no other act of mans mind, that I can remember, naturally planted in him, so, as to need no other thing, to the exercise of it, but to be born a man, and live with the use of his five Senses. Those other Faculties, of which I shall speak by and by, and which seem proper to man onely, are acquired, and encreased by study and industry; and of most men learned by instruction, and discipline; and proceed all from the invention of Words, and Speech. For besides Sense, and Thoughts, and the Trayne of thoughts, the mind of man has no other motion; though by the help of Speech, and Method, the same Facultyes may be improved to such a height, as to distinguish men from all other living Creatures.

Whatsoever we imagine, is Finite. Therefore there is no Idea, or conception of anything we call Infinite. No man can have in his mind an Image of infinite magnitude; nor conceive the ends, and bounds of the thing named; having no Conception of the thing, but of our own inability. And therefore the Name of GOD is used, not to make us conceive him; (for he is Incomprehensible; and his greatnesse, and power are unconceivable;) but that we may honour him. Also because whatsoever (as I said before,) we conceive, has been perceived first by sense, either all at once, or by parts; a man can have no thought, representing any thing, not subject to sense. No man therefore can conceive any thing, but he must conceive it in some place; and indued with some determinate magnitude; and which may be divided into parts; nor that any thing is all in this place, and all in another place at the same time; nor that two, or more things can be in one, and the same place at once: for none of these things ever have, or can be incident to Sense; but are absurd speeches, taken upon credit (without any signification at all,) from deceived Philosophers, and deceived, or deceiving Schoolemen.

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LATINE · 1668

CAPVT IV — De Sermone

CHAPTER IV — Of Speech

Inventio Artis Typographicce quanquam ingeniosa, collata tamen cum inventione Literarum non magna res est. Literas autem quis "^* invenit ignoratur. Qui primus illas intulit in Graciam, Cadmum este serunc, filium Agenorts Regis Phceniciae. Excogitatum, ad perpetuationem memorise temporis praeteriti,.& ad conjunctionem generishumaniin totcttam distantes orbis terrarum regiones, urilislimum, idemque simul difficilimum, et utpote prosectium ab observationediligentissimamotuumlinguae, Palati, Labrorum, aliorumque loquendi 6rganorum, ita ut totidem eslent charaelerum differentiae, quibus distinguerentur. Nobilislima autem et omnium utilisiima fuit inventio Sermonis, ex Nominibus sive Appeuationibm et eorum Connexione consistentis, quibus cogitata hominum conscribi, revocari in memoriam, &ab uno ad alium paresieri postunt, ad eorum converlationem et utilitatem mutuam. Nam absque eo, non fuislet in-ter homines, neque Respublica, neque Societas, neque Pactum, neque Pax magis quam inter Leones, Ursos, et Lupos* Sermonis author primus fuit Adam, qui creaturas, quas ad conspectum ejus adduxit Deus, Nominavit. Hacscenus tantum de ea re Scriptura Sacra; sed sussiciebat hoc pro illo tempore. Nam eodem modo rebus aliis alia nomina imponere, prout experientia et creaturarum usus postularet, potuit, eaque paulatim ita connectere, ut intelligeretur; atque hoc modo succedente tempore tanta Sermom copiaacquiri potuit, quanta indigeret 5 quanquam non tanta, quanta Oratori vel Philosopho opus esset. Non enim invenio in Scripturis Saciisex quo directe, vel per consequentiam colligi potest, imposuisle ccc 3 Adumurn

Adamum varietati omni Figurarum, Numerorum, Mensurarum, Colorum, Sonorum, Cogitationum, Relationum nomina, multo minus imposuiste illum nomina Nominibus et Orationibus, qualia sunt Generale, Speciale,Assirmativhm, Negativum, Interrogativum, Optativnm, Insinitivum, quae omnia sunt utilia 5 minime autem omnium Entttatem, Intentionalitatem, Quidditatem, aliaque posuit verba Scholastica insignisicantia.

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CHAPTER IV — Of Speech

CAPVT IV — De Sermone

Originall Of Speech

The Invention of Printing, though ingenious, compared with the invention of Letters, is no great matter. But who was the first that found the use of Letters, is not known. He that first brought them into Greece, men say was Cadmus, the sonne of Agenor, King of Phaenicia. A profitable Invention for continuing the memory of time past, and the conjunction of mankind, dispersed into so many, and distant regions of the Earth; and with all difficult, as proceeding from a watchfull observation of the divers motions of the Tongue, Palat, Lips, and other organs of Speech; whereby to make as many differences of characters, to remember them. But the most noble and profitable invention of all other, was that of Speech, consisting of Names or Apellations, and their Connexion; whereby men register their Thoughts; recall them when they are past; and also declare them one to another for mutuall utility and conversation; without which, there had been amongst men, neither Common-wealth, nor Society, nor Contract, nor Peace, no more than amongst Lyons, Bears, and Wolves. The first author of Speech was GOD himselfe, that instructed Adam how to name such creatures as he presented to his sight; For the Scripture goeth no further in this matter. But this was sufficient to direct him to adde more names, as the experience and use of the creatures should give him occasion; and to joyn them in such manner by degrees, as to make himselfe understood; and so by succession of time, so much language might be gotten, as he had found use for; though not so copious, as an Orator or Philosopher has need of. For I do not find any thing in the Scripture, out of which, directly or by consequence can be gathered, that Adam was taught the names of all Figures, Numbers, Measures, Colours, Sounds, Fancies, Relations; much less the names of Words and Speech, as Generall, Speciall, Affirmative, Negative, Interrogative, Optative, Infinitive, all which are usefull; and least of all, of Entity, Intentionality, Quiddity, and other significant words of the School.

But all this language gotten, and augmented by Adam and his posterity, was again lost at the tower of Babel, when by the hand of God, every man was stricken for his rebellion, with an oblivion of his former language. And being hereby forced to disperse themselves into severall parts of the world, it must needs be, that the diversity of Tongues that now is, proceeded by degrees from them, in such manner, as need (the mother of all inventions) taught them; and in tract of time grew every where more copious.

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Veruntamen copia haec omnis sive acquisita, sive aucta ab Adamo et posteris ejus, interiit penitus ad Turrem Babel,quo tempore Deus omnem hominem Sermonis fui, propter rebellionem, oblivione peicuslit. Itaque dispergere se coactis in diversas mundi partes, necessarium erat, ut Linguarum varietas, quae nunc est, gradatim ab illis proceslerit, prout neceslitas (Inventionum omnium mater) illos docuerat; itaque traclu temporis Lingua unaquaeque in majorem copiam verborum auda est. Scrmonu Sermonis usus generalislimus, est conversio Discursus Mentalis in */«'• Verbalem, sive Seriem Cogitationum nostrarum in Seriem Verborum, idque ad duos sines, quorum alter est conscriptio cogitatorum j quae cum e memoria elabi apta sint, per verba illa quibus conscribuntur, revocari poslint. Primus ergo usus nominum est, ut sint pro Notis ad memoriam. Alter est (postquam multi eundem calluerint Sermonemj ut (ordine et connexione sua) poslint alter alteri quid concipiunt et de unaquaque re cogitant $ quidque etiam cupiunt, metuunt, etc.. signisicare. Propter hunc usum vocantur Signa. Vsus Sermonis speciales sunt hi, primo quas cogitando rerum praeteritarum vel praesentium causas esse reperimus, vel quae a rebus praesentibus vel praeteritis produci poslunt, conscribere j namquehinc oriuntur Artes. Secundo, ut ostendamus aliis scientiam a nobis acquisitam, consulendo et docendo. Tertio ut patesaciamus alii aliis consilia et voluntates nostras, quo mutuo poslimus alius alii auxiliari. Quarto Sermone aliquando uti possumus ad deledationem vel ornamentum innocenter. Sermnit His Vsibus respondent totidem Abusus. Primus est quando homi" ^1"' nes cogitationes suas, propter inconstantiam signisicationis verborum suorum, perperam conscribunt j ut quando pro cogitato ponunt id, quod non cogitarant j atque ita seipsos fallunt. Secundus est, quando verbis utunturmetaphoricis, id est alio sensii quam ad quem ordinata simt > atque ita decipiunt alios. Tertius, quando voluntatem suam eam esle declarant verbis, quae revera non est. Quartus, quando Sermone utuntur ad lasdendum proximum. Castera ani- malia armavit natura alia dentibus, alia cornibus, hominem autem manibus, ut quando opus est laedant hostem. Sed lingua laedere Sermonis abusus est, niii quando aliquemregereobligamur. Idvero Udere non est, led corrigere et emendare.

Modus quo Sermo inservit memoriae consequentiarum consistit in nominum impositione et connexione.

Nominum alia sunt Sropria, signisicantia rem unam singularem; ut Nomina Tetrm, Johanms, hic homo, h<ec arbor. Alia autem multis rebus sunt ^Zzwl Communia; ut Homo> Eqmu, Arbor; nam unumquodque eorum, etsi iwwr/tai. unicum sit, multarum tamen rerum particularium nomen est. Respectu autem omnium illorum particularium, vocatur universale. Nihil enim in rerum natura universale est praeter rerum vocabula 5 nam res nominatae simt omnes Individuae et Singulares.

Pluribus rebus nomen Vniversale impositum unicum est, propter alicujus Qualitatis vel Accidentis similitudinem. Itaque ut nomen Proprium revocat ad animum rem unam certara, nomen Vniversale revocat rem ex multis unam quamcunque.

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The Use Of Speech

The generall use of Speech, is to transferre our Mentall Discourse, into Verbal; or the Trayne of our Thoughts, into a Trayne of Words; and that for two commodities; whereof one is, the Registring of the Consequences of our Thoughts; which being apt to slip out of our memory, and put us to a new labour, may again be recalled, by such words as they were marked by. So that the first use of names, is to serve for Markes, or Notes of remembrance. Another is, when many use the same words, to signifie (by their connexion and order,) one to another, what they conceive, or think of each matter; and also what they desire, feare, or have any other passion for, and for this use they are called Signes. Speciall uses of Speech are these; First, to Register, what by cogitation, wee find to be the cause of any thing, present or past; and what we find things present or past may produce, or effect: which in summe, is acquiring of Arts. Secondly, to shew to others that knowledge which we have attained; which is, to Counsell, and Teach one another. Thirdly, to make known to others our wills, and purposes, that we may have the mutuall help of one another. Fourthly, to please and delight our selves, and others, by playing with our words, for pleasure or ornament, innocently.

Abuses Of Speech

To these Uses, there are also foure correspondent Abuses. First, when men register their thoughts wrong, by the inconstancy of the signification of their words; by which they register for their conceptions, that which they never conceived; and so deceive themselves. Secondly, when they use words metaphorically; that is, in other sense than that they are ordained for; and thereby deceive others. Thirdly, when by words they declare that to be their will, which is not. Fourthly, when they use them to grieve one another: for seeing nature hath armed living creatures, some with teeth, some with horns, and some with hands, to grieve an enemy, it is but an abuse of Speech, to grieve him with the tongue, unlesse it be one whom wee are obliged to govern; and then it is not to grieve, but to correct and amend.

The manner how Speech serveth to the remembrance of the consequence of causes and effects, consisteth in the imposing of Names, and the Connexion of them.

Names Proper & Common Universall

Of Names, some are Proper, and singular to one onely thing; as Peter, John, This Man, This Tree: and some are Common to many things; as Man, Horse, Tree; every of which though but one Name, is nevertheless the name of divers particular things; in respect of all which together, it is called an Universall; there being nothing in the world Universall but Names; for the things named, are every one of them Individual and Singular.

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Nominum autem Vniversalium, alia amplioris, alia strictioris signisicationis sunt, ita ut nomen Amplius, nomen Strictius contineat. Alia rursus sunt amplitudinis aequalis, et comprehendunt se mutud. Exempli causa, nomen Corpus comprehendit nomen Hominem, et praeterea aliquid; nomina autem Homo et Ratwnale asqualia sunt, comprehendentia se mutu6. Sed notandum hic est, quod per Nomen non femper intelligimus vocabulum unicum, ut Grammatici, sed aliquando per circumlocutionem multis vocabulis nomen unum; ut verba hxc, Quiconsulta patrum, qui Leges luraque servat unicum nomen est, et nomini Jttsto aequivalens.

Per impositionem hanc nominum amplioris et strictioris signisicationis computationem consequentiarum in cogitationibus, convertimus in computationem consequentiarum in nominibus. Exempli causa, is qui omni Sermonis usu caret (qualis est qui mutus et surdus natusest) si positum ante oculos triangulum viderit, &juxtatriangulum duos angulos redos (quales iunt anguli figurae quadrata;) potest tamen meditatione, contemplando comparandoque invenire tres illius trianguli angulos, aequales esse duobus illis angulis rectis juxta politis. Ille autem, qui sermone prseditus est, cum animadverterit aequalitatem illam consequentem esle, non longitudini laterum, neque cuiquam rei speciali in triangulo, sed hoc tantum, quodlatera sunt re<5sca, et anguli tres, propter quod figurae nomen mditum est trianguli, Vniversaliter audacterque pronuntiabit, Irianguli angulos ms its Jde Hdmine, -Cap. 4, tres aquales ejse duobut rebis. Atque hoc modo consequentia inventa in re singulari conscribitur adsnemoriam, ut regula universalis, computationemque mentalem omni loci et temporis consideratione exonerat; atque animum omni labore Iiberat prazter primum; facitque ut quod verum inventum est hic et nunc, pro vero omni alio tempore etc. loco agnoscatur.

Verborum autem uius in cogitationibus conscribendis nusquam ita manisestus est, ut in numeris. Stultus enim naturalis qui ordinem verborum numeralium, unum> duo, tria, etc.. memoriter pronuntiare non potest, obiervare tamen potest singulos ordine ictus horologii, etc. annuens dicere unum-^unum^unum, sed quota hora sonuitscire non potest. Videtur autem fuisle aliquando tempus in quo nomina riumeralia pauca extabant, cogebanturque homines, quando numerarent, numerata digitis, primo unius manus, deinde ambarum applicare; atque inde natum esle, ut verba numeralia in omni sere gente non excederent denarium; et in aliquibus plura non esse quam quinque, et a quinto eadem repeterent. Etiam is qui decem verbahabet numeralia, nisi ordine ea recitet numerare usque ad decem non potest. Multo minus Addere, Subsirahere, et casteras perficere Operationes Arithmeticas. Itaque absque verborum usu Numerorum computatio est impossibilis, multo magis Magnitudinum, graduum velocitatis, virium, aliarumque rerum, quarum eomputationes ad generis humani neceslitatem vel adjumentum neceitarias sunt.

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One Universall name is imposed on many things, for their similitude in some quality, or other accident: And whereas a Proper Name bringeth to mind one thing onely; Universals recall any one of those many.

And of Names Universall, some are of more, and some of lesse extent; the larger comprehending the lesse large: and some again of equall extent, comprehending each other reciprocally. As for example, the Name Body is of larger signification than the word Man, and conprehendeth it; and the names Man and Rationall, are of equall extent, comprehending mutually one another. But here wee must take notice, that by a Name is not alwayes understood, as in Grammar, one onely word; but sometimes by circumlocution many words together. For all these words, Hee That In His Actions Observeth The Lawes Of His Country, make but one Name, equivalent to this one word, Just.

By this imposition of Names, some of larger, some of stricter signification, we turn the reckoning of the consequences of things imagined in the mind, into a reckoning of the consequences of Appellations. For example, a man that hath no use of Speech at all, (such, as is born and remains perfectly deafe and dumb,) if he set before his eyes a triangle, and by it two right angles, (such as are the corners of a square figure,) he may by meditation compare and find, that the three angles of that triangle, are equall to those two right angles that stand by it. But if another triangle be shewn him different in shape from the former, he cannot know without a new labour, whether the three angles of that also be equall to the same. But he that hath the use of words, when he observes, that such equality was consequent, not to the length of the sides, nor to any other particular thing in his triangle; but onely to this, that the sides were straight, and the angles three; and that that was all, for which he named it a Triangle; will boldly conclude Universally, that such equality of angles is in all triangles whatsoever; and register his invention in these generall termes, Every Triangle Hath Its Three Angles Equall To Two Right Angles. And thus the consequence found in one particular, comes to be registred and remembred, as a Universall rule; and discharges our mentall reckoning, of time and place; and delivers us from all labour of the mind, saving the first; and makes that which was found true Here, and Now, to be true in All Times and Places.

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Quando duo nomina conjunguntur ut siat Assirmatio, vel Consequentia, ut cum dicimus, Homo ejl Animd, vel sic Si esl Hcmo tum e(i Animal, et nomen posterius Animal signisicet omnia quae signisicat prius nomen Homo, Astkmatio illa sive Consequentia Vera est, alioqui Falsa. Nam Verum et Falsum attributa sunt non rerum sed Orationis. Vbi autem Oratio non est, ibi neque Verum est neque Falsum, quanquam Error potest, ut quando expectamus id quod non erit, vel suspicamur quod non fuit; sed Falsi accusari non potest. Dcjimtjo- Quoniam ergo in ordinatione recta nominum quandoaliquidassirmamus consistit Veritas, is qui Veritatem accuratam quazrit, meminille debet, quid in quoque Ioco unumquodque Nomen valet, et nomina, quibus utitur, recte collocare. Alioqui enim impeditum se inveniet verborum tricis, sicut avicula inviscata, quas quanto magis liberare se certat, tanto magis inviscatur. Itaque in Geometria, quse sola sere est Scientia accurata, incipere Magistri solent a constitutione signisicationum Nominum quibus uiuri sunt, id est a Definitionijbus,& in principio operis illas collocare.

Atque

num usm.

Atque hsnc apparet,quam sit illi opus qui ad Scientiam veram tendit, Auchorum Autiquiorum Definitiones examinare, negligentiusquc scriptas corrigere, vel sibi ipsi novas constituere. Proutenim in unaquaqucscientiaproceditcomputatio, multiplicanturetiam, qui in Dehnitionibus ^iint Errores; unde paulatim ducuntur lectores in conclusiones abiurdas; quas etsi tandem videant, extricare tame^n ie non posliint, nisi denuo ab initio computare incipiant, in quo initio eorum errores fundati erant. Illis ergo qui Authoribus aliis nimium credunt, idemsaciunt, quod qui multas iummas minores in majorem colligunt, iummulis iliis nonante recle cxaminatis, et perspecto tandem errore, nec fuipectis Magistrorum Principiis, expedire se non poslunt; sed tempus consumunt librorum solia motitantes, quemadmodum faciunt aviculae,quae postquam in cubiculum aliquod intraverint per caminum,inclusasque ie viderint, ad senestne vitreae lumen falsum, motitando alas, obliti qua via ingreslae sint, laborant frustra. Primus ergo Sermonis uius,qu3s acquisitio est Scientiarum, consistit m recta nominum Definitione, primusque abuius in Definitione salia vel nulla; atque inde procedunt saliae et abiurdae Philosophorum Opiniones, quae illos qui instruclionem non a propria meditatione, sed ab Atithoritate hbrorum accipiunt, tanto hominum ignorantium conditione inseriores reddunt, quanto homines vera Scientia praediti, eldem cenditione itiperiores sunt. Nam inter veram Scientiam, et doctrinam erroneam, ignorantia in medio est. Sensus et Imaginatio naturales absurditatibus obnoxiae non sunt. Natura ipsa errare non potest. Quanto autem quis Sermonis copia abundat magis, tanto aut sapientior vel stultior est quam vulgus. Neque sine literis sieri solent homines insigniter sapientes, neque (niii cuisorte morbo vel prava constitutione Organorum animus laesiis sit) insigniterstultus. Vocabulaenim sapientium quidem calculi sunt quibus computant; stultorum autem Nummi, aestimati impreslione alicujus nomine celebrtut Arisiotelis, vel Ciceronis> vel dquinatis, aliusve Docloris cujuscunque humani.

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But the use of words in registring our thoughts, is in nothing so evident as in Numbering. A naturall foole that could never learn by heart the order of numerall words, as One, Two, and Three, may observe every stroak of the Clock, and nod to it, or say one, one, one; but can never know what houre it strikes. And it seems, there was a time when those names of number were not in use; and men were fayn to apply their fingers of one or both hands, to those things they desired to keep account of; and that thence it proceeded, that now our numerall words are but ten, in any Nation, and in some but five, and then they begin again. And he that can tell ten, if he recite them out of order, will lose himselfe, and not know when he has done: Much lesse will he be able to add, and substract, and performe all other operations of Arithmetique. So that without words, there is no possibility of reckoning of Numbers; much lesse of Magnitudes, of Swiftnesse, of Force, and other things, the reckonings whereof are necessary to the being, or well-being of man-kind.

When two Names are joyned together into a Consequence, or Affirmation; as thus, A Man Is A Living Creature; or thus, If He Be A Man, He Is A Living Creature, If the later name Living Creature, signifie all that the former name Man signifieth, then the affirmation, or consequence is True; otherwise False. For True and False are attributes of Speech, not of things. And where Speech in not, there is neither Truth nor Falshood. Errour there may be, as when wee expect that which shall not be; or suspect what has not been: but in neither case can a man be charged with Untruth.

Seeing then that Truth consisteth in the right ordering of names in our affirmations, a man that seeketh precise Truth, had need to remember what every name he uses stands for; and to place it accordingly; or els he will find himselfe entangled in words, as a bird in lime-twiggs; the more he struggles, the more belimed. And therefore in Geometry, (which is the onely Science that it hath pleased God hitherto to bestow on mankind,) men begin at settling the significations of their words; which settling of significations, they call Definitions; and place them in the beginning of their reckoning.

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Res hominata est, quaecunque cogitari vel in ratiocinatione consi- <%*, nomin& derari potest, iive alteri addi ad conficiendam summam, vel alteri Um substrahi. Latini Rationes vocant hbellos pecuniae computata?, et Computationem ipsam ratiocinationem, et id quod nos in rationibus appeilamus Item^ illi Nomen vocant. Atque inde vox Ratio extensa est ad facultatem Computandi in rebus caeteris. Gra?cis vocabulum unum Koy<Gr signisicat et Sermonem et Rationem; non eo,quod putarent, nullura esle Sermonera sine Ratione, sed nullam Rationemsi%eviat, d d d nc ne Sermone. Actum autem Ratiocinandi dixerunt Syllogismum, quae vox signisicat consequentiae Dicti unius ad alcerum conjunctionem. Sed quia eaedem res in Rationes inseruntur propter diversa accidentia, earum Nomina (ad diversitatem illam signisicandam) diversimodo variari et torqueri solent. Diversitas autem Nominum ad quatuor capita generalia reduci potest.

Primo, res aliqua in Rationes ingredi potest ut Materia, sive Corpus, sub nomine viventis, sensibtlis, rationalis, calidi,sr/gtdt, moti, quiescentis^ quae Nomina sigmsicant Materiam, sive Corpus.

Secundd, res aliqua intrare in Rationes potest propter accidens vel qualitatem, quam illi rei inesle cogitamus; ut quia mcvetm, vel quantitatcm habet, vel quia calet, etc.. tum vero nomen ipsius rei mutamus aliquantulum, et loco viventis ponimus vitam 5 loco mcti corporis ponimus motum; loco calidi, calorem; locolongi, longitudinem et similiter in caeteris. Quo facto nomina illa non sunt nomina Matenas sive Corporis, sed Accidentium et Proprietatum quibus Corpus a Corpore distinguitur. Appellantur autem hujusmodi nomina Abstrasta, non quod abstrahantur a Materia, sed a Materiae Computatione.

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By this it appears how necessary it is for any man that aspires to true Knowledge, to examine the Definitions of former Authors; and either to correct them, where they are negligently set down; or to make them himselfe. For the errours of Definitions multiply themselves, according as the reckoning proceeds; and lead men into absurdities, which at last they see, but cannot avoyd, without reckoning anew from the beginning; in which lyes the foundation of their errours. From whence it happens, that they which trust to books, do as they that cast up many little summs into a greater, without considering whether those little summes were rightly cast up or not; and at last finding the errour visible, and not mistrusting their first grounds, know not which way to cleere themselves; but spend time in fluttering over their bookes; as birds that entring by the chimney, and finding themselves inclosed in a chamber, flitter at the false light of a glasse window, for want of wit to consider which way they came in. So that in the right Definition of Names, lyes the first use of Speech; which is the Acquisition of Science: And in wrong, or no Definitions' lyes the first abuse; from which proceed all false and senslesse Tenets; which make those men that take their instruction from the authority of books, and not from their own meditation, to be as much below the condition of ignorant men, as men endued with true Science are above it. For between true Science, and erroneous Doctrines, Ignorance is in the middle. Naturall sense and imagination, are not subject to absurdity. Nature it selfe cannot erre: and as men abound in copiousnesse of language; so they become more wise, or more mad than ordinary. Nor is it possible without Letters for any man to become either excellently wise, or (unless his memory be hurt by disease, or ill constitution of organs) excellently foolish. For words are wise mens counters, they do but reckon by them: but they are the mony of fooles, that value them by the authority of an Aristotle, a Cicero, or a Thomas, or any other Doctor whatsoever, if but a man.

Subject To Names

Subject To Names, is whatsoever can enter into, or be considered in an account; and be added one to another to make a summe; or substracted one from another, and leave a remainder. The Latines called Accounts of mony Rationes, and accounting, Ratiocinatio: and that which we in bills or books of account call Items, they called Nomina; that is, Names: and thence it seems to proceed, that they extended the word Ratio, to the faculty of Reckoning in all other things. The Greeks have but one word Logos, for both Speech and Reason; not that they thought there was no Speech without Reason; but no Reasoning without Speech: And the act of reasoning they called syllogisme; which signifieth summing up of the consequences of one saying to another. And because the same things may enter into account for divers accidents; their names are (to shew that diversity) diversly wrested, and diversified. This diversity of names may be reduced to foure generall heads.

First, a thing may enter into account for Matter, or Body; as Living, Sensible, Rationall, Hot, Cold, Moved, Quiet; with all which names the word Matter, or Body is understood; all such, being names of Matter.

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Tertio, in Rationes inserimus proprietates illas quibus ipsi res distinguimus: sicut quando videmus, aliquid, non Computamus femper rem visam, sed visionem^ colorem sive ideam^ sive rei visae Soantasma: similiter quando audiwus, pro re ipla quae sonum hcit^sonum sive audiitonem tantum consideramus. Et sic de caeteris Phantasmatibus.

Quarto, in Rationes inserimus quandoque nomina ipsorumno- minum et Sermonum, dicentes ^gentrale, umversale ^speciale, umvo~ cum, acjuivocum, quae sunt Nomina Nominum. Item assirrr.ationem, interronationem, prxccptum, narrationtm ^syllogismum, orationem, aliaque ejusmodi multa, quae sunt nomina Orationum. Atque hac varietas

Kiminapo- omnis est nominum Sojitivorum signisicantium aliquid eorum quae sunt in natura rerum, vel eorum quss animo poltunt singi, ut corpora quae sunt vel ede videri poslunt, vel ut proprietates corporum quas mnt vel este videri posluut; vel Verba et Sermones.

Ktminane- $unt et a]ja ^omina^ Negativa, quae signisicant, nomen aliquod, nomen rei propositae non este, qualia sunt Niloil, Nemo, Jnsinitum,

Indoale, tria mtnus quatucr, et similia quae tamcn in Rationibus usum suum habent, vel in corrigendo vel revocando j quia faciunt ut no- uemimin. mina non rede imposita vel usurpata recusemus.

£/*" Caetera Nomina omnia soni innt sine signisicatione,• &duorum gene- generum. Alterum, quse nova sunt nec tamen Definitione explicata; qualia i laborantibus Philosophis et Scholasticis excogitata iuht.

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Secondly, it may enter into account, or be considered, for some accident or quality, which we conceive to be in it; as for Being Moved, for Being So Long, for Being Hot, &c; and then, of the name of the thing it selfe, by a little change or wresting, wee make a name for that accident, which we consider; and for Living put into account Life; for Moved, Motion; for Hot, Heat; for Long, Length, and the like. And all such Names, are the names of the accidents and properties, by which one Matter, and Body is distinguished from another. These are called Names Abstract; Because Severed (not from Matter, but) from the account of Matter.

Thirdly, we bring into account, the Properties of our own bodies, whereby we make such distinction: as when any thing is Seen by us, we reckon not the thing it selfe; but the Sight, the Colour, the Idea of it in the fancy: and when any thing is Heard, wee reckon it not; but the Hearing, or Sound onely, which is our fancy or conception of it by the Eare: and such are names of fancies.

Fourthly, we bring into account, consider, and give names, to Names themselves, and to Speeches: For, Generall, Universall, Speciall, Oequivocall, are names of Names. And Affirmation, Interrogation, Commandement, Narration, Syllogisme, Sermon, Oration, and many other such, are names of Speeches.

Use Of Names Positive

And this is all the variety of Names Positive; which are put to mark somewhat which is in Nature, or may be feigned by the mind of man, as Bodies that are, or may be conceived to be; or of bodies, the Properties that are, or may be feigned to be; or Words and Speech.

Negative Names With Their Uses

There be also other Names, called Negative; which are notes to signifie that a word is not the name of the thing in question; as these words Nothing, No Man, Infinite, Indocible, Three Want Foure, and the like; which are nevertheless of use in reckoning, or in correcting of reckoning; and call to mind our past cogitations, though they be not names of any thing; because they make us refuse to admit of Names not rightly used.

Words Insignificant

All other names, are but insignificant sounds; and those of two sorts. One, when they are new, and yet their meaning not explained by Definition; whereof there have been aboundance coyned by Schoole-men, and pusled Philosophers.

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Alterum est quando Nomen aliquod a duobus nominibus componitur, quorum signisicationes sunt inconsistentes; utnomenhoc, corpm tncorporeum^ (vel quod idem est) substantia incorporea; aliaque similia. Quandocunque enim assirmatio aliqua falla est, ex duobus nominibus quibus constat si siat nomen unum, illud erit insignisicans; exemplicausa si falsam sit diceve quadratum est rotundum, nomen illud cjuadratum rotundum sonus merus est, nihil signisicans. Similiter si falsum sit dicere virtutem/Jw^ vel slari posle, verba haec insusa virtui, inslata virtus, nomina sunt insignisicantia. Itaque in verbum absurdum et insignisicans non facile inciditur quodnoncompositum sit a nomibus quas intelligi a vulgo hominum non possunt.

Quando cogitatio alicujus rei oritur a sermone audito, et ut inteucctut* oportuit ordinato, tunc qui audit, verba illa dicitur Inteuigere; Intelledus enim aliud non est prsetcr conceptum natum a Serraone. Itaque si sermo homini peculiaris sit ('ut videtur esle) etiam homini soli proprius Intelledus est. Vnde sequitur Assirmationes falsas, easdemque universales intelligi non pode; quanquam nonnulli sunt qui putant se intelligere tunc quando verba audita tacite apudse animo recitant.

Qux orationum genera signisicanr Appetitum, Aversionem, ca»terasque animi humani Passiones; quisque sit eorum usus et abusus tunc dicam, quando dicam de Paslionibus.

Nominarerum quas placent, quia non omnibus similiter placent res easdem, neque eidem homini, idem orani tempore, inconstantis sunt signisicationis.

Cum enim nomina omnia ad conceptus (ignisicandos imposita fuerint, neceste est cum easdem res non similiter sentiamus, ut easclem etiam saepenumero dislimiliter nominemus. Etsi rei concepta; natura non mutetur, diversitas tamen receptionis (ort33 a diversitate naturarum individuarum, et a praejudiciis Opinionum) facit ut unusquisque nomina illis imponat propriasuaassedionealiquatenus tincla. Quamobrem in omni ratiocinatione cautela opus est, ne praeter signisicationem ipsiusrei, admittamus etiam aliquid de natura ingenio etc. assedtibus hominis qui loquitur. Nomina autem hujusmodi plerumque sunt Virtutum et Vitiorum nomina.Nam quam alius Prudentiam, alius vocat Metum; quam alius Crudeiitatem, alius vocat Jujlitiam; quam hic Proluvium ille Magmsicentiam appellat; quae huic Gravitas alteri videtur Stupor, Scc. Itaque ex hujusmodi nomi- ddd z nibus nibus Principia ratiocinandi constitui non postunt. Neque ex Me« taphoris, aliiique orationis tropis. Sed minus sunt hsec penculosa^ quia inconstantiam iuam prositentur.

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Another, when men make a name of two Names, whose significations are contradictory and inconsistent; as this name, an Incorporeall Body, or (which is all one) an Incorporeall Substance, and a great number more. For whensoever any affirmation is false, the two names of which it is composed, put together and made one, signifie nothing at all. For example if it be a false affirmation to say A Quadrangle Is Round, the word Round Quadrangle signifies nothing; but is a meere sound. So likewise if it be false, to say that vertue can be powred, or blown up and down; the words In-powred Vertue, In-blown Vertue, are as absurd and insignificant, as a Round Quadrangle. And therefore you shall hardly meet with a senselesse and insignificant word, that is not made up of some Latin or Greek names. A Frenchman seldome hears our Saviour called by the name of Parole, but by the name of Verbe often; yet Verbe and Parole differ no more, but that one is Latin, the other French.

Understanding

When a man upon the hearing of any Speech, hath those thoughts which the words of that Speech, and their connexion, were ordained and constituted to signifie; Then he is said to understand it; Understanding being nothing els, but conception caused by Speech. And therefore if Speech be peculiar to man (as for ought I know it is,) then is Understanding peculiar to him also. And therefore of absurd and false affirmations, in case they be universall, there can be no Understanding; though many think they understand, then, when they do but repeat the words softly, or con them in their mind.

What kinds of Speeches signifie the Appetites, Aversions, and Passions of mans mind; and of their use and abuse, I shall speak when I have spoken of the Passions.

Inconstant Names

The names of such things as affect us, that is, which please, and displease us, because all men be not alike affected with the same thing, nor the same man at all times, are in the common discourses of men, of Inconstant signification. For seeing all names are imposed to signifie our conceptions; and all our affections are but conceptions; when we conceive the same things differently, we can hardly avoyd different naming of them. For though the nature of that we conceive, be the same; yet the diversity of our reception of it, in respect of different constitutions of body, and prejudices of opinion, gives everything a tincture of our different passions. And therefore in reasoning, a man bust take heed of words; which besides the signification of what we imagine of their nature, disposition, and interest of the speaker; such as are the names of Vertues, and Vices; For one man calleth Wisdome, what another calleth Feare; and one Cruelty, what another Justice; one Prodigality, what another Magnanimity; one Gravity, what another Stupidity, &c. And therefore such names can never be true grounds of any ratiocination. No more can Metaphors, and Tropes of speech: but these are less dangerous, because they profess their inconstancy; which the other do not.

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CAPVT V — De Ratione et Scientia

CHAPTER V — Of Reason, and Science

Ratio.

[Q]ui ratiocinatur, vel Totum quaerit Additione partium; vel Residuum, Subtractione partis a parte: id quod (si verbis fiat) nihil aliud est, praeter Conceptionem consequentiae Nominis partis ad Nomen totius, vel Nominum totius et partis ad Nomen partis reliquae. Quanquam autem in rebus quibusdam (ut in numeris) aliae sint operationes, praeter Additionem et Subtractionem, ut Multiplicatio et Divisio, in idem tamen recidunt; nam Multiplicatio est aequalium inter se Additio; et Divisio aliud non est, quam ejusdem rei, quoties possumus, Subtractio. Neque Numeris solis operationes illae conveniunt, sed omni rerum generi, quarum una alteri addi vel auferri potest. Sicut enim Arithmetici Addere et Subtrahere solent in Numeris; ita Geometrae facere idem docent in Lineis, Figuris, Angulis, Proportionibus, Temporibus, Gradibus velocitatis, Virium, Potentiae, et caeteris. Idem etiam Logici faciunt in consequentiis verborum, Addentes duo nomina ad faciendam propositionem, et duas propositiones ad faciendum Syllogismum, et plures Syllogismos ad faciendam Demonstrationem; et a summa sive conclusione Syllogismi subtrahunt unam propositionem, ad inveniendam alteram. Etiam Scriptores Politici addunt simul plura pacta, ad inveniendum hominis Officium; et Iuris Consulti addunt simul Leges et Facta ad inveniendum, quid sit in actionibus hominum privatorum Ius et Injuria. Ubicunque locus est Additioni, et Subtractioni, ibi etiam locus est Rationi; et ubi illis locus non est, ibi neque rationi locus est.

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CHAPTER V — Of Reason, and Science

CAPVT V — De Ratione et Scientia

Reason What It Is

When a man Reasoneth, hee does nothing els but conceive a summe totall, from Addition of parcels; or conceive a Remainder, from Substraction of one summe from another: which (if it be done by Words,) is conceiving of the consequence of the names of all the parts, to the name of the whole; or from the names of the whole and one part, to the name of the other part. And though in some things, (as in numbers,) besides Adding and Substracting, men name other operations, as Multiplying and Dividing; yet they are the same; for Multiplication, is but Addition together of things equall; and Division, but Substracting of one thing, as often as we can. These operations are not incident to Numbers onely, but to all manner of things that can be added together, and taken one out of another. For as Arithmeticians teach to adde and substract in Numbers; so the Geometricians teach the same in Lines, Figures (solid and superficiall,) Angles, Proportions, Times, degrees of Swiftnesse, Force, Power, and the like; The Logicians teach the same in Consequences Of Words; adding together Two Names, to make an Affirmation; and Two Affirmations, to make a syllogisme; and Many syllogismes to make a Demonstration; and from the Summe, or Conclusion of a syllogisme, they substract one Proposition, to finde the other. Writers of Politiques, adde together Pactions, to find mens Duties; and Lawyers, Lawes and Facts, to find what is Right and Wrong in the actions of private men. In summe, in what matter soever there is place for Addition and Substraction, there also is place for Reason; and where these have no place, there Reason has nothing at all to do.

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Ex iis quaj dicta sunt Rationem Definire, id est vocis ejus quarenus sumitur pro Facultate animi, signisicationem determinare poslurcus. Ratio enim,hoc sensu, nihil aliud est, praster Cmputationtm sivje Additionem etc. Subtractionem Nominum generalium, quse ad notationem sive signisicationem cogitationum nostrarum recipiuntur. Jsiotationem, inquam, quando computamus soli; signtsicationem, quan*do aliis computationem nostram Demonsramus. scss^ r*- Sicut autem in Arithmetica imperiti scepe Prosestores aliquando falso computant > ita etiam inrationibus aliaru.ri rerum, peritisemi, versa- xttonut versatissimi attentissimique falli poslunt, et falsas inserre Conclttsiones i non quod Ratio non sit ipia femper Recta Ratio, a?que, ut Arithmetica certa est Ars, sed quod nullius unius Ratio, neque vero plurium, faciat certitudinem, magis quam Computatio aliqua recta numerorum recte facla est, ideo quia consensu multorumest approbata. Quoties igitur in. computatione sive Ratiocinatione oritur controversia, illi quibus controversia est, pro recta Ratione, Arbitri alicujus vel Iudicis Rationem constituere debent voluntarie; qua uterque obligandus sit; alioquicontroversiaeorum aut nonomnino-, autarmis dijudicanda est,desectu rectae Rationis a natura const.1tur.a2. Idem contingit in omni geneys certaminis. Quando enim homines arrogantes sapientiores se caeteris omnibus esle credunt, clamantesque pro Iudice rectam Rationem postulant,nihil aliud quzerunt,quam ut res sua ipsorum Ratione judicetur; id quod in Societate humana intolerabile aeque est, ac si quis ludens cartis pro carta dominante uti vellet ea, cujus haberet ipse maximum numerum. Quid enim aliud faciunt, qui suas quasque dominantes passiones pro recta Ratione valere certant, etiam in fuis ipsorum litibus, desectum rectae Rationis ipsa postulatione ostendentes.

Vsus Scopusque Rationis non est unius vel paucarum consequen- **' tiarum, a primis nominum Definitionibus remotarum, inventio. u'Wm Ratio a primis incipit Definitionibus, inde ad pluriumdefinitionum consequentiam aliquam procedit, et inde ad aliam. Nam concluiionis ultimae certitudo nulla est sine certitudine Assirmationum et Negationum a quibus composira et illata est. Sicut enim Pater familias Villici fui Rationes inspiciens, summularum singulorum generum summas in unam totalem colligat, nec au lllae summulae recte consectae ab iis sint, qui Rationem reddituri iunt, examinat, nihilo plus proficit, quam si peritias probitatique villici fui fidens, Rationes omnino non requireret. Eodem modo in Rationibus quarumcunque rerum qui illas admittit authorum aliorum fide, nec a nominibus singulis ipse deducit, ille operam ludit, nil sciens^ sed tantum credens.

Quando aliquis Ratiocinatur.siue usu verborum, quod sieri potest Emr et in nominibuslndividuis (ut quando rem aliquam videntes conjici- ^s"' mus, quid praecessisle, vel secuturum esle verisimile sit,) si id quod verisimile est neque praecessit neque sequitur, id in Ratiocinante appellatur Error. Errori autem obnoxii sunt homines etiam prudentissimi. Sed quando in verbis ratiocinamur Vniversalibus, si incidamus in conclusionem universalem eamque falsam, etsi vulgo.E>'W-appelletur, revera tamen est absmdi,M > id est: oratio insigmsicans. Est ddd 1 enim

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Reason Defined

Out of all which we may define, (that is to say determine,) what that is, which is meant by this word Reason, when wee reckon it amongst the Faculties of the mind. For Reason, in this sense, is nothing but Reckoning (that is, Adding and Substracting) of the Consequences of generall names agreed upon, for the Marking and Signifying of our thoughts; I say Marking them, when we reckon by our selves; and Signifying, when we demonstrate, or approve our reckonings to other men.

Right Reason Where

And as in Arithmetique, unpractised men must, and Professors themselves may often erre, and cast up false; so also in any other subject of Reasoning, the ablest, most attentive, and most practised men, may deceive themselves, and inferre false Conclusions; Not but that Reason it selfe is always Right Reason, as well as Arithmetique is a certain and infallible art: But no one mans Reason, nor the Reason of any one number of men, makes the certaintie; no more than an account is therefore well cast up, because a great many men have unanimously approved it. And therfore, as when there is a controversy in an account, the parties must by their own accord, set up for right Reason, the Reason of some Arbitrator, or Judge, to whose sentence they will both stand, or their controversie must either come to blowes, or be undecided, for want of a right Reason constituted by Nature; so is it also in all debates of what kind soever: And when men that think themselves wiser than all others, clamor and demand right Reason for judge; yet seek no more, but that things should be determined, by no other mens reason but their own, it is as intolerable in the society of men, as it is in play after trump is turned, to use for trump on every occasion, that suite whereof they have most in their hand. For they do nothing els, that will have every of their passions, as it comes to bear sway in them, to be taken for right Reason, and that in their own controversies: bewraying their want of right Reason, by the claym they lay to it.

The Use Of Reason

The Use and End of Reason, is not the finding of the summe, and truth of one, or a few consequences, remote from the first definitions, and settled significations of names; but to begin at these; and proceed from one consequence to another. For there can be no certainty of the last Conclusion, without a certainty of all those Affirmations and Negations, on which it was grounded, and inferred. As when a master of a family, in taking an account, casteth up the summs of all the bills of expence, into one sum; and not regarding how each bill is summed up, by those that give them in account; nor what it is he payes for; he advantages himselfe no more, than if he allowed the account in grosse, trusting to every of the accountants skill and honesty; so also in Reasoning of all other things, he that takes up conclusions on the trust of Authors, and doth not fetch them from the first Items in every Reckoning, (which are the significations of names settled by definitions), loses his labour; and does not know any thing; but onely beleeveth.

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22 T>e Homine. Cap. s.

enim Error deceptio prassumentis tantum de Prasterito vel Futuro, quae etsi vera non erat, non tamen visa est impossibilis. Verum quando Conclusio universalis est, nisi et vera sit, conceptibilis non est. Verba autem quibus nihil concipimus praetersonum, insignisicantia dici solent et absurda; qualia sunt, quadratum est rotundum; subslanti<esunt immatcnales;subditus esl liber, quod si quem ita loquentem sentirem, non illum Erra(sey sed Absurde locutum esle dicerem.

Hominem cseteris animalibus praestare dixi ante, eo quod cum de re quacunque cogitaverit, in ejus rei consequentias inquirere et quomodo ea re uti potest, aptus natus sit; ejusdem praestantiae gradum alium hic addo, quod per consequegtias verborum reperire potest Regulas Generales, quae Iheoremata, etc. Aphorismi vocari solent, id est computare potest non solum innumeris, sed etiam in Rebus aliis omnibus, quarum una alteri Addi, vel Auserri potest.

Sed prwilegium hoc ab alio quodam temperatur. Solius enim Hominis privilegium est absurditas, cui alia creatura nulla est obnoxia. Hominum autem maxime obnoxii sunt illi qui vocari solent Philosophi. Id enim dictum est a Cicerone verislime, nihil tam esle poste absurdum, quin inveniri possit in Libris Philosophorum. Cujus rei Ratio manisesta est. Eorum enim nemo est, qui Ratiocinationes suas adefinitionibus ordiatur, sive Explicationibus nominum, quibus usuri sunt. Methodus enim haec Geometrarum peculiaris est.

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Of Error And Absurdity

When a man reckons without the use of words, which may be done in particular things, (as when upon the sight of any one thing, wee conjecture what was likely to have preceded, or is likely to follow upon it;) if that which he thought likely to follow, followes not; or that which he thought likely to have preceded it, hath not preceded it, this is called ERROR; to which even the most prudent men are subject. But when we Reason in Words of generall signification, and fall upon a generall inference which is false; though it be commonly called Error, it is indeed an ABSURDITY, or senseless Speech. For Error is but a deception, in presuming that somewhat is past, or to come; of which, though it were not past, or not to come; yet there was no impossibility discoverable. But when we make a generall assertion, unlesse it be a true one, the possibility of it is unconceivable. And words whereby we conceive nothing but the sound, are those we call Absurd, insignificant, and Non-sense. And therefore if a man should talk to me of a Round Quadrangle; or Accidents Of Bread In Cheese; or Immaterial Substances; or of A Free Subject; A Free Will; or any Free, but free from being hindred by opposition, I should not say he were in an Errour; but that his words were without meaning; that is to say, Absurd.

I have said before, (in the second chapter,) that a Man did excell all other Animals in this faculty, that when he conceived any thing whatsoever, he was apt to enquire the consequences of it, and what effects he could do with it. And now I adde this other degree of the same excellence, that he can by words reduce the consequences he findes to generall Rules, called Theoremes, or Aphorismes; that is, he can Reason, or reckon, not onely in number; but in all other things, whereof one may be added unto, or substracted from another.

But this priviledge, is allayed by another; and that is, by the priviledge of Absurdity; to which no living creature is subject, but man onely. And of men, those are of all most subject to it, that professe Philosophy. For it is most true that Cicero sayth of them somewhere; that there can be nothing so absurd, but may be found in the books of Philosophers. And the reason is manifest. For there is not one of them that begins his ratiocination from the Definitions, or Explications of the names they are to use; which is a method that hath been used onely in Geometry; whose Conclusions have thereby been made indisputable.

Causes Of Absurditie

The first cause of Absurd conclusions I ascribe to the want of Method; in that they begin not their Ratiocination from Definitions; that is, from settled significations of their words: as if they could cast account, without knowing the value of the numerall words, One, Two, and Three.

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Conclusionum Abstirditas in caeteris scientiis deseclui Methodi imputanda est; propterea quod Ratiocinationes suas non incipiunt a Definitionibus Nominum. Quasi numerare vellent antequam numeralium Nominum valorem intelligerent. Atque haec causa generalis est. Quoniam autem Corpora inrationes proptervariasconsiderationes (sicut in praecedente capite didtum est) inseruntur; multae Absurditates procedunt a desectu distindionis inter considerationes illas •> unde sit ut nomina in propositiones perperam connectantur.

i. Ut primo, cum nomina Cerporum indant Accidentibus, vel nomina Accidentium Corporibus; quemadmodum faciunt qui dicunt, Fidem e([e insusam, vel Jnspiratam; cum nihil neque susde, sit neque spirabile praster corpus; et quemadmodum faciunt illi qui extensionem dicunt esle Corpus, et Shantasma esse Spiritum, Scc.

2. Secundo, quando nomina Accidentium quae sunt in corporibut extra nos, Accidemibm tribuunt corporum nostrorum. Quod faciunt qui dicunt colorem esse in Objetlo; sonum ejse in Aere> etc..

3. Tertio, cum Ccrporum nomina ncmimbm tribuunt vel orationibm; ut qui dicunr esle res universales, vel animalesse oentu,

Quartd,

Quarto, cum nomina Jlccidcntinm imponunt nominibut, et cratio- 4. nibus y ut qui dicunt Definittonem ejse rei naturam, vel mandatum cujusptam ipsttts ejse volmtatem.

Quinto, quando utuntur loco verborum propriorum, metaphoris, s. aliisquetropisorationis. Quanquamenim liceat (exempli causa) cum vulgo dicere, via huc vel tlluc tendit vel ducit; Sroverbtum hoc vel tlsttddtcit, inter ratiocinandum tamen hujusmodi orationes, abiis qui vericati student, admittendae non sunt.

Sexto, quando nominibus temere receptis, nec quicquam signisi- 6. cantibus utuntur, quales sunt Iransubslantiatio, Consubstantiatio, Nunc jians. similesque voces Scholasticorum. Qui scopulos vitare hos potest, haud facile incidet in absurdum, nisi forte in Ratiocinatione longa. Oblivisci enim potest alicujus propositionis quam prasmiserat. Naturaliter enim homines bene et similiter ratiocinantur, li a veris et perspicuis Principiis ordiantur. Vix enim invenies hominem adeo stupidum, quin si in Geometria erraverit, erroremque ejus ipsi ostenderit alius errorem suum illico agnoscet.

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And whereas all bodies enter into account upon divers considerations, (which I have mentioned in the precedent chapter;) these considerations being diversly named, divers absurdities proceed from the confusion, and unfit connexion of their names into assertions. And therefore

The second cause of Absurd assertions, I ascribe to the giving of names of Bodies, to Accidents; or of Accidents, to Bodies; As they do, that say, Faith Is Infused, or Inspired; when nothing can be Powred, or Breathed into any thing, but body; and that, Extension is Body; that Phantasmes are Spirits, &c.

The third I ascribe to the giving of the names of the Accidents of Bodies Without Us, to the Accidents of our Own Bodies; as they do that say, the Colour Is In The Body; The Sound Is In The Ayre, &c.

The fourth, to the giving of the names of Bodies, to Names, or Speeches; as they do that say, that There Be Things Universall; that A Living Creature Is Genus, or A Generall Thing, &c.

The fifth, to the giving of the names of Accidents, to Names and Speeches; as they do that say, The Nature Of A Thing Is In Its Definition; A Mans Command Is His Will; and the like.

The sixth, to the use of Metaphors, Tropes, and other Rhetoricall figures, in stead of words proper. For though it be lawfull to say, (for example) in common speech, The Way Goeth, Or Leadeth Hither, Or Thither, The Proverb Sayes This Or That (whereas wayes cannot go, nor Proverbs speak;) yet in reckoning, and seeking of truth, such speeches are not to be admitted.

The seventh, to names that signifie nothing; but are taken up, and learned by rote from the Schooles, as Hypostatical, Transubstantiate, Consubstantiate, Eternal-now, and the like canting of Schoole-men.

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Apparet hincrationem none/Te, sicut Sensus &Memoria, no- Svaasa. biscum natam j neque sola (ut prudentia) Experientia acquisitam, sed Industria j scilicet apta in primis impositione Nominum j deinde methodo redla procedendo a Nominibus ad Propositiones, et a Propositionibus ad Syllogismos, donec veniatur ad cognitionem Consequentiarum Nominum omniumqua; ad Scientiam pertinent. Sensus et Memoria, saui tantum Cognitio est; Scientia autem Cognitio est Consequentiarum unius Facliiad alterum. Peream autem aliquis ex eo quod nunc facere potest, docetur aliquid aliud simile facere, si velit, alio tempore. Quia quoties videmus estecluum ortum et causas, et quomodo generantur, docemur (quoties in nostra potestate sunt) cauias similes, similes producere esseclius.

Insantes igitur actum Rationis, antequam Sermonis usum aquisierintnonhabent; vocantur autem animalia Rationalia propterpotestatem tantum. Plerique autem homines etsi aliquousque ratiocinari poslunt, ut forte in Numeris; non tamen multum inde adjumenti accipiunt ad vitam communem j in qua seipsos regunt alii melius, alii pejus, prout Experientia, Memona vel appetitu inter se differunt $ maxime autem fortuna bona vel adverla, et unus alterius erronbus gnbernantur. Quod enim ad Sctentiam attinet et actionum suarura Regulas certas, itaabealongeabsunt, utquidsit, pneter suas ipsorum cupiditates vitse Regula non intelligant. Geometriam aliqui pro Arte Magica habuerunt. Quod autem attinet ad Scientias alias, illi

* 4 ®e Hoinine, Cap. 5.

illi qui non didicerunt Principia ejus, nec tantura in illis progre£ sum secerunt, ut viderint quomodo generarae «Scacquisitae fuerint^ ita ad eas se habent ut puen ad Cognitionem generationis,- qui fratres suos et sorores non natos, ikd in horto repertos esse, credunt mulieribus.

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To him that can avoyd these things, it is not easie to fall into any absurdity, unlesse it be by the length of an account; wherein he may perhaps forget what went before. For all men by nature reason alike, and well, when they have good principles. For who is so stupid, as both to mistake in Geometry, and also to persist in it, when another detects his error to him?

Science

By this it appears that Reason is not as Sense, and Memory, borne with us; nor gotten by Experience onely; as Prudence is; but attayned by Industry; first in apt imposing of Names; and secondly by getting a good and orderly Method in proceeding from the Elements, which are Names, to Assertions made by Connexion of one of them to another; and so to syllogismes, which are the Connexions of one Assertion to another, till we come to a knowledge of all the Consequences of names appertaining to the subject in hand; and that is it, men call SCIENCE. And whereas Sense and Memory are but knowledge of Fact, which is a thing past, and irrevocable; Science is the knowledge of Consequences, and dependance of one fact upon another: by which, out of that we can presently do, we know how to do something els when we will, or the like, another time; Because when we see how any thing comes about, upon what causes, and by what manner; when the like causes come into our power, wee see how to make it produce the like effects.

Children therefore are not endued with Reason at all, till they have attained the use of Speech: but are called Reasonable Creatures, for the possibility apparent of having the use of Reason in time to come. And the most part of men, though they have the use of Reasoning a little way, as in numbring to some degree; yet it serves them to little use in common life; in which they govern themselves, some better, some worse, according to their differences of experience, quicknesse of memory, and inclinations to severall ends; but specially according to good or evill fortune, and the errors of one another. For as for Science, or certain rules of their actions, they are so farre from it, that they know not what it is. Geometry they have thought Conjuring: but for other Sciences, they who have not been taught the beginnings, and some progresse in them, that they may see how they be acquired and generated, are in this point like children, that having no thought of generation, are made believe by the women, that their brothers and sisters are not born, but found in the garden.

But yet they that have no Science, are in better, and nobler condition with their naturall Prudence; than men, that by mis-reasoning, or by trusting them that reason wrong, fall upon false and absurd generall rules. For ignorance of causes, and of rules, does not set men so farre out of their way, as relying on false rules, and taking for causes of what they aspire to, those that are not so, but rather causes of the contrary.

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Veruntamen qui sine omni sunt Scientia, sola Prudentia naturali, nobiliore condirione sunt, quam illi qui ratiocinando male, vel male ratiocinantibus credendo, incidunt in Regulas generales falsas et absurdas. Causarum enim et Regularum ignoratio non tantos errores generat, quantos Regulae et Causae falsae.

Animi humanilux estoratio perspicua justis definitionibus ante emuncta, ambiguitatibuique purgata. Ratio zctgreslus; Methodus, ad Scientiam vu est; Scientiae aucem finis, Bonum humanum; Metaphorae autem et verba nihil signisicantia aut -ambigua, sunt iones satui; in quibus qui verlatur, inter absurditatets «Ynumerabiles vagatur quae terminantur tandem in contentione, vel ieditione, vel contemptu. Prudentid Sicut Experientia multa, sit Vrudemia 5 ita Scientia muita, Sapien* '», tia est. Verum ut dirterentia quae inter illas est, manisestius appareat, supponamus Hominem aliquem qui habeat dexteritatem arma sua traelandi naturaliter excellentem; alterum autemqui dexteritatem quidem aequalem, sed habeat praeterea armorum Scientiam acquisitam, qua quo modo et qua parte corporis, in quacunque positione, hostem ossendere vel ab eo ossendi poslit, persecte didicit. Horum duorum facultates ita ad se invicem habent, sicutprudentia et Sapientia; utraque utilis, posteriorautem insallibilis. Ule autem qui considet soli Librorum authoritati, cajcos caecesequitur, similis illi est, qui fidens Lanistae alicujus Regulis falsis, hostem peritum aggressus, vel intersicitur, vel armis exuitur. ****** Scientiaesignasunt aliaar^&insallibilia; alia incerta. Ccrta sunt, quando qui Scire ie dicit, idem alterum docere, et veritatem perspicue demonstrare potest. Incertum, quando in quibusdam tantum rebus, id quod dicit vcrum est, sed in multis aliis non item. Itaque signa Prudentiae Incerta omnia sunt. Nemo enim rerum omnium quas expertus est circurnstantias eventui eslentiales vidisie potest, aut visarum meminilte. Crcterum in omni negotio cujus nulla est Scientia insallibilis, proprio judicio dissijere, Sententiisque Librorum ducendum se pennittere, Imprudentia est. Etiam illorum hominumqui in Conciliis Rerumpublicarum, quid in Politicis, et Historiis, et quant:im prosecerint ostentare amant, pauci tamen, ubi suae ipiorum res dome- domestica» agantur, id faciunt,• cum in sua ipsius re unusquisque satis Prudens est. In publico autem negotio magis proprii ingenii existimationi student quam negotio publico.

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To conclude, The Light of humane minds is Perspicuous Words, but by exact definitions first snuffed, and purged from ambiguity; Reason is the Pace; Encrease of Science, the Way; and the Benefit of man-kind, the End. And on the contrary, Metaphors, and senslesse and ambiguous words, are like Ignes Fatui; and reasoning upon them, is wandering amongst innumerable absurdities; and their end, contention, and sedition, or contempt.

Prudence & Sapience, With Their Difference

As, much Experience, is Prudence; so, is much Science, Sapience. For though wee usually have one name of Wisedome for them both; yet the Latines did always distinguish between Prudentia and Sapientia, ascribing the former to Experience, the later to Science. But to make their difference appeare more cleerly, let us suppose one man endued with an excellent naturall use, and dexterity in handling his armes; and another to have added to that dexterity, an acquired Science, of where he can offend, or be offended by his adversarie, in every possible posture, or guard: The ability of the former, would be to the ability of the later, as Prudence to Sapience; both usefull; but the later infallible. But they that trusting onely to the authority of books, follow the blind blindly, are like him that trusting to the false rules of the master of fence, ventures praesumptuously upon an adversary, that either kills, or disgraces him.

Signes Of Science

The signes of Science, are some, certain and infallible; some, uncertain. Certain, when he that pretendeth the Science of any thing, can teach the same; that is to say, demonstrate the truth thereof perspicuously to another: Uncertain, when onely some particular events answer to his pretence, and upon many occasions prove so as he sayes they must. Signes of prudence are all uncertain; because to observe by experience, and remember all circumstances that may alter the successe, is impossible. But in any businesse, whereof a man has not infallible Science to proceed by; to forsake his own natural judgement, and be guided by generall sentences read in Authors, and subject to many exceptions, is a signe of folly, and generally scorned by the name of Pedantry. And even of those men themselves, that in Councells of the Common-wealth, love to shew their reading of Politiques and History, very few do it in their domestique affaires, where their particular interest is concerned; having Prudence enough for their private affaires: but in publique they study more the reputation of their owne wit, than the successe of anothers businesse.

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CAPVT VI — De Principiis internis Motus Voluntarii, quae vulgo Passiones appellantur

CHAPTER VI — Of the Interior Beginnings of Voluntary Motion, commonly called the Passions

Motus Vitalis et Animalis.

[D]uo sunt Motuum in Animalibus genera ipsis propria. Quorum unus est Vitalis, in generatione inceptus, et sine interruptione per totam vitam continuatus; qualis est Motus Sanguinis, Pulsus, Spirationis, Concoctionis, Nutritionis, Excretionis, qui Imaginationis Auxilio non indigent. Alter dicitur Animalis, et Voluntarius; qualis est incessus, locutio, et artuum Motus, qualem prius animo cogitaveramus. Sensum, Motum esse in Organis, et Partibus internis corporis humani, factum ab Objectis Visis, Auditis, etc. Phantasiam autem esse ejusdem Motus post Sensionem reliquias, dictum ante est in Cap. primo et secundo. Quoniam autem incessus, loquela, et similes Motus Voluntarii, semper dependent ab aliqua praecedente cogitatione, Quo, qua via, et Quid, manifestum est Phantasiam Motuum omnium voluntariorum Principium internum primum esse. Etsi autem sint qui Motum omnino ullum esse negant, ubi res mota invisibilis, aut spatium in quo movetur, propter brevitatem, insensibile est, illud tamen non impedit, quo minus hujusmodi Motus sint. Quantulumcunque enim spatium sit, id quod Movetur per spatium majus, cujus parvum illud spatium pars est, per illud etiam necessario movebitur. Principia haec Motus parva, intra humanum corpus sita, antequam incedendo, loquendo, percutiendo, caeterisque actionibus visibilibus appareant, vocantur Conatus.

Conatus hic, quando sit versus causam suam vocatur Appetitus, vel cenatw, Cupidoi quarum vox prima generalis est; altera facpe restringitur ad signisicandum Appetitum aliquem particularem, ut Famem vel Sitim; quando autem Conatus est recedendi a re aliqua, tunc vocatur ^ppetitus. Aversio. Has duas voces Appetitum Sc Aversonem, graeci signisicant /s™' per c^pjv, et «<po£p}v. Naturaenim hominesad veritatemaliquando ^wy»»ipsa urget, in quam ossendunt saepe illi qui ultra Naturam dodi esse cupiunt. Schols enim in Appetitu Motum nullum omnino esle cenlevirit* e e e sent, sent, &quia Motusaliquis necestaridadmittendusest, Appetitum Motum este dicunt Metaphoricum; id quod est Absurdum, cum (edi verba poslint) Corpora, Motusque Metaphorica elie non potsinr.

Quae Cupiunt homines eadem et Amare dicuntur; Odicque habere ea quae Sugiunt. Itaque Cupere, Sc Amare idem sunt, niii quod in Cupidtne objectum femper abesle intelligitur; in Amore plerumque Sc proprie adesle dicitur. Similiter per Aversionem, absentiam; per Odium praesentiam objecti signisicamus.

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CHAPTER VI — Of the Interior Beginnings of Voluntary Motion, commonly called the Passions

CAPVT VI — De Principiis internis Motus Voluntarii, quae vulgo Passiones appellantur

COMMONLY CALLED THE PASSIONS. AND THE SPEECHES BY WHICH THEY ARE EXPRESSED.

Motion Vitall And Animal

There be in Animals, two sorts of Motions peculiar to them: One called Vitall; begun in generation, and continued without interruption through their whole life; such as are the Course of the Bloud, the Pulse, the Breathing, the Concoctions, Nutrition, Excretion, &c; to which Motions there needs no help of Imagination: The other in Animal Motion, otherwise called Voluntary Motion; as to Go, to Speak, to Move any of our limbes, in such manner as is first fancied in our minds. That Sense, is Motion in the organs and interiour parts of mans body, caused by the action of the things we See, Heare, &c.; And that Fancy is but the Reliques of the same Motion, remaining after Sense, has been already sayd in the first and second Chapters. And because Going, Speaking, and the like Voluntary motions, depend alwayes upon a precedent thought of Whither, Which Way, and What; it is evident, that the Imagination is the first internall beginning of all Voluntary Motion. And although unstudied men, doe not conceive any motion at all to be there, where the thing moved is invisible; or the space it is moved in, is (for the shortnesse of it) insensible; yet that doth not hinder, but that such Motions are. For let a space be never so little, that which is moved over a greater space, whereof that little one is part, must first be moved over that. These small beginnings of Motion, within the body of Man, before they appear in walking, speaking, striking, and other visible actions, are commonly called ENDEAVOUR.

Endeavour; Appetite; Desire; Hunger; Thirst; Aversion

This Endeavour, when it is toward something which causes it, is called APPETITE, or DESIRE; the later, being the generall name; and the other, oftentimes restrayned to signifie the Desire of Food, namely Hunger and Thirst. And when the Endeavour is fromward something, it is generally called AVERSION. These words Appetite, and Aversion we have from the Latines; and they both of them signifie the motions, one of approaching, the other of retiring. So also do the Greek words for the same, which are orme and aphorme. For nature it selfe does often presse upon men those truths, which afterwards, when they look for somewhat beyond Nature, they stumble at. For the Schooles find in meere Appetite to go, or move, no actuall Motion at all: but because some Motion they must acknowledge, they call it Metaphoricall Motion; which is but an absurd speech; for though Words may be called metaphoricall; Bodies, and Motions cannot.

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Appetituum, et Aversionum, aliae nobiscum natae sunt; ut Appetitusedendi, excernendi, &exonerandi; quae Aversiones etiamalio respectu dici poilunt, quia Sugae sunt alicujus mali in corpore pleno et onerato. Appetitus caeteri rerum particularium oriuntur ab experientia esseduum quos in nobis vel aliis hominibus produxerunt. Rerum enim quas non omnino cognoscimus, vel quas non credimus existere, appetitum alium habere praeterquam experiendi impossibile est. Aversionem autem habemus etiam ab iis rebus, non iblum quas cognoyimus nos lcesisle; sed etiam ab iis rebus quas an laesurae iinc necne, nescimus. iovokptu. Quae neque Cupimus neque Odimus, ea dicimur Covtemnere. Co/t^ temptm enim nihil aliud est quam Cordis, actionibus quarundem rerum reiistentis, immobilitas quaedam sive Contumacia, orta ab eo quod Cor abaliis objectis fortioribus occupatum estj vel ab eo quod qualia iint ea quae conteranimus, experti non iimus.

Et quoniam in perpetua mutatione versatur humani corporis con-

(istentia, imposlibile est, ut eaedem res producerent eosciem iemper

Appetitus, et Aversiones; multo minus poterunt omnes homines conientire in Appetitu unius et ejusdem Objecti.

Bontm. Quicquid autem Appetitus in homine quocunque Objedhim est, jad*n. eidem illud est quod ab ipso appellatur Bomm. Similiter id quod

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That which men Desire, they are also sayd to LOVE; and to HATE those things, for which they have Aversion. So that Desire, and Love, are the same thing; save that by Desire, we alwayes signifie the Absence of the object; by Love, most commonly the Presence of the same. So also by Aversion, we signifie the Absence; and by Hate, the Presence of the Object.

Of Appetites, and Aversions, some are born with men; as Appetite of food, Appetite of excretion, and exoneration, (which may also and more properly be called Aversions, from somewhat they feele in their Bodies;) and some other Appetites, not many. The rest, which are Appetites of particular things, proceed from Experience, and triall of their effects upon themselves, or other men. For of things wee know not at all, or believe not to be, we can have no further Desire, than to tast and try. But Aversion wee have for things, not onely which we know have hurt us; but also that we do not know whether they will hurt us, or not.

Contempt

Those things which we neither Desire, nor Hate, we are said to Contemne: CONTEMPT being nothing els but an immobility, or contumacy of the Heart, in resisting the action of certain things; and proceeding from that the Heart is already moved otherwise, by either more potent objects; or from want of experience of them.

And because the constitution of a mans Body, is in continuall mutation; it is impossible that all the same things should alwayes cause in him the same Appetites, and aversions: much lesse can all men consent, in the Desire of almost any one and the same Object.

Good Evill

But whatsoever is the object of any mans Appetite or Desire; that is it, which he for his part calleth Good: And the object of his Hate, and Aversion, evill; And of his contempt, Vile, and Inconsiderable. For these words of Good, evill, and Contemptible, are ever used with relation to the person that useth them: There being nothing simply and absolutely so; nor any common Rule of Good and evill, to be taken from the nature of the objects themselves; but from the Person of the man (where there is no Common-wealth;) or, (in a Common-wealth,) From the Person that representeth it; or from an Arbitrator or Judge, whom men disagreeing shall by consent set up, and make his sentence the Rule thereof.

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Aversionis in ipso et Odii causa est, ab ipso nominatur Majum; atque id Vtle appellat, quod ipse contemnit. Voces enim Bonum, Malum,

Vile-> intelliguntur femper cum relatione ad personam quae illis utitur; cum nihil sit simpliciter ita; neque ulla Boni, Malt, et Vilis, commu- nis regula, ab ipsorum objectorum naturis derivata, sed a natura (ubi

Civitas non est) personse loquentis, vel (si est) personae Civitatem re- praesentantis; vel ab Arbitro vel Iudice constituto.

txtchruw. Tukhrum et Turpe prope quidem idem signisicant, quod Bomm &

<Mtse' Malum, sed non adaequate. Pulchrum enim id signisicat quod signis apparentibus Bonum promitm, sicut Sctttrpe id quod Malum promit- tit. Utriusque autcm sunt diversae Species, ut Vormosum, Honestum, Decorum, lucundum, sunt species Sulchri; Desorme, Inhonestum, Moustum, species lurpis. Quae orania vocabula nihil aliud signisicant praeter promissionem quandam vel Boni, vel Mali. Itaque Boni tres siint species, altera in promissione quae Pulchritudo, Altera in re, et diciturbonitas, Tertia in Sine, quae est Iucunditas. Praeterea Bonum quod in Sine Iucundum dicitur, in Medio vocatur Vtile. Similiter Malum ut promiilum, Turpe; ut in Sine Molestum appellatur.

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Pulchrum Turpe; Delightfull Profitable; Unpleasant Unprofitable

The Latine Tongue has two words, whose significations approach to those of Good and Evill; but are not precisely the same; And those are Pulchrum and Turpe. Whereof the former signifies that, which by some apparent signes promiseth Good; and the later, that, which promiseth evill. But in our Tongue we have not so generall names to expresse them by. But for Pulchrum, we say in some things, Fayre; in other Beautifull, or Handsome, or Gallant, or Honourable, or Comely, or Amiable; and for Turpe, Foule, Deformed, Ugly, Base, Nauseous, and the like, as the subject shall require; All which words, in their proper places signifie nothing els, but the Mine, or Countenance, that promiseth Good and evill. So that of Good there be three kinds; Good in the Promise, that is Pulchrum; Good in Effect, as the end desired, which is called Jucundum, Delightfull; and Good as the Means, which is called Utile, Profitable; and as many of evill: For evill, in Promise, is that they call Turpe; evill in Effect, and End, is Molestum, Unpleasant, Troublesome; and evill in the Means, Inutile, Unprofitable, Hurtfull.

Delight Displeasure

As, in Sense, that which is really within us, is (As I have sayd before) onely Motion, caused by the action of externall objects, but in apparence; to the Sight, Light and Colour; to the Eare, Sound; to the Nostrill, Odour, &c: so, when the action of the same object is continued from the Eyes, Eares, and other organs to the Heart; the real effect there is nothing but Motion, or Endeavour; which consisteth in Appetite, or Aversion, to, or from the object moving. But the apparence, or sense of that motion, is that wee either call DELIGHT, or TROUBLE OF MIND.

Pleasure Offence

This Motion, which is called Appetite, and for the apparence of it Delight, and Pleasure, seemeth to be, a corroboration of Vitall motion, and a help thereunto; and therefore such things as caused Delight, were not improperly called Jucunda, (A Juvando,) from helping or fortifying; and the contrary, Molesta, Offensive, from hindering, and troubling the motion vitall.

Pleasure therefore, (or Delight,) is the apparence, or sense of Good; and Molestation or Displeasure, the apparence, or sense of evill. And consequently all Appetite, Desire, and Love, is accompanied with some Delight more or lesse; and all Hatred, and Aversion, with more or lesse Displeasure and Offence.

Pleasures Of Sense; Pleasures Of The Mind; Joy Paine Griefe

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Ut in Sensione, solus (intra corpus sentiens) Motus est, ortus ab actione Objectorum, qui tamen ad Visum, Lux et color; ad Auditum, Sonus; idosatlumy Odor, etc.. ita objeclri actio continuata adoculos, Aures, aliaque Sensuum organa nihil aliud est praeter Motum, vel Conatum, consistentem in Appetitu vel Suga objecti. Apparitio tamen illius Motus, illa est quae vocatur aut vosuptas, aut molestia ammi.

Quoniam autem Motus hic (propter voluptatem) videtur este Motus Vitalis adjutor; ea qux Motum hunc efficiunt vocari solent, ncc improprie (nimirum a juvando) jucunda; et eorum contraria Mot lesta.

Jucundum ergo, est apparens Bonum; et Molestum apparens Malum. Itaque Appetitus omnis, amorque conjundtus est cum voluptate aliqua; et Odium et Suga, com Molestia aliqua.

Voluptatum aliae ab Objecti praesentis Sensione oriuntur, quae vo- Vttuputm <:ari poslunt voluptates Sensuases; quae vox, lantequam Iege condem- ssiltpunentur, nihil culpabile consignisicat. Hujus generis s iint Onera- s« ~*vmt. tiones et Exonerationes corporis; quicquid item ad Stsum, Auditum, Olsattum, Guslum, vet Tatlum jucundum est; aliae ab Expectatione oriuntur, id est a Prasvisione Sinium, vel Consequentiarum rerum, sive illa ad Sensum jucunda, sive injucunda sint. Atque animi voluptates hae sunt illis, qui consequentias illas praevident; vocanturque uno nomine Gaudium; similiter Molestiarum aliae in Sensu G^»*m, sunt, vocanturque Dolores corporis; aliae in Expectatione, et appellantur Dolores animi.

Passiones autem istas simplices Appetitus, Cupido, Amor, Aversto, Odtum, Gaudium, et Dolor a diversis considerationibus quandoquevariantur etiam nominibus. Vtprimo, prout videntur aliae aliis succeslurae. Secundo, prout objectum appetimus, aut sugimus. Tertio, prout multae simul considerantur. Postremo, pro modo successionis unius ad alteram. Appetitus enim si conjunctus sit cum opiaione obrinendi, Spes dicitur. spa.

eee 2 Idem

2 8 T>e Homine. Cap. 6,

Despetatit. Idem sine opinione obtinendi, Desperatio. Metui. j4versto cum opinione damni iecuturi, Metm.

Sonitud». Eadem cum Spe damni per resistentiam superandi, Fertitudo. ir-u Subita Fortitudo, est Jra.

Stdueu. gpes jn propria virtute, si constans sit, Fiducia -, desperatio comi* ^ntmtuit- Duata jsnimi Abiestio.

jettia. J..

indign*tio. Ira ex lasiione altenus mjusta, Indtgnatio.

chantm. ^lii bonum Cupere, Benevoltntia vel Ckaritas.

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Of Pleasures, or Delights, some arise from the sense of an object Present; And those may be called Pleasures Of Sense, (The word Sensuall, as it is used by those onely that condemn them, having no place till there be Lawes.) Of this kind are all Onerations and Exonerations of the body; as also all that is pleasant, in the Sight, Hearing, Smell, Tast, Or Touch; Others arise from the Expectation, that proceeds from foresight of the End, or Consequence of things; whether those things in the Sense Please or Displease: And these are Pleasures Of The Mind of him that draweth those consequences; and are generally called JOY. In the like manner, Displeasures, are some in the Sense, and called PAYNE; others, in the Expectation of consequences, and are called GRIEFE.

These simple Passions called Appetite, Desire, Love, Aversion, Hate, Joy, and griefe, have their names for divers considerations diversified. As first, when they one succeed another, they are diversly called from the opinion men have of the likelihood of attaining what they desire. Secondly, from the object loved or hated. Thirdly, from the consideration of many of them together. Fourthly, from the Alteration or succession it selfe.

Hope-- For Appetite with an opinion of attaining, is called HOPE.

Despaire-- The same, without such opinion, DESPAIRE.

Feare-- Aversion, with opinion of Hurt from the object, FEARE.

Courage-- The same, with hope of avoyding that Hurt by resistance, COURAGE.

Anger-- Sudden Courage, ANGER.

Confidence-- Constant Hope, CONFIDENCE of our selves.

Diffidence-- Constant Despayre, DIFFIDENCE of our selves.

Indignation-- Anger for great hurt done to another, when we conceive the same to be done by Injury, INDIGNATION.

Benevolence-- Desire of good to another, BENEVOLENCE, GOOD WILL, CHARITY. If to man generally, GOOD NATURE.

Covetousnesse-- Desire of Riches, COVETOUSNESSE: a name used alwayes in signification of blame; because men contending for them, are displeased with one anothers attaining them; though the desire in it selfe, be to be blamed, or allowed, according to the means by which those Riches are sought.

Ambition-- Desire of Office, or precedence, AMBITION: a name used also in the worse sense, for the reason before mentioned.

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^ivaritis. Cupido divitiarum, Avaritia. Quaevox, quiadedivitiiscertare hominesintersesolent, accipitursempersere inmalolensu,etsi Cupi- do ipsa,aut culpanda aut probanda sit,proutmediasunt quibus qua?^Arnbit». juntur Divitiae, bona vel mala. Cupido Dignitatum publicarum,vtsw bitio. Vox haecquoque propter contentionem hominum, in deterius saepislime accipitur.

Cupido rerum parum ad institutum nostrum conducentium j item Pusiiiawmi- j^etus rerum institutum nostrum parum impedientium, Sttsi/lani-

Wltm.

Adjumentorum, et Impedimentorum Exiguorum Contemptus, 2>Uv>™- Jwapnantmitas.

virtw, bei- 2vlagnanimitas in periculo mortis violentae, aut vulnerum, Virtm Uc«- beuica.

Liberaeitm. Magnanimitas in divitiarum usu, Ltberalita*. Tenaatoj. Pusillanimitas in usu earundem, Tenacitas.

Cupido laedendi aliquem, eosine, ut factum aliquod suum conrmd,aa. demnet t yindttia.

Cknesiut. Cupido sciendi quid etc. quomodo, Cttriositas y quse Paslio soli inest Homini. Distinguitur ergo a caeteris animalibiis Hcrno, non solum Ratione, sed etiam Paslione hac, quam voco Currositatem. Caetera enim animalia, in quibus Appetitus cibi, aliaeque vo'uptates Sensuales praedominantur, causarum cognoscendarum cura carent, quae Animi concupiscentia quaednm est, conjun£ta cum voluptate perpetua, et insatigabili, generationis scientiarum, vehementiam voluptatum sensualium brevem longe superans.

Metus Potentiarum invisibilium, sive Sic"tae illae sint, siveab Histo^dsc». riis acceptae sintpublice, Religio estj si publice acceptae non sint, Su^rsn:,. superst:tw. Quando autem Potentiae ilke revera tales iunt, quales ac-

Verttrtsgu. cepimus; s/gya saligio.

Ttrror Tam- Metus sine conceptione periculi unde et quale sit, Terror Saricm; ita vocatus a Pane, quem talium metuum authorem faciunt Fabulae. Revera tamen, qui primus metuit, metuendi causam vidit aliquam.; caueri caeteri autcm illius primi exemplosugiunt, credentes causam sugiendi sugientibus caneris satis esle cognitam. Nam paslio haec, nisi m coasta multitudine nunquam accidit.

Gaudium a cognitione nova, Admiratio > et homini propria est # ^jminan. quia excitat Appetitum sciendi causam.

Gaudium quod in homine oritur ab Imaginatione Potentije aut. Virtutis propriae, animi exultatio quasdam est, quam vocant Gloriam: quae sisundetur in experientia actionum suarum,eadem est cum Fiducia. Sin fundata sit in adulatione hominum 5 vel a seipso fida propter voluptatem quae magnas actiones solet consequi, Gloria inaw qhri* n* vel vana dicitur. Fidncia enim gignic Aggrestum; id quod inanis Glo- ™' ria producere non potest.

Dolor natus a propriae impotentiaeopinione, Demissio animi di- Demits» citur.

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Pusillanimity-- Desire of things that conduce but a little to our ends; And fear of things that are but of little hindrance, PUSILLANIMITY.

Magnanimity-- Contempt of little helps, and hindrances, MAGNANIMITY.

Valour-- Magnanimity, in danger of Death, or Wounds, VALOUR, FORTITUDE.

Liberality-- Magnanimity in the use of Riches, LIBERALITY

Miserablenesse-- Pusillanimity, in the same WRETCHEDNESSE, MISERABLENESSE; or PARSIMONY; as it is liked or disliked.

Kindnesse-- Love of Persons for society, KINDNESSE.

Naturall Lust-- Love of Persons for Pleasing the sense onely, NATURAL LUST.

Luxury-- Love of the same, acquired from Rumination, that is Imagination of Pleasure past, LUXURY.

The Passion Of Love; Jealousie-- Love of one singularly, with desire to be singularly beloved, THE PASSION OF LOVE. The same, with fear that the love is not mutuall, JEALOUSIE.

Revengefulnesse-- Desire, by doing hurt to another, to make him condemn some fact of his own, REVENGEFULNESSE.

Curiosity-- Desire, to know why, and how, CURIOSITY; such as is in no living creature but Man; so that Man is distinguished, not onely by his Reason; but also by this singular Passion from other Animals; in whom the appetite of food, and other pleasures of Sense, by praedominance, take away the care of knowing causes; which is a Lust of the mind, that by a perseverance of delight in the continuall and indefatigable generation of Knowledge, exceedeth the short vehemence of any carnall Pleasure.

Religion Superstition; True Religion-- Feare of power invisible, feigned by the mind, or imagined from tales publiquely allowed, RELIGION; not allowed, superstition. And when the power imagined is truly such as we imagine, TRUE RELIGION.

Panique Terrour-- Feare, without the apprehension of why, or what, PANIQUE TERROR; called so from the fables that make Pan the author of them; whereas in truth there is always in him that so feareth, first, some apprehension of the cause, though the rest run away by example; every one supposing his fellow to know why. And therefore this Passion happens to none but in a throng, or multitude of people.

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Inanis G!oria, quae consistit in siclra suppositione virtutum, quas nobisicimusnon inelte, propriasere estluvenum, aliturque a rerum magnarum Historiis, vel a narrationibus fidis j corrigitur autem magna ex parte ^Etate et Negotiis.

Gloriatio siibita Paslio illa est, quae producit Risum; habet autem ^yw pro causa, vel subitam aliquam aclionem propriam, in qua, qui eam fecit, sibi placet, vel conceptum Turpitudinis vel facti alieni indecori,comparatione cujus subito sibimet ipsi commendatur. Contingit autem hoc illis maxime, qui cum virtutum paucislimarum conscii sibi sint, bonamde seipsis opinionem conservare non postunt, nisi insirmitates aliorura hominum observando. Itaque multus Risiissignum est Pusillanimitatis. Animi enim magni opus proprium est auxiiiari, et a contemptu alios liberarej seipsos autem cum maximis hominibus solis comparare.

Contra, Vemissio animistibita passio est, quae producit Sletttm; cujus Stttm causa sunt accidentia illa, quae magnam spem aliquam, vel potentias suse statumen aliquod subito destruit.

Sletm autem subjecti sunt ilti qui auxiliis externis maxime indigent, quales sunt sceminae et pueri. Alii itaque jacluram deslent amicorum j alii ingratitudinem; alii etiam slent quando cum illis conciliantur, propterea quod inde oritur vindiclae speratas obstruclio subita. Semper autem tum Risus, tum Sietus motus sunt subiti; et consuetudine minuuntur. Nemo enim aut veteres jocos rider,aut calamitates deslet veteres.

Dolor ille qui oritur ab eo, quod indecorum aliquod nostrum ad- T»icr. mistum putamus, Iwerdicitur, ostenditurquepererubescentjam.

eee 3 Passio

3o De Homine. Cap. 6,

Passio hasc in Adolescentibus laudatur, utsignum cupientis nihil facere, nisi quod sit laudabile. In senibus non laudatur, propterea quod minus Venia digni sunt senes.

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Admiration-- Joy, from apprehension of novelty, ADMIRATION; proper to man, because it excites the appetite of knowing the cause.

Glory Vaine-glory-- Joy, arising from imagination of a man’s own power and ability, is that exultation of the mind which is called GLORYING: which, if grounded upon the experience of his own former actions, is the same with Confidence: but if grounded on the flattery of others, or onely supposed by himselfe, for delight in the consequences of it, is called VAINE-GLORY: which name is properly given; because a well-grounded Confidence begetteth attempt; whereas the supposing of power does not, and is therefore rightly called Vaine.

Dejection-- Griefe, from opinion of want of power, is called dejection of mind.

The Vaine-glory which consisteth in the feigning or supposing of abilities in ourselves, which we know are not, is most incident to young men, and nourished by the Histories or Fictions of Gallant Persons; and is corrected often times by Age, and Employment.

Sudden Glory Laughter-- Sudden glory, is the passion which maketh those Grimaces called LAUGHTER; and is caused either by some sudden act of their own, that pleaseth them; or by the apprehension of some deformed thing in another, by comparison whereof they suddenly applaud themselves. And it is incident most to them, that are conscious of the fewest abilities in themselves; who are forced to keep themselves in their own favour, by observing the imperfections of other men. And therefore much Laughter at the defects of others is a signe of Pusillanimity. For of great minds, one of the proper workes is, to help and free others from scorn; and compare themselves onely with the most able.

Sudden Dejection Weeping-- On the contrary, Sudden Dejection is the passion that causeth WEEPING; and is caused by such accidents, as suddenly take away some vehement hope, or some prop of their power: and they are most subject to it, that rely principally on helps externall, such as are Women, and Children. Therefore, some Weep for the loss of Friends; Others for their unkindnesse; others for the sudden stop made to their thoughts of revenge, by Reconciliation. But in all cases, both Laughter and Weeping, are sudden motions; Custome taking them both away. For no man Laughs at old jests; or Weeps for an old calamity.

Shame Blushing-- Griefe, for the discovery of some defect of ability is SHAME, or the passion that discovereth itself in BLUSHING; and consisteth in the apprehension of some thing dishonourable; and in young men, is a signe of the love of good reputation; and commendable: in old men it is a signe of the same; but because it comes too late, not commendable.

Impudence-- The Contempt of good reputation is called IMPUDENCE.

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impudentia. Contemptus bonae existimationis appellatur Jmpudentia.

Miserics Dolor ob calamitatem alienam, dicitur Mi/ericordta, oriturque a consideratione, quod sibimet ipsi contingere potest calamitas similisj Et ob eam rem vocari etiam solet Compajjio. Calamitas itaque aliena, si a magno oriatur ipsius cui contingit scelere, tanto minus producit Mi/ericordiam. Item ineadem calamitate minus Mi/encordes sunt llli, qui calamitatisimili minimeobnoxios seeslejudicant.

Criueittm. Alienae calamitatis contemptus, nominatur Crudelitat, proceditque a propriae securitatis opinione. Nam ut aliquis sibi placeat in malis alienis, sine alio sine, videtur mihi impossibile.

Dolor ob succeslum Competitoris alicujus circa honorem, aut divitias, aut aliud bonum, si conjunclus sit cum conatu diligentiam pro- ts£rmmto. priam augendi, i/Emnlatio dicitur; fin conjungatur cum conatu tnvidi*. Competitorem fallendi vel impediendi, Invidia est.

Quando in animo humano Appetitus, Aversio, Spes, Metus, circa rem eandem oriuntur alternatim, veniuntque in animum Faciendi, Omittendique bonae malaeque consequentiae successive; adeo ut interdura appetamus, interdum sugiamus; interdum speremus, interdum metuamus; tunc totum illud passionum aggregatum, eatenus

Beiibera. durans dum res effecta sit, vel rejeda, vocatur Deltberatio.

Itaque de rebus praeteritis Deliberatio nulla est, quia praeteritum immutabile est; neque rerum quas scimus vel putamusesleimpossibijes, quia talium Dehberatio vana est. Impossibilium autem quae possibilia esle arbitramur, Deiiberatio datur, ut quam vanam esle nescimus. Deliberatio autem ideo dicitur, quia libertatis quam habemus faciendi, omittendive finis est. Alterna haec successio Appetitus, Aversionis, etc.. communis est homini cum animalibus caeteris. Nam Deliberant etiam bestiae.

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Pitty-- Griefe, for the calamity of another is PITTY; and ariseth from the imagination that the like calamity may befall himselfe; and therefore is called also COMPASSION, and in the phrase of this present time a FELLOW-FEELING: and therefore for Calamity arriving from great wickedness, the best men have the least Pitty; and for the same Calamity, those have least Pitty, that think themselves least obnoxious to the same.

Cruelty-- Contempt, or little sense of the calamity of others, is that which men call CRUELTY; proceeding from Security of their own fortune. For, that any man should take pleasure in other mens' great harmes, without other end of his own, I do not conceive it possible.

Emulation Envy-- Griefe, for the success of a Competitor in wealth, honour, or other good, if it be joyned with Endeavour to enforce our own abilities to equal or exceed him, is called EMULATION: but joyned with Endeavour to supplant or hinder a Competitor, ENVIE.

Deliberation-- When in the mind of man, Appetites and Aversions, Hopes and Feares, concerning one and the same thing, arise alternately; and divers good and evill consequences of the doing, or omitting the thing propounded, come successively into our thoughts; so that sometimes we have an Appetite to it, sometimes an Aversion from it; sometimes Hope to be able to do it; sometimes Despaire, or Feare to attempt it; the whole sum of Desires, Aversions, Hopes and Feares, continued till the thing be either done, or thought impossible, is that we call DELIBERATION.

Therefore of things past, there is no Deliberation; because manifestly impossible to be changed: nor of things known to be impossible, or thought so; because men know, or think such Deliberation vaine. But of things impossible, which we think possible, we may Deliberate; not knowing it is in vain. And it is called DELIBERATION; because it is a putting an end to the Liberty we had of doing, or omitting, according to our own Appetite, or Aversion.

This alternate succession of Appetites, Aversions, Hopes and Feares is no less in other living Creatures than in Man; and therefore Beasts also Deliberate.

Every Deliberation is then sayd to End when that whereof they Deliberate, is either done, or thought impossible; because till then wee retain the liberty of doing, or omitting, according to our Appetite, or Aversion.

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Deliberatio siniri tun'c dicitur,quando id, de quo Deltberatum est,factum est vel redditum impossibile; propterea quod eatenus libertatem faciendi vel non faciendi pro arbitrio retinemus.

In Deliberatione, Appetitus ultimus vel Aversio, adioni de qua De-

Vtiuntm. Uberatum est immediate adhaerens, est Voluntas; Adus, inquam, non potentia Volendi. Vnde sequitur bestias, quia Dehbcraxt, etiam Voluntate praeditas esle. Definitio Vduntatis Scholastica, nempe Voluntatem Appetitum ejsc rationalem Iegitima non est. Nam si eslet, nulla omnino esle poslet aclio Voluntaria contra Rationem. Adio enim Voluntaria est ea, quae a Voluntate proficiscitur, nec ulla alia. Quod si pro Appetitu Rationali dicamus Appetitum, qui oritur a Deliberatione antecedente, tunc Definitio eadem est quam dixi, nempe ultimus in Deliberando Appetitus. Quanquam autem vulgo saepitsime dicamus habuisle aliquem Voluntatem faciendi id,quod facere postea noluit; id tamen non Voluntas proprie est, sed Inclinatio, quae actionem non facit, ut sit Voluntaria, quae dependere debet non ab omni, sed ab ultimo Appetitu. Intervenientes enim Appetitus sive Inclinationes non sunt Voluntates; si enim essent, omnes acliones simul eslent et Voluntarias et Involuntariae.

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The Will

In Deliberation, the last Appetite, or Aversion, immediately adhaering to the action, or to the omission thereof, is that wee call the WILL; the Act, (not the faculty,) of Willing. And Beasts that have Deliberation must necessarily also have Will. The Definition of the Will, given commonly by the Schooles, that it is a Rationall Appetite, is not good. For if it were, then could there be no Voluntary Act against Reason. For a Voluntary Act is that, which proceedeth from the Will, and no other. But if in stead of a Rationall Appetite, we shall say an Appetite resulting from a precedent Deliberation, then the Definition is the same that I have given here. Will, therefore, Is The Last Appetite In Deliberating. And though we say in common Discourse, a man had a Will once to do a thing, that neverthelesse he forbore to do; yet that is properly but an Inclination, which makes no Action Voluntary; because the action depends not of it, but of the last Inclination, or Appetite. For if the intervenient Appetites make any action Voluntary, then by the same reason all intervenient Aversions should make the same action Involuntary; and so one and the same action should be both Voluntary & Involuntary.

By this it is manifest, that not onely actions that have their beginning from Covetousness, Ambition, Lust, or other Appetites to the thing propounded; but also those that have their beginning from Aversion, or Feare of those consequences that follow the omission, are Voluntary Actions.

Formes Of Speech, In Passion

The formes of Speech by which the Passions are expressed, are partly the same, and partly different from those, by which we express our Thoughts. And first generally all Passions may be expressed Indicatively; as, I Love, I Feare, I Joy, I Deliberate, I Will, I Command: but some of them have particular expressions by themselves, which nevertheless are not affirmations, unless it be when they serve to make other inferences, besides that of the Passion they proceed from. Deliberation is expressed Subjunctively; which is a speech proper to signifie suppositions, with their consequences; as, If This Be Done, Then This Will Follow; and differs not from the language of Reasoning, save that Reasoning is in generall words, but Deliberation for the most part is of Particulars. The language of Desire, and Aversion, is Imperative; as, Do This, Forbear That; which when the party is obliged to do, or forbear, is Command; otherwise Prayer; or els Counsell. The language of Vaine-Glory, of Indignation, Pitty and Revengefulness, Optative: but of the Desire to know, there is a peculiar expression called Interrogative; as, What Is It, When Shall It, How Is It Done, and Why So? Other language of the Passions I find none: for Cursing, Swearing, Reviling, and the like, do not signifie as Speech; but as the actions of a tongue accustomed.

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Manisestum hinc est Voluntarias actioncs esse non modo eas, quae incipiunt ab Appetitu alicujus rei, sed etiam illas, quae proficiscuntur ab Aversione, vel a Metu eventuum qui consequuntur Facti alicujus omislionem.

Formulae Sermonis quibus Pasliones declarantur, partim eaedem Formuui*siint quibus alias signisicamus Cogitationes. Et primo generatim Jjjjjjslj^ Pasliones omnes proserri poslunt lndtcative; ut Amo, Metuo, Gaudeo, Delibero, Volo, etc.. Sunt autem aliquae quae suas habent prolationes sibi proprias; quae tamen Assirmationes non sunt, nisi quando inserviunt Illationibus. Veltbtratio prosertur Subjuntlive, qui modus proprius est Supposttonum a quibus ducimus Consequentias; ut, si hoc siat, tmc (eqnettiy illud; nec differt a Sermone ratiocinandi, nisi quod in ratiocinatione nominibus utimur Vniversalibtu; in Deliberatione plerumque Singulaytbttt. Sermo Cupiditatis et Aversionis est Jmptrattviu; ut, hocsac, ab hoc absiine; quae verba ad illum qui ad saaendum vel absinendum obligatur, mandatum dicitur; alioqui Pre~ catio; vel Constlium. Sermo vanx Glorite, item Indignationis, et Misericordiae, aliarumque multarum cupiditatumsermoesto/ts<ts/w*. Cupiditatis autem cognoscendt sermo peculiaris est Interrogativus; ut Qjiid esi; Quaxdo ertt; Quemodo sattum est; Quid ita. Paslionum sermones alios non reperio. Iurationes enim maledictionesque etc. convitia Passiones non signisicant ut Verba, sed ut Adiones male moratae linguae.

Formulae hae signisicationes quidem sunt Passionum Voluntariae; signa autem certa non sunt; idque, quia Voluntaria sunt. Paslionis Praesentis certislima signa sunt illa, quae a Vultu, Gestu, Actionibus, Sinibus, Negotiisque hominum capiuntur.

Quoniam in Deliberatione, Appetitus et Aversiones a prospectu Jm et Bonorum et Malorum, consequentium aclionem dequa delibera-^^"^* mus, altern» sunt, et catenam longam faciunt consequentiamm, cu- jus finem sepenumero non videmus; si in catena illa visa sint consequentia plura Bona quam Mala, totum aggregatum Bonttm est apparens -, si plura Mala quam Bona, tunc totum Malum apparens est. ls igitur qui Ratiocinatione vel Experientia longissimum sibi consequentiarum prospectum acquisivit, is optime deliberat, et optimus aliis Consiliarius esle potest*

Perpetuus in rebus Cupitis bonus sticceslus, illud ipsum est quod vocari solet Selicitas; Selicitatem intelligo praesentis vitae. Nulla enim est animi dum vivimus perpetua Tranquillitas; quia vita ipsa Mottis est, neque sine cupiditate, metuque, aliisque passionibus vivere scomo potest, magis quam sine sensu.

Formula sermonis, qua quis opinionem suam signisicat de alicujus rei Bomtatey Latts est. Formula qua signisicat potentiam etc. magnitudittem rei, est Magnisicatio. Forma qua signisicat opinionem quam habet de alicujus Selicitate, a Graecis vocatur y.A%ot.^j.ay.U. Atque haec de Sassiombus, quatenus ad Institutum praesens, dicta sussiciant.

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These forms of Speech, I say, are expressions, or voluntary significations of our Passions: but certain signes they be not; because they may be used arbitrarily, whether they that use them, have such Passions or not. The best signes of Passions present, are either in the countenance, motions of the body, actions, and ends, or aims, which we otherwise know the man to have.

Good And Evill Apparent

And because in Deliberation the Appetites and Aversions are raised by foresight of the good and evill consequences, and sequels of the action whereof we Deliberate; the good or evill effect thereof dependeth on the foresight of a long chain of consequences, of which very seldome any man is able to see to the end. But for so far as a man seeth, if the Good in those consequences be greater than the evill, the whole chain is that which Writers call Apparent or Seeming Good. And contrarily, when the evill exceedeth the good, the whole is Apparent or Seeming Evill: so that he who hath by Experience, or Reason, the greatest and surest prospect of Consequences, Deliberates best himself; and is able, when he will, to give the best counsel unto others.

Felicity

Continual Successe in obtaining those things which a man from time to time desireth, that is to say, continual prospering, is that men call FELICITY; I mean the Felicity of this life. For there is no such thing as perpetual Tranquillity of mind, while we live here; because Life itself is but Motion, and can never be without Desire, nor without Feare, no more than without Sense. What kind of Felicity God hath ordained to them that devoutly honour him, a man shall no sooner know, than enjoy; being joys, that now are as incomprehensible, as the word of School-men, Beatifical Vision, is unintelligible.

Praise Magnification

The form of speech whereby men signifie their opinion of the Goodnesse of anything is PRAISE. That whereby they signifie the power and greatness of anything is MAGNIFYING. And that whereby they signifie the opinion they have of a man’s felicity is by the Greeks called Makarismos, for which we have no name in our tongue. And thus much is sufficient for the present purpose to have been said of the passions.

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CAPVT VII — De Discursuum Determinationibus

CHAPTER VII — Of the Ends or Resolutions of Discourse

Iudicium.

Omnis Discursus, si a Cupiditate Cognitionis gubernetur, vel in Adeptione terminatur, vel in Rejectione. Quod si Cogitationum series pro tempore tantum interrumpatur, non ideo Determinata dicenda est. Sduiitath. Si discursus in solis siat Cogitationibus, tunc consistit in cogitationibus Quodsiet,ve\ Quodnonsiet\vt\ Quodsuit,ve\ Quod non fuit,ahernis. Itaque ubicunque Discursus definit,relinquitur Praesumtio quod erit, vel non erit; vdsttit, vel non fuit. Quae Determinatio appellatur Optnio. Atqueidquodindeliberandodebonoctmalo,Appetitus est alternus,in inquisitione veritatis facti Praeteriti vel Futuri, estalterna Opinio. Sicut autem in Deliberatione, Appetitus ultimus est Voluntai; ita in quaestione Praeteriti vel Futuri, Opmio ultima est ludicium, sive \ Sententta finalis. Et sicut tota series Appetituum alternorum in quae- stione Boni vel Mali Deltberatio dicitur; ita in quasstione Veri vel Falsi series tota Opinionum alternarum dicitur Dubitatio.

Discursus nullus in Cognitione persecta Praeteriti vel Futuri terminare potest. Nam Cognitio Facti originaliter Sensio est, et deinde Memoria. Et Cognitio Consequentiamm, quae ut ante dixi,

Scien-

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CHAPTER VII — Of the Ends or Resolutions of Discourse

CAPVT VII — De Discursuum Determinationibus

Of all Discourse, governed by desire of Knowledge, there is at last an End, either by attaining, or by giving over. And in the chain of Discourse, wheresoever it be interrupted, there is an End for that time.

Judgement, or Sentence Final; Doubt

If the Discourse be meerly Mentall, it consisteth of thoughts that the thing will be, and will not be; or that it has been, and has not been, alternately. So that wheresoever you break off the chayn of a mans Discourse, you leave him in a Praesumption of It Will Be, or, It Will Not Be; or it Has Been, or, Has Not Been. All which is Opinion. And that which is alternate Appetite, in Deliberating concerning Good and Evil, the same is alternate Opinion in the Enquiry of the truth of Past, and Future. And as the last Appetite in Deliberation is called the Will, so the last Opinion in search of the truth of Past, and Future, is called the JUDGEMENT, or Resolute and Final Sentence of him that Discourseth. And as the whole chain of Appetites alternate, in the question of Good or Bad is called Deliberation; so the whole chain of Opinions alternate, in the question of True, or False is called DOUBT.

No Discourse whatsoever, can End in absolute knowledge of Fact, past, or to come. For, as for the knowledge of Fact, it is originally, Sense; and ever after, Memory. And for the knowledge of consequence, which I have said before is called Science, it is not Absolute, but Conditionall. No man can know by Discourse, that this, or that, is, has been, or will be; which is to know absolutely: but onely, that if This be, That is; if This has been, That has been; if This shall be, That shall be: which is to know conditionally; and that not the consequence of one thing to another; but of one name of a thing, to another name of the same thing.

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Scientia appellatur, Scientia Absoluta non est, sed tantum Conditionalis. Nemo per Discursum scire potest hoc tsel iuud ej[e,fuisse, velsiiturum ejse; id quod est persecte scire; sed tantum,ft hoc (it, tum illud est; si hocsuit, tumsuit iuttd jsi hoc erit^ tum iuud erit; id quod est scire conditionaliter; et scire non rei ad rem, sed nominis ad nomen consequentiam. Si Discursus ergo sit in verbis, incipiatque a Definitionibus Verborum, procedatque per Connectionem eorum in Propositiones, et rursus Propositionum in Syllogismos, determinabitur in aliqua Conclusione, quse summa est omnium antecedentium Propositionum. Atque hasc Sctentia est, sive Cognitio Consequentiarum Sdentu. unius verbi ad aliud. Verum si Discursus non incipiat a Definitionibus, vel si Definitiones illae non recte connectantur in Syllogismos, tunc rursus Discursus terminatur in Opinione tantum, veritatis conclusionis, utcunque absiirdze et insigaisicantis. Quando duo vel plures idem simul sciunt, Consiii dicuntur; et quia illi factorum siiorum consdenti*; rnutuo testes maxime idonei sunt, maxima femper fuit &eritexistimata improbitas, testimonium contra conscientiam dicere, velalium ut dicat inducere. Vsurpatur autem vox Consiientia saepislime pro sua cujusque facti vel cogitati secreta cognitione. Sunt etiam qui proprias Opiniones suas privatas novasque,propter amorem ingenii proprii (etsi aliquando absurdissimas) obstinate sustinent, sub nomine illo Conscientiae savorabili; tamquam illas mutarepeccatum maximum eslet. Itaque veritatem illarum siire se videri volunt, quando nihil sciunt nisi quod ipsi ita opinantur.

Quando Discursus non incipit a Definitione, terminatur femper Ctedere. in Opmione. Quod si incipit ab alicujus alterius hominis Assirmatione, ae cujus hominis neque Cognitione neque Veracitate dubitamus, quia quaestio est non tam de Re, quam de Persina; tunc determinatur in Credttione, et Fide; Fide, inquam, Homini habita; creditione p«w Rei. Credere in hominem, et credere homini, idem plerumque signisicant; nempe opinionem de veracitate ejus; sed credere aliquod dictum, signiticat opinionem tantum veritatis ipsius dicti. Notandum autem est dictionem hanc credo in, ut &Graecam msivta ii?, rarislime usurpari prasterquam in libris Theologicis. Scriptores casteri dicunt credo illi; consido illi; fide m illi habeo.

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Science Opinion Conscience

And therefore, when the Discourse is put into Speech, and begins with the Definitions of Words, and proceeds by Connexion of the same into general Affirmations, and of these again into Syllogismes, the end or last sum is called the Conclusion; and the thought of the mind by it signified is that conditional Knowledge, or Knowledge of the consequence of words, which is commonly called Science. But if the first ground of such Discourse be not Definitions, or if the Definitions be not rightly joyned together into Syllogismes, then the End or Conclusion is again OPINION, namely of the truth of somewhat said, though sometimes in absurd and senslesse words, without possibility of being understood. When two, or more men, know of one and the same fact, they are said to be CONSCIOUS of it one to another; which is as much as to know it together. And because such are fittest witnesses of the facts of one another, or of a third, it was, and ever will be reputed a very Evill act, for any man to speak against his Conscience; or to corrupt or force another so to do: Insomuch that the plea of Conscience, has been always hearkened unto very diligently in all times. Afterwards, men made use of the same word metaphorically, for the knowledge of their own secret facts, and secret thoughts; and therefore it is Rhetorically said that the Conscience is a thousand witnesses. And last of all, men, vehemently in love with their own new opinions, (though never so absurd,) and obstinately bent to maintain them, gave those their opinions also that reverenced name of Conscience, as if they would have it seem unlawful, to change or speak against them; and so pretend to know they are true, when they know at most but that they think so.

Beliefe Faith

When a mans Discourse beginneth not at Definitions, it beginneth either at some other contemplation of his own, and then it is still called Opinion; Or it beginneth at some saying of another, of whose ability to know the truth, and of whose honesty in not deceiving, he doubteth not; and then the Discourse is not so much concerning the Thing, as the Person; And the Resolution is called BELEEFE, and FAITH: Faith, In the man; Beleefe, both Of the man, and Of the truth of what he sayes. So then in Beleefe are two opinions; one of the saying of the man; the other of his vertue. To Have Faith In, or Trust To, or Beleeve A Man, signifie the same thing; namely, an opinion of the veracity of the man: But to Beleeve What Is Said, signifieth onely an opinion of the truth of the saying. But wee are to observe that this Phrase, I Beleeve In; as also the Latine, Credo In; and the Greek, Pisteno Eis, are never used but in the writings of Divines. In stead of them, in other writings are put, I Beleeve Him; I Have Faith In Him; I Rely On Him: and in Latin, Credo Illi; Fido Illi: and in Greek, Pisteno Anto: and that this singularity of the Ecclesiastical use of the word hath raised many disputes about the right object of the Christian Faith.

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Sed a-edere in, in Symbolo Fidei Christianae, non proprie signisicat Fidem quae habetur Personae, sed doctrinae pluribus articulis prooositae agnitionem sive Conseslionem. Etenim non Christiani soli, led etiam homines omnes ita in Deum credunt, ut quicquid dixerit vel diclurus sit pro vero agnoscant 5 idque sive intelligant, sive non Lcviat* s s s intel-

• '.ir.i V,

$4 Zte Homine. Cap. 7.

inteliigant. Qua Fide major esle nulla potest. Doctrinam autem Symboli non omnes credunt, sedsoli Christiani.

Manisestum hinc est,quod qui verum aliquid esle putant, non propter argumenta sumpta ex ipsa re,aut ex principiis Rationis naturalis, sed abauthoritate et ab existimatione bona personae loquentis, Fidei ejus objeclum principaliter et proprie objedtum esle personam loquentem. Itaque quando credimus Scripturas Sacraseste Verbum Dei, Fides nostra, nisi specialem aliquam habeamus Revelationem, terminatur in Ecclesia, in cujus authoritate acquievimus. Etiam illi, qui creduntid, quod narratur Dei nomine a Propheta, Fidem Prophetae habere, illumque honorare, illi credere et fidere dicendi sunt, sive verus, sive falsus sit Propheta. Etiam circa caeteras Historias eodem modo se res habet. Nam si omnia ea quae de virtutibus dicta sunt Alexandri aut Casaris credere recusarem, non puto illos merito mihi succensuros esle, aut alium quemlibet praeter Historiae conscriptorem. Si Livio non credamus locutam esle bovem, non Deo sed Livw dissidimus. Perspicuum ergo est, si quid credamus, nullo alio argumento, quam quod ducitur ab authoritate humaaa, Fidem nostram non Deo, sed in Homine tantum determinari.

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But by Beleeving In, as it is in the Creed, is meant, not trust in the Person; but Confession and acknowledgement of the Doctrine. For not onely Christians, but all manner of men do so believe in God, as to hold all for truth they heare him say, whether they understand it, or not; which is all the Faith and trust can possibly be had in any person whatsoever: But they do not all believe the Doctrine of the Creed.

From whence we may inferre, that when wee believe any saying whatsoever it be, to be true, from arguments taken, not from the thing it selfe, or from the principles of naturall Reason, but from the Authority, and good opinion wee have, of him that hath sayd it; then is the speaker, or person we believe in, or trust in, and whose word we take, the object of our Faith; and the Honour done in Believing, is done to him onely. And consequently, when wee Believe that the Scriptures are the word of God, having no immediate revelation from God himselfe, our Beleefe, Faith, and Trust is in the Church; whose word we take, and acquiesce therein. And they that believe that which a Prophet relates unto them in the name of God, take the word of the Prophet, do honour to him, and in him trust, and believe, touching the truth of what he relateth, whether he be a true, or a false Prophet. And so it is also with all other History. For if I should not believe all that is written By Historians, of the glorious acts of Alexander, or Caesar; I do not think the Ghost of Alexander, or Caesar, had any just cause to be offended; or any body else, but the Historian. If Livy say the Gods made once a Cow speak, and we believe it not; wee distrust not God therein, but Livy. So that it is evident, that whatsoever we believe, upon no other reason, than what is drawn from authority of men onely, and their writings; whether they be sent from God or not, is Faith in men onely.

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CAPVT VIII — De Virtutibus Intellectualibus et Defectibus Oppositis

CHAPTER VIII — Of Virtues and Defects Intellectual

Virtus in omni re aliquid est propter eminentiam speclabile, consistitque in comparatione. Nam si omnia omnibus aequaliteradeslent, nihil eslet, quod haberetur proeximio. Pervirtutes intellectuales intelliguntur Facultates animi illae, quas laudare,magnisacere, et sibimet ipsis inesle cupere homines solent; et vulgo nomine Boni Ingenii comprehenduntur j quanquam Jngeraum signisicet aliquando etiam Facuhatem certam a eaetens distinctam. n^nium Virtutes autem hae duorum sunt generum; Nawraks, et Accjuisua. Per Ingenium naturale non intelligo illud tantum quod cum homine nascitur, quod aliud non est quam Sensus, in quo unus homo alii non multo magis praestat quam bestiae; sed intelligo Ingenittm, quod usu solo et experientia, finemethodo, Cultu vel Doctrinaaccedithominibus aetate. Consistit autem in duabus rebus, Celeritate imaginandi (id est unius cogitationis ad aliam successione facili)& srosecmtone ccnsianti Finis alicujus propositi. Contra, imaginatio tarda Desectum ani- mi illum facit, qui Tarditas vocari (blec vel Stupcr, aliisve nominibus quibus ligniricari iblec Motus Tardus.

Dirterentia autem Celeritatis a differentibus oritur hominum Pas siombus, quorum alii aliud amant et sugiunt; unde cogicaciones diversorum hominum diversae procedunc, et diversimode rebus applicantur. Cum autem in iucceslione cogicationum nihil obiervari solec, n'\i\ stmiutudo vel dtssimilitudo 5 vel cui rei iniervire et quomodo pot sunr j illi qui stmtlitudines maxime adnimadvercunc, aliis raro animadverias, bonum dicuncur habere Ingenium, id est bonam Thantastam. Illi vero qui rerum cogicacarum differenrias, dislimilitudinesque maxime observanr; id est qui inter remctrem bene Dislingumt, Dtscernunt, et Dijudtcant, nisi Dijudicatio illa facilis sit, habere dicuntur bonum ludictum. Speciatim autem in conversacione civili, nego- sw<«'««. tiisque agendis (ubi tempora, loca, et personae discernenda sunr,) vircus haec communicer Discretio appellacur. Phancasia sine ludicto Jaudari raro iblec; sed ludicium, sive Discretio laudacur per se sine ope Phancasiae. Praerer Discretionem temporum, locorum, et personarum quae laudari faciant Phantasiam, requiritur etiam cogitationura ad finem suum frequens applicatio j ita enim occurrent similicudines, non iblum illustraturae, sed eciam novis et apcis Mecaphoris ornacurae sermonem, acque insuper raritate inventionis placiturae. Casterum nisi constans adsit cogitationum ad aliquem hnera regulatio, Phancasia magna species quaedam est Insaniae, qualis est illorum, qui cum dicere inceperint, ab unaquaque sere cogitacione aliena, a propositio sine in tot et tancas digressiones et Parencheies abripiuncur, ut reverci non poslinc. Caula cujus rei aliquandoest, quodexperiencia careanc ita, ut videatur sibi novum et dignum dictu, id quod aliis vilescit; vel magnura sibi, quod aliis non item. Nam quicquid novam, magnum etc. dictu dignum est, seducere homines ab instituta sermonis ierie iaepe solet.

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CHAPTER VIII — Of Virtues and Defects Intellectual

CAPVT VIII — De Virtutibus Intellectualibus et Defectibus Oppositis

Intellectuall Vertue Defined

Vertue generally, in all sorts of subjects, is somewhat that is valued for eminence; and consisteth in comparison. For if all things were equally in all men, nothing would be prized. And by Vertues INTELLECTUALL, are always understood such abilityes of the mind, as men praise, value, and desire should be in themselves; and go commonly under the name of a Good Witte; though the same word Witte, be used also, to distinguish one certain ability from the rest.

Wit, Naturall, Or Acquired

These Vertues are of two sorts; Naturall, and Acquired. By Naturall, I mean not, that which a man hath from his Birth: for that is nothing else but Sense; wherein men differ so little one from another, and from brute Beasts, as it is not to be reckoned amongst Vertues. But I mean, that Witte, which is gotten by Use onely, and Experience; without Method, Culture, or Instruction. This NATURALL WITTE, consisteth principally in two things; Celerity Of Imagining, (that is, swift succession of one thought to another;) and Steddy Direction to some approved end. On the Contrary a slow Imagination, maketh that Defect, or fault of the mind, which is commonly called DULNESSE, Stupidity, and sometimes by other names that signifie slownesse of motion, or difficulty to be moved.

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Poetis in unoquoque genere operis tum Iudicium tum Phantasia requiritur; eminere tamen debet Phantasia, quia placent Poemata praecipue propter novitatemj diiplicere autem non debent per Indiscretionem.

In Historia legitima eminere Iudicium debet j quia Virtus Historiae in Methodo, in Veritate, in electione Narrandorum consistit, neque locus hic est Phantasiae praeterquam in ornanda narratione:

In Laudationibus, et in Inveclivis praedominari debet Phantaiia; quia pro sine habent non Veritatem, sed laudem vel vituperiura; quae perficiuntur comparationibus illustribus vel vilibus vel ridiculis.

s s s 2. Iudi-

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And this difference of quicknesse, is caused by the difference of mens passions; that love and dislike, some one thing, some another: and therefore some mens thoughts run one way, some another: and are held to, and observe differently the things that passe through their imagination. And whereas in his succession of mens thoughts, there is nothing to observe in the things they think on, but either in what they be Like One Another, or in what they be Unlike, or What They Serve For, or How They Serve To Such A Purpose; Those that observe their similitudes, in case they be such as are but rarely observed by others, are sayd to have a Good Wit; by which, in this occasion, is meant a Good Fancy. But they that observe their differences, and dissimilitudes; which is called Distinguishing, and Discerning, and Judging between thing and thing; in case, such discerning be not easie, are said to have a Good Judgement: and particularly in matter of conversation and businesse; wherein, times, places, and persons are to be discerned, this Vertue is called DISCRETION. The former, that is, Fancy, without the help of Judgement, is not commended as a Vertue: but the later which is Judgement, and Discretion, is commended for it selfe, without the help of Fancy. Besides the Discretion of times, places, and persons, necessary to a good Fancy, there is required also an often application of his thoughts to their End; that is to say, to some use to be made of them. This done; he that hath this Vertue, will be easily fitted with similitudes, that will please, not onely by illustration of his discourse, and adorning it with new and apt metaphors; but also, by the rarity or their invention. But without Steddinesse, and Direction to some End, a great Fancy is one kind of Madnesse; such as they have, that entring into any discourse, are snatched from their purpose, by every thing that comes in their thought, into so many, and so long digressions, and parentheses, that they utterly lose themselves: Which kind of folly, I know no particular name for: but the cause of it is, sometimes want of experience; whereby that seemeth to a man new and rare, which doth not so to others: sometimes Pusillanimity; by which that seems great to him, which other men think a trifle: and whatsoever is new, or great, and therefore thought fit to be told, withdrawes a man by degrees from the intended way of his discourse.

In a good Poem, whether it be Epique, or Dramatique; as also in Sonnets, Epigrams, and other Pieces, both Judgement and Fancy are required: But the Fancy must be more eminent; because they please for the Extravagancy; but ought not to displease by Indiscretion.

In a good History, the Judgement must be eminent; because the goodnesse consisteth, in the Method, in the Truth, and in the Choyse of the actions that are most profitable to be known. Fancy has no place, but onely in adorning the stile.

In Orations of Prayse, and in Invectives, the Fancy is praedominant; because the designe is not truth, but to Honour or Dishonour; which is done by noble, or by vile comparisons. The Judgement does but suggest what circumstances make an action laudable, or culpable.

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5 6 Be Homine. Cap. 8.

Iudicium circumstantias tantum suggerit quibus actio laudabilis yel illaudabilis efficitur.

In Hortativis et Causarum dictionibus, prout veritas vel simulatio maxim£ inservit rci quas agitur; ita Iudicium, vel Phantasia maxim& postulatur.

In Demonstratione j in Consilio, et in omni veritatis investigatione severa, solum requiritur ludicium; niti forte aliquando similitudinealiquaaptaopus sitj ut ii quiaudiunt, vel legunt, dociliores siant. Quod autem ad Metaphoras attinet, excludendas prorsus sunt. Fallaciam enim aperte prositentur. Illas ergo in Consilio vel Ratiocinatione severa admittere, stultitia est manisesta. In Discursii quocunque, si Discretionis desectus maniseste appareat, quantumcunque placere poslit Phantasia, desiderabitur Ingenium. Quod si Iudicium manisestum sit, etsi vulgaris sit Phantasia, laudabitur tamen Ingenium.

Cogitatio hominis secreta per omnia discurrit, lacra, prophana, munda, immunda, gravia, levia, sine pudore, et sine culpa; id quod sermoni non ulterius licet quam a Iudicio circa Tempora, Loca, et Peribnas permisium sit. Medico Anatomista; de rebus obscasnis dicere vel scribere quicquid videbitur licet, ut cui Finis est non placere, sed prodesse; aliis autem non licet, quia non est opus. Item irr remissione animi et conversatione familiari, si quis ex verborum sonis et signisicationibus ludura faciat, (id quod aliquando non injucunde sieri solet) indecorum non est. Sed in Concione, vel coram personis incognitis vel alioqui reverendis, omnis verborum lusus stultitia videbitur. Id quod differentiam facit, Discretio sive Iudiciura est. Itaque ubi Ingenium deest, non Pbantasia, sed Iudicium deest. Itaque Iudicium sine Phantasia Ingenium est \ Phantasia autem sine Iudicio non item.

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In Hortatives, and Pleadings, as Truth, or Disguise serveth best to the Designe in hand; so is the Judgement, or the Fancy most required.

In Demonstration, in Councell, and all rigourous search of Truth, Judgement does all; except sometimes the understanding have need to be opened by some apt similitude; and then there is so much use of Fancy. But for Metaphors, they are in this case utterly excluded. For seeing they openly professe deceipt; to admit them into Councell, or Reasoning, were manifest folly.

And in any Discourse whatsoever, if the defect of Discretion be apparent, how extravagant soever the Fancy be, the whole discourse will be taken for a signe of want of wit; and so will it never when the Discretion is manifest, though the Fancy be never so ordinary.

The secret thoughts of a man run over all things, holy, prophane, clean, obscene, grave, and light, without shame, or blame; which verball discourse cannot do, farther than the Judgement shall approve of the Time, Place, and Persons. An Anatomist, or a Physitian may speak, or write his judgement of unclean things; because it is not to please, but profit: but for another man to write his extravagant, and pleasant fancies of the same, is as if a man, from being tumbled into the dirt, should come and present himselfe before good company. And ’tis the want of Discretion that makes the difference. Again, in profest remissnesse of mind, and familiar company, a man may play with the sounds, and aequivocal significations of words; and that many times with encounters of extraordinary Fancy: but in a Sermon, or in publique, or before persons unknown, or whom we ought to reverence, there is no Gingling of words that will not be accounted folly: and the difference is onely in the want of Discretion. So that where Wit is wanting, it is not Fancy that is wanting, but Discretion. Judgement therefore without Fancy is Wit, but Fancy without Judgement not.

Prudence

When the thoughts of a man, that has a designe in hand, running over a multitude of things, observes how they conduce to that designe; or what designe they may conduce into; if his observations be such as are not easie, or usuall, This wit of his is called PRUDENCE; and dependeth on much Experience, and Memory of the like things, and their consequences heretofore. In which there is not so much difference of Men, as there is in their Fancies and Judgements; Because the Experience of men equall in age, is not much unequall, as to the quantity; but lyes in different occasions; every one having his private designes. To govern well a family, and a kingdome, are not different degrees of Prudence; but different sorts of businesse; no more then to draw a picture in little, or as great, or greater then the life, are different degrees of Art. A plain husband-man is more Prudent in affaires of his own house, then a Privy Counseller in the affaires of another man.

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Quando quis cogitatione multitudinem rerum percurrens, cum Sine aliquo sibi proposito, quomodo eae res ad Finem suum conducant, vel cui sini inservire poslint celeriter animadvertit, Ingenium ejus Bonum dicitur 3 dependetqueab Experientia etc. Memoria rerum multarum similium, cum similibus Consequentiis. In hoc autem homines inter se non tantum differunt, quantum Iudicio et Phantasia j quia hominum aetate asqualium, experientia non est valde inaequalis, quoad quantitatem, sed rerura in quibus versantur specie variantur, cum cuique sua sint negotia propria. Familiam, an Regnum quis recle gubernet nihilinterest, quatenus ad Prudentiasgradum,multum tamcn quod attinet ad negotii speciem 5 quemadmodum in parva aut magna tabula bene pingere non distinguit Artis gradum, sed speciem, tk Agricola rudis in re sua Prudentior est plerumque, quam Philoibphus in aliena.

Ad Prudentiam si addatur Mediorum injustornm, vel inhonesto- ^isimh, rnm usas, qualia saepc suggerit Metus, vel inopia, sit Prudentia illa sitiistra, qux appellatur Ajtutm; quae signum plerumque est Pusillanimitatis. Auxilia enim injusta et inhonesta animus magnus aspernatur. Est etiam alia quasi Astutiae species, quae vocatur Versmia; Versum, quae est periculi vel incommodi incurrendo in pejus, ad parvum tempus dilatio; videturque dici a Verstvra, quae signisicat mutui sumptionem, ad mutui solutionem.

Jngenium accjuisitnm, nempe Methodoctdoclrina, nullum est prae- i*&-*j«i* terrationemj quae orta a recto Sermonis usu producit Scientias. " ' * Sed de Ratione, et Scientia dictum est supra Cap. y Sc 6,

Ingeniorum differentia oritur a Paslionibusj differentia autem Paslionum partim a diveria corporum constitutione, partim a diversitate consuetudinum et educationis.

Paseones illae, quae Ingeniorum differentias maximas faciunt, sunt plerumque major vel minor Cupiditas Potentiae, Divitiarum, Scientiae, Dignitatis; quae omnes reduci poslunt ad Potentiam j nam Divstiae, Scientia, Dignitas, sunt Potentiae species.

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Craft

To Prudence, if you adde the use of unjust, or dishonest means, such as usually are prompted to men by Feare, or Want; you have that Crooked Wisdome, which is called CRAFT; which is a signe of Pusillanimity. For Magnanimity is contempt of unjust, or dishonest helps. And that which the Latines Call Versutia, (translated into English, Shifting,) and is a putting off of a present danger or incommodity, by engaging into a greater, as when a man robbs one to pay another, is but a shorter sighted Craft, called Versutia, from Versura, which signifies taking mony at usurie, for the present payment of interest.

Acquired Wit

As for Acquired Wit, (I mean acquired by method and instruction,) there is none but Reason; which is grounded on the right use of Speech; and produceth the Sciences. But of Reason and Science, I have already spoken in the fifth and sixth Chapters.

The causes of this difference of Witts, are in the Passions: and the difference of Passions, proceedeth partly from the different Constitution of the body, and partly from different Education. For if the difference proceeded from the temper of the brain, and the organs of Sense, either exterior or interior, there would be no lesse difference of men in their Sight, Hearing, or other Senses, than in their Fancies, and Discretions. It proceeds therefore from the Passions; which are different, not onely from the difference of mens complexions; but also from their difference of customes, and education.

The Passions that most of all cause the differences of Wit, are principally, the more or lesse Desire of Power, of Riches, of Knowledge, and of Honour. All which may be reduced to the first, that is Desire of Power. For Riches, Knowledge and Honour are but severall sorts of Power.

Giddinesse Madnesse

And therefore, a man who has no great Passion for any of these things; but is as men terme it indifferent; though he may be so farre a good man, as to be free from giving offence; yet he cannot possibly have either a great Fancy, or much Judgement. For the Thoughts, are to the Desires, as Scouts, and Spies, to range abroad, and find the way to the things Desired: All Stedinesse of the minds motion, and all quicknesse of the same, proceeding from thence. For as to have no Desire, is to be Dead: so to have weak Passions, is Dulnesse; and to have Passions indifferently for every thing, GIDDINESSE, and Distraction; and to have stronger, and more vehement Passions for any thing, than is ordinarily seen in others, is that which men call MADNESSE.

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Itaque si quis ea non magnisacit, etsi vir bonus este poslit, nunquam tamen videbitur bonum habere Ingenium. Cogitationes enim cupiditatum sunt tanquamexploratores, emissi ad explorandas vias, quibus ad Cupita serimur, quae motibus animi, tum regulam, tum celeritatem tribuunt. Sicut nihil desiderare, Mortui est; ita parum vehementer Desiderare, Tardi est; et multa simul cupere Levitatis '*/*** est; habere autem Passiones multo fortiores, vehementioresque quam in casteris hominibus videri solent., illud est quod nominatur Jnsania,

Insaniae autem tot sunt sere quot snnt Paslionum ipsarura species; procedit tamen aliquando ab Organorum prava constitutione, vel la;sione. Aliquando etiam a Pailionis vebementia, vel duratione longa laeduntur Organa.Vtrobique tamen ejusdem generis est Inlania.

Paslio cujus violentia, vel duratio facit Insaniam, aut Gleria vana est, quae Scsuperbia dicitur j aut animi demisjio magna.

Superbia facit Iracundum. Irae autem Exceilus Jnsanite species est, quas appellatur suror. Itaque vindictae cupido ingens, si diuturna sit, organa corporis laedit, et sit Suror. Idem facit Amtr vehemens pras- s s s 3 fertim

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Whereof there be almost as many kinds, as of the Passions themselves. Sometimes the extraordinary and extravagant Passion, proceedeth from the evill constitution of the organs of the Body, or harme done them; and sometimes the hurt, and indisposition of the Organs, is caused by the vehemence, or long continuance of the Passion. But in both cases the Madnesse is of one and the same nature.

The Passion, whose violence, or continuance maketh Madnesse, is either great Vaine-Glory; which is commonly called Pride, and Selfe-Conceipt; or great Dejection of mind.

Rage

Pride, subjecteth a man to Anger, the excesse whereof, is the Madnesse called RAGE, and FURY. And thus it comes to passe that excessive desire of Revenge, when it becomes habituall, hurteth the organs, and becomes Rage: That excessive love, with jealousie, becomes also Rage: Excessive opinion of a mans own selfe, for divine inspiration, for wisdome, learning, forme, and the like, becomes Distraction, and Giddinesse: the same, joyned with Envy, Rage: Vehement opinion of the truth of any thing, contradicted by others, Rage.

Melancholy

Dejection, subjects a man to causelesse fears; which is a Madnesse commonly called MELANCHOLY, apparent also in divers manners; as in haunting of solitudes, and graves; in superstitious behaviour; and in fearing some one, some another particular thing. In summe, all Passions that produce strange and unusuall behaviour, are called by the generall name of Madnesse. But of the severall kinds of Madnesse, he that would take the paines, might enrowle a legion. And if the Excesses be madnesse, there is no doubt but the Passions themselves, when they tend to Evill, are degrees of the same.

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3 8 Z>e Homine. Cap. 8.

fertim si comitetur zelotypia. Magna item fui ipsius aestimatio propter Sapientiam, Eruditionem, Form3m &similia, etiam propter (quam putat quis falso se habere) Inspirationera, tendit ad lnsaniam.

Demislio animi obnoxium facit Metui, ubi Metus causa nulla est j quae insania est, appellari solita Meuncholia,, apparens diversimode, ut in iis qui frequentant solitudines; insuperstitiotis et intimentibus quae caeteri non timent. Pasliones denique omnes, quae acliones insohtas exorbitantesque producunt, nomine insigniuntur Insaniae. Siquidem autem Passionum Excestiis Insania sunt, dubitari non potest quin Pasliones ipsae, saltem si ad malum tendant, sint ejusdem gradus.

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(For example,) Though the effect of folly, in them that are possessed of an opinion of being inspired, be not visible alwayes in one man, by any very extravagant action, that proceedeth from such Passion; yet when many of them conspire together, the Rage of the whole multitude is visible enough. For what argument of Madnesse can there be greater, than to clamour, strike, and throw stones at our best friends? Yet this is somewhat lesse than such a multitude will do. For they will clamour, fight against, and destroy those, by whom all their lifetime before, they have been protected, and secured from injury. And if this be Madnesse in the multitude, it is the same in every particular man. For as in the middest of the sea, though a man perceive no sound of that part of the water next him; yet he is well assured, that part contributes as much, to the Roaring of the Sea, as any other part, of the same quantity: so also, thought wee perceive no great unquietnesse, in one, or two men; yet we may be well assured, that their singular Passions, are parts of the Seditious roaring of a troubled Nation. And if there were nothing else that bewrayed their madnesse; yet that very arrogating such inspiration to themselves, is argument enough. If some man in Bedlam should entertaine you with sober discourse; and you desire in taking leave, to know what he were, that you might another time requite his civility; and he should tell you, he were God the Father; I think you need expect no extravagant action for argument of his Madnesse.

This opinion of Inspiration, called commonly, Private Spirit, begins very often, from some lucky finding of an Errour generally held by others; and not knowing, or not remembring, by what conduct of reason, they came to so singular a truth, (as they think it, though it be many times an untruth they light on,) they presently admire themselves; as being in the speciall grace of God Almighty, who hath revealed the same to them supernaturally, by his Spirit.

Again, that Madnesse is nothing else, but too much appearing Passion, may be gathered out of the effects of Wine, which are the same with those of the evill disposition of the organs. For the variety of behaviour in men that have drunk too much, is the same with that of Mad-men: some of them Raging, others Loving, others laughing, all extravagantly, but according to their severall domineering Passions: For the effect of the wine, does but remove Dissimulation; and take from them the sight of the deformity of their Passions. For, (I believe) the most sober men, when they walk alone without care and employment of the mind, would be unwilling the vanity and Extravagance of their thoughts at that time should be publiquely seen: which is a confession, that Passions unguided, are for the most part meere Madnesse.

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Exempli caula, quando aliqui falso putant itisairatos se esle, Insaniae illius essedus non est in uno homine per adlionem aliquam, quae ab illa opinione procedit, exorbitantem visibilis, quando tamen multi eorum conspirant, suror totius multitudinis satis manisestus est. Quodnam enim Insaniae argumentum majus esle potest quam clamare, serire, et lapides in amicos jacere? Minustamen estaliquanto hoc, quam quod hujusmodi multitudines aliquando faciunt. Nam occlamant, oppugnant, et intersiciunt illos, per quos omni ante-adae vitae tempore protedi, et desensi ab injuriis fuerant. Iam si Insania haec sit in multitudine, Insania quoque est in hominibus singulis. Quemadmodum enim in medio mari, quanquam sonum ab aqua sibi proxima nemo percipiat, scit tamen partem illam aqua; proximae sremitui maris non minus contribuere, quam alia pars quaecunque ejusdem magnitudinis: ita etiam quanquam in uno vel paucis hominibus, non magnam videamus inquietudinem; certi tamen esle postumus Paseones illius unius vel paucorum, partes este sremitus seditiosi commotae Civitatis. Etsi nihil eslet aliud, quod Insaniam hujus generis indicaret, mihi tamen ipsa inspirationis divinas arrogatio, Insaniae ipsorum raagnum indicium est. Quis enim in Morocomio dicentem Deum se esle, vel Christum, cur illic conclusus sit nesciat? Quod autem privatum Spiritttm suum tantisaciant aliqui, ut se divinitiis inspirari putent, saepenumero oritur ab errorisalicujus in Theologia vulgo recepti scelici detecl:ione; nescientes enim vel obliti, quo dudu rationis in tam singularem veritatem (etsi interdum veritas non sit) inciderint, femetipsos, ut quibus Deus ipse speciali gratia dodrinam lllam supernaturaliter Spiritu Sando revelaverit, admirantur.

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The opinions of the world, both in antient and later ages, concerning the cause of madnesse, have been two. Some, deriving them from the Passions; some, from Daemons, or Spirits, either good, or bad, which they thought might enter into a man, possesse him, and move his organs is such strange, and uncouth manner, as mad-men use to do. The former sort therefore, called such men, Mad-men: but the Later, called them sometimes Daemoniacks, (that is, possessed with spirits;) sometimes Energumeni, (that is agitated, or moved with spirits;) and now in Italy they are called not onely Pazzi, Mad-men; but also Spiritati, men possest.

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Quod Insania nihil aliud sit praeter ingentem enormemque Paslionem, intelligi potest ab essedtbus nimii Vini, quod similem producit

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There was once a great conflux of people in Abdera, a City of the Greeks, at the acting of the Tragedy of Andromeda, upon an extream hot day: whereupon, a great many of the spectators falling into Fevers, had this accident from the heat, and from The Tragedy together, that they did nothing but pronounce Iambiques, with the names of Perseus and Andromeda; which together with the Fever, was cured, by the comming on of Winter: And this madnesse was thought to proceed from the Passion imprinted by the Tragedy. Likewise there raigned a fit of madnesse in another Graecian city, which seized onely the young Maidens; and caused many of them to hang themselves. This was by most then thought an act of the Divel. But one that suspected, that contempt of life in them, might proceed from some Passion of the mind, and supposing they did not contemne also their honour, gave counsell to the Magistrates, to strip such as so hang’d themselves, and let them hang out naked. This the story sayes cured that madnesse. But on the other side, the same Graecians, did often ascribe madnesse, to the operation of the Eumenides, or Furyes; and sometimes of Ceres, Phoebus, and other Gods: so much did men attribute to Phantasmes, as to think them aereal living bodies; and generally to call them Spirits. And as the Romans in this, held the same opinion with the Greeks: so also did the Jewes; For they calle mad-men Prophets, or (according as they thought the spirits good or bad) Daemoniacks; and some of them called both Prophets, and Daemoniacks, mad-men; and some called the same man both Daemoniack, and mad-man. But for the Gentiles, ’tis no wonder; because Diseases, and Health; Vices, and Vertues; and many naturall accidents, were with them termed, and worshipped as Daemons. So that a man was to understand by Daemon, as well (sometimes) an Ague, as a Divell. But for the Jewes to have such opinion, is somewhat strange. For neither Moses, nor Abraham pretended to Prophecy by possession of a Spirit; but from the voyce of God; or by a Vision or Dream: Nor is there any thing in his Law, Morall, or Ceremoniall, by which they were taught, there was any such Enthusiasme; or any Possession. When God is sayd, (Numb. 11. 25.) to take from the Spirit that was in Moses, and give it to the 70. Elders, the Spirit of God (taking it for the substance of God) is not divided. The Scriptures by the Spirit of God in man, mean a mans spirit, enclined to Godlinesse. And where it is said (Exod. 28. 3.) "Whom I have filled with the Spirit of wisdome to make garments for Aaron," is not meant a spirit put into them, that can make garments; but the wisdome of their own spirits in that kind of work. In the like sense, the spirit of man, when it produceth unclean actions, is ordinarily called an unclean spirit; and so other spirits, though not alwayes, yet as often as the vertue or vice so stiled, is extraordinary, and Eminent. Neither did the other Prophets of the old Testament pretend Enthusiasme; or, that God spake in them; but to them by Voyce, Vision, or Dream; and the Burthen Of The Lord was not Possession, but Command. How then could the Jewes fall into this opinion of possession? I can imagine no reason, but that which is common to all men; namely, the want of curiosity to search naturall causes; and their placing Felicity, in the acquisition of the grosse pleasures of the Senses, and the things that most immediately conduce thereto. For they that see any strange, and unusuall ability, or defect in a mans mind; unlesse they see withall, from what cause it may probably proceed, can hardly think it naturall; and if not naturall, they must needs thinke it supernaturall; and then what can it be, but that either God, or the Divell is in him? And hence it came to passe, when our Saviour (Mark 3.21.) was compassed about with the multitude, those of the house doubted he was mad, and went out to hold him:

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Orga.

Organorum intemperiem. Varietas enim hominum, qui nimium biberunt eadem est in moribus, qua» cernitur in insanis j quorum aliqui suriunt, alii amant, alii rident, omnes modo insolito; sed suas cujusque Passioni congruo. Nam etiam homines sobrios puto quando ab£que omni animi cura et occupatione soli incedunt, non libenter velle cogitationum suarum vanitatem atque exorbitantiam eo tempore publice apparere; id quod conseslio manisesta est, Pasliones irregulares plerumquelnsaniam merameste.

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But why then does our Saviour proceed in the curing of them, as if they were possest; and not as if they were mad. To which I can give no other kind of answer, but that which is given to those that urge the Scripture in like manner against the opinion of the motion of the Earth. The Scripture was written to shew unto men the kingdome of God; and to prepare their mindes to become his obedient subjects; leaving the world, and the Philosophy thereof, to the disputation of men, for the exercising of their naturall Reason. Whether the Earths, or Suns motion make the day, and night; or whether the Exorbitant actions of men, proceed from Passion, or from the Divell, (so we worship him not) it is all one, as to our obedience, and subjection to God Almighty; which is the thing for which the Scripture was written. As for that our Saviour speaketh to the disease, as to a person; it is the usuall phrase of all that cure by words onely, as Christ did, (and Inchanters pretend to do, whether they speak to a Divel or not.) For is not Christ also said (Math. 8.26.) to have rebuked the winds? Is not he said also (Luk. 4. 39.) to rebuke a Fever? Yet this does not argue that a Fever is a Divel. And whereas many of these Divels are said to confesse Christ; it is not necessary to interpret those places otherwise, than that those mad-men confessed him. And whereas our Saviour (Math. 12. 43.) speaketh of an unclean Spirit, that having gone out of a man, wandreth through dry places, seeking rest, and finding none; and returning into the same man, with seven other spirits worse than himselfe; It is manifestly a Parable, alluding to a man, that after a little endeavour to quit his lusts, is vanquished by the strength of them; and becomes seven times worse than he was. So that I see nothing at all in the Scripture, that requireth a beliefe, that Daemoniacks were any other thing but Mad-men.

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Opiniones hominum circa Insaniae causam, tum Veterum tum Recentiorum duae sunt. Alii enimeama Passionibus; aliia Daemonibus, sive Spiritibus derivant, bonis vel malis, quos intrare in hominem posle, eosque poslidere putaverunt, atque corporis ejus organa insolito ciere motu, qualem animadvertimus in Insanis. Alii ergo Insanos appellaverunt, quos alii Energumenos. Hodieque eosdem homines Itali vocant Pazzi et Spiritati.

Magnus erat quondam in Vrbe Abderensium consluxus populi ad Theatrum, cum ageretur Fabula Andromedae, aestivo et servente die; unde Spectatorum magna multitudo partim a calore, partim ab ipsa Tragoedia in Sebrem incidentes, aliud nihil dicere potuerunc praeter Iambos, quos ab Actoribus in Tragcedia audierant recitatos -, ab hac autem lnsania, siiperveniente Hyeme liberati sunt; et proinde visa est proceslione ab illa Paslisle quam animis Spectatorum impreslerat Tragoedia. Etiam in Civitate alia Grasca Insaniae s pecies alia quaedam orta est, quae in Adole/centulas incidens fecit ut earum multae se suspenderint. Hoc autem a plurimis a Diabolo proseclum esle existimabatur; unus autem erat qui ipsarum contemptum hunc vitae oriri ab animi aliqua Paslione siispicatus est; putansque illas non ut vitam, sic honorem etiam contempsiste, Magistratibus consiliura dedit, ut quas se siispenderint nudae penderent. Quod cum sadum estet, Insania illa desiit. lidem autem Graeci Insaniam plerumque Eumenidum, sive Suriarum operationibus vel Cereris vel Shoebi aliorumque Deorum attribuerunt. Tantum enim Phantasmatibus attribuebatur realitatis, ut animalia aerea putarentur, vocarenturque. Romani etiam, et Iudaeorum multi, de hac re cum Graecis consenserunt. Iudaei enim Insanos, aut Prophetas esle, aut (prout Spiritus illos vel bonos vel rmlos esle putaverunt) Daemoniacos. Aliqui etiameorum eundem hominem et Daemoniacum et Prophetam. Hoc tamen in Gentibus mirandum non est; quia Morbos et Sanitatem, vitia et Virtutes, atque accidentia naturalia ab illis et vocabantur, et colebantur ut Dasraones. Adeo ut per Dxmonm intelligenda erat eorutn

40 T>* Bomine. Cap. 8.

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Insignificant Speech

There is yet another fault in the Discourses of some men; which may also be numbred amongst the sorts of Madnesse; namely, that abuse of words, whereof I have spoken before in the fifth chapter, by the Name of Absurdity. And that is, when men speak such words, as put together, have in them no signification at all; but are fallen upon by some, through misunderstanding of the words they have received, and repeat by rote; by others, from intention to deceive by obscurity. And this is incident to none but those, that converse in questions of matters incomprehensible, as the Schoole-men; or in questions of abstruse Philosophy. The common sort of men seldome speak Insignificantly, and are therefore, by those other Egregious persons counted Idiots. But to be assured their words are without any thing correspondent to them in the mind, there would need some Examples; which if any man require, let him take a Schoole-man into his hands, and see if he can translate any one chapter concerning any difficult point; as the Trinity; the Deity; the nature of Christ; Transubstantiation; Free-will. &c. into any of the moderne tongues, so as to make the same intelligible; or into any tolerable Latine, such as they were acquainted withall, that lived when the Latine tongue was Vulgar. What is the meaning of these words. "The first cause does not necessarily inflow any thing into the second, by force of the Essential subordination of the second causes, by which it may help it to worke?" They are the Translation of the Title of the sixth chapter of Suarez first Booke, Of The Concourse, Motion, And Help Of God. When men write whole volumes of such stuffe, are they not Mad, or intend to make others so? And particularly, in the question of Transubstantiation; where after certain words spoken, they that say, the White-nesse, Round-nesse, Magni-tude, Quali-ty, Corruptibili-ty, all which are incorporeall, &c. go out of the Wafer, into the Body of our blessed Saviour, do they not make those Nesses, Tudes and Ties, to be so many spirits possessing his body? For by Spirits, they mean alwayes things, that being incorporeall, are neverthelesse moveable from one place to another. So that this kind of Absurdity, may rightly be numbred amongst the many sorts of Madnesse; and all the time that guided by clear Thoughts of their worldly lust, they forbear disputing, or writing thus, but Lucide Intervals. And thus much of the Vertues and Defects Intellectuall.

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eorum sermone non minus aliquando Sebris, quam Diabolus. Vt autem ita sentirent Iadaei, magis mirandum est. Neque enim Moses neque Abrahamus Prophetiis fuis pnetendebant Spiritum, sed Vocem Dei, vel Visionera, vel Somnium. Neque in Lege Mosaica Morali, vel Ceremoniali quicquamextatsaciens ad Enthusiasmum, Quando (Num. 1 1. 1$.) a Spiritu, qui in Mose erat sustulisle dicitur Deus, Sc dedisle septuaginta Senioribus, per Spiritum Dei non intelligitur eo loco substantia Dei; nam ea indivisibilis est. Per Spiritum Dei Scriptura saepenumero signisicant Spiritum hominis Deo servientis. Vbi enim dicitur Exod. 28: 3. Quem implevi Spiritn Sapienti<£, adsaciendum Vejiimenta Aaroni. Non intelligendus est peritus faciendi Vestimenta Spiritus Insusus, sed Sapientia ipsorum hominum in eo genere operis. Similiter Spiritus hominis, si producat actiones immundas, appellatur in Scripturis, Sptritus immmdns. Etiam in aliis locis virtus vel vitium si egregium sit et eminens, appellatur Spiritus. Neque post Mosem Prophetas Veteris Testamenti Enthusiasmum praetenderunt j neque in, sed ad se locutum esle Deum, nempe, per Visionem vel Somnium. Neque illud onus Domini ~£ossejsio crat, sed Iussio. Quomodo ergo in opinionem hanc Enthusiasmi incidere potuerunt Iudasi? Nescio, nisi quod plerisque hominibus commune est, non nimium inquirere in causas naturales j scelicitatemque collocare in voluptatibus sensuum, et rebus illis quae maximd istuc tendunt. Qui enim insolitam virtutem vel desectum insolitum vident, nisi simul videant unde probabiliter procedere potuit non facile putant esle naturalem. Quod si non naturalem, neceslario siipernaturalem esle putant. Quaenam autem esle potest res illa praster Deum aut Dasmonem qui in hominem intraverit. Itaque cum Servator noster (Marc. 3.21.) a multitudine cingeretur, illi qui in domo erant, surere eum existimaverunt, exieruntque domo ut cohiberent. Scribae autem dixerunt, quod haberet D<emcnem, nempe Belzebub, per quem ejecisle illum Dasmonia dixerant. Hinc etiam erat quod quidam (Iohan. 10.20.) dixerunt Daemomum habet et Insanus est. Quando alii qui illum pro Propheta habuerunt, dixerunt, Nonsunt b<ec verba ejtu qni habet Damonium. Item in Testamento Veteri, is qui mistus fuit (2Reg. 9. 11.) ad ungendum Regem lehu, Propheta erat j eorum tamen qui cum lehu erant aliqui ipsum interrogarunt, Quamobrem ille venit Insanus? Manisestum ergo est, illum qui insolito modo, et ab aliorum more multum disrerente se gerat videri Iudasis poslessum esle bono aliquo vel malo Spiritu. Excipio tamen Sadducajos, qui ex altera parte a veritate tantum abierunt, ut Spi- ritus omnino esle non crediderint (id quod prope accedit ad Athci£ mum.) Fortasle autem tanto potius Daemoniacos vocabant Pharisaei Insanos, quanto magis a Sadducaeis circa opinionem de Spiritibus discrepabant.

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Sihocitasit, cur sanat illos Servatornoster, non uc Insanos, scd ut Daemoniacos? Respondeo. Argumenta quas a formula dictionis sumuntur, firma non esle. Quotiesenim loquitur Scriptura Sacra de Terra, ut immobili, quam tamen Philosophi hodie sereomnes moveri censent signis evidentislimis? Scriptura scripta est a Prophetis Sc Apostolis, ad docendam non Philosophiam (quam adexercitium Rationis naturalis, contemplationibus disputationibusque hominum reliquit Deus) sed Pietatem, et Salutis aeternas viam. Sivc enina Terrae, sive Solis motus Diem Sz Noctem faciat 3 sive humanarum aclionum Exorbitatio a Paslionibus, sive a Diabolo oriatur, ad Pietatem etc. Salutem nihil reserc. Eorum qui per Verba sola morbos curant, ut fecit Christus (et facere se salsd jactitant Incantatores) Dictio propria est, Exi, et Itissionessimites. Nonne Christus Matth.8. irc. 2<5.) Objurgavic Ventos, et (Luc. 4. 39) Objurgavitsebrem? Non tamen argui hinc potest Sebrem esle Diabolum. Pmerea eadem Phrasis non ubique Scripturarum idem signisicat. In Principio crat Verbum, signisicac Verbi aeternitatem. In Srincipio creavit Detu Ccelum et Terram non signisicat fuisle Ccelum et Terram ab xtevno. Vbi Servator noster (Mattb. 12. 43.) loquitur de Spiritu immundo, qui cum exislet ex homine vagatus eslet per loca arida, quaerens requiem necinveniens, in eundem hominem postea reversus est, cum aliis septem Spiritibus se pejoribus, Parabolica locutio est, alludens ad hominem, qui post conatum cupiditates suas relinquendi debiiem victus, sepcies pejor quam ante erac. Non sunt ergo Scriptur» in sensu verborum rigido lemper accipiendae; neque ex illis neceslario evinci potest D<emomacos altos fuisse quam Insanes, Sttriosos vel modo aliquo mente laesos.

Inter Insaniae signa numerari etiam postuntquorundamhominum Sermones Absurdi, sive Insignisicantes; de quibus dictum est Capite quinto. Atque hoc genus Insaniae iliorum hominum scre propriura est, qui loqui, vel scnbere de iis rebus audent, quae stmt incomprehensibiles j id quod soli faciunt Scholastici et Philolbphi. Nam vulgus hominum raro, ita loquuntur, ut non poslint intelligi; et ob eam rem ab istis aliis egregiis hominibus habentur, spernunturque pro idiotis. Vt sciamus aurem qualis iit Scholasticorum, et Philosophorum de rebus difficilibus oratio, interpretetur nobis verba ali-

4 2 De Homine. Cap* 9.

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quis, quas titulum faciunt Capitis 6, Libri i, Suaris, de Concmsu, Motu, et Av.xilio Dei. Verba autem haec sunt, Vrima causx non insitttt y.ecessarib aliqutd in secundam Virtute Subordtnationis essemtalti causarum s%nndarum, qtto illam adjuvet operari. Qui simiji oratione tota implent volumina, nonneinsaniunt, vel alios insanire volunt? In Quaestione de Iransuhstantiatione, ubi dicunt (post certa quaedam prolata verba) Albedinem, Rotunditatem, Magnitudinem, Qualitatem, etc.. qua; omnia sunt incorporea, migrare e Pane, &intrare in corpusservatoris nostri lesu Christi, nonne faciunt ex illis Accidentibus totidem Spiritus (nam et Spiritus eidem incorporeos esle putant, etiamii eos a loco ad locum moveri consiteantur.) Itaque genus hoc Locutionis absurdae numerari inter Insaniae species multas recte potest. Tempora autem quibus cogitationes eorundem Insanorum gubernatae a cupiditatibus mundanis perspicue explicantur, alia non sunt quam lucida ir.tervaua. Atque hasc de Virtutibus et Vitiis Intellectualibus dicta iussiciant.

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CAPVT IX — De Scientiarum Distributione

CHAPTER IX — Of the Several Subjects of Knowledge

Cognitionis duae siint Species. Altera Factij et est Cognitio propria Testium, cujus conscriptio est Htstoria. Dividitur autem in Naturalem et Civtlem, quarum neutra pertinet ad Institutum nostrum. Altera est consequentiarum, vocaturque Scientia; Conscriptio autem ejus appellari solet Thilosiphia. Quoniam autem subjecta Scientiarum sunt Corpora, distribuenda est in Species, eodem modo quo distribuuntur in suas Species Corpora ipsa, id est, ita u't Vniversaliora minus Vniversalibus antecedant. Vniversalia enim Specialibus essentialia sunt,& proinde universalium Scientia essentialis est Scienti» Specierum, adeo ut haec, nisi per illorum lucem, percipi non poslint.

Generalislimum autem Subjectorum Scientiae est Corpus, cujus Accidentiaduosunt Magnitudo et Motus. Illudergo quodquaeritur primo a Philosopho circa hoc subjectum est, quid iit Motus, et quid Magnitudo. Et Philosophias pars ha?c appellari solet Thilosophia prima.

Rursus Magnitudo definita, quae et Quantitas dicitur, vel Sigt.ra vel Numero detinitur. Itaque Corpus figura definitum subjeclum est partis illius Philosophiae, quae Geometria dicitur. Partes autem Corporis numero determinatae Scientia est didla Arithmtica,

Motus autem vcl Vtsibtks sunt,vel hvisibiks-, nimirum in Corporum minutitsimis partibus. Motuum autem Visibilium Scientiajeorum est, qui Machinarum, iedisiciorum secreta contemplati sunt.

Motus autem Invisibiles internarum Corporis partium qui propter estectus in Sensiis nostros dicuntur Quahtates, subjectum est Physiccc, sive Vhilosophia Naturahs-, cujus quot sunt homini Sensus, tot poslunt esle Scientiae Speciales, quarum una est quas vocatur Optica, alia Musica.

Deinde si Corpus universi consideretur per partes ejus, ut Astra et Sublunaria,• ex contemplatione Astrorum motorum quatenus Motorum orietur Scientia quae dicitur Astronomia.

Et quoniam partes universi quaedam non permanent, sed in interstitiis magnorura Corporum modo apparent, modo evanescunt, contemplatio Motus illorum gignit Scientiara Mcteordogicam.

Item a contemplatione partium Telluris, qualiasunt Mineraha, Vegetabilia, et Ammalia, totidem oriuntur Scientiae particulares.

Ex contemplatione denique Hominis et Facultatum ejus oriuntur Scientiae Ethica, Logica, Rhetortca, et tandem Tolittca sive Shttosephia Civilis.

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CHAPTER IX — Of the Several Subjects of Knowledge

CAPVT IX — De Scientiarum Distributione

There are of KNOWLEDGE two kinds; whereof one is Knowledge Of Fact: the other Knowledge Of The Consequence Of One Affirmation To Another. The former is nothing else, but Sense and Memory, and is Absolute Knowledge; as when we see a Fact doing, or remember it done: And this is the Knowledge required in a Witnesse. The later is called Science; and is Conditionall; as when we know, that, If The Figure Showne Be A Circle, Then Any Straight Line Through The Centre Shall Divide It Into Two Equall Parts. And this is the Knowledge required in a Philosopher; that is to say, of him that pretends to Reasoning.

The Register of Knowledge Of Fact is called History. Whereof there be two sorts: one called Naturall History; which is the History of such Facts, or Effects of Nature, as have no Dependance on Mans Will; Such as are the Histories of Metals, Plants, Animals, Regions, and the like. The other, is Civill History; which is the History of the Voluntary Actions of men in Common-wealths.

The Registers of Science, are such Books as contain the Demonstrations of Consequences of one Affirmation, to another; and are commonly called Books of Philosophy; whereof the sorts are many, according to the diversity of the Matter; And may be divided in such manner as I have divided them in the following Table.

I. Science, that is, Knowledge of Consequences; which is called also PHILOSOPHY

A. Consequences from Accidents of Bodies Naturall; which is called NATURALL PHILOSOPHY

1. Consequences from the Accidents common to all Bodies Naturall; which are Quantity, and Motion.

a. Consequences from Quantity, and Motion Indeterminate; which, being the Principles or first foundation of Philosophy, is called Philosophia Prima

PHILOSOPHIA PRIMA

b. Consequences from Motion, and Quantity Determined

1) Consequences from Quantity, and Motion Determined

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Sed ex subdivisione singulorum siibjectorum innumerae aliae Scientiae nasci postunt, quas enumerare, neque facile, neque necessariura est,

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a) By Figure, By Number

1] Mathematiques,

GEOMETRY ARITHMETIQUE

2) Consequences from the Motion, and Quantity of Bodies in Speciall

a) Consequences from the Motion, and Quantity of the great parts of the World, as the Earth and Stars,

1] Cosmography

ASTRONOMY GEOGRAPHY

b) Consequences from the Motion of Speciall kinds, and Figures of Body,

1] Mechaniques, Doctrine of Weight

Science of ENGINEERS ARCHITECTURE NAVIGATION

2. PHYSIQUES, or Consequences from Qualities

a. Consequences from the Qualities of Bodies Transient, such as sometimes appear, sometimes vanish

METEOROLOGY

b. Consequences from the Qualities of Bodies Permanent

1) Consequences from the Qualities of the Starres

a) Consequences from the Light of the Starres. Out of this, and the Motion of the Sunne, is made the Science of

SCIOGRAPHY

b) Consequences from the Influence of the Starres,

ASTROLOGY

2) Consequences of the Qualities from Liquid Bodies that fill the space between the Starres; such as are the Ayre, or substance aetherial.

3) Consequences from Qualities of Bodies Terrestrial

a) Consequences from parts of the Earth that are without Sense,

1] Consequences from Qualities of Minerals, as Stones, Metals, &c . 2] Consequences from the Qualities of Vegetables

b) Consequences from Qualities of Animals

1] Consequences from Qualities of Animals in Generall

a] Consequences from Vision,

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OPTIQUES

b] Consequences from Sounds,

MUSIQUE

c] Consequences from the rest of the senses

2] Consequences from Qualities of Men in Speciall

a] Consequences from Passions of Men,

ETHIQUES

b] Consequences from Speech,

i) In Magnifying, Vilifying, etc.

POETRY

ii) In Persuading,

RHETORIQUE

iii) In Reasoning,

LOGIQUE

iv) In Contracting,

The Science of JUST and UNJUST

B. Consequences from the Accidents of Politique Bodies; which is called POLITIQUES, and CIVILL PHILOSOPHY

1. Of Consequences from the Institution of COMMON-WEALTHS, to the Rights, and Duties of the Body Politique, or Soveraign.

2. Of Consequences from the same, to the Duty and Right of the Subjects.

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CAPVT X — De Potentia, Dignitate, et Honore

CHAPTER X — Of Power, Worth, Dignity, Honour, and Worthiness

Potentia cujusque (universaliter sumpta) est Mediorum omnium, v*tmi*. quae habet ad Bonum aliquod futurum apparens adipiscendum, aggregatum. Est autem vcl Naturahs, vel Inslrtimentaus.

Potentia Naturalis, est Excellentia Facultatum Corporis, vel Animi: ut Robur, Forma, Prudentia, Ars, Eloquentia, Liberalitas, Nobilitas. Jnstrumentaks sunt quae per Naturales vel fortunam acquisitae, Media et Instrumenta sunt ad Potentiam augendam: ut Divitiae, Existimatio, Amici, et Operatio impercepta Dei, quam homines plerumque appellant Fortunam. Potentiae enim natura hac in re Famae similis est, eundo crescens; vel corporum gravium descensui quse procedendo acceleratur.

Humanarum Potentiarum maxima est illa, quae ex plurimorum hominum in unam Personam, consensu singulorum unitorum est ggg 2 com-

44 &e Hemine. Cap. 10.

composita, siveilla Persona Naturalis sit, ut Horao, sive Artificialis, ut Civitas, a cujus voluntate dependent Potentiae omnium. Proxima huic Potentia est, quas dependet a voluntate multitudinis non unitae; qualis est Potentia Factionis, vel Sadionum scederatarum..

Itaque multos habere Servos, Potentia est; item multos habere Amicos. Sunt enim vires unitae.

Etiam Divitiae conjunctae cum Liberalitate, Potentia est; quia Servos et Amicos parant: absque Liberalitate, non item $ quia non desendunt, sed Invidiaeexponunt.

Potentiae Existimatio, Potentia est; quia adhaerere sibi facit eos qui Desensione indigent.

Etiamexistimatiobonicivis et Patriam amantis (quaevocatur Popularitas) Potentia est; propter causam proxime supra dictam.

Vniversim, Qualitas quaecunque, si gignat vel Amorem vel Metum multorumhominum, et hujusmodi Qualitatis opinio, Potentiaestj quia Medium est ad auxilia et Officia multorum.

Succeslus soelix, potentia est; quia gignit Prudentiae, vel bonae Fortunae Opinionem; nam facit ut illum metuant, aut in lllum considantmulti.

Asxabilitas Potentium, est Potentia? majoris acquisitio; quia gignit Amicitiam.

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CHAPTER X — Of Power, Worth, Dignity, Honour, and Worthiness

CAPVT X — De Potentia, Dignitate, et Honore

Power

The POWER of a Man, (to take it Universally,) is his present means, to obtain some future apparent Good. And is either Originall, or Instrumentall.

Naturall Power, is the eminence of the Faculties of Body, or Mind: as extraordinary Strength, Forme, Prudence, Arts, Eloquence, Liberality, Nobility. Instrumentall are those Powers, which acquired by these, or by fortune, are means and Instruments to acquire more: as Riches, Reputation, Friends, and the Secret working of God, which men call Good Luck. For the nature of Power, is in this point, like to Fame, increasing as it proceeds; or like the motion of heavy bodies, which the further they go, make still the more hast.

The Greatest of humane Powers, is that which is compounded of the Powers of most men, united by consent, in one person, Naturall, or civill, that has the use of all their Powers depending on his will; such as is the Power of a Common-wealth: or depending on the wills of each particular; such as is the Power of a Faction, or of divers factions leagued. Therefore to have servants, is Power; To have Friends, is Power: for they are strengths united.

Also Riches joyned with liberality, is Power; because it procureth friends, and servants: Without liberality, not so; because in this case they defend not; but expose men to Envy, as a Prey.

Reputation of power, is Power; because it draweth with it the adhaerance of those that need protection.

So is Reputation of love of a mans Country, (called Popularity,) for the same Reason.

Also, what quality soever maketh a man beloved, or feared of many; or the reputation of such quality, is Power; because it is a means to have the assistance, and service of many.

Good successe is Power; because it maketh reputation of Wisdome, or good fortune; which makes men either feare him, or rely on him.

Affability of men already in power, is encrease of Power; because it gaineth love.

Reputation of Prudence in the conduct of Peace or War, is Power; because to prudent men, we commit the government of our selves, more willingly than to others.

Nobility is Power, not in all places, but onely in those Common-wealths, where it has Priviledges: for in such priviledges consisteth their Power.

Eloquence is Power; because it is seeming Prudence.

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Existimatio Prudentiae in rebus gerendis, sive Pacis, sive Belli, Potentia est; quia prudentibus regendos nos permittimus libentius quam aliis.

Nobilitas est Potentia, non ubique, sed in Civitatibus, ubi Nobilibus indulgentur privilegia j quia in his illorum consistit Potentia.

Eloquentia Potentia elt, quia Prudentia Apparens.

Forma Potentia est; est enim Boni promissio, ldeoque commendat hominem hominibus ignotis.

Scientia, Potentia est; sed parva; quia Scientia egregia rara est, rec proinde apparens nisi paucisemis, et in paucis rebus. Scientias enim ea natura est ut esle intelligi non posec, nisi ab illis qui sunt Scientia praediti.

Artes quas conducunt multum ad utilitatcm publicam, Potentia sunt; ut Artes Muniendi, Machinas aliaque instrumenta Belli sdbricandi; quia ad Desensionem, et Victoriam plurimum conserunt.

Dignitas signisicat interdum Valorem sive pretium hominis, nempe tantum, quanti Potentia2 ejus usum aliquis emere vellet. Major ergo vel minor est, prout ab aliis aestiraatur. Dux militum egre- gius, prassente vel imminente Bello magni Pretii est j in Pace non tanti. Iudex peritus et integer Pretii in Pace magni est j non itetn in Bello. Nam ut in rebus caeteris, ita etiam in hominibus, non ex vendentis, sed ex ementis arbitrio constituitur Pretium. Quanticunque quis seipsum asstimet, tanti tamen est, quanti aestimatur ab aliis.

Manisestum facere quanti aliquera aestimemus, id ipsum est, quod Hoxorare, Sc Inhonorare j nempe magni aestimare, est Honorare j parvi, Inhonorare.

Dignitas autem pleruraque signisicat, non aestimationem qua Homo, sed qua Civitas aliquem magni asstimat, quando in illum vel imperium vel magistratum, vel negotium publicum quodcunque, vel etiam Nomen vel Titulumhonoris causa consert.

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Forme is Power; because being a promise of Good, it recommendeth men to the favour of women and strangers.

The Sciences, are small Power; because not eminent; and therefore, not acknowledged in any man; nor are at all, but in a few; and in them, but of a few things. For Science is of that nature, as none can understand it to be, but such as in a good measure have attayned it.

Arts of publique use, as Fortification, making of Engines, and other Instruments of War; because they conferre to Defence, and Victory, are Power; And though the true Mother of them, be Science, namely the Mathematiques; yet, because they are brought into the Light, by the hand of the Artificer, they be esteemed (the Midwife passing with the vulgar for the Mother,) as his issue.

Worth

The Value, or WORTH of a man, is as of all other things, his Price; that is to say, so much as would be given for the use of his Power: and therefore is not absolute; but a thing dependant on the need and judgement of another. An able conductor of Souldiers, is of great Price in time of War present, or imminent; but in Peace not so. A learned and uncorrupt Judge, is much Worth in time of Peace; but not so much in War. And as in other things, so in men, not the seller, but the buyer determines the Price. For let a man (as most men do,) rate themselves as the highest Value they can; yet their true Value is no more than it is esteemed by others.

The manifestation of the Value we set on one another, is that which is commonly called Honouring, and Dishonouring. To Value a man at a high rate, is to Honour him; at a low rate, is to Dishonour him. But high, and low, in this case, is to be understood by comparison to the rate that each man setteth on himselfe.

Dignity

The publique worth of a man, which is the Value set on him by the Common-wealth, is that which men commonly call DIGNITY. And this Value of him by the Common-wealth, is understood, by offices of Command, Judicature, publike Employment; or by Names and Titles, introduced for distinction of such Value.

To Honour and Dishonour

To pray to another, for ayde of any kind, is to HONOUR; because a signe we have an opinion he has power to help; and the more difficult the ayde is, the more is the Honour.

To obey, is to Honour; because no man obeyes them, whom they think have no power to help, or hurt them. And consequently to disobey, is to Dishonour.

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Opem poscere, Honorare est j quia Potentiam agnoscimus. wewr,

Obedire est Honorare j quia non paremus nisi illis qui postunt prodesle vel officere. Dona alicui dare Magna, est Honorare; quia Potentiae agnitio est, et desensionis quaedam emptio. Sed Parva dare, Inhonorare est; quia similis Eleemosynae est. Signisicatque, eum qui dat, illum existimare, cui datur, etiam parvis indigere. In promovendobono alieno sedulum esle, etiam adulari, Honorare est; quia Cgnum est quod protedione vel auxilio indigemus.

Loco cedere in re quacunque cupita, Honorare est j quia conseslio Potentiae majoris.

Amoris vel Metus indicia patesacere, Honorare est. In utroque enim est consessio Potentiae.

Laudare, Magnisicare, Beatum dicere, est Honorare j quia Bonitas, Potentia, et Sceiicitas maxime aestimantur. Contra,Convitiari, Irridere, Miserescere, Inhonorare est.

Quera alloquimur considerate, quem adimus decor8, humiliterque, Honoramtis; nam signa haec sunt nolentis displicere. Contra temere alloqui, etiam impudenter vel turpiter coram agere, Inhonorare est.

Credere, Fidere, Honorantis est j signum enim est Potentiam attribuentis.

Consilium alicujus, vel sermonem quemcunque auscultare, Honorantis est; signum enim est prudentiam, vel Ingenium vel Eloquentiam attribuentis. Interea dormire, exire, interloqui Contrarium.

Ea facere alicui quae pro signis honoris ipse accipit, vel ea quae Lex aut Consuetudo Honoris signa statuit, Honorantis est j quia Honorem ab aliis illi habitum consirmat, ggg 3 I»

In Opinionibus consentire, Honorantis est j ut Iudicium et Sapientiam ejus comprobantis. Diltentire, Contrarium est j utpoteerroris (vel si dislensio sit in multis rebus) Stultitiaeexprobratio.

Imitari, Honorantis est j ut quae est approbatio A?ehemens.

Honorare quos quis honorat, Honorare ipsum est j nempe Iudicii ejus approbatio.

Opera alicujus uti, in capiendo consilio, vel in rebus arduis, Hor.orantis est j ut Sapientiae, vel Potentiasejus agnitio.

Atque haec Honcris signa, tum in Civitatibus, tum extra, Naturalia sunt. In Civitatibus autem, ubi is vel ii qui habent Authoritatem signa Honoris constituendi quaecunque volunt, alii sunt Honorandi modi.

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To give great gifts to a man, is to Honour him; because ’tis buying of Protection, and acknowledging of Power. To give little gifts, is to Dishonour; because it is but Almes, and signifies an opinion of the need of small helps. To be sedulous in promoting anothers good; also to flatter, is to Honour; as a signe we seek his protection or ayde. To neglect, is to Dishonour.

To give way, or place to another, in any Commodity, is to Honour; being a confession of greater power. To arrogate, is to Dishonour.

To shew any signe of love, or feare of another, is to Honour; for both to love, and to feare, is to value. To contemne, or lesse to love or feare then he expects, is to Dishonour; for ’tis undervaluing.

To praise, magnifie, or call happy, is to Honour; because nothing but goodnesse, power, and felicity is valued. To revile, mock, or pitty, is to Dishonour.

To speak to another with consideration, to appear before him with decency, and humility, is to Honour him; as signes of fear to offend. To speak to him rashly, to do anything before him obscenely, slovenly, impudently, is to Dishonour.

To believe, to trust, to rely on another, is to Honour him; signe of opinion of his vertue and power. To distrust, or not believe, is to Dishonour.

To hearken to a mans counsell, or discourse of what kind soever, is to Honour; as a signe we think him wise, or eloquent, or witty. To sleep, or go forth, or talk the while, is to Dishonour.

To do those things to another, which he takes for signes of Honour, or which the Law or Custome makes so, is to Honour; because in approving the Honour done by others, he acknowledgeth the power which others acknowledge. To refuse to do them, is to Dishonour.

To agree with in opinion, is to Honour; as being a signe of approving his judgement, and wisdome. To dissent, is Dishonour; and an upbraiding of errour; and (if the dissent be in many things) of folly.

To imitate, is to Honour; for it is vehemently to approve. To imitate ones Enemy, is to Dishonour.

To honour those another honours, is to Honour him; as a signe of approbation of his judgement. To honour his Enemies, is to Dishonour him.

To employ in counsell, or in actions of difficulty, is to Honour; as a signe of opinion of his wisdome, or other power. To deny employment in the same cases, to those that seek it, is to Dishonour.

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Civitas Civem Honorat impertiendo Titulum, vel Provinciam, vel Negotium quodcunque, si illud Honoris signum esle constituerit. Mardcchxum Rex Persia tunc Honoravit, quandoper Vrbem Regio habitu circumduci illum juset a viro Principe proclamante, Jic set illi, qmm Rex Honore asjiciet. Contra, quod sieri jubet Civitas contumeliae causa, Contumelia est j ut quando idem Rex Persia cuidam qui rei alicujus bene gestae praemium petiit, veste Regia amictum incedere, quod rogavit con ~eslit, addendo quod vestem illam gereret ut Rcgis Scurra. Sons enim Honoris Civilis est Persona Civitatis, dependetque a voluntate ejus qui summam habet in Civitate Potestatem. Itaque Honor Civilis temporarius est, ut Magistratus, Ministerium publicum, Titulus; et aliquibus in locis Tuniae etc. Scuta pisia: qui autem his ornantur, Honorabiles sunt, atque habentes Grariae Publicae totidem signa. Gratia autem publica Potentia est.

Honorabile est, Posleslio, Actio, vel Qualitas quaecunque, si argumentum sit Potentiae.

Itaque Honorari, Amari, vel Metui a multis Honorabile est j ut Cgnum Potentiae.

Res prosperae (dum durant) Honerabileest; ut Cgnum savoris divini. Contra Adversitas, contemptibilis. Diviti2e sunt Honorabiles; sunt enim Cgnum Potentiae. Magnanimitas, Liberalitas, Spes, Fortitudo, Fiducia, Honorabiles sunt j oriuntur enim a Potentiae Conscientia.

Id quod faciendum est, oportune (id est nec nimis cito, nec sero) determinare, Hcncrabile estj quia natumacontemptudifficultatum et periculorum non magnorum.

Actiones omnes Sermonesque qui nascuntur vel videntur nasci a multa Experientia, Scientia, ludicio, vel Ingenio, Hot.orabiks sunt. Snnt enim Potentia?,

Gravi-

Gravitas, quatenus oritur vel videtur orta ab animo negotiis occupato Sonorabilis est j quia res gerere Potentia est. Sin procedat ab ipsius Gravitatis assectatione, Turpis est. Gravitas enim illa prior similis est tarditati Navis, quae bonarum mercium onere tarde procedit. Sed gravitas illa posterior similis est motui Navis sola onustae saburra, ne evertatux.

Clarum esle, id est multis cognitum esle, propter Opes, Actiones, vel Bonum quodcunque, Honorabitc est j ut Cgnum Potentiae propter quam cognoscitur.

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All these wayes of Honouring, are naturall; and as well within, as without Common-wealths. But in Common-wealths, where he, or they that have the supreme Authority, can make whatsoever they please, to stand for signes of Honour, there be other Honours.

A Soveraigne doth Honour a Subject, with whatsoever Title, or Office, or Employment, or Action, that he himselfe will have taken for a signe of his will to Honour him.

The King of Persia, Honoured Mordecay, when he appointed he should be conducted through the streets in the Kings Garment, upon one of the Kings Horses, with a Crown on his head, and a Prince before him, proclayming, "Thus shall it be done to him that the King will honour." And yet another King of Persia, or the same another time, to one that demanded for some great service, to weare one of the Kings robes, gave him leave so to do; but with his addition, that he should weare it as the Kings foole; and then it was Dishonour. So that of Civill Honour; such as are Magistracy, Offices, Titles; and in some places Coats, and Scutchions painted: and men Honour such as have them, as having so many signes of favour in the Common-wealth; which favour is Power.

Honourable is whatsoever possession, action, or quality, is an argument and signe of Power.

And therefore To be Honoured, loved, or feared of many, is Honourable; as arguments of Power. To be Honoured of few or none, Dishonourable.

Good fortune (if lasting,) Honourable; as a signe of the favour of God. Ill fortune, and losses, Dishonourable. Riches, are Honourable; for they are Power. Poverty, Dishonourable. Magnanimity, Liberality, Hope, Courage, Confidence, are Honourable; for they proceed from the conscience of Power. Pusillanimity, Parsimony, Fear, Diffidence, are Dishonourable.

Timely Resolution, or determination of what a man is to do, is Honourable; as being the contempt of small difficulties, and dangers. And Irresolution, Dishonourable; as a signe of too much valuing of little impediments, and little advantages: For when a man has weighed things as long as the time permits, and resolves not, the difference of weight is but little; and therefore if he resolve not, he overvalues little things, which is Pusillanimity.

All Actions, and Speeches, that proceed, or seem to proceed from much Experience, Science, Discretion, or Wit, are Honourable; For all these are Powers. Actions, or Words that proceed from Errour, Ignorance, or Folly, Dishonourable.

Gravity, as farre forth as it seems to proceed from a mind employed on some thing else, is Honourable; because employment is a signe of Power. But if it seem to proceed from a purpose to appear grave, it is Dishonourable. For the gravity of the Former, is like the steddinesse of a Ship laden with Merchandise; but of the later, like the steddinesse of a Ship ballasted with Sand, and other trash.

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Claris parentibus ortum esle, Honorabile est; quia hujusmodi homines auxilia, et amicos majorum suorum ad se facile transserunt.

Actiones quae oriuntur ab ^/Equitate, si cum damno siant, Honorabi'es sunt; ut signa Animi Magni.

Cupiditates Divitiarum tngentium, et Honorum magnorum, Honorabtles sunt; ut quae signa sunt potentiae, quam is videtur sibi ea adipiscendi poslidere. Cupiditas contra rerum exiguarum, Turpisest.

Quod ad Actionis Honorem attinet,modo actio magna et ardua sit, et proinde magnae Potentiae argumentum, utrum justa, an injusta sit, parum resert. Consistit enim Honor in solius Potentiae existimatione. Itaque Ethnici antiqui, qui Deos quos in versibus fuis Adulteria, Caedes, aliasque magnas quidem sed injustas vel immundas actiones commitisle faciunt, non illos (ut existimavere) dehonestabant, sed valde honorabant; et propterea nihil in Iove magis celebrabant quam ejus Adulteria, neque in Mercmio quam surta et fraudes 3 in cujus Iaudibus ab Howiero ponitur hoc, Nattu mane, die medio sasttts Cithanedm, Armentum Vhoebisur vespertinus abegit.

Antequam magnae extiterint Civitates, ignominia non erat, sed potius Honorisicum, et negotii genus legitimum, si quis terra vel mari praedo erat, utexhistoriisantiquis manisestum est, prassertim Graecis. Etiam hodie in hac nostra parte orbis terrarum, pugna singularis privatorum, quanquam illicita, Honorisica tamen elt, et erit, donec excogitatae fuerint leges, quarum virtute sieri potest, ut qui ad pugnam provocat, vilis, qui provocationi non respondet Honorandusvideatur. Quod qui sieri poslit non video. Nam promptitudo ad pugnam Fortitudinis signum femper est, quae in statu hominum narurali Virtus maxima, si non unica est; pugnam autem recusare rion natura sed Legibus Virtus sit, et Legibus Natura Fortior est.

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To be Conspicuous, that is to say, to be known, for Wealth, Office, great Actions, or any eminent Good, is Honourable; as a signe of the power for which he is conspicuous. On the contrary, Obscurity, is Dishonourable.

To be descended from conspicuous Parents, is Honourable; because they the more easily attain the aydes, and friends of their Ancestors. On the contrary, to be descended from obscure Parentage, is Dishonourable.

Actions proceeding from Equity, joyned with losse, are Honourable; as signes of Magnanimity: for Magnanimity is a signe of Power. On the contrary, Craft, Shifting, neglect of Equity, is Dishonourable.

Nor does it alter the case of Honour, whether an action (so it be great and difficult, and consequently a signe of much power,) be just or unjust: for Honour consisteth onely in the opinion of Power. Therefore the ancient Heathen did not thinke they Dishonoured, but greatly Honoured the Gods, when they introduced them in their Poems, committing Rapes, Thefts, and other great, but unjust, or unclean acts: In so much as nothing is so much celebrated in Jupiter, as his Adulteries; nor in Mercury, as his Frauds, and Thefts: of whose praises, in a hymne of Homer, the greatest is this, that being born in the morning, he had invented Musique at noon, and before night, stolen away the Cattell of Appollo, from his Herdsmen.

Also amongst men, till there were constituted great Common-wealths, it was thought no dishonour to be a Pyrate, or a High-way Theefe; but rather a lawfull Trade, not onely amongst the Greeks, but also amongst all other Nations; as is manifest by the Histories of antient time. And at this day, in this part of the world, private Duels are, and alwayes will be Honourable, though unlawfull, till such time as there shall be Honour ordained for them that refuse, and Ignominy for them that make the Challenge. For Duels also are many times effects of Courage; and the ground of Courage is alwayes Strength or Skill, which are Power; though for the most part they be effects of rash speaking, and of the fear of Dishonour, in one, or both the Combatants; who engaged by rashnesse, are driven into the Lists to avoyd disgrace.

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Tunicae et Scuta picta hasreditaria, ubi adjuncta habent Privile-

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Scutchions, and coats of Armes haereditary, where they have any eminent Priviledges, are Honourable; otherwise not: for their Power consisteth either in such Priviledges, or in Riches, or some such thing as is equally honoured in other men. This kind of Honour, commonly called Gentry, has been derived from the Antient Germans. For there never was any such thing known, where the German Customes were unknown. Nor is it now any where in use, where the Germans have not inhabited. The antient Greek Commanders, when they went to war, had their Shields painted with such Devises as they pleased; insomuch as an unpainted Buckler was a signe of Poverty, and of a common Souldier: but they transmitted not the Inheritance of them. The Romans transmitted the Marks of their Families: but they were the Images, not the Devises of their Ancestors. Amongst the people of Asia, Afrique, and America, there is not, nor was ever, any such thing. The Germans onely had that custome; from whom it has been derived into England, France, Spain, and Italy, when in great numbers they either ayded the Romans, or made their own Conquests in these Westerne parts of the world.

For Germany, being antiently, as all other Countries, in their beginnings, divided amongst an infinite number of little Lords, or Masters of Families, that continually had wars one with another; those Masters, or Lords, principally to the end they might, when they were Covered with Arms, be known by their followers; and partly for ornament, both painted their Armor, or their Scutchion, or Coat, with the picture of some Beast, or other thing; and also put some eminent and visible mark upon the Crest of their Helmets. And his ornament both of the Armes, and Crest, descended by inheritance to their Children; to the eldest pure, and to the rest with some note of diversity, such as the Old master, that is to say in Dutch, the Here-alt thought fit. But when many such Families, joyned together, made a greater Monarchy, this duty of the Herealt, to distinguish Scutchions, was made a private Office a part. And the issue of these Lords, is the great and antient Gentry; which for the most part bear living creatures, noted for courage, and rapine; or Castles, Battlements, Belts, Weapons, Bars, Palisadoes, and other notes of War; nothing being then in honour, but vertue military. Afterwards, not onely Kings, but popular Common-wealths, gave divers manners of Scutchions, to such as went forth to the War, or returned from it, for encouragement, or recompence to their service. All which, by an observing Reader, may be found in such ancient Histories, Greek and Latine, as make mention of the German Nation, and Manners, in their times.

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gia, Honorabilia sunt, absque illis non item. Potentiae enim Insignia talia consistunt in Privilegiis, vel in Divitiis, aliave re quae in caeteris hominibus aeque Honoratur. Genus hoc Honoris vulgd dicta Nobiutas geruis, ab antiquis Germanis videtur derivata. Res enim omnibus incognita est, nisi quibus cogniti sunt mores Germanorum. Neque usquam hodie in consiietudine sunt, ubi illi non aliquando habitaverunt. Graecorum veterum Duces ad bellum exeuntes scuta quidem picta, sed suo quisque arbitriogestare consueveruntj pauperis, et gregarii militis erat scutum purum. Sed ad filios non transierunt scuta ut pars haereditatis. Romanorum familiis Insignia quidem erant sua, quae ad posteros suos descenderunt } nec tamen scuta, sed Imagines Majorum suorum. In Asia, Asrica, et America tale nihil est. Proprium erat hoc Germanorum 5 a quibus in Angltam, Galliam, Wspaniam, et haliam manavit, quo tempore, magno numero, aut Romanis aut sibimet ipsis in his partibus mundi Occidentalibus militaverunt.

Gcrmania enim cum eslet antiquitiis (sicut caeterae gentes) divisa inter numerum ingentem Regulorum exiguorum, sive potius Patrum Magnarumsamiliarum, perpetuo inter se beilantium, Reguli illi maxime,ut cooperti Armis a militibus fuis dignoscerehtur^partira etiam ornamenti causa,Arma lua,aut Scuta,aut Tunicam Imagine ornabant alicujus Bestise, vel alius rei; etiam visibilem notam aiiquam cassidi imposuerunt, quae ornamenta sive Insignia Armorum ad filios suos de(cendebant; et quidem natu maximo, sicut erant a patre gestata, caeteris autem cum nota aliqua distinctionis, qualem Princeps familiae, (id est Germanice herah) constituebat. Sed quando hujusmodi familiae conjunctae fuerunt, ita ut magna jammonarchia facla esiet, officium hoc Principis familiae, Scuta sive Insignia constituendi, alii demandatum est, quem nunc appellant Heraldnm. Atque ex illorum Regulorum sobole orta est maxima Sc antiquissima, quae liunc est, in hac parte orbis Nobilitas. Gestant autem aut animalia, rapina et fortitudine nota, aut Castra, Valla, Tela, et ejusmodi notasbelli. Nihil enim illis temporibus in pretio tanto erat quantum Virtus Bellica. Postea autem non solum Reges, sed etiam Civitates populares exeuntibus in bellum vel a bello redeuntibus, provocandae vel remunerandae virtuds causa, Scuta diversimodo picta conceilerunt. Quoe omnia in Historiis antiquis, tum Graecis tum Latinis, ubi de Germanorum gente &.moribus verba faciunt, inveniri podunt.

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Titles of Honour

Titles of Honour, such as are Duke, Count, Marquis, and Baron, are Honourable; as signifying the value set upon them by the Soveraigne Power of the Common-wealth: Which Titles, were in old time titles of Office, and Command, derived some from the Romans, some from the Germans, and French. Dukes, in Latine Duces, being Generalls in War: Counts, Comites, such as bare the Generall company out of friendship; and were left to govern and defend places conquered, and pacified: Marquises, Marchiones, were Counts that governed the Marches, or bounds of the Empire. Which titles of Duke, Count, and Marquis, came into the Empire, about the time of Constantine the Great, from the customes of the German Militia. But Baron, seems to have been a Title of the Gaules, and signifies a Great man; such as were the Kings, or Princes men, whom they employed in war about their persons; and seems to be derived from Vir, to Ber, and Bar, that signified the same in the Language of the Gaules, that Vir in Latine; and thence to Bero, and Baro: so that such men were called Berones, and after Barones; and (in Spanish) Varones. But he that would know more particularly the originall of Titles of Honour, may find it, as I have done this, in Mr. Seldens most excellent Treatise of that subject. In processe of time these offices of Honour, by occasion of trouble, and for reasons of good and peacable government, were turned into meer Titles; serving for the most part, to distinguish the precedence, place, and order of subjects in the Common-wealth: and men were made Dukes, Counts, Marquises, and Barons of Places, wherein they had neither possession, nor command: and other Titles also, were devised to the same end.

Worthinesse Fitnesse

WORTHINESSE, is a thing different from the worth, or value of a man; and also from his merit, or desert; and consisteth in a particular power, or ability for that, whereof he is said to be worthy: which particular ability, is usually named FITNESSE, or Aptitude.

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Honoris Tituli,quales sunt Dttx, Ccmes, Marchio, Baro, Honorabiles sunt, ut qui sigmsicant quantum eos asstirnet is, vel illi, qui Civi- tatis summam habcnt Potestatem. Tituli autem illi fuerunt olim Ministerii publici, et derivati partim a Romanis, partim agermanis, et Gallis. Duces enim erant, qui Romanorum exercitus duxerunt; Comites, qui comitabantur Duces j quibus etiam loca capta et pacata, a redeuntibus Ducihus regenda et tutanda relinquebantur. Marchiones Comites erant, qui regebant Imperii limites. Atque Tituli Dux, Comes, Marchio, in Imperium Romanum introducti sunt, i consuetudine Militiae Germanicae, circa tempore Constantini Magni. At Baro, Gallorum Titulus videtur esle, signisicatque magnum hominem, vel Magnatem, quorum in negotiis bellicis opera maxime utebantur Reges. Deducta autem videtur vox a Latina Vtr> unde facilis estlapsus ad Ber, Scbar, qua3 Linguae Gallorum idem signisicabat quod Latine Vrr j inde facilis erat transitus ad Bero et Baro j et inde siebat Ciceroni vox Latina Berones, et postea Gallica Barones, Sc Hispanica Varones. Haec et alia multa de his scripta invenies a Iohanne Seldeno in libro de Titulis Honorvs* Progrediente tempore propter quorundam hominum Potentiam in Regno Angliae Reipublicae incommodam, cessantibus aut ablatis Titulatorum horum Potentiis, Tituli tandem in Divites, vel bene meritos ad nullam aliam rem collati sunt, quam ad distinguendos Civium ordines, sadtique lunt Duces, Comites, Marchiones, et Barones locorum, ubi nec imperiurn ullum, neque agros habuere.

Dignitas etiam accipitur aliquando pro Aptitudine j ut Dignus sit is Imperio vel Magistratu qui ldoneus est, id est qui qualitatibus illis maxime praeditus est,quae ad Imperium et Magistramm administrandum sunt neceslariae. Item Dignus divitiis, qui scit illis bene uti.

Dignus etiam dicitur unusquisque ejus rei quam meretur. Meritum autem Dignitas nunquam dicitur j nam distinguuntur eo quod Meritum praesupponit jus ex promislo j Dignitas non praesupponit jus.

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For he is Worthiest to be a Commander, to be a Judge, or to have any other charge, that is best fitted, with the qualities required to the well discharging of it; and Worthiest of Riches, that has the qualities most requisite for the well using of them: any of which qualities being absent, one may neverthelesse be a Worthy man, and valuable for some thing else. Again, a man may be Worthy of Riches, Office, and Employment, that neverthelesse, can plead no right to have it before another; and therefore cannot be said to merit or deserve it. For Merit, praesupposeth a right, and that the thing deserved is due by promise: Of which I shall say more hereafter, when I shall speak of Contracts.

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CAPVT XI — De Varietate Morum

CHAPTER XI — Of the Difference of Manners

Per Mores intelligo hoc loco, non comendi, vestiendi, salutandi ritus, aliaque Moralia Parva quae docentur pueri j sed humani generis qualitates illas, quibus Pax conservatur, et Civitatis status consirmatur.

Sciendum autem est, vitae prajsentis Scelicitatem non consistere in Leviat* h h h tran- jo De Homine. Cap. ir.

tranquillitate sive requie animi. J7»/aenim uhimm et Summum Bonum, de quibus loquuntur Ethici Veteres, locum in pra?sente vita nullum habenc. Neque is, cujus Cupiditates ad finem pervenerunt, vivere potest, magis quam i& cujus Sensus 3c Memoria perierunt. Toelicittu progreitus perpetuus est ab una Cupiditate ad alteram; et adeptio prioris Cupiti, ad adeptionem posterioris Via est. Causa hujus rei est, Quod Objectum Cupiditatis humanae, non est ut eo femel, et quasi ad momentum temporis fruatur homo, sed ut fruitionem suam securam in futurum reddat. Itaque Actiones voluntariae non solum eo rendunt, ut bonum procurent, sed etiam ut certum sibi in perpetuum faciant. Sed non eadem via omnium procedunt Actiones, propter diversorum hominum diversas passiones; partim etiaru propter disterentiam opinionum, quas habent diversi homines circa causas, a quibus res cupita sit producenda.

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CHAPTER XI — Of the Difference of Manners

CAPVT XI — De Varietate Morum

What Is Here Meant By Manners

By MANNERS, I mean not here, Decency of behaviour; as how one man should salute another, or how a man should wash his mouth, or pick his teeth before company, and such other points of the Small Morals; But those qualities of man-kind, that concern their living together in Peace, and Unity. To which end we are to consider, that the Felicity of this life, consisteth not in the repose of a mind satisfied. For there is no such Finis Ultimus, (utmost ayme,) nor Summum Bonum, (greatest good,) as is spoken of in the Books of the old Morall Philosophers. Nor can a man any more live, whose Desires are at an end, than he, whose Senses and Imaginations are at a stand. Felicity is a continuall progresse of the desire, from one object to another; the attaining of the former, being still but the way to the later. The cause whereof is, That the object of mans desire, is not to enjoy once onely, and for one instant of time; but to assure for ever, the way of his future desire. And therefore the voluntary actions, and inclinations of all men, tend, not only to the procuring, but also to the assuring of a contented life; and differ onely in the way: which ariseth partly from the diversity of passions, in divers men; and partly from the difference of the knowledge, or opinion each one has of the causes, which produce the effect desired.

A Restlesse Desire Of Power, In All Men

So that in the first place, I put for a generall inclination of all mankind, a perpetuall and restlesse desire of Power after power, that ceaseth onely in Death. And the cause of this, is not alwayes that a man hopes for a more intensive delight, than he has already attained to; or that he cannot be content with a moderate power: but because he cannot assure the power and means to live well, which he hath present, without the acquisition of more. And from hence it is, that Kings, whose power is greatest, turn their endeavours to the assuring it a home by Lawes, or abroad by Wars: and when that is done, there succeedeth a new desire; in some, of Fame from new Conquest; in others, of ease and sensuall pleasure; in others, of admiration, or being flattered for excellence in some art, or other ability of the mind.

Love Of Contention From Competition

Competition of Riches, Honour, command, or other power, enclineth to Contention, Enmity, and War: because the way of one Competitor, to the attaining of his desire, is to kill, subdue, supplant, or repell the other. Particularly, competition of praise, enclineth to a reverence of Antiquity. For men contend with the living, not with the dead; to these ascribing more than due, that they may obscure the glory of the other.

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Primo ergo locopono,Morem omnium hominumesie^utperpetasr atque indefinenter Potentiam unara post aliam per omnem vitam periequantur; non quod quis majorem sive intensiorem femper sperer, quam quajamsruitur, neque quod modica Potentia contentus esle non poistc 5 sed quod Potentiam, etc. bene vivendi facultates praesentes conservare non possit^nisi acquirendo plura. Atque hinc est,.quod Reges, quorum Potentia est maxima, ad eam, tum domi Legibus, tum Soris Armis tutandam se convertant. Jeiiam quando hoc quoque recte successit, Cupiditas oritur alia nova, aut Famae aut Voluptatum novarum.

Divitiarum, Honorum, Imperii,vel Potentiae cujuscunque Cupiditas disponit hominem ad Contentionem, Inimicitias, et Bellum $ competitorem enim intersicere, vincere, et quomodocunque repellere, competitori alteri ab obtinendum quod cupit, Via est.

Laudis-competitio venerationem producit antiquitatis. Nam qui vivunt, cum viventibus, non cum mortuis contendunt, et his plus justo tribuunt, ut ab illis demant.

Cupiditas Otii et Voluptacis disponit homines ad parendum Potentiae alicui communi; quia propter Cupiditates illas, homines Potentiam quam a siia ipsorura Industria sperare poterant, derelinquunt. Metus mortis violentae et vulnerum disponit ad idem, et propter causam eandem. Homines indigi iidemque fortes, nec scrte sua contenti; etiam Honoris militaris Ambitiosi disponuntur ad bella et seditiones excitandas, &adcausas eorumalendas; quia sinehis aiilitaris gloria nulla est.

Cupiditas Scientiarura, paciscjuc Artium, disponit ad parendum

Potea-

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Civil Obedience From Love Of Ease

Desire of Ease, and sensuall Delight, disposeth men to obey a common Power: because by such Desires, a man doth abandon the protection might be hoped for from his own Industry, and labour.

From Feare Of Death Or Wounds

Fear of Death, and Wounds, disposeth to the same; and for the same reason. On the contrary, needy men, and hardy, not contented with their present condition; as also, all men that are ambitious of Military command, are enclined to continue the causes of warre; and to stirre up trouble and sedition: for there is no honour Military but by warre; nor any such hope to mend an ill game, as by causing a new shuffle.

And From Love Of Arts

Desire of Knowledge, and Arts of Peace, enclineth men to obey a common Power: For such Desire, containeth a desire of leasure; and consequently protection from some other Power than their own.

Love Of Vertue, From Love Of Praise

Desire of Praise, disposeth to laudable actions, such as please them whose judgement they value; for of these men whom we contemn, we contemn also the Praises. Desire of Fame after death does the same. And though after death, there be no sense of the praise given us on Earth, as being joyes, that are either swallowed up in the unspeakable joyes of Heaven, or extinguished in the extreme torments of Hell: yet is not such Fame vain; because men have a present delight therein, from the foresight of it, and of the benefit that may rebound thereby to their posterity: which though they now see not, yet they imagine; and any thing that is pleasure in the sense, the same also is pleasure in the imagination.

Hate, From Difficulty Of Requiting Great Benefits

To have received from one, to whom we think our selves equall, greater benefits than there is hope to Requite, disposeth to counterfiet love; but really secret hatred; and puts a man into the estate of a desperate debtor, that in declining the sight of his creditor, tacitely wishes him there, where he might never see him more. For benefits oblige; and obligation is thraldome; which is to ones equall, hateful. But to have received benefits from one, whom we acknowledge our superiour, enclines to love; because the obligation is no new depession: and cheerfull acceptation, (which men call Gratitude,) is such an honour done to the obliger, as is taken generally for retribution. Also to receive benefits, though from an equall, or inferiour, as long as there is hope of requitall, disposeth to love: for in the intention of the receiver, the obligation is of ayd, and service mutuall; from whence proceedeth an Emulation of who shall exceed in benefiting; the most noble and profitable contention possible; wherein the victor is pleased with his victory, and the other revenged by confessing it.

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Cap. xi. T)e Hcmlne. j-i

Potentiae communi; continet cnira Cupiditatem Otii, quod sine Potentiae alienae protectione haberi non potest.

Amorlaudis dirponic ad Adliones laudabiles, quales placiturae iliis sunt, quorum ludicium magnisacimus; quorum autem personas eorum etiam Laudes Ipernimus. Cupido Famae post mortem, idem facit, Quanquam enim post mortem, Laudes hominum non sentimus, ut quae gaudia sunt, ab inessabilibus gaudiis absorpta, vel ab indicibilibus doloribus cxtincla; vana tamen non est, quia Fama praevisa per se placet, atque etiam insaper propter bonum ad posteritatem inde redundaturum. Nam etii hoc nesciant, imaginantur tamen 5 quod autem in sentiendo placet, placetetiam in imaginatione.

Majora a Paribus bona accepisle, quam speramus posle retribuere, disponit ad odium secretum, simulque amorem sictum; facitque hominem similem Debitoris, qui non est solvendo; nam talis prajsentiara creditoris odit, optatque ilium tacitus ibi este, ubi videri amplius non poslit. Benesicia enim obligant; obligatio autem, servitudo est $ et obligatio insolubiiis servitudo perpetua. Servire autem pari odiosum est. Benesicia autem accepta ab eo, quem agnoscimus superiorem, disponit ad amorem; quia obligatio hasc, depreslio nova non est: etiam acceptatio grata, quae obligantem femper obligat, habetur ubique pro retributione. Benesicia accepisle ab aequali vel etiam ab inseriore, dum spes est retribuendi, disponit ad amorem. Obligatio enim est boni mutui; unde oritur aliquando in Benesaciendo ts£mttlatio, et certamen omnium utihslimum et nobiltslimum, cum quis alterum benesaciendo superabit, ubi viclori sua placet vidioria, et viclo ipsum certasse ultio est.

Lassiile alium plus, quara potest aut vult reparare disponit eum qui laesit, ad odium lassi. Nam aut ultionem expedat vel Veniam, quarum utraque est odiosa.

Damni ab alio metus disponit ad anticipationem, vel ad parandos socios. Nam ut quis vitae et libertatis securus sit, via alia nulla est.

Qui ingeniis propriis dissidunt, melius disponuntur in seditionibus ad vidoriam, quam illi, qui se sapientes vel astutos esle putant. Nara hi consulere, illi (metuentes decipi) serire priores amant. Quia autem in seditionibus homines quasi in procindu praelii femper sunt, benc inter se consentire, et viribus quotiescunque poslunt uti, stratagema melius est, quam quod facile a subtilitate ingenii nasci potest.

Inanis Gloria, quae nulloinnixa fundamento, Virtutum alienarum, quasi suarumsidio mera est, quos poslidet, ad Ostentationem 7 non hhh 2 ad ad Aggreslionem urget; quia, cum ad vera pericula ventum est, nihil expectant, praeterquam ut vanitas ipsorum detegatur.

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And From Conscience Of Deserving To Be Hated

To have done more hurt to a man, than he can, or is willing to expiate, enclineth the doer to hate the sufferer. For he must expect revenge, or forgivenesse; both which are hatefull.

Promptnesse To Hurt, From Fear

Feare of oppression, disposeth a man to anticipate, or to seek ayd by society: for there is no other way by which a man can secure his life and liberty.

And From Distrust Of Their Own Wit

Men that distrust their own subtilty, are in tumult, and sedition, better disposed for victory, than they that suppose themselves wise, or crafty. For these love to consult, the other (fearing to be circumvented,) to strike first. And in sedition, men being alwayes in the procincts of Battell, to hold together, and use all advantages of force, is a better stratagem, than any that can proceed from subtilty of Wit.

Vain Undertaking From Vain-glory

Vain-glorious men, such as without being conscious to themselves of great sufficiency, delight in supposing themselves gallant men, are enclined onely to ostentation; but not to attempt: Because when danger or difficulty appears, they look for nothing but to have their insufficiency discovered.

Vain-glorious men, such as estimate their sufficiency by the flattery of other men, or the fortune of some precedent action, without assured ground of hope from the true knowledge of themselves, are enclined to rash engaging; and in the approach of danger, or difficulty, to retire if they can: because not seeing the way of safety, they will rather hazard their honour, which may be salved with an excuse; than their lives, for which no salve is sufficient.

Ambition, From Opinion Of Sufficiency

Men that have a strong opinion of their own wisdome in matter of government, are disposed to Ambition. Because without publique Employment in counsell or magistracy, the honour of their wisdome is lost. And therefore Eloquent speakers are enclined to Ambition; for Eloquence seemeth wisdome, both to themselves and others

Irresolution, From Too Great Valuing Of Small Matters

Pusillanimity disposeth men to Irresolution, and consequently to lose the occasions, and fittest opportunities of action. For after men have been in deliberation till the time of action approach, if it be not then manifest what is best to be done, tis a signe, the difference of Motives, the one way and the other, are not great: Therefore not to resolve then, is to lose the occasion by weighing of trifles; which is pusillanimity.

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Inanis Gloria, quae pro fundamento habet, vel adulationem aliorum, vel Actionem aliquam praecedentem prosperam quidem, sed fortuitam, eos quos poslidet, ad inceptum quidem acuit, in mediis autem perjculis deserit. Itaque pallent,tremunt,sugiuntque,vita», quae reparari non potest, prospicientes potius, quam honori, quem resarciri aliquo modo, mendacio forte, posle sperant.

Qui valde sibi videntur periti rerum politicarum, dispositi ad Ambitionem sunt. Quia hujusmodi peritiae, nisi in negotiis publicis, honor perit. Itaque Oratores eloquentes facile ambitiosi siunt $ nam Eloquentia, tum sibimet ipsis, tum aliis habetur pro Sapientia.

Pusillanimitas cundatorem facit, qui rerum gerundarum tempora plerumque perdit j quando enim deliberatum est, quantum permittit gerendae rei neceslitas, si quid factu optimum est, non appareat, certum est, non multum interesle, utrum hoc, an illo modo seceris 5 et per consequens rerum magnarum occasiones, pensitando nugas, amittuntur.

Frugalitas (quanquam in homine privato Virtus) illis quibus ea gerenda siint quae multorum hominum vires simul postulant, aptitudinem adimit. Conatum enim debilitat, qui nutriri et conservari Praemio debet.

Eloquentia, cum Blandiloquentia amicos acquirit quibus considatur j quia illa, ut Sapientia apparet, haec, ut Amor. illis si adjungatur existimatio militaris obedientiam acquirit. Nam qualitates illae duae priores contra periculum ab ipso, posterior contra periculum ab aliis Cautio est.

Ignoratio causarum disponit, vel potius cogit ad consilium sequendum, et Authoritatem aliorum. Omnes enim, quorum interest, veritatem scire, si propriis consiliis non acquiescant, aliorum, quos se Sapientiores esle putant, nec cur fallerent, vident, consilia sequuntur necestarib.

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Frugality,(though in poor men a Vertue,) maketh a man unapt to atchieve such actions, as require the strength of many men at once: For it weakeneth their Endeavour, which is to be nourished and kept in vigor by Reward.

Confidence In Others From Ignorance Of The Marks Of Wisdome and Kindnesse Eloquence, with flattery, disposeth men to confide in them that have it; because the former is seeming Wisdome, the later seeming Kindnesse. Adde to them Military reputation, and it disposeth men to adhaere, and subject themselves to those men that have them. The two former, having given them caution against danger from him; the later gives them caution against danger from others.

And From The Ignorance Of Naturall Causes

Want of Science, that is, Ignorance of causes, disposeth, or rather constraineth a man to rely on the advise, and authority of others. For all men whom the truth concernes, if they rely not on their own, must rely on the opinion of some other, whom they think wiser than themselves, and see not why he should deceive them.

And From Want Of Understanding

Ignorance of the signification of words; which is, want of understanding, disposeth men to take on trust, not onely the truth they know not; but also the errors; and which is more, the non-sense of them they trust: For neither Error, nor non-sense, can without a perfect understanding of words, be detected.

From the same it proceedeth, that men give different names, to one and the same thing, from the difference of their own passions: As they that approve a private opinion, call it Opinion; but they that mislike it, Haeresie: and yet haeresie signifies no more than private opinion; but has onely a greater tincture of choler.

From the same also it proceedeth, that men cannot distinguish, without study and great understanding, between one action of many men, and many actions of one multitude; as for example, between the one action of all the Senators of Rome in killing Catiline, and the many actions of a number of Senators in killing Caesar; and therefore are disposed to take for the action of the people, that which is a multitude of actions done by a multitude of men, led perhaps by the perswasion of one.

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Ignorare quid verba propriey?^/^»/, sive quod idem est non posle recte Intelligere, facit, ut veritatem et falsitatem, atque etiam verba nihil signisicantia ab aliena sumamus authoritate. Neque enim error, neque contradicl:io verborum sine persecto Intelleclu potest detegi.

Ab eadem causla proficiscitur, ut sine studio et intelledu claro, distingui non poslit inter unam actionem multorum hominum, et plures acliones unius multkudinis. Exempli caula, diilercntia magna est

Cap.ii. De Homine. jj

est intcr actionem Senatorum Romanorum omnium unam, cum intersicerent Cattlinam, et plures actiones Senatorum illorum, qui intersecerunt Cccsarem. Itaque qui parum intelligunt verba,pro Actione populi, saepenumero accipiunt Actiones quae siunt ab hominum multitudine, quanquam ab unius forte instigatione natas.

Ignoratio causarum et constitutionis primae luris, iequitatis, Legis, et Iustitiae facit, ut homines pro siiarum aclionum regula sequantur Consuetudinem, &Exempla temporis practeriti j putantque Injustum nihil aliudesse, quam quod puniri consiievitj justumque esle quod aliquando impune fuit, quasi pueri, qui boni et mali moris aliam regulam nullam habent, praeter Parentum et Magistrorum correctiones. Pueri taraen sua regula constanter femper usi sunt j homines autem adulti a consuetudine ad rationem, et rursiis a ratione ad consuetudinem, quoties volunt per contumaciam provocant, rationemque oppugnant, quoties ipsorum commoda oppugnat ratio. Doctrina ergo Iusti et Injusti perpetuo disputatur tum Scriptis tum Armisj dodrina autem Linearum, et Figurarum non disputaturj quare? Quia in dodrina hac, quaenam sit veritas (quia nullius ambitionem, lucrura, aut cupidinem impedit) pauci curant. Nam si Propositio haec Euclidis, 7res Anquli Trianguli xquakssmt d,uohus rettti, utilitati eorum, qui dominabantur contraria tuillet, non dubito quin illa, si non disputata, suppresla tamen fuislet.

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Adhaerence To Custome, From Ignorance Of The Nature Of Right And Wrong Ignorance of the causes, and originall constitution of Right, Equity, Law, and Justice, disposeth a man to make Custome and Example the rule of his actions; in such manner, as to think that Unjust which it hath been the custome to punish; and that Just, of the impunity and approbation whereof they can produce an Example, or (as the Lawyers which onely use the false measure of Justice barbarously call it) a Precedent; like little children, that have no other rule of good and evill manners, but the correction they receive from their Parents, and Masters; save that children are constant to their rule, whereas men are not so; because grown strong, and stubborn, they appeale from custome to reason, and from reason to custome, as it serves their turn; receding from custome when their interest requires it, and setting themselves against reason, as oft as reason is against them: Which is the cause, that the doctrine of Right and Wrong, is perpetually disputed, both by the Pen and the Sword: whereas the doctrine of Lines, and Figures, is not so; because men care not, in that subject what be truth, as a thing that crosses no mans ambition, profit, or lust. For I doubt not, but if it had been a thing contrary to any mans right of dominion, or to the interest of men that have dominion, That The Three Angles Of A Triangle Should Be Equall To Two Angles Of A Square; that doctrine should have been, if not disputed, yet by the burning of all books of Geometry, suppressed, as farre as he whom it concerned was able.

Adhaerence To Private Men, From Ignorance Of The Causes Of Peace Ignorance of remote causes, disposeth men to attribute all events, to the causes immediate, and Instrumentall: For these are all the causes they perceive. And hence it comes to passe, that in all places, men that are grieved with payments to the Publique, discharge their anger upon the Publicans, that is to say, Farmers, Collectors, and other Officers of the publique Revenue; and adhaere to such as find fault with the publike Government; and thereby, when they have engaged themselves beyond hope of justification, fall also upon the Supreme Authority, for feare of punishment, or shame of receiving pardon.

Credulity From Ignorance Of Nature

Ignorance of naturall causes disposeth a man to Credulity, so as to believe many times impossibilities: for such know nothing to the contrary, but that they may be true; being unable to detect the Impossibility. And Credulity, because men love to be hearkened unto in company, disposeth them to lying: so that Ignorance it selfe without Malice, is able to make a man bothe to believe lyes, and tell them; and sometimes also to invent them.

Curiosity To Know, From Care Of Future Time

Anxiety for the future time, disposeth men to enquire into the causes of things: because the knowledge of them, maketh men the better able to order the present to their best advantage.

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Ab Ignoratione Causarum remotarum, sit ut eventus omnes imputent homines Causis immediatis et instrumentalibus; causas enim aliasnullas vident. Itaque quandocunque onerantur aere Publico, iras exonerant in Publicanos, id est Conductores, Exadiores, alios' que redituum publicorum Ministros, iidemque reprehensoribus publici regiminis sese aggregant -, cumque crimini se immerserint, una cum illis Authoritatem ipsam Supremam oppugnant, vel metu supplicii, vel quia ignosci pudet.

Ignoratio Causarum Physicarum Credulitatem gignit, eo usque aliquando,uteacredantur, qussuntimpossibilia. Namquaesunt, et quae non sunt impossibilia, non omnes norunt. Credulitas autem, quia maxima pars hominum in congressibus auscultari sibi amar, Credulum mendacem plerumque facit: Itaque Ignorantia ipsa sine alia pravitate hominem non solum ad mendacia credenda, sed etiam ad narranda, et quandoque etiam ad excogitanda aptum reddit.

Futuri temporis Sollicitudo ad causarum investigationem homines adigit; quia causarum cognitio, rerum prsteritarum, rebus praesentibus lucem praeserre solet.

hhh 3 Causas s4 Dt Homme. Cap. i r.

Causas cognoscendi Amor hominem ab effectus consideratione ad quaerendam causam acuit, et rursus causam causae, et sic deinceps, donec ad cogitationem hanc veniatur, Causam aliquam esle asrernam, sive qua prior nulla «sle potuit. Adeo, ut, qui prosunde in rerum naturalium contemplationem se immerserit, impossibile sit quin inde disponatur ad credendum unum esle Deum et ieternum, quanquam ideam natura? divinae, animo concipere non poslit. Sicut enim homo, qui ccecus natus est, etsi audierit dicentes alios, se ad ignem calesieri, ducaturquead eundem ignem, ut et ipse calesiat; facile cognoscet, esle aliquid eo loco, a quo ipsecalesit, quemquehomines Ignem vocant; cuiautem rei similissit, imaginari, aut Ideam ignis, qualem videntes saabent, habere non potest. Ita homo, a contemplatione ordinis rerum visibilium, earundem causam aliquara esle, quera Deum appellant certus est, nec tamen Imaginem, aut Phantasma ejus inde aliquod animo concipere potest.

Etiam, qui de rerum naturalium causis, parum aut nihil solliciti sunt, illis tamen metus quidam inest, ortus ab eo ipso, quod an sit potentia aliqua necne, qua juvari aut laedi poslunt, ignorant; atque ab eo metu proclives sunt ad Suppositionem etc. Fidionem variarum Potentiarum invisibilium, metuuntque sua ipsorum Phantasmata, invocantque in rebus adversis, laudantque in prosperis, et faciunt denique Deos. Atque inde fact:um est, ut homines a Phantasmatibus siiis innumerabilibus, innumerabiles creaverint sibi Deos. Metus autem hic invisibilium Semen est ejus, quam quisque in seipso Retigionem, in illis autem, qui div.erse metuunt, coluntque Superjlitionem.

Religionis Semen hoc, cum ia pluribus animadversum fuerit, a quibusdam cultum, Sc in Leges formatum est, opinionelque de causis rerum futurarum variae adinventa; sunt, quibus putabant, optimi sieri posle, ut alii servire sibi inducerentur.

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Naturall Religion, From The Same

Curiosity, or love of the knowledge of causes, draws a man from consideration of the effect, to seek the cause; and again, the cause of that cause; till of necessity he must come to this thought at last, that there is some cause, whereof there is no former cause, but is eternall; which is it men call God. So that it is impossible to make any profound enquiry into naturall causes, without being enclined thereby to believe there is one God Eternall; though they cannot have any Idea of him in their mind, answerable to his nature. For as a man that is born blind, hearing men talk of warming themselves by the fire, and being brought to warm himself by the same, may easily conceive, and assure himselfe, there is somewhat there, which men call Fire, and is the cause of the heat he feeles; but cannot imagine what it is like; nor have an Idea of it in his mind, such as they have that see it: so also, by the visible things of this world, and their admirable order, a man may conceive there is a cause of them, which men call God; and yet not have an Idea, or Image of him in his mind.

And they that make little, or no enquiry into the naturall causes of things, yet from the feare that proceeds from the ignorance it selfe, of what it is that hath the power to do them much good or harm, are enclined to suppose, and feign unto themselves, severall kinds of Powers Invisible; and to stand in awe of their own imaginations; and in time of distresse to invoke them; as also in the time of an expected good successe, to give them thanks; making the creatures of their own fancy, their Gods. By which means it hath come to passe, that from the innumerable variety of Fancy, men have created in the world innumerable sorts of Gods. And this Feare of things invisible, is the naturall Seed of that, which every one in himself calleth Religion; and in them that worship, or feare that Power otherwise than they do, Superstition.

And this seed of Religion, having been observed by many; some of those that have observed it, have been enclined thereby to nourish, dresse, and forme it into Lawes; and to adde to it of their own invention, any opinion of the causes of future events, by which they thought they should best be able to govern others, and make unto themselves the greatest use of their Powers.

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LATINE · 1668

CAPVT XII — De Religione

CHAPTER XII — Of Religion

Cvm neque signum neque fructus Religionis nisi in solo homine animadversum sit, non est dubitandum, quin Religionis Semen in homine solo sit, consistatque in aliqua qualitate (aut saltem in aliquo ejus graduj homini propria. Prirao autem nature, humana? proprium est, Causas investigare even- eventuum quos vident, alii magis, alii minus, sed omnes, quatenus poilunt causas investigant propnas fortunae iive bonas iive mala?.

Secundo, homines omnes, ii alicujus rei Principium viderint, concludunt statim, eandem rem Causam habuisle, quae essecit, ut inciperet eo tempore potius quam alio.

Tertio, quia brutorum animantium scelicitas in fruitione consistit voluptatum seniualium, ut quas propter tarditatem ingenii coniequentiarum dependentiarumque ordinem non observant; Homoautem, quae causa, quem esseclum producit animadverrit, et quae res anteceslit, et quae consecuta est, memoria tenet; etiam quando causarura verarum inscius est, causas supponet, quas ipse imaginatur, velsuggeruntalii, quos seipso Sapientiores eile arbitratur.

Ab his Naturae humanas proprietatibus nascitur Anxietas. Rerum enim omnium qua; haclrenus contigerunt, aut postea contingent, cauias eile Homines certo sciunt, conantibusque mala quae metuunt arcere, et bona quae cupiunt procurare, temporis futuri sollicitudinem perpetuam evitare impossibile est. Vnuiquisque ergo, maxime ver6 is qui in futurum tempus maxime proipicit, similem Prometheo vitam agit. Nam ut Prometheus (id est, Providentijtexceilens) monti Caucaso (unde satis longe prospicere erat) assixus, quotidie cor devorandum Acuriiae praebuit, ita ut quantum nochbus reficiebatur, tantundem interdiu consumeretur; ira Cor hominis in longitudinena nimiam prospicientis, a metu Mortis, velegestatis, vel calamitatum, vel curis aliis mordacibus Gne intermissione, praeterquaro. in somno, roditui:.

Metus'hic perpetuus, qusgenus humannm \w causarum ignorantia, quaii in tenebris comitatur, Objed:um habet neceitario aiiquod; Quia ergo fortunarum suarum causam aliam homines non vident, nihil est quodaccusare poilunt, praeter Sotentiam aliquam, et Aoentem invisibilem. Atquehinc fortaste erat, quod veteraropoetarum aliquis, Deos primos a Timore satlos ejse dixerint. Id quod de Diis (id est,demultisethnicorumdiis) verum est. Agnitiovero Vmci, *A5,ttrni, Jnsinui, Omnipotentis Dei ab investigatione causarum, Virtutum operatioruimque corporum naturalium, quam a Cura sucuri temporis, facilius derivari potuit. Nam qui ab Essecra quocunque quem viderit, ad Causamejus proximam ratiocinaretur, et inde ad illius Causae Causam proximam procederet, etc. in Causarum deinceps ordinem prosunde ie immergeret, inveniret tandem (cum veterum Philoibpborum sanioribus) unicura este primum Motorum, id est, uniciuu

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CHAPTER XII — Of Religion

CAPVT XII — De Religione

Religion, In Man Onely

Seeing there are no signes, nor fruit of Religion, but in Man onely; there is no cause to doubt, but that the seed of Religion, is also onely in Man; and consisteth in some peculiar quality, or at least in some eminent degree thereof, not to be found in other Living creatures.

First, From His Desire Of Knowing Causes

And first, it is peculiar to the nature of Man, to be inquisitive into the Causes of the Events they see, some more, some lesse; but all men so much, as to be curious in the search of the causes of their own good and evill fortune.

From The Consideration Of The Beginning Of Things

Secondly, upon the sight of any thing that hath a Beginning, to think also it had a cause, which determined the same to begin, then when it did, rather than sooner or later.

From His Observation Of The Sequell Of Things

Thirdly, whereas there is no other Felicity of Beasts, but the enjoying of their quotidian Food, Ease, and Lusts; as having little, or no foresight of the time to come, for want of observation, and memory of the order, consequence, and dependance of the things they see; Man observeth how one Event hath been produced by another; and remembreth in them Antecedence and Consequence; And when he cannot assure himselfe of the true causes of things, (for the causes of good and evill fortune for the most part are invisible,) he supposes causes of them, either such as his own fancy suggesteth; or trusteth to the Authority of other men, such as he thinks to be his friends, and wiser than himselfe.

The Naturall Cause Of Religion, The Anxiety Of The Time To Come The two first, make Anxiety. For being assured that there be causes of all things that have arrived hitherto, or shall arrive hereafter; it is impossible for a man, who continually endeavoureth to secure himselfe against the evill he feares, and procure the good he desireth, not to be in a perpetuall solicitude of the time to come; So that every man, especially those that are over provident, are in an estate like to that of Prometheus. For as Prometheus, (which interpreted, is, The Prudent Man,) was bound to the hill Caucasus, a place of large prospect, where, an Eagle feeding on his liver, devoured in the day, as much as was repayred in the night: So that man, which looks too far before him, in the care of future time, hath his heart all the day long, gnawed on by feare of death, poverty, or other calamity; and has no repose, nor pause of his anxiety, but in sleep.

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$6 De Hornine. Cap. 12, unicam et aeternam Rerum omnium Causam, quam appellant omnes Deum; atque hoc sine omni fortunarum suarum cogitatione, quarum sollicitudo et Metum gignit, et ab inquisitione Causarum naturalium Animum avertit, slmulque tot Deorum singendorum occasionem prasbet, quot sunt sere, qui eos singunt.

Quod ad Deorum materiam sive lubstantiam attinet, cogitare aliam vix potuere quam qualem putaverunt esse substantiam Animas humanas. Animae autem humanae substantiam talem esle arbitrati sunt, qualis est Hominis, vel aliorum Corporum, in somnio vel speculo apparentium species; quam nihil e(Te aliud praeter Phantalma nescientes, substantiara realem este crediderunt, sed tenuem, et propterea eam Spiritum vocabant. Sunt autem Spiritm Corpora tenuissima. Tales fuere Ethnicorum Agentes invisibiles, nimirum Dii et Da;mones; sed quia raodo apparere, modo evanescere solebant, more Phantasmatum, spedra etc. Vmbras, quam Spiritus et substantias nominare maluerunt. Corpora tamen eslc putabant. Quod autem res eadem et Spiritus sit et Incorporea intelligi non potest. Spiritus enim loco et figura, id est Terminis et magnitudine sua aliqul determinatur; et proinde Corpus est, utcunque tenue et insensile. Illi igitur qui meditatione propria in cognitionem venerunt unius Insiniti, Omnipotentis et ^Eterni Dei, maluerunt illum supra intellectum nostrum Incomprehensibilemque esle consiteri, quam Naturam ejus per Spiritum Incorporeum (praeter Scripturae authoritatem) definire, et deinde consiteri Definitionem illam non esle intelligibilem: Sed Deum esle Spiritum Incorporeum dixerunt fortasle non Dograatice, ut Naturam Divinam per ea verba comprehenderenc, sed ex intentione pia Deum Attributo aliquo honorandi, quod Corporum visibilium craslitudinem omnem a Deo removerent.

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Which Makes Them Fear The Power Of Invisible Things

This perpetuall feare, alwayes accompanying mankind in the ignorance of causes, as it were in the Dark, must needs have for object something. And therefore when there is nothing to be seen, there is nothing to accuse, either of their good, or evill fortune, but some Power, or Agent Invisible: In which sense perhaps it was, that some of the old Poets said, that the Gods were at first created by humane Feare: which spoken of the Gods, (that is to say, of the many Gods of the Gentiles) is very true. But the acknowledging of one God Eternall, Infinite, and Omnipotent, may more easily be derived, from the desire men have to know the causes of naturall bodies, and their severall vertues, and operations; than from the feare of what was to befall them in time to come. For he that from any effect hee seeth come to passe, should reason to the next and immediate cause thereof, and from thence to the cause of that cause, and plonge himselfe profoundly in the pursuit of causes; shall at last come to this, that there must be (as even the Heathen Philosophers confessed) one First Mover; that is, a First, and an Eternall cause of all things; which is that which men mean by the name of God: And all this without thought of their fortune; the solicitude whereof, both enclines to fear, and hinders them from the search of the causes of other things; and thereby gives occasion of feigning of as many Gods, as there be men that feigne them.

And Suppose Them Incorporeall

And for the matter, or substance of the Invisible Agents, so fancyed; they could not by naturall cogitation, fall upon any other conceipt, but that it was the same with that of the Soule of man; and that the Soule of man, was of the same substance, with that which appeareth in a Dream, to one that sleepeth; or in a Looking-glasse, to one that is awake; which, men not knowing that such apparitions are nothing else but creatures of the Fancy, think to be reall, and externall Substances; and therefore call them Ghosts; as the Latines called them Imagines, and Umbrae; and thought them Spirits, that is, thin aereall bodies; and those Invisible Agents, which they feared, to bee like them; save that they appear, and vanish when they please. But the opinion that such Spirits were Incorporeall, or Immateriall, could never enter into the mind of any man by nature; because, though men may put together words of contradictory signification, as Spirit, and Incorporeall; yet they can never have the imagination of any thing answering to them: And therefore, men that by their own meditation, arrive to the acknowledgement of one Infinite, Omnipotent, and Eternall God, choose rather to confesse he is Incomprehensible, and above their understanding; than to define his Nature By Spirit Incorporeall, and then Confesse their definition to be unintelligible: or if they give him such a title, it is not Dogmatically, with intention to make the Divine Nature understood; but Piously, to honour him with attributes, of significations, as remote as they can from the grossenesse of Bodies Visible.

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Deinde, qua via Invisibilia illa Agentia essedus suos produxerunt, id est, quibus causis secundis utebantur, ii qui quid sit Causam ejse nesciunt (id est, raaxima pars Hominura) penitus ignorabant; neque aliter conjicere potuerunt, quam ex observatione et memoria ordinis, quo terapore praeterito una res aliarn antecessit vel consequuta est, quanquam nullam inter Antecedentia et subsequentia connexionem viderint. Itaque a similibus pra;teritis similia expedabant futura, sperabantque bonam, aut malara fortunara ab illis rebus quas nihil omnino speratis contribuebant. Sic Athenienses propter res ad Naupadum a Phormione contra Laceda;monios bene gestas, illo mortuo, alium elegerunt Phormionem. Item Romani propter res in Asrica^ contra Annibalem sceliciter gestas a Scipione, in eadera

Asri.cs

Asricl Imperatorem elegerunt contra Caesarem alium Scipionem, ambo insoeliciter. Idem aliis locis et temporibus factitatum est. Fortunam suam alii (post duos vel tres callis similes) personae alicui astanti, vel fortunato insortunatove loco tribuerunt. Alii verbis quibusdam prolatis, quas Incantationes vocant, tantam virtutem ascribunt, ut Panem in Hominem, Quidlibet in Quodhbet mutari polle putent.

Tertio, Cultus qui Potentiis invisibilibus, didante sold Naturl, exhiberi potest, alius non est quam quo homines siiperiores suos colere cons ueverunt; nempe signa Honoris et Reverentiae, ut Dona, Preces, Gratiae, Submissio, Alloquia et Gestus decori, et hujusmodi alia. Nam Sacrisicia cruenta didamen Naturae non sunt, ut quae ab initio ad Sacrisicatores alendos a Civitatibus instituta erant. Neque Cultus naturalis videtur este Iusjuyandum, quia extra statum Civilem Iuramento non est locus. Ratio naturaliscultus aliosquara quos dixi non saggerit, sed quicquid, ultra est, Legibus relinquit singularum Civitatum.

Postremo, Quod ad modum attinet, quo Agentiahaecinvisibilia hominibus praetenta, futura, prospera et adversa indicant Natura nihil dictat. Itaque hitura ex praeteritis conjicientes, simile ejus quod Esledum aliquem aliquoties antevertit, pro prognosticohabent,Essediis similis sequuturi.

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But Know Not The Way How They Effect Anything

Then, for the way by which they think these Invisible Agents wrought their effects; that is to say, what immediate causes they used, in bringing things to passe, men that know not what it is that we call Causing, (that is, almost all men) have no other rule to guesse by, but by observing, and remembring what they have seen to precede the like effect at some other time, or times before, without seeing between the antecedent and subsequent Event, any dependance or connexion at all: And therefore from the like things past, they expect the like things to come; and hope for good or evill luck, superstitiously, from things that have no part at all in the causing of it: As the Athenians did for their war at Lepanto, demand another Phormio; the Pompeian faction for their warre in Afrique, another Scipio; and others have done in divers other occasions since. In like manner they attribute their fortune to a stander by, to a lucky or unlucky place, to words spoken, especially if the name of God be amongst them; as Charming, and Conjuring (the Leiturgy of Witches;) insomuch as to believe, they have power to turn a stone into bread, bread into a man, or any thing, into any thing.

But Honour Them As They Honour Men

Thirdly, for the worship which naturally men exhibite to Powers invisible, it can be no other, but such expressions of their reverence, as they would use towards men; Gifts, Petitions, Thanks, Submission of Body, Considerate Addresses, sober Behaviour, premeditated Words, Swearing (that is, assuring one another of their promises,) by invoking them. Beyond that reason suggesteth nothing; but leaves them either to rest there; or for further ceremonies, to rely on those they believe to be wiser than themselves.

And Attribute To Them All Extraordinary Events

Lastly, concerning how these Invisible Powers declare to men the things which shall hereafter come to passe, especially concerning their good or evill fortune in generall, or good or ill successe in any particular undertaking, men are naturally at a stand; save that using to conjecture of the time to come, by the time past, they are very apt, not onely to take casuall things, after one or two encounters, for Prognostiques of the like encounter ever after, but also to believe the like Prognostiques from other men, of whom they have once conceived a good opinion.

Foure Things, Naturall Seeds Of Religion

And in these foure things, Opinion of Ghosts, Ignorance of second causes, Devotion towards what men fear, and Taking of things Casuall for Prognostiques, consisteth the Naturall seed of Religion; which by reason of the different Fancies, Judgements, and Passions of severall men, hath grown up into ceremonies so different, that those which are used by one man, are for the most part ridiculous to another.

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In his autem quatuor rebus, Metu Spirituum, Ignorantial Causarum secundarum, Cultu eorum quae timent, et sumptione fortuitorum pro prognostieis, eonsistit Religionis seraen naturale, quod per hominum Phantasias, Iudicia, Passiones et Consilia diversa, adeo diversas produxit ceremonias, utquaelege in unacivitate comprobantur, in alia derideantur.

Semina autem haec a duobus Hominum generibus culturam nacta sunt. Priraum genus est eorum, qui secundum suas ipsorum phantasias, Religionum authores extiterunt. Alterum, eorum, quibus ab ipso Deo, praecepta et praescripta Religio fuit. Vtrorumque autem consilium erat initiatos suos sibi reddere obedientiores. lllorum Religio pars Politicae, Horum Politica pars Religionis est, et Praecepta continet, qualia illis conveniunt qui in Civitatem Dei admittuntur. Illorum Religiones a Legislatoribus Gentium, Horum Religio ab Ahahamo^ Mose, et Iesu Chrtsto, qui Regni Caslorum Leges nos docuerunt, institutaest.

Quod ad Agentium invisibilium nomina attinet, nihil est, si modo nomen habeat quod ab Ethnicis aliquibus pro Deo aut Daemone ha-

Levlt, i i i bitum

5§ De Romint. Cap. 12» bitum non sit; neque res aut locus quem non ab aliquo Spiritu animatum, habitatum, sive occupatum sinxerintaliqui.

Mundi materia insormis Deus habebatur, didlus Chaos. Ccelura, Terra, Oceanus, Planetae, Ignis, Venti totidem Dii.

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Made Different By Culture

For these seeds have received culture from two sorts of men. One sort have been they, that have nourished, and ordered them, according to their own invention. The other, have done it, by Gods commandement, and direction: but both sorts have done it, with a purpose to make those men that relyed on them, the more apt to Obedience, Lawes, Peace, Charity, and civill Society. So that the Religion of the former sort, is a part of humane Politiques; and teacheth part of the duty which Earthly Kings require of their Subjects. And the Religion of the later sort is Divine Politiques; and containeth Precepts to those that have yeelded themselves subjects in the Kingdome of God. Of the former sort, were all the Founders of Common-wealths, and the Law-givers of the Gentiles: Of the later sort, were Abraham, Moses, and our Blessed Saviour; by whom have been derived unto us the Lawes of the Kingdome of God.

The Absurd Opinion Of Gentilisme

And for that part of Religion, which consisteth in opinions concerning the nature of Powers Invisible, there is almost nothing that has a name, that has not been esteemed amongst the Gentiles, in one place or another, a God, or Divell; or by their Poets feigned to be inanimated, inhabited, or possessed by some Spirit or other.

The unformed matter of the World, was a God, by the name of Chaos.

The Heaven, the Ocean, the Planets, the Fire, the Earth, the Winds, were so many Gods.

Men, Women, a Bird, a Crocodile, a Calf, a Dogge, a Snake, an Onion, a Leeke, Deified. Besides, that they filled almost all places, with spirits called Daemons; the plains, with Pan, and Panises, or Satyres; the Woods, with Fawnes, and Nymphs; the Sea, with Tritons, and other Nymphs; every River, and Fountayn, with a Ghost of his name, and with Nymphs; every house, with it Lares, or Familiars; every man, with his Genius; Hell, with Ghosts, and spirituall Officers, as Charon, Cerberus, and the Furies; and in the night time, all places with Larvae, Lemures, Ghosts of men deceased, and a whole kingdome of Fayries, and Bugbears. They have also ascribed Divinity, and built Temples to meer Accidents, and Qualities; such as are Time, Night, Day, Peace, Concord, Love, Contention, Vertue, Honour, Health, Rust, Fever, and the like; which when they prayed for, or against, they prayed to, as if there were Ghosts of those names hanging over their heads, and letting fall, or withholding that Good, or Evill, for, or against which they prayed. They invoked also their own Wit, by the name of Muses; their own Ignorance, by the name of Fortune; their own Lust, by the name of Cupid; their own Rage, by the name Furies; their own privy members by the name of Priapus; and attributed their pollutions, to Incubi, and Succubae: insomuch as there was nothing, which a Poet could introduce as a person in his Poem, which they did not make either a God, or a Divel.

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Viri, Saeminae, Aves, Crocodilus, Vitulus, Canis, Anguis, Porrum, Cajpe, deisicata. Omniasere loca Daemonibus plena erant j Campestria Panibus Sc Paniscis; Silvas Faunis et Nymphis. Omnis Sluvius $c Sons Daemonem habebat cognomen; Vnaquaeque Domus suum Larem; Vnusquisque Homo siium Genium. Plenum erat Dasmonibus Insernum; Larvae, Lemures, Vmbrae mortuorum omnibus sere locis. Etiam Accidentibus divinitatem attnbuerunt, templa aedisicarunt, uttempori, Diei, Nocti, Paci, Concordiae, Amori, Contentioni, Victoriae, Virtuti, Honori, Sanitati, Rubigini, Sebri j quae cum optarent aut metuerent, invocabant, quasi impendentes capitibus Deos. Etiam Ingenia propria invocabant nomine Musarum; Ignorantiam propriam nomine Fortunae; Luxuriam propriam nomine Cupidinis; Irampropriam nomine Suriarum; Puaenda propria nomine Priapi; proprias denique Pollutiones Incubis et Succubis imputaverunt. Adeo ut nihil esiet de quo ut de personapoeta loqui potuit, quod ab illis aut Deus aut Dasmon non crederetur.

Iidem Religionis Gentium authores, cum Religionis fundamentum animadvertislent esle Causarum ignorationem, <k inde innatum hominibus morem fortunassuas Caulis adscribendi, nihil ad Effectum attinentibus, obtrudere ignorantibus ausi sunt pro Causis secundis secundos quosham et ministrantes Deos, Saecunditatem Veneri, Artes Apollini, Ingenium Mercurio, Ventos Jeolo, aliosque Effectus Diis aliis ascribentes. Adeo ut quot sunt rerum agendarum genera, tot sere veteres Etbnici habuere Deos.

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The same authors of the Religion of the Gentiles, observing the second ground for Religion, which is mens Ignorance of causes; and thereby their aptnesse to attribute their fortune to causes, on which there was no dependence at all apparent, took occasion to obtrude on their ignorance, in stead of second causes, a kind of second and ministeriall Gods; ascribing the cause of Foecundity, to Venus; the cause of Arts, to Apollo; of Subtilty and Craft, to Mercury; of Tempests and stormes, to Aeolus; and of other effects, to other Gods: insomuch as there was amongst the Heathen almost as great variety of Gods, as of businesse.

And to the Worship, which naturally men conceived fit to bee used towards their Gods, namely Oblations, Prayers, Thanks, and the rest formerly named; the same Legislators of the Gentiles have added their Images, both in Picture, and Sculpture; that the more ignorant sort, (that is to say, the most part, or generality of the people,) thinking the Gods for whose representation they were made, were really included, and as it were housed within them, might so much the more stand in feare of them: And endowed them with lands, and houses, and officers, and revenues, set apart from all other humane uses; that is, consecrated, and made holy to those their Idols; as Caverns, Groves, Woods, Mountains, and whole Ilands; and have attributed to them, not onely the shapes, some of Men, some of Beasts, some of Monsters; but also the Faculties, and Passions of men and beasts; as Sense, Speech, Sex, Lust, Generation, (and this not onely by mixing one with another, to propagate the kind of Gods; but also by mixing with men, and women, to beget mongrill Gods, and but inmates of Heaven, as Bacchus, Hercules, and others;) besides, Anger, Revenge, and other passions of living creatures, and the actions proceeding from them, as Fraud, Theft, Adultery, Sodomie, and any vice that may be taken for an effect of Power, or a cause of Pleasure; and all such Vices, as amongst men are taken to be against Law, rather than against Honour.

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Etiamad Cultumdivinum quem Natura dictat, nempe Oblationes, Preces, Gratiarum acliones, caeterasque antedictas iidem authores Imaginum tum pictarum et sculptarum, tum susarum adora,tiones addidere, eo sine ut Populus, id est Jgnorantium multitudo Deos ipsos in istis Imaginibus habitare existimaret, etc. Agris, Templis, Reditibus etc. Sacerdotibus donaret; quae omnia Sacra habebantur, id est, solius Sacerdotis commodo destinata, ut Cavernae, Luci, Sylvae, Montes, Insulae integrae quae illis consecratae erant. Diis aiuem istis non modo varias formas ut Hominum, Bestiarum, Monstrorum, sed etiam omne genus Passionum et Facultatum carnalium, ut Sexum, Scrmonem, Cupidinem, Generationem (genera- tionem non modo mixtione inter se Deorum, unde Dii, /ed etiara mixtione Deorum cum Hominibus, unde Hybridae orti, ut Hercules etc. Bacchus) attribuerunt. Etiam eosdem Deos Adulceros, Fraudulentos, Sures, omnibuscjue aliis vitiis conspurcatos faciebant, natis a Potentia, et quae Leges humanas, potius quam honorem videnturviolare.

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Lastly, to the Prognostiques of time to come; which are naturally, but Conjectures upon the Experience of time past; and supernaturall, divine Revelation; the same authors of the Religion of the Gentiles, partly upon pretended Experience, partly upon pretended Revelation, have added innumerable other superstitious wayes of Divination; and made men believe they should find their fortunes, sometimes in the ambiguous or senslesse answers of the priests at Delphi, Delos, Ammon, and other famous Oracles; which answers, were made ambiguous by designe, to own the event both wayes; or absurd by the intoxicating vapour of the place, which is very frequent in sulphurous Cavernes: Sometimes in the leaves of the Sibills; of whose Prophecyes (like those perhaps of Nostradamus; for the fragments now extant seem to be the invention of later times) there were some books in reputation in the time of the Roman Republique: Sometimes in the insignificant Speeches of Mad-men, supposed to be possessed with a divine Spirit; which Possession they called Enthusiasme; and these kinds of foretelling events, were accounted Theomancy, or Prophecy; Sometimes in the aspect of the Starres at their Nativity; which was called Horoscopy, and esteemed a part of judiciary Astrology: Sometimes in their own hopes and feares, called Thumomancy, or Presage: Sometimes in the Prediction of Witches, that pretended conference with the dead; which is called Necromancy, Conjuring, and Witchcraft; and is but juggling and confederate knavery: Sometimes in the Casuall flight, or feeding of birds; called Augury: Sometimes in the Entrayles of a sacrificed beast; which was Aruspicina: Sometimes in Dreams: Sometimes in Croaking of Ravens, or chattering of Birds: Sometimes in the Lineaments of the face; which was called Metoposcopy; or by Palmistry in the lines of the hand; in casuall words, called Omina: Sometimes in Monsters, or unusuall accidents; as Ecclipses, Comets, rare Meteors, Earthquakes, Inundations, uncouth Births, and the like, which they called Portenta and Ostenta, because they thought them to portend, or foreshew some great Calamity to come; Sometimes, in meer Lottery, as Crosse and Pile; counting holes in a sive; dipping of Verses in Homer, and Virgil; and innumerable other such vaine conceipts. So easie are men to be drawn to believe any thing, from such men as have gotten credit with them; and can with gentlenesse, and dexterity, take hold of their fear, and ignorance.

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Poilremo, ad Prognostica Futuri, quae praeter experientiam Pra?teriti naturaliter nulla sunt, neque supernaturaliter, praster revelationem divinam, iidem authores Religionum Ethnicarum fabulas excogitantes, <Sc colloquia cum Diis simulantes, innumera addiderunt genera Divinationum, hominibusque persuaserunt, prascognituros le fortunas suas ex Responsis absurdis, vel ambiguis Sacerdotumindelphis, Delo, aliisque locis, propter Oracula celebribus, Responsis quae ad eventus contrarios accommodari poslent propter ambiguitatem, vel propter menrem Vatis a Vaporibus perturbatam (id quod in locis cavernosis mirabile non est) absurdis j vel ex soliis lybillarum, quarum libri aliquot a Civitate Romana (quanquam libn qui eo nomine nunc extant videntur subsequentium temporum sigmencum esse) pro Vaticiniis habiti sunt; vel ex hominum mente captorum deliriis, qui dicebatur Enthuiiasmus. Haec omnia Theomantia dici possunt. Deinde, futura praedicebant ex a^pectibus stellarum, quae Horoscopia erat j vel ex suo cujusque Metu vel Spe, quod Praesagium et Thumomantia appellabatur j vel ex prasdidionibus Sagarum, quam (propter sicta cum mortuis colloquia) Necromantiam dicebant; vel ex Volatu aut Pastu Avium, quod eratraugurium j vel ex Animalium caesorum Extis, quae Aruspicina erat j Etiam ex quolibet Somnio, ex Crocitatione Corvorum, ex lineamentis Vultus et Manuum, ex qualibet Voce fortuiti, ex quolibet insolito Accidente. Adeo facile est, cujus ignorantiam molliter tractare didiceris, quocunque velis ducere.

Fundatores ergo Civitatum, et Legislatores gentium primi, quibus Populum in obedientia continere consilium erat, sedulo providerunt, Primo, ut prascepta Religionis non ab ipsorum ingenio, sed ab alicujus Dei vel Dasmonis dictamine Populus prosecta eslecrederet, vel seipsos melioris naturae homines esle quam casteros eo sine, ut Leges suas libentius acciperent. Sic Numa Pompilius Religionis Romanas Ceremonias Nymphae Egeriae, Mahometes Religionem suam Spiritui Sanclo (apparenti in sorma Columbae) imputavit. Sic Peruviasrex priraus, se et Vxoremsuam a Sole genitoselsejaditavit. Secundo, nt crederent, quae Legibus vetitaerant, eadem omnia i i i 2 Diis

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The Designes Of The Authors Of The Religion Of The Heathen And therefore the first Founders, and Legislators of Common-wealths amongst the Gentiles, whose ends were only to keep the people in obedience, and peace, have in all places taken care; First, to imprint in their minds a beliefe, that those precepts which they gave concerning Religion, might not be thought to proceed from their own device, but from the dictates of some God, or other Spirit; or else that they themselves were of a higher nature than mere mortalls, that their Lawes might the more easily be received: So Numa Pompilius pretended to receive the Ceremonies he instituted amongst the Romans, from the Nymph Egeria: and the first King and founder of the Kingdome of Peru, pretended himselfe and his wife to be the children of the Sunne: and Mahomet, to set up his new Religion, pretended to have conferences with the Holy Ghost, in forme of a Dove. Secondly, they have had a care, to make it believed, that the same things were displeasing to the Gods, which were forbidden by the Lawes. Thirdly, to prescribe Ceremonies, Supplications, Sacrifices, and Festivalls, by which they were to believe, the anger of the Gods might be appeased; and that ill success in War, great contagions of Sicknesse, Earthquakes, and each mans private Misery, came from the Anger of the Gods; and their Anger from the Neglect of their Worship, or the forgetting, or mistaking some point of the Ceremonies required. And though amongst the antient Romans, men were not forbidden to deny, that which in the Poets is written of the paines, and pleasures after this life; which divers of great authority, and gravity in that state have in their Harangues openly derided; yet that beliefe was alwaies more cherished, than the contrary.

And by these, and such other Institutions, they obtayned in order to their end, (which was the peace of the Commonwealth,) that the common people in their misfortunes, laying the fault on neglect, or errour in their Ceremonies, or on their own disobedience to the lawes, were the lesse apt to mutiny against their Governors. And being entertained with the pomp, and pastime of Festivalls, and publike Gomes, made in honour of the Gods, needed nothing else but bread, to keep them from discontent, murmuring, and commotion against the State. And therefore the Romans, that had conquered the greatest part of the then known World, made no scruple of tollerating any Religion whatsoever in the City of Rome it selfe; unlesse it had somthing in it, that could not consist with their Civill Government; nor do we read, that any Religion was there forbidden, but that of the Jewes; who (being the peculiar Kingdome of God) thought it unlawfull to acknowledge subjection to any mortall King or State whatsoever. And thus you see how the Religion of the Gentiles was a part of their Policy.

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6o T>e Bomine. Cap. 12.

Diis fuis displicitura esse. Tertio, ut Ceremoniis rite accurateque perastis placari Deos, neglestis irritari crederent, adeoque Bellorum casas adversos, Pestes, Terraemotus, singulariumquecalamitates Cultui neglesto, aut Ceremoniae alicui praetermislas imputarent. Quamquam autem apud Romanos veteres ea negare, quae de Gau^ diis et Pcenis post hanc viram a Poetis scripta erant, non prohiberetur, et multi magni gravissimique viri ea publice deriderent, Fidestamen illa magis quam contraria lemperalebatur.

Per has, similesque Institutiones, ad finem suum, nempe Pacem Civitatis, hoc salrem obtinuerunr, ut Populus calamitates suas errori alicui, vel neglestui in agendis Sacris, vel propriis Legum transgressionibus attribuens, minus contra Restores suos incitaretur, Ludis, Pompisque Dierum Sestorum contentus. Itaque ne statum conturbaret, nulla re praeter Dies Sestos et Panem indigebant. Omnem igitur Religionem Romani, Terrarum sere omnium Domini, quas non habebat aliquid in se Regimini Civilt contrarium, facile tolerabant j neque ullius Gentis Religionem Romae vetitam esse legimus praeterquam Iudaeorum, qui (cum eslent jamdudum sub Regnura Dei) mortali Rcgi obedire lllicitum esse crediderunt. Patet ergo 3 Religionem apud Ethnicos Politiae suae partem fuisse.

Vbi veto r)er revelationem supernaturalem plantavit Religionem Deus, ibi etiam Regnum sibi condidit peculiare j subditisque iiiis Leges dedit, non modo circa Officia eorum erga seipsum, sed etiam erga se invicem. Manisestum ergo est, inregnodei Politiam et Leges Civiles omnes, Religionis partem esse; ideoque distinstionem Dominii Temporalis et Spiritualis in Regno Dei nullam fuille. Deus Terrarum quidem omnium Rex est j Nil tamen prohibet quin Gentisalicujus peculiari modo Rex esle possitj nulla enim istic incongruitasest. Totius Exercitus Imperator, peculiarem tamen sibi habere potest Cohortem aut Centuriam. Sed de Regno Dei tum per Pastum, tum per Naturam susius dicetur insra.

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The True Religion, And The Lawes Of Gods Kingdome The Same But where God himselfe, by supernaturall Revelation, planted Religion; there he also made to himselfe a peculiar Kingdome; and gave Lawes, not only of behaviour towards himselfe; but also towards one another; and thereby in the Kingdome of God, the Policy, and lawes Civill, are a part of Religion; and therefore the distinction of Temporall, and Spirituall Domination, hath there no place. It is true, that God is King of all the Earth: Yet may he be King of a peculiar, and chosen Nation. For there is no more incongruity therein, than that he that hath the generall command of the whole Army, should have withall a peculiar Regiment, or Company of his own. God is King of all the Earth by his Power: but of his chosen people, he is King by Covenant. But to speake more largly of the Kingdome of God, both by Nature, and Covenant, I have in the following discourse assigned an other place.

The Causes Of Change In Religion

From the propagation of Religion, it is not hard to understand the causes of the resolution of the same into its first seeds, or principles; which are only an opinion of a Deity, and Powers invisible, and supernaturall; that can never be so abolished out of humane nature, but that new Religions may againe be made to spring out of them, by the culture of such men, as for such purpose are in reputation.

For seeing all formed Religion, is founded at first, upon the faith which a multitude hath in some one person, whom they believe not only to be a wise man, and to labour to procure their happiness, but also to be a holy man, to whom God himselfe vouchsafeth to declare his will supernaturally; It followeth necessarily, when they that have the Goverment of Religion, shall come to have either the wisedome of those men, their sincerity, or their love suspected; or that they shall be unable to shew any probable token of divine Revelation; that the Religion which they desire to uphold, must be suspected likewise; and (without the feare of the Civill Sword) contradicted and rejected.

Injoyning Beleefe Of Impossibilities

That which taketh away the reputation of Wisedome, in him that formeth a Religion, or addeth to it when it is allready formed, is the enjoyning of a beliefe of contradictories: For both parts of a contradiction cannot possibly be true: and therefore to enjoyne the beliefe of them, is an argument of ignorance; which detects the Author in that; and discredits him in all things else he shall propound as from revelation supernaturall: which revelation a man may indeed have of many things above, but of nothing against naturall reason.

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Aconstitutione Religionum apparet etiammodus, quorursusin Principia iua prima resolvuntur, nempe in agnitionem Divinitatis, sive Potentiae iupernaturalis simpliciter; quae agnitio nunquam ita aboleri potest, quin inde novae Religiones (si Cultores acceslerint idonei) germinaturae Cnt.

Cum enim Religio omnis formata, ab initio fundata sit in fide quam habet uni ahcui Personae multitudo hominum, quam Personam non modo virum Sapientem este, et Bcnevo'wn, sed etiam Santtum, et cui Deus voluntacem suam supernaturali mododignatus sit sic Revelare; neccttario sequitur, tunc quando Antistitum Religionis aut Sjpientia, aut Bcnevolentia, aut Sarstlttai suspctsa sit, aut Revelationis indicium omnedeest, ut Religio quam sustentatam vellent, nisi Gladius Civilis prohibeat, rejiciatur.

Existimario Sapienttx in Doctoribustolliturquoties credijubent Contradictoria. Sciunt enim omnes, etiam indocti, qui quid sit Contra Jictio nesciunt, in Contradictoriis alterum esle salium. Itaque utrumquecredi velle indicium est Ignorantiae, omnemqueeorum Dodhinam suspectam reddit. Quanquam enim vera esse postunt qua; sunt supra Rationem Naturalem, verum tamen contra Rationem nihlest.

Existimatio Sancllttatis tollitur faciendo dicendove ea, quae Doclorem, quae docet ipsum, non credere indicant. Atque facta et dicta talia, quia procedentes in via Religioms procidere aut titubare cogunt, Scanda'a dicuntur, qualiasunt Injustitia, Crudelitas, Hypocrilia, Avaritia, Luxuria, etc.. Si quis enim ea quotidie faciat, quae ab his exurgunt radicibus, quis Potentias Invisibiles illas metuendas esle credet, quibus illi alios terrere vellent.

Existimatio Benevolentia tollitur, quando non Gregis, sed sua bona quxrunt, id est, quando Credenda prsedicant quae credi sibi solis, vei maxime, utilia sunt ad Potestatem vel Divitias comparandas. A quibus enim rebus cuique bonum nascitur, as res agere censebitur non aliorum, sed fui ipsius causa.

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Doing Contrary To The Religion They Establish

That which taketh away the reputation of Sincerity, is the doing, or saying of such things, as appeare to be signes, that what they require other men to believe, is not believed by themselves; all which doings, or sayings are therefore called Scandalous, because they be stumbling blocks, that make men to fall in the way of Religion: as Injustice, Cruelty, Prophanesse, Avarice, and Luxury. For who can believe, that he that doth ordinarily such actions, as proceed from any of these rootes, believeth there is any such Invisible Power to be feared, as he affrighteth other men withall, for lesser faults?

That which taketh away the reputation of Love, is the being detected of private ends: as when the beliefe they require of others, conduceth or seemeth to conduce to the acquiring of Dominion, Riches, Dignity, or secure Pleasure, to themselves onely, or specially. For that which men reap benefit by to themselves, they are thought to do for their own sakes, and not for love of others

Want Of The Testimony Of Miracles

Lastly, the testimony that men can render of divine Calling, can be no other, than the operation of Miracles; or true Prophecy, (which also is a Miracle;) or extraordinary Felicity. And therefore, to those points of Religion, which have been received from them that did such Miracles; those that are added by such, as approve not their Calling by some Miracle, obtain no greater beliefe, than what the Custome, and Lawes of the places, in which they be educated, have wrought into them. For as in naturall things, men of judgement require naturall signes, and arguments; so in supernaturall things, they require signes supernaturall, (which are Miracles,) before they consent inwardly, and from their hearts.

All which causes of the weakening of mens faith, do manifestly appear in the Examples following. First, we have the Example of the children of Israel; who when Moses, that had approved his Calling to them by Miracles, and by the happy conduct of them out of Egypt, was absent but 40 dayes, revolted from the worship of the true God, recommended to them by him; and setting up (Exod.32 1,2) a Golden Calfe for their God, relapsed into the Idolatry of the Egyptians; from whom they had been so lately delivered. And again, after Moses, Aaron, Joshua, and that generation which had seen the great works of God in Israel, (Judges 2 11) were dead; another generation arose, and served Baal. So that Miracles fayling, Faith also failed.

Again, when the sons of Samuel, (1 Sam.8.3) being constituted by their father Judges in Bersabee, received bribes, and judged unjustly, the people of Israel refused any more to have God to be their King, in other manner than he was King of other people; and therefore cryed out to Samuel, to choose them a King after the manner of the Nations. So that Justice Fayling, Faith also fayled: Insomuch, as they deposed their God, from reigning over them.

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Postremo,quia unicum est Revelationis Divinae testimonium Operatio Miraculorum, si quis praeter Religionis receptss Articulos, Articulos novos introducere conabitur sine miraculo edito, fides illi praeter eam quam faciunt, Civitatis Leges et Consuetudinis, vel Sanctitas sere miraculosa, nulla habebitur. Sicut enim in rebus naturalibus vir prndens argumenta naturalia, ita in supernaturalibus signa supernaturalia postulat.

Deficientis fidei causae modo dictaeinsequentibus exemplis perspicue apparebunt. Moses qui Populum Israeliticwm eduxerat ex &gypto, dies tantum quadraginta aberat, cum Populus ille per seditionem, relicto vero Deo qui paulo ante ipsos a servitute exemerat, fa,bricatoque Vitulo aureo, in Idololatriam /Egyptiorum relaberentur. Rursus, postquam Moses, Aaron et generatio illa quas magnalia Dei viderat in Deserto mortui eslent (Iud. 2. 11.) surrexit generatio nova, quae lervivit Baal. Itaque miraculis deficientibus, desecit Fides.

Samuelis filii a Patre Iudices inbersabe constituti (1 Sam. $, etc.$.) iii ^ quia

€1 De Bomine. Cap. 12.

quia injuste judicaverunt et dona acceperunt, Populus Israetiticus, rejecto Regno Dei, Regem more Gentium poposcerunr. Itaque deficiente Rectorum Sanctitate, una desecit fides Populi. Etiam quod ad Euangelii prasdicarionem primam Oracula per Imperium Romanum omnia siiuerunt, numerusque Christianorum quotidie etc. mirabiliter augeretur, magna ex parte tribui potest Sacerdotum Avaritiae, Spurcitiei, sictisque vaticiniis, vel ad promerendos B.eges, vel ne nihil prsedicere viderentur, ambiguis. Nec multum dissimili de causa Ecclesiae Romana? apud Anglos, nonnullosque aliospopulos enormis potestas tandem suppresla estj cedante scilicet Pastorum Sanclitate, Populi ceilavit Fides.

Eadem Ecclesia, introducta in Religionem Philosophia.Aristotelis, innumeras inde contexuerunt Scholastici Doctrinas sibi invicera repugnantes et contradictorias, Clericorum non modo ignorantiam, sed etiam fraudulentiam detegentes. Qua? causa altera erat, quare Populus iilorum juguraexcureret, Principibus partim volentibus, ut in Anglia -, partim prohibere non valentibus, ut in Gallia.

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And whereas in the planting of Christian Religion, the Oracles ceased in all parts of the Roman Empire, and the number of Christians encreased wonderfully every day, and in every place, by the preaching of the Apostles, and Evangelists; a great part of that successe, may reasonably be attributed, to the contempt, into which the Priests of the Gentiles of that time, had brought themselves, by their uncleannesse, avarice, and jugling between Princes. Also the Religion of the Church of Rome, was partly, for the same cause abolished in England, and many other parts of Christendome; insomuch, as the fayling of Vertue in the Pastors, maketh Faith faile in the People: and partly from bringing of the Philosophy, and doctrine of Aristotle into Religion, by the Schoole-men; from whence there arose so many contradictions, and absurdities, as brought the Clergy into a reputation both of Ignorance, and of Fraudulent intention; and enclined people to revolt from them, either against the will of their own Princes, as in France, and Holland; or with their will, as in England.

Lastly, amongst the points by the Church of Rome declared necessary for Salvation, there be so many, manifestly to the advantage of the Pope, and of his spirituall subjects, residing in the territories of other Christian Princes, that were it not for the mutuall emulation of those Princes, they might without warre, or trouble, exclude all forraign Authority, as easily as it has been excluded in England. For who is there that does not see, to whose benefit it conduceth, to have it believed, that a King hath not his Authority from Christ, unlesse a Bishop crown him? That a King, if he be a Priest, cannot Marry? That whether a Prince be born in lawfull Marriage, or not, must be judged by Authority from Rome? That Subjects may be freed from their Alleageance, if by the Court of Rome, the King be judged an Heretique? That a King (as Chilperique of France) may be deposed by a Pope (as Pope Zachary,) for no cause; and his Kingdome given to one of his Subjects? That the Clergy, and Regulars, in what Country soever, shall be exempt from the Jurisdiction of their King, in cases criminall? Or who does not see, to whose profit redound the Fees of private Masses, and Vales of Purgatory; with other signes of private interest, enough to mortifie the most lively Faith, if (as I sayd) the civill Magistrate, and Custome did not more sustain it, than any opinion they have of the Sanctity, Wisdome, or Probity of their Teachers? So that I may attribute all the changes of Religion in the world, to one and the some cause; and that is, unpleasing Priests; and those not onely amongst Catholiques, but even in that Church that hath presumed most of Reformation.

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Postremo, inter Articulos Fidei quos adsalutem neceitarios declaravit Ecclesia Romana, adeo multi ad Papae, et suorum in Dominiis aliorum Principum habitantium subditorum Spiritualium emolumentum maniseste tendunt, ut nisi illorum mutua obstaret asmulatio, non minus facile eitet Principibus quibuscunque Potestatem illam, etiara sine Bello, ejicere; quam ex Anglia ejecta fuit. Quis enim, cujus bono creditur Regis authoritatem nuilameite, nisi ab Episcopo coronatus sit, a Christo non eile, causam Ceremoniae illius in coronandis Regibus, non animadvertit? Regi, si Sacerdos siat, uxorem ducere non Iicere; utrum Rex in legitimo Matrimonio natus sit, judicandum eile a Curii Romana j siibditos Regis Christiani ab Obedientia Civili absolvi poite, si Hsereticus sit Rex; Regem (ut Chilpericus Rex Galliae) Regno privari poile -3 Clericos Sc Regdares in causa Criminis a cognitione Civili exemptos eile; Indulgentias, Mistas privatas, aliaque multa Populo ad salutem non neceslaria, quo tendunt, et quantam ad extinguendam Fidem, etiam vivaciilimam, vim habeant, nisi a Potestate Civili et Consuetudine soveretur riemo est qui non intelligit. Itaque Mutationum in Religionibus unam videor raihi causam aslignare posle, ingratos Sacerdotes.

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CAPVT XIII — De Conditione generis Humani quantum attinet ad Felicitatem praesentis vitae

CHAPTER XIII — Of the Natural Condition of Mankind

Tum Corporis, tum Animae facultatibusadeoaequalesinterse produxit Natura homines, ut quamvis alii aliis viribus auc ingenio prastent, si tamen omnia simul considerentur, differentia tanta non est, ut promittere sibi commodi quicquam poslit unus, quod alius sperare aeque non potest. Quod attinet ad vim corpoream rarb invenias hominem ita imbecillum, ut fortissimum nonpossit intersicere, vel dolo, vel conjunclione cum aliis quibus periculum est commune. Quod autem attinet ad facultates Animi (verborum artibus, id est scientiarum Regulis generalibus exceptis, quas pauci Sc in rebus paucissimis possident, ut quae nec nobiscum natae sint, nec a Prudentiasine studioacquisitae) majorem adhuc invenio aequalitatem. Prudentia enim omnis ab Experientia est, et omnibus aequaii tempore in iis rebus quibus animum aequaliter applicant, aequaliter tribuitur a Natura. Id vero quod «qualitatemhujusmodidubiam videri facit, Opinio tantum est eorum qui plus justo sc asstimant. Nam sere unusquisque sapientiorem se esse credit mult6 quam est quilibet e vulgo, id est, quamestaliusquicunque, praeter paucos quos propter famam,vel propter consensum cum ipsis solet admirari. Eaenimest natura Hominis, ut quamquam alium aliquem seipso eloquentiorem vel eruditiorem esse consiteatur, prudentiorem tamea esie quemquam, non concedet. Ingenium enim proprium a propinquo, alienum a longinquo quisque spedat. Ingeniorum autem aequalitatis argumentum quantum ad praesens Institutum attinet maximum est, quod unusquisque suo conteritus est.

Ab aequalitate Naturae, oritur unicuique ea quae cupit acquirendi spes. Quoties ergo duo idem cupiunt, quo frui ambo non poslunt, alter alterius hostis sit x et ad finem sibi propositum (quae est conservatio propria) alter alterum conatur subjugare vel intcrsicere. Itaque cuianimus est vicinum aggrediendi, si nihil sit, quo dererreatur praeter vim unius hominis, quoties unus aliquis agrum paulo commodiorem postederit, conseverit, plantaverit, inaedisicaverit, expectandi sunt alii viribus conjunctis parati, non modolaborisejus omnem fructum, sed etiam vitam,vel hbertatem sublaturi, idem rursus paituri ipse a se fortioribus.

In

64 ®'e Homine. Cap. 13.

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CHAPTER XIII — Of the Natural Condition of Mankind

CAPVT XIII — De Conditione generis Humani quantum attinet ad Felicitatem praesentis vitae

Nature hath made men so equall, in the faculties of body, and mind; as that though there bee found one man sometimes manifestly stronger in body, or of quicker mind then another; yet when all is reckoned together, the difference between man, and man, is not so considerable, as that one man can thereupon claim to himselfe any benefit, to which another may not pretend, as well as he. For as to the strength of body, the weakest has strength enough to kill the strongest, either by secret machination, or by confederacy with others, that are in the same danger with himselfe.

And as to the faculties of the mind, (setting aside the arts grounded upon words, and especially that skill of proceeding upon generall, and infallible rules, called Science; which very few have, and but in few things; as being not a native faculty, born with us; nor attained, (as Prudence,) while we look after somewhat els,) I find yet a greater equality amongst men, than that of strength. For Prudence, is but Experience; which equall time, equally bestowes on all men, in those things they equally apply themselves unto. That which may perhaps make such equality incredible, is but a vain conceipt of ones owne wisdome, which almost all men think they have in a greater degree, than the Vulgar; that is, than all men but themselves, and a few others, whom by Fame, or for concurring with themselves, they approve. For such is the nature of men, that howsoever they may acknowledge many others to be more witty, or more eloquent, or more learned; Yet they will hardly believe there be many so wise as themselves: For they see their own wit at hand, and other mens at a distance. But this proveth rather that men are in that point equall, than unequall. For there is not ordinarily a greater signe of the equall distribution of any thing, than that every man is contented with his share.

From Equality Proceeds Diffidence

From this equality of ability, ariseth equality of hope in the attaining of our Ends. And therefore if any two men desire the same thing, which neverthelesse they cannot both enjoy, they become enemies; and in the way to their End, (which is principally their owne conservation, and sometimes their delectation only,) endeavour to destroy, or subdue one an other. And from hence it comes to passe, that where an Invader hath no more to feare, than an other mans single power; if one plant, sow, build, or possesse a convenient Seat, others may probably be expected to come prepared with forces united, to dispossesse, and deprive him, not only of the fruit of his labour, but also of his life, or liberty. And the Invader again is in the like danger of another.

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In tanto, et mutuo hominum metu, securitatis viam meliorem habet nemo Anticipatione; nempe ut unusquisque vi et dolo ceteros omnes tam diu subjicere sibi conetur, quam diu alios esle, a quibus sibi cavendum esle viderit. Neque hoc majus est, quam et conservatio liia postulat, et ab omnibus concedi solet. Quoniam enim sunt, qui animi Sc gloriae causa universum terrarum orbem superare vellent, nisi alii (alioqui modicis contenti sinibus) potentiam suam alios invadendo augerent, sed tantummodo se et sua desendere conarentur, subsistere diu non poslent. Itaque Dominii acquisitio per vira unicuique, ut ad conservationem propriam necessaria, concedi debet.

Praeterea, in Congreslibus, ubi potentia nulla est, quae omnes coercere poslit, voluptas nulla, sed contra Molestia per Naturara eslet. Unusquisque enim tanti a caeteris sieri vellet, quanti ipsesese sestimat, et ad signum omne neglectionis conaturquantum audet l id est ubi nulla extat potentia communis) quantum ad mutuas caedes iussicit ulciscij scilicet, ut alteri ab alteris majprem fui asstimationem a spedantibus exemplo ultionis extorqueant.

Itaque in Natura humana simultaturo inveniunturtres prascipua; cause, Competitio, Desensto, Glor.a } quarum prima ad Dominium, secunda ad Securitatem, tertia ad Famam spectat. A prima est, quod de Lucro j asecunda, quod de Salute; a tertia, quoddenugis pugneturj nimirum de Verbo, de Risu, deopinione, deomni iigno, Parvipendii, sive Ipsorum, sive Cognatorum, Amicorum, Patriaj, Proseslionis vel Nominis.

Manisestum igitur est, quamdiu nulla est Potentia coerciva, tamdiu conditionem Hominum eam esse quam dixi Bellum esleuniuscujusque contra unumquemque. Consistit enim natura Belli, non in Pugna, sed in tradu aliquo temporis, quo durante, Voluntas Armis decertandi est manisesta. Itaque in natura Belli, sicut in natura Tempestatum considerandum est Tempus. Nam ut unus Imber non denominat Tempestatem humidam; ita neque Pugna quadibet denominat Bellum. Tempus autem Bello vacuum, Pax est.

Quicquid ergo Bello omnium contra omnes naturaliter adha?ret, idem conditionem hominum, iine alia securitate quam quae a cujusque robore et ingenio expedari potest, neceslari6 comitatur. In conditione autem tali locus Industriae nullus est, quia nullus fructus. Nullus ergo Terra; cultus, nulla Navigatio, i£disicia commoda nulla, Instrumenta quibus quae majoribus indigent viribus moveantur, nulla faciei telluris cognitio nulla, Temporumcompu-

Utto

tario nulla, nullaj Arres, ncque Societas j sed quod gravissimum est, mortis violentaj metus, et periculum perpetuum, vitaque hominam soliraria, indiga, bruta et brevis.

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From Diffidence Warre

And from this diffidence of one another, there is no way for any man to secure himselfe, so reasonable, as Anticipation; that is, by force, or wiles, to master the persons of all men he can, so long, till he see no other power great enough to endanger him: And this is no more than his own conservation requireth, and is generally allowed. Also because there be some, that taking pleasure in contemplating their own power in the acts of conquest, which they pursue farther than their security requires; if others, that otherwise would be glad to be at ease within modest bounds, should not by invasion increase their power, they would not be able, long time, by standing only on their defence, to subsist. And by consequence, such augmentation of dominion over men, being necessary to a mans conservation, it ought to be allowed him.

Againe, men have no pleasure, (but on the contrary a great deale of griefe) in keeping company, where there is no power able to over-awe them all. For every man looketh that his companion should value him, at the same rate he sets upon himselfe: And upon all signes of contempt, or undervaluing, naturally endeavours, as far as he dares (which amongst them that have no common power, to keep them in quiet, is far enough to make them destroy each other,) to extort a greater value from his contemners, by dommage; and from others, by the example.

So that in the nature of man, we find three principall causes of quarrel. First, Competition; Secondly, Diffidence; Thirdly, Glory.

The first, maketh men invade for Gain; the second, for Safety; and the third, for Reputation. The first use Violence, to make themselves Masters of other mens persons, wives, children, and cattell; the second, to defend them; the third, for trifles, as a word, a smile, a different opinion, and any other signe of undervalue, either direct in their Persons, or by reflexion in their Kindred, their Friends, their Nation, their Profession, or their Name.

Out Of Civil States, There Is Alwayes Warre Of Every One Against Every One

Hereby it is manifest, that during the time men live without a common Power to keep them all in awe, they are in that condition which is called Warre; and such a warre, as is of every man, against every man. For WARRE, consisteth not in Battell onely, or the act of fighting; but in a tract of time, wherein the Will to contend by Battell is sufficiently known: and therefore the notion of Time, is to be considered in the nature of Warre; as it is in the nature of Weather. For as the nature of Foule weather, lyeth not in a showre or two of rain; but in an inclination thereto of many dayes together: So the nature of War, consisteth not in actuall fighting; but in the known disposition thereto, during all the time there is no assurance to the contrary. All other time is PEACE.

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Illis qui haec non pensiravcrunt mirum fortasle videbitur, Naturam homines diitociaviise, et ad mutuam caedem aptos produxisle; et tamen hoc perspicue illatum est ex natura Passionum, Sc praeterea Experientiae consentaneum. Cogita enim, quando Iter ingrederis, cur Comitcs quaeris, Arma gestas j quando dormitum is, fores claudis, Arcas obieras, idque legibus et ministris armatis ad omnem violentiam ulciscendam paratis,qua!em habeas opinionem de concivibus, de vicinis et de domesticis. Nonne cautela" ista tua genus humanum asque accusas atque Ego? Neutri Naturam accusamus. Passiones hominum peccata non sunt,neque quae inde oriuntur ac~Uones,quamdiu, qua; illas prohibeat, potestatem nullam qui faciunt, vident; nequc cnim Lex cognoici potest qua? non sit lata; neque ferri, quamdiu in legislatorem consensum non sit. Sed quid hominibus doctis conamur demonstrare id quod ne Canes quidcro ignorant, qui accedentibus oblatrant, interdiu quidem ignotis, noctu autem omnibus.

Sed omnium in omnes (inquietaliquis) Bellum nunquam erat. Quid, nonne fratrem suara Abelem invidia mtersecit Cain, tantura facinus non ausurus, si communis potentia quae vindicare potuistet tunc extitislet? Nonne hodie, mukis in locis ita vivitur? Amcricam, excepto quod per familias parvas legibus paternis subditi sunt, quarum familiarum concordia similitudine sold Cupiditatum sustinetur, itavivunt. Qualis etiam vita hominum eslet nulli potentiae communi subditorum, ex vita eorura cognosci potest, quibus Bellum est Civile.

Quamquam autem tempus nunquamsuerit, in quo unusquisque uniuscujusque hostis erat, Reges tamen et Personae summam habentes potestatem, omni tempori hostes inter se sunt. Semper enim alii aliis suspedi sunt, more stantes gladiatorio, armis oculisque intentis, id est castellis etc. praesidiis ad consinia collocatis, et exploratoribus in hostico latitantibus, quae est conditio Beili. Sed quia subditorum saluti provideri aliter non potest, non sequitur inde miseria illa, quas privatorum hominum libertatem plenamlequuturaeslet.

Praeterea Bello omnium contra omnes consequens est, ut nihil dicendum sit injustum. Nomina Iusti et Injusti locum in hac conditione non habent. Vis et Dolus in Bello Virtutes Cardinales sunt. Neque sunt Iustitia et Injustitia Corporis aut Animae facultates; nam si eslent, homini inesle poslent qui in mundo solitarius estet Sc unicus. Lcviat. k k k Quali-

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The Incommodities Of Such A War

Whatsoever therefore is consequent to a time of Warre, where every man is Enemy to every man; the same is consequent to the time, wherein men live without other security, than what their own strength, and their own invention shall furnish them withall. In such condition, there is no place for Industry; because the fruit thereof is uncertain; and consequently no Culture of the Earth; no Navigation, nor use of the commodities that may be imported by Sea; no commodious Building; no Instruments of moving, and removing such things as require much force; no Knowledge of the face of the Earth; no account of Time; no Arts; no Letters; no Society; and which is worst of all, continuall feare, and danger of violent death; And the life of man, solitary, poore, nasty, brutish, and short.

It may seem strange to some man, that has not well weighed these things; that Nature should thus dissociate, and render men apt to invade, and destroy one another: and he may therefore, not trusting to this Inference, made from the Passions, desire perhaps to have the same confirmed by Experience. Let him therefore consider with himselfe, when taking a journey, he armes himselfe, and seeks to go well accompanied; when going to sleep, he locks his dores; when even in his house he locks his chests; and this when he knows there bee Lawes, and publike Officers, armed, to revenge all injuries shall bee done him; what opinion he has of his fellow subjects, when he rides armed; of his fellow Citizens, when he locks his dores; and of his children, and servants, when he locks his chests. Does he not there as much accuse mankind by his actions, as I do by my words? But neither of us accuse mans nature in it. The Desires, and other Passions of man, are in themselves no Sin. No more are the Actions, that proceed from those Passions, till they know a Law that forbids them; which till Lawes be made they cannot know: nor can any Law be made, till they have agreed upon the Person that shall make it.

It may peradventure be thought, there was never such a time, nor condition of warre as this; and I believe it was never generally so, over all the world: but there are many places, where they live so now. For the savage people in many places of America, except the government of small Families, the concord whereof dependeth on naturall lust, have no government at all; and live at this day in that brutish manner, as I said before. Howsoever, it may be perceived what manner of life there would be, where there were no common Power to feare; by the manner of life, which men that have formerly lived under a peacefull government, use to degenerate into, in a civill Warre.

But though there had never been any time, wherein particular men were in a condition of warre one against another; yet in all times, Kings, and persons of Soveraigne authority, because of their Independency, are in continuall jealousies, and in the state and posture of Gladiators; having their weapons pointing, and their eyes fixed on one another; that is, their Forts, Garrisons, and Guns upon the Frontiers of their Kingdomes; and continuall Spyes upon their neighbours; which is a posture of War. But because they uphold thereby, the Industry of their Subjects; there does not follow from it, that misery, which accompanies the Liberty of particular men.

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66 De Homine* Cap. 14.

Qualitates quidem Hominis sunt, non autem quatenus Hominis, sed quatenus Civis. Eidem conditioni hominum consequens est, ut nullumsit Dominium, nulla Proprietas, nullum Meum aut Tuum, sed ut illud uniuscujusque sit, qubd acquisivit, et quamdiu conservare potest. Atque haec sussiciant dicta de conditione Humana mere Naturali j a qua tamen partim a Ratione, partim etiam a Passionibus liberari potuit.

Pasliones quibus homines ad Pacem perduci postunt, suntmetus, praesertim vero Metus Mortis violentae, et Cupiditas rerum ad bene vivendum neceslariarum, et spes per industriam illas obtinendi. Pacis autem articulos quosdam iuggerit Ratio, quae Leges sunt Naturales 5 de quibus susius dicemus in duobus Capitibus proxime sequentibus.

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In Such A Warre, Nothing Is Unjust

To this warre of every man against every man, this also is consequent; that nothing can be Unjust. The notions of Right and Wrong, Justice and Injustice have there no place. Where there is no common Power, there is no Law: where no Law, no Injustice. Force, and Fraud, are in warre the two Cardinall vertues. Justice, and Injustice are none of the Faculties neither of the Body, nor Mind. If they were, they might be in a man that were alone in the world, as well as his Senses, and Passions. They are Qualities, that relate to men in Society, not in Solitude. It is consequent also to the same condition, that there be no Propriety, no Dominion, no Mine and Thine distinct; but onely that to be every mans that he can get; and for so long, as he can keep it. And thus much for the ill condition, which man by meer Nature is actually placed in; though with a possibility to come out of it, consisting partly in the Passions, partly in his Reason.

The Passions That Incline Men To Peace

The Passions that encline men to Peace, are Feare of Death; Desire of such things as are necessary to commodious living; and a Hope by their Industry to obtain them. And Reason suggesteth convenient Articles of Peace, upon which men may be drawn to agreement. These Articles, are they, which otherwise are called the Lawes of Nature: whereof I shall speak more particularly, in the two following Chapters.

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CAPVT XIV — De Lege Naturae prima et fundamentali

CHAPTER XIV — Of the First and Second Natural Laws, and of Contracts

Ius Naturale est Libertas, quam habet unusquisque potentia sua ad Naturaesuaeconservationem suo arbitrio utendi, et (perconlequens) illa omnia quae eo videbuntur tendere, faciendi.

Per Libertatem intelligo (id quod ea vox proprie signisicat) externorum impedimentorum absentiam.

At Lex Naturalis Praeceptumest, sive Regula generalis Ratione excogitata, qua unusquisque id quod ad damnum suum sibitendere videbitur facere prohibetur. Etsi autem vocabulis Ius et Lex promiscue saepenumero utantur scriptores,distingui tamen debent. Consistit enim Jm in faciendi vel non faciendi Libertate; sed Lex ad faciendum obligat vel ad non faciendum. Itaque Ius et Lex differunt ■at Libertas et Obligatio, quae circa eandem rem sunt inconsistentes.

Quoniara autem conditio hominum (ut praecedente Capite ostensum est) est conditio Belli omnium contra omnes, et propterea unusquisque sua ipsius ratione gubernatur; et quia nihil est, quod in vita contra hostem desendenda utile ei aliquando esse non possit, sequitur in conditione hominum Naturali omnium in omnia Ius esle ipsis hominum corporibus non exceptis. Quamdiu ergo Ius illud retinebitur, nulla cuiquam, etsi fortissimus sit, securitas esle poterit. Rationis ergo Praeceptum sive Regula generalis est, Pacem quidem, dum ejtu cbtinendtspes esi, cptxrendam e(se; quando atttem haberi nonpetesi, attxtlia mdecmqttc queerere -3 et illii nti Imtnmejse. Regulaehujus pars prima.

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CHAPTER XIV — Of the First and Second Natural Laws, and of Contracts

CAPVT XIV — De Lege Naturae prima et fundamentali

Right Of Nature What

The RIGHT OF NATURE, which Writers commonly call Jus Naturale, is the Liberty each man hath, to use his own power, as he will himselfe, for the preservation of his own Nature; that is to say, of his own Life; and consequently, of doing any thing, which in his own Judgement, and Reason, hee shall conceive to be the aptest means thereunto.

Liberty What

By LIBERTY, is understood, according to the proper signification of the word, the absence of externall Impediments: which Impediments, may oft take away part of a mans power to do what hee would; but cannot hinder him from using the power left him, according as his judgement, and reason shall dictate to him.

A Law Of Nature What

A LAW OF NATURE, (Lex Naturalis,) is a Precept, or generall Rule, found out by Reason, by which a man is forbidden to do, that, which is destructive of his life, or taketh away the means of preserving the same; and to omit, that, by which he thinketh it may be best preserved. For though they that speak of this subject, use to confound Jus, and Lex, Right and Law; yet they ought to be distinguished; because RIGHT, consisteth in liberty to do, or to forbeare; Whereas LAW, determineth, and bindeth to one of them: so that Law, and Right, differ as much, as Obligation, and Liberty; which in one and the same matter are inconsistent.

Naturally Every Man Has Right To Everything

And because the condition of Man, (as hath been declared in the precedent Chapter) is a condition of Warre of every one against every one; in which case every one is governed by his own Reason; and there is nothing he can make use of, that may not be a help unto him, in preserving his life against his enemyes; It followeth, that in such a condition, every man has a Right to every thing; even to one anothers body. And therefore, as long as this naturall Right of every man to every thing endureth, there can be no security to any man, (how strong or wise soever he be,) of living out the time, which Nature ordinarily alloweth men to live.

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couti- continet legem Naturae primam, Pacem quaere et persequere; secunda est luris Naturalis summa, Omntbu* viis et modus seipsum descndendt lui umcuique esse.

A lege Naturae primioritur secunda, Oportere unumquemque quoties Vaci et desensioni proprix provisum erit, a Iurcsuo in Omma, (cateris idemsacere paratus) decedere, contentumque e([e eadem Itbtrtate quam cateris concedi vellet. Quamdiu enim faciendi omnia, quae vult,lus retinet, tamdiu Bellum manet. Verum si caeteri Iura sua in omnia deponere recusent, neque ille suum deponere obligatur. Alioqui casteris in praedam potius se exponere, quod Natura non postulat, quam Pacem persequi putaretur. Atque haec Lex eadem est cum illa Euangelii, Quicquid vobis siert vultts idsxite altis; Sc cum illa omnium Gentiura, Quod ttbi sieri non vis, alteri neseceris.

In rem aliquam lus suum depontt, qui libertate illase privat quam babet acteros tmpedtendi quo minus qmttbet eorum /uresuo utatur in rem eandem. Nam qui Iuri suo renuntiat, vel lus suum transsert, lus novum quod per Naturam non ante habuit nemini tribuit, quia omnibus in omnia Iuserat; sed cedit ei tantum, eo sineutlusquod ante habuit sine impedimento a se orto libere fruatur,,a se inquam orto, non ab alio. Itaque quod alteri accedit ex Iure alieno in se translato, nihil aliud est quam sublatio impedimentorum a parte solius transserentis.

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The Fundamental Law Of Nature

And consequently it is a precept, or generall rule of Reason, "That every man, ought to endeavour Peace, as farre as he has hope of obtaining it; and when he cannot obtain it, that he may seek, and use, all helps, and advantages of Warre." The first branch, of which Rule, containeth the first, and Fundamentall Law of Nature; which is, "To seek Peace, and follow it." The Second, the summe of the Right of Nature; which is, "By all means we can, to defend our selves."

The Second Law Of Nature

From this Fundamentall Law of Nature, by which men are commanded to endeavour Peace, is derived this second Law; "That a man be willing, when others are so too, as farre-forth, as for Peace, and defence of himselfe he shall think it necessary, to lay down this right to all things; and be contented with so much liberty against other men, as he would allow other men against himselfe." For as long as every man holdeth this Right, of doing any thing he liketh; so long are all men in the condition of Warre. But if other men will not lay down their Right, as well as he; then there is no Reason for any one, to devest himselfe of his: For that were to expose himselfe to Prey, (which no man is bound to) rather than to dispose himselfe to Peace. This is that Law of the Gospell; "Whatsoever you require that others should do to you, that do ye to them." And that Law of all men, "Quod tibi feiri non vis, alteri ne feceris."

What it is to lay down a Right

To Lay Downe a mans Right to any thing, is to Devest himselfe of the Liberty, of hindring another of the benefit of his own Right to the same. For he that renounceth, or passeth away his Right, giveth not to any other man a Right which he had not before; because there is nothing to which every man had not Right by Nature: but onely standeth out of his way, that he may enjoy his own originall Right, without hindrance from him; not without hindrance from another. So that the effect which redoundeth to one man, by another mans defect of Right, is but so much diminution of impediments to the use of his own Right originall.

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Deponitur Ius vel simplici Renunttattone, vel Translatione ad alium. Sirapliciter Renuntiat, qui in medium abjicit, nemini tribuens. Transsert, qui certo alicui concedit. Vtrovis autem modo faciat, Ius habentem, quin re utatur, impedire non debet; estet enim hoc suum ipsius actum irritum facere. lnjustitiaenim Injuria etiam dicitur ex eo, quod (deposito ante lurej absque Iure impedimentum sit. Est enim in controversiis hominumlnjustitia similis ejus, quam in Scholis Absurditatem vocant. Sicut enim iis quae initio supposita erant contradicere Absurdum; ita quod faciendum voluntarie iiasceperis, irritum facere, Injustum appellatur. Modus autem, quo quis Iuri suo Renuntiat vel Ius suum Transsert, talis est; signo, vel signis idoneis voluntarie declarat, tali Iuri se Renuntiare, vel Renuntiasle; veladhunc lus suum se Transserre, veltranstuliite. Suntautem Signa illa vel Verba, vel Sada,vel (ut plcrumquesit) utraque. Atque hazc (unt Vincula illa quae non a sua Naturi, sed a Metudamni; a Promissi violatione robur habent.

Quotiescunque Ius suum derelinquit quis, vel transsert, ea causa idsacereinteliigitur, ut sibi reciproceabeo, cui translatum est Ius aliquod vel aliud bonum accipiat. Nam qui prior transtulit, volun- k k k z taric tarie id fecit; Voluntatis autem obje<stum femper Bonum est aliquod Volenti. Suut autem res aliquae, quae neque Verbis5neque aliis signis transserri aut relinqui poslunt, quia cui bono id secerit, inteliigi non potest. Idem de Vulneribus et Incarceratione dicendum est. Secundo, Ius contra vim sedesendendi neceslario retinetur; Nam qui se desendit, quousque vis progrestura est, ignorat. Tertio, finis propter quem Relictio vel Translatio Iuris introducta est, alius non est, quam vitae et mediorum ad vitam conservatio. Si quis ergo Verbis, signisve aliis spoliare se sine, propter quem illis usus esle intelligitur, id secisle voluntarie existimandus non est, sed (per ignorantiam) verborum et signorum illorum vim non intelligens.

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Renouncing (or) Transferring Right What; Obligation Duty Justice

Right is layd aside, either by simply Renouncing it; or by Transferring it to another. By Simply RENOUNCING; when he cares not to whom the benefit thereof redoundeth. By TRANSFERRING; when he intendeth the benefit thereof to some certain person, or persons. And when a man hath in either manner abandoned, or granted away his Right; then is he said to be OBLIGED, or BOUND, not to hinder those, to whom such Right is granted, or abandoned, from the benefit of it: and that he Ought, and it his DUTY, not to make voyd that voluntary act of his own: and that such hindrance is INJUSTICE, and INJURY, as being Sine Jure; the Right being before renounced, or transferred. So that Injury, or Injustice, in the controversies of the world, is somewhat like to that, which in the disputations of Scholers is called Absurdity. For as it is there called an Absurdity, to contradict what one maintained in the Beginning: so in the world, it is called Injustice, and Injury, voluntarily to undo that, which from the beginning he had voluntarily done. The way by which a man either simply Renounceth, or Transferreth his Right, is a Declaration, or Signification, by some voluntary and sufficient signe, or signes, that he doth so Renounce, or Transferre; or hath so Renounced, or Transferred the same, to him that accepteth it. And these Signes are either Words onely, or Actions onely; or (as it happeneth most often) both Words and Actions. And the same are the BONDS, by which men are bound, and obliged: Bonds, that have their strength, not from their own Nature, (for nothing is more easily broken then a mans word,) but from Feare of some evill consequence upon the rupture.

Not All Rights Are Alienable

Whensoever a man Transferreth his Right, or Renounceth it; it is either in consideration of some Right reciprocally transferred to himselfe; or for some other good he hopeth for thereby. For it is a voluntary act: and of the voluntary acts of every man, the object is some Good To Himselfe. And therefore there be some Rights, which no man can be understood by any words, or other signes, to have abandoned, or transferred. As first a man cannot lay down the right of resisting them, that assault him by force, to take away his life; because he cannot be understood to ayme thereby, at any Good to himselfe. The same may be sayd of Wounds, and Chayns, and Imprisonment; both because there is no benefit consequent to such patience; as there is to the patience of suffering another to be wounded, or imprisoned: as also because a man cannot tell, when he seeth men proceed against him by violence, whether they intend his death or not. And lastly the motive, and end for which this renouncing, and transferring or Right is introduced, is nothing else but the security of a mans person, in his life, and in the means of so preserving life, as not to be weary of it. And therefore if a man by words, or other signes, seem to despoyle himselfe of the End, for which those signes were intended; he is not to be understood as if he meant it, or that it was his will; but that he was ignorant of how such words and actions were to be interpreted.

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Translatio Iuris mutua Contrahm dicitur. Differunt autem inter se Jtii transstrre et Rem tramserre, live tradere. Traditur Res eodem tempore aliquando quo Transsertur Ius, ut sit in Emptione et Venditione, quando alter Pecuniam alter Mercem simul cum Iure Transsert; aliquando etiam Transsertur Ius, antequam Tradatur Res.

Praeterea, alter Contrahentium ad tradendam Rem, vel ad Contractum exequendum akero prior esle potest; tunc posteriori Credi sive Fidss haberi dicitur; et Promissio ejus Tatsam dicitur; et non praestitisle, Violatio Fidei.

Quando Translatio luris mutua est, Contrahentium autem alter lus vel Rem transsert, spe Amicitiae vel Officii ab eo cui transsert, vel existimationis causa apud alios,vel ex Charitate, talis Translatio Do* natio et Gratia appelhtur.

Contractuum Signa expresta, sunt Verba; debent autem prolata esle de Tempore Praesente, vel Praeterito, ut Do, Dedi, Concedo, Coneesji. Nam si de Futuro sunt, ut Dabo, Concedam, continent quidem transserendiluris promissionem, sed nondum quicquam transserunt.

Contractus Signa per Consequens, interdum sunt Consequentiae Verborum; interdum consequentiae Silentii, interdum consequentiae Actionum,interdum etiam consequentiae Omissionum. In universum autem Signum Contractus per Consequens, est quicquid Contrahenti-s Voluntatem Contrahendi satis indicat.

Verba sola, si de Futuro sunt, Donationis Signum idoneum non est. Nam Verba haec Crat dabo, signisicant nondum Dedisie, et proindc Ius nondum Translatum esle, sed Manere. Sin de Praesenti, vel Praeterito sint, ut Do, vel Dedi habendttm Cras^ tunc Ius Crastinum recte Transsertur, idque Vi Verborum, etsi Voluntatis Signum aliud nullum sit. Magna enim differentia est inter Volo hoc taum e(se Cras, et Cran ttbi hoc Dabo, Nam illic Volo, Prassentem et certam

Volun~

Voluntatem; hic Futuram, id est incertam, id est, nullam indicat; quia Voluntatis suae Crastiiue dominus nemoest. lllic ergo Ius de Prassente debet intelligi.

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Contract What

The mutuall transferring of Right, is that which men call CONTRACT.

There is difference, between transferring of Right to the Thing; and transferring, or tradition, that is, delivery of the Thing it selfe. For the Thing may be delivered together with the Translation of the Right; as in buying and selling with ready mony; or exchange of goods, or lands: and it may be delivered some time after.

Covenant What

Again, one of the Contractors, may deliver the Thing contracted for on his part, and leave the other to perform his part at some determinate time after, and in the mean time be trusted; and then the Contract on his part, is called PACT, or COVENANT: Or both parts may contract now, to performe hereafter: in which cases, he that is to performe in time to come, being trusted, his performance is called Keeping Of Promise, or Faith; and the fayling of performance (if it be voluntary) Violation Of Faith.

Free-gift

When the transferring of Right, is not mutuall; but one of the parties transferreth, in hope to gain thereby friendship, or service from another, or from his friends; or in hope to gain the reputation of Charity, or Magnanimity; or to deliver his mind from the pain of compassion; or in hope of reward in heaven; This is not Contract, but GIFT, FREEGIFT, GRACE: which words signifie one and the same thing.

Signes Of Contract Expresse

Signes of Contract, are either Expresse, or By Inference. Expresse, are words spoken with understanding of what they signifie; And such words are either of the time Present, or Past; as, I Give, I Grant, I Have Given, I Have Granted, I Will That This Be Yours: Or of the future; as, I Will Give, I Will Grant; which words of the future, are called Promise.

Signes Of Contract By Inference

Signes by Inference, are sometimes the consequence of Words; sometimes the consequence of Silence; sometimes the consequence of Actions; sometimes the consequence of Forbearing an Action: and generally a signe by Inference, of any Contract, is whatsoever sufficiently argues the will of the Contractor.

Free Gift Passeth By Words Of The Present Or Past

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Athlotheta in certamine Cursus pervenienti ad metam primo,praemium promittit Verbis de Futuro; debitum tamen illi prarmium est, quamquam gratis datura, quia nisi id voluislet Athlotheta, illos ad certamen non invitaslet.

In Contraclibus etiam Ius transit per Verba de Futuro, nempe ubi Translatio Iuris mutua est. Nam qui promisit, ideo Transserre lus suum velie intelligitur, quia Bonum propter quod promisit jam accepit. Alioqui is qui promisit prastiturus non eitet. In Emptione ergo et Venditione, aliisque Contractibus, Promislio tantum valet, quantum Pactum.

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Words alone, if they be of the time to come, and contain a bare promise, are an insufficient signe of a Free-gift and therefore not obligatory. For if they be of the time to Come, as, To Morrow I Will Give, they are a signe I have not given yet, and consequently that my right is not transferred, but remaineth till I transferre it by some other Act. But if the words be of the time Present, or Past, as, "I have given, or do give to be delivered to morrow," then is my to morrows Right given away to day; and that by the vertue of the words, though there were no other argument of my will. And there is a great difference in the signification of these words, Volos Hoc Tuum Esse Cras, and Cros Dabo; that is between "I will that this be thine to morrow," and, "I will give it to thee to morrow:" For the word I Will, in the former manner of speech, signifies an act of the will Present; but in the later, it signifies a promise of an act of the will to Come: and therefore the former words, being of the Present, transferre a future right; the later, that be of the Future, transferre nothing. But if there be other signes of the Will to transferre a Right, besides Words; then, though the gift be Free, yet may the Right be understood to passe by words of the future: as if a man propound a Prize to him that comes first to the end of a race, The gift is Free; and though the words be of the Future, yet the Right passeth: for if he would not have his words so be understood, he should not have let them runne.

Signes Of Contract Are Words Both Of The Past, Present, and Future In Contracts, the right passeth, not onely where the words are of the time Present, or Past; but also where they are of the Future; because all Contract is mutuall translation, or change of Right; and therefore he that promiseth onely, because he hath already received the benefit for which he promiseth, is to be understood as if he intended the Right should passe: for unlesse he had been content to have his words so understood, the other would not have performed his part first. And for that cause, in buying, and selling, and other acts of Contract, A Promise is equivalent to a Covenant; and therefore obligatory.

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Qui in Contractu prior prasstat, prasstationem alterius facit debitam. Sic in certamine, vel quando projiciuntur Nummi prampienti habendi, praemium illud viciori, vel praeripienti lureproprium est. Nam in ipsa certaminis indtctione lus Transsertur.

Verum, si Contradus siat, quo nentes Contrahentium statim pra> stare obligantur, sed ad diem certum Futurum, Paclum illud in mera' conditione Naturae, id est in Bello, si quascunque interveniat suspicio de praestando, invalidum est. In Civitate non item. Nam qui prior praestat, in casii priore incertus est, an praestiturus sit atter; in Civitate certus est, quia estqui cogat. Itaque nisi Potentia communis aliqua sit coerciva, is qui prior praestat leipsum hosti prodit, praeter Ius Naturale se et sua desendendi.

Susoicionis autem,quae Pactum invalidum reddere possit causa debet esiealiquid quod Pactum sequitur, signumque sit Voluntatis non prasstandi; alioqui Pactum irritum facere non potest. Quod enim impedire non potuit quin promiseris, impedire non debet quin promislum prasstes.

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Merit What

He that performeth first in the case of a Contract, is said to MERIT that which he is to receive by the performance of the other; and he hath it as Due. Also when a Prize is propounded to many, which is to be given to him onely that winneth; or mony is thrown amongst many, to be enjoyed by them that catch it; though this be a Free Gift; yet so to Win, or so to Catch, is to Merit, and to have it as DUE. For the Right is transferred in the Propounding of the Prize, and in throwing down the mony; though it be not determined to whom, but by the Event of the contention. But there is between these two sorts of Merit, this difference, that In Contract, I Merit by vertue of my own power, and the Contractors need; but in this case of Free Gift, I am enabled to Merit onely by the benignity of the Giver; In Contract, I merit at The Contractors hand that hee should depart with his right; In this case of gift, I Merit not that the giver should part with his right; but that when he has parted with it, it should be mine, rather than anothers. And this I think to be the meaning of that distinction of the Schooles, between Meritum Congrui, and Meritum Condigni. For God Almighty, having promised Paradise to those men (hoodwinkt with carnall desires,) that can walk through this world according to the Precepts, and Limits prescribed by him; they say, he that shall so walk, shall Merit Paradise Ex Congruo. But because no man can demand a right to it, by his own Righteousnesse, or any other power in himselfe, but by the Free Grace of God onely; they say, no man can Merit Paradise Ex Condigno. This I say, I think is the meaning of that distinction; but because Disputers do not agree upon the signification of their own termes of Art, longer than it serves their turn; I will not affirme any thing of their meaning: onely this I say; when a gift is given indefinitely, as a prize to be contended for, he that winneth Meriteth, and may claime the Prize as Due.

Covenants Of Mutuall Trust, When Invalid

If a Covenant be made, wherein neither of the parties performe presently, but trust one another; in the condition of meer Nature, (which is a condition of Warre of every man against every man,) upon any reasonable suspition, it is Voyd; But if there be a common Power set over them bothe, with right and force sufficient to compell performance; it is not Voyd. For he that performeth first, has no assurance the other will performe after; because the bonds of words are too weak to bridle mens ambition, avarice, anger, and other Passions, without the feare of some coerceive Power; which in the condition of meer Nature, where all men are equall, and judges of the justnesse of their own fears cannot possibly be supposed. And therefore he which performeth first, does but betray himselfe to his enemy; contrary to the Right (he can never abandon) of defending his life, and means of living.

But in a civill estate, where there is a Power set up to constrain those that would otherwise violate their faith, that feare is no more reasonable; and for that cause, he which by the Covenant is to perform first, is obliged so to do.

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Qui Ius aliquod transsert, etiam usum rei, quantum in se est, una transsert. Ut qui agrum vendit,herbam et quodcunque agro innascitur vel inaediticatur simul vendit; Et qui Molendinum vendit, aquam, qua agebatur, avertere non debet. Et qui Regendi summam Potestatem alicui transserunt, intelliguntur iidem lus dedisle cxigendi Pecunias ad Milites alendos, et creandi Magistratus et Ministros publicos.

Pacisci cum Brutis, quia Sermone carent, quo Voluntates signisicare postunt, imposlibile est.

Paciscicum Deo, nisi mediante aliquo, quem Deus alloquatur, kkk 3 vd yo I>s Homine. Cap. 14.

vel locum Dei tcneat, impossibile est 5 aliter enim, an Deus etiam pactus sit, nec ne ignoramus. Itaque qui vovet Deo aliquid, quod contra Legem Naturalem sit, frustra vovet, quia illicitum est; Sin Lege Naturali mandatum sit frustra est, quia Vovens, non Voto suo, sed Naturaelege obligatur.

Materia, sive objectum Pactorum femper aliquid est, de quo deliberari potest, propterea quod Deliberatio, quae est actus Voluntatis, intelligitur femper de futuro, et de eo, quod et Pacilcente sieri possibileexistimatur.

Itaque Promittere ea, quae Impossibilia eite scimus, Pacisci non est. At si contingat, post Impossibile esle, quod credebatur Possibile, Padtum validum est, obligatque ad praestandum (non rem Promi£sam) sed tantundem; fin hoc quoque sit Impossibile j adconatum praestandi quantum potest.

Pactis liberamur duobus modis, si praestiterimus, vel si condonatumsit. Est enim Praestatio omnis Pacli terminus naturalis; Condonatio autem est Libertatis restitutio, sive remissio luris obligationem constituentis.

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The cause of Feare, which maketh such a Covenant invalid, must be alwayes something arising after the Covenant made; as some new fact, or other signe of the Will not to performe; else it cannot make the Covenant Voyd. For that which could not hinder a man from promising, ought not to be admitted as a hindrance of performing.

Right To The End, Containeth Right To The Means

He that transferreth any Right, transferreth the Means of enjoying it, as farre as lyeth in his power. As he that selleth Land, is understood to transferre the Herbage, and whatsoever growes upon it; Nor can he that sells a Mill turn away the Stream that drives it. And they that give to a man The Right of government in Soveraignty, are understood to give him the right of levying mony to maintain Souldiers; and of appointing Magistrates for the administration of Justice.

No Covenant With Beasts

To make Covenant with bruit Beasts, is impossible; because not understanding our speech, they understand not, nor accept of any translation of Right; nor can translate any Right to another; and without mutuall acceptation, there is no Covenant.

Nor With God Without Speciall Revelation

To make Covenant with God, is impossible, but by Mediation of such as God speaketh to, either by Revelation supernaturall, or by his Lieutenants that govern under him, and in his Name; For otherwise we know not whether our Covenants be accepted, or not. And therefore they that Vow any thing contrary to any law of Nature, Vow in vain; as being a thing unjust to pay such Vow. And if it be a thing commanded by the Law of Nature, it is not the Vow, but the Law that binds them.

No Covenant, But Of Possible And Future

The matter, or subject of a Covenant, is alwayes something that falleth under deliberation; (For to Covenant, is an act of the Will; that is to say an act, and the last act, of deliberation;) and is therefore alwayes understood to be something to come; and which is judged Possible for him that Covenanteth, to performe.

And therefore, to promise that which is known to be Impossible, is no Covenant. But if that prove impossible afterwards, which before was thought possible, the Covenant is valid, and bindeth, (though not to the thing it selfe,) yet to the value; or, if that also be impossible, to the unfeigned endeavour of performing as much as is possible; for to more no man can be obliged.

Covenants How Made Voyd

Men are freed of their Covenants two wayes; by Performing; or by being Forgiven. For Performance, is the naturall end of obligation; and Forgivenesse, the restitution of liberty; as being a retransferring of that Right, in which the obligation consisted.

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Padum etiamsi Metu extortum sit, in conditione tamen hominum naturali validumestj ut si paciscar cum hoste, servandae vitae causa, pecuniam dare, praestare teneor. Contractusenimest, in quo alter Ius in Vitam, alter in Pecuniam transsert. Itaque ubi nulla Lex alia sit (ut in conditione naturali) quae Praestationem prohibeat, Paclum validum est. Sic bello captus, si libertatem ea conditione acceperit, ut pretium redemptionis post solvat, solvere obligatur. Etiam Princeps cum Principe fortiore, si Pacem incommodam Metu secerit, oblervare debet, nisi (at supradiclura est) causa aliqua nova et justa oriatur, quae excuset. Item in Civitate,si a Latrone vitam redimere promisia pecunia coadus fuero, praestanda pecunia est, nisi Lex Civilis prohibeat. Quicquid enim facere licitum est non obligato, idem licite pacisci posium propter Metum. Quod autem licitum est pacisci, illicitum eit non praestare.

Padum prius posterius invalidum reddit. Iure enim quod quis transtulit hodie, cras carebit.

Si quis se seipsum non desensurum esle contra vim paciscatur, Pactum invalidum est. Nam (ut ante ostensum est) Ius se desendendi contra Mortem intentatam, vulnera, incarcerationem (quorum sugiendorum causa Ius in omnia naturali depositum c(i) deponere nemo potest. Nam etsialiquis recte pacisci possit sic, Nisi hoc vel illud secero ocdde, pacilci tamcn non potest sic, hiist hoc velillttd secero, occi- sitro suro non restslam. Elieit enim homo naturaliter minus malum, id est periculum a resistentia, potius quam malum majus, nempe Mortem certam. Atque haec norunt omnes qui condemnatos sive ad carcerem, sive ad Mortem armati ducunt.

Si quis paciscatur seipsum accusare, nisi certus veniae siat, Pactum invalidumest. Nam in conditione Naturae ubi non sunt Iudicia, nullus est accusationibus locus. In statu autemcivili, accusationem lequitur supplicium; cui, cum sit vis, nemo obligatur non resistere. Idem verum est de accusatione eorum quorum condemnatione conjicimur in Miseriam, quales sunt Pater, Vxor, aliique Neceslarii; testimonium enim eorum, utpote invitus dictum et Natura ipsa corrumpi praesumendum est, neque ergo recipiendum. Nequeaccusationes exprestae per tormenta pro testimoniis habendassunt: Tormenta enim explorationi tantum inserviunt, et quicquid tortus consitetur, ad relaxationem cruciatuum spedat, non ad torquentium instructionem. Sive enim vera sive falsa conseslione se expediatj Iure idsacit,Iureinquamvitam propriam conservandi.

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Covenants Extorted By Feare Are Valide

Covenants entred into by fear, in the condition of meer Nature, are obligatory. For example, if I Covenant to pay a ransome, or service for my life, to an enemy; I am bound by it. For it is a Contract, wherein one receiveth the benefit of life; the other is to receive mony, or service for it; and consequently, where no other Law (as in the condition, of meer Nature) forbiddeth the performance, the Covenant is valid. Therefore Prisoners of warre, if trusted with the payment of their Ransome, are obliged to pay it; And if a weaker Prince, make a disadvantageous peace with a stronger, for feare; he is bound to keep it; unlesse (as hath been sayd before) there ariseth some new, and just cause of feare, to renew the war. And even in Common-wealths, if I be forced to redeem my selfe from a Theefe by promising him mony, I am bound to pay it, till the Civill Law discharge me. For whatsoever I may lawfully do without Obligation, the same I may lawfully Covenant to do through feare: and what I lawfully Covenant, I cannot lawfully break.

The Former Covenant To One, Makes Voyd The Later To Another

A former Covenant, makes voyd a later. For a man that hath passed away his Right to one man to day, hath it not to passe to morrow to another: and therefore the later promise passeth no Right, but is null.

A Mans Covenant Not To Defend Himselfe, Is Voyd

A Covenant not to defend my selfe from force, by force, is alwayes voyd. For (as I have shewed before) no man can transferre, or lay down his Right to save himselfe from Death, Wounds, and Imprisonment, (the avoyding whereof is the onely End of laying down any Right,) and therefore the promise of not resisting force, in no Covenant transferreth any right; nor is obliging. For though a man may Covenant thus, "Unlesse I do so, or so, kill me;" he cannot Covenant thus "Unless I do so, or so, I will not resist you, when you come to kill me." For man by nature chooseth the lesser evill, which is danger of death in resisting; rather than the greater, which is certain and present death in not resisting. And this is granted to be true by all men, in that they lead Criminals to Execution, and Prison, with armed men, notwithstanding that such Criminals have consented to the Law, by which they are condemned.

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Verba per se (ut ante dixi) homines ad Padorum prasstationem constringendi vim non habent. Duo autem ei rei auxilia tantum sunt, nimirum Metus Damni a violatione Pacti, vel quia fallere (ut signum Impotentiae) dedignentur. Posterior haec causa Generositas adeo rara est, ut in rationes venire non debeat. Solus Metus considerandus est, isqueduorum generum, quorum alter est Metus Potentiarura invisibilium, altermetus Potentiae humanas; et prior quidem Metus est majoris Potentiae; posterior autem major Metus. Metus prior a sua cujusque Religione est, ineratque hominibus ante omnem Societatem Civilem. Posterior Metus cum Civitatibus natus est; sed ad cogendos homines ad Padorum praestationem non sussicit. In conditione enim Naturae differentia Potentiarum non discernitur, nili per eventum Belli. Itaque ante Societatem Civilem, et quoties Societas Civilis per Bellum interrumpitur, nihil est, quo Pacta consirmari contra Cupiditates hominum melius poslunt, quam Metus Agentis invisibilis, quem vocant omnes Deum, diversis Ritibus adorantes. Ad firmanda ergo Pacta Paciscentibus necedarium visiim est^ ut per Deum quem metuebant Pada sua se praestituros este jurarent. Iuramentum autem est Tromtjjioni adjttncla formula Orationis, cjua qni sromitth, nisi promijsum prasitterit, Dcttm Vltorem invocat. Formula apud Romanos hujusmodi erat, Mattet me lupitcr, sicut ego masio hanc bestiam 5 et apud nos, Hocsactam ita me juvet Dw. Atque hxc facie- yi De Homine. Cap. ij.

faciebat cum Ceremoniis Ritibusque unusquisque Religionis propriac, ut ranto magis a luramenti violatione deterreretur.

Constat hinc, luramentum alia forma juratum, quam qus est iecundum Religionem Iurantis, insirmum esle. Constat item Iuramentum non esle, nisi per Deum Iurantis. Quamquam enim Ethnicorum aliqui per Reges suos Iurare soliti sunt, -simul tamen intelligi Divinum illis honorema setribui voluerunt. Iuramenta autem illa non requisita, sed voluntaria, frequenter jurata, luramenta proprte dicta non sunt, sed Nominis Divini abusio, nata ex prava consuetudine omnia nimium vehementer aslerentium.

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No Man Obliged To Accuse Himselfe

A Covenant to accuse ones Selfe, without assurance of pardon, is likewise invalide. For in the condition of Nature, where every man is Judge, there is no place for Accusation: and in the Civill State, the Accusation is followed with Punishment; which being Force, a man is not obliged not to resist. The same is also true, of the Accusation of those, by whose Condemnation a man falls into misery; as of a Father, Wife, or Benefactor. For the Testimony of such an Accuser, if it be not willingly given, is praesumed to be corrupted by Nature; and therefore not to be received: and where a mans Testimony is not to be credited, his not bound to give it. Also Accusations upon Torture, are not to be reputed as Testimonies. For Torture is to be used but as means of conjecture, and light, in the further examination, and search of truth; and what is in that case confessed, tendeth to the ease of him that is Tortured; not to the informing of the Torturers: and therefore ought not to have the credit of a sufficient Testimony: for whether he deliver himselfe by true, or false Accusation, he does it by the Right of preserving his own life.

The End Of An Oath; The Forme Of As Oath

The force of Words, being (as I have formerly noted) too weak to hold men to the performance of their Covenants; there are in mans nature, but two imaginable helps to strengthen it. And those are either a Feare of the consequence of breaking their word; or a Glory, or Pride in appearing not to need to breake it. This later is a Generosity too rarely found to be presumed on, especially in the pursuers of Wealth, Command, or sensuall Pleasure; which are the greatest part of Mankind. The Passion to be reckoned upon, is Fear; whereof there be two very generall Objects: one, the Power of Spirits Invisible; the other, the Power of those men they shall therein Offend. Of these two, though the former be the greater Power, yet the feare of the later is commonly the greater Feare. The Feare of the former is in every man, his own Religion: which hath place in the nature of man before Civill Society. The later hath not so; at least not place enough, to keep men to their promises; because in the condition of meer Nature, the inequality of Power is not discerned, but by the event of Battell. So that before the time of Civill Society, or in the interruption thereof by Warre, there is nothing can strengthen a Covenant of Peace agreed on, against the temptations of Avarice, Ambition, Lust, or other strong desire, but the feare of that Invisible Power, which they every one Worship as God; and Feare as a Revenger of their perfidy. All therefore that can be done between two men not subject to Civill Power, is to put one another to swear by the God he feareth: Which Swearing or OATH, is a Forme Of Speech, Added To A Promise; By Which He That Promiseth, Signifieth, That Unlesse He Performe, He Renounceth The Mercy Of His God, Or Calleth To Him For Vengeance On Himselfe. Such was the Heathen Forme, "Let Jupiter kill me else, as I kill this Beast." So is our Forme, "I shall do thus, and thus, so help me God." And this, with the Rites and Ceremonies, which every one useth in his own Religion, that the feare of breaking faith might be the greater.

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Constat denique, qu6d Obligationi, a luramento nihil additur. Pactum enim, si licitum sit, obligat per vimlegisnaturalis sine Iurejurando j fin illicitum sit, ne addito quidem Iurejurando obligare potest.

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No Oath, But By God

By this it appears, that an Oath taken according to any other Forme, or Rite, then his, that sweareth, is in vain; and no Oath: And there is no Swearing by any thing which the Swearer thinks not God. For though men have sometimes used to swear by their Kings, for feare, or flattery; yet they would have it thereby understood, they attributed to them Divine honour. And that Swearing unnecessarily by God, is but prophaning of his name: and Swearing by other things, as men do in common discourse, is not Swearing, but an impious Custome, gotten by too much vehemence of talking.

An Oath Addes Nothing To The Obligation

It appears also, that the Oath addes nothing to the Obligation. For a Covenant, if lawfull, binds in the sight of God, without the Oath, as much as with it; if unlawfull, bindeth not at all; though it be confirmed with an Oath.

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CAPVT XV — De caeteris Legibus Naturae

CHAPTER XV — Of Other Laws of Nature

Alege Naturaj, quae impedientia Pacem humanam Iura relinqui jubet, sequitur Lex Naturx tertia, Trxslanda ejse Facla. Nam atque eo Ius in omnia frustra deponitur, manetque omniurn contra omnes Bellum.

Atque in hac Lege consistit natura Iustitia?. Vbi enim non prsecessit Pactum, ibi lus nullum est translatum, sed omnia omnium sunt. Nihil ergo est Injustum. Manisesta hinc est Injustitise Definitio, sajusiitia esl Faclorum non Snestatio, sive (quod idem est) Fidei data Violatio. Iustumautem est, quod Injustum non est.

Quoniam autem Pacta Fidei mutuae (ut ante ostensiim est) proptermetumunius, ne alter fallat, invalida sunt, etsi origo Iustitise sit Pactum, Padum tamen non prasstare, ubi causa Metus sublata non est, non est Injustitia. Sublata autem non est, manente Iure omnium in omnia. Vocabula ergo Iuslum Sc Injustum ante Potentiam Civilem, qax Violationem Pactorum ulcisci poslet, et cuique Proprietatem siiam Pactis acquisitam stabilire, usiirpata non fuerunt. Idem intelligitur ex recepta in Scholis Iustitiae Definitione, lusiitia esi Voluntcti, conslans suum cuicjue tribuendi. Nam ubi Suum non est, id est, ubi Sroprium non est, ibi Injusium nihil est; et ubi Civitas non est, nihil est Sropy/um. Iustitiae autem essentia consistit in Prasstatione

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CHAPTER XV — Of Other Laws of Nature

CAPVT XV — De caeteris Legibus Naturae

The Third Law Of Nature, Justice

From that law of Nature, by which we are obliged to transferre to another, such Rights, as being retained, hinder the peace of Mankind, there followeth a Third; which is this, That Men Performe Their Covenants Made: without which, Covenants are in vain, and but Empty words; and the Right of all men to all things remaining, wee are still in the condition of Warre.

Justice And Injustice What

And in this law of Nature, consisteth the Fountain and Originall of JUSTICE. For where no Covenant hath preceded, there hath no Right been transferred, and every man has right to every thing; and consequently, no action can be Unjust. But when a Covenant is made, then to break it is Unjust: And the definition of INJUSTICE, is no other than The Not Performance Of Covenant. And whatsoever is not Unjust, is Just.

Justice And Propriety Begin With The Constitution of Common-wealth But because Covenants of mutuall trust, where there is a feare of not performance on either part, (as hath been said in the former Chapter,) are invalid; though the Originall of Justice be the making of Covenants; yet Injustice actually there can be none, till the cause of such feare be taken away; which while men are in the naturall condition of Warre, cannot be done. Therefore before the names of Just, and Unjust can have place, there must be some coercive Power, to compell men equally to the performance of their Covenants, by the terrour of some punishment, greater than the benefit they expect by the breach of their Covenant; and to make good that Propriety, which by mutuall Contract men acquire, in recompence of the universall Right they abandon: and such power there is none before the erection of a Common-wealth. And this is also to be gathered out of the ordinary definition of Justice in the Schooles: For they say, that "Justice is the constant Will of giving to every man his own." And therefore where there is no Own, that is, no Propriety, there is no Injustice; and where there is no coerceive Power erected, that is, where there is no Common-wealth, there is no Propriety; all men having Right to all things: Therefore where there is no Common-wealth, there nothing is Unjust. So that the nature of Justice, consisteth in keeping of valid Covenants: but the Validity of Covenants begins not but with the Constitution of a Civill Power, sufficient to compell men to keep them: And then it is also that Propriety begins.

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Pado-

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Justice Not Contrary To Reason

The Foole hath sayd in his heart, there is no such thing as Justice; and sometimes also with his tongue; seriously alleaging, that every mans conservation, and contentment, being committed to his own care, there could be no reason, why every man might not do what he thought conduced thereunto; and therefore also to make, or not make; keep, or not keep Covenants, was not against Reason, when it conduced to ones benefit. He does not therein deny, that there be Covenants; and that they are sometimes broken, sometimes kept; and that such breach of them may be called Injustice, and the observance of them Justice: but he questioneth, whether Injustice, taking away the feare of God, (for the same Foole hath said in his heart there is no God,) may not sometimes stand with that Reason, which dictateth to every man his own good; and particularly then, when it conduceth to such a benefit, as shall put a man in a condition, to neglect not onely the dispraise, and revilings, but also the power of other men. The Kingdome of God is gotten by violence; but what if it could be gotten by unjust violence? were it against Reason so to get it, when it is impossible to receive hurt by it? and if it be not against Reason, it is not against Justice; or else Justice is not to be approved for good. From such reasoning as this, Succesfull wickednesse hath obtained the Name of Vertue; and some that in all other things have disallowed the violation of Faith; yet have allowed it, when it is for the getting of a Kingdome. And the Heathen that believed, that Saturn was deposed by his son Jupiter, believed neverthelesse the same Jupiter to be the avenger of Injustice: Somewhat like to a piece of Law in Cokes Commentaries on Litleton; where he sayes, If the right Heire of the Crown be attainted of Treason; yet the Crown shall descend to him, and Eo Instante the Atteynder be voyd; From which instances a man will be very prone to inferre; that when the Heire apparent of a Kingdome, shall kill him that is in possession, though his father; you may call it Injustice, or by what other name you will; yet it can never be against Reason, seeing all the voluntary actions of men tend to the benefit of themselves; and those actions are most Reasonable, that conduce most to their ends. This specious reasoning is nevertheless false.

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Cap. xy. be Homine. j^

Pactorum, quae tunc valida esie incipiunt, quando constituta est Civitas; Itaque Civitas, Proprietas Bonorura, et Iustitia simul nata sunt.

Dixit Iniipiens, Non est Iustitia. Conservationis suas singuli et soli curam gerunt. Rationis ergd est, ut faciant singuli, quicquid e6 conducere iibimet ipsis videbitur, id est, Pacta facerc vel non facere, custodirevel non custodire arbitrio suo. Pacta facere licitum eslc non negat, nec observationem eorum Iustitiam vocari, Violationem Injustitiam. Sed Injustitiam (sublato timore Dei) consistere aliquan<lo posle dicit cum redta Ratione. Regnum (inquit) Dei acquiritur Violentia; quid si ab homine acquiri poslit per Violentiam injustam, anne contra rectam Rationem esset, cum imposlibile eslet, ut inde ullum sibi malum, sed summum bonum sequeretur? Si contra Rationem non est, quomodo contra Iustitiam est? At hujusmodi ratiocinatione ortum est, ut ab aliquibus Scelera prospera Virtutes existimatas sint; utque Fides, regnandi saltem causa violanda estet. Crediderunt Ethnici, Saturnum coelo expulsum a Iove esle, qui lovem tamen Injustitiae ultorem existimaverunt. Etiam, Iurisprudentium nostrorum aliqui hairedem Regni, etsi Proditor sit, statira ac moritur Rex, in Regnum succedere debere. Hujusmodi facinora quocunque nomine appellata contra Rationem (inquit) non sunt; quia omnes omnium Acliones voluntariae tendunt naturaliter ad bo•num iibimet ipsis, Sc maxime rationales sunt, qua; eo maxime tendunt. Veruratamen ratiocinatio hasc, utcunque speciosa, falsa est.

Quasstio enim non est de Promiilis mutuis in conditione hominum naturali, ubi nulla est Potentia cogens,• Nam sic Promisla illa Pada non eslent-j sed existente Potentia, quae cogat, et alter promislum prasstiterit, ibi quasstio est, an is, qui fallit cum Ratione, et ad bonum propriura congruenter fallat. Ego vero contra Rationem, et imprudenter facere dico. Primo enim in Civitate, si quis id fa■ciat, quod (quantum Prospici, Sc Ratione intelligi potest) ad suara ipiius tendit destructionem, quanquam improvisum aliquod accidat, quodeventum selicem efficiat, sadum nihilominus fuiile imprudenter, quia improvisum. In conditione autem naturali, ubi unusquisque uniuscujusque hostis est, sine ope Sociorum secure vivere nemo potest. Hominem autem, qui Pada fallere Rationis eile putat, in Societatem (qua; mutuis Paclis ad singulorum desensionem initur,) quis (nisiperinscitiamj admittet, aut admiilum retinebit? Quare, aut ejedus peribit, aut quod ejectus non sit, alienae debebit inscitix, quod est contra rectara Rationem. Etiam ipsa Regni Ccelestis Leviat, X 1 1 per

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For the question is not of promises mutuall, where there is no security of performance on either side; as when there is no Civill Power erected over the parties promising; for such promises are no Covenants: But either where one of the parties has performed already; or where there is a Power to make him performe; there is the question whether it be against reason, that is, against the benefit of the other to performe, or not. And I say it is not against reason. For the manifestation whereof, we are to consider; First, that when a man doth a thing, which notwithstanding any thing can be foreseen, and reckoned on, tendeth to his own destruction, howsoever some accident which he could not expect, arriving may turne it to his benefit; yet such events do not make it reasonably or wisely done. Secondly, that in a condition of Warre, wherein every man to every man, for want of a common Power to keep them all in awe, is an Enemy, there is no man can hope by his own strength, or wit, to defend himselfe from destruction, without the help of Confederates; where every one expects the same defence by the Confederation, that any one else does: and therefore he which declares he thinks it reason to deceive those that help him, can in reason expect no other means of safety, than what can be had from his own single Power. He therefore that breaketh his Covenant, and consequently declareth that he thinks he may with reason do so, cannot be received into any Society, that unite themselves for Peace and defence, but by the errour of them that receive him; nor when he is received, be retayned in it, without seeing the danger of their errour; which errours a man cannot reasonably reckon upon as the means of his security; and therefore if he be left, or cast out of Society, he perisheth; and if he live in Society, it is by the errours of other men, which he could not foresee, nor reckon upon; and consequently against the reason of his preservation; and so, as all men that contribute not to his destruction, forbear him onely out of ignorance of what is good for themselves.

As for the Instance of gaining the secure and perpetuall felicity of Heaven, by any way; it is frivolous: there being but one way imaginable; and that is not breaking, but keeping of Covenant.

And for the other Instance of attaining Soveraignty by Rebellion; it is manifest, that though the event follow, yet because it cannot reasonably be expected, but rather the contrary; and because by gaining it so, others are taught to gain the same in like manner, the attempt thereof is against reason. Justice therefore, that is to say, Keeping of Covenant, is a Rule of Reason, by which we are forbidden to do any thing destructive to our life; and consequently a Law of Nature.

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74 &* Homine. Cap. rs.

per Injustitiam acquisiti Suppositio ridicula est; per solam. enim Iustitiam acquiri potest.

Praeterea, Supposito quod Regnum acquisitum sit per Rebellionem, etiam sic contra rectam Rationem acquisitum erit j tum quia succeslsus tales ab initio incerti sunt, tum quia exempio suo docentur alii tantundem audere contra ipsos. Padorum ergo observatio, Rationis prasceptum est, id est, Lex Naturalis.

Sunt alii, qui Praecepta, quas ad conservandam vitam prarsentem conducunt, Leges Naturae esie negant, sed illa quae ducant ad selicitatem Vitae asternae j ad quam conducere aliquando dicunt Pactorum violationem, quae violatio propterea Iusta est. Atque hi sunt, qui Pietatis opus esle dicunt, Reges suos praetextu Religionis Bello persequi, deponere etc. intersicere. Sed quoniam status humani post mortem Scientia nulla est, sed tantummodo Fides, hominibus certis habita,dicentibus se id Scire supernaturaliter,vel accepisle ab aliis supernaturaliter scientibus, et sicalii ab aliis ascendendo, Violatio Paclorum juxta illorum sententiam non Legis Naturalis, sed supernaturalis violatio est. Legem autem supernaturalem habemus nullam praster Scripturam Sacram. Ea autem Obedientiam Regibus praestare, et Pacta observare passim praecipit.

Alii rursus, Pacta obiervanda este concedunt, praeterquam cum Haereticis. Sed hoc quoque iniquum est. Nam h vitium Personae satis causas sit Padlviolandi, satis etiam causas debebat esie non Paciscendi.

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There be some that proceed further; and will not have the Law of Nature, to be those Rules which conduce to the preservation of mans life on earth; but to the attaining of an eternall felicity after death; to which they think the breach of Covenant may conduce; and consequently be just and reasonable; (such are they that think it a work of merit to kill, or depose, or rebell against, the Soveraigne Power constituted over them by their own consent.) But because there is no naturall knowledge of mans estate after death; much lesse of the reward that is then to be given to breach of Faith; but onely a beliefe grounded upon other mens saying, that they know it supernaturally, or that they know those, that knew them, that knew others, that knew it supernaturally; Breach of Faith cannot be called a Precept of Reason, or Nature.

Covenants Not Discharged By The Vice Of The Person To Whom Made

Others, that allow for a Law of Nature, the keeping of Faith, do neverthelesse make exception of certain persons; as Heretiques, and such as use not to performe their Covenant to others: And this also is against reason. For if any fault of a man, be sufficient to discharge our Covenant made; the same ought in reason to have been sufficient to have hindred the making of it.

Justice Of Men, And Justice Of Actions What

The names of Just, and Unjust, when they are attributed to Men, signifie one thing; and when they are attributed to Actions, another. When they are attributed to Men, they signifie Conformity, or Inconformity of Manners, to Reason. But when they are attributed to Actions, they signifie the Conformity, or Inconformity to Reason, not of Manners, or manner of life, but of particular Actions. A Just man therefore, is he that taketh all the care he can, that his Actions may be all Just: and an Unjust man, is he that neglecteth it. And such men are more often in our Language stiled by the names of Righteous, and Unrighteous; then Just, and Unjust; though the meaning be the same. Therefore a Righteous man, does not lose that Title, by one, or a few unjust Actions, that proceed from sudden Passion, or mistake of Things, or Persons: nor does an Unrighteous man, lose his character, for such Actions, as he does, of forbeares to do, for feare: because his Will is not framed by the Justice, but by the apparant benefit of what he is to do. That which gives to humane Actions the relish of Justice, is a certain Noblenesse or Gallantnesse of courage, (rarely found,) by which a man scorns to be beholding for the contentment of his life, to fraud, or breach of promise. This Justice of the Manners, is that which is meant, where Justice is called a Vertue; and Injustice a Vice.

But the Justice of Actions denominates men, not Just, but Guiltlesse; and the Injustice of the same, (which is also called Injury,) gives them but the name of Guilty.

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Iustum et Injustum vocabula, aliud Homimbm, aliud Attionibm attnbutasignisicant. Hominibus attributa Morem velhabitumsignisicant, ut Virtutem aut Vitium. Sic Homo cui constans est voluntas lus suum unicuique tribuendi, etsi Actiones ejus aliquando Injushe fuerint, ipse tamen lustus est, modo lustitiam amet, vel quod Injuste secerat, etiamsi clam sit, ipse damnet, faclum nollet,damnum, i: quod factum sit, resarciat quantum potest. Injustus contra est, qui Iustitiam negligit, etsimetu, velalia causa sinistra neminiunquam Injuriam secisset,• Id quod Iustitiam veram et facere, et condire solet, &est Animi generositas quaedam quicquam fraudi et persidiae deberi dedignantis. lustitiae autem Actiones denominanthominem (non Iustsim ikd) Insontem; ut contra Injustitioe Acttones, id est Injuriae, non Injnslim, sed Sontem.

Prasterea, Injustitia Hominis est Animi ad Injuriam faciendam Habitus, Injustum faciens etiam ante quam sadta sit Injuria propter voluntatem faciendi, Sed Injustitia Actionis Personam aliquam asse-

£aro

Cap. 15". T>e Uomine. 75- dam Injuria supponit, nempeillum, quicum paclum est. Itaque contingit aliquando Injuriam alius, Damnum quod ab Injuria est, alius facit, ut quando Dominus debitam alicui solvere pecuniam ser^ vum juslcrit, si Scrvus non secerit, Injuria quaz Creditori sit a Domino est, quas Domino sit, a Servo est; non enim Servus, sed Dominus cum Creditore pactus est. Similiter, in statu Civiii, debita sibi remittere homines privati postunt; sed Latrocinia non item, quia lunt quasi debita publica, ita ut Injuna; factas sint Civitati.

Quod Volenti sit, Injuria non est. Nam nisi Paclum sit, ut nott faceret, Injuria elle non potest; si Pactum sit, tollitur Obligatio per Voluntatem Obligantis, id ejusquicum paclumest.

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Justice Of Manners, And Justice Of Actions

Again, the Injustice of Manners, is the disposition, or aptitude to do Injurie; and is Injustice before it proceed to Act; and without supposing any individuall person injured. But the Injustice of an Action, (that is to say Injury,) supposeth an individuall person Injured; namely him, to whom the Covenant was made: And therefore many times the injury is received by one man, when the dammage redoundeth to another. As when The Master commandeth his servant to give mony to a stranger; if it be not done, the Injury is done to the Master, whom he had before Covenanted to obey; but the dammage redoundeth to the stranger, to whom he had no Obligation; and therefore could not Injure him. And so also in Common-wealths, private men may remit to one another their debts; but not robberies or other violences, whereby they are endammaged; because the detaining of Debt, is an Injury to themselves; but Robbery and Violence, are Injuries to the Person of the Common-wealth.

Nothing Done To A Man, By His Own Consent Can Be Injury

Whatsoever is done to a man, conformable to his own Will signified to the doer, is no Injury to him. For if he that doeth it, hath not passed away his originall right to do what he please, by some Antecedent Covenant, there is no breach of Covenant; and therefore no Injury done him. And if he have; then his Will to have it done being signified, is a release of that Covenant; and so again there is no Injury done him.

Justice Commutative, And Distributive

Justice of Actions, is by Writers divided into Commutative, and Distributive; and the former they say consisteth in proportion Arithmeticall; the later in proportion Geometricall. Commutative therefore, they place in the equality of value of the things contracted for; And Distributive, in the distribution of equall benefit, to men of equall merit. As if it were Injustice to sell dearer than we buy; or to give more to a man than he merits. The value of all things contracted for, is measured by the Appetite of the Contractors: and therefore the just value, is that which they be contented to give. And Merit (besides that which is by Covenant, where the performance on one part, meriteth the performance of the other part, and falls under Justice Commutative, not Distributive,) is not due by Justice; but is rewarded of Grace onely. And therefore this distinction, in the sense wherein it useth to be expounded, is not right. To speak properly, Commutative Justice, is the Justice of a Contractor; that is, a Performance of Covenant, in Buying, and Selling; Hiring, and Letting to Hire; Lending, and Borrowing; Exchanging, Bartering, and other acts of Contract.

And Distributive Justice, the Justice of an Arbitrator; that is to say, the act of defining what is Just. Wherein, (being trusted by them that make him Arbitrator,) if he performe his Trust, he is said to distribute to every man his own: and his is indeed Just Distribution, and may be called (though improperly) Distributive Justice; but more properly Equity; which also is a Law of Nature, as shall be shewn in due place.

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Iustitia Actionum dividitur et Scriptoribus in Commutativam Sc Distributivam; quarum priorem dicunt in proportione Arithmetidi, posteriorem in Geometrica consistere j ita ut Commutativam in rerumcommutandarum/Equalitate quoad pretium, Distributivam in Benesiciorum asqualiter merentibus asquali Distributione consistere dicant,• quasi pluris vendere quam emimus Injustum eslet. Pretium omnium rerum Contrahentium appetitu sestimarur, pretiumque Iustum est in quod ambo Emptor et Venditor consentiunt. Meritum autem (praeterquam quod in Contraclibus qui prior praestat, ut alter quoquc pracstet post, Mereri dici posiit) non ex Iure, sed ex Gratia est. Distinctio ergo illa, illo quo exponi solet sensu, bona non est. Iustitia Commutativa, proprie est Iustitia Contrahentium, id est, Conservatio pactorum de Venditione et Emptione, de mutuo Datione et Acceptione; de Conductione; de Commutationibus, aliisque Actibus Contrahentium.

lustitia autem Distributiva est Iustitia Arbitri, qui (quia Fides ei adhibetur) si Fidem servat, utrique parti quod suum est Distribuit 3 et alia non est quam /Equitas.

Vt ab antecedente Pacto Iustitia, ita ab antecedente Gratia dependet Gratitudo, quas est Lex Naturalis quarta, et comprehendi potest hac Formula: Qui Bencsicium gratis datum accipit, conari debet, ne danti justa causa sit Benesicii dati poenitendi. Nemo enim dat nisi respiciens ad Bonum sibi, propterea quod omnis Actionis Voluntarias finis Bonum voienti est; quod Bonum si frustra expectandum eilet, homines scierint, nullum eritbenesaciendi initium, neque Considentiae mutuas, neque mutui Auxilii, neque Reconciliationisinter inimicos. Manebunt ergo in conditione Belli. Quod est contra Legem Naturae primam, quas Pacem quaerendam esle dictat.

Lex Naturae quinta est, ut Vnujquisque-se commodum actms pwslet.

1 1 1 2 Quod

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The Fourth Law Of Nature, Gratitude

As Justice dependeth on Antecedent Covenant; so does Gratitude depend on Antecedent Grace; that is to say, Antecedent Free-gift: and is the fourth Law of Nature; which may be conceived in this Forme, "That a man which receiveth Benefit from another of meer Grace, Endeavour that he which giveth it, have no reasonable cause to repent him of his good will." For no man giveth, but with intention of Good to himselfe; because Gift is Voluntary; and of all Voluntary Acts, the Object is to every man his own Good; of which if men see they shall be frustrated, there will be no beginning of benevolence, or trust; nor consequently of mutuall help; nor of reconciliation of one man to another; and therefore they are to remain still in the condition of War; which is contrary to the first and Fundamentall Law of Nature, which commandeth men to Seek Peace. The breach of this Law, is called Ingratitude; and hath the same relation to Grace, that Injustice hath to Obligation by Covenant.

The Fifth, Mutuall accommodation, or Compleasance

A fifth Law of Nature, is COMPLEASANCE; that is to say, "That every man strive to accommodate himselfe to the rest." For the understanding whereof, we may consider, that there is in mens aptnesse to Society; a diversity of Nature, rising from their diversity of Affections; not unlike to that we see in stones brought together for building of an Aedifice. For as that stone which by the asperity, and irregularity of Figure, takes more room from others, than it selfe fills; and for the hardnesse, cannot be easily made plain, and thereby hindereth the building, is by the builders cast away as unprofitable, and troublesome: so also, a man that by asperity of Nature, will strive to retain those things which to himselfe are superfluous, and to others necessary; and for the stubbornness of his Passions, cannot be corrected, is to be left, or cast out of Society, as combersome thereunto. For seeing every man, not onely by Right, but also by necessity of Nature, is supposed to endeavour all he can, to obtain that which is necessary for his conservation; He that shall oppose himselfe against it, for things superfluous, is guilty of the warre that thereupon is to follow; and therefore doth that, which is contrary to the fundamentall Law of Nature, which commandeth To Seek Peace. The observers of this Law, may be called SOCIABLE, (the Latines call them Commodi;) The contrary, Stubborn, Insociable, Froward, Intractable.

The Sixth, Facility To Pardon

A sixth Law of Nature is this, "That upon caution of the Future time, a man ought to pardon the offences past of them that repenting, desire it." For PARDON, is nothing but granting of Peace; which though granted to them that persevere in their hostility, be not Peace, but Feare; yet not granted to them that give caution of the Future time, is signe of an aversion to Peace; and therefore contrary to the Law of Nature.

The Seventh, That In Revenges, Men Respect Onely The Future Good

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Quod ut intelligatur, considerandum est, eite in bominum ad Societatem aptitudine Ingeniorum diversitatem, a diversitate Passionum ortam, non dislimilem ejus, quam videmus in congestis ad Dornum «disicandam lapidibus. Sicut enim Lapis, qui propter asperitatem et figurae irregularitatem plusloci proximis adimit quam ipse implet, neque propter duritiem complanari potest, ab aedisicantibus ut inutilis et molesta abjicitur: Ita etiam homo, qui propter asperiratem Ingenii de rebus contendit, sibi quidem siipersluis, vicina autem necenariis, nec (propter Assectuum contumaciam) corrigi potest, e Societate ejiciendus est. Cum enim unusquisque, Naturae non modo Lege, sed etiam necessitate, Conservationem propriam, et quae ad eam necestaria sunr conari intelligitur; is qui ob superslua repugnat, Belli sequuturi reus est, facitque contra Legem Naturae primam.

Lex Naturae sexta est, Vt Vnusquiscjue accepta temporis futuri Cauiione, proeteritas Injurias poenitemibus et petentibus condonet, Nam condonarealicui Injuriam, nihilaliud est, quam Pacem petentibus Pax eoncesla; Quae tamen perseverantibus in Inimicitia, non est Pax, sed Metus. Pcenitentibus autem non concesta, signum est Animi a Pacealieni, et proinde contra Legem Naturae.

Septima est, In Vltionibui non respiciendum ejse ad magnitudinem Mali prxtcriti, sed ad magnitudinem Boni nascituri. Lege hac vetitum est poenam alio consilio insligere, quam ut qui peccavit emendetur, vel moneantur qui vident ut caveant. Sequitur enim Lex haec ex praecedente, quae, quando cautum est de siituro, praeteriti veniam dare jubet. Vlcisci enim, nisi ad futurum Bonum dirigatur, i7nyxi£iw*.\» est j id est, de Malo alieno vanus et inutilis triumphus; et proinde contra Rationem, et Legem Naturae, quae de Vanis et Supersluis contendere prohibet. Violatio Legis hujus Crudehtas appeljatur.

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A seventh is, " That in Revenges, (that is, retribution of evil for evil,) Men look not at the greatnesse of the evill past, but the greatnesse of the good to follow." Whereby we are forbidden to inflict punishment with any other designe, than for correction of the offender, or direction of others. For this Law is consequent to the next before it, that commandeth Pardon, upon security of the Future Time. Besides, Revenge without respect to the Example, and profit to come, is a triumph, or glorying in the hurt of another, tending to no end; (for the End is alwayes somewhat to Come;) and glorying to no end, is vain-glory, and contrary to reason; and to hurt without reason, tendeth to the introduction of Warre; which is against the Law of Nature; and is commonly stiled by the name of Cruelty.

The Eighth, Against Contumely

And because all signes of hatred, or contempt, provoke to fight; insomuch as most men choose rather to hazard their life, than not to be revenged; we may in the eighth place, for a Law of Nature set down this Precept, "That no man by deed, word, countenance, or gesture, declare Hatred, or Contempt of another." The breach of which Law, is commonly called Contumely.

The Ninth, Against Pride

The question who is the better man, has no place in the condition of meer Nature; where, (as has been shewn before,) all men are equall. The inequallity that now is, has been introduced by the Lawes civill. I know that Aristotle in the first booke of his Politiques, for a foundation of his doctrine, maketh men by Nature, some more worthy to Command, meaning the wiser sort (such as he thought himselfe to be for his Philosophy;) others to Serve, (meaning those that had strong bodies, but were not Philosophers as he;) as if Master and Servant were not introduced by consent of men, but by difference of Wit; which is not only against reason; but also against experience. For there are very few so foolish, that had not rather governe themselves, than be governed by others: Nor when the wise in their own conceit, contend by force, with them who distrust their owne wisdome, do they alwaies, or often, or almost at any time, get the Victory. If Nature therefore have made men equall, that equalitie is to be acknowledged; or if Nature have made men unequall; yet because men that think themselves equall, will not enter into conditions of Peace, but upon Equall termes, such equalitie must be admitted. And therefore for the ninth Law of Nature, I put this, "That every man acknowledge other for his Equall by Nature." The breach of this Precept is Pride.

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Quoniam autem Odii et Contemptus signa omnia ad Pugnam accendunt, octavo loco pro Lege Naturali ponimus, Ne quis a'ium Satlo, Verbo, Vultu aut Gessu Odtsse vtl Despictre se stgmscet. Lege hac prohibetur Contumelia.

Qu^stio de Ordine inter homines in Conditione Naturali nulla cst. Distinctio illa introdutta est a Lege Civili. Scio Aristotelem lib. r. Politicorum quasi Principio utt, Eslealios a Natura1 factos ad Imperium, nimirum, Sapientes (id est, ut innuere voluit Philosophos, qualis ipse eratj alios ad Serviendum (nempe homines corporibus etc. ingenio duris) quasi Dominium et Servitus non a consensu hominum, sed a differentia Ingeniorum originem habuerint; id quod

Cap. r$\ Ue Hominc. yy

quod non modo contra Rationem, sed etiam contra Experientiam est. Quis enim ita stultus est, ut sibi ab aliis imperari mallet, quam a seipso? Etiara quando vi contenditur inter illos qui habentur Sapientes, et illos qui sunt Robusti, priores illi, rard aut nunquam victoriil potiuntur. Si ergo homines Natura? aequales. fecit, agnoscenda est aequalitas. Sed si inaequales fecit, quia tamen unusquisque unicuique aequalem se esle putat, Pax nisi aequalibus conditionibus non habebitur. Admittenda ergo est i£qualitas, et Lex Naturae nona est Homines omms interse Natura aquales ejse. Hujus Legis violatio Superbia est.

Ex hac Legesequitur decima, ut in Tace ineunda ricmo reservarisibi poscat Ins aliquod, quod cuiquam caterorum reservatum nolit. Cum enim vitae conservandae causa, sicut deponi Iura quaedam Naturalia, ita retineri quaedam necessarium eslet, nempe Ius proprii corporis curandi, Igne, Aqua, Aere fruendi, caeterisque sine quibus Homo vivere non potest j si jam plus retinere Iuris postulat, aliquis, quam aliis libenter conceslum vellet, facit ille contra Legem praecedentem. Hujus Legis violationem Graeci tskio^lcus, Latini Arroganttam dicunt.

Si in controversia Iuris Sententia alicujus Arbitri fidei permittatur, Lex Naturasest, undecima, utin utramque partem aquus jit. Nam absque eo siniri Lites non possunt. Qui ergo ^Equus non est, Litigantibus quantum in eo est Arbitria Sc Iudicia, et per consequens Pacem ipsam tollit, contra Legem Naturae primam.

Ex hac Lege sequitur duodecima, Qu<e Dividi non possuvt, eorum usum communcm esje; idque, si sieri potcsi, £? quantitas rei patiatur, sine reslrttlione; alioqui numero utentium pr optr tiona.it er. Distributio enim aequalis aliter eile non potest.

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The Tenth Against Arrogance

On this law, dependeth another, "That at the entrance into conditions of Peace, no man require to reserve to himselfe any Right, which he is not content should be reserved to every one of the rest." As it is necessary for all men that seek peace, to lay down certaine Rights of Nature; that is to say, not to have libertie to do all they list: so is it necessarie for mans life, to retaine some; as right to governe their owne bodies; enjoy aire, water, motion, waies to go from place to place; and all things else without which a man cannot live, or not live well. If in this case, at the making of Peace, men require for themselves, that which they would not have to be granted to others, they do contrary to the precedent law, that commandeth the acknowledgement of naturall equalitie, and therefore also against the law of Nature. The observers of this law, are those we call Modest, and the breakers Arrogant Men. The Greeks call the violation of this law pleonexia; that is, a desire of more than their share.

The Eleventh Equity

Also "If a man be trusted to judge between man and man," it is a precept of the Law of Nature, "that he deale Equally between them." For without that, the Controversies of men cannot be determined but by Warre. He therefore that is partiall in judgment, doth what in him lies, to deterre men from the use of Judges, and Arbitrators; and consequently, (against the fundamentall Lawe of Nature) is the cause of Warre.

The observance of this law, from the equall distribution to each man, of that which in reason belongeth to him, is called EQUITY, and (as I have sayd before) distributive justice: the violation, Acception Of Persons, Prosopolepsia.

The Twelfth, Equall Use Of Things Common

And from this followeth another law, "That such things as cannot be divided, be enjoyed in Common, if it can be; and if the quantity of the thing permit, without Stint; otherwise Proportionably to the number of them that have Right." For otherwise the distribution is Unequall, and contrary to Equitie.

The Thirteenth, Of Lot

But some things there be, that can neither be divided, nor enjoyed in common. Then, The Law of Nature, which prescribeth Equity, requireth, "That the Entire Right; or else, (making the use alternate,) the First Possession, be determined by Lot." For equall distribution, is of the Law of Nature; and other means of equall distribution cannot be imagined.

The Fourteenth, Of Primogeniture, And First Seising

Of Lots there be two sorts, Arbitrary, and Naturall. Arbitrary, is that which is agreed on by the Competitors; Naturall, is either Primogeniture, (which the Greek calls Kleronomia, which signifies, Given by Lot;) or First Seisure.

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Sunt autem quaedam res, quarum neque Divisio, neque Vsus communis esle potest. De his Lex Natune statuit decimatertia, ut Ins integrum, vel (si usus akernus placet) possesjio prima Sorte determinetur.

Sortium duo sunt genera, Arbitrarium etc. Naturale. Arbitrarium in quod consentiunt Partes. Naturaleest, aut Primogenitura, aut pnma Occupatio.

Itaque quarum rerum neque Divisioesi, ncque Vsus communis, eares velprtmi Occupantis, vel Trtmogemti sunt, Sorte acqutsttce: Quae est Lex. Naturae decima quarta.

Lex Naturae decima quinta est, Vt ljacis- Medimrtbm ire et redtre htto liceat. Lex enim quae dictat Pacem quaerendam else, ut finem, diitat quoque Mediatorum protectionem, ut Viam,

Lll 3 Quoniam

Quoniam autem inter eos qui Leges Naturales observant, qua> stiones nasci poslunt, primo, an factum sit; secundo (si factum est) utrum Iure an Injuria; quarum pnma dicitur controversia Faclti, secunda controveriia Iuris; nisi Luigantes in iententia alicujus tertii acquiescere mutuo paciscantur, Bellum manet. Tertius autera Arhiter dicitur. Itaque Lex Naturae decimasexta est in Sententia Arhitri acquiescere.

Quoniam autem Vnusquisque in omni Attione sua respicere solet ad Bonum sibi, Arhher idoneus in causa propria nemo esi. Quas est Lex Naturae decimaseptima.

Propter eandem causam, pro Arhitro recipiendus vemo esi in contreversia quacunque, cui Lucrnm, Dignitai vel Voluptai a Viclorta partts alterntrtus ma/iisesleorituraeji. Corrumpitur enim talis Arbiter a Natura humana. Quseestlex Naturaidecimaoctava.

Deciraanona Lex Natura; est, in qtaejlione Satli judicandum esse sicundum Teslcs* Litigantium enim uni credere potius, quam alteri contra v£quitatem est, nempe Legem Naturae undecimam.

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And therefore those things which cannot be enjoyed in common, nor divided, ought to be adjudged to the First Possessor; and is some cases to the First-Borne, as acquired by Lot.

The Fifteenth, Of Mediators

It is also a Law of Nature, "That all men that mediate Peace, be allowed safe Conduct." For the Law that commandeth Peace, as the End, commandeth Intercession, as the Means; and to Intercession the Means is safe Conduct.

The Sixteenth, Of Submission To Arbitrement

And because, though men be never so willing to observe these Lawes, there may neverthelesse arise questions concerning a mans action; First, whether it were done, or not done; Secondly (if done) whether against the Law, or not against the Law; the former whereof, is called a question Of Fact; the later a question Of Right; therefore unlesse the parties to the question, Covenant mutually to stand to the sentence of another, they are as farre from Peace as ever. This other, to whose Sentence they submit, is called an ARBITRATOR. And therefore it is of the Law of Nature, "That they that are at controversie, submit their Right to the judgement of an Arbitrator."

The Seventeenth, No Man Is His Own Judge

And seeing every man is presumed to do all things in order to his own benefit, no man is a fit Arbitrator in his own cause: and if he were never so fit; yet Equity allowing to each party equall benefit, if one be admitted to be Judge, the other is to be admitted also; & so the controversie, that is, the cause of War, remains, against the Law of Nature.

The Eighteenth, No Man To Be Judge, That Has In Him Cause Of Partiality

For the same reason no man in any Cause ought to be received for Arbitrator, to whom greater profit, or honour, or pleasure apparently ariseth out of the victory of one party, than of the other: for he hath taken (though an unavoydable bribe, yet) a bribe; and no man can be obliged to trust him. And thus also the controversie, and the condition of War remaineth, contrary to the Law of Nature.

The Nineteenth, Of Witnesse

And in a controversie of Fact, the Judge being to give no more credit to one, than to the other, (if there be no other Arguments) must give credit to a third; or to a third and fourth; or more: For else the question is undecided, and left to force, contrary to the Law of Nature.

These are the Lawes of Nature, dictating Peace, for a means of the conservation of men in multitudes; and which onely concern the doctrine of Civill Society. There be other things tending to the destruction of particular men; as Drunkenness, and all other parts of Intemperance; which may therefore also be reckoned amongst those things which the Law of Nature hath forbidden; but are not necessary to be mentioned, nor are pertinent enough to this place.

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Atque ha? Naturae Legessunt, qu*e conducunt ad multitudinem hominum in Pace conservandam. Aliae autem res siint, quae ad singut lorum destructionem tendunt, ut omnegenus Intemperantiae. Sed quia Naturam individuamspedant, nec ad institutara doclrinam pertinent, omittantur.

Esthasc, dicet aliquis, Legum Naturalium deductio subtilior, quam ut intelligi ab omnibus poset, quorum maxima pars alimentis studet, aut voluptatibus. Ne tamen etiam tardislimis excusationi locus relinquatur,contraxit eas Scriptura Sacra in unam eamque brevem et pers picuam sententiam, Quxcunque vultis facere vohis homines T idsacite tllis; et Philosophi, Quodtihi sieri non vis, akeri ne seceris. Quare ad totam Legem Naturalem perdiscendam, alia re opus non est, quam ut Acl-iones alienas cum nostris pensitantes, in alteram lancem transseramus, ne Passiones propriae ponderi forte aliquidaddiderint.

Leges Naturales obligant in Soro interno, id est, carum transgressio, non Crimen proprie, sed Vitium dicendura est. Sed in Soro cx~ ierno non femper obligant. Nam qui illas observarct tunc, quando a cactcris contemnuntur, cceteris praeda eslet, contra fundamentum omnium Legum Naturalium, nempenaturae conservationem. Attamen, quando de earundem observatione a ca?teris cautum est, tunc is, qui eas non observat, Bellum, non Pacem quarrit.

Legem omnem, ia Soro interno obligantem, Factum violat non modo modblegi contrarium, sed etiam congruum, si contrarium putet is qui facit. Quanquam enim Actio ipsa fuerit lecundum Legem, Voluntas contra erat. Nam in Soro interno solus Animus Reus sit.

Eaedem Leges, quia ad Velle tantum obligant, Velle inquam constanter, et sincere, faciles observatu sunt; soius Conatus sussicit. Qui illas observarequantum potest conatus est, observavit, et Iustus est.

Legum Naturalium Scientia vera et sola, Ethica est. Ethica autem alia non est, praeter Scientiam earum rerum quae in Congreslibus et Societate hominum, bonae vel matae sunt. Bona? autem et Malas dicuntur eaedem res a diversis hominibus, propterhominum Appetitus, Aversiones, Consuetudines et Dodsrinas diversas diverse; et quandoque ab eodem homine, propter mutationem Voluutatis eadem res modo bona modb mala appellatur.

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A Rule, By Which The Laws Of Nature May Easily Be Examined

And though this may seem too subtile a deduction of the Lawes of Nature, to be taken notice of by all men; whereof the most part are too busie in getting food, and the rest too negligent to understand; yet to leave all men unexcusable, they have been contracted into one easie sum, intelligible even to the meanest capacity; and that is, "Do not that to another, which thou wouldest not have done to thy selfe;" which sheweth him, that he has no more to do in learning the Lawes of Nature, but, when weighing the actions of other men with his own, they seem too heavy, to put them into the other part of the ballance, and his own into their place, that his own passions, and selfe-love, may adde nothing to the weight; and then there is none of these Lawes of Nature that will not appear unto him very reasonable.

The Lawes Of Nature Oblige In Conscience Alwayes,

But In Effect Then Onely When There Is Security The Lawes of Nature oblige In Foro Interno; that is to say, they bind to a desire they should take place: but In Foro Externo; that is, to the putting them in act, not alwayes. For he that should be modest, and tractable, and performe all he promises, in such time, and place, where no man els should do so, should but make himselfe a prey to others, and procure his own certain ruine, contrary to the ground of all Lawes of Nature, which tend to Natures preservation. And again, he that shall observe the same Lawes towards him, observes them not himselfe, seeketh not Peace, but War; & consequently the destruction of his Nature by Violence.

And whatsoever Lawes bind In Foro Interno, may be broken, not onely by a fact contrary to the Law but also by a fact according to it, in case a man think it contrary. For though his Action in this case, be according to the Law; which where the Obligation is In Foro Interno, is a breach.

The Laws Of Nature Are Eternal;

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Inde autem oriuntur Disputationes, Controversiae, et tandem Bellum. Quamdiu ergo homines privati Boni et Mali mensuram faciunt, tamdiu homines sunt in conditione Belli omniumcontra omnes. Pacem ergo bonam esle consitentur, quasruntque omnes. Itaque Media ad Pacem neceslaria bona esle negari non potest. Sunt autem illa, Iustitia, Gratitudo, Modestia, iequitas, et caeterae Leges Naturae. Bona igitur Moralia sunt, id est, Virtuces; et his contraria Mala, id est, Vitia. Scientia autem Virtutum et Vitiorum est Philosophia Moralis. Docsrina ergo de Legibus Naturae Vera est Ethica. Scriptores Ethici, etsi easdem agnoscant Virtutes, atque eadem Vitia; in quo tamen consistit Bonitas Virtutis, et quare laudabiiis sit non videntes, Virtutes alias non agnoverunt quam Pasiiones^ sed Mediocres; quasi Fortitudo, non causa, sed gradus Audendi -, etc. Liberalitas, non causa, led quantitas dati eslet.

Dictamina h#c Rationis nomen quidem obtinuerunt Legum; sed impropriedictarum. Suntenim deiis rebusquaead Conservationem hominum conducunt tantura Theoremata. Lex autem proprie dicla, est Vox Imperantis, vel prolata, vel icripta, ita ut omnes quiobedire tenentur, iciant vocem ejus esie.

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The Lawes of Nature are Immutable and Eternall, For Injustice, Ingratitude, Arrogance, Pride, Iniquity, Acception of persons, and the rest, can never be made lawfull. For it can never be that Warre shall preserve life, and Peace destroy it.

And Yet Easie

The same Lawes, because they oblige onely to a desire, and endeavour, I mean an unfeigned and constant endeavour, are easie to be observed. For in that they require nothing but endeavour; he that endeavoureth their performance, fulfilleth them; and he that fulfilleth the Law, is Just.

The Science Of These Lawes, Is The True Morall Philosophy

And the Science of them, is the true and onely Moral Philosophy. For Morall Philosophy is nothing else but the Science of what is Good, and Evill, in the conversation, and Society of mankind. Good, and Evill, are names that signifie our Appetites, and Aversions; which in different tempers, customes, and doctrines of men, are different: And divers men, differ not onely in their Judgement, on the senses of what is pleasant, and unpleasant to the tast, smell, hearing, touch, and sight; but also of what is conformable, or disagreeable to Reason, in the actions of common life. Nay, the same man, in divers times, differs from himselfe; and one time praiseth, that is, calleth Good, what another time he dispraiseth, and calleth Evil: From whence arise Disputes, Controversies, and at last War. And therefore so long as man is in the condition of meer Nature, (which is a condition of War,) as private Appetite is the measure of Good, and Evill: and consequently all men agree on this, that Peace is Good, and therefore also the way, or means of Peace, which (as I have shewed before) are Justice, Gratitude, Modesty, Equity, Mercy, & the rest of the Laws of Nature, are good; that is to say, Morall Vertues; and their contrarie Vices, Evill. Now the science of Vertue and Vice, is Morall Philosophie; and therfore the true Doctrine of the Lawes of Nature, is the true Morall Philosophie. But the Writers of Morall Philosophie, though they acknowledge the same Vertues and Vices; Yet not seeing wherein consisted their Goodnesse; nor that they come to be praised, as the meanes of peaceable, sociable, and comfortable living; place them in a mediocrity of passions: as if not the Cause, but the Degree of daring, made Fortitude; or not the Cause, but the Quantity of a gift, made Liberality.

These dictates of Reason, men use to call by the name of Lawes; but improperly: for they are but Conclusions, or Theoremes concerning what conduceth to the conservation and defence of themselves; whereas Law, properly is the word of him, that by right hath command over others. But yet if we consider the same Theoremes, as delivered in the word of God, that by right commandeth all things; then are they properly called Lawes.

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CAPVT XVI — De Personis et Authoribus

CHAPTER XVI — Of Persons, Authors, and Things Personated

Persona est is qm suo vel alieno nomir.e Res dgit. Si siio^ pia, sire Naturalisest; si alieno, Peribna est ejus, ci

Persona T?yo- ejus, cujusnomine agit Representativj. Peribnsam Grasci vocant <zrsjeumv, quod signisi- cat

80 T>e Homine* Cap. I&, cat Faciem hominis Naturalem. Sed a Latinis Persona frequentissime sumitur pro Facie Sictitia, quae et Larva dicitur, quali utebantur in tbeatris Histriones. A Theatro autem in Sorum translata est, etiam sine Larva; adeo ut Persona tum in Theatro, tum in Soro idem signisicaret quod Actor; et Personam alicujus gerereaut sustinere diceretur ille, qni Nomine cujuscunque(etsi sine Larvaj Partes ageret. Atque eo sensu utitur vocabulo Ter/ona Cicero ad Atticum, ubi dicit, Vniu susitneo tres Personas, Mei, Iudicis, et Adversarii. Itaque Deputati, Procuratores, Proreges, aliique qui aliorum negotia faciunt, eorum Personac sunt Repraesentativae.

Verba et Facta Repraesentantium, ab iisquos Repraesentant aliquando pro fuis agnoscuntur; tunc autem Repraesentans Actor, Repraesentatus Autnor dicitur, ut cujus authoritate Ador agit. Qui autem in quaestione de Bonis et Poslessionibus, Dominus; in quaestione de Verbis et Actionibus, Author appeliatur. Et ut Ius habendi, Dominium, ita Ius agendi, Authoritas dicitur.

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CHAPTER XVI — Of Persons, Authors, and Things Personated

CAPVT XVI — De Personis et Authoribus

A Person What

A PERSON, is he "whose words or actions are considered, either as his own, or as representing the words or actions of an other man, or of any other thing to whom they are attributed, whether Truly or by Fiction."

Person Naturall, And Artificiall

When they are considered as his owne, then is he called a Naturall Person: And when they are considered as representing the words and actions of an other, then is he a Feigned or Artificiall person.

The Word Person, Whence

The word Person is latine: instead whereof the Greeks have Prosopon, which signifies the Face, as Persona in latine signifies the Disguise, or Outward Appearance of a man, counterfeited on the Stage; and somtimes more particularly that part of it, which disguiseth the face, as a Mask or Visard: And from the Stage, hath been translated to any Representer of speech and action, as well in Tribunalls, as Theaters. So that a Person, is the same that an Actor is, both on the Stage and in common Conversation; and to Personate, is to Act, or Represent himselfe, or an other; and he that acteth another, is said to beare his Person, or act in his name; (in which sence Cicero useth it where he saies, "Unus Sustineo Tres Personas; Mei, Adversarii, & Judicis, I beare three Persons; my own, my Adversaries, and the Judges;") and is called in diverse occasions, diversly; as a Representer, or Representative, a Lieutenant, a Vicar, an Attorney, a Deputy, a Procurator, an Actor, and the like.

Actor, Author; Authority

Of Persons Artificiall, some have their words and actions Owned by those whom they represent. And then the Person is the Actor; and he that owneth his words and actions, is the AUTHOR: In which case the Actor acteth by Authority. For that which in speaking of goods and possessions, is called an Owner, and in latine Dominus, in Greeke Kurios; speaking of Actions, is called Author. And as the Right of possession, is called Dominion; so the Right of doing any Action, is called AUTHORITY. So that by Authority, is alwayes understood a Right of doing any act: and Done By Authority, done by Commission, or Licence from him whose right it is.

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Si ergo Ador Paciscatur per Authoritatem sibi datam, Authorera obligat, et Pacti consequentiis omnibus subjicit, tanquam si in Persona sua propria Padus eslet. Omnia ergo quae de natura Pactorum Capp. 14. et iy. dicta sunt, veraetiam lunt, ubipactasiunt per Perionas Repraesentativas, ied secundum Authoritates sibi conceilas.

Itaque qui cum Actore Paciscitur, cujus Authoritatem nescit, proprio id facit periculo. Nemo enim Pacto obligatur, cujus ipse nora sit Author. Quando ergo aliquis contra Legem Naturae, Authoritate aliena facit Actor, non Aclor, sed Author Legem violat. Aclio quidem contra Legem est, sed non Actoris, sed Authoris Adioest; cjuia Legem violaslet A<5tor si non secislet, cum facere Pactus eslet.

Qui cum Actore, Authoritatis illi conceslae inscius, verboejus credens Paciscitur, nisi Authoritatem Aclor rogatus ostendat, non est ulrerius obligatus. Pactum enim sine Autboritate invalidimn est. Sin qui Padus iit aliam cautionem non expectabat praeter Acloris Verbum, tum cum Paciscebatur, Padum contra Aclorem valet, quia se Authorem fecit. Et sic, ubi Authoritas manisesta est, Author; ubi £da est, Actor obligatur.

Paucae res sunt, quarum non poslunteile Personae. Quamquam enim Persona sit per Naturam aliquid quod intelligit, id tamen cujus Persona geritur non femper neceslario ita est. Itaque rei Inanimatae, ut Ecclesiae, Nosocomii, Pontis Persona geri potest a Rectore vel Curatore aliquo. Authores autem res Inanimatae eslc non poilunt; verura verum Reclores et Curatores qui gerunt Personam rerum Inanimatarum, agentper Authoritatem eorum, quorum est Dominium illarum. Perlbnx ergo ejusmodi extra Statum Civilem non existunt.

Insantis, et ejus qui mentis compos non est, Persona geri potest per Tutorem j qui tamen dum Insans mentis impos est, Author non est, nisi per conceslionem Civitatis. Authoritas enim Tutoribus et Curatoribus dari non potest nisi Iure Civili.

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Covenants By Authority, Bind The Author

From hence it followeth, that when the Actor maketh a Covenant by Authority, he bindeth thereby the Author, no lesse than if he had made it himselfe; and no lesse subjecteth him to all the consequences of the same. And therfore all that hath been said formerly, (Chap. 14) of the nature of Covenants between man and man in their naturall capacity, is true also when they are made by their Actors, Representers, or Procurators, that have authority from them, so far-forth as is in their Commission, but no farther.

And therefore he that maketh a Covenant with the Actor, or Representer, not knowing the Authority he hath, doth it at his own perill. For no man is obliged by a Covenant, whereof he is not Author; nor consequently by a Covenant made against, or beside the Authority he gave.

But Not The Actor

When the Actor doth any thing against the Law of Nature by command of the Author, if he be obliged by former Covenant to obey him, not he, but the Author breaketh the Law of Nature: for though the Action be against the Law of Nature; yet it is not his: but contrarily; to refuse to do it, is against the Law of Nature, that forbiddeth breach of Covenant.

The Authority Is To Be Shewne

And he that maketh a Covenant with the Author, by mediation of the Actor, not knowing what Authority he hath, but onely takes his word; in case such Authority be not made manifest unto him upon demand, is no longer obliged: For the Covenant made with the Author, is not valid, without his Counter-assurance. But if he that so Covenanteth, knew before hand he was to expect no other assurance, than the Actors word; then is the Covenant valid; because the Actor in this case maketh himselfe the Author. And therefore, as when the Authority is evident, the Covenant obligeth the Author, not the Actor; so when the Authority is feigned, it obligeth the Actor onely; there being no Author but himselfe.

Things Personated, Inanimate

There are few things, that are uncapable of being represented by Fiction. Inanimate things, as a Church, an Hospital, a Bridge, may be Personated by a Rector, Master, or Overseer. But things Inanimate, cannot be Authors, nor therefore give Authority to their Actors: Yet the Actors may have Authority to procure their maintenance, given them by those that are Owners, or Governours of those things. And therefore, such things cannot be Personated, before there be some state of Civill Government.

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Idoli, id est meri figmenti, quales erant Dii Gentium, Persona* fuere constitutae, quae Bona Mobilia et Immobilia, et lura tenuerunt Idolis consecrata. Idolum autem, cum sit nihil, nullius rei Author eile potuit. Authoritatem dederunt Civitates.

Etiam Dei veri Persona geritur, et gesta est. Mundum enim iti propria Persona creavit. In redimendo genere Humano Personara Dei geslit Iesus Christus. In Electis sanclisicandis ejusdem Dei Personam gellit Spiritus Sandhis j Id quod docemur in Catechismo publico, nempe, Credere in Deum Patrem qui creavit Me G? totum Mundum j et in Deum Filittm qut redemit Me et totumgentu Humanum, et in Spiritum Sanuum qtti Santttsicavit Me (3 omnem Elettum Popw lum Dei.

Etiam plurium hominum sit una Persona, quando repraesentatur abuno, qui habeta Singulis Authoritatem. Non enim Repraesentati, sed Repraesentantis Unitas est, quae Personam facit esse Unam j neque Unitas alio modo in Multitudine intelligi potest.

Quoniam autem Multitudo Naturaliter non Unum aliquod, sed Multi sunt j non Unus, sed Multi, nempe Singuli, Autljores sunt eorum quae dicit vel facit Aclor, qui est Persona ipsos Repraesentans. Unusquisque enim eorum communi Actori suo Authoritatem tribuit suam. Sin Authoritas finita sit quar tribuitur, Author quisque est illarum solummodo Aclionum quae in Mandatis continentur.

Si Adscor, seu Persona non sit Unus homo, sed Ccetus hominura, tunc Vox partis Majoris accipienda est pro Voce Personae. Nam si Pars Minor pronuntiet (exempli causa) Assirmative, Major Negative, Voces Negativae abundantes, ut quibus non contradicitur, Personae, id est, Omnium Vox est j Nam alioqui (contra Naturam) Persona Muta eslet.

Si Persona Repraesentans ex pluribus constet numero paribus^praesertim parvo, continget saepenumero (Negationibus et Asermationibus se mutuo extinguentibus) Personam sieri Mutam et proinde inutilem, et Agendi incapacem. Potest tamen sieri ut Voces contradidoris, eaedemque aequales numero, quasstionem determinent j ut Leviut* m m m in

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Irrational

Likewise Children, Fooles, and Mad-men that have no use of Reason, may be Personated by Guardians, or Curators; but can be no Authors (during that time) of any action done by them, longer then (when they shall recover the use of Reason) they shall judge the same reasonable. Yet during the Folly, he that hath right of governing them, may give Authority to the Guardian. But this again has no place but in a State Civill, because before such estate, there is no Dominion of Persons.

False Gods

An Idol, or meer Figment of the brain, may be Personated; as were the Gods of the Heathen; which by such Officers as the State appointed, were Personated, and held Possessions, and other Goods, and Rights, which men from time to time dedicated, and consecrated unto them. But idols cannot be Authors: for a Idol is nothing. The Authority proceeded from the State: and therefore before introduction of Civill Government, the Gods of the Heathen could not be Personated.

The True God

The true God may be Personated. As he was; first, by Moses; who governed the Israelites, (that were not his, but Gods people,) not in his own name, with Hoc Dicit Moses; but in Gods Name, with Hoc Dicit Dominus. Secondly, by the son of man, his own Son our Blessed Saviour Jesus Christ, that came to reduce the Jewes, and induce all Nations into the Kingdome of his Father; not as of himselfe, but as sent from his Father. And thirdly, by the Holy Ghost, or Comforter, speaking, and working in the Apostles: which Holy Ghost, was a Comforter that came not of himselfe; but was sent, and proceeded from them both.

A Multitude Of Men, How One Person

A Multitude of men, are made One Person, when they are by one man, or one Person, Represented; so that it be done with the consent of every one of that Multitude in particular. For it is the Unity of the Representer, not the Unity of the Represented, that maketh the Person One. And it is the Representer that beareth the Person, and but one Person: And Unity, cannot otherwise be understood in Multitude.

Every One Is Author

And because the Multitude naturally is not One, but Many; they cannot be understood for one; but many Authors, of every thing their Representative faith, or doth in their name; Every man giving their common Representer, Authority from himselfe in particular; and owning all the actions the Representer doth, in case they give him Authority without stint: Otherwise, when they limit him in what, and how farre he shall represent them, none of them owneth more, than they gave him commission to Act.

An Actor May Be Many Men Made One By Plurality Of Voyces

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8-i 1>e Homne» Cap. 16» in Accusationibus, eo ipso Reura absolvunt quod eondemnare eum propter voces aequales non possunt; at contra non abiblvere, non est condemnare. Idem contingeret deliberantibus utrum aliquid statim faciendum sit, an in aliud tempus differendum. Eo enim quod praesentero executionem non decernunt, decernunt dilationera.

Porro, (i numerus impar sit > ut tres, vel plures; siquidem vox unius tolleret voces reliquorum contradictorias, numerus ille Perlona non eltet, propter diversitatera opinionum &appetituum in rebus multis et maximi momenti. Muta enim eslet etc. ad Agendum inepta.

Authorum duo sunt genera. Sunt enim alii simpliciter Authores; de quibus modo didum est. Alii conditionaliter tantum; ut qui Pactum praestare in se recipit, si is qui Pactus est, ante constitutum diem non praestiterit. Atque hi,quamquam Fidei habendae Authores sunt, aliis tamen nominibus pro variis Actionum generibus vocitan» tur, ut Fideijustores, Sponsores, Praedes, Vades,

D E

De Civitate

S I V E

Repvblica.

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And if the Representative consist of many men, the voyce of the greater number, must be considered as the voyce of them all. For if the lesser number pronounce (for example) in the Affirmative, and the greater in the Negative, there will be Negatives more than enough to destroy the Affirmatives; and thereby the excesse of Negatives, standing uncontradicted, are the onely voyce the Representative hath.

Representatives, When The Number Is Even, Unprofitable

And a Representative of even number, especially when the number is not great, whereby the contradictory voyces are oftentimes equall, is therefore oftentimes mute, and uncapable of Action. Yet in some cases contradictory voyces equall in number, may determine a question; as in condemning, or absolving, equality of votes, even in that they condemne not, do absolve; but not on the contrary condemne, in that they absolve not. For when a Cause is heard; not to condemne, is to absolve; but on the contrary, to say that not absolving, is condemning, is not true. The like it is in a deliberation of executing presently, or deferring till another time; For when the voyces are equall, the not decreeing Execution, is a decree of Dilation.

Negative Voyce

Or if the number be odde, as three, or more, (men, or assemblies;) whereof every one has by a Negative Voice, authority to take away the effect of all the Affirmative Voices of the rest, This number is no Representative; because by the diversity of Opinions, and Interests of men, it becomes oftentimes, and in cases of the greatest consequence, a mute Person, and unapt, as for may things else, so for the government of a Multitude, especially in time of Warre.

Of Authors there be two sorts. The first simply so called; which I have before defined to be him, that owneth the Action of another simply. The second is he, that owneth an Action, or Covenant of another conditionally; that is to say, he undertaketh to do it, if the other doth it not, at, or before a certain time. And these Authors conditionall, are generally called SURETYES, in Latine Fidejussores, and Sponsores; and particularly for Debt, Praedes; and for Appearance before a Judge, or Magistrate, Vades.

PART II. OF COMMON-WEALTH

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LATINE · 1668

CAPVT XVII — De Causa, Generatione, et Definitione Civitatis

CHAPTER XVII — Of the Causes, Generation, and Definition of a Commonwealth

[Q]uod homines Libertatis et Dominii per naturam amatores, ex prasscripto (ut sit in statu Civili) vivere voluerunt, Finis et Causa fuit cura conservationis suae Vitaeque commodioris, id est, ut e conditione misera Belli omnium contra omnes exirent, quae conditio Libertati naturali (propter passiones humanas) neceslario tunc adhaeret, quando nulla extat potentia visibilis quae pasliones illas terrore pcenarum temporarepoilit, legesque naturales,& pacta observari faciat. Leges enim naturae (ut lustitia, v£quitas etc..) &uno verbo, Facere aliisquod sieri vellemta nobii, absque metu Potentiae coaclivae, paslionibus naturalibus (quales siiat Ira, Sttperbta, Cttpiditasqtie, omnis) contrarias siint.

Exitum autem c conditione Belli omnium contra omnes Leges et Pacta, per se prasstare non postunr. Verba enim sunt, dumque verba tantum sunt, non timencur, ideoque ad securitatem hominum per se sine armis inutilia sunt. Itaque Leges (quas qui observare, aliis observantibus, conatus est, observavitj quoties potentiae cogentis metus abest non obligant, neque impediunt, quin securitatem siiam a viribus et artibus propriis petere unicuique licitum sit. Idem etiam doccnt historire veteris Graeciae, ubi cum nulla eslent (praster paterna) Imperia, latrocinium mari terraque quasstus non modo licitus, sed etiam (a crudelitate, et ab agri colendi instrumentis abstinentibus) honorisicus erat. Quod autem secerunt tunc Familiae parvae, id nunc faciunt Civitates, id est Familiae magnae, dominia sua securitatis causa, ad omnem periculi vel invasionis hostilis suspicionem augentes; et tum hostes, tum eos qui hostibus auxiliaturi videntur, quantum postunt vi et astu debellant aut debilitant; idque, quia aliter securi esle non postunt, juste.

Neque securitatem quam quammt prasstare potest paucorum hominum interse conspiratio, quia in parvis numeris parva Sociorum acceslio ad certam sussicit victoriam, animosque addit aggresloribus. Multitudo autem quas securitatis sua? spem praestare potest, numero non certo, sed cum viribus hostium comparato determinatur, ut major sit quam ut exceslus tanti ei tam conspicui momenti ad Bellum siniendum sit, ut hostis ad aggrediendum provocetur.

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CHAPTER XVII — Of the Causes, Generation, and Definition of a Commonwealth

CAPVT XVII — De Causa, Generatione, et Definitione Civitatis

The End Of Common-wealth, Particular Security

The finall Cause, End, or Designe of men, (who naturally love Liberty, and Dominion over others,) in the introduction of that restraint upon themselves, (in which wee see them live in Common-wealths,) is the foresight of their own preservation, and of a more contented life thereby; that is to say, of getting themselves out from that miserable condition of Warre, which is necessarily consequent (as hath been shewn) to the naturall Passions of men, when there is no visible Power to keep them in awe, and tye them by feare of punishment to the performance of their Covenants, and observation of these Lawes of Nature set down in the fourteenth and fifteenth Chapters.

Which Is Not To Be Had From The Law Of Nature:

For the Lawes of Nature (as Justice, Equity, Modesty, Mercy, and (in summe) Doing To Others, As Wee Would Be Done To,) if themselves, without the terrour of some Power, to cause them to be observed, are contrary to our naturall Passions, that carry us to Partiality, Pride, Revenge, and the like. And Covenants, without the Sword, are but Words, and of no strength to secure a man at all. Therefore notwithstanding the Lawes of Nature, (which every one hath then kept, when he has the will to keep them, when he can do it safely,) if there be no Power erected, or not great enough for our security; every man will and may lawfully rely on his own strength and art, for caution against all other men. And in all places, where men have lived by small Families, to robbe and spoyle one another, has been a Trade, and so farre from being reputed against the Law of Nature, that the greater spoyles they gained, the greater was their honour; and men observed no other Lawes therein, but the Lawes of Honour; that is, to abstain from cruelty, leaving to men their lives, and instruments of husbandry. And as small Familyes did then; so now do Cities and Kingdomes which are but greater Families (for their own security) enlarge their Dominions, upon all pretences of danger, and fear of Invasion, or assistance that may be given to Invaders, endeavour as much as they can, to subdue, or weaken their neighbours, by open force, and secret arts, for want of other Caution, justly; and are remembred for it in after ages with honour.

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Sit autem multitudo quantacunque, si tamen actiones eorum Iudiciis et Arbitriis multorum gubernentur, nullam inde expectare po£ sunt securitatem, neque contra communem hostem, neque contra injurias alter alterius. Dislentientes enim inter se de Virium usu non sibi mutuo auxiliaturi sunt, sed oppositis consiliis vires ad nihilum reducturi. Vndenon modoa communihoste facile superantur, ied etiam de commodis propriis inter se Bello certaturi sunt. Siquidem enim hominum numerus magnus, sine Potentia communi quas posset omnes cogere, in j£qukatem caeterasque Leges Naturs observandas consentire supponeretur, idem etiam de toto genere humano supponendum eslet, itaque Regimine Civili omnino opus non eslet r victuris scilicet hominibus in Pace, etc. sine Dominis.

Neque ad securitatem (quam perpetuam esle volunt) sussicit, utr gubementur pro certo tantum et determinato tempore, ut in uno praelio, vel Bello uno. Etsi enim (per conatum unanimem) hostem vincant, postea tamen, si communem hostem non habeant, vel si alii hostem, alii amicum, eundem putent, Societas neceslario dislolvetur, et propter voluntatum dislerentias, inter seipsos Bellum renovabitur.

Sed sunt, inquiet aliquis, Animalia quasdam bruta, ut Apes, et Sorraic33 qua; paciske in eodem Alveari, et in eadem Formicaria inter se vivunt, habenturque ab Aristotele pro Animahbus Politicis, regunturque suo unumquodque Iudicio et Appetitu, idque sine usu Sermonis quo signisicare alius alii possit, quid ad utilitatem comrrunem conducere, vel non conducere existimant. Quid ergo impedit quo minus homines idem faciant? Ad hoc respondeo.

Primo, Quod Homines inter se dehonoribus et Dignitate perpetuo contendunt; sed Animalia illa non item. Itaque inter homines Invidia, Odium, Bellum, propter eam (inter alias) causam saepe natcitur; inter illa rarislime.

Secundo, Inter Animalia illa bonum Publicum et Privatum idem est. Ergo ad bonum Privatum dum naturaliter seruntur, simul procurant Bonum Commune. Homini autem in bonis propriis nihii tam jucundum est, quam quod alienis sunt majora.

Tertio, Animalia illa, quia carent Ratione, in rerum suarum communium administratione nihil vident, aut videre sibi videntur, quodt culpent; inter homines autem permulti sunt, qui se casteris sapientiores, et regendae Civitatis capaciores esle putant, quique dum suo quisque modo resormare volunt, dissident inter se et Belli causa sunt.

Quarto, Animalia illa (etsi ad cupiditates suas signisicandas inter se vocis usum habeant quanto egent) verborum tamen arte illa carent, qua Homines aliialiis videri faciunt Bonum Malum, et Malum Bonum j Magnum Parvum j et Parvum Magnum j et alter alterius adiones ita reprehendit, ut inde turbae oriantur.

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Nor From The Conjunction Of A Few Men Or Familyes

Nor is it the joyning together of a small number of men, that gives them this security; because in small numbers, small additions on the one side or the other, make the advantage of strength so great, as is sufficient to carry the Victory; and therefore gives encouragement to an Invasion. The Multitude sufficient to confide in for our Security, is not determined by any certain number, but by comparison with the Enemy we feare; and is then sufficient, when the odds of the Enemy is not of so visible and conspicuous moment, to determine the event of warre, as to move him to attempt.

Nor From A Great Multitude, Unlesse Directed By One Judgement

And be there never so great a Multitude; yet if their actions be directed according to their particular judgements, and particular appetites, they can expect thereby no defence, nor protection, neither against a Common enemy, nor against the injuries of one another. For being distracted in opinions concerning the best use and application of their strength, they do not help, but hinder one another; and reduce their strength by mutuall opposition to nothing: whereby they are easily, not onely subdued by a very few that agree together; but also when there is no common enemy, they make warre upon each other, for their particular interests. For if we could suppose a great Multitude of men to consent in the observation of Justice, and other Lawes of Nature, without a common Power to keep them all in awe; we might as well suppose all Man-kind to do the same; and then there neither would be nor need to be any Civill Government, or Common-wealth at all; because there would be Peace without subjection.

And That Continually

Nor is it enough for the security, which men desire should last all the time of their life, that they be governed, and directed by one judgement, for a limited time; as in one Battell, or one Warre. For though they obtain a Victory by their unanimous endeavour against a forraign enemy; yet afterwards, when either they have no common enemy, or he that by one part is held for an enemy, is by another part held for a friend, they must needs by the difference of their interests dissolve, and fall again into a Warre amongst themselves.

Why Certain Creatures Without Reason, Or Speech,

Do Neverthelesse Live In Society, Without Any Coercive Power

It is true, that certain living creatures, as Bees, and Ants, live sociably one with another, (which are therefore by Aristotle numbred amongst Politicall creatures;) and yet have no other direction, than their particular judgements and appetites; nor speech, whereby one of them can signifie to another, what he thinks expedient for the common benefit: and therefore some man may perhaps desire to know, why Man-kind cannot do the same. To which I answer,

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Quinto, Animalia bruta inter Injuriam et Damnum non distinguunt. Itaque quamdiu bene sibi est, caeteris non invident. Homo autem tunc maxime molestus est, quando otio opibusque maxime abundat. Tunc enim sapientiam siiam in Regentium actionibus reprehendendis olientare amat.

Postremo, Animaliura illorum consensio a Natura est; consensio autem hominum a paclis est, et Artificiale. Mirum ergo non est, si ad firmitatem et durationem ejus, aliud praeter pactum requiratur; nempe Potentia communis quam singuli metuant, et quae omnium adtiones ad bonum commune ordinet.

Communem autem Potentiam constituendi, quae homines tum ab invasioneexterorum, tumab injuriis mutuis tueri poslit, ita ut propriae industriae et telluris fructu contenti vivant et alantur, unica via haecest, ut Potentiam et Vim suam omnem in hominem vel hominum Coetum unum unusquisque transserat, unde voluntates omnium ad unicam reducantur, id est, ut unus homo vel ccetus unus Personam gerat uniuscujusque hominis singularis; utque unusquisque authorem se esse sateatur actionum omnium quas egerit Persona illa, ejusque voluntati et judicio voluntatem suam submittat. Est autem hoc aliquid amplius quam consensio aut concordia. Est enim in Personam unam vera omnium Unio; quod sit per pactum uniuscujusc que cum unoquoque; tanquam si unicuique unusquisque diceret, Ego huic homini (vei huic ccetut) Authoritatem et Iut meum regendi meipsum concedo, ea conditione, ut tu quoqpte tuam sluthoritatcm et lus tuum tui regendi in eundem transstras. Quo facto, Multitudo illa una Persona est, et vocatur Civitas et Respubltca. Atque haec est Generatio magni illius Leviathan, vel (ut dignius loquar) Mortatis Vei; cui Pacem et Protectionem sub Deo Immortali debemus omnem. Authoritate enim tanta ab oranibus et singulis collata,tantam Potentiam mmm 2 &

& tantarum Virium usum habet, ut terrore earum voluntates omnium ad Pacem inter se, et ad conjunctionem contra hostes consormare poslit. In quo consistit eslentia Civitatis, quas sic Definitur. Civitas Tersona una e(l, cujus yltlionum, hcmines magno numero, per Satlamutua wiuscujusqxe cum unocjucque sccerunt se Authores\ eosine, ut Sotentia omnium arbitrio suo ad Pacem et Communem Desensionem utcretur. Is autem qui Civitatis Personam gerit, Summam habere dicitur Poteslatem. Caeteri omnes Subditi $c Cives appellatur. Potestas autem summa duobus modis habetur, quarum una est Vis, ut cum Pater Filios suos sibi obedire cogit; vitam enim illis, non alendo, auserre potest. Vel ut, qui vieiis hostibus ea conditione vitam condonat, ut imperata faciant. Alter modus est, quando homines sponte summam Potestatem in unum hominem vel coetum, spe Protecrionis conserunt. Atque haec Civitatis Institutio j illa Civitatis Acquisitio esi. Dicam autem primo de Civitate Instituta.

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First, that men are continually in competition for Honour and Dignity, which these creatures are not; and consequently amongst men there ariseth on that ground, Envy and Hatred, and finally Warre; but amongst these not so.

Secondly, that amongst these creatures, the Common good differeth not from the Private; and being by nature enclined to their private, they procure thereby the common benefit. But man, whose Joy consisteth in comparing himselfe with other men, can relish nothing but what is eminent.

Thirdly, that these creatures, having not (as man) the use of reason, do not see, nor think they see any fault, in the administration of their common businesse: whereas amongst men, there are very many, that thinke themselves wiser, and abler to govern the Publique, better than the rest; and these strive to reforme and innovate, one this way, another that way; and thereby bring it into Distraction and Civill warre.

Fourthly, that these creatures, though they have some use of voice, in making knowne to one another their desires, and other affections; yet they want that art of words, by which some men can represent to others, that which is Good, in the likenesse of Evill; and Evill, in the likenesse of Good; and augment, or diminish the apparent greatnesse of Good and Evill; discontenting men, and troubling their Peace at their pleasure.

Fiftly, irrationall creatures cannot distinguish betweene Injury, and Dammage; and therefore as long as they be at ease, they are not offended with their fellowes: whereas Man is then most troublesome, when he is most at ease: for then it is that he loves to shew his Wisdome, and controule the Actions of them that governe the Common-wealth.

Lastly, the agreement of these creatures is Naturall; that of men, is by Covenant only, which is Artificiall: and therefore it is no wonder if there be somewhat else required (besides Covenant) to make their Agreement constant and lasting; which is a Common Power, to keep them in awe, and to direct their actions to the Common Benefit.

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The Generation Of A Common-wealth

The only way to erect such a Common Power, as may be able to defend them from the invasion of Forraigners, and the injuries of one another, and thereby to secure them in such sort, as that by their owne industrie, and by the fruites of the Earth, they may nourish themselves and live contentedly; is, to conferre all their power and strength upon one Man, or upon one Assembly of men, that may reduce all their Wills, by plurality of voices, unto one Will: which is as much as to say, to appoint one man, or Assembly of men, to beare their Person; and every one to owne, and acknowledge himselfe to be Author of whatsoever he that so beareth their Person, shall Act, or cause to be Acted, in those things which concerne the Common Peace and Safetie; and therein to submit their Wills, every one to his Will, and their Judgements, to his Judgment. This is more than Consent, or Concord; it is a reall Unitie of them all, in one and the same Person, made by Covenant of every man with every man, in such manner, as if every man should say to every man, "I Authorise and give up my Right of Governing my selfe, to this Man, or to this Assembly of men, on this condition, that thou give up thy Right to him, and Authorise all his Actions in like manner." This done, the Multitude so united in one Person, is called a COMMON-WEALTH, in latine CIVITAS. This is the Generation of that great LEVIATHAN, or rather (to speake more reverently) of that Mortall God, to which wee owe under the Immortall God, our peace and defence. For by this Authoritie, given him by every particular man in the Common-Wealth, he hath the use of so much Power and Strength conferred on him, that by terror thereof, he is inabled to forme the wills of them all, to Peace at home, and mutuall ayd against their enemies abroad.

The Definition Of A Common-wealth

And in him consisteth the Essence of the Common-wealth; which (to define it,) is "One Person, of whose Acts a great Multitude, by mutuall Covenants one with another, have made themselves every one the Author, to the end he may use the strength and means of them all, as he shall think expedient, for their Peace and Common Defence."

Soveraigne, And Subject, What

And he that carryeth this Person, as called SOVERAIGNE, and said to have Soveraigne Power; and every one besides, his SUBJECT.

The attaining to this Soveraigne Power, is by two wayes. One, by Naturall force; as when a man maketh his children, to submit themselves, and their children to his government, as being able to destroy them if they refuse, or by Warre subdueth his enemies to his will, giving them their lives on that condition. The other, is when men agree amongst themselves, to submit to some Man, or Assembly of men, voluntarily, on confidence to be protected by him against all others. This later, may be called a Politicall Common-wealth, or Common-wealth by Institution; and the former, a Common-wealth by Acquisition. And first, I shall speak of a Common-wealth by Institution.

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CAPVT XVIII — De Iure habentium Summam Potestatem in Civitate per Institutionem

CHAPTER XVIII — Of the Rights of Sovereigns by Institution

Instituitur Civitas, quando homines sponte siia convenientes singuli cum singulis paciscuntur, ut cuicunque homini vel ccetui pars major sussragiis fuis Personam omnium gerendi lus contribuit, ilii omnes obedirent. Obligatur ergo unuiquisque eorum, sive sussragium suum in illumcontulerit, sive non contulerit, illi quem major pars ekgeritobedire, etc. pro Authore actionum illius omnium habendus est. Nam nisi in parte sustragiorum majore intelligantur comprehensa snstragia omnium, frustra conventum est, etc. contra finem ab unoquoque sibi propositum, nempe Pacem Sc Protectionem omnium.

A forma Institutionis, tum Potestas omnis, et Iura omnia sumraam habentis Potestatem, tum Civium omnium officia derivantur.

Primo, ex eo quod Pacti sunt, intelligitur, Quod nullis Pactis prioribus obligati crant ad id quod Paclo praesenti contrarium est. Itaque qui Civitatis alicujus jam Cives sunt, Pactum novum inire non poslunt quo Personam suam in alium transserre, vel cuiquam alii (non permittente qui Summam habet Potestatem) in re quacunque obediie obligctur 5 et, per coniequens, qui sub Monarcha Cives sunt, neque Monarchiam rejicere, neque ad Libcrtatem naturoe relabi, si noluerit qui habet Summam Potestatem, vel qiulibet alius Civium, Iure postunt. Violarent enim Pactum initum cum singulis; et Potestatem Summam Iure jam habenti datam, contra Ius eriperent. Prxterea si qui eam eripere conaretur, intersectus aut quocunque supplicio assectus sucrit, supplicii proprii Authoreslet; &quia Injustum est, quod facientis ipsius Authoritate punire potest, eo quoque nomine Injustum. Quod autem Cives quidam contumacias Pactum praetenderunt novum, non cum hominibus, sed cum Deo initum, id quoquelnjustum erat. Pactum enim cum Deo iniri non potest, nisi mediante aliquo, qui Deum repreientat; id quod solus facit is, qui Summam sub Deo habet Potestatem. Sed pretensio illa Pacti cum Deo,manisestum mendacium erat,neque Injustum tantum, led vilissimum factum eile, cognoverunt ipsi prastendentes.

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CHAPTER XVIII — Of the Rights of Sovereigns by Institution

CAPVT XVIII — De Iure habentium Summam Potestatem in Civitate per Institutionem

The Act Of Instituting A Common-wealth, What

A Common-wealth is said to be Instituted, when a Multitude of men do Agree, and Covenant, Every One With Every One, that to whatsoever Man, or Assembly Of Men, shall be given by the major part, the Right to Present the Person of them all, (that is to say, to be their Representative;) every one, as well he that Voted For It, as he that Voted Against It, shall Authorise all the Actions and Judgements, of that Man, or Assembly of men, in the same manner, as if they were his own, to the end, to live peaceably amongst themselves, and be protected against other men.

The Consequences To Such Institution, Are

1. The Subjects Cannot Change The Forme Of Government

From this Institution of a Common-wealth are derived all the Rights, and Facultyes of him, or them, on whom the Soveraigne Power is conferred by the consent of the People assembled.

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Secundo, Summa Potestas propter malamreipublicasadministrationem, habenti tolli non potest; primoquia cum totius Civitatis Personam gerat, quas ut Actor facit ille, ut Author facit Civitas. Quis autem est, qui Civitatem ream faciet? Deinde is in quem consertur Potestas Summa, cum nemine paciicitur conserentium j et proinde neminieorum Injuriam potestsacerepropter quam Potestate lua privaretur. Autenim Pactusest cum tota.multitudine quasi cum una Periona, quod nonpotuit sieri antequam cligeretur, cuia multitudo illa una Persona nondum erat; aut cum singulis ieorsim, et sic simul atque electus est, unuiquilque malas administrationis, cujus reum faciunt illum Author ipie est, et accusat seipsum. Veile ergo Pactis iilum obligare qui Summam habet Potestaium, est ipiam C> vitatem obligare velle. Verum si concedamus, illum qui Summam habet Potestatem, Pacta cum Civitate et inire et violare poiie, is autem cum violaverit violaite negaverit, quis litem hanc determinabit? Nisiaurem determinetur, redituraad Anarchiam, neccivitas amplius est. Si determinetur a Civitate, ab ipibdeterminarur, qui Peribuam Civitatis gerit, id est a Potestatem Summam jam habente. Quem qui Pactis obligari existimant, eo videntur decepti esie, quod non distinguant inter obligationes quae siunt per Verba, et ligationes quae siunt per capistra; neccogitant verbaper ie insirmaesle. Postquam autem Summa Potestas constituta et armata est, tumdemum vi tantae Potestatis etiam verba capistra siunt. Partim etiam eo decepti sunt, quod multitudinem hominum in unum locum convenientium, etiam antequam de Summa Potestate consenierint,non modo Psrlonas. sed Personam esle,. et ieorsim. a singularibus Jloqui &

Agere imaginati sint. Quando vero in ccetu Populari Potestas Summa collocata est, Padtum tale interveniste nemo dicit. Quis enim adeo hebes est, ut Populum (exempli causa) Romanum, qui Imperium Romae Summum habuit quondam, Summam illam Potestatem tenuisse per Pactumcum Romanis, et proinde Populum Romanum a Romanis (nisi bene regnasiet) deponi potuisle dicat? Quod autem in Monarchia, et Statu Populari quaestionem hanc eandem esse non omnes videant, causa est ipsorum Ambitio, Ccetui potius quam uni homini saventium -, quia siib uno homine Vulgus sunt, sed sub ccetu Regnantis pars siint.

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First, because they Covenant, it is to be understood, they are not obliged by former Covenant to any thing repugnant hereunto. And Consequently they that have already Instituted a Common-wealth, being thereby bound by Covenant, to own the Actions, and Judgements of one, cannot lawfully make a new Covenant, amongst themselves, to be obedient to any other, in any thing whatsoever, without his permission. And therefore, they that are subjects to a Monarch, cannot without his leave cast off Monarchy, and return to the confusion of a disunited Multitude; nor transferre their Person from him that beareth it, to another Man, or other Assembly of men: for they are bound, every man to every man, to Own, and be reputed Author of all, that he that already is their Soveraigne, shall do, and judge fit to be done: so that any one man dissenting, all the rest should break their Covenant made to that man, which is injustice: and they have also every man given the Soveraignty to him that beareth their Person; and therefore if they depose him, they take from him that which is his own, and so again it is injustice. Besides, if he that attempteth to depose his Soveraign, be killed, or punished by him for such attempt, he is author of his own punishment, as being by the Institution, Author of all his Soveraign shall do: And because it is injustice for a man to do any thing, for which he may be punished by his own authority, he is also upon that title, unjust. And whereas some men have pretended for their disobedience to their Soveraign, a new Covenant, made, not with men, but with God; this also is unjust: for there is no Covenant with God, but by mediation of some body that representeth Gods Person; which none doth but Gods Lieutenant, who hath the Soveraignty under God. But this pretence of Covenant with God, is so evident a lye, even in the pretenders own consciences, that it is not onely an act of an unjust, but also of a vile, and unmanly disposition.

2. Soveraigne Power Cannot Be Forfeited

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Tertio, Si consensu partis majoris Summa Potestas femel constituta sit, nemini eorum cui factum displicet, sustragii fui in contnjium testes poscere, vel memoriam rei extare, postulare licitum est. Postulatio enim talis facl:um mutare volentis est, et per consequens; paci sadtae renuntiantis, et Bellum contra caeteros denuntiantis, et in conditionem Naturas, quam sugiebat (contra finem, quemhabuit quando cum caeteris in conventum venit) redeuntis.

Quarto, Quoniam per Institutionem ipsam, omnium Actionum illius in quem Summam contulerunt Potestatem, Author est conserentium unulquisque j manisestumest, Quod ab habente Summam Potestatem nemini conserentium sieri posle Injuriam. Nam sadum Authoris, id est uniuicujusque est quicquid ille secerit. Sibiipsiautem Injuriam facere nemo potest. Quin is qui Summam habet Potestatem facere inique possit, non negaverim. Iniquum enim quod contra Legem Naturae, Injustum quod contra Legemcivilem sadum est, appellatur. Nam Iustum aut Injustum ante Civitatem constitutam nihil erat.

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Secondly, Because the Right of bearing the Person of them all, is given to him they make Soveraigne, by Covenant onely of one to another, and not of him to any of them; there can happen no breach of Covenant on the part of the Soveraigne; and consequently none of his Subjects, by any pretence of forfeiture, can be freed from his Subjection. That he which is made Soveraigne maketh no Covenant with his Subjects beforehand, is manifest; because either he must make it with the whole multitude, as one party to the Covenant; or he must make a severall Covenant with every man. With the whole, as one party, it is impossible; because as yet they are not one Person: and if he make so many severall Covenants as there be men, those Covenants after he hath the Soveraignty are voyd, because what act soever can be pretended by any one of them for breach thereof, is the act both of himselfe, and of all the rest, because done in the Person, and by the Right of every one of them in particular. Besides, if any one, or more of them, pretend a breach of the Covenant made by the Soveraigne at his Institution; and others, or one other of his Subjects, or himselfe alone, pretend there was no such breach, there is in this case, no Judge to decide the controversie: it returns therefore to the Sword again; and every man recovereth the right of Protecting himselfe by his own strength, contrary to the designe they had in the Institution. It is therefore in vain to grant Soveraignty by way of precedent Covenant. The opinion that any Monarch receiveth his Power by Covenant, that is to say on Condition, proceedeth from want of understanding this easie truth, that Covenants being but words, and breath, have no force to oblige, contain, constrain, or protect any man, but what it has from the publique Sword; that is, from the untyed hands of that Man, or Assembly of men that hath the Soveraignty, and whose actions are avouched by them all, and performed by the strength of them all, in him united. But when an Assembly of men is made Soveraigne; then no man imagineth any such Covenant to have past in the Institution; for no man is so dull as to say, for example, the People of Rome, made a Covenant with the Romans, to hold the Soveraignty on such or such conditions; which not performed, the Romans might lawfully depose the Roman People. That men see not the reason to be alike in a Monarchy, and in a Popular Government, proceedeth from the ambition of some, that are kinder to the government of an Assembly, whereof they may hope to participate, than of Monarchy, which they despair to enjoy.

3. No Man Can Without Injustice Protest Against The Institution Of The Soveraigne Declared By The Major Part.

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Quinto, non potest qui Summam habet Potestatem a Civibus occidi, aut quomodocunque Iure puniri. Nam qui Injuriam facere nora potest, ne Reus quidem sieri, multo minus condemnari potest. Quicquid enim fecit, facli Author est Civium unusquisquc.

Sext6, Quia Civitatis instituenda; finis Pax est et Desensio; et quicunque in finem Ius habet, Ius etiam in media habet, sequitur, ut cuicunque sive Homini, sive Ccetui tribuitur Potestas Summa eidem etiam de mediis ad Pacem etc. Desensionem Iudicatio tributa sit, et ut tum in ipso periculo, tum (praeventionis causa) ante periculum, judicet, quid fadu neceslarium sit, tum ad Pacem Civium inter se, et securitatem contra hostes conservandam, tum ad damna Civitatis resarcienda.

Septimo, Summae Potestati adhaerent, quse ad conservationem vel viola- violationem Pacis tendunt decernere, et quando, quatenus, quibus apud raukitudinem concionari permittendum sit, et qui libri publtcandi, et a quibus examinandi sint. Adiones enim ab Opinionibus ortum habent: In harum ergo regulatione consistit regulatio Civium, unde oritur Pax et Concordia. Quanquam autem Doclrinarnm, veritas sola scopus sit, Paci tamen, si verae sunt, non repugnant. Doctrinae enim Paci contrariaj verae esle non postunt, nisi etiam Pax etc. Concordia contrariae dicantur Legibus naturalibus. In Civitatibus quidcm, Rectorum Doctorumque negligentia aut imperitia*, errores progreslu temporis universaliter pro veris recipi, et veritates displicere poilunt, veritatis tamen novae utcunque subita apparitio, etsi sopitum Bellum aliquando excitare poslit, Pacem tamen nunquam violat. Qui enim adeo remiise regnatur ut Opinionis novse introducendae cauia, capere arma audeat, etiam tunc animum rebellandi habuit. Quod autem non aggresius sit, a metuest, viventis nempe quaii in procinctu praelii. Ad Summam ergo Potestatem attinet Opinionum et Doctrinarum omnium Iudicatio,ut quae discordiarum Bellique Civilis saepislime causa Sc origo esle solet.

Octav6, ejusclem Sumtuae Potestatis lus est, Regulas pra»scribere, quibus, quid sit suum unusquisque sciat et fruatur,sine molestia a concivibus; et quid Agere licite poslit, et quid licite non poslit; id est regulas praescribere circa rcrum Proprietatem. Nam ante Summam Potestatem constitutam Ius erat omnibus in omnia, quod erat causa Belli. Regulae ergo quibus definiuntur Meum, et 7uum; et in Actionibus Bonum, Malum^ Licitum, lllicitum, a quibus dependet Pax Civium, abhabente Potestatem Summam praescribendae sunt. Vocantur autem Regulae illse Lcges Civiles, sive Civitatis illius Leges cujus Civibus praescribuntur, quanquam nomen illud Lex Civilis restringatur hodiead signisicandum Leges Romanas antiquas, quia Civitatis Romanae propter Imperium Romanum late expansum nos etiam olim pars fuimus.

Nono, Summae Potestatis etiam est, Ius ludicandi, id est causas omnes, tum luris tnm Facti cognoscendi, et controverlias omnes decidendi. Nam alioqui Civibus ab Injuriis mutuis protectio nulla esict, et Leges de Meo et Tuo frustra essent, manerentque homines in conditione Belli omnium contra omnes.

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Thirdly, because the major part hath by consenting voices declared a Soveraigne; he that dissented must now consent with the rest; that is, be contented to avow all the actions he shall do, or else justly be destroyed by the rest. For if he voluntarily entered into the Congregation of them that were assembled, he sufficiently declared thereby his will (and therefore tacitely covenanted) to stand to what the major part should ordayne: and therefore if he refuse to stand thereto, or make Protestation against any of their Decrees, he does contrary to his Covenant, and therfore unjustly. And whether he be of the Congregation, or not; and whether his consent be asked, or not, he must either submit to their decrees, or be left in the condition of warre he was in before; wherein he might without injustice be destroyed by any man whatsoever.

4. The Soveraigns Actions Cannot Be Justly Accused By The Subject

Fourthly, because every Subject is by this Institution Author of all the Actions, and Judgements of the Soveraigne Instituted; it followes, that whatsoever he doth, it can be no injury to any of his Subjects; nor ought he to be by any of them accused of Injustice. For he that doth any thing by authority from another, doth therein no injury to him by whose authority he acteth: But by this Institution of a Common-wealth, every particular man is Author of all the Soveraigne doth; and consequently he that complaineth of injury from his Soveraigne, complaineth of that whereof he himselfe is Author; and therefore ought not to accuse any man but himselfe; no nor himselfe of injury; because to do injury to ones selfe, is impossible. It is true that they that have Soveraigne power, may commit Iniquity; but not Injustice, or Injury in the proper signification.

5. What Soever The Soveraigne Doth, Is Unpunishable By The Subject

Fiftly, and consequently to that which was sayd last, no man that hath Soveraigne power can justly be put to death, or otherwise in any manner by his Subjects punished. For seeing every Subject is author of the actions of his Soveraigne; he punisheth another, for the actions committed by himselfe.

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Decimo, Ejusdem Summae Potestatis est cum aliis Civitatibus Bel- lum et Pacem facere suo arbitrio, id est Iudicare utrum Bono an

Malo Civitatis Bellum futurum sit necne, quantajque copiae compa- randae, Sc quomodo a Civibus alendae sint. Civium enim tutela ab exercitibus dependet, exercituum robur a" Civitatis Vnitate, Civitatis Vnitas ab unica Summam habentis Potestatem Persona. Etiam Militioj lus (etiam solum) Summa est Potestasj quia Ius in milites est, Ius in Potentiara totius Civitatis.

Vndecimo, Ejusdem potestatis est Conjiliarios, Magistratus, Ministrosque omnes tam Pacis quain Belii eligendi Ius. Cui enim Pacis et Desensionis procurandas imponitur onus, eidemlus conceditur Mediis quibus se exoneret pro arbitrio suo utendi.

Duodecimd, Ejusdem Potestatis lus est Praemia, ut Divitias Honoresque bene merentibus tribuendi, et transgreltoribus Pcenas Legibus pr csinitas insligendi. Vel si pcena Lege statuta non sit, faciendi Leges poenales quae sibi ad excitandos et terrendos improbos videbuntur commodissima;.

Postremo, si cogitemus quanti unusquisque se a:stimet, quantumque ab aliis sibi honoris deserri cupit, quibus ip(e tantundem tribuere indignum putat, unde Simultates, Factiones, et Bellum denique nasci solet, satebimur ad Civitatis dislolutionem tendere etiam controversias de Honore et Ordine Civium, et Potestatis Summas coercione indigere. Neceslariae ergo siint Leges quibus quis cuique Honor tribuendus sit, in congressibus et alloquiis definiatur. Itaque conserendi Titulos, Ordinesque Civium distinguendi, ejusdem Summae Potestatis Ius est. Atque hsc sunt Iwa Summam habentis Potestatem principalia, ut ampliter hic demonstratum est, etc. brevius demonstrari potuit unico hoc argumento. Iura enim haec omnia quin Civitatis sint negabitnemoj Civitas autem nisi per Personam siiam (nempe eum qui Summam habet Potestatem) neque Loqui neque Agere potest. Sunt ergo Iura haec omnia illius, qui in Civitate Summam habet Potestatem, sive is Homo sit, sive Ccetus hominum. Sunt autem 3c alia Iura ejusdem, sed minora, et in diversis Civitatibus diversa, quibus tamen amissiscives protegendi potentia non amittitur^ et quae transserri poslunt ad Civesprivatos. Sedillaquae enumeravimus lura majora transserri non postunt. Iureenimmilitiae amisso, Ius ludicandi propter deseclum Potentice frustra erit. Iure exigendi pecuniam amisto, milites nulli erunt. Iure Regulandi doclrinas amiito, animabunturcives superstitiosi ad rebellionem a fuis ipsorum Phantasiis. Summatim, si Iurium dic~r,orum quodlibet unum desit, caetera ceitabunt omnia, sietque divisio de qua Christus ip!e loquensdixit, Regnnm diviskm in setpso slare r,on potest. Nisienimlurium horum divisio antecedat, divisio populi in exercitus oppositos nuua erit. Opinio docentium Iura Regni Anglicani divisa este inter

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6. The Soveraigne Is Judge Of What Is Necessary For The Peace And Defence Of His Subjects

And because the End of this Institution, is the Peace and Defence of them all; and whosoever has right to the End, has right to the Means; it belongeth of Right, to whatsoever Man, or Assembly that hath the Soveraignty, to be Judge both of the meanes of Peace and Defence; and also of the hindrances, and disturbances of the same; and to do whatsoever he shall think necessary to be done, both beforehand, for the preserving of Peace and Security, by prevention of discord at home and Hostility from abroad; and, when Peace and Security are lost, for the recovery of the same. And therefore,

And Judge Of What Doctrines Are Fit To Be Taught Them

Sixtly, it is annexed to the Soveraignty, to be Judge of what Opinions and Doctrines are averse, and what conducing to Peace; and consequently, on what occasions, how farre, and what, men are to be trusted withall, in speaking to Multitudes of people; and who shall examine the Doctrines of all bookes before they be published. For the Actions of men proceed from their Opinions; and in the wel governing of Opinions, consisteth the well governing of mens Actions, in order to their Peace, and Concord. And though in matter of Doctrine, nothing ought to be regarded but the Truth; yet this is not repugnant to regulating of the same by Peace. For Doctrine Repugnant to Peace, can no more be True, than Peace and Concord can be against the Law of Nature. It is true, that in a Common-wealth, where by the negligence, or unskilfullnesse of Governours, and Teachers, false Doctrines are by time generally received; the contrary Truths may be generally offensive; Yet the most sudden, and rough busling in of a new Truth, that can be, does never breake the Peace, but onely somtimes awake the Warre. For those men that are so remissely governed, that they dare take up Armes, to defend, or introduce an Opinion, are still in Warre; and their condition not Peace, but only a Cessation of Armes for feare of one another; and they live as it were, in the procincts of battaile continually. It belongeth therefore to him that hath the Soveraign Power, to be Judge, or constitute all Judges of Opinions and Doctrines, as a thing necessary to Peace, thereby to prevent Discord and Civill Warre.

7. The Right of making Rules, whereby the Subject may every man know what is so his owne, as no other Subject can without injustice take it from him

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Regem, Proceres, &Coetum Communium, causasuit Belliquod scquutum cst Civilis j etiam disputationes de quaestionibus Politicis et Theologicis, quibus tamen populus ita nunc de Iure Regio eruditus est, ut in Anglia pauci (puto) nunc sint qui Iura praedicta inseparabilia eile non videant; et publice agnituri sint simul atque redierit Pax, et quamdiu calamitatem praeteritarum meminerint j sed non diutius, nisi meliuserudiatur populus.

Quoniam autem Iura ha»c Summae Potestatiestentialia et inseparabilia sunt, sequitur, ut quibuscunque Verbis separari et aliisconcedi videantur, nisi Potestati Summae sitnul et expreslis verbis renunciatum sit, conceslionem nullam; esle, sed concesla omnia, Summa Potestate, id est Persona Civitatis retenta, inseparabiliter redire.

Cum ergo Authoritas hasc ingens indivisibilis sit, et habenti Summam Potestatem inseparabiliteradhaereat, quis color inveniri potest opinioni, qui dicunt de Regibus Civitatis Personamgerentibus, cjuod etsi Singulis majores, Vniverss tamcn minores sunt? Nam si per universos intelligunt Civitatis Personam, ipsiim intelligunt Regem. Itaque Rex seipso minoreritj quod est Absurdum. Sin per universos Multitudinem intelligunt solutara, singulos intelligunt. Itaque Rex, qui major singulisest, major quoque eric universis; quod iterum estabsurdum. In Civitate autem ubi Summa Potestas est in Ccetu Populari, absurda hasc esle satis vident; in Monarchia non vident, quanquam Potestas Summa ubicunque collocatur eadem est.

Sicut autem Potestas Summa, Civis cujuscunque Potestate major est, ita et Honor ipsi debitus Honore,qui debetur cuicunque Sc quotcunque Civibus major est. Qui Potestatem habet Summam, Honorum et Dignitatum omnium sons est; et sicut coram Domino familiaeservi filiique omnes interseaequales, et sine Honore sunt; ita et Cives coram eo qui gerit Personam Civitatis omnes inter se aequales sunt, quanquam extra prxsentiam illius alii aliis magis splendeant j nam coram iilo non amplius splendent quam stcllae praesente Sole.

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Seventhly, is annexed to the Soveraigntie, the whole power of prescribing the Rules, whereby every man may know, what Goods he may enjoy and what Actions he may doe, without being molested by any of his fellow Subjects: And this is it men Call Propriety. For before constitution of Soveraign Power (as hath already been shewn) all men had right to all things; which necessarily causeth Warre: and therefore this Proprietie, being necessary to Peace, and depending on Soveraign Power, is the Act of the Power, in order to the publique peace. These Rules of Propriety (or Meum and Tuum) and of Good, Evill, Lawfull and Unlawfull in the actions of subjects, are the Civill Lawes, that is to say, the lawes of each Commonwealth in particular; though the name of Civill Law be now restrained to the antient Civill Lawes of the City of Rome; which being the head of a great part of the World, her Lawes at that time were in these parts the Civill Law.

8. To Him Also Belongeth The Right Of All Judicature And Decision Of Controversies:

Eightly, is annexed to the Soveraigntie, the Right of Judicature; that is to say, of hearing and deciding all Controversies, which may arise concerning Law, either Civill, or naturall, or concerning Fact. For without the decision of Controversies, there is no protection of one Subject, against the injuries of another; the Lawes concerning Meum and Tuum are in vaine; and to every man remaineth, from the naturall and necessary appetite of his own conservation, the right of protecting himselfe by his private strength, which is the condition of Warre; and contrary to the end for which every Common-wealth is instituted.

9. And Of Making War, And Peace, As He Shall Think Best:

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Dicet fortasle aiiquis conditionemcivium esle miseram, utqui libidini et passionibus Regentium sunt obnoxii. Id autem qui sub Monarchiam vivunt, Monarchise; qui sub Ccetum plurium vivunt, iili regiminis Formaj imputare solent; quanquam in omni Forma quae protegere eos poslit, potestas aequalissit. Nonenimcogitant quod res hurnanne sine incommodo esle non postunt; nec quod incommoda quae in qualibet Civitatis Forma accidere possunt maxima, prae Belli calamitatibus, &quaein conditionehominum naturali, sincdomino, iine Lege, ex rapto viventium contingunt, vix sensibilia sunt; nec nnn 2 deni-denique quod gravissima onera, quae ab habente Potestatem Summam imponuntur, non ab eo, quod illos aut pauperes, aut debiles sieri cupiat proficiscuntur, quibus divites etc. fortes eos esle Regentium commodo maximeexpedit, sed ab ipsorum Civium tenacirate, ea contribuere quae ad Pacera et Desensionem suam neceslaria sunt, recusantium. Inde autem Regentibus plerumque nascitur, dum Pax est, Pecuniam exigendi quantam possiint, necessitas, ut quae opus suntadbellum, parata habeant. Sed Civibus data sunt a Natura quaii vitra, quas Objecta majora, quam sunt, videri faciunt, per quas si Tributum videant quantulumcunque, magnam putant este oppressionem. Telelcopiis carent, nempe Scientus, quibus a longinquo prospicere poslent miserias illas impendentes, quas sine pecuniarum contributionibus sunt inevitabiles.

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Ninthly, is annexed to the Soveraignty, the Right of making Warre, and Peace with other Nations, and Common-wealths; that is to say, of Judging when it is for the publique good, and how great forces are to be assembled, armed, and payd for that end; and to levy mony upon the Subjects, to defray the expenses thereof. For the Power by which the people are to be defended, consisteth in their Armies; and the strength of an Army, in the union of their strength under one Command; which Command the Soveraign Instituted, therefore hath; because the command of the Militia, without other Institution, maketh him that hath it Soveraign. And therefore whosoever is made Generall of an Army, he that hath the Soveraign Power is alwayes Generallissimo.

10. And Of Choosing All Counsellours, And Ministers, Both Of Peace, And Warre:

Tenthly, is annexed to the Soveraignty, the choosing of all Councellours, Ministers, Magistrates, and Officers, both in peace, and War. For seeing the Soveraign is charged with the End, which is the common Peace and Defence; he is understood to have Power to use such Means, as he shall think most fit for his discharge.

11. And Of Rewarding, And Punishing, And That (Where No Former Law hath Determined The Measure Of It) Arbitrary:

Eleventhly, to the Soveraign is committed the Power of Rewarding with riches, or honour; and of Punishing with corporall, or pecuniary punishment, or with ignominy every Subject according to the Lawe he hath formerly made; or if there be no Law made, according as he shall judge most to conduce to the encouraging of men to serve the Common-wealth, or deterring of them from doing dis-service to the same.

12. And Of Honour And Order

Lastly, considering what values men are naturally apt to set upon themselves; what respect they look for from others; and how little they value other men; from whence continually arise amongst them, Emulation, Quarrells, Factions, and at last Warre, to the destroying of one another, and diminution of their strength against a Common Enemy; It is necessary that there be Lawes of Honour, and a publique rate of the worth of such men as have deserved, or are able to deserve well of the Common-wealth; and that there be force in the hands of some or other, to put those Lawes in execution. But it hath already been shown, that not onely the whole Militia, or forces of the Common-wealth; but also the Judicature of all Controversies, is annexed to the Soveraignty. To the Soveraign therefore it belongeth also to give titles of Honour; and to appoint what Order of place, and dignity, each man shall hold; and what signes of respect, in publique or private meetings, they shall give to one another.

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These Rights Are Indivisible

These are the Rights, which make the Essence of Soveraignty; and which are the markes, whereby a man may discern in what Man, or Assembly of men, the Soveraign Power is placed, and resideth. For these are incommunicable, and inseparable. The Power to coyn Mony; to dispose of the estate and persons of Infant heires; to have praeemption in Markets; and all other Statute Praerogatives, may be transferred by the Soveraign; and yet the Power to protect his Subject be retained. But if he transferre the Militia, he retains the Judicature in vain, for want of execution of the Lawes; Or if he grant away the Power of raising Mony; the Militia is in vain: or if he give away the government of doctrines, men will be frighted into rebellion with the feare of Spirits. And so if we consider any one of the said Rights, we shall presently see, that the holding of all the rest, will produce no effect, in the conservation of Peace and Justice, the end for which all Common-wealths are Instituted. And this division is it, whereof it is said, "A kingdome divided in it selfe cannot stand:" For unlesse this division precede, division into opposite Armies can never happen. If there had not first been an opinion received of the greatest part of England, that these Powers were divided between the King, and the Lords, and the House of Commons, the people had never been divided, and fallen into this Civill Warre; first between those that disagreed in Politiques; and after between the Dissenters about the liberty of Religion; which have so instructed men in this point of Soveraign Right, that there be few now (in England,) that do not see, that these Rights are inseparable, and will be so generally acknowledged, at the next return of Peace; and so continue, till their miseries are forgotten; and no longer, except the vulgar be better taught than they have hetherto been.

And Can By No Grant Passe Away Without Direct Renouncing Of The Soveraign Power

And because they are essentiall and inseparable Rights, it follows necessarily, that in whatsoever, words any of them seem to be granted away, yet if the Soveraign Power it selfe be not in direct termes renounced, and the name of Soveraign no more given by the Grantees to him that Grants them, the Grant is voyd: for when he has granted all he can, if we grant back the Soveraignty, all is restored, as inseparably annexed thereunto.

The Power And Honour Of Subjects Vanisheth In The Presence Of The Power Soveraign

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This great Authority being indivisible, and inseparably annexed to the Soveraignty, there is little ground for the opinion of them, that say of Soveraign Kings, though they be Singulis Majores, of greater Power than every one of their Subjects, yet they be Universis Minores, of lesse power than them all together. For if by All Together, they mean not the collective body as one person, then All Together, and Every One, signifie the same; and the speech is absurd. But if by All Together, they understand them as one Person (which person the Soveraign bears,) then the power of all together, is the same with the Soveraigns power; and so again the speech is absurd; which absurdity they see well enough, when the Soveraignty is in an Assembly of the people; but in a Monarch they see it not; and yet the power of Soveraignty is the same in whomsoever it be placed.

And as the Power, so also the Honour of the Soveraign, ought to be greater, than that of any, or all the Subjects. For in the Soveraignty is the fountain of Honour. The dignities of Lord, Earle, Duke, and Prince are his Creatures. As in the presence of the Master, the Servants are equall, and without any honour at all; So are the Subjects, in the presence of the Soveraign. And though they shine some more, some lesse, when they are out of his sight; yet in his presence, they shine no more than the Starres in presence of the Sun.

Soveraigne Power Not Hurtfull As The Want Of It, And The Hurt Proceeds For The Greatest Part From Not Submitting Readily, To A Lesse

But a man may here object, that the Condition of Subjects is very miserable; as being obnoxious to the lusts, and other irregular passions of him, or them that have so unlimited a Power in their hands. And commonly they that live under a Monarch, think it the fault of Monarchy; and they that live under the government of Democracy, or other Soveraign Assembly, attribute all the inconvenience to that forme of Common-wealth; whereas the Power in all formes, if they be perfect enough to protect them, is the same; not considering that the estate of Man can never be without some incommodity or other; and that the greatest, that in any forme of Government can possibly happen to the people in generall, is scarce sensible, in respect of the miseries, and horrible calamities, that accompany a Civill Warre; or that dissolute condition of masterlesse men, without subjection to Lawes, and a coercive Power to tye their hands from rapine, and revenge: nor considering that the greatest pressure of Soveraign Governours, proceedeth not from any delight, or profit they can expect in the dammage, or weakening of their subjects, in whose vigor, consisteth their own selves, that unwillingly contributing to their own defence, make it necessary for their Governours to draw from them what they can in time of Peace, that they may have means on any emergent occasion, or sudden need, to resist, or take advantage on their Enemies. For all men are by nature provided of notable multiplying glasses, (that is their Passions and Self-love,) through which, every little payment appeareth a great grievance; but are destitute of those prospective glasses, (namely Morall and Civill Science,) to see a farre off the miseries that hang over them, and cannot without such payments be avoyded.

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CAPVT XIX — De Generibus Civitatum per Institutionem, et de Successione ad Summam Potestatem

CHAPTER XIX — Of the Several Kinds of Commonwealth by Institution, and of the Succession to the Sovereign Power

Distinctio Civitatum a distinctione oritur Personas Summam habentis Potestatem. Quoniam ergo Summa Potestas Vnius hominisest vel plurium, et siquidem plurium, automnium (ita, ut in Curiam conveniendi unicuique Ius sit) aut certorum hominum a caereris distinctorum. Tria tantum esle poslunt Civitatum genera,nempe Monarchia, ubi Summa Potestas in uno homine est; Democratia, ubi Summa Potestas in Coetu hominum est (in quem Ccetum quihbet Civisadmittitur) et Aristocratia, ubi Summa Potestas in Coetu Civiumest, qui Optimates dicuntur. Alia Civitatis species nulla cst; cum neceslarium sit ut Summam Potestatem habeat vel unus homo, vel plures, vel omnes.

Alia quidem Civitatum inhistoriis Iibrisque Politicorum occurrunt nomina „ uttyrannis, et Oligarchia, sed non sunt propria j signisicant enim Astectum, non Conceptum ejus, qui iliis utitur. Nam qui Monarchae irati sunt Tyrannum appellant; qui Optimates oderunt, statum eorum Oligarchiam dicunt, et qui Demagogos non amant statum Democraticum Anarchiam vocant j nec tamen inde sequiturspeciem aliquam Regiminis esle Anarchiam.

Quod mukitudo, antequam in Vnam Civitatem coaluerint, potuit, si voluiltet, Potestatera Summam in Vnum hominem, non mi- nore Iure qaam in Coetum contulisle, id est Monarchae se subjeciste non minus absoluta quhm Coetui manisestum est. Vbi crgo Monarchia femel Instituta est, alia Persona ad raultitudinem reprasentandam Iure eligi non potcst, nisi ad certa et a Monarcha definita Negotia, neque hoc Monarchae Injultu. Alioqui enim Summam Potestatem haberent duae simul aut plures Personae in eadem Civitate,quae inde in conditionem Belli omnium contra omnes reduceretur, contra finem Institutionis. Sicut autem in Ccetu populi Summam habente Potestatem, qui Cives sibi subditos, per homines deputatos convenire juberet, ad negotia a Coetu definita, puta ad consilium in rebus arduis impertiendum, vel ad nocumenta tollenda, Insanus haberetur, qui homines ita convocatos Summam Potestatem habere, et totius Civitatis multitudinem representare et Personam Civitatis gerere arbitraretur; ita etiam insanus haberi debet si de iisdem negotiis in Monarchia, Monarchae juslu convenerint, convenientes putaret gerere Personam Civitatis. Atque hoc ita manisestum est, ut mirum sit non animadversum esle ab iis, qui Regem suum post sexcentorum annorum successionem, sine contradidione legitimum, quem et Regem agnoverunt et cui Majestatem attribuerunt, non tamen ut Civitatis Personam consideraverunt, sibimet ipsis totius Civitatis Anglican3£ Repraelentationem aslumentes. Moneantur hinc qui Summam habent in quocunque Civitatis genere Potestatem, Cives suos Officii tanti Iura edocere, Ced eadem lura ipsi prius doceri, si Potestatem Summam retinere cupiant.

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CHAPTER XIX — Of the Several Kinds of Commonwealth by Institution, and of the Succession to the Sovereign Power

CAPVT XIX — De Generibus Civitatum per Institutionem, et de Successione ad Summam Potestatem

The Different Formes Of Common-wealths But Three

The difference of Common-wealths, consisteth in the difference of the Soveraign, or the Person representative of all and every one of the Multitude. And because the Soveraignty is either in one Man, or in an Assembly of more than one; and into that Assembly either Every man hath right to enter, or not every one, but Certain men distinguished from the rest; it is manifest, there can be but Three kinds of Common-wealth. For the Representative must needs be One man, or More: and if more, then it is the Assembly of All, or but of a Part. When the Representative is One man, then is the Common-wealth a MONARCHY: when an Assembly of All that will come together, then it is a DEMOCRACY, or Popular Common-wealth: when an Assembly of a Part onely, then it is called an ARISTOCRACY. Other kind of Common-wealth there can be none: for either One, or More, or All must have the Soveraign Power (which I have shewn to be indivisible) entire.

Tyranny And Oligarchy, But Different Names Of Monarchy, And Aristocracy

There be other names of Government, in the Histories, and books of Policy; as Tyranny, and Oligarchy: But they are not the names of other Formes of Government, but of the same Formes misliked. For they that are discontented under Monarchy, call it Tyranny; and they that are displeased with Aristocracy, called it Oligarchy: so also, they which find themselves grieved under a Democracy, call it Anarchy, (which signifies want of Government;) and yet I think no man believes, that want of Government, is any new kind of Government: nor by the same reason ought they to believe, that the Government is of one kind, when they like it, and another, when they mislike it, or are oppressed by the Governours.

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Disierentia mter tria hasc Civitatum genera non consistit in diversitate Potestatis, sed in diversicate aptitudinis Civium ad finem suum, nempe Pacem et Desensionem. In comparatione autem Monarchia? cum duabus reliquis, notandum est, eum qui Personam Civitatis gerit, vel, si Ccetus sit, quemlibet ex Ccetu Personam naturalem esle j et quanquam in Persona sua Politica, Civitati studeat, non tamen ideo ad rem familiarcm suam, et cognatorum, et amicorum minus respicerej et saepissimesi contingat Bonum Publicum cum Privato non congruere, Privatum Publico anteserre. Nam Passiones hominum Ratione plerumque fortiores sunt. Quando ergo Bonum Publicum Sc Privatum ardissime uniuntur, tunc maxime procuratur Bonum Publicum. In Monarchia autem Bonum Publicum et Piivatum idem est. Regis enim Divitiae, Potentia, et Honor a viribus et existimatione Civium proficiscuntur. Nam Rex cujus Subditi Pauperes, debiles aut viles sunt, neque Dives, neque Magnus, neque securus esie potest. In Democratia autem Bonum Publicum minus aliquando nnn 3 homi-

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Subordinate Representatives Dangerous

It is manifest, that men who are in absolute liberty, may, if they please, give Authority to One Man, to represent them every one; as well as give such Authority to any Assembly of men whatsoever; and consequently may subject themselves, if they think good, to a Monarch, as absolutely, as to any other Representative. Therefore, where there is already erected a Soveraign Power, there can be no other Representative of the same people, but onely to certain particular ends, by the Soveraign limited. For that were to erect two Soveraigns; and every man to have his person represented by two Actors, that by opposing one another, must needs divide that Power, which (if men will live in Peace) is indivisible, and thereby reduce the Multitude into the condition of Warre, contrary to the end for which all Soveraignty is instituted. And therefore as it is absurd, to think that a Soveraign Assembly, inviting the People of their Dominion, to send up their Deputies, with power to make known their Advise, or Desires, should therefore hold such Deputies, rather than themselves, for the absolute Representative of the people: so it is absurd also, to think the same in a Monarchy. And I know not how this so manifest a truth, should of late be so little observed; that in a Monarchy, he that had the Soveraignty from a descent of 600 years, was alone called Soveraign, had the title of Majesty from every one of his Subjects, and was unquestionably taken by them for their King; was notwithstanding never considered as their Representative; that name without contradiction passing for the title of those men, which at his command were sent up by the people to carry their Petitions, and give him (if he permitted it) their advise. Which may serve as an admonition, for those that are the true, and absolute Representative of a People, to instruct men in the nature of that Office, and to take heed how they admit of any other generall Representation upon any occasion whatsoever, if they mean to discharge the truth committed to them.

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94 &C Civitctte. Cap. 19' hominis improbi, avari, vcl ambitiosi Bono Pnvato expedit, quam Coniiiium persidum, actio proditoria, vei Bellum Civile.

Secundo, Monarcha quem, quando, ubi vult consulit. Itaque eorum qui in re de qua deliberat versatislimi sunt, qualiscunque lint ordinis, sine suco oratorio, ante exequendi tempus, quantum vulr, et secreto consilia audire potest. Coetus autem ubi consilio opus est, consiliarios nullos extra corpus suum habere potest, quorum maxima pars rerum civiiium imperiti sunt; caeteri cum Orarores iiut orationibus aut sucosis aut inepre doctis sententias dicentes, Civitatem aut turbant, aut nihil juvant. Nequeomnino Ccetui hominum Consilii quod tacitum elle expedit capiendi, propter multitudinem tempus aut locus est.

Terdo, Monarcharum decreta inconstantiam nullam habent praeter eam, qux naturam sequitur humanam -, sed in Ccetibus accedit inconstantia alia ab ipso numero hominum. Nam paucis eorum, qui decretum secerant absentibus, quod decretum est hodie, cras rescinditur.

Quarto, Monarcha a seipso (invidia autavaritia) di/Tentire nequit. Coetus autem dislenhonem in seipso habere potest, eamque tantam, ut producat Bellum Civile.

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Comparison Of Monarchy, With Soveraign Assemblyes

The difference between these three kindes of Common-wealth, consisteth not in the difference of Power; but in the difference of Convenience, or Aptitude to produce the Peace, and Security of the people; for which end they were instituted. And to compare Monarchy with the other two, we may observe; First, that whosoever beareth the Person of the people, or is one of that Assembly that bears it, beareth also his own naturall Person. And though he be carefull in his politique Person to procure the common interest; yet he is more, or no lesse carefull to procure the private good of himselfe, his family, kindred and friends; and for the most part, if the publique interest chance to crosse the private, he preferrs the private: for the Passions of men, are commonly more potent than their Reason. From whence it follows, that where the publique and private interest are most closely united, there is the publique most advanced. Now in Monarchy, the private interest is the same with the publique. The riches, power, and honour of a Monarch arise onely from the riches, strength and reputation of his Subjects. For no King can be rich, nor glorious, nor secure; whose Subjects are either poore, or contemptible, or too weak through want, or dissention, to maintain a war against their enemies: Whereas in a Democracy, or Aristocracy, the publique prosperity conferres not so much to the private fortune of one that is corrupt, or ambitious, as doth many times a perfidious advice, a treacherous action, or a Civill warre.

Secondly, that a Monarch receiveth counsell of whom, when, and where he pleaseth; and consequently may heare the opinion of men versed in the matter about which he deliberates, of what rank or quality soever, and as long before the time of action, and with as much secrecy, as he will. But when a Soveraigne Assembly has need of Counsell, none are admitted but such as have a Right thereto from the beginning; which for the most part are of those who have beene versed more in the acquisition of Wealth than of Knowledge; and are to give their advice in long discourses, which may, and do commonly excite men to action, but not governe them in it. For the Understanding is by the flame of the Passions, never enlightned, but dazled: Nor is there any place, or time, wherein an Assemblie can receive Counsell with secrecie, because of their owne Multitude.

Thirdly, that the Resolutions of a Monarch, are subject to no other Inconstancy, than that of Humane Nature; but in Assemblies, besides that of Nature, there ariseth an Inconstancy from the Number. For the absence of a few, that would have the Resolution once taken, continue firme, (which may happen by security, negligence, or private impediments,) or the diligent appearance of a few of the contrary opinion, undoes to day, all that was concluded yesterday.

Fourthly, that a Monarch cannot disagree with himselfe, out of envy, or interest; but an Assembly may; and that to such a height, as may produce a Civill Warre.

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Quinto, In Monarchia Incommodum quidem est, ut poslit Monarcha ad ditandum amicum aliquem, fortunis omnibus Bonum Cii/cm (quod tamen nunquam factum legimus) spoliare. Sed idem contingit non raro ubi Summa Potestas in Ccetu est. Eadem enim est utrobique Potentia, utrique errare poltunt; nec minus facile decipi potest Coetus a Rhetoribus et Oratoribus blandis quam Monarcha a blanditiis Aulicorum, sed facilius j nam in Coetu alter alterius Avaritise etc. Arabitioni vicislim inservit. Sunt autem Monarchae, ut unius hominis cognati &amici quos ditare velit pauci. Qui vero gratia apud Cceium valent, propter neceslitudinem Factionis cognati Sc amici multi sunt. Is cui Monarchasavet amicis asque prodeste; sk, inimicis obesle potest 5 at Oratores, id est quibus savqt Ccetus, Potestatis nocendi plu^quam satis, juvandi parum habent. Accusatio enim (ux est natura hominum) minore Eloquentia indiget quamdesensio, majoremque habet cumlustitia iimilitudinem Condemnatio quam Abiolutio.

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Fifthly, that in Monarchy there is this inconvenience; that any Subject, by the power of one man, for the enriching of a favourite or flatterer, may be deprived of all he possesseth; which I confesse is a great and inevitable inconvenience. But the same may as well happen, where the Soveraigne Power is in an Assembly: for their power is the same; and they are as subject to evill Counsell, and to be seduced by Orators, as a Monarch by Flatterers; and becoming one an others Flatterers, serve one anothers Covetousnesse and Ambition by turnes. And whereas the Favorites of an Assembly, are many; and the Kindred much more numerous, than of any Monarch. Besides, there is no Favourite of a Monarch, which cannot as well succour his friends, as hurt his enemies: But Orators, that is to say, Favourites of Soveraigne Assemblies, though they have great power to hurt, have little to save. For to accuse, requires lesse Eloquence (such is mans Nature) than to excuse; and condemnation, than absolution more resembles Justice.

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In Momrchia incommodum est, quodsumma Potestas descendereadlniantem potest, vel ad virum qui inter Bonum £c Maium discernere nesciat, unde Potestatis usus inalio erit, puta Curatore aut Proteclore. Scd incommodum in eo consistit, quod propter ran-

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Sixtly, that it is an inconvenience in Monarchie, that the Soveraigntie may descend upon an Infant, or one that cannot discerne between Good and Evill: and consisteth in this, that the use of his Power, must be in the hand of another Man, or of some Assembly of men, which are to governe by his right, and in his name; as Curators, and Protectors of his Person, and Authority. But to say there is inconvenience, in putting the use of the Soveraign Power, into the hand of a Man, or an Assembly of men; is to say that all Government is more Inconvenient, than Confusion, and Civill Warre. And therefore all the danger that can be pretended, must arise from the Contention of those, that for an office of so great honour, and profit, may become Competitors. To make it appear, that this inconvenience, proceedeth not from that forme of Government we call Monarchy, we are to consider, that the precedent Monarch, hath appointed who shall have the Tuition of his Infant Successor, either expressely by Testament, or tacitly, by not controlling the Custome in that case received: And then such inconvenience (if it happen) is to be attributed, not to the Monarchy, but to the Ambition, and Injustice of the Subjects; which in all kinds of Government, where the people are not well instructed in their Duty, and the Rights of Soveraignty, is the same. Or else the precedent Monarch, hath not at all taken order for such Tuition; And then the Law of Nature hath provided this sufficient rule, That the Tuition shall be in him, that hath by Nature most interest in the preservation of the Authority of the Infant, and to whom least benefit can accrue by his death, or diminution. For seeing every man by nature seeketh his own benefit, and promotion; to put an Infant into the power of those, that can promote themselves by his destruction, or dammage, is not Tuition, but Trechery. So that sufficient provision being taken, against all just quarrell, about the Government under a Child, if any contention arise to the disturbance of the publique Peace, it is not to be attributed to the forme of Monarchy, but to the ambition of Subjects, and ignorance of their Duty. On the other side, there is no great Common-wealth, the Soveraignty whereof is in a great Assembly, which is not, as to consultations of Peace, and Warre, and making of Lawes, in the same condition, as if the Government were in a Child. For as a Child wants the judgement to dissent from counsell given him, and is thereby necessitated to take the advise of them, or him, to whom he is committed: So an Assembly wanteth the liberty, to dissent from the counsell of the major part, be it good, or bad. And as a Child has need of a Tutor, or Protector, to preserve his Person, and Authority: So also (in great Common-wealths,) the Soveraign Assembly, in all great dangers and troubles, have need of Custodes Libertatis; that is of Dictators, or Protectors of their Authoritie; which are as much as Temporary Monarchs; to whom for a time, they may commit the entire exercise of their Power; and have (at the end of that time) been oftner deprived thereof, than Infant Kings, by their Protectors, Regents, or any other Tutors.

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.ta.ra tam dignitatem, et Officium tam Iucrosum, nascetur intcr Potentiores Cives Competitio, et ex Competitione Bellum. Verum quod incommodum hoc non a forma Regiminis Monarchici oritur, argumento est, quod Monarcha praecedens tutelam succesluri Insantis quis habiturus sit declaravit, idque vel expresse per Testamentum; vel tacite', nempe consuetudini circa quaestiones similes non contradicendo; tunc autem si competitio, vel Bellum subsequatur, forma regiminis Monarchici culpa non est, sed Injustorum et Ambitiosorum Civium. Etsi autem Monarcha praecedens Tutelam nemini commislerit, incommodo tamen huicsatis provisum est a Iure naturali, Nimirum ut Tutela illi committatur cujus per naturara maxime interest, Insantis lura et personam conservari, et cui minimum a morte vel a diminutione ejus acceslurum est emolumentum. Curaenim omnes Bonum sibi quasrant, si Tutela Insantis homini committeretur qui sc per illius mortem promovere poslet, Tutela non eslet, sed Proditio, tamquam si quistutelamagni committeret impranso lupo. Itaque cum provisum sit ne contentionis de Insantis Tutela causa Iusta este possit, non est, si Pax turbetur, formaeregiminismonarchici, sed Ambitiosis et Injustis Civibus officia sua ignorantibus attribuendum. Contra autem Civitas magna in qua Summam Potestatem habet Coetus, vix ulla est quae curatore tanquam Insans aliquando non indigeat, nam ut Insans a consilio curatoris dislentire propter inscitiam non potest; ita Ccetui a sententia majoris partis dissentire non est liberum. Et ut Insantibus dantur Tutores; ita Coetibus in rebus arduis Vittttores, Cnstodes Ltbertatis, Protectores dari insolitum non est; quorum regimen pro tempore est Monarchicum; et a quibus saepius Ccetibus sublata est Potestas Summa quam Monarchis Insantibus a Curatoribus siiis.

Quanquam Civitatumgenera (utdixi) tria tantiim sinr, Monarchia, Democratia, et Aristocratia; consideranribus tamen Civitates singulares quae nunc sunt, et quae per terrarum orbem olim fuere, plura fortasse videbuntur. Exempli causa, Regnum quod vocatur Eledtivum, ubi Summam Potestatem pro certo aiiquo tempore habet Rex. Vel qui Potestatem Summam haereditariam quidem habet, a Civibus autem limitatam; Quae sorraae regiminis a plerisque Monarchiae appellantur. Item Civitas Democratice vei Aristocratice" gubernata, si Civitatem aliam Bello victamsibi obediie cogat, et per Pnssectum aliumve Ministrum regat, viden forte potest (proprer Ccetum Regentem) regimen Democraticura vel Aristocraticum esle. Sed non est ita. Neque enira Reges temporarii, neque Reges quibus

9 6 J>e Civitate. Cap. 19.

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Though the Kinds of Soveraigntie be, as I have now shewn, but three; that is to say, Monarchie, where one Man has it; or Democracie, where the generall Assembly of Subjects hath it; or Aristocracie, where it is in an Assembly of certain persons nominated, or otherwise distinguished from the rest: Yet he that shall consider the particular Common-wealthes that have been, and are in the world, will not perhaps easily reduce them to three, and may thereby be inclined to think there be other Formes, arising from these mingled together. As for example, Elective Kingdomes; where Kings have the Soveraigne Power put into their hands for a time; of Kingdomes, wherein the King hath a power limited: which Governments, are nevertheless by most Writers called Monarchie. Likewise if a Popular, or Aristocraticall Common-wealth, subdue an Enemies Countrie, and govern the same, by a President, Procurator, or other Magistrate; this may seeme perhaps at first sight, to be a Democraticall, or Aristocraticall Government. But it is not so. For Elective Kings, are not Soveraignes, but Ministers of the Soveraigne; nor limited Kings Soveraignes, but Ministers of them that have the Soveraigne Power: nor are those Provinces which are in subjection to a Democracie, or Aristocracie of another Common-wealth, Democratically, or Aristocratically governed, but Monarchically.

And first, concerning an Elective King, whose power is limited to his life, as it is in many places of Christendome at this day; or to certaine Yeares or Moneths, as the Dictators power amongst the Romans; If he have Right to appoint his Successor, he is no more Elective but Hereditary. But if he have no Power to elect his Successor, then there is some other Man, or Assembly known, which after his decease may elect a new, or else the Common-wealth dieth, and dissolveth with him, and returneth to the condition of Warre. If it be known who have the power to give the Soveraigntie after his death, it is known also that the Soveraigntie was in them before: For none have right to give that which they have not right to possesse, and keep to themselves, if they think good. But if there be none that can give the Soveraigntie, after the decease of him that was first elected; then has he power, nay he is obliged by the Law of Nature, to provide, by establishing his Successor, to keep those that had trusted him with the Government, from relapsing into the miserable condition of Civill warre. And consequently he was, when elected, a Soveraign absolute.

Secondly, that King whose power is limited, is not superiour to him, or them that have the power to limit it; and he that is not superiour, is not supreme; that is to say not Soveraign. The Soveraignty therefore was alwaies in that Assembly which had the Right to Limit him; and by consequence the government not Monarchy, but either Democracy, or Aristocracy; as of old time in Sparta; where the Kings had a priviledge to lead their Armies; but the Soveraignty was in the Ephori.

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Potestas circumscripra est, Summi sunt, sed Summorum Ministri. Neque Provincia quae Demo aut Optimatibcs subjecta est, regitur a. Civitate dominante, Democraticc aut Aristocratice, sed Monarcbice.

Primo autem Rex cujus Porestas cum vita terminatur, quales nonnulli hodie sunt in orbe Christiano; aut is qui Summam quidem habet Potestatem, sed post tempus certum, vel ad alicujus alterius voluntatem deponendam, qualis erat quondam Romae Dictator, {i Succeslbriseltgendi Potestatem habeat, non est amplius Monarcha temporarius, sed imperium habet sibi et hneredibus fuis. Sin Potestate illa careat, alter habet vel Homo vel Coetus, qui post illius obitum Regem novum eligere potest. Sed is qui hoc potest Summam Potestatem ante habuit. Dare enim alteri quod ipie non habet nemo potest. Quod si Successionem dare potest alius nemo, is qui Potestatem ante habuit retinere, et Succestorem suum eligere potest, immo debet, ne contra Legem naturas Cives fidei su?z commislos deserta Potestatesumma in conditionem natune relabentes perire patiatur.

Secundo, Rex Eledus ad Potestatem pr^escriptam, prascribente (sive is Homo sit sive Ccetus) minor est, etc. proinde non est Summus. Potestatem ergo Summam habenti Ius Succesloris eligendi femper hxret. Regiminis autem ejussorma non propriemonarchia, sed vel Democratia vel Aristocratia est.

Populus Romanus victam Pompejo duce Iudaeam rexit. Regiminis ergo Iudaeorum forma sub populo Romano quo nomine appellabitur? Democratia non erat, neque Aristocratia, quia non regebatur a Ccecu hominum Iudseorum. Quid ergo, an Monarchia erat cum Summa Potestas non in homine uno, sed in Ccetu Romano resideret? Quidni? Populi Romani quanquam Summa Potestas in Cives Romanos Aristoeratia eratvel Democratia, in Iudasos tamen Monarchia erat. Tamenim Civitatis unius in Civitates plures, quam unius hominis in plures homines imperium Monarcbia est.

Quxcunque Civitatis Forma est, Materia (id est homines) Mortalis est. Nam homines tum singuli tum Ccetus integri morti subjedi sunt. Itaque quemadmodum ad Civitatis constitutionem neceslarius erat Ani$c'idi$ homo, ita etiam ad conservationem Civitatis neceslaria erat Artificialis vita, sine qua post aetatem unam, moriente Monarcha Civitas omnis interiret. Vita autem haec Artificialis ea est, quam vocant Ius Successionis. Persecta Civitatis Forma este non potest, ubi Succestorem eligendi

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Thirdly, whereas heretofore the Roman People, governed the land of Judea (for example) by a President; yet was not Judea therefore a Democracy; because they were not governed by any Assembly, into which, any of them, had right to enter; nor by an Aristocracy; because they were not governed by any Assembly, into which, any man could enter by their Election: but they were governed by one Person, which though as to the people of Rome was an Assembly of the people, or Democracy; yet as to the people of Judea, which had no right at all of participating in the government, was a Monarch. For though where the people are governed by an Assembly, chosen by themselves out of their own number, the government is called a Democracy, or Aristocracy; yet when they are governed by an Assembly, not of their own choosing, ’tis a Monarchy; not of One man, over another man; but of one people, over another people.

Of The Right Of Succession

Of all these Formes of Government, the matter being mortall, so that not onely Monarchs, but also whole Assemblies dy, it is necessary for the conservation of the peace of men, that as there was order taken for an Artificiall Man, so there be order also taken, for an Artificiall Eternity of life; without which, men that are governed by an Assembly, should return into the condition of Warre in every age; and they that are governed by One man, as soon as their Governour dyeth. This Artificiall Eternity, is that which men call the Right of Succession.

There is no perfect forme of Government, where the disposing of the Succession is not in the present Soveraign. For if it be in any other particular Man, or private Assembly, it is in a person subject, and may be assumed by the Soveraign at his pleasure; and consequently the Right is in himselfe. And if it be in no particular man, but left to a new choyce; then is the Common-wealth dissolved; and the Right is in him that can get it; contrary to the intention of them that did institute the Common-wealth, for their perpetuall, and not temporary security.

In a Democracy, the whole Assembly cannot faile, unlesse the Multitude that are to be governed faile. And therefore questions of the right of Succession, have in that forme of Government no place at all.

In an Aristocracy, when any of the Assembly dyeth, the election of another into his room belongeth to the Assembly, as the Soveraign, to whom belongeth the choosing of all Counsellours, and Officers. For that which the Representative doth, as Actor, every one of the Subjects doth, as Author. And though the Soveraign assembly, may give Power to others, to elect new men, for supply of their Court; yet it is still by their Authority, that the Election is made; and by the same it may (when the publique shall require it) be recalled.

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Ius non sit in Antecestore. Nam si in illo non est, insubdito est; ideoque ab eo qui Summam habet Potestatem aslumi sibi potest. Illius ergo aut nullius est; et sic Civitas dislolvitur coutra instituentium intcntionem.

In Deraocratia Coetus totus desicere nisi deficientibus Civibus non potest. Quaestiones igiturde Iure Successionis ad Democratiam non pertinent.

In Aristocratiis autem si quis ex Cceru Summo moriatur, alterum in illius locura a Ccetu ipio, vel ipsius Authorirate, substituendum este (propter eam quam habet Potestatem Summam) manisestum est.

Dirticultas de lure Succeslionis maxima in Monarchiis est. Circa quara duae quaesttones esle postunt, altera an Monarchae proesenti Ius iitquem vulteligendij altera quis sit quem vult. Ad primara autera considerandum est, aut Ius illud Monarchae praesentis esle, vel multitudinis soluta?. Si Monarchx sit praesentis, moriente illo Civitas dislolvitur, quia nullus est qui Ius illud postulare sibi potest homo singularis; multitudo autem neque agere quicquam aut loqui potest, ut quje Persona amplius non est. Redeunt ergo omnia ad conditionem belli, et per consequens Succestoris constitutionem ad Monarcham pratsentem pertinereex ipsa Civitatis Institutione manisestura est. Quaestio autem quis ille sit, quem Monarcha Succeslorcm, sive Haeredemsibi eslevoluit, aut per ipsius Testamentum, aut per alli signaidoneajudicandum est.

Per Testamentum, si viva voce Succeslorem declaraverit, ut se-r cerunt Imperatores Romanorum pnmi Haeredibus nominatis. Vox enim Hoeres non fempersilium autcognarum signisicat, sed queracunque quisque Potestatis sax Succeslbrem esle velit. Si ergo Monarcha Succeslorem suum dislerte nominavent, Sutnma Potestas simul atque morcuus est Anteceslor, in nominato est.

Vbi vero Testamentum et verba aperta desunt, ibi voluntatis ejus alia signa naturalia observanda sunt. Quorum signorum unum est Consuetudo loci. Vbi ergo succedere consuevit is, qui genere est proximus, illius est Potestas Summa, Antecestore mortuo; quia si alium succedere sibi voluistet, facile illum vivens nominare potuislet. Eadem autem regula est, sive proximitas illa Maris fuerit sive Sceminae. Consiietudo enimquae Principis verbo tolli facile potuit, nec tollitur, signum est sublatam este Nolentis.

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The Present Monarch Hath Right To Dispose Of The Succession The greatest difficultie about the right of Succession, is in Monarchy: And the difficulty ariseth from this, that at first sight, it is not manifest who is to appoint the Successor; nor many times, who it is whom he hath appointed. For in both these cases, there is required a more exact ratiocination, than every man is accustomed to use. As to the question, who shall appoint the Successor, of a Monarch that hath the Soveraign Authority; that is to say, (for Elective Kings and Princes have not the Soveraign Power in propriety, but in use only,) we are to consider, that either he that is in possession, has right to dispose of the Succession, or else that right is again in the dissolved Multitude. For the death of him that hath the Soveraign power in propriety, leaves the Multitude without any Soveraign at all; that is, without any Representative in whom they should be united, and be capable of doing any one action at all: And therefore they are incapable of Election of any new Monarch; every man having equall right to submit himselfe to such as he thinks best able to protect him, or if he can, protect himselfe by his owne sword; which is a returne to Confusion, and to the condition of a War of every man against every man, contrary to the end for which Monarchy had its first Institution. Therfore it is manifest, that by the Institution of Monarchy, the disposing of the Successor, is alwaies left to the Judgment and Will of the present Possessor.

And for the question (which may arise sometimes) who it is that the Monarch in possession, hath designed to the succession and inheritance of his power; it is determined by his expresse Words, and Testament; or by other tacite signes sufficient.

Succession Passeth By Expresse Words;

By expresse Words, or Testament, when it is declared by him in his life time, viva voce, or by Writing; as the first Emperours of Rome declared who should be their Heires. For the word Heire does not of it selfe imply the Children, or nearest Kindred of a man; but whomsoever a man shall any way declare, he would have to succeed him in his Estate. If therefore a Monarch declare expresly, that such a man shall be his Heire, either by Word or Writing, then is that man immediately after the decease of his Predecessor, Invested in the right of being Monarch.

Or, By Not Controlling A Custome;

But where Testament, and expresse Words are wanting, other naturall signes of the Will are to be followed: whereof the one is Custome. And therefore where the Custome is, that the next of Kindred absolutely succeedeth, there also the next of Kindred hath right to the Succession; for that, if the will of him that was in posession had been otherwise, he might easily have declared the same in his life time. And likewise where the Custome is, that the next of the Male Kindred succeedeth, there also the right of Succession is in the next of the Kindred Male, for the same reason. And so it is if the Custome were to advance the Female. For whatsoever Custome a man may by a word controule, and does not, it is a naturall signe he would have that Custome stand.

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Vbi vero neque Testamentum neque Consuetudo anteivit, ibi in- telligendum est, Primo, Regimen manere Monarchicum, quia sor- mam illam regnando commendaverat, neqne verbo improbaverat. Secundo, liberos suos, potius quam alios ad tantam dignitatem promovere.voluisle; Sc ex liberis Marem quam Soeminam, ut per naturam ad iustinenda pericula aptiorem. Tertio, si prole careat, fratrem quam alium, atque ita femper propinquiorem quam remotiorem. Praeiumitur enim sanguine propinquiorem, amore quoque, casteris paribus, potioremesse.

Verum li Monarchas per Testamentum aut Contractum, Succeslorem constituere quem velit liceat, magnum inde videtur oriri posle Civitati incommodum. Nam Potestatem Summam in hominem alienigenam transserre poterit; id quod (quia alienigense neque eidero forte regiminis formas aslueti sunt, neque eodem utentes sermone se mutuo contemptuiaut odio habentj in Civitatisoppreslionem tendere verisimileest. Sed incommodum hocnon abeo nascitur, quod Summam Potestatem habeat alienigena, sed vel ab imperitia regentis, vel a contumacia Civium quorum alteri alterorum mores, ut aequum est, ferre nolunt. Quod incommodum Romani olim ex Civitatibus, quas sibi subjecerant, impertiendo alienigenis multis, et interdum totis Civitatibus Ius Civium Romanorum sustulerunt. Idem etiam conatus est, sed frustra per Regnorum Angliae et Scotiae Vnionem, Rex noster sapientislimus Jacobus. Quod si persecisset, Belium Civile quod utramque gentem miseram facit, nasci potuisle non videtur. Civibus ergo, si Monarcha Succeslorem alienigenam constituat, Injuriam nullam facit, quanquam culpa Regentium, vel iptbrum Civium, incommodumindealiquandooriatur. Idem etiam ex eo manisestum est, quod Regna in alienigenas per cognationem des cendentia, (quanquam eadem sequutura sint incommoda) pro licite acquisitis sine contradidione haberi solent.

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Or, By Presumption Of Naturall Affection

But where neither Custome, nor Testament hath preceded, there it is to be understood, First, that a Monarchs will is, that the government remain Monarchicall; because he hath approved that government in himselfe. Secondly, that a Child of his own, Male, or Female, be preferred before any other; because men are presumed to be more enclined by nature, to advance their own children, than the children of other men; and of their own, rather a Male than a Female; because men, are naturally fitter than women, for actions of labour and danger. Thirdly, where his own Issue faileth, rather a Brother than a stranger; and so still the neerer in bloud, rather than the more remote, because it is alwayes presumed that the neerer of kin, is the neerer in affection; and 'tis evident that a man receives alwayes, by reflexion, the most honour from the greatnesse of his neerest kindred.

To Dispose Of The Succession, Though To A King Of Another Nation, Not Unlawfull

But if it be lawfull for a Monarch to dispose of the Succession by words of Contract, or Testament, men may perhaps object a great inconvenience: for he may sell, or give his Right of governing to a stranger; which, because strangers (that is, men not used to live under the same government, not speaking the same language) do commonly undervalue one another, may turn to the oppression of his Subjects; which is indeed a great inconvenience; but it proceedeth not necessarily from the subjection to a strangers government, but from the unskilfulnesse of the Governours, ignorant of the true rules of Politiques. And therefore the Romans when they had subdued many Nations, to make their Government digestible, were wont to take away that grievance, as much as they thought necessary, by giving sometimes to whole Nations, and sometimes to Principall men of every Nation they conquered, not onely the Privileges, but also the Name of Romans; and took many of them into the Senate, and Offices of charge, even in the Roman City. And this was it our most wise King, King James, aymed at, in endeavouring the Union of his two Realms of England and Scotland. Which if he could have obtained, had in all likelihood prevented the Civill warres, which make both those Kingdomes at this present, miserable. It is not therefore any injury to the people, for a Monarch to dispose of the Succession by Will; though by the fault of many Princes, it hath been sometimes found inconvenient. Of the lawfulnesse of it, this also is an argument, that whatsoever inconvenience can arrive by giving a Kingdome to a stranger, may arrive also by so marrying with strangers, as the Right of Succession may descend upon them: yet this by all men is accounted lawfull.

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CAPVT XX — De Dominio Paterno et Despotico

CHAPTER XX — Of Dominion Paternal and Despotical

Clvitatem per Acquisitionem voco, ubi Summa Potestas acquisita est per vim, ita, ut mortis vel vinculorum metu, imperata facere unius personas, sive singuli, sive plurahtate sussragiorum cuncli se obligaverunt.

Atque hoc Dominii (sive Summas Potestatis) genus ab eo, quod sit per Institutionem, in hoc tantum differt, quod hic metu mutuo, ibi metu unius Cives imperium in se admittunt. Vtrique tamen id fa- ciunsi ciuntmetu. Id quod ab iis qui Pacta propter metum inita irritaesle universaliter pronuntiare solent, notandum est.

Id enim si verum eslet, Civitatis forma nulla eslet, in qu \ obedientiam Civium Civitas exigere jure poilet. In Ctvitate qui Jem, ujbi vis prohibetur, et latrocinia indicare jubent leges, Promisla terrore extorta irrita sunt, non autemex natura Paclorum irrita sunt. Etiam ubi Promista metu facta invalida iunt, Promistorem absolvit non Pacli invaliditas, sed sentcntia Summae Potestatis. Alioqui universaliter verum est Promislum licitum illiciie violari.

Jura autem Summae Potestatis sive Institutae, sive Vi Acquisitae eadem sunt, neque sine habentis consensu auserri, vel transserri poisunt. Itaque qui ea poslidet neque puniri, neque Reus sieri juie potest. De Pace et Bello, et de Doclrinis publice docendis et de controverliis omnibus judicat. Magistratuum, Consiliariorum in Pace, Ducum in Bello, Ministrorumque Publicorum constitutor solus est. Premiorum, Poenarum, Honoris, et Ordinis Arbiter, Legum denique omnium Author Latorque est propter rationes capite praecedente allegatas.

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CHAPTER XX — Of Dominion Paternal and Despotical

CAPVT XX — De Dominio Paterno et Despotico

A Common-wealth by Acquisition, is that, where the Soveraign Power is acquired by Force; And it is acquired by force, when men singly, or many together by plurality of voyces, for fear of death, or bonds, do authorise all the actions of that Man, or Assembly, that hath their lives and liberty in his Power.

Wherein Different From A Common-wealth By Institution

And this kind of Dominion, or Soveraignty, differeth from Soveraignty by Institution, onely in this, That men who choose their Soveraign, do it for fear of one another, and not of him whom they Institute: But in this case, they subject themselves, to him they are afraid of. In both cases they do it for fear: which is to be noted by them, that hold all such Covenants, as proceed from fear of death, or violence, voyd: which if it were true, no man, in any kind of Common-wealth, could be obliged to Obedience. It is true, that in a Common-wealth once Instituted, or acquired, Promises proceeding from fear of death, or violence, are no Covenants, nor obliging, when the thing promised is contrary to the Lawes; But the reason is not, because it was made upon fear, but because he that promiseth, hath no right in the thing promised. Also, when he may lawfully performe, and doth not, it is not the Invalidity of the Covenant, that absolveth him, but the Sentence of the Soveraign. Otherwise, whensoever a man lawfully promiseth, he unlawfully breaketh: But when the Soveraign, who is the Actor, acquitteth him, then he is acquitted by him that exorted the promise, as by the Author of such absolution.

The Rights Of Soveraignty The Same In Both

But the Rights, and Consequences of Soveraignty, are the same in both. His Power cannot, without his consent, be Transferred to another: He cannot Forfeit it: He cannot be Accused by any of his Subjects, of Injury: He cannot be Punished by them: He is Judge of what is necessary for Peace; and Judge of Doctrines: He is Sole Legislator; and Supreme Judge of Controversies; and of the Times, and Occasions of Warre, and Peace: to him it belongeth to choose Magistrates, Counsellours, Commanders, and all other Officers, and Ministers; and to determine of Rewards, and punishments, Honour, and Order. The reasons whereof, are the same which are alledged in the precedent Chapter, for the same Rights, and Consequences of Soveraignty by Institution.

Dominion Paternall How Attained Not By Generation, But By Contract

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Est etiam Dominii Acquisiti genus aliud per Generationem, quod Paternum dicitur. Cujus jus Patris est, non quia filium genuit, sed quia consensit filius, vel propter alia aliqua argumenta. In uniuscujusque enim filii vel filiae Generatione, duo concurrunt Generantes. Si ergo Dominii Jus iola Generatione definiretur, duo estent Domini, quibus ambobus obedire imposlibile est. Quod autem scripierunt aliqui Dominium Patris esle propter praestantiam iexus, non recle dicitur. Neque enim Mas Soeminas tantum aut viribus aut prudentia iemper praestat, ut Dominium determinare possit sine Bello. In Civiratibus obtinet Jus Civile. Itaque ubi Mas regnat, ibi Mari, ubi Scemina, ibi Sceminas Dominium tribuitur in filios regios. Sed quaestio nunc est de Jure Dominii in conditione naturali, ubi Leges Matrimonialesnullae sunt praeter iexuum amorem mutuum et prolis curam naturaliter insitam, ubi Pater etc. Mater de Dominio in Insantem aut Pado disponunt, aut omnino non disponunt. Si ergo disponunt, per Padlum id faciunt, et Dominium cujus sit a Pado indicatur. Sic Amazones cum Maribus vicinorum Paclii sunt, ut geniti pueri ad lllos remitterentur, puellae apud matres remanerent.

Sin Pactum nullum interveniat, Dominium Matris est. In conditione enim naturali, ubi Leges Matrimoniales nullas extant, quis Pater est ignoratur, nisi indicante Matre. A Matris ergo arbitrio ooo 2 dependet ioo T>e Civitate. Cap. 20.

dependec Dominiurn. Ipsius ergo est. Rurslis Insansin Potestate Matris nascitur, ita ut penes lllam sit aut educare aut exponere vel intersicere. Si ergo alat, Matri vitam debet Insans, et propterea ilii pras omnibus aliis obedire obiigatur. Dominium ergo Matris est. Sin exponat iilum Mater, alius autem repertum servet alatque, alentis Dominium est. Servati enim femper Dominus est Servator 5 quia finis propterquem alreri alteris sesubjiciunt Conservatio est.

Si Pater Matris Dominus sit, etiam Insantis Dominus est. Sin Mater Patris sit Domina, uc sit quando Regina Summam habens Potestatem subdito suo nubit, Dominus Insantis Mater est, ut qu^ Domina est mariti fui.

Si Vir et Vxor Potestatem in diversis Civitatibus Summam habentes Filiumhabeant, et de Dominio in illumcontrahant, Dominium dependet a Contractu. Si non contrahant, Dominus vel Dominaestcui Domimum Regniest, in quo nascitur Filius,- quiais, qui Civitacis Dominium habec, Civium ommutn in ea natorum Dominusest.

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Dominion is acquired two wayes; By Generation, and by Conquest. The right of Dominion by Generation, is that, which the Parent hath over his Children; and is called PATERNALL. And is not so derived from the Generation, as if therefore the Parent had Dominion over his Child because he begat him; but from the Childs Consent, either expresse, or by other sufficient arguments declared. For as to the Generation, God hath ordained to man a helper; and there be alwayes two that are equally Parents: the Dominion therefore over the Child, should belong equally to both; and he be equally subject to both, which is impossible; for no man can obey two Masters. And whereas some have attributed the Dominion to the Man onely, as being of the more excellent Sex; they misreckon in it. For there is not always that difference of strength or prudence between the man and the woman, as that the right can be determined without War. In Common-wealths, this controversie is decided by the Civill Law: and for the most part, (but not alwayes) the sentence is in favour of the Father; because for the most part Common-wealths have been erected by the Fathers, not by the Mothers of families. But the question lyeth now in the state of meer Nature; where there are supposed no lawes of Matrimony; no lawes for the Education of Children; but the Law of Nature, and the naturall inclination of the Sexes, one to another, and to their children. In this condition of meer Nature, either the Parents between themselves dispose of the dominion over the Child by Contract; or do not dispose thereof at all. If they dispose thereof, the right passeth according to the Contract. We find in History that the Amazons Contracted with the Men of the neighbouring Countries, to whom they had recourse for issue, that the issue Male should be sent back, but the Female remain with themselves: so that the dominion of the Females was in the Mother.

Or Education;

If there be no Contract, the Dominion is in the Mother. For in the condition of Meer Nature, where there are no Matrimoniall lawes, it cannot be known who is the Father, unlesse it be declared by the Mother: and therefore the right of Dominion over the Child dependeth on her will, and is consequently hers. Again, seeing the Infant is first in the power of the Mother; so as she may either nourish, or expose it, if she nourish it, it oweth its life to the Mother; and is therefore obliged to obey her, rather than any other; and by consequence the Dominion over it is hers. But if she expose it, and another find, and nourish it, the Dominion is in him that nourisheth it. For it ought to obey him by whom it is preserved; because preservation of life being the end, for which one man becomes subject to another, every man is supposed to promise obedience, to him, in whose power it is to save, or destroy him.

Or Precedent Subjection Of One Of The Parents To The Other

If the Mother be the Fathers subject, the Child, is in the Fathers power: and if the Father be the Mothers subject, (as when a Soveraign Queen marrieth one of her subjects,) the Child is subject to the Mother; because the Father also is her subject.

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Qui Dominus Filiiest, Dominus quoque est Filiorum filii; quia qui Jus in personam habet, Jus quoque habet in ea, quas sunt perlonae.

Jus Successionis ad Dominium Paternum, eodem modo procedir, quo in Monarchia per Institutionem, de qua dictumestin Capite pr^ecedente.

Dorrnnium per Victoriam in Bello acquisitum, abaliquibus Scriptoribus Despoticum appellatur, quod est Dominium Herile in Servos. Per Victioriam autem Acquisitum tuncest, quando victivitandae mortis imminentis causa facluros se paciscuntur, pro Vita et Libertate Corporis concessa, quicquid a Vidore imperabitur. Post Padum iilud Victus Vi£toris Servus est. Quod nomen utrum an a Servarean a Servire derivetur disputent Grammatici. Signisicat autem non captum illum qui carcere concluditur, aut catenis constringitur, sed captum illum qui Pacto servire obligatur. Vindtus enim vel incarceratus, utquicum Victore nihil Pactus est, nullo Iure teneri potest quin carcerem, si potest, essringere, vincula dirumpere, victorem intersicere, aut in servitutem vicislim adducere jure poslit. Captus autem qui pro Libertate corporea fideliter servire Pactus est, idem faceresine Pacti violatione, id est sine Injuria non potest.

Nonergo a Victoria jus Dominii, sed a Vi<sli Pacto nascitur j necjueeo obligatur quod Captusest, sed quod voluntati capientis se lubmiut.

submisit. Neque ob submissionem ejus, obligatur Viclor vitamei condonare, nisi ante id promiierit.

Quod soleant homines vitam ab instante hoste petere, ldeo faciunt, utdeclinatamortequaeabirato hostestatimexpeclatur, possint postea aut pecunia autservitute vitam redimerej non quod Victor redemptionis pretium accipere teneatur. Tunc demum servus vitae securus est quando corpus suum sibi creditur. Sin opus faciat aut quomodocunque sine Pacto serviac, non id vi juris, sedmetu mortis facit.

Dominus Servi omnium bonorum quae habet Servus Dominus est, et Domino acquiritur quicquid acquirit Servus. Continetur enim hoc in natura Servitutis.

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If a man and a woman, Monarches of two severall Kingdomes, have a Child, and contract concerning who shall have the Dominion of him, the Right of the Dominion passeth by the Contract. If they contract not, the Dominion followeth the Dominion of the place of his residence. For the Soveraign of each Country hath Dominion over all that reside therein.

He that hath the Dominion over the Child, hath Dominion also over their Childrens Children. For he that hath Dominion over the person of a man, hath Dominion over all that is his; without which, Dominion were but a Title, without the effect.

The Right Of Succession Followeth The Rules Of The Rights Of Possession

The Right of Succession to Paternall dominion, proceedeth in the same manner, as doth the Right of Succession to Monarchy; of which I have already sufficiently spoken in the precedent chapter.

Despoticall Dominion, How Attained

Dominion acquired by Conquest, or Victory in war, is that which some Writers call DESPOTICALL, from Despotes, which signifieth a Lord, or Master; and is the Dominion of the Master over his Servant. And this Dominion is then acquired to the Victor, when the Vanquished, to avoyd the present stroke of death, covenanteth either in expresse words, or by other sufficient signes of the Will, that so long as his life, and the liberty of his body is allowed him, the Victor shall have the use thereof, at his pleasure. And after such Covenant made, the Vanquished is a SERVANT, and not before: for by the word Servant (whether it be derived from Servire, to Serve, or from Servare, to Save, which I leave to Grammarians to dispute) is not meant a Captive, which is kept in prison, or bonds, till the owner of him that took him, or bought him of one that did, shall consider what to do with him: (for such men, (commonly called Slaves,) have no obligation at all; but may break their bonds, or the prison; and kill, or carry away captive their Master, justly:) but one, that being taken, hath corporall liberty allowed him; and upon promise not to run away, nor to do violence to his Master, is trusted by him.

Not By The Victory, But By The Consent Of The Vanquished

It is not therefore the Victory, that giveth the right of Dominion over the Vanquished, but his own Covenant. Nor is he obliged because he is Conquered; that is to say, beaten, and taken, or put to flight; but because he commeth in, and submitteth to the Victor; Nor is the Victor obliged by an enemies rendring himselfe, (without promise of life,) to spare him for this his yeelding to discretion; which obliges not the Victor longer, than in his own discretion hee shall think fit.

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Jura denique omnia Dominii Paterni tu m Despotici sive Herilis eadem sunt quae Summ33 Potestatis in Civitace per Institutionem -, et propter rationes easdem; quae rationes in capite praecedente satis explicatae sunt. Itaque Monarcha qui duarum aut plurium Civitatum iummam habet Potestatem, m una per Institutionem, in altera per acquisitionem, si praetextu Victoriae, uni quam alteri duriorem se praebeat, aut per iniquitatem, aut per Iuris naturalis ignorantiam id facit. Constat hinc Familiam magnam, nisi Civitatis alicujus pars sit, quantumad Iura attinet, Civitatem esie parvam, siveillasamilia ex Patre et Filiis, sive ex Domino et Servis, vel ex Patre et Filiis et Servis constet j et in ea Familia Monarcham Dominum Patremque esse. Familia tamen proprie Civitas non est, nisi tantae sic Potentiae vel per numerum suum, vel per alias oportunitates, ut subjici sine Bello non possit. Ubi enim homines maniseste debiliores sunt quam ut tueri se possint uniti, unusquisque eorum, periculo imminente, ad vitas suae conservationem, sive suga sive deditione potest pro suo arbitrio jure utij quemadmodum faciunt milites magno exercitu circumventi, si ipsi pauci sint, arraa deponere, vitam petere, vel sugere potius solent quam ab hostibus occidi. Atquehaec de juribus eorum qui Summam habent Potestatem iussiciant ex rei natura deducta.

Vuieamus jam de eadem requid docent Scripturae Saerae. Ad Mosem populus Israeliticus lic loquitur: Locjuere tu nobiscum, et audiemtu; sed nobiscum ne locsuatur Dem, ne moriamttr. Debebarur ergo Adcst a populo Israelitico plenissima, &. absoluta obedientia. De Jure Regum Deus ipse (i Sam. 8. vers. n. etc..) per Samuelem dicict Hac ertt rotto tpsa Regii qui rtgnab.t siiper vos; fidosvestros acctpttt, ut stbt dtsponat in currtbm futs, et in equittbus suvs, et ut curr«nt ante cur-

0003 rum

-joi De Civitate.. Cap. 20.

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And that men do, when they demand (as it is now called) Quarter, (which the Greeks called Zogria, taking alive,) is to evade the present fury of the Victor, by Submission, and to compound for their life, with Ransome, or Service: and therefore he that hath Quarter, hath not his life given, but deferred till farther deliberation; For it is not an yeelding on condition of life, but to discretion. And then onely is his life in security, and his service due, when the Victor hath trusted him with his corporall liberty. For Slaves that work in Prisons, or Fetters, do it not of duty, but to avoyd the cruelty of their task-masters.

The Master of the Servant, is Master also of all he hath; and may exact the use thereof; that is to say, of his goods, of his labour, of his servants, and of his children, as often as he shall think fit. For he holdeth his life of his Master, by the covenant of obedience; that is, of owning, and authorising whatsoever the Master shall do. And in case the Master, if he refuse, kill him, or cast him into bonds, or otherwise punish him for his disobedience, he is himselfe the author of the same; and cannot accuse him of injury.

In summe the Rights and Consequences of both Paternall and Despoticall Dominion, are the very same with those of a Soveraign by Institution; and for the same reasons: which reasons are set down in the precedent chapter. So that for a man that is Monarch of divers Nations, whereof he hath, in one the Soveraignty by Institution of the people assembled, and in another by Conquest, that is by the Submission of each particular, to avoyd death or bonds; to demand of one Nation more than of the other, from the title of Conquest, as being a Conquered Nation, is an act of ignorance of the Rights of Soveraignty. For the Soveraign is absolute over both alike; or else there is no Soveraignty at all; and so every man may Lawfully protect himselfe, if he can, with his own sword, which is the condition of war.

Difference Between A Family And A Kingdom

By this it appears, that a great Family if it be not part of some Common-wealth, is of it self, as to the Rights of Soveraignty, a little Monarchy; whether that Family consist of a man and his children; or of a man and his servants; or of a man, and his children, and servants together: wherein the Father of Master is the Soveraign. But yet a Family is not properly a Common-wealth; unlesse it be of that power by its own number, or by other opportunities, as not to be subdued without the hazard of war. For where a number of men are manifestly too weak to defend themselves united, every one may use his own reason in time of danger, to save his own life, either by flight, or by submission to the enemy, as hee shall think best; in the same manner as a very small company of souldiers, surprised by an army, may cast down their armes, and demand quarter, or run away, rather than be put to the sword. And thus much shall suffice; concerning what I find by speculation, and deduction, of Soveraign Rights, from the nature, need, and designes of men, in erecting of Commonwealths, and putting themselves under Monarchs, or Assemblies, entrusted with power enough for their protection.

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rumsuum; et ad disponendum sibi Chiliarchos, et prxsetios cjuinquagenis j et ad arandum urva sua, C? ^ metendum messem suam\ Z3 ad faciendum insirumenta hellica sua, G? insirumer.ta curruum (uorum, Similutr siltasveslras aceipiet in unguentartas, in cocjuoa, et inpislrices; etiam ayos vesiros, et vineas veslras, ac oliveta veslra esotima acctpiet, et dabtt servts fuis; servosque vestros, et ancillas ve(lrasy ac juvenes prasianttsjimos, £? rs/ww vesiros accipiet, adhibcbitcjue ad opus suum. Gre<ies veslros decimabu; denique vos eritis ei scrvt. Potentia harcabsoluta est, nempe Cives omnes Regts servi sunt. Rursus, audita ratione Regis fui populus allensit tamen dicens, sed Rexproeerh nobis, ut simus nos cjuoque sicut omnes tsix gentes; et vmdicet nos Rex nosltr, (3 procedens ante nos gerat Bei/a nosira. Consirmata hic sunt iis, ut habent Summam Potestatem, jura omnia tum Miitiae tum ludiciorum, quae adeo absoluta est Potentia, ut homo ad hominem, Potentiam majorem transserre non possit. Praeterea Potentiam quam a Deo petivit Salomon, haec erat: Des servo tuo animum intelhgentem ad judicandum pcpulum tuum di/cewendo tnter bonum et malum. Quamobrem jus Tudiciorum &jus praescribendi regulas Boni et Mali, id est jus Legum serendarum pertinent ad iliumqui Summam habet Potestatem Civilem. Qua?sivit Davidem Saulus ut eum occideret j cum tamen Saulum occidere potuit David, et ut faceret hortati sunteum serviejus; vetuiteos David dicens, absit ut facerem rem hanc Domino meo, ttncio lehovce, extendendo manum meam contra eum; nam untlus lehovne esl. Consirmatur hic Regum impunitas. De Servorum obedientia dicit Sanclus Paulus, Servi obedtte Dominis veslris in omnibtu. De obedientia Filiorumdicit, Filitobedite Sarenttbm tnomnilut. Debita ergo a Filiis et Servis Patribus fuis et Dominis est obedientia simplex. Porro(Mattb. 23. 2, 3.) dicit Christus, In Cathedra Alosis sedent Scrtba et Phariset; omniaeroo c\u<e dixermt vobk ut servetis, servate (3 facite. Ecce rurius obedientiam simplicem. Stiam Sanctus Paulus Tit. 3. 1. Ipsis sugoere ut sese subjiciant Principtbus, actotestatibw obtemperen. Obedientia haecsimplex est. Postremo Servator noster ipie docet tributa imposita a Summa Potestate Civili iblvenda esle, ipse solvens, et date (inquiens) Casari ea cjute Crsaris sunt. Item quod quicquid is qui Summam habet Potestatem exegerit a subdito iuo recle exigitur, quando opus erit, et quod utrum opus sit necne ipse judicabit, ostendi potest ex verbis Christi Discipulis fuis mandantis: ne in vtcum qui vobiseslex adverso, (3 (iatim invenietis <,s\nam ligitam et pullum cum ea; sotventes eos adducite adme. Et si cjuts vobts aitquid dtxcnt, dicite, Domino his opus esl 3 siatim autem mitteteos. Non interrogabunt utrum neceslitas illa sive opus jus eos capiendi Domino tribuat, neque utrum Dominus neceslitatis illius Iudex sit, sed in voluntate Dei acquiescent.

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The Right Of Monarchy From Scripture

Let us now consider what the Scripture teacheth in the same point. To Moses, the children of Israel say thus. (Exod. 20. 19) "Speak thou to us, and we will heare thee; but let not God speak to us, lest we dye." This is absolute obedience to Moses. Concerning the Right of Kings, God himself by the mouth of Samuel, saith, (1 Sam. 8. 11, 12, &c.) "This shall be the Right of the King you will have to reigne over you. He shall take your sons, and set them to drive his Chariots, and to be his horsemen, and to run before his chariots; and gather in his harvest; and to make his engines of War, and Instruments of his chariots; and shall take your daughters to make perfumes, to be his Cookes, and Bakers. He shall take your fields, your vine-yards, and your olive-yards, and give them to his servants. He shall take the tyth of your corne and wine, and give it to the men of his chamber, and to his other servants. He shall take your man-servants, and your maid-servants, and the choice of your youth, and employ them in his businesse. He shall take the tyth of your flocks; and you shall be his servants." This is absolute power, and summed up in the last words, "you shall be his servants." Againe, when the people heard what power their King was to have, yet they consented thereto, and say thus, (Verse. 19 &c.) "We will be as all other nations, and our King shall judge our causes, and goe before us, to conduct our wars." Here is confirmed the Right that Soveraigns have, both to the Militia, and to all Judicature; in which is conteined as absolute power, as one man can possibly transferre to another. Again, the prayer of King Salomon to God, was this. (1 Kings 3. 9) "Give to thy servant understanding, to judge thy people, and to discerne between Good and Evill." It belongeth therefore to the Soveraigne to bee Judge, and to praescribe the Rules of Discerning Good and Evill; which Rules are Lawes; and therefore in him is the Legislative Power. Saul sought the life of David; yet when it was in his power to slay Saul, and his Servants would have done it, David forbad them, saying (1 Sam. 24. 9) "God forbid I should do such an act against my Lord, the anoynted of God." For obedience of servants St. Paul saith, (Coll. 3. 20) "Servants obey your masters in All things," and, (Verse. 22) "Children obey your Parents in All things." There is simple obedience in those that are subject to Paternall, or Despoticall Dominion. Again, (Math. 23. 2,3) "The Scribes and Pharisees sit in Moses chayre and therefore All that they shall bid you observe, that observe and do." There again is simple obedience. And St. Paul, (Tit. 3. 2) "Warn them that they subject themselves to Princes, and to those that are in Authority, & obey them." This obedience is also simple. Lastly, our Saviour himselfe acknowledges, that men ought to pay such taxes as are by Kings imposed, where he sayes, "Give to Caesar that which is Caesars;" and payed such taxes himselfe. And that the Kings word, is sufficient to take any thing from any subject, when there is need; and that the King is Judge of that need: For he himselfe, as King of the Jewes, commanded his Disciples to take the Asse, and Asses Colt to carry him into Jerusalem, saying, (Mat. 21. 2,3) "Go into the Village over against you, and you shall find a shee Asse tyed, and her Colt with her, unty them, and bring them to me. And if any man ask you, what you mean by it, Say the Lord hath need of them: And they will let them go." They will not ask whether his necessity be a sufficient title; nor whether he be judge of that necessity; but acquiesce in the will of the Lord.

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His locis addi ctiam potest quod dicitur Gen. 3. 5-. Eritii sicut Dii% sientes boni 6? mali -, etc. versi 1 1. cjuis tndtcavit tibi nudum ejje te? An dc fruclu tllitu arborvs, de cjuo mterdixeram tibi ne comedas ex eo, comederu? Cognitioid estludicatio boni& mali vetabatur sub nomine fructus arboris scientiae boni et mali, in experimentum obedientiae Adami. Diabolusautemutambitionemsaemin33,cui fructus ille pulcher jam visus erat, incenderet dixit, illi fore lllos quasi Deos scientes boni et mali. Cum igitur comedislent ambo, arrogarunt quidem officium quod Dei solius erat, nempe Iudicationem boni etc. mali sibimet ipsis; quanquam facultatem novam discernendi inter bonum et malum nullam acquisierant. Quoddicituraut em,quod cum comedislent, viderunt se nudos este, nemo locum illum ita interpretatusest, quasi cceci ante fuerint neque suas ipsorum cutes viderint. Sensus autem manisestus est, quod eo primum tempore nuditatem suam (in qua Deo visum est illos creare) indecoram esle judicarunt; et pudore suo Dei opustacite condemnarunt. Interrogatergo Adamum Deus, Comedtsit etc.. tanquam si dixistet, Tu qui obedientiam mihi debes, arrogasti tibi Potestatem de adionibus meisludicandi? Vnde perspicue (quanquam Allegorice) signisicatur, facl:a eorum quibus Summa est Potestas, a subditis fuis non esle reprehendenda, nec disputanda.

Itaque maniseste (quantum ego intelligo) non modo ex Ratione, sed etiam ex Scriptura Sacra, Summam Potestatem, sive ea in uno homine, ut in Monarchiis, sive in uno Ccetu, ut in Democratiis et Aristocratiis, collocata sit tantam esseapparet quantamsacereeam poslunt homines. Quanquam autem de Potestate indefinita multa incommoda homines imaginari sibi poslunt, incommoda tamen quae Potestatem limitatam comitantur (nempe bellum uniuscujusque contra vicinum suum) multo sunt majora. Conditio hominum in hac vitasine incommodisnunquamerit. Nequeest in Civitate quacunque incommodum magnum,nisiquod plerumquea Civium ipsorum contumacia et a violationepadorum illorum in quibus estentia Civitatis consistit ortum sit. Quicunqueautem Potestatem Summam nimiam ede putans, diminuere conabitur,subjiciet se Potestati majori quoe Summam limitare posle videbitur.

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To these places may be added also that of Genesis, (Gen. 3. 5) "You shall be as Gods, knowing Good and Evill." and verse 11. "Who told thee that thou wast naked? hast thou eaten of the tree, of which I commanded thee thou shouldest not eat?" For the Cognisance of Judicature of Good and Evill, being forbidden by the name of the fruit of the tree of Knowledge, as a triall of Adams obedience; The Divell to enflame the Ambition of the woman, to whom that fruit already seemed beautifull, told her that by tasting it, they should be as Gods, knowing Good and Evill. Whereupon having both eaten, they did indeed take upon them Gods office, which is Judicature of Good and Evill; but acquired no new ability to distinguish between them aright. And whereas it is sayd, that having eaten, they saw they were naked; no man hath so interpreted that place, as if they had formerly blind, as saw not their own skins: the meaning is plain, that it was then they first judged their nakednesse (wherein it was Gods will to create them) to be uncomely; and by being ashamed, did tacitely censure God himselfe. And thereupon God saith, "Hast thou eaten, &c." as if he should say, doest thou that owest me obedience, take upon thee to judge of my Commandements? Whereby it is cleerly, (though Allegorically,) signified, that the Commands of them that have the right to command, are not by their Subjects to be censured, nor disputed.

Soveraign Power Ought In All Common-wealths To Be Absolute

So it appeareth plainly, to my understanding, both from Reason, and Scripture, that the Soveraign Power, whether placed in One Man, as in Monarchy, or in one Assembly of men, as in Popular, and Aristocraticall Common-wealths, is as great, as possibly men can be imagined to make it. And though of so unlimited a Power, men may fancy many evill consequences, yet the consequences of the want of it, which is perpetuall warre of every man against his neighbour, are much worse. The condition of man in this life shall never be without Inconveniences; but there happeneth in no Common-wealth any great Inconvenience, but what proceeds from the Subjects disobedience, and breach of those Covenants, from which the Common-wealth had its being. And whosoever thinking Soveraign Power too great, will seek to make it lesse; must subject himselfe, to the Power, that can limit it; that is to say, to a greater.

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Maxima contra Potestatem absolutam objectio desumitur ab eo quod sieri solet, et eorum est qui interrogant ubi et qnando Potestas absolutaasubditisagnitasuerit, Sed vicissiraego iilos inte/rogo ttbi,

& quando libera a Seditione et Belio Civili extitit Civitas, ubi Potestas absoluta non fuerit. In gentibus illis ubi Civitates diu duraverunt, nec nisi Bello externo perierunt, subditi de Potentia Summa suorura principumnunquamdisputaverunt. Argumentum autema consuetudine hominumsumptum,quiin causas, et naturam rerum Civilium nunquam prosunde inspexerunt, invalidum est. Etsi enim homines fundamenta domorum suarum super arenam coilocarent, non tamen inde inserri potest, ut ita tieri debeat. Scientia constituendi conservandique Civitates, regulas certas habet etc. insallibiles non minus quam Arithmetica et Geometria; neque ab usu tantum dependet. Quas regulas excogitandi otium neque habuerunt pauperes, neque qui otium et voluntatem habuere, quae methodo id faciendum erat intellexerunt.

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The greatest objection is, that of the Practise; when men ask, where, and when, such Power has by Subjects been acknowledged. But one may ask them again, when, or where has there been a Kingdome long free from Sedition and Civill Warre. In those Nations, whose Common-wealths have been long-lived, and not been destroyed, but by forraign warre, the Subjects never did dispute of the Soveraign Power. But howsoever, an argument for the Practise of men, that have not sifted to the bottom, and with exact reason weighed the causes, and nature of Common-wealths, and suffer daily those miseries, that proceed from the ignorance thereof, is invalid. For though in all places of the world, men should lay the foundation of their houses on the sand, it could not thence be inferred, that so it ought to be. The skill of making, and maintaining Common-wealths, consisteth in certain Rules, as doth Arithmetique and Geometry; not (as Tennis-play) on Practise onely: which Rules, neither poor men have the leisure, nor men that have had the leisure, have hitherto had the curiosity, or the method to find out.

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LATINE · 1668

CAPVT XXI — De Libertate Civium

CHAPTER XXI — Of the Liberty of Subjects

Llbertas signisicat proprie absentiam impedimentorum motus externorum; et dicitur non minus derebus irrationalibus et inanimitatisquam rationalibus. Quicquidenim italigatur vel concluditur, utnisi in spatio abexternis Corporibus determinato moveri nequeat, id ulterius progrediendi Ltbertate carere dicimus. Itaque animalia dum muris includuntur, vel catenis adlocum certum alligantur, eundi quo alioqui itura ellent Libertate carent. Quando vero impedimentum in ipsa est natura rei, non Libenate, sed Potentia carere dicitur j sic Homo qui morbo assixus ledo est, eundi potetuia non Libertate privari dicitur.

Iuxta hanc propriam et receptam vocis signisicationem Uber dicitur is, qui ex iis quas viribus et arte propria facere potest, quin faciat quicquidvultnon impeditur. Sed voces Liber et Ltbertai qui ad alias res prastercorpora applicant, abutuntur. Quod enim motuisubjeclum non est, non est obnoxium impedimento. Quoties ergo dicunt (exempli causa) Via Ltbera est, non signisicatur Libertas Vias, sed Viatoris. Item quando dicimus Donum //1w#w est, nonrei dat<e sed Datcris Libertatem intelligimus. Etiam quandoquis libere loqui dicitur, non Sermonis, sed loquentis Libertas est. Ltberum denique arbitrium, non Voluntatis Libertassed Volentis est.

Metus etc. Ltbertas simul consistere in eadem actione poslunt, ut quandoaliquis Metu Nausragii bona suain mare projicit 3 nam liben- ter terid facit, potuitque (si noluistet) non facere. Ltbcre ergo fecit. Sic ille qui Metu carcens debitum iblvit, Ltbcre lblvit, quia Ltbcrttm illierat vel solvcre,vel non iblvere. Similiter Adiones Civiumomnes quas Metu Legum faciunt, si non facere potuerunt, Liberae erant. Etiam Ltbertas et Nccessita-s coniistere simul poilunt. Nam aqua per rluminisalveum, tum Libere tum Neceisitate naturas versus declivia movetur. Item actiones omnes voluntariae quas sua natura Libcrce sunt, quia tamen cauias habent, etc. causae illoe alias causas, etc. sic perpetuo usquc ad cauiarum omnium Causam primam, nempe divinam voluntatem, neceitariae sunt; adeo ut illis qui causarum omnium connexionem viderent actionumomnium, etiam voluntariarum maniseste ellent. Deusergo qui videt Sc disponit omnia, necessitatem videt omnium actionum a sua ipiius voluntate proficiscentem. Homines enim quanquam multa faciant eontra Leges divinas, id est muka quorum Deus non est Author, nullam tamen Passionem, Voluntatem uut Appetitumhabentcujus causaprima &plena non sita voluntate Dei. Nisi enim Voluntas Dei Necessitatem Voluntati humanae imponeret, et per consequens actionibus omnibus ab ea dependentibus j Libertas voluntatis humanae omnipotentiam, &omniscientiam et libertatem Dei tolleret. Atque haec (quatenus ad institutum praesens) de naturali et proprie dicta Ltber.mte disputata sussiciant.

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CHAPTER XXI — Of the Liberty of Subjects

CAPVT XXI — De Libertate Civium

Liberty What

Liberty, or FREEDOME, signifieth (properly) the absence of Opposition; (by Opposition, I mean externall Impediments of motion;) and may be applyed no lesse to Irrational, and Inanimate creatures, than to Rationall. For whatsoever is so tyed, or environed, as it cannot move, but within a certain space, which space is determined by the opposition of some externall body, we say it hath not Liberty to go further. And so of all living creatures, whilest they are imprisoned, or restrained, with walls, or chayns; and of the water whilest it is kept in by banks, or vessels, that otherwise would spread it selfe into a larger space, we use to say, they are not at Liberty, to move in such manner, as without those externall impediments they would. But when the impediment of motion, is in the constitution of the thing it selfe, we use not to say, it wants the Liberty; but the Power to move; as when a stone lyeth still, or a man is fastned to his bed by sicknesse.

What It Is To Be Free

And according to this proper, and generally received meaning of the word, A FREE-MAN, is "he, that in those things, which by his strength and wit he is able to do, is not hindred to doe what he has a will to." But when the words Free, and Liberty, are applyed to any thing but Bodies, they are abused; for that which is not subject to Motion, is not subject to Impediment: And therefore, when ’tis said (for example) The way is free, no liberty of the way is signified, but of those that walk in it without stop. And when we say a Guift is free, there is not meant any liberty of the Guift, but of the Giver, that was not bound by any law, or Covenant to give it. So when we Speak Freely, it is not the liberty of voice, or pronunciation, but of the man, whom no law hath obliged to speak otherwise then he did. Lastly, from the use of the word Freewill, no liberty can be inferred to the will, desire, or inclination, but the liberty of the man; which consisteth in this, that he finds no stop, in doing what he has the will, desire, or inclination to doe.

Feare And Liberty Consistent

Feare and Liberty are consistent; as when a man throweth his goods into the Sea for Feare the ship should sink, he doth it neverthelesse very willingly, and may refuse to doe it if he will: It is therefore the action, of one that was Free; so a man sometimes pays his debt, only for Feare of Imprisonment, which because no body hindred him from detaining, was the action of a man at Liberty. And generally all actions which men doe in Common-wealths, for Feare of the law, or actions, which the doers had Liberty to omit.

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Quemadmodum autem homines Pacis et Conservationis suaecausa Hominem secerunt Arttsicialem (quera vocant Civitatem) ita etiam Vincula excogitarunt Artificialia (quae vocantur Leges Civiles) quae Vincula ipsi mutuis inter ie Pactis ab una parte ad illius cui Summam dederunt Potestatem Labra, ab altera parte ad suas ipsorum Aures alligarunt. Vincula autem hase etii natura sua fragilia, satis tamen tenacia sunt, non a dirsicultate ied a periculo quo frangantur.

Vincula haec Artifictaliaea sunt, quae opponi intelligo Libertati Civium. Cum enim actionibus Leges praeicribere omnibus, impoilibile sit; Ltbertatem habere Civis diciturad illas actiones de quibus in Legibusnihil definitur, &ad easlblas. Inhisergo unicuique id quod sibi maxime videbitur expedire, facere Liberum est. Sin de Libertate corporis a carcere &catenis Libertas Civilis intelligeretur absurdiilime conquererentur Libertatemque slagitarent hodie rebelles nostri qui ea manisestissime fruentes rebellaverunt. Libertas igitur Civium in iis tantum rebus conlistit, quas in Legibus serendis Legislator praetermisit.

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Liberty And Necessity Consistent

Liberty and Necessity are Consistent: As in the water, that hath not only Liberty, but a Necessity of descending by the Channel: so likewise in the Actions which men voluntarily doe; which (because they proceed from their will) proceed from Liberty; and yet because every act of mans will, and every desire, and inclination proceedeth from some cause, which causes in a continuall chaine (whose first link in the hand of God the first of all causes) proceed from Necessity. So that to him that could see the connexion of those causes, the Necessity of all mens voluntary actions, would appeare manifest. And therefore God, that seeth, and disposeth all things, seeth also that the Liberty of man in doing what he will, is accompanied with the Necessity of doing that which God will, & no more, nor lesse. For though men may do many things, which God does not command, nor is therefore Author of them; yet they can have no passion, nor appetite to any thing, of which appetite Gods will is not the cause. And did not his will assure the Necessity of mans will, and consequently of all that on mans will dependeth, the Liberty of men would be a contradiction, and impediment to the omnipotence and Liberty of God. And this shall suffice, (as to the matter in hand) of that naturall Liberty, which only is properly called Liberty.

Artificiall Bonds, Or Covenants

But as men, for the atteyning of peace, and conservation of themselves thereby, have made an Artificiall Man, which we call a Common-wealth; so also have they made Artificiall Chains, called Civill Lawes, which they themselves, by mutuall covenants, have fastned at one end, to the lips of that Man, or Assembly, to whom they have given the Soveraigne Power; and at the other end to their own Ears. These Bonds in their own nature but weak, may neverthelesse be made to hold, by the danger, though not by the difficulty of breaking them.

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Libertas tamen haec Civilis, quin is qui Summam habet Potesta- tem, vitae et necis Civkim arbiter £it, impedimento non est. Osten- io 6 De Civitate. Cap. 21 sum enim est, Civibus ab eo qui Summam habet Potestatem (id est a Civitatejlnjuriamsierinon posle, etsi per Iniquitatem Injurius esse in Deum poslit. Contingere ergo potest, et contingit saepe in Civitatibus Iussu Summam habentis Potestatem, Innocentem etiam sine Injuria intersici; ut quando filiam suam occidi juslit /eptba. Etiam in -occisione Vrtce, etsi Rex David inique fecit, et contra Deum graviter peccavit, contra Vriam tamen non peccavit, qui facti illius Authorem se secerat. Tibi soli peccavi sunt verba ipsius ad Deum Davidis. Deoenim solo obligari potuit Rex. Etiam Populus Atheniensis cum Civem per Ostracismum in exilium mitteret, non illum criminis accusabat, led quemcunque exulare voluit, numerus concivium maximus, is exulabat; non quia violator legum erat, sed quia (propter nimiam potentiam) violare Leges impune posle videbatur. Iraque Aristidem, cuicognomenlusti ipsiante dederant, Ciuitate expulerunt. Expulerunt item Hyperbolum imi ordinis hominem scurram, quem nemo metuebat; quia voluerunt; joculariter forte, non autem injuste, cum id jure secerint Civitatis.

Libertas illa, de qua in Gra^corum Romanorumque veterum Libris Historicis et Politicis; hodieque in Sermone et Scriptis eorum, qui Grascam et Romanam Politicam suam faciunt, tam magnisica sit mentio, non Civium singularium, sed Civitatis Libertas est, eademque quae hominum singularium fuislet, nisi constitutae Civitates et Leges fuislent. Sicut enim inter homines,sine Lege,sine Imperio,Bellum unicuique contra vicinum est, nulla autem haereditas filiis transmittenda, nulla Proprietas bonorum, nulla securitas, sed Libertasunicuique plena et absoluta; ita inter Civitates, quarum una alteri non subiicitur, unicuique Civitati Libertas faciendi quicquid sibi commodum videbitur abloluta est. Sed tamen ita viuunt perpetuo ac si Bellum etset, parati ad pugnam, tormentis Bellicis contra vicinos undequaque collocatis. Itaque neque Atheniensis, neque Romanus quisquam Liber (alegibtm) erat, sed Civitates eorum. In portis murisque Vrbis L*icc<e etsi inscribatur magnis charaderibus Libertas, Luccensis tamen nemo majore Libertate fruitur quam Constantinopolitanus, vtrobique enim Legibus Civilibus vinciuntur.

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Liberty Of Subjects Consisteth In Liberty From Covenants

In relation to these Bonds only it is, that I am to speak now, of the Liberty of Subjects. For seeing there is no Common-wealth in the world, for the regulating of all the actions, and words of men, (as being a thing impossible:) it followeth necessarily, that in all kinds of actions, by the laws praetermitted, men have the Liberty, of doing what their own reasons shall suggest, for the most profitable to themselves. For if wee take Liberty in the proper sense, for corporall Liberty; that is to say, freedome from chains, and prison, it were very absurd for men to clamor as they doe, for the Liberty they so manifestly enjoy. Againe, if we take Liberty, for an exemption from Lawes, it is no lesse absurd, for men to demand as they doe, that Liberty, by which all other men may be masters of their lives. And yet as absurd as it is, this is it they demand; not knowing that the Lawes are of no power to protect them, without a Sword in the hands of a man, or men, to cause those laws to be put in execution. The Liberty of a Subject, lyeth therefore only in those things, which in regulating their actions, the Soveraign hath praetermitted; such as is the Liberty to buy, and sell, and otherwise contract with one another; to choose their own aboad, their own diet, their own trade of life, and institute their children as they themselves think fit; & the like.

Liberty Of The Subject Consistent With Unlimited Power Of The Soveraign

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Dulci autem nomine Libertatis, facile decipiuntur homines, qui distinguere nescientes, id quod Civitatis solius Ius est, pro sua cujusquehajreditate privata sibi arrogant. Qui error quoties Authoritatc eorum, qui propter ea, quoe scripserunt Politica, celebres siint consirmatur, mirandum non est si Seditionem et Status mutationem pariat. In partibus orbis terrarum occiduis opiniones nostras de Insti- tutione et Iuribus Civitatum accepimus ab Arijlotele, Cicermu, aliisque Gnccis et Romanis, qui cum degerent in Civitatibus Democraticis& Aristocraticisjura llla mox a Principiis naturas deduxerunt, sed usum et consuetudinem Civitatum suarum, iti Libros suos Politicos transcripserunt, non aliter, quam Regulas loquendi ex usu temporissuidescriberesolent Grammatici. Quoniam ergo Athenienses nestatum mutare cuperent, liberos solos esle eos, qui in Civitate viverent populari, servosque e(Te, qui sub Monarcha eslent, docebanturj ideo Aristoteles in Politicis (Lib. 6, cap. 2) Libertatem supponiin Democratia scripsit, neminemque inalia Civitatis forma esle liberum. Sicut autem Aristoteles; ita quoque Cicero, aliique Scriptores, Politicam dostrinam suam super Romanorum contuetudinemsundaverunt; qui Romani Monarchiam odisledidicerant, ab illis primis, qui cum Summum Imperantem, nempe Regem suum, deposuistent, Summam ^w* Potestatem intersediviserant. Ledione autem Librorum horum a Grascis et Latinis Scriptorum, factumest, ut homines nostri ab Insantia opinionibusillisinnutriti, siib Libertatis falsa specie habitum tandem contraxerint tumukibus savendi, actiones eorum, qui Summam habent Potestatem reprehendendi, et rursus reprehendendi reprehensores illos -y idque cura tanti sanguinis essusione, ut vere possim (puto) assirmare nunquam quicquam tam careemptum esle, quam Graecorum Latinorumque linguas emerunt partes hae mundi Occidentales.

{Jt veniamus jam ad ea in quibus Libertas Civium vera consistit, id est, ut dicamus,, quasnam illae adiones sunt, quae jusseab eo qui Summam habet Potestatem, poslunt tamen sine Injustitia prastermitti j considerandumest, qusenam jura illa sint, quae in Civitate instituenda deponimus, sive (quodidemest) quas Libertates nobismetipsis denegemiu tunc, quando omnium adionum simpliciter Hominis vel Ccetus quem Summum facimus, Authores nos facimus singuli. Inipsasubmislione consistit tum Obligatto tam Libertas. ltaque ex eadem submissione, Obligationis et Libertatis argumenta sumi debent. Nulla enim tenetur Obligatione quisquam, quas asui ipsius actione non procedat; cum per naturam homineslibertatem asqualem omnes habent. Quoniam autera argumenta illa vel ab ipsis verbis, nempe Abionum omnium ejpts hominis cui Summam tribuimus Potestatem Amhorem me facio, vel ab intentioneejus, qui Potestati Summae se submittit, (quae intentio intelligitur a Sine propter quem se submittit) sumenda sunt; Obligatio et Libertas Civium Singulorum ab illis Verbis vel ab illa Intentione demonstrandae sunt Finis au- p p p z tem io8 Be Civitate. Cap. 2r, tem Institutionis Civilis est Pax Civium interse, et desensio contra hostem Publicum.

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Neverthelesse we are not to understand, that by such Liberty, the Soveraign Power of life, and death, is either abolished, or limited. For it has been already shewn, that nothing the Soveraign Representative can doe to a Subject, on what pretence soever, can properly be called Injustice, or Injury; because every Subject is Author of every act the Soveraign doth; so that he never wanteth Right to any thing, otherwise, than as he himself is the Subject of God, and bound thereby to observe the laws of Nature. And therefore it may, and doth often happen in Common-wealths, that a Subject may be put to death, by the command of the Soveraign Power; and yet neither doe the other wrong: as when Jeptha caused his daughter to be sacrificed: In which, and the like cases, he that so dieth, had Liberty to doe the action, for which he is neverthelesse, without Injury put to death. And the same holdeth also in a Soveraign Prince, that putteth to death an Innocent Subject. For though the action be against the law of Nature, as being contrary to Equitie, (as was the killing of Uriah, by David;) yet it was not an Injurie to Uriah; but to God. Not to Uriah, because the right to doe what he pleased, was given him by Uriah himself; And yet to God, because David was Gods Subject; and prohibited all Iniquitie by the law of Nature. Which distinction, David himself, when he repented the fact, evidently confirmed, saying, "To thee only have I sinned." In the same manner, the people of Athens, when they banished the most potent of their Common-wealth for ten years, thought they committed no Injustice; and yet they never questioned what crime he had done; but what hurt he would doe: Nay they commanded the banishment of they knew not whom; and every Citizen bringing his Oystershell into the market place, written with the name of him he desired should be banished, without actuall accusing him, sometimes banished an Aristides, for his reputation of Justice; And sometimes a scurrilous Jester, as Hyperbolus, to make a Jest of it. And yet a man cannot say, the Soveraign People of Athens wanted right to banish them; or an Athenian the Libertie to Jest, or to be Just.

The Liberty Which Writers Praise, Is The Liberty Of Soveraigns; Not Of Private Men

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Primoergo, quia Institutio Civitatis sit per Pac1:a uniuscujusque cum unoquoque, manisestum est, Libertatem Civi manere circa res illas omnes, quarum jus per Pactum transserri vel abjici non potest. Sed ostensum est Cap. 14. Pactade seipsocontra vim non desendendi invalidumesle. Ergo

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The Libertie, whereof there is so frequent, and honourable mention, in the Histories, and Philosophy of the Antient Greeks, and Romans, and in the writings, and discourse of those that from them have received all their learning in the Politiques, is not the Libertie of Particular men; but the Libertie of the Common-wealth: which is the same with that, which every man then should have, if there were no Civil Laws, nor Common-wealth at all. And the effects of it also be the same. For as amongst masterlesse men, there is perpetuall war, of every man against his neighbour; no inheritance, to transmit to the Son, nor to expect from the Father; no propriety of Goods, or Lands; no security; but a full and absolute Libertie in every Particular man: So in States, and Common-wealths not dependent on one another, every Common-wealth, (not every man) has an absolute Libertie, to doe what it shall judge (that is to say, what that Man, or Assemblie that representeth it, shall judge) most conducing to their benefit. But withall, they live in the condition of a perpetuall war, and upon the confines of battel, with their frontiers armed, and canons planted against their neighbours round about. The Athenians, and Romanes, were free; that is, free Common-wealths: not that any particular men had the Libertie to resist their own Representative; but that their Representative had the Libertie to resist, or invade other people. There is written on the Turrets of the city of Luca in great characters at this day, the word LIBERTAS; yet no man can thence inferre, that a particular man has more Libertie, or Immunitie from the service of the Commonwealth there, than in Constantinople. Whether a Common-wealth be Monarchicall, or Popular, the Freedome is still the same.

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Si Summam habens Potestatem, Civem (quanquam jure morti condemnatum) seipsum intersicere, mutilarevel vulnerare j autvi personamejus invadenti non reiistere; aut ab alimentis, medicina, aere vel alia re sine qua vivere non potest se abstinere juslerit;, habet Civis illerecusandilibertatem.

Si quis Civis interrogetur a Summam habente Potestatem, vel per Authoritatemejus de crimine quod ipse Civis comraisit, sareri Crimen (nisi facti venia dara) non obligatur; quia nemo (utostensum est supra) obligari Pacto potest, seipsum accusare. Prseterea submissio Civis continetur his verbis, Author (umomnmm Actionum ejm cui Summam tribuimus Totejtatem. Sed in his verbis Libertatis naruralis restrictio nulla est. Eth enimutme occidat concedam, non obligor ut Iuslu ejus occidam meipsum. Aliud enim est dicereoccideme, vel concivem meum, sivisj aliudautem dicereoccidamme aut concivem meum. Sequitur ergo neminem aut ad occidendum seipsum, aut concivem ex ipsis verbis obligari. Itaque obligatio quam quis habere interdum poslit, juitu Summas Potestatis faciendi actionem aliquam periculosam aut indignam, non a verbis dependet expreslis quibus se submisit, sed ab intentione; quas intelligiturex Hne Institutione Civilis. Quando ergo negatio obedientias Finem Institutionis Civitatis frustaneamsacit, Libertas recusandi nulla est;. alioqui Libertate sua naturali uti potesl

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But it is an easy thing, for men to be deceived, by the specious name of Libertie; and for want of Judgement to distinguish, mistake that for their Private Inheritance, and Birth right, which is the right of the Publique only. And when the same errour is confirmed by the authority of men in reputation for their writings in this subject, it is no wonder if it produce sedition, and change of Government. In these westerne parts of the world, we are made to receive our opinions concerning the Institution, and Rights of Common-wealths, from Aristotle, Cicero, and other men, Greeks and Romanes, that living under Popular States, derived those Rights, not from the Principles of Nature, but transcribed them into their books, out of the Practice of their own Common-wealths, which were Popular; as the Grammarians describe the Rules of Language, out of the Practise of the time; or the Rules of Poetry, out of the Poems of Homer and Virgil. And because the Athenians were taught, (to keep them from desire of changing their Government,) that they were Freemen, and all that lived under Monarchy were slaves; therefore Aristotle puts it down in his Politiques,(lib.6.cap.2) "In democracy, Liberty is to be supposed: for ’tis commonly held, that no man is Free in any other Government." And as Aristotle; so Cicero, and other Writers have grounded their Civill doctrine, on the opinions of the Romans, who were taught to hate Monarchy, at first, by them that having deposed their Soveraign, shared amongst them the Soveraignty of Rome; and afterwards by their Successors. And by reading of these Greek, and Latine Authors, men from their childhood have gotten a habit (under a false shew of Liberty,) of favouring tumults, and of licentious controlling the actions of their Soveraigns; and again of controlling those controllers, with the effusion of so much blood; as I think I may truly say, there was never any thing so deerly bought, as these Western parts have bought the learning of the Greek and Latine tongues.

Liberty Of The Subject How To Be Measured

To come now to the particulars of the true Liberty of a Subject; that is to say, what are the things, which though commanded by the Soveraign, he may neverthelesse, without Injustice, refuse to do; we are to consider, what Rights we passe away, when we make a Common-wealth; or (which is all one,) what Liberty we deny our selves, by owning all the Actions (without exception) of the Man, or Assembly we make our Soveraign. For in the act of our Submission, consisteth both our Obligation, and our Liberty; which must therefore be inferred by arguments taken from thence; there being no Obligation on any man, which ariseth not from some Act of his own; for all men equally, are by Nature Free. And because such arguments, must either be drawn from the expresse words, "I Authorise all his Actions," or from the Intention of him that submitteth himselfe to his Power, (which Intention is to be understood by the End for which he so submitteth;) The Obligation, and Liberty of the Subject, is to be derived, either from those Words, (or others equivalent;) or else from the End of the Institution of Soveraignty; namely, the Peace of the Subjects within themselves, and their Defence against a common Enemy.

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Itaquesi quis jubeatur contra hostem Publicum pugnare (quanquam li recuset, Potestati Summae puniendi eum non desit lus) potest tamen aliquando sine Injustitia recusare, ut quandoalium militemnon minus idoneumsubstituit. Tuncenim Civitatem nondeserit. Prasterea £ Summo Iure detrahendum est aliquid propter quorundam hominum timiditatem naturalem, non solum sceminarum (a quibus officia tanti periculi nunquam expectantur) sed etiam virorum quibus animus soemininus est. Quando praelium committitur, suga tandem sitab una vel altera parte; si tamen non a persidia, sed a metu suga oritur, non injujie sugere dicuntur, sed turpitur., vel inhoneste. Propter eandem rationem, si quis praelium conetur coneturevitarelnjustitianon est, sed Ignavia. Veruntamen qui militem (e conscribi jubet timiditatis naturalis excusationem perdit, obligaturque non modo praelium inire, sed etiam invito ductore suo non Yugere. Quando autem desensio Civitatis Civium simul omnium uno et eodem temporeauxilium postulat, unusquisque qui vel arma gestare potest, velad victoriamaliquidquantulumcunque contribuere, ad Militiam obligatur; quia aliqui Institutio Civitatis quam coniervare Cives nolunt, vel non audent, vana eitet.

Contra arma Civitatis, desendendi alterius causa, sive nocentis sive innocentis arma sumere, Liberum nemini est; quia Libertas talis Summam habenti Potestatem media ad desensionem Civium ausert, ipsamquecivitatis eslentiam destruit. Quidautem si multisimul, contra Civitatis Potestatemsummam crimen aliquod corarai-serint capitale, propter quod, nisi se desendant, expectant mortem,. quxretaliquis utrum Libertatem illi conjunctis viribus se mutu6 desendendi habeant. Habentcerte. Nam vitas suas desendunt tantum; id quod et Innocenti et Nocenti xque licet. Injustitia quidemerac officii violatio prima j sedquodarma posteaad se desendendos sumpserint, crimen novum non est. Excusatio autem fui desensionis oblata venia tollitur j facitque ut si aslistere caeteris perseverent Injusti sint.

Reliqua Civium Libertas dependet a Legum Silentio. Ubi enim non dehnit Lex, unicuique faciendi vel nonsaciendi Libertasestj eaque proarbitrio Summas Potestatis aliquando major, aliquando minor est. Si inter Civem et eumqui Summam habet Potestatem controversia sit de Iure agros vel bona poslidendi, vel de debita pecunia, vel opera, vel de pcena corporea, vel pecuniaria quas in Lege aliqua praecedentesundata sit, Libertas Civi Lege agendi est contra eum qui Summam habet Potestatem eadem quam haberet contra Concivem; controversiae autem illius Iudex erit is qui Summam habet Potestatem. Quoniam enim qui Summam habet Potestatem virtute petit Legis praecedentis, non virtute Potestatis Summas non amplius petere velle intelligitur quam quod Lege illa debitum esle apparebit. Nihil ergo facit Civis a quo petitur contra voluntatem ejus qui habet Summam Potestatem. Sed si qui habet Summam Potestatem virtute Potestatis peteret, agere contra illum Lege Civis non potest. Quicquid enim virtute Potestatis Summae petit, Authoritate petit ipsius Civis, et proinde qui agit contra Summara Potestatem, contra seipsum agit.

Si Monarcha vel Summam habens Potestatem Ccetus, uni vel plu- p p p 3 ribus-

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Subjects Have Liberty To Defend Their Own Bodies, Even Against Them That Lawfully Invade Them

First therefore, seeing Soveraignty by Institution, is by Covenant of every one to every one; and Soveraignty by Acquisition, by Covenants of the Vanquished to the Victor, or Child to the Parent; It is manifest, that every Subject has Liberty in all those things, the right whereof cannot by Covenant be transferred. I have shewn before in the 14. Chapter, that Covenants, not to defend a mans own body, are voyd. Therefore,

Are Not Bound To Hurt Themselves;

If the Soveraign command a man (though justly condemned,) to kill, wound, or mayme himselfe; or not to resist those that assault him; or to abstain from the use of food, ayre, medicine, or any other thing, without which he cannot live; yet hath that man the Liberty to disobey.

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•iio De Civitate. Cap. 21.

ribuscivibus Privilegium,id est Ius sive Libertatem privatam concedat, qua concesla salutem populi procurare non potest, Concessio illa invalida est, nisi simul apertis verbis Summae Potestati renunciet, vel in alterum eam transserat. Eo enimquod potuit (si voluistet) Summae Potestati verbis perspicuis renunciasle, vel eam in alium transtulilte, nec fecit, intelligendum est neque renuntiare neque transserre voluiste; Sc proinde concessionem illam ab ignorantia prosectam esle repugnantiae inter conceslum privilegium, et Potestatem Summam. Retineturergo Potestas Summa, et per consequens Iuraomnia retinentur quae ad exercitium ejus sunt neceslaria; qualia sunt Potestasbelli etc. Pacis, Iudiciorum, Magistratuum et Ministrorum constitutio, et caetera quas Cap. i3. enumerantur.

Obligatio quam Cives habent erga eum qui Summam habet Potestatem, tam diu nec diutius permanere intelligitur, quam manet Potentia Cives protegendi. Ius enim hominum seipsos protegendi naturale, quando a nemine alio protegi poltunt, nullo Paclo extingui potest. Isenim, qui Summam habet Potestatem, Civitatis Anima est, quae simul atque a corpore separata est, membra motum ab ilia amplius non accipiunt. Obedientiae finis est Proteclio; quam ubicunque quis viderit, sive in se, sive in alio, ad illam, obedientiam ejus et conatumad illumconservandum applicat natura. Quanquam autem Potestas Summa ex intentione Instituentium immortalis sit sua tamen natura, non solum morti violentse a Bello externo subjecta est sed etiam propter Ignorantiam et Pasliones hominum 5habet in se, ab ipsa Institutione, femina multa mortalitatis a discordiis Civium ipsorum.

Si Civis Bello captus sit; vel Personas aut vitasejus neceslaria intra praesidia hostium sint,• hostes autem vitam &corporis Libertatem illi permittant, ea conditione, ut Victori Subditus sit, Civis ille conditionem accipiendi Libertatem habet; et cum acceptaverit, Vidoris subditus est; nam alia ratione conservare, senonpotuit. Si quis autem ab hoste in carcere aut vinculis decineatur, nec credatur sibi corpus suum, Pado vindus non intelligitur, ideoque ausugerevel iervarese quocunque modo jure potest.

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If a man be interrogated by the Soveraign, or his Authority, concerning a crime done by himselfe, he is not bound (without assurance of Pardon) to confesse it; because no man (as I have shewn in the same Chapter) can be obliged by Covenant to accuse himselfe.

Again, the Consent of a Subject to Soveraign Power, is contained in these words, "I Authorise, or take upon me, all his actions;" in which there is no restriction at all, of his own former naturall Liberty: For by allowing him to Kill Me, I am not bound to Kill my selfe when he commands me. "'Tis one thing to say 'Kill me, or my fellow, if you please;' another thing to say, 'I will kill my selfe, or my fellow.'" It followeth therefore, that

No man is bound by the words themselves, either to kill himselfe, or any other man; And consequently, that the Obligation a man may sometimes have, upon the Command of the Soveraign to execute any dangerous, or dishonourable Office, dependeth not on the Words of our Submission; but on the Intention; which is to be understood by the End thereof. When therefore our refusall to obey, frustrates the End for which the Soveraignty was ordained; then there is no Liberty to refuse: otherwise there is.

Nor To Warfare, Unless They Voluntarily Undertake It

Upon this ground, a man that is commanded as a Souldier to fight against the enemy, though his Soveraign have Right enough to punish his refusall with death, may neverthelesse in many cases refuse, without Injustice; as when he substituteth a sufficient Souldier in his place: for in this case he deserteth not the service of the Common-wealth. And there is allowance to be made for naturall timorousnesse, not onely to women, (of whom no such dangerous duty is expected,) but also to men of feminine courage. When Armies fight, there is on one side, or both, a running away; yet when they do it not out of trechery, but fear, they are not esteemed to do it unjustly, but dishonourably. For the same reason, to avoyd battell, is not Injustice, but Cowardise. But he that inrowleth himselfe a Souldier, or taketh imprest mony, taketh away the excuse of a timorous nature; and is obliged, not onely to go to the battell, but also not to run from it, without his Captaines leave. And when the Defence of the Common-wealth, requireth at once the help of all that are able to bear Arms, every one is obliged; because otherwise the Institution of the Common-wealth, which they have not the purpose, or courage to preserve, was in vain.

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Si Monarcha Summas Potestati pro se et ha^redibus fuis renuntiet, redeunt Cives ad Libertatem Naturae aldiolutam. Quanquam enim, quis illi filius sit vel cognatione proximus indicet natura j quis tamen illi haeres sit dependet (ut ostensum est capite prascedente) a sua ipsius voluntate. Itaque si Haeredem habere nolit, Summa Potestas, et Subjedio perit. Idem contingit si moriatur sine cognatis cognitis, Sc

'sine sine Haeredis declaratione. Tunc enim nulla cuiquara debetur obedientia, cum cui praestanda sit ignoretur.

Sipotestatemhabenssummamsubditumin exilium mittat; manente exilio Subditus ei non est. Sed qui in Civitatem alienam mittitur de negotio aliquo, vel is cui peregrinari permittitur, Civis et Subditusmaner. Sed hoc per contractum inter Civitates, veljure Gentium sit; non vi Pacti alicujus. Quicunque enim intra sines alienae Civitatis intrauerit, illius Civitatis Legibus Subjectus est, nisi Ius habeat ab amicitia inter se ambarum Civitatum.

Si Monarcha Bello superatus Subditum se viclori faciat, priore obligationecivesliberantur debentque Victori obedientiam. Verum si captus detineatur, Potestatem quam habebat in Civitate sua Summam, perdidisle non intelligitur. Quare subditi ejus obligantur obedientiam Magistratibusabeoanteconstitutis et nomine ejus quanquam in captivitate existentis, solitam praestare. Manente enim lure ejus, quaestio de sola Administratione est, id est de Magistratibus et Ministrisj quos quia ipse constituere suo Arbitrio non potest, illos quos ipseante contistuerat, probare intelligitur.

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To resist the Sword of the Common-wealth, in defence of another man, guilty, or innocent, no man hath Liberty; because such Liberty, takes away from the Soveraign, the means of Protecting us; and is therefore destructive of the very essence of Government. But in case a great many men together, have already resisted the Soveraign Power Unjustly, or committed some Capitall crime, for which every one of them expecteth death, whether have they not the Liberty then to joyn together, and assist, and defend one another? Certainly they have: For they but defend their lives, which the guilty man may as well do, as the Innocent. There was indeed injustice in the first breach of their duty; Their bearing of Arms subsequent to it, though it be to maintain what they have done, is no new unjust act. And if it be onely to defend their persons, it is not unjust at all. But the offer of Pardon taketh from them, to whom it is offered, the plea of self-defence, and maketh their perseverance in assisting, or defending the rest, unlawfull.

The Greatest Liberty Of Subjects, Dependeth On The Silence Of The Law

As for other Lyberties, they depend on the silence of the Law. In cases where the Soveraign has prescribed no rule, there the Subject hath the liberty to do, or forbeare, according to his own discretion. And therefore such Liberty is in some places more, and in some lesse; and in some times more, in other times lesse, according as they that have the Soveraignty shall think most convenient. As for Example, there was a time, when in England a man might enter in to his own Land, (and dispossesse such as wrongfully possessed it) by force. But in after-times, that Liberty of Forcible entry, was taken away by a Statute made (by the King) in Parliament. And is some places of the world, men have the Liberty of many wives: in other places, such Liberty is not allowed.

If a Subject have a controversie with his Soveraigne, of Debt, or of right of possession of lands or goods, or concerning any service required at his hands, or concerning any penalty corporall, or pecuniary, grounded on a precedent Law; He hath the same Liberty to sue for his right, as if it were against a Subject; and before such Judges, as are appointed by the Soveraign. For seeing the Soveraign demandeth by force of a former Law, and not by vertue of his Power; he declareth thereby, that he requireth no more, than shall appear to be due by that Law. The sute therefore is not contrary to the will of the Soveraign; and consequently the Subject hath the Liberty to demand the hearing of his Cause; and sentence, according to that Law. But if he demand, or take any thing by pretence of his Power; there lyeth, in that case, no action of Law: for all that is done by him in Vertue of his Power, is done by the Authority of every subject, and consequently, he that brings an action against the Soveraign, brings it against himselfe.

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If a Monarch, or Soveraign Assembly, grant a Liberty to all, or any of his Subjects; which Grant standing, he is disabled to provide for their safety, the Grant is voyd; unlesse he directly renounce, or transferre the Soveraignty to another. For in that he might openly, (if it had been his will,) and in plain termes, have renounced, or transferred it, and did not; it is to be understood it was not his will; but that the Grant proceeded from ignorance of the repugnancy between such a Liberty and the Soveraign Power; and therefore the Soveraignty is still retayned; and consequently all those Powers, which are necessary to the exercising thereof; such as are the Power of Warre, and Peace, of Judicature, of appointing Officers, and Councellours, of levying Mony, and the rest named in the 18th Chapter.

In What Cases Subjects Absolved Of Their Obedience To Their Soveraign

The Obligation of Subjects to the Soveraign is understood to last as long, and no longer, than the power lasteth, by which he is able to protect them. For the right men have by Nature to protect themselves, when none else can protect them, can by no Covenant be relinquished. The Soveraignty is the Soule of the Common-wealth; which once departed from the Body, the members doe no more receive their motion from it. The end of Obedience is Protection; which, wheresoever a man seeth it, either in his own, or in anothers sword, Nature applyeth his obedience to it, and his endeavour to maintaine it. And though Soveraignty, in the intention of them that make it, be immortall; yet is it in its own nature, not only subject to violent death, by forreign war; but also through the ignorance, and passions of men, it hath in it, from the very institution, many seeds of a naturall mortality, by Intestine Discord.

In Case Of Captivity

If a Subject be taken prisoner in war; or his person, or his means of life be within the Guards of the enemy, and hath his life and corporall Libertie given him, on condition to be Subject to the Victor, he hath Libertie to accept the condition; and having accepted it, is the subject of him that took him; because he had no other way to preserve himselfe. The case is the same, if he be deteined on the same termes, in a forreign country. But if a man be held in prison, or bonds, or is not trusted with the libertie of his bodie; he cannot be understood to be bound by Covenant to subjection; and therefore may, if he can, make his escape by any means whatsoever.

In Case The Soveraign Cast Off The Government From Himself And Heyrs

If a Monarch shall relinquish the Soveraignty, both for himself, and his heires; His Subjects returne to the absolute Libertie of Nature; because, though Nature may declare who are his Sons, and who are the nerest of his Kin; yet it dependeth on his own will, (as hath been said in the precedent chapter,) who shall be his Heyr. If therefore he will have no Heyre, there is no Soveraignty, nor Subjection. The case is the same, if he dye without known Kindred, and without declaration of his Heyre. For then there can no Heire be known, and consequently no Subjection be due.

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In Case Of Banishment

If the Soveraign Banish his Subject; during the Banishment, he is not Subject. But he that is sent on a message, or hath leave to travell, is still Subject; but it is, by Contract between Soveraigns, not by vertue of the covenant of Subjection. For whosoever entreth into anothers dominion, is Subject to all the Lawes thereof; unless he have a privilege by the amity of the Soveraigns, or by speciall licence.

In Case The Soveraign Render Himself Subject To Another

If a Monarch subdued by war, render himself Subject to the Victor; his Subjects are delivered from their former obligation, and become obliged to the Victor. But if he be held prisoner, or have not the liberty of his own Body; he is not understood to have given away the Right of Soveraigntie; and therefore his Subjects are obliged to yield obedience to the Magistrates formerly placed, governing not in their own name, but in his. For, his Right remaining, the question is only of the Administration; that is to say, of the Magistrates and Officers; which, if he have not means to name, he is supposed to approve those, which he himself had formerly appointed.

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CAPVT XXII — De Systematibus Civium

CHAPTER XXII — Of Systems Subject, Political, and Private

De Generatione, Forma et Potestate Civitatis dictum est. Dicendum nunc est de partibus ejus. Per Syjlema intelligo numerum quemcmqtie hcminum in rem ip/orum communem congredientium. Quorum alia Regularia, alia Irregularia sunt, Regularia quidem ea iunt, in quibus Homo vel Ccetus unus Personam gerit omnium. Ccetera autem omnia sunt hregularia.

Regularium alia Ahsoluta sunt sive Independentia, id est nemini subdita praeterquam suae propriae Personae Repraesentativae; quales sunt Civitates, et quidem solae. Dequibus dictum jam est in quinque proximesuperioribuscapitibus. Alia sunj Subordinau, nempe Summae Potestati Civitatis, cui tum singuli tum etiam qui ipsorum Personam gerit, subiiciuntur.

Desystcmattbussubordinatisdma Tolitica sunt, aliasrivata. Solitica (quae vocari etiam solent Corpora Solitica) ea simt, quae ab Authoritate Summae Potestatis Civilis constituta sunt. Snvata ea sunt,quae constituuntur ab ipsis Civibus, vel Authoritate aliqua extranea; quae Authoritas quia a Potestate extranea derivatur, Sublica non est.

Sjpi-

Syslematumtrivatortm alia £rc#4 sunt, alia luicita. Licita ea sunc quae probantur a Civitate; caetera luicm.

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CHAPTER XXII — Of Systems Subject, Political, and Private

CAPVT XXII — De Systematibus Civium

The Divers Sorts Of Systemes Of People

Having spoken of the Generation, Forme, and Power of a Common-wealth, I am in order to speak next of the parts thereof. And first of Systemes, which resemble the similar parts, or Muscles of a Body naturall. By SYSTEMES; I understand any numbers of men joyned in one Interest, or one Businesse. Of which, some are Regular, and some Irregular. Regular are those, where one Man, or Assembly of men, is constituted Representative of the whole number. All other are Irregular.

Of Regular, some are Absolute, and Independent, subject to none but their own Representative: such are only Common-wealths; Of which I have spoken already in the 5. last preceding chapters. Others are Dependent; that is to say, Subordinate to some Soveraign Power, to which every one, as also their Representative is Subject.

Of Systemes subordinate, some are Politicall, and some Private. Politicall (otherwise Called Bodies Politique, and Persons In Law,) are those, which are made by authority from the Soveraign Power of the Common-wealth. Private, are those, which are constituted by Subjects amongst themselves, or by authoritie from a stranger. For no authority derived from forraign power, within the Dominion of another, is Publique there, but Private.

And of Private Systemes, some are Lawfull; some Unlawfull: Lawfull, are those which are allowed by the Common-wealth: all other are Unlawfull. Irregular Systemes, are those which having no Representative, consist only in concourse of People; which if not forbidden by the Common-wealth, nor made on evill designe, (such as are conflux of People to markets, or shews, or any other harmelesse end,) are Lawfull. But when the Intention is evill, or (if the number be considerable) unknown, they are Unlawfull.

In All Bodies Politique The Power Of The Representative Is Limited

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Systemata Irregularia sunt quse cum Personam non habeant consistuntin concursu cantum Populi; quse si Legecivili non sinc vetica et sine mala intencione sianc (qualis est consluxus populi ad Sorum, vel Pompam, vel alium finem innoxium) Licita sunt. Quando autem consilio malo consluunc, vel (si mulcicudo magna sit) incognito, Ilucim sunt.

In Systematibm Subordinatis Potestas personae eorum femper terminatur a Potestate Civili Summa; alioqui Systema Subordinatum non e/Iec, sed Civitas, cujus Persona Civium cunctorum Persona est; et proinde pars Civiumnulla repraesencari ab aiio potest, nisi quatenus Personae Civitatis visum eric. Permittere enim ut Sjstema Civium Subordinatum partem populi in rebus omnibus repra?ientaret, deserere eslet Civitatis (quatenus ad partem Civium) regimen et Dominium dividere contra pacem et ialutem populi; id quod is qui Summam habec Pocestacem, nulla conceslione facere intelligicur, qua non perspicuis verbis subjedtione sua Cives exonerac; Verborum enim consequentiae, voluntatis signa non sunt, ubi coniequenciae aliae signa siinc in concrarium; sed erroris pocius et fallae ratiocinationis, quibus humana natura subjicitur, signa sunt.

Potestatis quam habet Systema Subordinatum limites cognoscuntur duabus rebus, nempe Literis ab eo qui Summam habet Pocestatem et Lege Civicatis.

Quanquamenimin Civitatis Institutione vel Acquisitione Literis scriptis opus nonsic, quia Potestas ibi Summa (ucdiximus) limices nullos habec praerer Naturas Legem non scriptam j in Systematibus tamen Subordinatis, tot limitationes circa agenda, tempora, et loca neceslariae sunt, uc nequesine literis scnptis memoriarecineri neque nisi Licerae illae Patentes sint, et Summae Authoritatis signis signatae, cognosci poshnt.

Et quoniam Limitationes non femper facile, aut fortaste omnino describi Literis possunt; decerminacio quid Systemati Licicum vel Iilicicum factu erit, ad Leges Civiles (ubi Licerae ipsae silenc) neceslaiio percinet.

Vbi in Systemate Subordinato Persona est unus homo quicquid ille facic in Peribna Systemacis, absque Literarum suarum et Legum Civilium Authoritate, suum ipsius, non Systematis, nequ e alicujus ejus membri praecerquam fui ipsius, Factum est; propcerea quod ultra limites Liceris et Legibus praescriptos neminis praeterquam suam ipsius ipiius Personam habet. Quicquid autem juxtaleges et Literassacit Factum est uniuscujusque hommis eorum qui Systema constituunt j quod enim a Summa Potestate sit, ipsum facientem Authorem habet; quia Factumquodaliteris et Legibus Summae Potestatis non recedir, ipiius Sumras Potestatis Factum est; etc. proinde singula Systematis membra Authores habet.

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In Bodies Politique, the power of the Representative is alwaies Limited: And that which prescribeth the limits thereof, is the Power Soveraign. For Power Unlimited, is absolute Soveraignty. And the Soveraign, in every Commonwealth, is the absolute Representative of all the Subjects; and therefore no other, can be Representative of any part of them, but so far forth, as he shall give leave; And to give leave to a Body Politique of Subjects, to have an absolute Representative to all intents and purposes, were to abandon the Government of so much of the Commonwealth, and to divide the Dominion, contrary to their Peace and Defence, which the Soveraign cannot be understood to doe, by any Grant, that does not plainly, and directly discharge them of their subjection. For consequences of words, are not the signes of his will, when other consequences are signes of the contrary; but rather signes of errour, and misreckoning; to which all mankind is too prone.

The bounds of that Power, which is given to the Representative of a Bodie Politique, are to be taken notice of, from two things. One is their Writt, or Letters from the Soveraign: the other is the Law of the Common-wealth.

By Letters Patents

For though in the Institution or Acquisition of a Common-wealth, which is independent, there needs no Writing, because the Power of the Representative has there no other bounds, but such as are set out by the unwritten Law of Nature; yet in subordinate bodies, there are such diversities of Limitation necessary, concerning their businesses, times, and places, as can neither be remembred without Letters, nor taken notice of, unlesse such Letters be Patent, that they may be read to them, and withall sealed, or testified, with the Seales, or other permanent signes of the Authority Soveraign.

And The Lawes

And because such Limitation is not alwaies easie, or perhaps possible to be described in writing; the ordinary Lawes, common to all Subjects, must determine, that the Representative may lawfully do, in all Cases, where the Letters themselves are silent. And therefore

When The Representative Is One Man, His Unwarranted Acts His Own Onely

In a Body Politique, if the Representative be one man, whatsoever he does in the Person of the Body, which is not warranted in his Letters, nor by the Lawes, is his own act, and not the act of the Body, nor of any other Member thereof besides himselfe: Because further than his Letters, or the Lawes limit, he representeth no mans person, but his own. But what he does according to these, is the act of every one: For of the Act of the Soveraign every one is Author, because he is their Representative unlimited; and the act of him that recedes not from the Letters of the Soveraign, is the act of the Soveraign, and therefore every member of the Body is Author of it.

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At si Perlbna Systematis Ccetussit, quicquid ille Ccetus praeter Legum et Literjrum iuarum Authoritatem secerit vel decreverit Sadumest totius Systematis, et pranerea uniuscujusqueeorum quorum sustragus decretum fuerit; sed nequehominis contra cujussussragium Factum aut decretum erat, neque hominis absentis Factum est. Ccetus enim ipiius ideo Factum est, quia majoris partis est; et siquidem crimen iit, puniendus Ccetusest,quatenus pcenascapax est. Exempli causa, per dislolutionem Systematis,s qua? quidem ejusmodi Corporibus Siciitiiscapitalis estj vel (si modo aerarium commune habeat Coetus) per mulclim pecunianam. Nam hujusmodi Systemata a pceniscorporeis ipsa exetmt Narura. Qui autem criminia Systematc decreto suslbgium suum non dederunt, innocentes sunt; etc. quia Ccetus per Litteras suas neminem in Illicitis repraesentare potest, innocentes illi m sussragiis nocentium non comprehenduntur.

Si Periona Systematis sitin homineuno, et is pecuniam mutuam sumpserit ab extraneo, idestabeo, qui membrum Systematis ejus non est; debitor est is qui habet Personam Systematis neque ad solutionem tenetur aliusquicunque. Alioqui Literarum suarum Authoritate facere poslet, ut quicquid ipse mutuum sumeret, alii solverent. Systematisergo Subordinati membrum ad solutionem pecuniae quam Persona Systematis (quoties homo estj mutuamsumpserit teneri non potest. Qui pecuniam mutuam dat cum Systemati extraneus sit pro debitoribus habet eos solos, qui solvere promiserant, Personam enim, rrjutuum accipiente, nullara praeter ipsius hominis naturam cognoscit Solus ergo debitor is est, et iolvere debet, vel ex communi thesauro, velexpecunia propria. Idem dicendum est de Mulcta si contingat Personam Systematis Subordinati, quam gerithomo unus, a persona Civitatis pecunia mulctari.

Quando autem persona Systematis in Ccetu est, debeturque pecunia extraneo, tenentur ad solutionera illi omnes, et soli, quorum sussragiis pecunia mutuo sumpta est. Unusquisque enim eorum eo ipsoquodmutuum sumi sussragiis siiis voluerunt, ad solutionem obligantur etiam totius debiti, quod cum quilibet unus solverit omnes liberantur.

Quod si pecunia uni alicui ex ipso Ccetu debeatur, ad solutionem tenetur solus Ccetus ipse, id est ipsum Systema. Isenim cui debetur, si pecuniam illam mutuam dari praesens sustragio suo voluit, etiam solvi voluit; siri Sussragio suo mutuam dari noluit, vel si absens fueric, quia tamen mutuam dando, mutuam dari voluit,solvi voluit,idem ergo mutuam sumit et datj et proinde debitum suum a nemine poscere praeterquam a Systemate ipso Iure potest. Itaque si Systema [ex thesauro communi) solvendo non est, remedium habet nullum, neque potest nisi de seipso conqueri, qui sponte sua imprudenter pecuniam suam mutuam dedit.

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When It Is An Assembly, It Is The Act Of Them That Assented Onely

But if the Representative be an Assembly, whatsoever that Assembly shall Decree, not warranted by their Letters, or the Lawes, is the act of the Assembly, or Body Politique, and the act of every one by whose Vote the Decree was made; but not the act of any man that being present Voted to the contrary; nor of any man absent, unlesse he Voted it by procuration. It is the act of the Assembly, because Voted by the major part; and if it be a crime, the Assembly may be punished, as farre-forth as it is capable, as by dissolution, or forfeiture of their Letters (which is to such artificiall, and fictitious Bodies, capitall,) or (if the Assembly have a Common stock, wherein none of the Innocent Members have propriety,) by pecuniary Mulct. For from corporall penalties Nature hath exempted all Bodies Politique. But they that gave not their Vote, are therefore Innocent, because the Assembly cannot Represent any man in things unwarranted by their Letters, and consequently are not involved in their Votes.

When The Representative Is One Man, If He Borrow Mony, Or Owe It, By Contract; He Is Lyable Onely, The Members Not If the person of the Body Politique being in one man, borrow mony of a stranger, that is, of one that is not of the same Body, (for no Letters need limit borrowing, seeing it is left to mens own inclinations to limit lending) the debt is the Representatives. For if he should have Authority from his Letters, to make the members pay what he borroweth, he should have by consequence the Soveraignty of them; and therefore the grant were either voyd, as proceeding from Errour, commonly incident to humane Nature, and an unsufficient signe of the will of the Granter; or if it be avowed by him, then is the Representer Soveraign, and falleth not under the present question, which is onely of Bodies subordinate. No member therefore is obliged to pay the debt so borrowed, but the Representative himselfe: because he that lendeth it, being a stranger to the Letters, and to the qualification of the Body, understandeth those onely for his debtors, that are engaged; and seeing the Representer can ingage himselfe, and none else, has him onely for Debtor; who must therefore pay him, out of the common stock (if there be any), or (if there be none) out of his own estate.

If he come into debt by Contract, or Mulct, the case is the same.

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Manisestumhincest? in Systematibus Subordinatis, subditisque Potestati Civitatis, interdum privato homini Systematis membro contra decretum Ccetus protestari aliquando dislentire Sc dislentionis {ux conservari memoriam postulare non modo Licitumeste, sed etiam expedire, ne alioqui debita ab aliis contradtata ipse solvere obligetur. Sed in Ccetu Summam habente Civitatis Potentiam, Protestationes hujusmodi Licitae non siint, propterea quod Protestatis Summas totidem sunt negationes; etiam quia quicquid sit a Summa Potestate, Authoribus sit Civibus omnibus et Singulis.

Systematum Subordinatornm insinita sere est varietas. Distinguuntur enim non solum ab Agendis, propter quae constituuntur et multorum generum sunt, sed etiam a temporibus, locis et numeris, quajomnia definiri debent. Constituuntur enira aliquando ad regendam Provinciam cum Potestate Literis Civitatis terminata. Scd Provinciarum quae a Coetibus in ipsa Provincia residentibus gubernantur, pauca sunt exempla. Romani Provincias suas Praesidibus, Prastoribus, vel Procuratoribus administraverunt, non Ccetibus sicut administrabatur ipsa Roma. Similiter emislae ad Viyoimam etc. Permttdam Coloniae, quanquam Summa Potestas in illas commiila estet Coetui Londinensium, Ccetus tamen ille Colonias illas per Praesedos administravit. Quanquam enim unusquisque regiminis partem exercere cupiat, ubi adesle ipse potest -3 ubi tamen adesle non potest, rem communem Monarchic^ quam vel Aristocratice, vel Democraticeadministrari mavult naturaliter. Quod manisestum etiam est in privatis hominibus, qui multas habent postesllones; qui laboreadministrandi negotia propria levari cupientes Amicum vel Famulum unum potius eligunt, cui poslessionum suarum curam committant, quam Amicorum vel Famulorum plurium Systemati. Potest tamen Provincise vel Colonix cura etiam Ccetui committi. Quando autemidsit, quodcunque ab eo Ccetu debitumcontradumsuerit; etc.

& quodcunque decretum ab eo Ccetu Illicitum fuerit, faclumest iliorum tantum qui per Sussragia sua asscnserunt, non autem cjus qui diitensit vel absuit, propter rationes iupraadductas. Coetus extra sines Coloniae quam administrat, Potestatcm in personas vel bona Coloniae non habet, qua bona eorum in loco quocunque extra ipiam Coloniam propter debitam pecuniam exigere jure potest; quia extra Coloniam ipsam Iurisdictionem nullam haber. Idem Ceetus quanquam mulctandi mcmbra singularia jus habeat, si Legessuas sregerint j mulctam tamen illam exequi extra Coloniam ipiam jurenon poitunr. Quod autem hic dictumestde admimstrauone Provinciae vel Coloniae, dicendum quoque est de regimine Oppidi, velvniversitatis, velcollegii, vel Eccleiiae.

In omnibus Systematibus Subordinatis, si quis ex Systemate causamhabeat contra Systema ipsum, cognitio causae pertinet ad Iudicem Civilem qui a Summa Potestate Civitatis ordinatur, non ad ipsum Systema quod membro suo concivis est. In Ccetu Summam habente Potestatem Civitatis, aliter res se habet j ibi enim is, qui Summam habet Potestatem, etiam in sua ipsius causa Iudex erit, aut Iudex erit omnino nullus.

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When It Is An Assembly, They Onely Are Liable That Have Assented

But when the Representative is an Assembly, and the debt to a stranger; all they, and onely they are responsible for the debt, that gave their votes to the borrowing of it, or to the Contract that made it due, or to the fact for which the Mulct was imposed; because every one of those in voting did engage himselfe for the payment: For he that is author of the borrowing, is obliged to the payment, even of the whole debt, though when payd by any one, he be discharged.

If The Debt Be To One Of The Assembly, The Body Onely Is Obliged

But if the debt be to one of the Assembly, the Assembly onely is obliged to the payment, out of their common stock (if they have any:) For having liberty of Vote, if he Vote the Mony, shall be borrowed, he Votes it shall be payd; If he Vote it shall not be borrowed, or be absent, yet because in lending, he voteth the borrowing, he contradicteth his former Vote, and is obliged by the later, and becomes both borrower and lender, and consequently cannot demand payment from any particular man, but from the common Treasure onely; which fayling he hath no remedy, nor complaint, but against himselfe, that being privy to the acts of the Assembly, and their means to pay, and not being enforced, did neverthelesse through his own folly lend his mony.

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Systematis Subordinati ad Regulanda negotia Mercatorum constituti Persona commodislima Coetus est, Ccetus (inquam) eorum omnium quorum negotia regulanda suntj inquem convenire, Sussragia habere unusquisque eorum, qui pecunias suas conserunt, si velit, possit. Mercator, qui navem emere, et mercibus onerare potest, rarus est. Opus ergo habent, ut in unum Systema piures conjungantur. Finis autem Systematis Mercatorii is est, ut possint &fa-? cilius etc. utilius negotiari, juxta regulas ase quidem excogitatas, sed a Summa Potestate Literis consirmatas. Quibus Literis si conceitum sit, utposlintea quae a Dominio Civitatis exportari expedit, solis emere, et quae in Civitatis Dominium importari solis vendere juxta Systematis iui regulas -} duplum habebunt Mouopolium. Quorura utrumque ipsis Mercatoribus lucrosum est, ied Civibus caeteris ex parte noxium. Quoniam enim soli bona Civium domi emunt, viiius emunt; id quod iibimetipsis lucro, reliquis autem Civibus damno ett. Similiter quia in Dominiis externis ioli vendunt, carius vendunt; idquod sibimet ipsis rursus lucro, exteris damno est. Tertio quiamercesexternassoliemunt, yiliusemunt, idquod sibiquidem utile, externis autem noxium est. Quartb quia Merces externas soli vendunt domi, carius vendunt; id quodsibi adhuc lucrosum, sed concivibus fuis damnosum est. Bono ergo Civitatis eslet, si Literis q q q 2 con- n6 jdc Civitate. Cap. 22.

concesltum estet, ut soli soris Civitatis sax Merces venderent, et Merces externas soli emerent; sed ut domi arbitrio suo, quo velint pretio importata venderent, civibus roalum eslet. Expedit autem singulis hujusinodi Systematis membris, ut qui pecunias siias contulerunt, et expectant lucrum singuli pecuniae suae collatae proportionale, consultationibus Systematis adesle, librosque Rationumsuarum inspicere, id est ut persona Systematis sit in ipso Ccetu seu Curia, ad formam Democratias.

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Protestation Against The Decrees Of Bodies Politique

Sometimes Lawful; But Against Soveraign Power Never It is manifest by this, that in Bodies Politique subordinate, and subject to a Soveraign Power, it is sometimes not onely lawfull, but expedient, for a particular man to make open protestation against the decrees of the Representative Assembly, and cause their dissent to be Registred, or to take witnesse of it; because otherwise they may be obliged to pay debts contracted, and be responsible for crimes committed by other men: But in a Soveraign Assembly, that liberty is taken away, both because he that protesteth there, denies their Soveraignty; and also because whatsoever is commanded by the Soveraign Power, is as to the Subject (though not so alwayes in the sight of God) justified by the Command; for of such command every Subject is the Author.

Bodies Politique For Government Of A Province, Colony, Or Town

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Si Systema Mercatorum homini, qui Systematis membrum non sit, sed extraneus, pecuniam debeat, unumquodque membrorum seorsim obligatur ad solutionem totius debiti. Is enim, qui Systematis membrum non est Personae artificialis notitiam nullam habet, sed Personas naturales eorum omnes obligari sibi supponit. Verum si Creditor sit Systematis membrum, Debitor quoque idem est, neque debitum suum nisi a Systemate ipso, id est a communi pecunia, si quam habet, postulare Iure potest. Si Civitas a Systemate virtute Potestatis Summae pecuniam exigat, solvenda a membris est, callatis a singulis ad Mercaturam pecuniis proportionaliter. Nam communem pecuniam nullam habet Systema Mercatorium, nisi quae a singulis ad Mercaturam collata est.

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The variety of Bodies Politique, is almost infinite; for they are not onely distinguished by the severall affaires, for which they are constituted, wherein there is an unspeakable diversitie; but also by the times, places, and numbers, subject to many limitations. And as to their affaires, some are ordained for Government; As first, the Government of a Province may be committed to an Assembly of men, wherein all resolutions shall depend on the Votes of the major part; and then this Assembly is a Body Politique, and their power limited by Commission. This word Province signifies a charge, or care of businesse, which he whose businesse it is, committeth to another man, to be administred for, and under him; and therefore when in one Common-wealth there be divers Countries, that have their Lawes distinct one from another, or are farre distant in place, the Administration of the Government being committed to divers persons, those Countries where the Soveraign is not resident, but governs by Commission, are called Provinces. But of the government of a Province, by an Assembly residing in the Province it selfe, there be few examples. The Romans who had the Soveraignty of many Provinces; yet governed them alwaies by Presidents, and Praetors; and not by Assemblies, as they governed the City of Rome, and Territories adjacent. In like manner, when there were Colonies sent from England, to Plant Virginia, and Sommer-Ilands; though the government of them here, were committed to Assemblies in London, yet did those Assemblies never commit the Government under them to any Assembly there; but did to each Plantation send one Governour; For though every man, where he can be present by Nature, desires to participate of government; yet where they cannot be present, they are by Nature also enclined, to commit the Government of their common Interest rather to a Monarchicall, then a Popular form of Government: which is also evident in those men that have great private estates; who when they are unwilling to take the paines of administring the businesse that belongs to them, choose rather to trust one Servant, than a Assembly either of their friends or servants. But howsoever it be in fact, yet we may suppose the Government of a Province, or Colony committed to an Assembly: and when it is, that which in this place I have to say, is this; that whatsoever debt is by that Assembly contracted; or whatsoever unlawfull Act is decreed, is the Act onely of those that assented, and not of any that dissented, or were absent, for the reasons before alledged. Also that an Assembly residing out of the bounds of that Colony whereof they have the government, cannot execute any power over the persons, or goods of any of the Colonie, to seize on them for debt, or other duty, in any place without the Colony it selfe, as having no Jurisdiction, nor Authoritie elsewhere, but are left to the remedie, which the Law of the place alloweth them. And though the Assembly have right, to impose a Mulct upon any of their members, that shall break the Lawes they make; yet out of the Colonie it selfe, they have no right to execute the same. And that which is said here, of the Rights of an Assembly, for the government of a Province, or a Colony, is appliable also to an Assembly for the Government of a Town, or University, or a College, or a Church, or for any other Government over the persons of men.

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Eidem Systemati si imponaturob crimen aliquod mulcla pecuniaria, illi soli ad iblutionem tenentur, quorum Susrragiis sieri crimen decretum erat, vel quorum auxiiio commislum erat. In casteris enim crimen non erat, nili crimen sit, quod membra eslent Systematis peccantis. Id autem crimen non est, quia Systema ipsum Civitatis authoritate constirutum est.

Si unus ex membris pecuniam Systemati debeat nec solvat, Systema contra illum Lege Civili agere debet. Neque enim Bona ejus capi, nec persona ejus in carcerem conjici ipsius Systematis, sed Civitatis solius Authoritate potest. Concives enim sunt Systema etc. membrum ejus.

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And generally, in all Bodies Politique, if any particular member conceive himself Injured by the Body it self, the Cognisance of his cause belongeth to the Soveraign, and those the Soveraign hath ordained for Judges in such causes, or shall ordaine for that particular cause; and not to the Body it self. For the whole Body is in this case his fellow subject, which in a Soveraign Assembly, is otherwise: for there, if the Soveraign be not Judge, though in his own cause, there can be no Judge at all.

Bodies Politique For Ordering Of Trade

In a Bodie Politique, for the well ordering of forraigne Traffique, the most commodious Representative is an Assembly of all the members; that is to say, such a one, as every one that adventureth his mony, may be present at all the Deliberations, and Resolutions of the Body, if they will themselves. For proof whereof, we are to consider the end, for which men that are Merchants, and may buy and sell, export, and import their Merchandise, according to their own discretions, doe neverthelesse bind themselves up in one Corporation. It is true, there be few Merchants, that with the Merchandise they buy at home, can fraight a Ship, to export it; or with that they buy abroad, to bring it home; and have therefore need to joyn together in one Society; where every man may either participate of the gaine, according to the proportion of his adventure; or take his own; and sell what he transports, or imports, at such prices as he thinks fit. But this is no Body Politique, there being no Common Representative to oblige them to any other Law, than that which is common to all other subjects. The End of their Incorporating, is to make their gaine the greater; which is done two wayes; by sole buying, and sole selling, both at home, and abroad. So that to grant to a Company of Merchants to be a Corporation, or Body Politique, is to grant them a double Monopoly, whereof one is to be sole buyers; another to be sole sellers. For when there is a Company incorporate for any particular forraign Country, they only export the Commodities vendible in that Country; which is sole buying at home, and sole selling abroad. For at home there is but one buyer, and abroad but one that selleth: both which is gainfull to the Merchant, because thereby they buy at home at lower, and sell abroad at higher rates: And abroad there is but one buyer of forraign Merchandise, and but one that sels them at home; both which againe are gainfull to the adventurers.

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Systemata Subordinata etiam pro tempore prassinito constitui poslunt. Exempli causla, si Monarchae, Dominii fui partibus singulis, ut Provinciis& Oppidis mandare visum fuerit, per Deputatos suos convenire, ut illum de conditione Dominii fui certioremsaciant, &ei circa Legum novarum constitutionem consiiium suum impertiant, vel propter aliam causam quamcumque colloquanturque cum illis tanquam cum una Persona Cives omnes repraesentatura; Deputati illi simul ac loco et tempore a Summa Potestate constituto convenerinr, ibi et tunc Systema sunt Regulare, et Personam gerit. Systema totius

Domi-

Dominii Civium, quantum attinet adeaquae a Monarcha Summam habente Potestatem tractanda proponentur; ad alia autem non item. Etiam quandonihil amplius tractandum este a Monarcha declarabitur, Systema illud diilolvitur. Si enim Civium omnium, et quoad negotia omnia, Personamgereret, Potestas Systematis Summa esset, essentque in eodem populo Summae Potestates duae j id quod cum Pace et Salute Populi sieri non potest. Quae autera trac~tanda sunt in Systemate tali praesinita sunt in ipsis Literis quibus convocantur. Populus enim Deputatos suos eligere ad alium finem non poslunt quam qui in ipsis Monarchae Literis continetur.

Systema Privatum Regulare, idemque licitum, illudest, quod sip.e Literis aut mandato Summae Potestatis, praeterquam Legibus omnium Civium communibus, constituitur. Quod cum una Persona factum sit, Regulare est. Qualis est Familia, in qua, Pater Familias (quatenus Leges Civiles non prohibent) Personamgerittotius Familias; &illisiiii serviqueobedirein omnibus rebus, quas non sunt contra Leges Civiles, obligantur. Nam ante institutionem Civitatum, Patris erat in Filios et Servos Potestas Summa, neque Potestatis ejus partem ullara amiserunt Patres, nisi quam sustuleruut; ipsorum consensu Leges Civiles.

Systemata Regularia quidem, sed Illicita, ea sunt, quae siuntab hominibus in unam personam coeuntibus, sineomni Authoritate Publica. Qualia sunt, Systeraata Mendicorum et Surum, eo sine ut mendicent surenturque coajmodius. Etiam Privata et Jllicita sunt Systemataea sive Fraternitates authoritate externaconstitutse ad propagationem Doctrinarum, vel ad Sadionera, contra Civitatis Potestatem Summam.

Systemata Irregularia, quae sua natura Scedera tantum sunt, et in^terdum concursus tantum Populi, sine certo Consiiio, et sine obligatione mutua, procedentia a sola voluntatum moruraque similitudinelicitaautlllicitasunt, prout Singulorura consilia Licita sun-r vel Illicita. Consilium autemcujusquequalesitab occasione intelligendum est.

Scedera Civium (quoniam propter mutuam desensionem sieri Scedera solent) in Civitate (quae Civium omnium Scedus commune est) neceslaria non sunt, sed suspeaa sunt Consilii contra Civitatem initi; et propterea sunt Illicita, vocanturque vulgo Conjurationes etc. Facliones, quoties autem Civium vires suas conjungentium incognitum' est, ut Civitati periculosum, injustum et injuste celatum est.

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Of this double Monopoly one part is disadvantageous to the people at home, the other to forraigners. For at home by their sole exportation they set what price they please on the husbandry and handy-works of the people; and by the sole importation, what price they please on all forraign commodities the people have need of; both which are ill for the people. On the contrary, by the sole selling of the native commodities abroad, and sole buying the forraign commodities upon the place, they raise the price of those, and abate the price of these, to the disadvantage of the forraigner: For where but one selleth, the Merchandise is the dearer; and where but one buyeth the cheaper: Such Corporations therefore are no other then Monopolies; though they would be very profitable for a Common-wealth, if being bound up into one body in forraigne Markets they were at liberty at home, every man to buy, and sell at what price he could.

The end then of these Bodies of Merchants, being not a Common benefit to the whole Body, (which have in this case no common stock, but what is deducted out of the particular adventures, for building, buying, victualling and manning of Ships,) but the particular gaine of every adventurer, it is reason that every one be acquainted with the employment of his own; that is, that every one be of the Assembly, that shall have the power to order the same; and be acquainted with their accounts. And therefore the Representative of such a Body must be an Assembly, where every member of the Body may be present at the consultations, if he will.

If a Body Politique of Merchants, contract a debt to a stranger by the act of their Representative Assembly, every Member is lyable by himself for the whole. For a stranger can take no notice of their private Lawes, but considereth them as so many particular men, obliged every one to the whole payment, till payment made by one dischargeth all the rest: But if the debt be to one of the Company, the creditor is debter for the whole to himself, and cannot therefore demand his debt, but only from the common stock, if there be any.

If the Common-wealth impose a Tax upon the Body, it is understood to be layd upon every member proportionably to his particular adventure in the Company. For there is in this case no other common stock, but what is made of their particular adventures.

If a Mulct be layd upon the Body for some unlawfull act, they only are lyable by whose votes the act was decreed, or by whose assistance it was executed; for in none of the rest is there any other crime but being of the Body; which if a crime, (because the Body was ordeyned by the authority of the Common-wealth,) is not his.

If one of the Members be indebted to the Body, he may be sued by the Body; but his goods cannot be taken, nor his person imprisoned by the authority of the Body; but only by Authority of the Common-wealth: for if they can doe it by their own Authority, they can by their own Authority give judgement that the debt is due, which is as much as to be Judge in their own Cause.

A Bodie Politique For Counsel To Be Give To The Soveraign

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Si Potestas Sumraa in Ccetu magno sit, parsque illius, caeteris in- qqq 1 sc"$-,

1 1 8 De Civitate. Cap. 2.2.

sciis j consilium seorsim capiant quomodo coetum totum ad arbitrium iiium gubernent, Factio est et conventus lllicitus, hominum per fraudem ad seditionem, ambitionis proprie causa, decipere cupientium.

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These Bodies made for the government of Men, or of Traffique, be either perpetuall, or for a time prescribed by writing. But there be Bodies also whose times are limited, and that only by the nature of their businesse. For example, if a Soveraign Monarch, or a Soveraign Assembly, shall think fit to give command to the towns, and other severall parts of their territory, to send to him their Deputies, to enforme him of the condition, and necessities of the Subjects, or to advise with him for the making of good Lawes, or for any other cause, as with one Person representing the whole Country, such Deputies, having a place and time of meeting assigned them, are there, and at that time, a Body Politique, representing every Subject of that Dominion; but it is onely for such matters as shall be propounded unto them by that Man, or Assembly, that by the Soveraign Authority sent for them; and when it shall be declared that nothing more shall be propounded, nor debated by them, the Body is dissolved. For if they were the absolute Representative of the people, then were it the Soveraign Assembly; and so there would be two Soveraign Assemblies, or two Soveraigns, over the same people; which cannot consist with their Peace. And therefore where there is once a Soveraignty, there can be no absolute Representation of the people, but by it. And for the limits of how farre such a Body shall represent the whole People, they are set forth in the Writing by which they were sent for. For the People cannot choose their Deputies to other intent, than is in the Writing directed to them from their Soveraign expressed.

A Regular Private Body, Lawfull, As A Family

Private Bodies Regular, and Lawfull, are those that are constituted without Letters, or other written Authority, saving the Lawes common to all other Subjects. And because they be united in one Person Representative, they are held for Regular; such as are all Families, in which the Father, or Master ordereth the whole Family. For he obligeth his Children, and Servants, as farre as the Law permitteth, though not further, because none of them are bound to obedience in those actions, which the Law hath forbidden to be done. In all other actions, during the time they are under domestique government, they are subject to their Fathers, and Masters, as to their immediate Soveraigns. For the Father, and Master being before the Institution of Common-wealth, absolute Soveraigns in their own Families, they lose afterward no more of their Authority, than the Law of the Common-wealth taketh from them.

Private Bodies Regular, But Unlawfull

Private Bodies Regular, but Unlawfull, are those that unite themselves into one person Representative, without any publique Authority at all; such as are the Corporations of Beggars, Theeves and Gipsies, the better to order their trade of begging, and stealing; and the Corporations of men, that by Authority from any forraign Person, unite themselves in anothers Dominion, for easier propagation of Doctrines, and for making a party, against the Power of the Common-wealth.

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In Civitatibus omnibus, si quis Civis plures habeat famulos et servos, quam conditio ejus et res agendas postulant, Sadlioest illicita. Cumenim proteclionem habeat Civitatis, desensionis causa, vi privata non indiget.

Concursus Populi Systema est, sed Irregulare, quia sine Personae unitate. Licitum autem vel Illicitum est, proutcauiaconcurrendi Licita vel concurrentium numerus Civitati periculoius est. Si causa justa et cognita sit, concursuslicitusestj qualis est concursus hominum ad Pompas, et ad Theatrum numero non insolito. Nam si numerus solito insigniter major sit is qui causam legitimam, quare multitudini tantae intersuit reddere non potest;Consilii seditiosi conscius judicabitur. Ut cum mille homines Magistratui vel ludici supplicationem osserant, Lex fortasse civilis nulla prohibet, concurius tamen ille tumultus est seditiosus, quia per unum vel duos homines idem sieri potuit. Multitudo autem quae concursum illicitum reddit, non numero certo definitur, sed tanta videri debet, quantam, si opus est, publici Ministri conlueti superare sine periculo non possiint. Similiter si numerus hominum insolitus ad Tribunal concurrunt, alicujushominisaccusandi causa; concursus ille lllicitus est, quiapaucis vel unico homine accusareillum potuerunt. Talis in Epheso erat concursas contra Discipulos, insidelium clamantium, Magna esi Diana Ephejiorum. Ubi causa (consideratis Civitatis illius legibusj justa erat,- concursus tamen illegitimus fuit etc. a Magistratu reprehentsttt.c. 19. sus. Quod si Demetrim et quicum eo sunt artifices; negotium haberit cum ahquo,agitur sorum, £? Sroconsules adsur.t,a!iia!ios posulanto. Si quid autem derebm aliis requiriti-s Jnlegitima concione expltcabitur. Nampericulum esi, nt postulamur seditionn propter dtem hodiernum, quam nulla subsit causa, ob quam possimm reddere rationem concursm istim. Hactenus de Systematibus didum est, quae partibus humani corporis Similaribus comparari poslunt; nempe ea, quae Legitima sunt, musculis; qua; legitima non sunt, A postematibus, Tuberibus, tumoribusque et consluxu humorum noxiorum generatis.

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Systemes Irregular, Such As Are Private Leagues

Irregular Systemes, in their nature, but Leagues, or sometimes meer concourse of people, without union to any particular designe, not by obligation of one to another, but proceeding onely from a similitude of wills and inclinations, become Lawfull, or Unlawfull, according to the lawfulnesse, or unlawfulnesse of every particular mans design therein: And his designe is to be understood by the occasion.

The Leagues of Subjects, (because Leagues are commonly made for mutuall defence,) are in a Common-wealth (which is no more than a League of all the Subjects together) for the most part unnecessary, and savour of unlawfull designe; and are for that cause Unlawfull, and go commonly by the name of factions, or Conspiracies. For a League being a connexion of men by Covenants, if there be no power given to any one Man or Assembly, (as in the condition of meer Nature) to compell them to performance, is so long onely valid, as there ariseth no just cause of distrust: and therefore Leagues between Common-wealths, over whom there is no humane Power established, to keep them all in awe, are not onely lawfull, but also profitable for the time they last. But Leagues of the Subjects of one and the same Common-wealth, where every one may obtain his right by means of the Soveraign Power, are unnecessary to the maintaining of Peace and Justice, and (in case the designe of them be evill, or Unknown to the Common-wealth) unlawfull. For all uniting of strength by private men, is, if for evill intent, unjust; if for intent unknown, dangerous to the Publique, and unjustly concealed.

Secret Cabals

If the Soveraign Power be in a great Assembly, and a number of men, part of the Assembly, without authority, consult a part, to contrive the guidance of the rest; This is a Faction, or Conspiracy unlawfull, as being a fraudulent seducing of the Assembly for their particular interest. But if he, whose private interest is to be debated, and judged in the Assembly, make as many friends as he can; in him it is no Injustice; because in this case he is no part of the Assembly. And though he hire such friends with mony, (unlesse there be an expresse Law against it,) yet it is not Injustice. For sometimes, (as mens manners are,) Justice cannot be had without mony; and every man may think his own cause just, till it be heard, and judged.

Feuds Of Private Families

In all Common-wealths, if a private man entertain more servants, than the government of his estate, and lawfull employment he has for them requires, it is Faction, and unlawfull. For having the protection of the Common-wealth, he needeth not the defence of private force. And whereas in Nations not throughly civilized, severall numerous Families have lived in continuall hostility, and invaded one another with private force; yet it is evident enough, that they have done unjustly; or else that they had no Common-wealth.

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Factions For Government

And as Factions for Kindred, so also Factions for Government of Religion, as of Papists, Protestants, &c. or of State, as Patricians, and Plebeians of old time in Rome, and of Aristocraticalls and Democraticalls of old time in Greece, are unjust, as being contrary to the peace and safety of the people, and a taking of the Sword out of the hand of the Soveraign.

Concourse of people, is an Irregular Systeme, the lawfulnesse, or unlawfulnesse, whereof dependeth on the occasion, and on the number of them that are assembled. If the occasion be lawfull, and manifest, the Concourse is lawfull; as the usuall meeting of men at Church, or at a publique Shew, in usuall numbers: for if the numbers be extraordinarily great, the occasion is not evident; and consequently he that cannot render a particular and good account of his being amongst them, is to be judged conscious of an unlawfull, and tumultuous designe. It may be lawfull for a thousand men, to joyn in a Petition to be delivered to a Judge, or Magistrate; yet if a thousand men come to present it, it is a tumultuous Assembly; because there needs but one or two for that purpose. But in such cases as these, it is not a set number that makes the Assembly Unlawfull, but such a number, as the present Officers are not able to suppresse, and bring to Justice.

When an unusuall number of men, assemble against a man whom they accuse; the Assembly is an Unlawfull tumult; because they may deliver their accusation to the Magistrate by a few, or by one man. Such was the case of St. Paul at Ephesus; where Demetrius, and a great number of other men, brought two of Pauls companions before the Magistrate, saying with one Voyce, "Great is Diana of the Ephesians;" which was their way of demanding Justice against them for teaching the people such doctrine, as was against their Religion, and Trade. The occasion here, considering the Lawes of that People, was just; yet was their Assembly Judged Unlawfull, and the Magistrate reprehended them for it, in these words,(Acts 19. 40) "If Demetrius and the other work-men can accuse any man, of any thing, there be Pleas, and Deputies, let them accuse one another. And if you have any other thing to demand, your case may be judged in an Assembly Lawfully called. For we are in danger to be accused for this dayes sedition, because, there is no cause by which any man can render any reason of this Concourse of People." Where he calleth an Assembly, whereof men can give no just account, a Sedition, and such as they could not answer for. And this is all I shall say concerning Systemes, and Assemblyes of People, which may be compared (as I said,) to the Similar parts of mans Body; such as be Lawfull, to the Muscles; such as are Unlawfull, to Wens, Biles, and Apostemes, engendred by the unnaturall conflux of evill humours.

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CAPVT XXIII — De Potestatis Summae Ministris Publicis

CHAPTER XXIII — Of the Public Ministers of Sovereign Power

Mlntsler?#£//«« is est qui in rebus, quaead Civitatem pertinent per Authoritatem Summam habentis Potestatem, Civitatis Perlbnam repraesentat. Quoniam autem, qui Summo loco Imperat, Personas duas gerit, sive (ut loquuntur multi) duas habet Capacitates, aliam Naturalem aliam Politicam; ille qui Summam habenti Potestatem Minister est ut Personae Naturali, Minister Publicus non est. Qui vero Minister ejusdem est in Administratione Rei Publicae, ille Minister Publicus est. Ianitoresergo Nuntii, aliique Ministri qui inserviunt Ccetui Summo, propter nihil aliud praeter commoditatem ipsorum qui congregati sunt, Ministri Publici non sunt. Idem de Servis et Famulis domesticis Monarchae, in Persona naturali considerati, dicendum est.

Ministrorum Publicorum aliquibus totius Dominii administrandi cura committitur; ut quando Protedori Monarchas Insanti ab Antecestbre suo, committitur Tutela cum tota Regni administratione. Quando id sit, Civis unusquisque illi obedire obligatur, et Imperata ejus facere, quatenus in Regis Insantis nomine imperabitur, et quatenus imperata ipsa Potestati Summae Insantis nonrepugnabunt. Ministris aliquibus Provinciae tantum committitur administratio; ut quando Monarcha vel Ccetus Summus, Provinciae alicujus Praesedum, Locum tenentem, vel Pro-regem facit. Quod cum sit unusquisque Provincialium tenetur ilji obedire in omnibus quae Monarchae vel Summi Ccetus nomine imperabuntur, nec Potestati Summae contraria sunt. Ejusmodi enim Ministri Ius nullum habent, quod non dependeat a voluntate Summae Poteslatis. Hujusmodi autemministri Publici Nervis Tendinibusque, quibus corporis humani moventur artus, comparari poslunt.

Administrationemhabent alii negotiorum certorum domi, alii soris. Domi Minister Publicus est ad ceconomiam Civitatis, Ihesaurim^ cui Civitatis Reditusrecipiendi,servandi, erogandi, Authoritasest data a Summa Potestate, et cui redituum Rationes reddendi onus imcumbit. Minister autem Publicus eo est, quia Summae Potestati servit, ut Personae Civitatis.

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CHAPTER XXIII — Of the Public Ministers of Sovereign Power

CAPVT XXIII — De Potestatis Summae Ministris Publicis

In the last Chapter I have spoken of the Similar parts of a Common-wealth; In this I shall speak of the parts Organicall, which are Publique Ministers.

Publique Minister Who

A PUBLIQUE MINISTER, is he, that by the Soveraign, (whether a Monarch, or an Assembly,) is employed in any affaires, with Authority to represent in that employment, the Person of the Common-wealth. And whereas every man, or assembly that hath Soveraignty, representeth two Persons, or (as the more common phrase is) has two Capacities, one Naturall, and another Politique, (as a Monarch, hath the person not onely of the Common-wealth, but also of a man; and a Soveraign Assembly hath the Person not onely of the Common-wealth, but also of the Assembly); they that be servants to them in their naturall Capacity, are not Publique Ministers; but those onely that serve them in the Administration of the Publique businesse. And therefore neither Ushers, nor Sergeants, nor other Officers that waite on the Assembly, for no other purpose, but for the commodity of the men assembled, in an Aristocracy, or Democracy; nor Stewards, Chamberlains, Cofferers, or any other Officers of the houshold of a Monarch, are Publique Ministers in a Monarchy.

Ministers For The Generall Administration

Of Publique Ministers, some have charge committed to them of a general Administration, either of the whole Dominion, or of a part thereof. Of the whole, as to a Protector, or Regent, may bee committed by the Predecessor of an Infant King, during his minority, the whole Administration of his Kingdome. In which case, every Subject is so far obliged to obedience, as the Ordinances he shall make, and the commands he shall give be in the Kings name, and not inconsistent with his Soveraigne Power. Of a Part, or Province; as when either a Monarch, or a Soveraign Assembly, shall give the generall charge thereof to a Governour, Lieutenant, Praefect, or Vice-Roy: And in this case also, every one of that Province, is obliged to all he shall doe in the name of the Soveraign, and that not incompatible with the Soveraigns Right. For such Protectors, Vice-Roys, and Governours, have no other right, but what depends on the Soveraigns Will; and no Commission that can be given them, can be interpreted for a Declaration of the will to transferre the Soveraignty, without expresse and perspicuous words to that purpose. And this kind of Publique Ministers resembleth the Nerves, and Tendons that move the severall limbs of a body naturall.

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Secundo, quibus Armorum, Castrorum, Portuum commissa est custodia j quibus Milites Conscribere, Ducere, Salarium solvere

Aiuho- iio De Crvitate. Cap. 2$.

Authoritas dataest, vel neceslaria ad Bellura sive Terra sivemari procurare., Ministri Publici sunt. Miles autem etsi pro Civitate pugnet, Personam Civitatis coram nemine repraesentat. Neque ergo Minister Publicus est. Sed Dux, quia Imperium habet Personam Civitatis repradentat coram Militibus, quibus imperat, et Minister Publicus est.

Etiam quibus Populum docendi Authoritas concesla est, Ministri Publicisunt; quia negotium publicum est, et Authoritatepublica administrandum. Populum enim docendi Monarchis solis et Coetibus Summis Auihoritas a Deo immediate concesla est, ut quisoli dicantur simpliciter Det ' gratia docere et imperare. Minister autern docendi Potestatem immediate a Summa Potestate, quanquam etiam mediate a Deo accipit. Itaque Potestatem habet suam, Dei& Reguqratia, vel Vrovidentia Divina et voluntate Regis, vel Civitatis.

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For Speciall Administration, As For Oeconomy

Others have speciall Administration; that is to say, charges of some speciall businesse, either at home, or abroad: As at home, First, for the Oeconomy of a Common-wealth, They that have Authority concerning the Treasure, as Tributes, Impositions, Rents, Fines, or whatsoever publique revenue, to collect, receive, issue, or take the Accounts thereof, are Publique Ministers: Ministers, because they serve the Person Representative, and can doe nothing against his Command, nor without his Authority: Publique, because they serve him in his Politicall Capacity.

Secondly, they that have Authority concerning the Militia; to have the custody of Armes, Forts, Ports; to Levy, Pay, or Conduct Souldiers; or to provide for any necessary thing for the use of war, either by Land or Sea, are publique Ministers. But a Souldier without Command, though he fight for the Common-wealth, does not therefore represent the Person of it; because there is none to represent it to. For every one that hath command, represents it to them only whom he commandeth.

For Instruction Of The People

They also that have authority to teach, or to enable others to teach the people their duty to the Soveraign Power, and instruct them in the knowledge of what is just, and unjust, thereby to render them more apt to live in godlinesse, and in peace among themselves, and resist the publique enemy, are Publique Ministers: Ministers, in that they doe it not by their own Authority, but by anothers; and Publique, because they doe it (or should doe it) by no Authority, but that of the Soveraign. The Monarch, or the Soveraign Assembly only hath immediate Authority from God, to teach and instruct the people; and no man but the Soveraign, receiveth his power Dei Gratia simply; that is to say, from the favour of none but God: All other, receive theirs from the favour and providence of God, and their Soveraigns; as in a Monarchy Dei Gratia & Regis; or Dei Providentia & Voluntate Regis.

For Judicature

They also to whom Jurisdiction is given, are Publique Ministers. For in their Seats of Justice they represent the person of the Soveraign; and their Sentence, is his Sentence; For (as hath been before declared) all Judicature is essentially annexed to the Soveraignty; and therefore all other Judges are but Ministers of him, or them that have the Soveraign Power. And as Controversies are of two sorts, namely of Fact, and of Law; so are judgements, some of Fact, some of Law: And consequently in the same controversie, there may be two Judges, one of Fact, another of Law.

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Item illi quibus lurischctio a. Civitate data est, id est Potestas Caasas cognoscendi, Ministri Publici sunt. Peribnam enim Sumraara habentis Potestatem in Tribunalibus fuis sedentes reprassentant; et sententiae eorum, sententias sunt Civitatis, id est Summam habentis in Civitate Potestatem, cui causis cognoscendi jus adhaerere supra ostensum est. Sunt ergo Ministri Publici. Quoniam autem Iudicia duorum generum sunt, Facti et Iuris; tam Facti quam Iuris, Iudex Minister Publicus est.

Etiamministri Publici illi sunt, quibus a Summa Potestate, cura imponitur Iudicia exequendi; jussa Summae Potestatis publicandi; Tumukus supprimendi, maleractores capiendi, &; incareerandi; aliarumque rerum ad conservationem Pacis pertinentium. Hujusmodi enim actiones Civitatis acliones sunt, ipsiqueministrihujusmodi, corporis humani Mantbus comparandi siint.

Soris Ministri Publici sunt illi, qui Personas Monarcharum suorum vel Summorum Coetuum reprassentant ad Civitates externas j quales sunt Legati, Nuntii, Agentes, et Heraldi, Authoritate publica, de negotio publico misli. Qui autem ad Civitates externas a Civitatis suae seditione laborantis, Factione aliqua legantur, quanquam recepti sint, neque Ministri publici neque privati sunt j qui a Civitate missi non sunt. Etiam Legatus a Principe ad Principem congratulandi vel condolendi vel in sestivitate aliqua aslistendi causla missus, etsi Authoritatem habeat publicam; quia tamen negotium privatum est, Minister Publicus non est. Neque Minister Pubhcus is est, qui ad externas Civitates mittitur consilia eorum explorandi causa. Quanquamenim tum Authoritas tum Negotium pubhcum sit, quia tamen Personam Civkatis non gerit, Minister privatus est; et corporis humani Oculo comparari potest. Consiliarius autem» C sinc Imperio et lurisdictione ae rebus arduis et publicis habenti Potestatem Summam consilium tantum dandi jus habeat, Minister Publicus non est; neque vero Consiliariorum Ccetus ipse. Consilium enim Imperanti Summo coram ipso datur 5 Personam autem cjus corara ipso repraesentare nerao potest. Neque in Ccetu ipso Suraraam habente Potestatem, ullus homo singularis est Minister Publicus; quia nemo eorum Ccetus ipsius Personam in Ccetu ipso reprajsentare potest,

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And in both these controversies, there may arise a controversie between the party Judged, and the Judge; which because they be both Subjects to the Soveraign, ought in Equity to be Judged by men agreed on by consent of both; for no man can be Judge in his own cause. But the Soveraign is already agreed on for Judge by them both, and is therefore either to heare the Cause, and determine it himself, or appoint for Judge such as they shall both agree on. And this agreement is then understood to be made between them divers wayes; as first, if the Defendant be allowed to except against such of his Judges, whose interest maketh him suspect them, (for as to the Complaynant he hath already chosen his own Judge,) those which he excepteth not against, are Judges he himself agrees on. Secondly, if he appeale to any other Judge, he can appeale no further; for his appeale is his choice. Thirdly, if he appeale to the Soveraign himself, and he by himself, or by Delegates which the parties shall agree on, give Sentence; that Sentence is finall: for the Defendant is Judged by his own Judges, that is to say, by himself.

These properties of just and rationall Judicature considered, I cannot forbeare to observe the excellent constitution of the Courts of Justice, established both for Common, and also for Publique Pleas in England. By Common Pleas, I meane those, where both the Complaynant and Defendant are Subjects: and by Publique, (which are also called Pleas of the Crown) those, where the Complaynant is the Soveraign. For whereas there were two orders of men, whereof one was Lords, the other Commons; The Lords had this Priviledge, to have for Judges in all Capitall crimes, none but Lords; and of them, as many as would be present; which being ever acknowledged as a Priviledge of favour, their Judges were none but such as they had themselves desired. And in all controversies, every Subject (as also in civill controversies the Lords) had for Judges, men of the Country where the matter in controversie lay; against which he might make his exceptions, till at last Twelve men without exception being agreed on, they were Judged by those twelve. So that having his own Judges, there could be nothing alledged by the party, why the sentence should not be finall, These publique persons, with Authority from the Soveraign Power, either to Instruct, or Judge the people, are such members of the Common-wealth, as may fitly be compared to the organs of Voice in a Body naturall.

For Execution

Publique Ministers are also all those, that have Authority from the Soveraign, to procure the Execution of Judgements given; to publish the Soveraigns Commands; to suppresse Tumults; to apprehend, and imprison Malefactors; and other acts tending to the conservation of the Peace. For every act they doe by such Authority, is the act of the Common-wealth; and their service, answerable to that of the Hands, in a Bodie naturall.

Publique Ministers abroad, are those that represent the Person of their own Soveraign, to forraign States. Such are Ambassadors, Messengers, Agents, and Heralds, sent by publique Authoritie, and on publique Businesse.

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But such as are sent by Authoritie only of some private partie of a troubled State, though they be received, are neither Publique, nor Private Ministers of the Common-wealth; because none of their actions have the Common-wealth for Author. Likewise, an Ambassador sent from a Prince, to congratulate, condole, or to assist at a solemnity, though Authority be Publique; yet because the businesse is Private, and belonging to him in his naturall capacity; is a Private person. Also if a man be sent into another Country, secretly to explore their counsels, and strength; though both the Authority, and the Businesse be Publique; yet because there is none to take notice of any Person in him, but his own; he is but a Private Minister; but yet a Minister of the Common-wealth; and may be compared to an Eye in the Body naturall. And those that are appointed to receive the Petitions or other informations of the People, and are as it were the publique Eare, are Publique Ministers, and represent their Soveraign in that office.

Counsellers Without Other Employment Then To Advise Are Not Publique Ministers

Neither a Counsellor, nor a Councell of State, if we consider it with no Authority of Judicature or Command, but only of giving Advice to the Soveraign when it is required, or of offering it when it is not required, is a Publique Person. For the Advice is addressed to the Soveraign only, whose person cannot in his own presence, be represented to him, by another. But a Body of Counsellors, are never without some other Authority, either of Judicature, or of immediate Administration: As in a Monarchy, they represent the Monarch, in delivering his Commands to the Publique Ministers: In a Democracy, the Councell, or Senate propounds the Result of their deliberations to the people, as a Councell; but when they appoint Judges, or heare Causes, or give Audience to Ambassadors, it is in the quality of a Minister of the People: And in an Aristocracy the Councell of State is the Soveraign Assembly it self; and gives counsell to none but themselves.

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CAPVT XXIV — De Civitatis Facultate Nutritiva et Generativa

CHAPTER XXIV — Of the Nutrition, and Procreation of a Commonwealth

Clvitatis Nutritio a Copia Sc Dislributione rerum ad vitam necessariarum dependet, et ab eztum praparatione, Sc applicatione ad usum publicum.

Quarum rcrum copia, nempe Nutrkionis Materia, terminata ab ipsa Natura est; constatqus cx fructibus, quos, a communis matris nostrae Vberibus Terra et Mari, procedentes, humano generi aut libere donat aut solo labore vendit Deus. Sunt autem Animalia, Vegetabilia, et Mineralia, quss cmnia non longe collocavit Deus i Superficie Teliuris $ adeo iit ad ea habenda, aiia re opus non est, quam ut accipere velimus. Dcpendec ergo reruni neceslariamm copia a sola (post bcnevokntiam divinam) industria et labore hominum.

Materiahasc, id est ea qua; proveniunt a Terra, Mari, Sceorum Cukan Bona s parrim Nattva Civitatibus singulis (imt, partimje*terna in Civitates singulas importata. Quoniam autem Terra nulla sub unius Civitatis Domimo (nisi valde magna sit) necessaria omnia ad alimenta et motum Civitatis producit -, neque rursus ullaquas non aliqua producat siiperslua j bona illa superrlua qua; Nativa siint, siiperslua amplius non siint, sed Commtitaticnt vel Beuo, vel Labore (nam etiam labores hominura, non minus quam res alias cum bonis aliis quibuscunque commutabiles sunt } bonorum Nativorum desectum siipplent.

Bonorttm autem distributio, est Mei, 'tai, Stti constitutio; vocatur- que Sroprietas. Troprietas autem in omni genere Civitatis originera habuit a Sumraa Potestate. Vbi enim Civitas non est, ibi omnia omnium sunt, et Bellum perpetuum est 3 et Bonum unumquodque illius est, a quo rapicur et armis conservatur j quod neque Vroprietas neque Communitas est, sed Concertatio. Id quod ita manisestum est, uteciamipse Ctaro (Libertatis desensor vehementislimus) Sroprietatem omnem attribiuc Legibus Civilibus, quibus sublacis, veltiegligenter custoditis nihil esle dicic, quod quis aut a Majoribus accipere aut Hliis relinquere pro certo possit. Et rursus tolle inquit Leges Ctviles, cjutdsunm, cjutd alienum sit, sciet nemo. Quoniam ergo constitutio Propneratis Civitatis opus est 5 illius opus est, qui Summam in Civitate habet Potestatem. Dependec enim Sroprtetas a Legibus Civilibus; et is qui Summam habec Potestatem in omni Civitate Legislatorest. Id quod observasle videntur illi Grasci veteres, qui Legem nominaverunc Ncjuo» (id est Distrtbmionem) Sc Iusticiam (consequenter) esle cuique Distnbutionem Sm definiverunt.

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CHAPTER XXIV — Of the Nutrition, and Procreation of a Commonwealth

CAPVT XXIV — De Civitatis Facultate Nutritiva et Generativa

The Nourishment Of A Common-wealth Consisteth In The Commodities Of Sea And Land

The NUTRITION of a Common-wealth consisteth, in the Plenty, and Distribution of Materials conducing to Life: In Concoction, or Preparation; and (when concocted) in the Conveyance of it, by convenient conduits, to the Publique use.

As for the Plenty of Matter, it is a thing limited by Nature, to those commodities, which from (the two breasts of our common Mother) Land, and Sea, God usually either freely giveth, or for labour selleth to man-kind.

For the Matter of this Nutriment, consisting in Animals, Vegetals, and Minerals, God hath freely layd them before us, in or neer to the face of the Earth; so as there needeth no more but the labour, and industry of receiving them. Insomuch as Plenty dependeth (next to Gods favour) meerly on the labour and industry of men.

This Matter, commonly called Commodities, is partly Native, and partly Forraign: Native, that which is to be had within the Territory of the Common-wealth; Forraign, that which is imported from without. And because there is no Territory under the Dominion of one Common-wealth, (except it be of very vast extent,) that produceth all things needfull for the maintenance, and motion of the whole Body; and few that produce not something more than necessary; the superfluous commodities to be had within, become no more superfluous, but supply these wants at home, by importation of that which may be had abroad, either by Exchange, or by just Warre, or by Labour: for a mans Labour also, is a commodity exchangeable for benefit, as well as any other thing: And there have been Common-wealths that having no more Territory, than hath served them for habitation, have neverthelesse, not onely maintained, but also encreased their Power, partly by the labour of trading from one place to another, and partly by selling the Manifactures, whereof the Materials were brought in from other places.

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Itaque si Civitas terram vacuam, aut Bello superatam acquisierit, distributio terrae illius inter Cives dependet ab eo, qui Summam habec in Civitate Potestatera; habebuntque portiones suas, non ut cuiquam Civi, aut Numero Civium sequum este, vel ad Bonum Publicum conducere videbitur, sed uc videbicur Summam habenti Potestatem. Populus Israeliticus cum in Deserto essec, Civitas erat y Promislas autem Terrae Dominus nondum erat. Postea tamen, cura illam acquisislent, non suo, sed Eleaz.ari Sacerdotis, et Ducis Josiae arbitrio distributam poslederunt. Ex quo intelligi potest, Proprietatem terrarum quam habet Civis, in eo consistere, ut ab lllarum usu concives suos omnes prohibere jure poslit j non autem ut cum excludat, qui Summam habet Potestatem, sive is Ccetus sit, sive homo unus. Habet enim is Potestatem totius Civitatis, et Terras distribuisle, ut et alia omnia secisle in ordine ad Pacem et Bonum Civitatis intelligendus est. Quin Monarcha vel Ccetus Summus facere multa possit contra Bonum suum; etiam contra suam ipsius conscientiam, contra fidem datam, et contra Leges Naturales, nori negaverim j sed ut ob eam causam Cives arma contra eum sumere, auc Reum facere, aut quocunque modo malede eodicere, negandum est; propterea quod omnium quae secerit, Authores singuli seeerunt seipsos.

In distnbutioneterrarum, partem sibi ipsiquam velit reservare potest et colere qui Summe imperat, sicut unus ex Civibus. Quanta autem cunque portio illa sic, ad onera Civitatis omnia sustinenda, et ad ejusdem desensionem sussicere non tenebitur. Talis enim est natuia hominum, ut certarum agrorum vel certorum redituum posleslio inuti- inutilis eslet, tendcretque addislolutionem Civitatis. Sirnul enim ac Potestas Summa in manus veniret vel Monarchae, vel Ccetus qui pecuniam Publicam negligentius custodiret, aut qui Civitatem temere in nimis longum, aut nimis sumptuosum Bellum conjiceret, Civitas periret. Diaetam non patiuntur Civitates; cumenimsumptus Publicus non ab ipsorum voluntate, sed ab externis Accidentibus et voluntate vicinorum terminatus sit, ab iisdem etiam definiri debent Divitiae Publicae. Itaque Civitati Divitias certas assignare, quas qui Summam habet Potestatem vendere vel dono darepoilit, &vendit donatque aliquando, frustra est.

Ad eandem Summam Potestatem pertinet quae Bona, et in quas terras, Civis vel Civium numerus quicunque exportabit, et qua; importabit definire. Nam si unicuique in hac re suo ipsius arbitrio uti permitteretur, non deeslent qui lucri fui causa hostibus ea venderent, quibus Civitati nocere poslent, eaque importarent quae Civibus fortasle grata, sed noxia vel saltem inutilia essent. Ad Summam ergo Potestatem pertinet tum de locis, tura de raateria negotiandi constituere.

Praeterea cum Civibus satis non sit, proprios sibi habere Agros etc. certa Bona, nisi et ea habeant quae per mutuos contractus commutent, prout singulis ad bene vivendum necestarium videbitur j hoc quoque in Summae Potestatis arbitrio est, quo modo et forma contrahere debeant Cives quando vendunt, emunt; mutant, mutuo accipiunt, et dant; locant et locandum sumunt, ut quae faciunt valida sint. Atque haec de Materia et Distributione Alimentorum Publicorum (pro instituti operis modulo) dida susticiant.

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And The Right Of Distribution Of Them

The Distribution of the Materials of this Nourishment, is the constitution of Mine, and Thine, and His, that is to say, in one word Propriety; and belongeth in all kinds of Common-wealth to the Soveraign Power. For where there is no Common-wealth, there is, (as hath been already shewn) a perpetuall warre of every man against his neighbour; And therefore every thing is his that getteth it, and keepeth it by force; which is neither Propriety nor Community; but Uncertainty. Which is so evident, that even Cicero, (a passionate defender of Liberty,) in a publique pleading, attributeth all Propriety to the Law Civil, "Let the Civill Law," saith he, "be once abandoned, or but negligently guarded, (not to say oppressed,) and there is nothing, that any man can be sure to receive from his Ancestor, or leave to his Children." And again; "Take away the Civill Law, and no man knows what is his own, and what another mans." Seeing therefore the Introduction of Propriety is an effect of Common-wealth; which can do nothing but by the Person that Represents it, it is the act onely of the Soveraign; and consisteth in the Lawes, which none can make that have not the Soveraign Power. And this they well knew of old, who called that Nomos, (that is to say, Distribution,) which we call Law; and defined Justice, by distributing to every man his own.

All Private Estates Of Land Proceed Originally From The Arbitrary Distribution Of The Soveraign

In this Distribution, the First Law, is for Division of the Land it selfe: wherein the Soveraign assigneth to every man a portion, according as he, and not according as any Subject, or any number of them, shall judge agreeable to Equity, and the Common Good. The Children of Israel, were a Common-wealth in the Wildernesse; but wanted the commodities of the Earth, till they were masters of the Land of Promise; which afterward was divided amongst them, not by their own discretion, but by the discretion of Eleazar the Priest, and Joshua their Generall: who when there were twelve Tribes, making them thirteen by subdivision of the Tribe of Joseph; made neverthelesse but twelve portions of the Land; and ordained for the Tribe of Levi no land; but assigned them the Tenth part of the whole fruits; which division was therefore Arbitrary. And though a People comming into possession of a land by warre, do not alwaies exterminate the antient Inhabitants, (as did the Jewes,) but leave to many, or most, or all of them their Estates; yet it is manifest they hold them afterwards, as of the Victors distribution; as the people of England held all theirs of William the Conquerour.

Propriety Of A Subject Excludes Not The Dominion Of The Soveraign, But Onely Of Another Subject

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Per Concouionem intelligo Bonorum omnium quae non illico consiimenda sunt, sed conservanda ad alimentum futurum, reductionem ad aliquid quod cum tanti quidem sit, facilius a loco ad locum transserri poslit; ne Civium motus necestariarum rerura pondere impediatur, utque in omni loco alimenta Civis unusquisque habeat de suo. Hoc autem praestare nihil potest, praeter ex Auro et Argento Monetam. Contingit enim per totum sere terrarum orbem duo haec Aurum et Argentum non modo Summe aestimari propter materiam ipsam, sedesle etiam Bonorum caeterorum omnium Mensuram comraodislimam. Intra ipsam quidem Civitatem Moneta cujuscunque materiae, modo Signo Publico signetur, mensuram rerum commutandarum satis idonea est; sed Aurea etc. Argentea ubiquevalet -, Civitatem permeat; singulis Civibus permeando partem fui, qua alendi £nt impertit, et est quasi Civitatis Sanguis. Sanguis enim etiam ex

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From whence we may collect, that the Propriety which a subject hath in his lands, consisteth in a right to exclude all other subjects from the use of them; and not to exclude their Soveraign, be it an Assembly, or a Monarch. For seeing the Soveraign, that is to say, the Common-wealth (whose Person he representeth,) is understood to do nothing but in order to the common Peace and Security, this Distribution of lands, is to be understood as done in order to the same: And consequently, whatsoever Distribution he shall make in prejudice thereof, is contrary to the will of every subject, that committed his Peace, and safety to his discretion, and conscience; and therefore by the will of every one of them, is to be reputed voyd. It is true, that a Soveraign Monarch, or the greater part of a Soveraign Assembly, may ordain the doing of many things in pursuit of their Passions, contrary to their own consciences, which is a breach of trust, and of the Law of Nature; but this is not enough to authorise any subject, either to make warre upon, or so much as to accuse of Injustice, or any way to speak evill of their Soveraign; because they have authorised all his actions, and in bestowing the Soveraign Power, made them their own. But in what cases the Commands of Soveraigns are contrary to Equity, and the Law of Nature, is to be considered hereafter in another place.

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1 r r z Terrae

124 Ds Civitate* Caj>. 24*

Tcrras fructibus nascitur in homine naturali j et per membraejus singula circulando pcrvadic, singuia obiter nutriens.

Pecunia Aurea et Argentea, quia propter ipsam materiam «estimantur, eximium hoc babet, ut penes unam, aut paucas Civitates non sit, pretium ejus aut augere aut minuere. Pecunia autem ex materia Tiliore facta facile quoad pretium elevatur et deprimitur y neque efficere potest ut Civitatis vires, si opus erit, in externas Civitates extendantur, exercitusque soris alat, armetque, sicut potest Aurea Sc Argentea 5 sed domi manet cccli mutationis impatiens, modo cum majore, modo cum minore sstimatione a addaranum aliquando pof» fidentium.

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The Publique Is Not To Be Dieted

In the Distribution of land, the Common-wealth it selfe, may be conceived to have a portion, and possesse, and improve the same by their Representative; and that such portion may be made sufficient, to susteine the whole expence to the common Peace, and defence necessarily required: Which were very true, if there could be any Representative conceived free from humane passions, and infirmities. But the nature of men being as it is, the setting forth of Publique Land, or of any certaine Revenue for the Common-wealth, is in vaine; and tendeth to the dissolution of Government, and to the condition of meere Nature, and War, assoon as ever the Soveraign Power falleth into the hands of a Monarch, or of an Assembly, that are either too negligent of mony, or too hazardous in engaging the publique stock, into a long, or costly war. Common-wealths can endure no Diet: For seeing their expence is not limited by their own appetite, but by externall Accidents, and the appetites of their neighbours, the Publique Riches cannot be limited by other limits, than those which the emergent occasions shall require. And whereas in England, there were by the Conquerour, divers Lands reserved to his own use, (besides Forrests, and Chases, either for his recreation, or for preservation of Woods,) and divers services reserved on the Land he gave his Subjects; yet it seems they were not reserved for his Maintenance in his Publique, but in his Naturall capacity: For he, and his Successors did for all that, lay Arbitrary Taxes on all Subjects land, when they judged it necessary. Or if those publique Lands, and Services, were ordained as a sufficient maintenance of the Common-wealth, it was contrary to the scope of the Institution; being (as it appeared by those ensuing Taxes) insufficient, and (as it appeares by the late Revenue of the Crown) Subject to Alienation, and Diminution. It is therefore in vaine, to assign a portion to the Common-wealth; which may sell, or give it away; and does sell, and give it away when tis done by their Representative.

The Places And Matter Of Traffique Depend, As Their Distribution, On The Soveraign

As the Distribution of Lands at home; so also to assigne in what places, and for what commodities, the Subject shall traffique abroad, belongeth to the Soveraign. For if it did belong to private persons to use their own discretion therein, some of them would bee drawn for gaine, both to furnish the enemy with means to hurt the Common-wealth, and hurt it themselves, by importing such things, as pleasing mens appetites, be neverthelesse noxious, or at least unprofitable to them. And therefore it belongeth to the Common-wealth, (that is, to the Soveraign only,) to approve, or disapprove both of the places, and matter of forraign Traffique.

The Laws Of Transferring Property Belong Also To The Soveraign

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Publici hujus sanguinis duclus duplex est, alter ad exteriora alter versus interiora, id est Exitus et Reditus. Reditus sit per Collectores, Receptores, ad Thesaurarios;. Exitus sit perthesaurarios, ad Ministros illos, qui pecuniam pubiicam erogant, et ab iiiis ad Cives privatos. Atque in hoc quoque hominis Artiiscialis apparet rjmilitudo cum Naturali; cujus Venas Sanguinem ^partibus corporis exterioribus recipientes serunt ad Cor; unde rursus per Arterias fertur, membra vivisicans, et singulis raotum tribuens.

Civitatis denique proles, Colom* sunt, sive quas vocamus Tlantationes, nimirum misli a Civitate Civiura numcri sab Conductore vel Rectore, terram externam habitaturi cultivique. Hujusmodi autesn Colonia y aut Civitas est, ut quando a Civitate unde misla est emancipatur. Quod cum sit Civitas unde mislaest, Metropolis Colonia dici solet j neque amplius a Colonia postulat, quam a filiis emancipatis postulare soknt Patres, nempe Honorera et Amicitiam; aut Civitatisundemittiturparsest, sive Provincia. Cosaniarttm ergo jus dependet a Literis Publicis earum a quibus sunt conditas Civitatum.

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Further, seeing it is not enough to the Sustentation of a Common-wealth, that every man have a propriety in a portion of Land, or in some few commodities, or a naturall property in some usefull art, and there is no art in the world, but is necessary either for the being, or well being almost of every particular man; it is necessary, that men distribute that which they can spare, and transferre their propriety therein, mutually one to another, by exchange, and mutuall contract. And therefore it belongeth to the Common-wealth, (that is to say, to the Soveraign,) to appoint in what manner, all kinds of contract between Subjects, (as buying, selling, exchanging, borrowing, lending, letting, and taking to hire,) are to bee made; and by what words, and signes they shall be understood for valid. And for the Matter, and Distribution of the Nourishment, to the severall Members of the Common-wealth, thus much (considering the modell of the whole worke) is sufficient.

Mony The Bloud Of A Common-wealth

By Concoction, I understand the reducing of all commodities, which are not presently consumed, but reserved for Nourishment in time to come, to some thing of equal value, and withall so portably, as not to hinder the motion of men from place to place; to the end a man may have in what place soever, such Nourishment as the place affordeth. And this is nothing else but Gold, and Silver, and Mony. For Gold and Silver, being (as it happens) almost in all Countries of the world highly valued, is a commodious measure for the value of all things else between Nations; and Mony (of what matter soever coyned by the Soveraign of a Common-wealth,) is a sufficient measure of the value of all things else, between the Subjects of that Common-wealth. By the means of which measures, all commodities, Moveable, and Immoveable, are made to accompany a man, to all places of his resort, within and without the place of his ordinary residence; and the same passeth from Man to Man, within the Common-wealth; and goes round about, Nourishing (as it passeth) every part thereof; In so much as this Concoction, is as it were the Sanguification of the Common-wealth: For naturall Bloud is in like manner made of the fruits of the Earth; and circulating, nourisheth by the way, every Member of the Body of Man.

And because Silver and Gold, have their value from the matter it self; they have first this priviledge, that the value of them cannot be altered by the power of one, nor of a few Common-wealths; as being a common measure of the commodities of all places. But base Mony, may easily be enhanced, or abased. Secondly, they have the priviledge to make Common-wealths, move, and stretch out their armes, when need is, into forraign Countries; and supply, not only private Subjects that travell, but also whole Armies with provision. But that Coyne, which is not considerable for the Matter, but for the Stamp of the place, being unable to endure change of ayr, hath its effect at home only; where also it is subject to the change of Laws, and thereby to have the value diminished, to the prejudice many times of those that have it.

The Conduits And Way Of Mony To The Publique Use

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The Conduits, and Wayes by which it is conveyed to the Publique use, are of two sorts; One, that Conveyeth it to the Publique Coffers; The other, that Issueth the same out againe for publique payments. Of the first sort, are Collectors, Receivers, and Treasurers; of the second are the Treasurers againe, and the Officers appointed for payment of severall publique or private Ministers. And in this also, the Artificiall Man maintains his resemblance with the Naturall; whose Veins receiving the Bloud from the severall Parts of the Body, carry it to the Heart; where being made Vitall, the Heart by the Arteries sends it out again, to enliven, and enable for motion all the Members of the same.

The Children Of A Common-wealth Colonies

The Procreation, or Children of a Common-wealth, are those we call Plantations, or Colonies; which are numbers of men sent out from the Common-wealth, under a Conductor, or Governour, to inhabit a Forraign Country, either formerly voyd of Inhabitants, or made voyd then, by warre. And when a Colony is setled, they are either a Common-wealth of themselves, discharged of their subjection to their Soveraign that sent them, (as hath been done by many Common-wealths of antient time,) in which case the Common-wealth from which they went was called their Metropolis, or Mother, and requires no more of them, then Fathers require of the Children, whom they emancipate, and make free from their domestique government, which is Honour, and Friendship; or else they remain united to their Metropolis, as were the Colonies of the people of Rome; and then they are no Common-wealths themselves, but Provinces, and parts of the Common-wealth that sent them. So that the Right of Colonies (saving Honour, and League with their Metropolis,) dependeth wholly on their Licence, or Letters, by which their Soveraign authorised them to Plant.

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LATINE · 1668

CAPVT XXV — De Consilio

CHAPTER XXV — Of Counsel

E Natura rerum ex Ioquendi consuctudine judicare, quam slt ' fallax, nusquam magis apparet quam in vocibus Conjilium, Sc Impctatumi quorum utrumque signisicatur dicendo Hec fac, quae tox non modo Imperantis, sed etiam Consulentis et Hortantis est. Pauci tamen sunt qui diversa esle Imperatum, et Consultum non satissciant, vel (quoties quis ad quem loquitur eognoscunt) nonsatij jnterea poslunt discernere, Sed io Scriptoribus voces illas negligen-

Cap. is. Jde Cwitate. yzj- tcr prxtereuntes, multi Praeceptum illius qui Consilium dat, et Pneceptum illius qui imperat idem esle putant. Vt ergo recld intelligatur quid sit Jmperare, quid sit Consiliumdare, et quid Horuvri, voces iljas iic definio. Imperare dicitur qui dicit Hoc fac, vel nonsac, ad illum qui rationem dicti in voluntate dicentis sitam esse lcit. Sequitur hinc eum qui Imperat fui ipsius boni causa id facere, cum voluntatem propriam pro ratione haberi postulat. Objectum autem Voluntatis femper aliquod Volenti Bonum est.

Constlittm ttare dicitur, quandoquisdicit/sv/iirc vel mnsac Con~ £lii rationem ab eo ducens, quod bonum ei sit, cuiconsilium datur. Vnde manisestum est Consilium dantem, bonum praetenderg solius accipientis.

Itaque inter Conjilmm etc. Imperium disrerentia una magna est, quod hocad proprium, illudad alienum bonum tendere intelligitur. Atque hinc diiserentia- oritur alia, quodis cui imperaturad obedientiam obligari possit, nempe si obedire pactus fuerit. Sed is cui Consilium datum est, ut juxta Conlilium datum agat obligari non potest. Si enim obligaretur Paclo, non amplius Consilium sed Imperium eslet. Tertia inter eadem distjbrenria est, quod jus Conglii dandi postulare nemo potest, quiabonum sibi exr Consilio postulare se negat.

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CHAPTER XXV — Of Counsel

CAPVT XXV — De Consilio

Counsell What

How fallacious it is to judge of the nature of things, by the ordinary and inconstant use of words, appeareth in nothing more, than in the confusion of Counsels, and Commands, arising from the Imperative manner of speaking in them both, and in many other occasions besides. For the words "Doe this," are the words not onely of him that Commandeth; but also of him that giveth Counsell; and of him that Exhorteth; and yet there are but few, that see not, that these are very different things; or that cannot distinguish between them, when they perceive who it is that speaketh, and to whom the Speech is directed, and upon what occasion. But finding those phrases in mens writings, and being not able, or not willing to enter into a consideration of the circumstances, they mistake sometimes the Precepts of Counsellours, for the Precepts of them that command; and sometimes the contrary; according as it best agreeth with the conclusions they would inferre, or the actions they approve. To avoyd which mistakes, and render to those termes of Commanding, Counselling, and Exhorting, their proper and distinct significations, I define them thus.

Differences Between Command And Counsell

COMMAND is, where a man saith, "Doe this," or "Doe this not," without expecting other reason than the Will of him that sayes it. From this it followeth manifestly, that he that Commandeth, pretendeth thereby his own Benefit: For the reason of his Command is his own Will onely, and the proper object of every mans Will, is some Good to himselfe.

COUNSELL, is where a man saith, "Doe" or "Doe not this," and deduceth his own reasons from the benefit that arriveth by it to him to whom he saith it. And from this it is evident, that he that giveth Counsell, pretendeth onely (whatsoever he intendeth) the good of him, to whom he giveth it.

Therefore between Counsell and Command, one great difference is, that Command is directed to a mans own benefit; and Counsell to the benefit of another man. And from this ariseth another difference, that a man may be obliged to do what he is Commanded; as when he hath covenanted to obey: But he cannot be obliged to do as he is Counselled, because the hurt of not following it, is his own; or if he should covenant to follow it, then is the Counsell turned into the nature of a Command. A third difference between them is, that no man can pretend a right to be of another mans Counsell; because he is not to pretend benefit by it to himselfe; but to demand right to Counsell another, argues a will to know his designes, or to gain some other Good to himselfe; which (as I said before) is of every mans will the proper object.

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Ad naturam Consilii pertinet etiam hoc, quod dantem, is qui petit neque punire, neque accusare jure potest. Nam qui petit, Consiliumarbitriodantis dari voluit. Itaque qui Monarcha», vel Ccetiu Consilium dat petenti, sive placeat, sive displiceat, puniri non potest ut quod volentibus daturn est. Gajterum sicivis Civi Consilium det faciendi aliquid, cuod lege prohibitum est, sive Consilium illud a prava intentione, sive ab ignorantia rantiim procedat, puniri a Civitate potest, quia ignorantia Legis iilum, qui Legis notitiam habere debuit, non excusat.

Hortatio et Dehortatio Gonsilium quiuem est, led ut siat, quod sieri consulit vehementer cupientis. Nam qui hortatur, severitate ratiocinationis uon atitur, sed quibuscunque potest argumentis, ad adlionem incitat. Itaqne in Hortationibus a Paseonibus et opinionibus communibus argumenta- ducunt, utunturque persuadendi causa Similitudinibus, Exemplis,Metaphoris, alhsque artis Oratolia? t;i^!,i3libus.

Constat ergo Hortationes et Dehortationes ad Hortantis et Descortantis bonum non nihil respicere, cum homines in fuis plerumque rebus vehementiores sint, quam in alienis. Horutiones et Dehortationes in multirudine tantum esecaces siinc rrr 3 Vbi i2<? De Civitate. Cap. ij.

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This also is incident to the nature of Counsell; that whatsoever it be, he that asketh it, cannot in equity accuse, or punish it: For to ask Counsell of another, is to permit him to give such Counsell as he shall think best; And consequently, he that giveth counsell to his Soveraign, (whether a Monarch, or an Assembly) when he asketh it, cannot in equity be punished for it, whether the same be conformable to the opinion of the most, or not, so it be to the Proposition in debate. For if the sense of the Assembly can be taken notice of, before the Debate be ended, they should neither ask, nor take any further Counsell; For the Sense of the Assembly, is the Resolution of the Debate, and End of all Deliberation. And generally he that demandeth Counsell, is Author of it; and therefore cannot punish it; and what the Soveraign cannot, no man else can. But if one Subject giveth Counsell to another, to do any thing contrary to the Lawes, whether that Counsell proceed from evill intention, or from ignorance onely, it is punishable by the Common-wealth; because ignorance of the Law, is no good excuse, where every man is bound to take notice of the Lawes to which he is subject.

Exhortation And Dehortation What

EXHORTATION, and DEHORTATION, is Counsell, accompanied with signes in him that giveth it, of vehement desire to have it followed; or to say it more briefly, Counsell Vehemently Pressed. For he that Exhorteth, doth not deduce the consequences of what he adviseth to be done, and tye himselfe therein to the rigour of true reasoning; but encourages him he Counselleth, to Action: As he that Dehorteth, deterreth him from it. And therefore they have in their speeches, a regard to the common Passions, and opinions of men, in deducing their reasons; and make use of Similitudes, Metaphors, Examples, and other tooles of Oratory, to perswade their Hearers of the Utility, Honour, or Justice of following their advise.

From whence may be inferred, First, that Exhortation and Dehortation, is directed to the Good of him that giveth the Counsell, not of him that asketh it, which is contrary to the duty of a Counsellour; who (by the definition of Counsell) ought to regard, not his own benefits, but his whom he adviseth. And that he directeth his Counsell to his own benefit, is manifest enough, by the long and vehement urging, or by the artificial giving thereof; which being not required of him, and consequently proceeding from his own occasions, is directed principally to his own benefit, and but accidentarily to the good of him that is Counselled, or not at all.

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Vbi enim hominem singularem alloquitur aliquis, sajpenumero interrumpitur; ex Oratione perpetua sit Dialogus j rationes rigidius pensitantur quam in Coetu.

Petenti Consilium, is qui Hortationem ortert, Consiliarius bonus non est. Corrumpitur enim a cupiditate illa (quascunque ea fuit) quae vehementiam et artificium in Orationem intulit j quibus factum est, ut quanquam Consilium bonum fuerit, ipse tamen bonus Consiliarius non sit, nisi etiam qui accepto dono, juste Iudicaverit, bonus sit Iudex. lllius autem qui jure Imperat, ut in Familia Patersamilias, in exercitu Dux, Hortationes aliquando non modo laudabiles, sed etiam neceslariae sunt j nimirum, si labor imperetur durus, interdum neceslitas, humanitas femper requirit, ut consulentium dulci emolliatur potius quam aspero Imperii stilo siat durior.

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Secondly, that the use of Exhortation and Dehortation lyeth onely, where a man is to speak to a Multitude; because when the Speech is addressed to one, he may interrupt him, and examine his reasons more rigorously, than can be done in a Multitude; which are too many to enter into Dispute, and Dialogue with him that speaketh indifferently to them all at once. Thirdly, that they that Exhort and Dehort, where they are required to give Counsell, are corrupt Counsellours, and as it were bribed by their own interest. For though the Counsell they give be never so good; yet he that gives it, is no more a good Counsellour, than he that giveth a Just Sentence for a reward, is a just Judge. But where a man may lawfully Command, as a Father in his Family, or a Leader in an Army, his Exhortations and Dehortations, are not onely lawfull, but also necessary, and laudable: But then they are no more Counsells, but Commands; which when they are for Execution of soure labour; sometimes necessity, and alwayes humanity requireth to be sweetned in the delivery, by encouragement, and in the tune and phrase of Counsell, rather then in harsher language of Command.

Examples of the difference between Command and Counsell, we may take from the formes of Speech that expresse them in Holy Scripture. "Have no other Gods but me; Make to thy selfe no graven Image; Take not Gods name in vain; Sanctifie the Sabbath; Honour thy Parents; Kill not; Steale not," &c. are Commands; because the reason for which we are to obey them, is drawn from the will of God our King, whom we are obliged to obey. But these words, "Sell all thou hast; give it to the poore; and follow me," are Counsell; because the reason for which we are to do so, is drawn from our own benefit; which is this, that we shall have "Treasure in Heaven." These words, "Go into the village over against you, and you shall find an Asse tyed, and her Colt; loose her, and bring her to me," are a Command: for the reason of their fact is drawn from the will of their Master: but these words, "Repent, and be Baptized in the Name of Jesus," are Counsell; because the reason why we should so do, tendeth not to any benefit of God Almighty, who shall still be King in what manner soever we rebell; but of our selves, who have no other means of avoyding the punishment hanging over us for our sins.

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Dirterentiaj inter Imperatum et Consiliumexemph e Sacris Scripturis sumi poslunt: Ne habeai alios Deos ccram me. Ne facito tibi scttlpti* le, etc.. Ne assumito nomen Deituiinvanum. Sanbisca Sabbatum. Hottcravatremtuum. Neoccid.no. Nescortator. Nesurator, etc.. Imperata sunt j quia ratio obedientias a voluntate ducitur Dei cui obedirc obligamur, Sed verba hasc Vendeomnia qu<c habes, dapaupertbus; et sequere me, Consilium est, propterea quod ratio propter quam ita faciendum est, a Bono nostro derivatur, nempe ut Thesaurum in Ca'u habeamus. Sed verba ha:c Christi Matth. 21.2. Ite in vicum qui vobii ex adverso esi, (3 invenietis asmam et pullum cum ea, solvite et adducite, pro Imperio dicuntur, quia Domini sunt j Verbaautem hasc, Resipiscite et Baptizamini in nomine Iesu, Consilium est, quia non ad Bonum aliquod, quod ad Deum perveniat (qui quantumcunque contumaces sumus femper regnabit j) sed ad Bonum nostrum, qui pcenam propterpeccata nostra alia via essugere non poslumus.

Dirterentia inter Consiliarios idoneos et ineptos, a differentia dependet inter Virtutes et Desectus (de quibus ante loquuti sumus) intellectuales. Illienim qui Summam habet Potestatem pro Memoria et Intellectu sunt. Sed cumsimilitudine hacinter Civitatem et Hominem, dissirailitudo quaedam magni momenti conjuncta est. Memoriam enim et Intelleclum habet Homo ab ipsis rebus, quae Sensuura objedta sunt j quae objecta illum sine omni Passione, et Boni fui respectu quid agendum sit docent, nec aliter docere posiunt j sed qui Civitati Consilium dat, habere potest, et saepissime habet scopum proprium, nec femper cura scopo Civitatis congruentem. Itaquc pro virtute prima Consiliarii boni habendamcenseo j utsinesejus et Bonum proprium non sint s inibus et Bono publico repugnantes.

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Differences Of Fit And Unfit Counsellours

As the difference of Counsell from Command, hath been now deduced from the nature of Counsell, consisting in a deducing of the benefit, or hurt that may arise to him that is to be Counselled, by the necessary or probable consequences of the action he propoundeth; so may also the differences between apt, and inept counsellours be derived from the same. For Experience, being but Memory of the consequences of like actions formerly observed, and Counsell but the Speech whereby that experience is made known to another; the Vertues, and Defects of Counsell, are the same with the Vertues, and Defects Intellectuall: And to the Person of a Common-wealth, his Counsellours serve him in the place of Memory, and Mentall Discourse. But with this resemblance of the Common-wealth, to a naturall man, there is one dissimilitude joyned, of great importance; which is, that a naturall man receiveth his experience, from the naturall objects of sense, which work upon him without passion, or interest of their own; whereas they that give Counsell to the Representative person of a Common-wealth, may have, and have often their particular ends, and passions, that render their Counsells alwayes suspected, and many times unfaithfull. And therefore we may set down for the first condition of a good Counsellour, That His Ends, And Interest, Be Not Inconsistent With The Ends And Interest Of Him He Counselleth.

Secondly, Because the office of a Counsellour, when an action comes into deliberation, is to make manifest the consequences of it, in such manner, as he that is Counselled may be truly and evidently informed; he ought to propound his advise, in such forme of speech, as may make the truth most evidently appear; that is to say, with as firme ratiocination, as significant and proper language, and as briefly, as the evidence will permit. And therefore Rash, And Unevident Inferences; (such as are fetched onely from Examples, or authority of Books, and are not arguments of what is good, or evill, but witnesses of fact, or of opinion,) Obscure, Confused, And Ambiguous Expressions, Also All Metaphoricall Speeches, Tending To The Stirring Up Of Passion, (because such reasoning, and such expressions, are usefull onely to deceive, or to lead him we Counsell towards other ends than his own) Are Repugnant To The Office Of A Counsellour.

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Secundo quia quoties de Actione aliqua agenda dehberatur, Consiliarii boni officium est Actionis consequentias, sive ea, quae Actionem verilimiliter iequutura suut, ita declarare, ut is cui datur Consilium ea persecte iutelligat; Consilium suum forma Orationis tali explicare debet, qualis ventati etc. perspicuitati maxime consentanea est, id est perspicue loqui et firm£ ratiocinari. Itaque Jsationes temernri.e (quales sunt Illationes ab Authoritate Librorum) obscurae et ambigua?; item didtiones Metaphoricae, et quae Pasliones hominum excitare solent, cum officio Consiliarii boni consistere non possunt.

Tertio, Quoniam, ut quis Consilium Civitati rectum dare possir, non modo Experientia multa, sedetiam Meditatione longa opus est_; nec quae ad Administrationem publicam necesitaria sunt, omnia scire quisquam pra»sumi debet; Consiluxrium bonnm, nisi circa res in quibnt din versatm sntrtt, &? de qmbm ditt cogttaverit, neminem esje, prxsiimendttmesl. Ad Administrationem autem publicam scitu neceslaria sunt, hominum (id est Materiae ex qua Civitas constituitur) Ingenium, Iura Summae Potestatis, ^quum, lustum, Honestum, et eorum contraria quid sunt; quae multam postulant ut recte cognoicantur experientiam. Item quae sint tam iuae, quam vicinarum Civitatum Vires, Opes, Praesidia, Clastes, et Oportpnitates; etiam qui Socii, qui Aditus, qui Asseclus, quae Factiones, etc. quae agitent Consilia. Quarum rerum sine multorum simul hominum observationibus cognitio haberi non potest. Denique cognita haec omnia, nisi recla adhibeatur ratiocinatio, irmtilia iiint. Vtile enim, nescienti recte uti, nihilest.

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Thirdly, Because the Ability of Counselling proceedeth from Experience, and long study; and no man is presumed to have experience in all those things that to the Administration of a great Common-wealth are necessary to be known, No Man Is Presumed To Be A Good Counsellour, But In Such Businesse, As He Hath Not Onely Been Much Versed In, But Hath Also Much Meditated On, And Considered. For seeing the businesse of a Common-wealth is this, to preserve the people at home, and defend them against forraign Invasion, we shall find, it requires great knowledge of the disposition of Man-kind, of the Rights of Government, and of the nature of Equity, Law, Justice, and Honour, not to be attained without study; And of the Strength, Commodities, Places, both of their own Country, and their Neighbours; as also of the inclinations, and designes of all Nations that may any way annoy them. And this is not attained to, without much experience. Of which things, not onely the whole summe, but every one of the particulars requires the age, and observation of a man in years, and of more than ordinary study. The wit required for Counsel, as I have said before is Judgement. And the differences of men in that point come from different education, of some to one kind of study, or businesse, and of others to another. When for the doing of any thing, there be Infallible rules, (as in Engines, and Edifices, the rules of Geometry,) all the experience of the world cannot equall his Counsell, that has learnt, or found out the Rule. And when there is no such Rule, he that hath most experience in that particular kind of businesse, has therein the best Judgement, and is the best Counsellour.

Fourthly, to be able to give Counsell to a Common-wealth, in a businesse that hath reference to another Common-wealth, It Is Necessary To Be Acquainted With The Intelligences, And Letters That Come From Thence, And With All The Records Of Treaties, And Other Transactions Of State Between Them; which none can doe, but such as the Representative shall think fit. By which we may see, that they who are not called to Counsell, can have no good Counsell in such cases to obtrude.

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Quartd, Vtquis in rebus maximi momenti Civitati consulat, vidiste debet Civitatis Archiva, Scederum vicinarum Civitatum exemplaria, Ministrorumque ad Civitates vicinas ad earum Consilia exploranda emislorum Literas. Quae nemini praeter eos, quos vult is, qui Summam habet Potestatem, videre permistum est; ita ut, nisi qui ad Coniilium vocari consiievit, Consilium reclum ne sapiens quidetn dare poslit.

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Fifthly, Supposing the number of Counsellors equall, a man is better Counselled by hearing them apart, then in an Assembly; and that for many causes. First, in hearing them apart, you have the advice of every man; but in an Assembly may of them deliver their advise with I, or No, or with their hands, or feet, not moved by their own sense, but by the eloquence of another, or for feare of displeasing some that have spoken, or the whole Assembly, by contradiction; or for feare of appearing duller in apprehension, than those that have applauded the contrary opinion. Secondly, in an Assembly of many, there cannot choose but be some whose interests are contrary to that of the Publique; and these their Interests make passionate, and Passion eloquent, and Eloquence drawes others into the same advice. For the Passions of men, which asunder are moderate, as the heat of one brand; in Assembly are like many brands, that enflame one another, (especially when they blow one another with Orations) to the setting of the Common-wealth on fire, under pretence of Counselling it. Thirdly, in hearing every man apart, one may examine (when there is need) the truth, or probability of his reasons, and of the grounds of the advise he gives, by frequent interruptions, and objections; which cannot be done in an Assembly, where (in every difficult question) a man is rather astonied, and dazled with the variety of discourse upon it, than informed of the course he ought to take. Besides, there cannot be an Assembly of many, called together for advice, wherein there be not some, that have the ambition to be thought eloquent, and also learned in the Politiques; and give not their advice with care of the businesse propounded, but of the applause of their motly orations, made of the divers colored threds, or shreds of Authors; which is an Impertinence at least, that takes away the time of serious Consultation, and in the secret way of Counselling apart, is easily avoided. Fourthly, in Deliberations that ought to be kept secret, (whereof there be many occasions in Publique Businesse,) the Counsells of many, and especially in Assemblies, are dangerous; And therefore great Assemblies are necessitated to commit such affaires to lesser numbers, and of such persons as are most versed, and in whose fidelity they have most confidence.

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Quint5, Monarchae cui Consiliarii sunt, audire illos satius est iscorsim anumquerqque, quam in Ccetucunstos. Nam ieorsim iingulos audiendo Consilium multorum habet; Ccetum autem audiendo unius tantum. Ccetus enim peribna una est, cujus membra non ex suo ipsorum sensu, sed ex aliorum eloquentia, vel porentia, vel arriicitia sententiam dicunt, eam aliquando (ne ingenii tardi esle videantur) quam non intelligunt. Plurimi etiaca eorum, commodo suo publi- publicum postponunt. Quod, si sententias seorsim sine testibus dicant, minus noxium est. Passiones enim hominum singularium mo* deratioresiunt per se T quam in Ccetu (non aliter quam torres igniti disjuncti quam conserti minus ardent) ubi se nonnunquam slatu Rhetorico ad incendium Civitatis mutuo inslammant. Praeterea sententiarum quas dicunt seorsim, rationes facilius examinantur, quam ia. Ccetu, ubi multitudo et varietas Orationum auditores stupere potius quam intelligere faciunt. Nonnulli etiam sunt, qui cum convocantur ad Consilium, doctrinae aut eloquentias famam captantes, ad ea quae deliberantur impertinenter dicunt, quod in Congiio unius ad unuoi sieri non potest. In deliberationibus denique quae tacenda sunt, (cum in Ccetu sententiae dicantur palam) periculum est ns hostibus patesiant.

Postremb, nemo est qui in rebus fuis privatis Consiliariorum Ccetu lihenter uti vellet, quanquam id facile poslet. Si dubitaret Pater familias cui vitojbliam daret,quam.uxoremsiliosumeret, quibus et quanti locaret agros, quem Oeconomum, quem villicum sibi faceret, a Consiliariorum Ccetu nunquam quaereret, prassertim si in Ccetu esie crederet qui ipsi malura optarent. Etsi ergo muitorum Consilium Consilio paucorum anteserendum sir, tunc taoien tantum anteserendum est, quando Consilia singuli sua seorsira explicant. In deliberationibus enira simile aliquid video ejus quod sit in ludo pilae; ubi optime facit qui Secundis utitur proprias habentibus stationes. Deinde qui proprias considens peritis solus sine secundis ludit. Sed is qui in rebus propiiis agendis a formatoconsiliariorum Ccetu circumsertur, ubi partes dislentientes mutuo se impediunt, pessime omniura fack j similisque est Lusori, qui in machina aliqua rotulis imposita, gravi quidem ipsa, tardiore autem propter judicia eorum, qui illam huc et illuc movent discrepantia, ad pilam admovetur.

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To conclude, who is there that so far approves the taking of Counsell from a great Assembly of Counsellours, that wisheth for, or would accept of their pains, when there is a question of marrying his Children, disposing of his Lands, governing his Household, or managing his private Estate, especially if there be amongst them such as wish not his prosperity? A man that doth his businesse by the help of many and prudent Counsellours, with every one consulting apart in his proper element, does it best, as he that useth able Seconds at Tennis play, placed in their proper stations. He does next best, that useth his own Judgement only; as he that has no Second at all. But he that is carried up and down to his businesse in a framed Counsell, which cannot move but by the plurality of consenting opinions, the execution whereof is commonly (out of envy, or interest) retarded by the part dissenting, does it worst of all, and like one that is carried to the ball, though by good Players, yet in a Wheele-barrough, or other frame, heavy of it self, and retarded also by the inconcurrent judgements, and endeavours of them that drive it; and so much the more, as they be more that set their hands to it; and most of all, when there is one, or more amongst them, that desire to have him lose. And though it be true, that many eys see more then one; yet it is not to be understood of many Counsellours; but then only, when the finall Resolution is in one man. Otherwise, because many eyes see the same thing in divers lines, and are apt to look asquint towards their private benefit; they that desire not to misse their marke, though they look about with two eyes, yet they never ayme but with one; And therefore no great Popular Common-wealth was ever kept up; but either by a forraign Enemy that united them; or by the reputation of some one eminent Man amongst them; or by the secret Counsell of a few; or by the mutuall feare of equall factions; and not by the open Consultations of the Assembly. And as for very little Common-wealths, be they Popular, or Monarchicall, there is no humane wisdome can uphold them, longer then the Jealousy lasteth of their potent Neighbours.

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LATINE · 1668

CAPVT XXVI — De Legibus Civilibus

CHAPTER XXVI — Of Civil Laws

Slcut Leges Natura illae sunt, quibus obedire tenemur quatenus Horaines j ita Leges Civiles eae sunt, quibus tenemur obedire, quatenus Cives. De quibus, non quaenam illae sint, in hac vel illa Civitate, sed Lex Civiles quid sit, considerandum est. Scio in Civitatibus, quae Civicati Rornanas subditae ojim srant, Leges Civiles ple- rumquc rumque dici Civiratis Romana; Lcges Antiquas. De illis disputarc hujus instituii non est, sed (quod secerunt Plato, Aristoteles, Cicero aliique multi, qui luris peritiam tamen prosesij non sunt) generalitcr dc Lege.

Manisestum autem est Legem Consilium non esle; sed Imperatum j quod (ut in praecedente Capite didum est) a Consilio disrert.

Le$em igitur Civilent sic definio: Lex Civius unicuique Civi esi Regula c>u*, Civitat Verbo vel Scripto, vel alto quocunque Voluntatisstgno idtneo, ad dtslidlionem Boni et Malt^ uti imperat.

In qua Definitione ambigui nihil est. Legum autem, alia Civibus statuitur universis; alia certis Provinciis; alia certo hominumgeneri; alia homini quandoque singulari. Quibus autem Lex ponitur, illis lblis Lex est. Neque Injustum facit quisquam, quod non sit contra Legem sibimetipsi positam. Quod autem Signis idoneis declarari ex Legis Natura debeat Lex, manisestum ex eo est, quod injustum nihil est, quod non sit transgressio alicujus Legis. Quicquid ergo a definitione hac inserri potest, negari non debec, quin sit verum. Insero autem primo, Legislatorem in omni Civitate eum este, sive homo, sive Ccetus sit, qui Summam habet Potestatem. Civitatis enim solius est praescribere Civibus Leges. Illa autem neque praescribcre, neque dtcereaut facere quicquampotest, nisi per Personam ejus, id est per illum, qui Summam habet Potestatem. Is crg^ Legislator solus est. Ob eandem rationem solus etiam Legem abrogare potest 5 quia Lex abrogari non potest, nisi per aliam Lcgem.

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CHAPTER XXVI — Of Civil Laws

CAPVT XXVI — De Legibus Civilibus

Civill Law what

By CIVILL LAWES, I understand the Lawes, that men are therefore bound to observe, because they are Members, not of this, or that Common-wealth in particular, but of a Common-wealth. For the knowledge of particular Lawes belongeth to them, that professe the study of the Lawes of their severall Countries; but the knowledge of Civill Law in generall, to any man. The antient Law of Rome was called their Civil Law, from the word Civitas, which signifies a Common-wealth; And those Countries, which having been under the Roman Empire, and governed by that Law, retaine still such part thereof as they think fit, call that part the Civill Law, to distinguish it from the rest of their own Civill Lawes. But that is not it I intend to speak of here; my designe being not to shew what is Law here, and there; but what is Law; as Plato, Aristotle, Cicero, and divers others have done, without taking upon them the profession of the study of the Law.

And first it manifest, that Law in generall, is not Counsell, but Command; nor a Command of any man to any man; but only of him, whose Command is addressed to one formerly obliged to obey him. And as for Civill Law, it addeth only the name of the person Commanding, which is Persona Civitatis, the Person of the Common-wealth.

Which considered, I define Civill Law in this Manner. "CIVILL LAW, Is to every Subject, those Rules, which the Common-wealth hath Commanded him, by Word, Writing, or other sufficient Sign of the Will, to make use of, for the Distinction of Right, and Wrong; that is to say, of what is contrary, and what is not contrary to the Rule."

In which definition, there is nothing that is not at first sight evident. For every man seeth, that some Lawes are addressed to all the Subjects in generall; some to particular Provinces; some to particular Vocations; and some to particular Men; and are therefore Lawes, to every of those to whom the Command is directed; and to none else. As also, that Lawes are the Rules of Just, and Unjust; nothing being reputed Unjust, that is not contrary to some Law. Likewise, that none can make Lawes but the Common-wealth; because our Subjection is to the Common-wealth only: and that Commands, are to be signified by sufficient Signs; because a man knows not otherwise how to obey them. And therefore, whatsoever can from this definition by necessary consequence be deduced, ought to be acknowledged for truth. Now I deduce from it this that followeth.

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Secundo, is qui habet Summam Potestatem Legibus Civilibus nonsiibjicitur; cum enim arbitrio suo Leges et facit et abrogac, potest quoties visum erit, subjectione illa et molestia se liberare. Legibus ergo ante solutus erat. Liberi enim sunt, qui quando volunt eite, poisunt; nec potest quisquam sibiipsi obligari; quiaqui obligare, idem liberare potest.

Tertio, quando consuetudo Ionga vim obtinuit Legis, non a longitudine temporis vim Legis habet, ^d a voluntate ejus, qui Summam habet Potestatem, per Silentium ejus signisicata; voluntatis enim signum aliquando etiam est Silentium. Neque diutius vim Legis consuetudo habet, quam silentium illud durat. Itaque si quaestio luris inter Civcm et Summam Potestatem oriatur, lcuigitudo temporis Summae Potestati pro Praejudicio non habebitur; ied quaestio secundura *£quitatem terminabitur. Actiones enim 8z Sententia; mukaesineanimadversione et correctione negligunturlongioritem-. Uytat. s s s pore, pore, quara ut homines meminerint > neque rationis est, ut consuerudines make unquam omnino in Leges transeant. Iudicare autem quid rationis sit, quid non sit, ad eum pertinet, qui Summam habet Potestatem.

Quarto, Leges Naturae etc. Leges Civiles in eadem Civitate se mutuo continent. Lex enim Naturalis omnis, virtus moralis est, ut iequitas, Iustitia, Gratitudo quae (ut dictum est in sine Cap. 15*.) Leges proprie ditshe non sunt -y sed Qualitates. Tum, vero Leges s unt, eaedemque Civiles, quando a Civitate observari imperantur. Leges ergo Naturales etiam Civiles sunt, quod outem omnis Lex Civilis etiam Lex Natune sit, ex eo patet, quod Paclum violare, et per consequens Legem Civilem transgredi Legis Naturae transgresiio est. ltaque ut Legibus Civitatis obediamus, Lex Naturalis est j neque diverla genera Legum sunt Lex Naturas et Civilis, sed diversae partes; quarum una scripta est, quam Civilera, altera non scripta, quam Naturalem vocant. Leges itaque Naturales a Lege Civili non mutantur, neque restringuntur; sed Im Naturale tantum. Imo Legum Civilium serendarum Finis erat restriclio Iuris Naturalis, sive luris omnium in omnia, quo stante, pax nulla esse potuit.

Quinto, Si is, qui Summam habet in Civitate Potestntem, armis vel hasreditate Civitatem aliam sibi subjectam habeat, nec Leges illius mutet, Legislator tamen ipse est. Non enira is, cujus authoritate Leges ab initio institutae sunt Legislator est, sed is 3 cujus authoritate retinentur. Vbi ergo sub eadem Civitate partes plures sunt, quas diversas habent Leges, Legum earum authoritas, etsi antiquissimas sint, vim Legum, non a Consuetudine, led a voluntate Summae Potestatis praesentis habent.

Sexto, quoniam Leges omnes tam scripra;, quam non scriptae, vim suam a voluntare Civitatis habent, eorum qui illas mutari aut corrigi a quantocunque Civium nuniero, sine consensu Summam habentis Potestatem posse dicunt, Sentencia quanquam lurisperitissimorum rejicienda est.

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The Soveraign Is Legislator

1. The Legislator in all Common-wealths, is only the Soveraign, be he one Man, as in a Monarchy, or one Assembly of men, as in a Democracy, or Aristocracy. For the Legislator, is he that maketh the Law. And the Common-wealth only, praescribes, and commandeth the observation of those rules, which we call Law: Therefore the Common-wealth is the Legislator. But the Common-wealth is no Person, nor has capacity to doe any thing, but by the Representative, (that is, the Soveraign;) and therefore the Soveraign is the sole Legislator. For the same reason, none can abrogate a Law made, but the Soveraign; because a Law is not abrogated, but by another Law, that forbiddeth it to be put in execution.

And Not Subject To Civill Law

2. The Soveraign of a Common-wealth, be it an Assembly, or one Man, is not subject to the Civill Lawes. For having power to make, and repeale Lawes, he may when he pleaseth, free himselfe from that subjection, by repealing those Lawes that trouble him, and making of new; and consequently he was free before. For he is free, that can be free when he will: Nor is it possible for any person to be bound to himselfe; because he that can bind, can release; and therefore he that is bound to himselfe onely, is not bound.

Use, A Law Not By Vertue Of Time, But Of The Soveraigns Consent

3. When long Use obtaineth the authority of a Law, it is not the Length of Time that maketh the Authority, but the Will of the Soveraign signified by his silence, (for Silence is sometimes an argument of Consent;) and it is no longer Law, then the Soveraign shall be silent therein. And therefore if the Soveraign shall have a question of Right grounded, not upon his present Will, but upon the Lawes formerly made; the Length of Time shal bring no prejudice to his Right; but the question shal be judged by Equity. For many unjust Actions, and unjust Sentences, go uncontrolled a longer time, than any man can remember. And our Lawyers account no Customes Law, but such as are reasonable, and that evill Customes are to be abolished; But the Judgement of what is reasonable, and of what is to be abolished, belongeth to him that maketh the Law, which is the Soveraign Assembly, or Monarch.

The Law Of Nature, And The Civill Law Contain Each Other

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Septimo, Legem contra Rationem este non posle, et Legislatoris Intentionem, non Literam scriptara esie Legem, Iurisperitis in conseslo est. Manisestum autem est Authoritatem Legis a privati hominis Rationenon pendere, neque ex lurisprudentia alicujus inlegibus peritia; nam si verum id esiet, non paucioresde authoritate Legum inter Cives contentiones eslent, quam circa quoestiones Philoiophicas et Theologicas inter Scholasticos. Non ergo Iudicum iubordinatoruro, sed Civitatis, id estejus, qui habet in Civitatesum- mam Potestatem Prudentia, Prudentiam facit Legis; et ludex subordinatus non suam, sed ejus qui habet Suramam Potestatem, pro Tribunali Sententiam dicere intelligendus est.

Octavo, Ab eo, quod Lex Imperatum est, Imperatum autem non est, ubi voluntas Imperantis non sit vel voce, vel scripto, vel alio signo idoneo declarata, inserimus, Civitatis Imperata, id est Leges Civiies illis solis Leges esle, quibus fuerunt declaratae. Itaque insantibus, mente captis, quae Imperata intelligere non poslunt, neque quidsitlustum et Injustum sciunt, nequepacta intelligunt, Leges Civiles non ponuntur; neque propterea illis, quibus etii hasc omnia intelligant, declaratae sive promulgatae non sint, ita ut eas, si voluissent cognoscere, potuislent. Considerandura ergo est, quaeargumenta vel signa ad Legem promulgandam, idonea censenda sint.

Primo, si Lex ea talis sit, ut Cives omnes sineexceptione obliget, necscriptasit; dubium non est, quin Lex Naturae sit. Quodenim pro Lege habere debemus, non propter Dictamina aliorum hominum, sedpropter suam uniuscujusquerationera, consentanea esle debet universaliter Rationi humanas, et per consequens Lex Naturalis est. Leges itaque Naturales Publicatione, Proclamatione, Promulgatione non indigent; ut quae in unico praecepto continentur, Quxcunque vttkti utsaciant vobis bomnes, id vossacite illti*

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4. The Law of Nature, and the Civill Law, contain each other, and are of equall extent. For the Lawes of Nature, which consist in Equity, Justice, Gratitude, and other morall Vertues on these depending, in the condition of meer Nature (as I have said before in the end of the 15th Chapter,) are not properly Lawes, but qualities that dispose men to peace, and to obedience. When a Common-wealth is once settled, then are they actually Lawes, and not before; as being then the commands of the Common-wealth; and therefore also Civill Lawes: for it is the Soveraign Power that obliges men to obey them. For in the differences of private men, to declare, what is Equity, what is Justice, and what is morall Vertue, and to make them binding, there is need of the Ordinances of Soveraign Power, and Punishments to be ordained for such as shall break them; which Ordinances are therefore part of the Civill Law. The Law of Nature therefore is a part of the Civill Law in all Common-wealths of the world. Reciprocally also, the Civill Law is a part of the Dictates of Nature. For Justice, that is to say, Performance of Covenant, and giving to every man his own, is a Dictate of the Law of Nature. But every subject in a Common-wealth, hath covenanted to obey the Civill Law, (either one with another, as when they assemble to make a common Representative, or with the Representative it selfe one by one, when subdued by the Sword they promise obedience, that they may receive life;) And therefore Obedience to the Civill Law is part also of the Law of Nature. Civill, and Naturall Law are not different kinds, but different parts of Law; whereof one part being written, is called Civill, the other unwritten, Naturall. But the Right of Nature, that is, the naturall Liberty of man, may by the Civill Law be abridged, and restrained: nay, the end of making Lawes, is no other, but such Restraint; without the which there cannot possibly be any Peace. And Law was brought into the world for nothing else, but to limit the naturall liberty of particular men, in such manner, as they might not hurt, but assist one another, and joyn together against a common Enemy.

Provinciall Lawes Are Not Made By Custome, But By The Soveraign Power

5. If the Soveraign of one Common-wealth, subdue a people that have lived under other written Lawes, and afterwards govern them by the same Lawes, by which they were governed before; yet those Lawes are the Civill Lawes of the Victor, and not of the Vanquished Common-wealth, For the Legislator is he, not by whose authority the Lawes were first made, but by whose authority they now continue to be Lawes. And therefore where there be divers Provinces, within the Dominion of a Common-wealth, and in those Provinces diversity of Lawes, which commonly are called the Customes of each severall Province, we are not to understand that such Customes have their Force, onely from Length of Time; but that they were antiently Lawes written, or otherwise made known, for the Constitutions, and Statutes of their Soveraigns; and are now Lawes, not by vertue of the Praescription of time, but by the Constitutions of their present Soveraigns. But if an unwritten Law, in all the Provinces of a Dominion, shall be generally observed, and no iniquity appear in the use thereof; that law can be no other but a Law of Nature, equally obliging all man-kind.

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Secundo, Si Lex aliqua non omnes, sed certum genus hominura, vel certum hominera obliget, nec sit scripta, neque promulgata, Lex Naturae est. Etiam Leges omnes non promulgatas, si obligent, Leges Naturales sunt. Iussa enim omnia Homines obligant vel quatenus Homines, vel quatenus Cives, vel non omnino obliganr. Itaque si publico Ministro negotium quodcunque imponat faciendum, Civitas, sine scripta regula, erit illi pro regula didamen Rationis, Legato quidem Civitatis bonum, Iudici autem, id quod sibi aequum videbitur. Civitas enim et Bonum sibi, et Civibus /Equum velle intelligitur.

Legibus Naturae exceptis, de Natura Sc Essentia Legum aliarum omnium est, ut promulgentur; alioqui enira observari non postunt,; Temporibus antiquislimis, Literis nondum vulgo cognitis, Leges memoriae cauia, Carmine conscribebantur. Propter eandem causam Iuda!os, ut Decalogum digitis fuis alligarent jussit Salomon. Israelitis ut Leges Deuteronomii filios suos docerent, easque Postibus et lanuis domorum inscriberent juslit Moses. Est ergo de Estentia Legum, ita declarari ut transgreslionis earum nullam habeant Cives ab ignorantia excusationem.

s s s 2 Nequc sji De Chitate. Cap. 26.

Neque satis est, ut Lex ipsi a Civibus cognoscatur, sed etiam, ut ab Authoritate proceslerit lllius, qui Summam habet Potestatem. Legislator quidem quis lit, in omni Civitate notum eite supponitur, ex eo quod consensu singulorum Civium omnium constitutus erat; cognoscere autem, quod Lex ab itlo, qui Summara habet Potestatem prosecia sit, difficilius est; et propcerea signis indiget, id est testimoniis, quibus Veriricetur, id est verum esie sciatur, Legem s Sumraa Potestate latam eile; qua? quidem signa plerumque sunt, vel Archiva publica, vel Civitatis sigiila, vel Ministri, quibus Authoritasjus dicendidataest perliterassigillo publico signatas.

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Some Foolish Opinions Of Lawyers Concerning The Making Of Lawes

6. Seeing then all Lawes, written, and unwritten, have their Authority, and force, from the Will of the Common-wealth; that is to say, from the Will of the Representative; which in a Monarchy is the Monarch, and in other Common-wealths the Soveraign Assembly; a man may wonder from whence proceed such opinions, as are found in the Books of Lawyers of eminence in severall Common-wealths, directly, or by consequence making the Legislative Power depend on private men, or subordinate Judges. As for example, "That the Common Law, hath no Controuler but the Parlament;" which is true onely where a Parlament has the Soveraign Power, and cannot be assembled, nor dissolved, but by their own discretion. For if there be a right in any else to dissolve them, there is a right also to controule them, and consequently to controule their controulings. And if there be no such right, then the Controuler of Lawes is not Parlamentum, but Rex In Parlamento. And where a Parlament is Soveraign, if it should assemble never so many, or so wise men, from the Countries subject to them, for whatsoever cause; yet there is no man will believe, that such an Assembly hath thereby acquired to themselves a Legislative Power. Item, that the two arms of a Common-wealth, are Force, and Justice; The First Whereof Is In The King; The Other Deposited In The Hands Of The Parlament. As if a Common-wealth could consist, where the Force were in any hand, which Justice had not the Authority to command and govern.

7. That Law can never be against Reason, our Lawyers are agreed; and that not the Letter,(that is, every construction of it,) but that which is according to the Intention of the Legislator, is the Law. And it is true: but the doubt is, of whose Reason it is, that shall be received for Law. It is not meant of any private Reason; for then there would be as much contradiction in the Lawes, as there is in the Schooles; nor yet (as Sr. Ed, Coke makes it (Sir Edward Coke, upon Littleton Lib.2. Ch.6 fol 97.b),) an Artificiall Perfection of Reason, Gotten By Long Study, Observation, And Experience, (as his was.) For it is possible long study may encrease, and confirm erroneous Sentences: and where men build on false grounds, the more they build, the greater is the ruine; and of those that study, and observe with equall time, and diligence, the reasons and resolutions are, and must remain discordant: and therefore it is not that Juris Prudentia, or wisedome of subordinate Judges; but the Reason of this our Artificiall Man the Common-wealth, and his Command, that maketh Law: And the Common-wealth being in their Representative but one Person, there cannot easily arise any contradiction in the Lawes; and when there doth, the same Reason is able, by interpretation, or alteration, to take it away. In all Courts of Justice, the Soveraign (which is the Person of the Common-wealth,) is he that Judgeth: The subordinate Judge, ought to have regard to the reason, which moved his Soveraign to make such Law, that his Sentence may be according thereunto; which then is his Soveraigns Sentence; otherwise it is his own, and an unjust one.

Law Made, If Not Also Made Known, Is No Law

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Quando ergo quasstio est de Injuria in Lege Naturali, Iudex talium causarum Legem Naturae, qu<£ sit, explicabit.

Sm in Lege Civili quazstio eadem sit, conlulenda sunt Archiva, ubi Leges scriptae, eo iplb sine conservantur, ut in dubns consulantur; quas, si quis de Actione quam meditatur, an licita an illicita sit dubitat, coniulere potest, imodebet j quia qui dubitat bonumne an maium sit, quod aggreditur, et tamen facit, Legem contempsit.

Si dubitetur, an alicui, ut Ministro Publico pnsstanda sit obedientia, ex Literis ejus, Civitatis iigillo signatis, vel ministerii fui signo pubiico id sciet.

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8. From this, that the Law is a Command, and a Command consisteth in declaration, or manifestation of the will of him that commandeth, by voyce, writing, or some other sufficient argument of the same, we may understand, that the Command of the Common-wealth, is Law onely to those, that have means to take notice of it. Over naturall fooles, children, or mad-men there is no Law, no more than over brute beasts; nor are they capable of the title of just, or unjust; because they had never power to make any covenant, or to understand the consequences thereof; and consequently never took upon them to authorise the actions of any Soveraign, as they must do that make to themselves a Common-wealth. And as those from whom Nature, or Accident hath taken away the notice of all Lawes in generall; so also every man, from whom any accident, not proceeding from his own default, hath taken away the means to take notice of any particular Law, is excused, if he observe it not; And to speak properly, that Law is no Law to him. It is therefore necessary, to consider in this place, what arguments, and signes be sufficient for the knowledge of what is the Law; that is to say, what is the will of the Soveraign, as well in Monarchies, as in other formes of government.

Unwritten Lawes Are All Of Them Lawes Of Nature

And first, if it be a Law that obliges all the Subjects without exception, and is not written, nor otherwise published in such places as they may take notice thereof, it is a Law of Nature. For whatsoever men are to take knowledge of for Law, not upon other mens words, but every one from his own reason, must be such as is agreeable to the reason of all men; which no Law can be, but the Law of Nature. The Lawes of Nature therefore need not any publishing, nor Proclamation; as being contained in this one Sentence, approved by all the world, "Do not that to another, which thou thinkest unreasonable to be done by another to thy selfe."

Secondly, if it be a Law that obliges only some condition of men, or one particular man and be not written, nor published by word, then also it is a Law of Nature; and known by the same arguments, and signs, that distinguish those in such a condition, from other Subjects. For whatsoever Law is not written, or some way published by him that makes it Law, can be known no way, but by the reason of him that is to obey it; and is therefore also a Law not only Civill, but Naturall. For example, if the Soveraign employ a Publique Minister, without written Instructions what to doe; he is obliged to take for Instructions the Dictates of Reason; As if he make a Judge, The Judge is to take notice, that his Sentence ought to be according to the reason of his Soveraign, which being alwaies understood to be Equity, he is bound to it by the Law of Nature: Or if an Ambassador, he is (in al things not conteined in his written Instructions) to take for Instruction that which Reason dictates to be most conducing to his Soveraigns interest; and so of all other Ministers of the Soveraignty, publique and private. All which Instructions of naturall Reason may be comprehended under one name of Fidelity; which is a branch of naturall Justice.

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Legibus et Legislatore cognitis, restat adhuc (si Leges obligatoria^ futurae sint) ut vera intelligatur earum Interpretatio, in qua sola consistit Legis Eslentia. Ejusdem autem Personae est et Imperare et Imperata sua interpretari, iive Iubere et Iuita explicare. Interpres ergo Legunn omnium is iblus est, qui Summam habet Potestatem, aut ab illo acceperit Authoritatem.

Leges omnes Scriptae et Non Scriptae Interpretatione indigent. Leges Natura», quanquam intellechssaciles sintiilis quidem, qui causas cognoscunt alienas; difficiles tamen sunt illis, quorum ipsorurn causas cognoscuntur, 8z fortaile Legum omnium dirnciiimae, et maxime opus habent Interpretatione. In Legibus Scriptis, si breves sint, unius tamen aut duarum vocum ambiguitas iacere potest, ut sint obscurae; si longs sint, obscuriores eas reddit muitarum vocum ambiguitas. Itaque Lex Scripta nulla, sive multis sive paucis verbis continearur, intelligi potestnisi ex Legis ipsius causis Sinahbus; quarum caularum cognitio in Legislatore solo est; etc. illi soli difficuitates Legum, nodiqueaut cxtncando aut iecando solubiies sunt.

In Civitate constituta, Legum Naturae Interpretatio non 2 Doc^o- ms Cv Scriptoribus Moralis Philosophi» dependent, kd ab Au- thoritate tboritate Civitatis. Doctrinae quidem veraeesle posluntj sed Authoritas non Veritas facit Legem.

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The Law of Nature excepted, it belongeth to the essence of all other Lawes, to be made known, to every man that shall be obliged to obey them, either by word, or writing, or some other act, known to proceed from the Soveraign Authority. For the will of another, cannot be understood, but by his own word, or act, or by conjecture taken from his scope and purpose; which in the person of the Common-wealth, is to be supposed alwaies consonant to Equity and Reason. And in antient time, before letters were in common use, the Lawes were many times put into verse; that the rude people taking pleasure in singing, or reciting them, might the more easily reteine them in memory. And for the same reason Solomon adviseth a man, to bind the ten Commandements (Prov. 7. 3) upon his ten fingers. And for the Law which Moses gave to the people of Israel at the renewing of the Covenant, (Deut. 11. 19) he biddeth them to teach it their Children, by discoursing of it both at home, and upon the way; at going to bed, and at rising from bed; and to write it upon the posts, and dores of their houses; and (Deut. 31. 12) to assemble the people, man, woman, and child, to heare it read.

Nothing Is Law Where The Legislator Cannot Be Known

Nor is it enough the Law be written, and published; but also that there be manifest signs, that it proceedeth from the will of the Soveraign. For private men, when they have, or think they have force enough to secure their unjust designes, and convoy them safely to their ambitious ends, may publish for Lawes what they please, without, or against the Legislative Authority. There is therefore requisite, not only a Declaration of the Law, but also sufficient signes of the Author, and Authority. The Author, or Legislator is supposed in every Common-wealth to be evident, because he is the Soveraign, who having been Constituted by the consent of every one, is supposed by every one to be sufficiently known. And though the ignorance, and security of men be such, for the most part, as that when the memory of the first Constitution of their Common-wealth is worn out, they doe not consider, by whose power they use to be defended against their enemies, and to have their industry protected, and to be righted when injury is done them; yet because no man that considers, can make question of it, no excuse can be derived from the ignorance of where the Soveraignty is placed. And it is a Dictate of Naturall Reason, and consequently an evident Law of Nature, that no man ought to weaken that power, the protection whereof he hath himself demanded, or wittingly received against others. Therefore of who is Soveraign, no man, but by his own fault, (whatsoever evill men suggest,) can make any doubt. The difficulty consisteth in the evidence of the Authority derived from him; The removing whereof, dependeth on the knowledge of the publique Registers, publique Counsels, publique Ministers, and publique Seales; by which all Lawes are sufficiently verified.

Difference Between Verifying And Authorising

Verifyed, I say, not Authorised: for the Verification, is but the Testimony and Record; not the Authority of the law; which consisteth in the Command of the Soveraign only.

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Legis cujuscunque Naturalis Interpretatio recta, Sententia et ejus qni Summam habet Potestatem, vel ejus, qui Authoritatem ab eo habet causas cognoscendi j qui tunc Interpretatur cum Legem Facto applicat. Interpretatioautem illa Authentica est, non quia sua, sed quia Civitatis Sententia est j et Lex sit illis inter quos Lege agibatur, non autem Civibus universis.

Quoniamautem ludex nullus estneque Subordinatus neque Supremus, qui interdum non erret et iniquam Sententiam serat; idem si postea in quaestione simili errorem suum cognoscat, sententiam ferreaequioremobligatur. Suus enim sibi error Lex non est, neque eum obligat ad persiitendum in iniquitate sua. Multo minus Iudices alios obligabit. Quanquam enim Sententia, etiam iniqua, per Authoritatem Summara tacite probata in Legibus quae mutabiles sunt, instar novae Legis sit; in Legibus tamen immutabilibus, quales sunt Leges Naturales, transire in Legem non potest, ut obliget ad similem sententiam femper serendam, eundem aut alium ludicem. Leges Civiles, et Civilia omnia tranieunt et mutantur; sed Leges Naturales, cum sint divinae transire aut mutari non poisunt. In Iudiciis ergo Prajudicia valere non debent, neque sententiam iniquam excusare poilunt. Vnicuique ergo Iudici incumbit, ut sententiam serat ex iua ipsius Conscientia, et Ratione Naturali, peritiaque propria circa /Equum et Bonum, nec a Praejudiciis ludicum praecedentium. Exempli cauia pnnirt innocentem, contra Legem Naturas est. Innocensautemest, qui corara Iudice absolutus est. Accnsatur quidam Criminis capitalis, qui inimicorum suorum potentia Sc malitia, Iudicumque iniquitate iblita cognitis, metuens, ne condemnaretur ausagit; tandem retra£tus ad Tribunale sistitur reus; causam dicit j absolutus est. Caeterum quoniam obtinuerat in Civitate consuetudo ex~ multis Praejudiciis praecedentium Iudicum, ut qui sugerit, quanqnam postea absolutus fuerit, bonis fuis omnibus mulctaretur, Bonis siiis exutus est. Consuetudinem hanc, quorumcunque et quotcunque Prjejudiciis sieri Legem potuisle nego. Tuniri enim innoantem vetat Lex Naturae a;terna et divina. Metu potentium inimicorum sugere Lex nulla prohibuerat. Innocens autem co erat quod absolutus est. Presumptionem criminis Absolutio abstulerat. Itaque inique et contra Legem Naturae bonis omnibus mobilibus ipoliatus est. Pr.-jjudicia ergo in ludiciis considerare, aut imperiti, aut iniqui Iudicis est. Etiam Axioma illud Legistarum: nnllam Trcbattonem ccntra Vrx~ ss s 3 ■ sxmpuo- sumptionem Leois admittendam ejse. Iniquum est; Injusti enim Iudices siint, qui quodadsui desensionem producit reus, audire nolunt.

Similiter qu.indo sententia quaeritur Legis scriptae, Interpres non erit, qui in Legem Coramentarios scribic. Commentarii enim obscuriores plerumque sunt ipso Textu; et proinde opus habent Commentariis; adeo ut interpretandi nullus sit finis. Nisi ergo Authoritate Summae Potestatis Interpres aliquis constitutus sit, a cujus Interpretatione ludicibus Subordinatis discedere non liceat, ipsi ludices Subordinati Interpreteserunt, ut m Legibus Naturalibus; et eorum Sententiae ad prasientis litis decisionem, pro Legibus habendae erunt. Sed Iudices alii in sirailibus quasstionibus ndn eo obligabuniur casus similes sirailiter judicare.

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The Law Verifyed By The Subordinate Judge

If therefore a man have a question of Injury, depending on the Law of Nature; that is to say, on common Equity; the Sentence of the Judge, that by Commission hath Authority to take cognisance of such causes, is a sufficient Verification of the Law of Nature in that individuall case. For though the advice of one that professeth the study of the Law, be usefull for the avoyding of contention; yet it is but advice; tis the Judge must tell men what is Law, upon the hearing of the Controversy.

By The Publique Registers

But when the question is of injury, or crime, upon a written Law; every man by recourse to the Registers, by himself, or others, may (if he will) be sufficiently enformed, before he doe such injury, or commit the crime, whither it be an injury, or not: Nay he ought to doe so: for when a man doubts whether the act he goeth about, be just, or injust; and may informe himself, if he will; the doing is unlawfull. In like manner, he that supposeth himself injured, in a case determined by the written Law, which he may by himself, or others see and consider; if he complaine before he consults with the Law, he does unjustly, and bewrayeth a disposition rather to vex other men, than to demand his own right.

By Letters Patent, And Publique Seale

If the question be of Obedience to a publique Officer; To have seen his Commission, with the Publique Seale, and heard it read; or to have had the means to be informed of it, if a man would, is a sufficient Verification of his Authority. For every man is obliged to doe his best endeavour, to informe himself of all written Lawes, that may concerne his own future actions.

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Dislerentiam inter Literam et Sententiam ponere solent Scriptores. Literam, sive verba Legis per sc siimpta, iensiim literalem vocant; sed Legis Sententiam eam esle dicunt, quam intelligi voluit Legislator. Et rec~te quidem distinguunt. Legislator autem, quid per verba Legis intelligi voluit, unde cognoscitur? Ex eo cognoscitur, quod Legislator, (id est Persona Civitatis) femper intelligendus est veiie id, quod aequum est. Itaque si Sententiam aequam non siiggerant Verba ipsa, Leges Naturales consulendae simt; alioqui contra injuriamremediumhaberi non poslet; id quod esle contra voluntatem Legislatoris, supponendum est. Facultates in bono Legis Interprete, id est in bono Iudice, requisitae, eaedem non sunt, quae requiruntur in bono Patrono, vel Advocato, nempe ut Legum periti sint. Iudex enim, sicut de facto nisi a Testibus nihil intelligere debet; ita de Iure nihil constituere debet, nisi quod Leges scriptae et Civitatis Constitutiones ante definierint, quae Leges et Constitutiones palam allegantur, explicanturque coram ipso, in ipsa causae cognitione, unde ita instruitur Iudex, ut quanquam peritiam Legum valde mediocrem habeat, satis tamen instrudus esle posiit ad Sententiam serendam Iustitias et Aquitati consentaneam.

Quae bonum faciunt Iudicem haec siint; Primo ut Legem Naturae praecipuam, nempe <t/£quitatem in Controversis omnibus bene intelligat; id quod a multa Librorum lectione non dependet, sed a bonitatesacukatis Rationalis, &a cujusque Meditatione propria; quas illis adelse maxime praesumitur qui ad Scientiam iequi et Boni ingenio suo maxime seruntur, et maximura meditandi habuere otium. Secundo, ne dtvitiarum nimis cupidistnt. Tertio, ut in cansts cognoscendis posjint metum, iram, odium, amcrem, misericordiam exuere. Quarto, utpatienter audire possmt, dilioenttr animum advertere, c\u<& audiertt menmia rctwere, disponere et appttcare-, Divi-

Divisio Legum varia est, propter varias Scriptorum methodos. In Jushnum Institutionibus Legum genera enumerantur septem.

1. Editta, Constitutiones, Sz Epistou Principum, id est Imperatorum Romanorum,qui Summam habuere in Civitate Romana Potestatem. Similia his siint Edicta iive Proclamationes Regum nostrorum.

2.. Decreta Topu'i Romani quae Leges primum erant virtute residentis in Populo Summae Potestatis; quarum quae ab Imperatoribus abrogatae non fuerunt, Leges propter Authoritatem Imperialem remanlerunt. Hae autem cum Actis Parlamenti comparari posliint.

3. Decreta Tlebis Romana (Senatu excluso ->) Horum quoque illa; qux ab Imperatoribus abrogatse non sunt, Legum vim retinuere.

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The Interpretation Of The Law Dependeth On The Soveraign Power

The Legislator known; and the Lawes, either by writing, or by the light of Nature, sufficiently published; there wanteth yet another very materiall circumstance to make them obligatory. For it is not the Letter, but the Intendment, or Meaning; that is to say, the authentique Interpretation of the Law (which is the sense of the Legislator,) in which the nature of the Law consisteth; And therefore the Interpretation of all Lawes dependeth on the Authority Soveraign; and the Interpreters can be none but those, which the Soveraign, (to whom only the Subject oweth obedience) shall appoint. For else, by the craft of an Interpreter, the Law my be made to beare a sense, contrary to that of the Soveraign; by which means the Interpreter becomes the Legislator.

All Lawes Need Interpretation

All Laws, written, and unwritten, have need of Interpretation. The unwritten Law of Nature, though it be easy to such, as without partiality, and passion, make use of their naturall reason, and therefore leaves the violators thereof without excuse; yet considering there be very few, perhaps none, that in some cases are not blinded by self love, or some other passion, it is now become of all Laws the most obscure; and has consequently the greatest need of able Interpreters. The written Laws, if they be short, are easily mis-interpreted, from the divers significations of a word, or two; if long, they be more obscure by the diverse significations of many words: in so much as no written Law, delivered in few, or many words, can be well understood, without a perfect understanding of the finall causes, for which the Law was made; the knowledge of which finall causes is in the Legislator. To him therefore there can not be any knot in the Law, insoluble; either by finding out the ends, to undoe it by; or else by making what ends he will, (as Alexander did with his sword in the Gordian knot,) by the Legislative power; which no other Interpreter can doe.

The Authenticall Interpretation Of Law Is Not That Of Writers

The Interpretation of the Lawes of Nature, in a Common-wealth, dependeth not on the books of Morall Philosophy. The Authority of writers, without the Authority of the Common-wealth, maketh not their opinions Law, be they never so true. That which I have written in this Treatise, concerning the Morall Vertues, and of their necessity, for the procuring, and maintaining peace, though it bee evident Truth, is not therefore presently Law; but because in all Common-wealths in the world, it is part of the Civill Law: For though it be naturally reasonable; yet it is by the Soveraigne Power that it is Law: Otherwise, it were a great errour, to call the Lawes of Nature unwritten Law; whereof wee see so many volumes published, and in them so many contradictions of one another, and of themselves.

The Interpreter Of The Law Is The Judge Giving Sentence Vivâ Voce In Every Particular Case

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4. Scnatusconsulta. Nam cum numerosior jam faclus eslet Populus Romanus quam ut commode congregari potuerit, visiim Imperatori est, ut pro Populo consuleretur Senatus. Leges ergo erant quales sere sunt acta Consilii Regis privati.

s. Ediba Prxtorum. Qui Romae erant idem sere quod ludices Praecipui apud nos.

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The Interpretation of the Law of Nature, is the Sentence of the Judge constituted by the Soveraign Authority, to heare and determine such controversies, as depend thereon; and consisteth in the application of the Law to the present case. For in the act of Judicature, the Judge doth no more but consider, whither the demand of the party, be consonant to naturall reason, and Equity; and the Sentence he giveth, is therefore the Interpretation of the Law of Nature; which Interpretation is Authentique; not because it is his private Sentence; but because he giveth it by Authority of the Soveraign, whereby it becomes the Soveraigns Sentence; which is Law for that time, to the parties pleading.

The Sentence Of A Judge, Does Not Bind Him, Or Another Judge To Give Like Sentence In Like Cases Ever After

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6. Responsa Prudentum. Quae responsa erant sententia; Iuris-prudentum eorum quibus Authoritas de Lege consulentibus respondendi, ab Imperatore concesta est. Leges ergo erant.

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But because there is no Judge Subordinate, nor Soveraign, but may erre in a Judgement of Equity; if afterward in another like case he find it more consonant to Equity to give a contrary Sentence, he is obliged to doe it. No mans error becomes his own Law; nor obliges him to persist in it. Neither (for the same reason) becomes it a Law to other Judges, though sworn to follow it. For though a wrong Sentence given by authority of the Soveraign, if he know and allow it, in such Lawes as are mutable, be a constitution of a new Law, in cases, in which every little circumstance is the same; yet in Lawes immutable, such as are the Lawes of Nature, they are no Lawes to the same, or other Judges, in the like cases for ever after. Princes succeed one another; and one Judge passeth, another commeth; nay, Heaven and Earth shall passe; but not one title of the Law of Nature shall passe; for it is the Eternall Law of God. Therefore all the Sentences of precedent Judges that have ever been, cannot all together make a Law contrary to naturall Equity: Nor any Examples of former Judges, can warrant an unreasonable Sentence, or discharge the present Judge of the trouble of studying what is Equity (in the case he is to Judge,) from the principles of his own naturall reason. For example sake, ’Tis against the Law of Nature, To Punish The Innocent; and Innocent is he that acquitteth himselfe Judicially, and is acknowledged for Innocent by the Judge. Put the case now, that a man is accused of a capitall crime, and seeing the powers and malice of some enemy, and the frequent corruption and partiality of Judges, runneth away for feare of the event, and afterwards is taken, and brought to a legall triall, and maketh it sufficiently appear, he was not guilty of the crime, and being thereof acquitted, is neverthelesse condemned to lose his goods; this is a manifest condemnation of the Innocent. I say therefore, that there is no place in the world, where this can be an interpretation of a Law of Nature, or be made a Law by the Sentences of precedent Judges, that had done the same. For he that judged it first, judged unjustly; and no Injustice can be a pattern of Judgement to succeeding Judges. A written Law may forbid innocent men to fly, and they may be punished for flying: But that flying for feare of injury, should be taken for presumption of guilt, after a man is already absolved of the crime Judicially, is contrary to the nature of a Presumption, which hath no place after Judgement given. Yet this is set down by a great Lawyer for the common Law of England. "If a man," saith he, "that is Innocent, be accused of Felony, and for feare flyeth for the same; albeit he judicially acquitteth himselfe of the Felony; yet if it be found that he fled for the Felony, he shall notwithstanding his Innocency, Forfeit all his goods, chattels, debts, and duties. For as to the Forfeiture of them, the Law will admit no proofe against the Presumption in Law, grounded upon his flight." Here you see, An Innocent Man, Judicially Acquitted, Notwithstanding His Innocency, (when no written Law forbad him to fly) after his acquitall, Upon A Presumption In Law, condemned to lose all the goods he hath. If the Law ground upon his flight a Presumption of the fact, (which was Capitall,) the Sentence ought to have been Capitall: if the presumption were not of the Fact, for what then ought he to lose his goods? This therefore is no Law of England; nor is the condemnation grounded upon a Presumption of Law, but upon the Presumption of the Judges. It is also against Law, to say that no Proofe shall be admitted against a Presumption of Law. For all Judges, Soveraign and subordinate, if they refuse to heare Proofe, refuse to do Justice: for though the Sentence be Just, yet the Judges that condemn without hearing the Proofes offered, are Unjust Judges; and their Presumption is but

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7. Consuetudtnes denique mn-scripta Leges erant. Non tamen natura sua1, sed consensu tacito Imperatoris.

Divisio Legum alia est, in Naturales et Positivas. Naturales quaenam sint, dictumjam est, iŁternae sunt.

Tostiva sunt, quae ab seterno non fuerunt, sed voluntate Summarum Potestatum factae Leges.

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In like manner, when question is of the Meaning of written Lawes, he is not the Interpreter of them, that writeth a Commentary upon them. For Commentaries are commonly more subject to cavill, than the Text; and therefore need other Commentaries; and so there will be no end of such Interpretation. And therefore unlesse there be an Interpreter authorised by the Soveraign, from which the subordinate Judges are not to recede, the Interpreter can be no other than the ordinary Judges, in the some manner, as they are in cases of the unwritten Law; and their Sentences are to be taken by them that plead, for Lawes in that particular case; but not to bind other Judges, in like cases to give like judgements. For a Judge may erre in the Interpretation even of written Lawes; but no errour of a subordinate Judge, can change the Law, which is the generall Sentence of the Soveraigne.

The Difference Between The Letter And Sentence Of The Law

In written Lawes, men use to make a difference between the Letter, and the Sentence of the Law: And when by the Letter, is meant whatsoever can be gathered from the bare words, ’tis well distinguished. For the significations of almost all words, are either in themselves, or in the metaphoricall use of them, ambiguous; and may be drawn in argument, to make many senses; but there is onely one sense of the Law. But if by the Letter, be meant the Literall sense, then the Letter, and the Sentence or intention of the Law, is all one. For the literall sense is that, which the Legislator is alwayes supposed to be Equity: For it were a great contumely for a Judge to think otherwise of the Soveraigne. He ought therefore, if the Word of the Law doe not fully authorise a reasonable Sentence, to supply it with the Law of Nature; or if the case be difficult, to respit Judgement till he have received more ample authority. For Example, a written Law ordaineth, that he which is thrust out of his house by force, shall be restored by force: It happens that a man by negligence leaves his house empty, and returning is kept out by force, in which case there is no speciall Law ordained. It is evident, that this case is contained in the same Law: for else there is no remedy for him at all; which is to be supposed against the Intention of the Legislator. Again, the word of the Law, commandeth to Judge according to the Evidence: A man is accused falsly of a fact, which the Judge saw himself done by another; and not by him that is accused. In this case neither shall the Letter of the Law be followed to the condemnation of the Innocent, nor shall the Judge give Sentence against the evidence of the Witnesses; because the Letter of the Law is to the contrary: but procure of the Soveraign that another be made Judge, and himselfe Witnesse. So that the incommodity that follows the bare words of a written Law, may lead him to the Intention of the Law, whereby to interpret the same the better; though no Incommodity can warrant a Sentence against the Law. For every Judge of Right, and Wrong, is not Judge of what is Commodious, or Incommodious to the Common-wealth.

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Legum Positivarum aliae sunt Humanx, aliae Divinx. Humanarum aliae sunt Distnbutiv*, alias sosnales. Distributivae siint, quibus Iura Civium definiuntur 5 quaeque Civibus praescnbuntur universis.

Pcenales sunt quae poenas violatorihus Legum insligendas desi«iuntj quaeque Ministros quorum officiumest pcenas exequisolos alloquuntur, et cum Legibus Distribntivis conjunguntur.

Leges Positivae Divinae (Naturales enim omnes Di<'inae sunt) sunt illae, quae a Deo ipso positae sunt, (non ab aeterno nec universis hominibus sed popalo certo;) ut pro Divinis declaratae, per illos quibus Deus declarandi eas Authoritatem dedit.

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The Abilities Required In A Judge

The abilities required in a good Interpreter of the Law, that is to say, in a good Judge, are not the same with those of an Advocate; namely the study of the Lawes. For a Judge, as he ought to take notice of the Fact, from none but the Witnesses; so also he ought to take notice of the Law, from nothing but the Statutes, and Constitutions of the Soveraign, alledged in the pleading, or declared to him by some that have authority from the Soveraign Power to declare them; and need not take care before-hand, what hee shall Judge; for it shall bee given him what hee shall say concerning the Fact, by Witnesses; and what hee shall say in point of Law, from those that shall in their pleadings shew it, and by authority interpret it upon the place. The Lords of Parlament in England were Judges, and most difficult causes have been heard and determined by them; yet few of them were much versed in the study of the Lawes, and fewer had made profession of them: and though they consulted with Lawyers, that were appointed to be present there for that purpose; yet they alone had the authority of giving Sentence. In like manner, in the ordinary trialls of Right, Twelve men of the common People, are the Judges, and give Sentence, not onely of the Fact, but of the Right; and pronounce simply for the Complaynant, or for the Defendant; that is to say, are Judges not onely of the Fact, but also of the Right: and in a question of crime, not onely determine whether done, or not done; but also whether it be Murder, Homicide, Felony, Assault, and the like, which are determinations of Law: but because they are not supposed to know the Law of themselves, there is one that hath Authority to enforme them of it, in the particular case they are to Judge of. But yet if they judge not according to that he tells them, they are not subject thereby to any penalty; unlesse it be made appear, they did it against their consciences, or had been corrupted by reward. The things that make a good Judge, or good Interpreter of the Lawes, are, first A Right Understanding of that principall Law of Nature called Equity; which depending not on the reading of other mens Writings, but on the goodnesse of a mans own naturall Reason, and Meditation, is presumed to be in those most, that have had most leisure, and had the most inclination to meditate thereon. Secondly, Contempt Of Unnecessary Riches, and Preferments. Thirdly, To Be Able In Judgement To Devest Himselfe Of All Feare, Anger, Hatred, Love, And Compassion. Fourthly, and lastly, Patience To Heare; Diligent Attention In Hearing; And Memory To Retain, Digest And Apply What He Hath Heard.

Divisions Of Law

The difference and division of the Lawes, has been made in divers manners, according to the different methods, of those men that have written of them. For it is a thing that dependeth not on Nature, but on the scope of the Writer; and is subservient to every mans proper method. In the Institutions of Justinian, we find seven sorts of Civill Lawes.

1. The Edicts, Constitutions, and Epistles Of The Prince, that is, of the Emperour; because the whole power of the people was in him. Like these, are the Proclamations of the Kings of England.

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Authoritas autem declarandi Legesdivinas ita ut Obligatoriaesint, unde cognosci potest? Modoquidemsupernaturali, homini ahcui utleges Divinas aliis Praedicet Imperare potest Deus. Sed quia de Estentia Legis est, ut neminem obliget qui Praedicantis Autbonta- tem, quod a Deo sit, scire non potest, unde oritur obedienui obligatio? Quid Deus aliis dicat scire non poilumus naturaliter; neque iine Revelatione Divina nobis concesla, supernaturaliter. Quanquam enim a Deo Revelatum esle alicui aliquid credere inducatur aliquis, vel propter Miracula, qu«e ab eo facta esie viderit, vel propter egregiam Sanctitatem, velegregiamsapientiam, vel proprer egregiam selicitatem, quae omnia gratiae divinae signa sunt satis magna, certitudinem tamen non efficiunt? Miracula enim ex quo tempore nobis Christianis poiitaeiunt Leges Divinse, ceitaverunt. Miracula narrantibus credere non obligamur. Etiam ipsa Mjracula non omnibus Miracula sunt.

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2. The Decrees Of The Whole People Of Rome (comprehending the Senate,) when they were put to the Question by the Senate. These were Lawes, at first, by the vertue of the Soveraign Power residing in the people; and such of them as by the Emperours were not abrogated, remained Lawes by the Authority Imperiall. For all Lawes that bind, are understood to be Lawes by his authority that has power to repeale them. Somewhat like to these Lawes, are the Acts of Parliament in England.

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Caeterum ut Divina Supernaturalia Praedicantibus obedire aliquando, et alicubi debeamus, cauia in promptu est; Nempe si ea quae Praedicant pro Legibus habcri juiterit Civitas. Est enim de Lege Naturali, quae Divina etiam est, ut in iis omnibus quae juslerit Civitas, Civitati obediamus, quanquam non, ut credamus. Credere enim animi aclus est, non a Deojuitus sed faclus, quemquando& quibus vult, Deus dat negatque j etc. Non credere, Legum Divinarum Positivarum, Ncgatio, uon Transgreisio est. Paclum. quod modo supernaturali cum Abrahamo Pactus est Deus taleest: Scedtu meum ir.ter me et te et femen tuum posl te, qucd servabuis hocesi. Semini Abrahami nondum existenti Padum hoc revelatum eile non potuit. Quare ergo pro Lege Divina habere obligati fuerunt Israelitae, id quod pro Lege divina ab Abrahamo declaratum est, nisi quia in filios et iervos suos summam habuerit Abrahamus Potestatem? Rursus ubi Deus de Abrahamo loquens(Gen. 18. 18.) Ineo, dicit, benedicend<e sunt omnes gentes terra. Nam agnovi ettm, ut quum prxceperit filiissnis (3 familiee suoe post se, etiam observent vlam lehowe, etc.. Manisestum est obedientiam Abrahamo a familia iua debitam dependisle ab obedientia ante ipsi debita ut Summam habenti in ipsos filios et servos suos Potestatera. Nulla enim Sarailiae facta est Revelatio Divina. In inontem Sinai ad Deum ascendit iblus Moses j populus ne aicenderet vecitusestne moreretur. Obligabatur tamen. Cur? quiaipsi Mosi promiilerant facere omnia quae imperaret, dixerantque loquere tu nobiscum et audiemus; sed ne loquatur nobiscum Deus, ut non moriamur. Ex quibus duobus locis, satis constat, ln omni Civitate, Civem cui non iit facta Divinae voluntatis Revelatio certa et immediata, debere pro voluniare Divina, Legibus obedire Civitatis. Nam si pro mandatis Dei, sua vel privatorumhominumquoru rncunquesomnia, et Phantasmata Cives sumerent, vix duo eslent, gui de mandatis Dei in- ter se non dislentirent, imo etiam Mandata Civitatis non contemnerent. Dico ergo, in rebus omnibus Legi Morali, id est Legi Naturae non contrariis, Cives omnes obligari ut pro Lege Divinahabeant, quicquid a Lege Civili pro Lege Divina declaratur. Manisestum enim est, id quod non est contra Legem Naturalem, sieri poste a Summa Potestate Legem Civilem. Neque in ulla parteorbis Terrarum permislum est, aut fuit Civibus Mandata Divina alia factis fuis praetendere, praeter ea, quae a Civitate approbantur. Et ut Civitates Christianae, deficientes a Religione Christiana, ita Civitates non Christianae, a Religiohe sua deficientes puniri solent.

Distinxerunt Leges alii, in Stsndamentales, et non Sttndmmentales. Sttndamentalis in unaquaque Civitate illa est, qua sublata Civitas dissolvitur. Lex autem unica Sttndamentalis est, ut singuli Cives Personae Civitatis, id est Summam habenti Potestatem obedientiam prastent. Nam ea sublata, Civitas nulla est j ea stante Civitas manet. De Divisione Legum tantum esto.

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3. The Decrees Of The Common People (excluding the Senate,) when they were put to the question by the Tribune of the people. For such of them as were not abrogated by the Emperours, remained Lawes by the Authority Imperiall. Like to these, were the Orders of the House of Commons in England.

4. Senatus Consulta, the Orders Of The Senate; because when the people of Rome grew so numerous, as it was inconvenient to assemble them; it was thought fit by the Emperour, that men should Consult the Senate in stead of the people: And these have some resemblance with the Acts of Counsell.

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Invenio voces Legem Civilem, et Im Civile a Scriptoribus promiscue usurpatas esse,• quod sieri non debet. Ius enim Ltbertat est, id est a Legibus Civilibus exemptio. Contra, Lex Civilis Obltgatio est, Libertatem a Natura datam tollens aut restringens. Pernaturam enim unicuique Im erat viribus et facultatibus siiis, fui ipsius arbitrio utendi; id quod Lex Civilis, nisi quibus Legis Civilis protedionera tutum non erat expedare, sustulit.

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5. The Edicts Of Praetors, and (in some Cases) of the Aediles: such as are the Chiefe Justices in the Courts of England.

6. Responsa Prudentum; which were the Sentences, and Opinions of those Lawyers, to whom the Emperour gave Authority to interpret the Law, and to give answer to such as in matter of Law demanded their advice; which Answers, the Judges in giving Judgement were obliged by the Constitutions of the Emperour to observe; And should be like the Reports of Cases Judged, if other Judges be by the Law of England bound to observe them. For the Judges of the Common Law of England, are not properly Judges, but Juris Consulti; of whom the Judges, who are either the Lords, or Twelve men of the Country, are in point of Law to ask advice.

7. Also, Unwritten Customes, (which in their own nature are an imitation of Law,) by the tacite consent of the Emperour, in case they be not contrary to the Law of Nature, are very Lawes.

Another division of Lawes, is into Naturall and Positive. Naturall are those which have been Lawes from all Eternity; and are called not onely Naturall, but also Morall Lawes; consisting in the Morall Vertues, as Justice, Equity, and all habits of the mind that conduce to Peace, and Charity; of which I have already spoken in the fourteenth and fifteenth Chapters.

Positive, are those which have not been for Eternity; but have been made Lawes by the Will of those that have had the Soveraign Power over others; and are either written, or made known to men, by some other argument of the Will of their Legislator.

Another Division Of Law

Again, of Positive Lawes some are Humane, some Divine; And of Humane positive lawes, some are Distributive, some Penal. Distributive are those that determine the Rights of the Subjects, declaring to every man what it is, by which he acquireth and holdeth a propriety in lands, or goods, and a right or liberty of action; and these speak to all the Subjects. Penal are those, which declare, what Penalty shall be inflicted on those that violate the Law; and speak to the Ministers and Officers ordained for execution. For though every one ought to be informed of the Punishments ordained beforehand for their transgression; neverthelesse the Command is not addressed to the Delinquent, (who cannot be supposed will faithfully punish himselfe,) but to publique Ministers appointed to see the Penalty executed. And these Penal Lawes are for the most part written together with the Lawes Distributive; and are sometimes called Judgements. For all Lawes are generall judgements, or Sentences of the Legislator; as also every particular Judgement, is a Law to him, whose case is Judged.

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Divine Positive Law How Made Known To Be Law

Divine Positive Lawes (for Naturall Lawes being Eternall, and Universall, are all Divine,) are those, which being the Commandements of God, (not from all Eternity, nor universally addressed to all men, but onely to a certain people, or to certain persons,) are declared for such, by those whom God hath authorised to declare them. But this Authority of man to declare what be these Positive Lawes of God, how can it be known? God may command a man by a supernaturall way, to deliver Lawes to other men. But because it is of the essence of Law, that he who is to be obliged, be assured of the Authority of him that declareth it, which we cannot naturally take notice to be from God, How Can A Man Without Supernaturall Revelation Be Assured Of The Revelation Received By The Declarer? and How Can He Be Bound To Obey Them? For the first question, how a man can be assured of the Revelation of another, without a Revelation particularly to himselfe, it is evidently impossible: for though a man may be induced to believe such Revelation, from the Miracles they see him doe, or from seeing the Extraordinary sanctity of his life, or from seeing the Extraordinary wisedome, or Extraordinary felicity of his Actions, all which are marks of Gods extraordinary favour; yet they are not assured evidence of speciall Revelation. Miracles are Marvellous workes: but that which is marvellous to one, may not be so to another. Sanctity may be feigned; and the visible felicities of this world, are most often the work of God by Naturall, and ordinary causes. And therefore no man can infallibly know by naturall reason, that another has had a supernaturall revelation of Gods will; but only a beliefe; every one (as the signs thereof shall appear greater, or lesser) a firmer, or a weaker belief.

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But for the second, how he can be bound to obey them; it is not so hard. For if the Law declared, be not against the Law of Nature (which is undoubtedly Gods Law) and he undertake to obey it, he is bound by his own act; bound I say to obey it, but not bound to believe it: for mens beliefe, and interiour cogitations, are not subject to the commands, but only to the operation of God, ordinary, or extraordinary. Faith of Supernaturall Law, is not a fulfilling, but only an assenting to the same; and not a duty that we exhibite to God, but a gift which God freely giveth to whom he pleaseth; as also Unbelief is not a breach of any of his Lawes; but a rejection of them all, except the Lawes Naturall. But this that I say, will be made yet cleerer, by the Examples, and Testimonies concerning this point in holy Scripture. The Covenant God made with Abraham (in a Supernaturall Manner) was thus, (Gen. 17. 10) "This is the Covenant which thou shalt observe between Me and Thee and thy Seed after thee." Abrahams Seed had not this revelation, nor were yet in being; yet they are a party to the Covenant, and bound to obey what Abraham should declare to them for Gods Law; which they could not be, but in vertue of the obedience they owed to their Parents; who (if they be Subject to no other earthly power, as here in the case of Abraham) have Soveraign power over their children, and servants. Againe, where God saith to Abraham, "In thee shall all Nations of the earth be blessed: For I know thou wilt command thy children, and thy house after thee to keep the way of the Lord, and to observe Righteousnesse and Judgement," it is manifest, the obedience of his Family, who had no Revelation, depended on their former obligation to obey their Soveraign. At Mount Sinai Moses only went up to God; the people were forbidden to approach on paine of death; yet were they bound to obey all that Moses declared to them for Gods Law. Upon what ground, but on this submission of their own, "Speak thou to us, and we will heare thee; but let not God speak to us, lest we dye?" By which two places it sufficiently appeareth, that in a Common-wealth, a subject that has no certain and assured Revelation particularly to himself concerning the Will of God, is to obey for such, the Command of the Common-wealth: for if men were at liberty, to take for Gods Commandements, their own dreams, and fancies, or the dreams and fancies of private men; scarce two men would agree upon what is Gods Commandement; and yet in respect of them, every man would despise the Commandements of the Common-wealth. I conclude therefore, that in all things not contrary to the Morall Law, (that is to say, to the Law of Nature,) all Subjects are bound to obey that for divine Law, which is declared to be so, by the Lawes of the Common-wealth. Which also is evident to any mans reason; for whatsoever is not against the Law of Nature, may be made Law in the name of them that have the Soveraign power; and there is no reason men should be the lesse obliged by it, when tis propounded in the name of God. Besides, there is no place in the world where men are permitted to pretend other Commandements of God, than are declared for such by the Common-wealth. Christian States punish those that revolt from Christian Religion, and all other States, those that set up any Religion by them forbidden. For in whatsoever is not regulated by the Common-wealth, tis Equity (which is the Law of Nature, and therefore an eternall Law of God) that every man equally enjoy his liberty.

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Another Division Of Lawes

There is also another distinction of Laws, into Fundamentall, and Not Fundamentall: but I could never see in any Author, what a Fundamentall Law signifieth. Neverthelesse one may very reasonably distinguish Laws in that manner.

A Fundamentall Law What

For a Fundamentall Law in every Common-wealth is that, which being taken away, the Common-wealth faileth, and is utterly dissolved; as a building whose Foundation is destroyed. And therefore a Fundamentall Law is that, by which Subjects are bound to uphold whatsoever power is given to the Soveraign, whether a Monarch, or a Soveraign Assembly, without which the Common-wealth cannot stand, such as is the power of War and Peace, of Judicature, of Election of Officers, and of doing whatsoever he shall think necessary for the Publique good. Not Fundamentall is that the abrogating whereof, draweth not with it the dissolution of the Common-Wealth; such as are the Lawes Concerning Controversies between subject and subject. Thus much of the Division of Lawes.

Difference Between Law And Right

I find the words Lex Civilis, and Jus Civile, that is to say, Law and Right Civil, promiscuously used for the same thing, even in the most learned Authors; which neverthelesse ought not to be so. For Right is Liberty, namely that Liberty which the Civil Law leaves us: But Civill Law is an Obligation; and takes from us the Liberty which the Law of Nature gave us. Nature gave a Right to every man to secure himselfe by his own strength, and to invade a suspected neighbour, by way of prevention; but the Civill Law takes away that Liberty, in all cases where the protection of the Lawe may be safely stayd for. Insomuch as Lex and Jus, are as different as Obligation and Liberty.

And Between A Law And A Charter

Likewise Lawes and Charters are taken promiscuously for the same thing. Yet Charters are Donations of the Soveraign; and not Lawes, but exemptions from Law. The phrase of a Law is Jubeo, Injungo, I Command, and Enjoyn: the phrase of a Charter is Dedi, Concessi, I Have Given, I Have Granted: but what is given or granted, to a man, is not forced upon him, by a Law. A Law may be made to bind All the Subjects of a Common-wealth: a Liberty, or Charter is only to One man, or some One part of the people. For to say all the people of a Common-wealth, have Liberty in any case whatsoever; is to say, that in such case, there hath been no Law made; or else having been made, is now abrogated.

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LATINE · 1668

CAPVT XXVII — De Criminibus, Excusationibus, et Extenuationibus

CHAPTER XXVII — Of Crimes, Excuses, and Extenuations

In Transgressione Legis non modo Peccatum inest, sed etiam Legislatoris contemptio aliqua, qua; Legum ejus simul omnium instar violationis habita est. Peccatum ergo est, non solum quod sadum, didum, aut neglectum est contra Legem, sed etiam ipsa transgrediendi Intentio, sive propositum. Si quis tamen Bona, Servos, Uxorem videns proxirai fui, frui illis, cura deledatione imaginatus tantum fuerit absque omni intentione vel consilio per fraudem aut vim ea occupandi, Peccatum non est, neque Prascepti Non concupisces violatio. Neque Voluptas quam quis habere potest dum inimici, et quo vivente nihil expedat nisi malum, mortem imaginatur, vel sonvniat, modo nihil contra illum moliatur, Peccatum est. Nam Iucundi etiam imaginatione deledari ita homini naturale est, ut Lex quae id Levtat. t t t prohi-

1 3 8 De Civitate. Cap. ij.

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CHAPTER XXVII — Of Crimes, Excuses, and Extenuations

CAPVT XXVII — De Criminibus, Excusationibus, et Extenuationibus

Sinne What

A Sinne, is not onely a Transgression of a Law, but also any Contempt of the Legislator. For such Contempt, is a breach of all his Lawes at once. And therefore may consist, not onely in the Commission of a Fact, or in the Speaking of Words by the Lawes forbidden, or in the Omission of what the Law commandeth, but also in the Intention, or purpose to transgresse. For the purpose to breake the Law, is some degree of Contempt of him, to whom it belongeth to see it executed. To be delighted in the Imagination onely, of being possessed of another mans goods, servants, or wife, without any intention to take them from him by force, or fraud, is no breach of the Law, that sayth, "Thou shalt not covet:" nor is the pleasure a man my have in imagining, or dreaming of the death of him, from whose life he expecteth nothing but dammage, and displeasure, a Sinne; but the resolving to put some Act in execution, that tendeth thereto. For to be pleased in the fiction of that, which would please a man if it were reall, is a Passion so adhaerent to the Nature both of a man, and every other living creature, as to make it a Sinne, were to make Sinne of being a man. The consideration of this, has made me think them too severe, both to themselves, and others, that maintain, that the First motions of the mind, (though checked with the fear of God) be Sinnes. But I confesse it is safer to erre on that hand, than on the other.

A Crime What

A Crime, is a sinne, consisting in the Committing (by Deed, or Word) of that which the Law forbiddeth, or the Omission of what it hath commanded. So that every Crime is a sinne; but not every sinne a Crime. To intend to steale, or kill, is a sinne, though it never appeare in Word, or Fact: for God that seeth the thoughts of man, can lay it to his charge: but till it appear by some thing done, or said, by which the intention may be Crime; which distinction the Greeks observed in the word amartema, and egklema, or aitia; wherof the former, (which is translated Sinne,) signifieth any swarving from the Law whatsoever; but the two later, (which are translated Crime,) signifie that sinne onely, whereof one man may accuse another. But of Intentions, which never appear by any outward act, there is no place for humane accusation. In like manner the Latines by Peccatum, which is Sinne, signifie all manner of deviation from the Law; but by crimen, (which word they derive from Cerno, which signifies to perceive,) they mean onely such sinnes, as my be made appear before a Judge; and therfore are not meer Intentions.

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prohiberet, etiam Homsnem eite prohiberet. Sententia igimr eorum qui Mouu ariimi/jr/woj peccata esle ajunt, tnm aliis tum sibimetipsis nimium severa mihi videtur. Magnum enim est,si homo existens malum facere quo delectatur ne quidem velit. Aliud enim est Imaginantem delectari; aliud velie.

Crimen omne Peccatum quidem est; ut quae sit Legis alicujus violatio. Non autem vicissim omne peccatum Crimen est. Velle occidere vel surari peccatum est, etiamsi neque facto neque dicto voluntas occidendi vel surandi patesiat. Namadeo, qui consilia hominum intuetur, Reus siet. Sed ab hominibus conlilium hominis nequedidoneque sadto cognitum accusari non potest. Nequeergo Crimen vocari solet. Peccatum ergo et Crimen distinguuntur, eo quod Peccatum est Legis transgreslio quaelibet; Crimen autera transgrcjsio easola, qn& coram Indice hominejtidicaripotesl, sive, cujm Homohomtneminstmptlareyotesl. Quanquam ergo Intentio male agendi Teccatttm sit, si tamen signo nullo innotescat, Crimen non est.

Ubi Lex non est, Peccatum non est. Sed quia Lex Naturae aeterna est, transgressio ejus Peccatum femper erit. Ceslantibus Legibus Civihbus cestant Crimina. Nulla enim praeter Naturales existente Lege, unusquisquesuiipsius Iudex est, et sola fui ipsius conscientia judicatur. Cestante Potestate Civili, cestant Crimina; Iustum et Injustum, propter Ius omnium in omnia, nihil est. Verum si Civitas per seditionem disloluta fuerit, Crimen in dissolventibus permanet; quia ab initio quod secerunt Crimen erat; et a Civitate restituta Iudicari et puniri potest.

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Where No Civill Law Is, There Is No Crime

From this relation of Sinne to the Law, and of Crime to the Civill Law, may be inferred, First, that where Law ceaseth, Sinne ceaseth. But because the Law of Nature is eternall, Violation of Covenants, Ingratitude, Arrogance, and all Facts contrary to any Morall vertue, can never cease to be Sinne. Secondly, that the Civill Law ceasing, Crimes cease: for there being no other Law remaining, but that of Nature, there is no place for Accusation; every man being his own Judge, and accused onely by his own Conscience, and cleared by the Uprightnesse of his own Intention. When therefore his Intention is Right, his fact is no Sinne: if otherwise, his fact is Sinne; but not Crime. Thirdly, That when the Soveraign Power ceaseth, Crime also ceaseth: for where there is no such Power, there is no protection to be had from the Law; and therefore every one may protect himself by his own power: for no man in the Institution of Soveraign Power can be supposed to give away the Right of preserving his own body; for the safety whereof all Soveraignty was ordained. But this is to be understood onely of those, that have not themselves contributed to the taking away of the Power that protected them: for that was a Crime from the beginning.

Ignorance Of The Law Of Nature Excuseth No Man

The source of every Crime, is some defect of the Understanding; or some errour in Reasoning, or some sudden force of the Passions. Defect in the Understanding, is Ignorance; in Reasoning, Erroneous Opinion. Again, ignorance is of three sort; of the Law, and of the Soveraign, and of the Penalty. Ignorance of the Law of Nature Excuseth no man; because every man that hath attained to the use of Reason, is supposed to know, he ought not to do to another, what he would not have done to himselfe. Therefore into what place soever a man shall come, if he do any thing contrary to that Law, it is a Crime. If a man come from the Indies hither, and perswade men here to receive a new Religion, or teach them any thing that tendeth to disobedience of the Lawes of this Country, though he be never so well perswaded of the truth of what he teacheth, he commits a Crime, and may be justly punished for the same, not onely because his doctrine is false, but also because he does that which he would not approve in another, namely, that comming from hence, he should endeavour to alter the Religion there. But ignorance of the Civill Law, shall Excuse a man in a strange Country, till it be declared to him; because, till then no Civill Law is binding.

Ignorance Of The Civill Law Excuseth Sometimes

In the like manner, if the Civill Law of a mans own Country, be not so sufficiently declared, as he may know it if he will; nor the Action against the Law of Nature; the Ignorance is a good Excuse: In other cases ignorance of the Civill Law, Excuseth not.

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Criminaa tribus maxime causisoriuntur; vitio intellectus, quas est Ignorantia; Imperitia ratiocinandi, id est errore; etc. vi Passionum. Ignorantia autem est vel Legis, vel Legislatoris, vel Pcenae. Ignorantia Legum Naturalium excusat neminem; illi enim, qui Rationis Naturalis usum aslequutus est, Leges Naturales quaenam sint, cognitum esse praeslimitur.; nimirum alterisackndnm non essc, quodsibi sabum esse nollet. Ubicunque ergo aliquis fuerit, si Legem loci ignorans violaverit, sine Crimine non erit. Exempli causa si quis ad nos ab Indis adveniens, Religionem suam nostrae contrariam praedicaret, quaestio de Veritate Dcctrinae nulla sieret; sed quod nostram violaverit Legem pro Crimine habebitur, et juxta Statutas Lege.pcenas punietur. Nam et is concivium luorum animos novis Religionibus sollicitari non aequo animo ferret.

Si qui Civitatis suae Legem, quae non satis promulgata fuerit violaverit, nec secerit aliquid contra Legem Naturalem, ab Ignorantia «xcusabitur. Si

Si quis loci in quo versatnr imperium cui sit ignorans, Civitatis Authoritati resistat, non excusabitur; quia a quo Protectionem aliquamdiu acceperat ignorare non debuit.

Ignorantia Pcena? excusat neminem. Cognita enim Lege,cognitoque quod Crimini Pcena debetur etii ignota, aliqua j qui Crimen committit, pcenae etiam ignotae obnoxium se facit volens. Rationis enim est, ut qui arbitrio suo injuriam terminat, pcenas det terminatas arbitrio Civitatis.

Ubi vero Lege vel Consuetudine pcena limitatur, ubi majoris pcenae inslictio iniqua est. Nam poena, quae major est, quam ut a Crimine deterreat, ad Crimen hortatur. Comparantes enim, quod in Crimine Iucundum, cum eo, quod in pcena Molestum est, id quod sibi optimum esle putant neceitario eligunt. Itaque qui pcenas Iuunt, majores quam quaslex praescripserat, a Lege ipsa quasi Crimen suadente, decepti sunt.

Quod ante Legem latam faclium est, Crimen per Legem illara sieri nequit. Ante Leges Naturas asternas factum nihil est. Lex autem post Factum lata, quia cognosci non potuit, obligatoria non est. Quod autem contra Legem sit jam latam sine pcena definita, pcena qus post definietur, nisi solita major sit, obnoxius siet propter caulam modo supra allegatam.

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Ignorance Of The Soveraign Excuseth Not

Ignorance of the Soveraign Power, in the place of a mans ordinary residence, Excuseth him not; because he ought to take notice of the Power, by which he hath been protected there.

Ignorance Of The Penalty Excuseth Not

Ignorance of the Penalty, where the Law is declared, Excuseth no man: For in breaking the Law, which without a fear of penalty to follow, were not a Law, but vain words, he undergoeth the penalty, though he know not what it is; because, whosoever voluntarily doth any action, accepteth all the known consequences of it; but Punishment is a known consequence of the violation of the Lawes, in every Common-wealth; which punishment, if it be determined already by the Law, he is subject to that; if not, then is he subject to Arbitrary punishment. For it is reason, that he which does Injury, without other limitation than that of his own Will, should suffer punishment without other limitation, than that of his Will whose Law is thereby violated.

Punishments Declared Before The Fact, Excuse From Greater Punishments After It

But when a penalty, is either annexed to the Crime in the Law it selfe, or hath been usually inflicted in the like cases; there the Delinquent is Excused from a greater penalty. For the punishment foreknown, if not great enough to deterre men from the action, is an invitement to it: because when men compare the benefit of their Injustice, with the harm of their punishment, by necessity of Nature they choose that which appeareth best for themselves; and therefore when they are punished more than the Law had formerly determined, or more than others were punished for the same Crime; it the Law that tempted, and deceiveth them.

Nothing Can Be Made A Crime By A Law Made After The Fact

No Law, made after a Fact done, can make it a Crime: because if the Fact be against the Law of Nature, the Law was before the Fact; and a Positive Law cannot be taken notice of, before it be made; and therefore cannot be Obligatory. But when the Law that forbiddeth a Fact, is made before the Fact be done; yet he that doth the Fact, is lyable to the Penalty ordained after, in case no lesser Penalty were made known before, neither by Writing, nor by Example, for the reason immediatly before alledged.

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Ab errore nascuntur Crimina hominum, quibus illudunt aut falsa Principia, aut falsa Legum interpretatio, aut a veris Principiis falsa Ratiocinatio. Qui ad consuetudinem hominum animum adverterunt Virtutes et Crimina prosperis vel adversis successibus metientium, videntiumque Leges a potentibus perrnmpi, quibus vulgus implicatur, ut Leges parvi pendantdifficilenon est; et propterea plures esle solent qui vitio Legum, quam vitio hominum id sieri arbitrantur. Quorum nonnulli quasi Axiomata quxdam pronuntiant, Justitiam pyater Vocabnlum nihuesse. Suum ejse cuicjue, quoa industria, aut pericu!osuo occupat, et tenet. Cohsuetudinem in omni gente obtinentem, imquam ejse non posse. Exempla longi temporis pro Legtbw habenda esse, aliaque his similia, vitam hominum ad seritatem et caedes mutuas reducentium. Eorum qui sic sentiunt, quis nisi meta a quantumvis magno Crimine se abstinebit.

Secundo, qui Leges Divinas tum Naturales tum Positivas, ad commoda sua torquentes, ita interpretantur, ut cum Legibus Civilibus, et populi tranquillitate non consistant, Civibus ab Principibus fuis resistendum colorem pranextumque perpetuo prasbent, vel a Religione, vel a Iure Naturali, vel Civili.

1 1 1 2 Tertio,

Tertio, a raala ratiocinatione quanquam et veris Principiis,nascuntur Crimina, quando qui in doctrinis Fidei recte sentiunt, in diversa lentientes, eo nomine saeviunt, quod errant, saevitiam siiam zelum Dei nominantes. Quorum hominum aliquem libenter sic compellarem. Errant,esto; sed quid ad te >Populum corrumpunt; Quid hoc ad te cui salus Populi non committitur, sedregi? Sed ad rr.e fut> Rege. Doceergo. Doceo sed frustra. Ergo persunctus officio,docere definens accusa; nam quaecunque ulterius saeviens seceris Crimina sunt.

Paslionum quas Crimina potentislimesuadent, sunt Ira, Avarhia, caeteraeque cupiditates vehementiores, sed non sine Spe. Nemo enira eujuscunque boni causa Crimen committeret, cujus potiundi spem haberet nullam. Faciunt autem Spem, Divitiae, Potentia Amicorum, Aura popularis, et Essugia quaecunque. Iudices et Tcstes corrumpuntur a Divitiis. Pcenam Amici deprecantur; etiam aliquando Reum per vim eripiunt. Savor Populi impunitatis spem a multituneostendit, quam puniri sine multo sanguine difficile est, nec Civitati ut puniantur femper expedit. Amor et Admiratio Sapientiae propriae, quia plausum a multitudine hujusmodi homines expectare solent, facit ut temere loquantur de Statu et Regimine Civitatis, et Religionis publicae, id quod per se Crimen magnum, et magnarum seditionum causa frequentissima est. Quibus autem nec Divitiae sunt, nec Authoritas, nec Gratia Popularis, Spem impunitatis prasterquam in latebris, aut sugae oportunitatibus, nullum habent. Initium quidem scelerum omniuma cupiditatibus esle manisestum est 5 sed nisi impunitatis antecedat Spes, nunquam sere ad finem perducuntur.

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False Principles Of Right And Wrong Causes Of Crime

From defect in Reasoning, (that is to say, from Errour,) men are prone to violate the Lawes, three wayes. First, by Presumption of false Principles; as when men from having observed how in all places, and in all ages, unjust Actions have been authorised, by the force, and victories of those who have committed them; and that potent men, breaking through the Cob-web Lawes of their Country, the weaker sort, and those that have failed in their Enterprises, have been esteemed the onely Criminals; have thereupon taken for Principles, and grounds of their Reasoning, "That Justice is but a vain word: That whatsoever a man can get by his own Industry, and hazard, is his own: That the Practice of all Nations cannot be unjust: That examples of former times are good Arguments of doing the like again;" and many more of that kind: Which being granted, no Act in it selfe can be a Crime, but must be made so (not by the Law, but) by the successe of them that commit it; and the same Fact be vertuous, or vicious, as Fortune pleaseth; so that what Marius makes a Crime, Sylla shall make meritorious, and Caesar (the same Lawes standing) turn again into a Crime, to the perpetuall disturbance of the Peace of the Common-wealth.

False Teachers Mis-interpreting The Law Of Nature Secondly, by false Teachers, that either mis-interpret the Law of Nature, making it thereby repugnant to the Law Civill; or by teaching for Lawes, such Doctrines of their own, or Traditions of former times, as are inconsistent with the duty of a Subject.

And False Inferences From True Principles, By Teachers

Thirdly, by Erroneous Inferences from True Principles; which happens commonly to men that are hasty, and praecipitate in concluding, and resolving what to do; such as are they, that have both a great opinion of their own understanding, and believe that things of this nature require not time and study, but onely common experience, and a good naturall wit; whereof no man thinks himselfe unprovided: whereas the knowledge, of Right and Wrong, which is no lesse difficult, there is no man will pretend to, without great and long study. And of those defects in Reasoning, there is none that can Excuse (though some of them may Extenuate) a Crime, in any man, that pretendeth to the administration of his own private businesse; much lesse in them that undertake a publique charge; because they pretend to the Reason, upon the want whereof they would ground their Excuse.

By Their Passions;

Of the Passions that most frequently are the causes of Crime, one, is Vain-glory, or a foolish over-rating of their own worth; as if difference of worth, were an effect of their wit, or riches, or bloud, or some other naturall quality, not depending on the Will of those that have the Soveraign Authority. From whence proceedeth a Presumption that the punishments ordained by the Lawes, and extended generally to all Subjects, ought not to be inflicted on them, with the same rigour they are inflicted on poore, obscure, and simple men, comprehended under the name of the Vulgar.

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Paslionum autem omnium innocentissimus est Metus 3 imo solus est qui homines omnes (paucis exceptis qui excelsiore animosunt, quam ut velint debere aliquid Injustitiae) a Criminibus committendis prohibet. Aliquando tamen in Crimen inducit etiam Metw.

Actionem enim non omnis excusat Metus, sed corpori tantum suo metuentis; cujus desendendi Ius unicuique naturale femper manet. Attamen si quis se ab inimico suo nondum aggrediente, intersici aliquando Metuens, Metusque fui justislimam causam habens, ipsum occupans intersiciat, Crimen erit; nec Metu, sed odio secisse judicabitur; propterea quod protegi, si expectastet, potuit a Civitate. Sed si illum aggredientem occidistet, Crimen non fuislet; quia auxilium a Legibus expecliari non potuit. Civis a Cive verba audit plenacontumeliae, quae nulla tamen Lege lata puniuntur; metuensque, nisi armis vindicet, pro homine haberi timido, ad arma provocat et illum inter- intersicit, Crimen est; nec Metu ejusmodi excusabitur. Quare > Quia Civitas verba Publica, id est Leges, apud Cives plus valere vult, quam verba hominis singularis; cujus verbis pcenam constituere ideo neglexit, quia eosqui ne verba quidem tolerare postunt, pro mollislimis omnium hominum habet Civitas. Crimina ne Metus quidem Dei excusat. multo minus Metus earum rerum, qua? sub nomine Spirttuum formidabiles multis siunt, quales habentur Lemures, Aniraas monnorum, aliaque Phantasmata dormientium vel dormitantium hominum Superstitiosorum. Crimen enim omne Injustum est; ideoque non qui Crimen facit, sed qui sugit, Deo placet. Itaque metuendum a Deo hominibus justis nihil est, quicquid illis comminentur quidam sub prastextu Religionis a vi Spirituum.

Ab his Criminum sontibus diversis manisestum est, falsum edc quod tenuerunt olim Stoici, Peccata omnia este asqualia. Est enim non solum Excusitiom locus aliquando, ubi quod Crimen videbatur, recte faclrum esie ostenditur y sed etiam Exnmationi i, qua Crimen quod videbatur magnum, apparet minus. Quanquam enim Crimina omniaaequaliter Injusta appellantur, quemadmodum omnis a rectitudine deviatio vocatur curvitas; non tamen sequitur inde omnia Crimina esle asqualiter Injusta, magis quam omnia curva ajquahter esle curva.

Id quod sadum aliquod plane Excusat, naturamque Criminis ipsam tollit, nihil esle potest praster id, quod Legis obligationera simul tollit. Quod enim contr3 Legem femel commistum est, in eo qui ad Legem servandara obligatur, neceslarib Crimen est.

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Presumption Of Riches

Therefore it happeneth commonly, that such as value themselves by the greatnesse of their wealth, adventure on Crimes, upon hope of escaping punishment, by corrupting publique Justice, or obtaining Pardon by Mony, or other rewards.

And Friends

And that such as have multitude of Potent Kindred; and popular men, that have gained reputation amongst the Multitude, take courage to violate the Lawes, from a hope of oppressing the Power, to whom it belongeth to put them in execution.

Wisedome

And that such as have a great, and false opinion of their own Wisedome, take upon them to reprehend the actions, and call in question the Authority of them that govern, and so to unsettle the Lawes with their publique discourse, as that nothing shall be a Crime, but what their own designes require should be so. It happeneth also to the same men, to be prone to all such Crimes, as consist in Craft, and in deceiving of their Neighbours; because they think their designes are too subtile to be perceived. These I say are effects of a false presumption of their own Wisdome. For of them that are the first movers in the disturbance of Common-wealth, (which can never happen without a Civill Warre,) very few are left alive long enough, to see their new Designes established: so that the benefit of their Crimes, redoundeth to Posterity, and such as would least have wished it: which argues they were not as wise, as they thought they were. And those that deceive upon hope of not being observed, do commonly deceive themselves, (the darknesse in which they believe they lye hidden, being nothing else but their own blindnesse;) and are no wiser than Children, that think all hid, by hiding their own eyes.

And generally all vain-glorious men, (unlesse they be withall timorous,) are subject to Anger; as being more prone than others to interpret for contempt, the ordinary liberty of conversation: And there are few Crimes that may not be produced by Anger.

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Legem cognoscere non potuisle totaliter excusat. Illi enim Lex nondumest.

Qui Bello captus, vel in manibus hostium utcunque existens (in manibus autem nostium esle dico, qui vel ipse vel bona sua ad vivendum necestaria ab hoste occupantur. Nec sua ipsius culpa in manus hostium venerit) non amplius Lege Civitatis obligatur. Hosti enim obediendum est necestarid, aut moriendum; vitam autem conservare omni modo licitum est.

Si quis ad faciendum aliquid contra Legem, mortis imminentis metu compulsus sit, plene excusatur 5 quia vitae suae conservationem negligere nemo obligatur. Supposito enim, quod obligatus estet, cogitaret tamen, Nisi factam, statim morior \ si faciam po(i moriar. Faciendo ergo vitam aliquamdiu produco. Compellet ergo ad faciendun^ Natura ipsa»

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Hatred, Lust, Ambition, Covetousnesse, Causes Of Crime

As for the Passions, of Hate, Lust, Ambition, and Covetousnesse, what Crimes they are apt to produce, is so obvious to every mans experience and understanding, as there needeth nothing to be said of them, saving that they are infirmities, so annexed to the nature, both of man, and all other living creatures, as that their effects cannot be hindred, but by extraordinary use of Reason, or a constant severity in punishing them. For in those things men hate, they find a continuall, and unavoydable molestation; whereby either a mans patience must be everlasting, or he must be eased by removing the power of that which molesteth him; The former is difficult; the later is many times impossible, without some violation of the Law. Ambition, and Covetousnesse are Passions also that are perpetually incumbent, and pressing; whereas Reason is not perpetually present, to resist them: and therefore whensoever the hope of impunity appears, their effects proceed. And for Lust, what it wants in the lasting, it hath in the vehemence, which sufficeth to weigh down the apprehension of all easie, or uncertain punishments.

Fear Sometimes Cause Of Crime, As When The Danger Is Neither Present, Nor Corporeall

Of all Passions, that which enclineth men least to break the Lawes, is Fear. Nay, (excepting some generous natures,) it is the onely thing, (when there is apparence of profit, or pleasure by breaking the Lawes,) that makes men keep them. And yet in many cases a Crime may be committed through Feare.

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Qui alimentis, aliisve rebus ad vitam necestariis destitutus est, ne- ttt 3 que que sinelegum violatione vitam sustinere potest (quod in magna Fame aliquando accidit, ubi neque venalia, sunt neque alio modo obtineri alimenta poslunt) alienum ad fui desenlionem aut conservationem si surto vel vi eripiat, totaliterexculatur.

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For not every Fear justifies the Action it produceth, but the fear onely of corporeall hurt, which we call Bodily Fear, and from which a man cannot see how to be delivered, but by the action. A man is assaulted, fears present death, from which he sees not how to escape, but by wounding him that assaulteth him; If he wound him to death, this is no Crime; because no man is supposed at the making of a Common-wealth, to have abandoned the defence of his life, or limbes, where the Law cannot arrive time enough to his assistance. But to kill a man, because from his actions, or his threatnings, I may argue he will kill me when he can, (seeing I have time, and means to demand protection, from the Soveraign Power,) is a Crime. Again, a man receives words of disgrace, or some little injuries (for which they that made the Lawes, had assigned no punishment, nor thought it worthy of a man that hath the use of Reason, to take notice of,) and is afraid, unlesse he revenge it, he shall fall into contempt, and consequently be obnoxious to the like injuries from others; and to avoyd this, breaks the Law, and protects himselfe for the future, by the terrour of his private revenge. This is a Crime; For the hurt is not Corporeall, but Phantasticall, and (though in this corner of the world, made sensible by a custome not many years since begun, amongst young and vain men,) so light, as a gallant man, and one that is assured of his own courage, cannot take notice of. Also a man may stand in fear of Spirits, either through his own superstition, or through too much credit given to other men, that tell him of strange Dreams and visions; and thereby be made believe they will hurt him, for doing, or omitting divers things, which neverthelesse, to do, or omit, is contrary to the Lawes; And that which is so done, or omitted, is not to be Excused by this fear; but is a Crime. For (as I have shewn before in the second Chapter) Dreams be naturally but the fancies remaining in sleep, after the impressions our Senses had formerly received waking; and when men are by any accident unassured they have slept, seem to be reall Visions; and therefore he that presumes to break the Law upon his own, or anothers Dream, or pretended Vision, or upon other Fancy of the power of Invisible Spirits, than is permitted by the Common-wealth, leaveth the Law of Nature, which is a certain offence, and followeth the imagery of his own, or another private mans brain, which he can never know whether it signifieth any thing, or nothing, nor whether he that tells his Dream, say true, or lye; which if every private man should have leave to do, (as they must by the Law of Nature, if any one have it) there could no Law be made to hold, and so all Common-wealth would be dissolved.

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Facta contra Legem authoritate aliena excusantur contra Autho^rem ipsum^ quia Aclorem suum Author accusare non debet, sed contra tertium facto lassum non excusantur j neque ergo contra Civitatem, cujus Leges violatae fuerint. Itaque si homo vel Ccetus, quisummamhabetpotestatem Legem ante latam violare juslerit, violatio Excusatur totaliter. Factum enim, cujus Author est is, qui Summam habet Potestatem, ab ipso condemnari non potest; Sc Legem, quantum attinet ad factum illud particulare, Summae Potestatis Authonras abrogare censebitur.

Si qui Summam habet Potestatem Homo vel Ccetus, Civi Privilegium sive Libertatem conceslerit, quae cum Potestate Summa consiltere non potest, ut qua* Summae Potestatis exercitium impediat, is qui Libertatem talemexercebit, peccat, et contra officium Civis facit. Scire enim debent Cives omnes, quid luri Civitatis congruum sit, et quid incongruum; quia Civitas a singulis Civibus pro sua iplbrum salute, et consensu singulorum instituta erat, Libertatemque illam, quatenus Summae Potestati repugnat, conceslam esle scire per ignorantiam Concedentis, qui consequentia inde Civitati pericula non viderat. Siquidem autem Libertate sua uti pergens Ministro publico restiterit, Crimen est.

Criminum gradus varie mensurantur. Primo, per Sontis sive Causae unde oriuntur pravitatem. Secundo, per Exempli contagium. Tertio, per damnum inde natum. Quarto, per circumstantias Temporum, Locorum, et Personarum.

Contra Legem factum idem, h a praesumptione oriatur virium vel divitiarum, vel amicorum, quibus qui facit fretus Ministris publicis resistit, majus Crimen est, quam si a spe latendi, vel sugiendi ortum eslet. Impunitatis enim praesumptio nata a fiducia potentiae Radix est, unde omni tempore et oportunitate omnium Legum nascitur contemptio. Quod autem sit, propter spem latendi vel sugiendi, periculi agnitionem arguit, quo Legibus in futurum redditur obsequentior.

Crimenquieslescit &;facit,Crimenauget, quod si prosectum estet ab opinione quod licitum esset, minus fuislet. Nam qui malesacit contra suam ipsius Conscientiam, viribus considit quibus excitatur ad idem scpius faciendum j sed qui errore facit, cognitoerroreadleges consormatur. Is

Is cujus error ab Authoritate Doctoris vel Legum interpretis publice constituti oritur, minorem habet culpam, quam si natus eslet a propriorum Principiorum,& rationum prosecutioneobstinata. Quod enim docetur per Authoritatera publicam, a Civitate ipsa docetur, et similitudinem aliquam habet (dum non prohibeturj Legis Civilis; et Crimina, quae negationem non continent Summae Potestatis, neque repugnant Legi manisestae, totaliter excusant; qui autem proprium Iudicium sequutus peccat, per proprium Iudicium, aut stat autcadic.

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Crimes Not Equall

From these different sources of Crimes, it appeares already, that all Crimes are not (as the Stoicks of old time maintained) of the same allay. There is place, not only for EXCUSE, by which that which seemed a Crime, is proved to be none at all; but also for EXTENUATION, by which the Crime, that seemed great, is made lesse. For though all Crimes doe equally deserve the name of Injustice, as all deviation from a strait line is equally crookednesse, which the Stoicks rightly observed; yet it does not follow that all Crimes are equally unjust, no more than that all crooked lines are equally crooked; which the Stoicks not observing, held it as great a Crime, to kill a Hen, against the Law, as to kill ones Father.

Totall Excuses

That which totally Excuseth a Fact, and takes away from it the nature of a Crime, can be none but that, which at the same time, taketh away the obligation of the Law. For the fact committed once against the Law, if he that committed it be obliged to the Law, can be no other than a Crime.

The want of means to know the Law, totally Excuseth: For the Law whereof a man has no means to enforme himself, is not obligatory. But the want of diligence to enquire, shall not be considered as a want of means; Nor shall any man, that pretendeth to reason enough for the Government of his own affairs, be supposed to want means to know the Lawes of Nature; because they are known by the reason he pretends to: only Children, and Madmen are Excused from offences against the Law Naturall.

Where a man is captive, or in the power of the enemy, (and he is then in the power of the enemy, when his person, or his means of living, is so,) if it be without his own fault, the Obligation of the Law ceaseth; because he must obey the enemy, or dye; and consequently such obedience is no Crime: for no man is obliged (when the protection of the Law faileth,) not to protect himself, by the best means he can.

If a man by the terrour of present death, be compelled to doe a fact against the Law, he is totally Excused; because no Law can oblige a man to abandon his own preservation. And supposing such a Law were obligatory; yet a man would reason thus, "If I doe it not, I die presently; if I doe it, I die afterwards; therefore by doing it, there is time of life gained;" Nature therefore compells him to the fact.

When a man is destitute of food, or other thing necessary for his life, and cannot preserve himselfe any other way, but by some fact against the Law; as if in a great famine he take the food by force, or stealth, which he cannot obtaine for mony nor charity; or in defence of his life, snatch away another mans Sword, he is totally Excused, for the reason next before alledged.

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Item factum, si in aliis constanter punitum est, Crimen majus est, quam si multa antecessissent impunitatis exempla. Quae exempla totidem sunt factae ab ipsa Summa Potestate impunitatis spes. Cum crgo is, qui spem et praesumptionem peccandi facit, in iplb Crimine partem habet, contra rationem est ut totum in Actorem conserat.

Quod a subita passione oritur, quam quod a longa meditatione, minus Crimen est j illic enira locus est Extenuationi super humanae naturae oranibus comraunem insirmitatem; sed qui meditatb facit, circumlpexit, oculos conjecitinlegem, in Pcenam, etc. indamnum Societati humanae sequuturum -, quae omnia simul contempsit et cupiditati propriae postposuit. Verumtamen Passio nulla ita subita esle potest, ut totaliter excuset. Nam tempus quod intercedit inter Legis cognitionem, Sc criminis commissionem, omne censebitur pro tempore Deliberandi; quia unusquisque per meditationera Legum, corrigere debuit passionum suarum irregularitatem.

Ubi Lex publice, et assidue coram populo legitur et explicatur, Crimen quod sit contra Legem majus est, quam ubi absquetali instrudione relinquuntur Cives cum difficultate, in certitudine, et occupationum propriarum ceslatione, quae sint Leges ab hominibus privatis quaesituri. Pars enim Criminis insirmitati communi tribuenda est. Sed in casu priore negligentia manisesta est, quse sine Summae Potestatis contemptu aliquo eite non potest.

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Excuses Against The Author

Again, Facts done against the Law, by the authority of another, are by that authority Excused against the Author; because no man ought to accuse his own fact in another, that is but his instrument: but it is not Excused against a third person thereby injured; because in the violation of the law, bothe the Author, and Actor are Criminalls. From hence it followeth that when that Man, or Assembly, that hath the Soveraign Power, commandeth a man to do that which is contrary to a former Law, the doing of it is totally Excused: For he ought not to condemn it himselfe, because he is the Author; and what cannot justly be condemned by the Soveraign, cannot justly be punished by any other. Besides, when the Soveraign commandeth any thing to be done against his own former Law, the Command, as to that particular fact, is an abrogation of the Law.

If that Man, or Assembly, that hath the Soveraign Power, disclaime any Right essentiall to the Soveraignty, whereby there accrueth to the Subject, any liberty inconsistent with the Soveraign Power, that is to say, with the very being of a Common-wealth, if the Subject shall refuse to obey the Command in any thing, contrary to the liberty granted, this is neverthelesse a Sinne, and contrary to the duty of the Subject: for he ought to take notice of what is inconsistent with the Soveraignty, because it was erected by his own consent, and for his own defence; and that such liberty as is inconsistent with it, was granted through ignorance of the evill consequence thereof. But if he not onely disobey, but also resist a publique Minister in the execution of it, then it is a Crime; because he might have been righted, (without any breach of the Peace,) upon complaint.

The Degrees of Crime are taken on divers Scales, and measured, First, by the malignity of the Source, or Cause: Secondly, by the contagion of the Example: Thirdly, by the mischiefe of the Effect; and Fourthly, by the concurrence of Times, Places, and Persons.

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Facta conrra Legem disertis verbis vetita, si tamen a Legislatore manisestissignistaciteapprobentur, minorasunt Crimina, quam si Legislatori viderentur displicere. Cum enim Legislatoris, id est Summi Impeiantis voluntas cognita instar Legis sit, quam saepius observant Cives, quamlegemscriptam,• apparent in hoc casu duae Leges contrariae,• itaque qui Legem scriptam violant, totaliter excusarentur, nisi quod voluntas Summi Imperantis aliter, quam ex verbis Legis cognoscenda non sit. Quoniam autem non modo transgres^sionem Legis, sed etiam neglectara Regis voliintatern, consequitur pcena aliqua, (savoris enim Regii jactura pcena quasdam est) Crimen totum Delinquenti imputari iniquum est. Exempli causa,singularium Civium digladiationes Lex lcripta prohibet, et capite punit; contra, qui hujusmodi certamen vel recusat vel declinat provocatus, contemptui habetur, neque existimationis laesionem Lex ulla scripta reparat; etiam aliquando ab ipso qui Summam habet Potestatem tnunere omni militari indignus existimatur. Quamobrem si existimationis causa provocationi respondeat, quandoquidem Principibus luis placuiste non modo licitum, sed etiam laudabile plurimis videatur, Crimen (etsi non excusetur) extenuatur tamen, quiaexoneratur culpa partem in Summum Imperantem, id est in ipsum punientem. Quod tamen non ita accipi vellem, ut vindictae privatas excusationem parem, sed Redores moneam ne facto oblique saveant, cui directe etc. apertis verbis interdixerunt. Exempla enim Principum sunt et seraper fuere ad actiones Civium regendas, potentiora quam siint ipsae Leges. Rursus, si Crimina damno comparemus, idem sa£scum, si multos, gravius est quam si paucos lsedat. Itaque si sadum non modo in praesenti, sed etiam perexemplum in futuro tempore damnum faciat, majus Crimen est, si in praesenti tantum kedat, id est gravius est Crimen soecundum quam sterile.

Doctrinas Religioni Civitatis contrariasdocere, Crimen majus est in Doctore publice constituto, quam in Cive privato; sicut etiam inhoneste vivere, aut adionem agere impiam quamcunque. Similiter in Proseslore Legum, doctrinas Civilis articulum aliquem sustinere, aut actionem agere quae ad Summae Potestatis diminutionem tendit, majus Crimen est, quam si idem sadum eltet a quavis alio. Hujusmodi enim homines non solum Crimina ipsi faciunt, sed aliis ut faciant Authores sunt j et in universum augentur Crimina ^ scandalo. Indodi enim homines in tenebris existentes, non tam viam qua inceditur, quam lumen quod praeserunt Dodtores fui spectant.

Facla hostilia contra statum Civitatis, majora sunt Crimina, quam quae sada sunt contra hominem privatum. Damnum enim Civitatis ad Cives omnes extenditur j qualia sunt Iocorum munitorum proditiones, secretorum Civitatis ad hostem detedio, conatusque omnes contra illum sive Hominera, sive Ccetum, qui Personam gerit Civitatisj sive vi, sive dolo ad diminutionem Summae Potestatis committantur; et sunt ea Crimina, quae vocantur Use Majestatis.

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Presumption Of Power, Aggravateth

The same Fact done against the Law, if it proceed from Presumption of strength, riches, or friends to resist those that are to execute the Law, is a greater Crime, than if it proceed from hope of not being discovered, or of escape by flight: For Presumption of impunity by force, is a Root, from whence springeth, at all times, and upon all temptations, a contempt of all Lawes; whereas in the later case, the apprehension of danger, that makes a man fly, renders him more obedient for the future. A Crime which we know to be so, is greater than the same Crime proceeding from a false perswasion that it is lawfull: For he that committeth it against his own conscience, presumeth on his force, or other power, which encourages him to commit the same again: but he that doth it by errour, after the errour shewn him, is conformable to the Law.

Evill Teachers, Extenuate

Hee, whose errour proceeds from the authority of a Teacher, or an Interpreter of the Law publiquely authorised, is not so faulty, as he whose errour proceedeth from a peremptory pursute of his own principles, and reasoning: For what is taught by one that teacheth by publique Authority, the Common-wealth teacheth, and hath a resemblance of Law, till the same Authority controuleth it; and in all Crimes that contain not in them a denyall of the Soveraign Power, nor are against an evident Law, Excuseth totally: whereas he that groundeth his actions, on his private Judgement, ought according to the rectitude, or errour thereof, to stand, or fall.

Examples Of Impunity, Extenuate

The same Fact, if it have been constantly punished in other men, as a greater Crime, than if there have been may precedent Examples of impunity. For those Examples, are so many hopes of Impunity given by the Soveraign himselfe: And because he which furnishes a man with such a hope, and presumption of mercy, as encourageth him to offend, hath his part in the offence; he cannot reasonably charge the offender with the whole.

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Item Crimina illa, quas vim tollunt Iudiciorum, majora sunt, quam injuriae privatae ^ ut Iudicium vel Testimonium falsum pecunia emere, vel vendere, Crimen gravius est, quam tantundem pecunias ab homine prsvato fraude eripere. Non enim damnum a falsis Iudiciis Civibus singulis cancum sic; sed etiam ipsa Iudicia redduntur inutilia; et privatis ultionibus, cv: tandem bello prasberur color et oportunitas.

Item Depeculatio thesauri Publici Crimen majus est, quam surtum vel desraudatio privata 5 namcivitatem spoliare, multos simulspoliareest.

Ministerii Publici usurpatio falsa, item Sigillorum publicorum vel Monecse Civitatis Simulacio, majuscrimenest, quam Simularc Sigillum vel Personam hominis privati; damnum enim ab illiusmodi fraudis pertinet ad multos.

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Praemeditation, Aggravateth

A Crime arising from a sudden Passion, is not so great, as when the same ariseth from long meditation: For in the former case there is a place for Extenuation, in the common infirmity of humane nature: but he that doth it with praemeditation, has used circumspection, and cast his eye, on the Law, on the punishment, and on the consequence thereof to humane society; all which in committing the Crime, hee hath contemned, and postposed to his own appetite. But there is no suddennesse of Passion sufficient for a totall Excuse: For all the time between the first knowing of the Law, and the Commission of the Fact, shall be taken for a time of deliberation; because he ought by meditation of the Law, to rectifie the irregularity of his Passions.

Where the Law is publiquely, and with assiduity, before all the people read, and interpreted; a fact done against it, is a greater Crime, than where men are left without such instruction, to enquire of it with difficulty, uncertainty, and interruption of their Callings, and be informed by private men: for in this case, part of the fault is discharged upon common infirmity; but in the former there is apparent negligence, which is not without some contempt of the Soveraign Power.

Tacite Approbation Of The Soveraign, Extenuates

Those facts which the Law expresly condemneth, but the Law-maker by other manifest signes of his will tacitly approveth, are lesse Crimes, than the same facts, condemned both by the Law, and Lawmaker. For seeing the will of the Law-maker is a Law, there appear in this case two contradictory Lawes; which would totally Excuse, if men were bound to take notice of the Soveraigns approbation, by other arguments, than are expressed by his command. But because there are punishments consequent, not onely to the transgression of his Law, but also to the observing of it, he is in part a cause of the transgression, and therefore cannot reasonably impute the whole Crime to the Delinquent. For example, the Law condemneth Duells; the punishment is made capitall: On the contrary part, he that refuseth Duell, is subject to contempt and scorne, without remedy; and sometimes by the Soveraign himselfe thought unworthy to have any charge, or preferment in Warre: If thereupon he accept Duell, considering all men lawfully endeavour to obtain the good opinion of them that have the Soveraign Power, he ought not in reason to be rigorously punished; seeing part of the fault may be discharged on the punisher; which I say, not as wishing liberty of private revenges, or any other kind of disobedience; but a care in Governours, not to countenance any thing obliquely, which directly they forbid. The examples of Princes, to those that see them, are, and ever have been, more potent to govern their actions, than the Lawes themselves. And though it be our duty to do, not what they do, but what they say; yet will that duty never be performed, till it please God to give men an extraordinary, and supernaturall grace to follow that Precept.

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Sadorum contra Leges quibuslaeduntur Cives privati, Criir.en illud majusest, cujus damnum magis est sensibiie; et proinde

Occidere contra Legem, Crimen gravius est, quam alia injuria (salva vita) quaecumque.

Et Mutilatio majus Crimen quam bonorum ereptio.

Et bonorum ereptio per Morcis, et Vulnerum intentationem, majus Crimen quam per surreptionem clandestinam.

Et per clandestinam surreptionemquam per consensum fraude acquisitum.

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Comparison Of Crimes From Their Effects

Again, if we compare Crimes by the mischiefe of their Effects, First, the same fact, when it redounds to the dammage of many, is greater, than when it redounds to the hurt of few. And therefore, when a fact hurteth, not onely in the present, but also, (by example) in the future, it is a greater Crime, than if it hurt onely in the present: for the former, is a fertile Crime, and multiplyes to the hurt of many; the later is barren. To maintain doctrines contrary to the Religion established in the Common-wealth, is a greater fault, in an authorised Preacher, than in a private person: So also is it, to live prophanely, incontinently, or do any irreligious act whatsoever. Likewise in a Professor of the Law, to maintain any point, on do any act, that tendeth to the weakning of the Soveraign Power, as a greater Crime, than in another man: Also in a man that hath such reputation for wisedome, as that his counsells are followed, or his actions imitated by many, his fact against the Law, is a greater Crime, than the same fact in another: For such men not onely commit Crime, but teach it for Law to all other men. And generally all Crimes are the greater, by the scandall they give; that is to say, by becoming stumbling-blocks to the weak, that look not so much upon the way they go in, as upon the light that other men carry before them.

Laesae Majestas

Also Facts of Hostility against the present state of the Common-wealth, are greater Crimes, than the same acts done to private men; For the dammage extends it selfe to all: Such are the betraying of the strengths, or revealing of the secrets of the Common-wealth to an Enemy; also all attempts upon the Representative of the Common-wealth, be it a monarch, or an Assembly; and all endeavours by word, or deed to diminish the Authority of the same, either in the present time, or in succession: which Crimes the Latines understand by Crimina Laesae Majestatis, and consist in designe, or act, contrary to a Fundamentall Law.

Bribery And False Testimony

Likewise those Crimes, which render Judgements of no effect, are greater Crimes, than Injuries done to one, or a few persons; as to receive mony to give False judgement, or testimony, is a greater Crime, than otherwise to deceive a man of the like, or a greater summe; because not onely he has wrong, that falls by such judgements; but all Judgements are rendered uselesse, and occasion ministred to force, and private revenges.

Depeculation

Also Robbery, and Depeculation of the Publique treasure, or Revenues, is a greater Crime, than the robbing, or defrauding of a Private man; because to robbe the publique, is to robbe many at once.

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Item violatio pudicitias per vim, majus Crimen quam per blanditias, et majus adhuc si Nupta, quam si Innupta violetur.

Atque hsec ita aestimantur vulgo; quanquam eadem damnaaliis magis, aliis minus sensibilia sinc. Sed Leges non ad Civium singularium, sed ad humani generissensum generalem componuncur.

Quanquam autem sunc qui concumeliam in verbis tantum, vel gestu, pro damno et lsesione habere solenc, laesiones tamen hujusraodi Graeci, Romani, aliaeque tam veteres quam hodiernse Civitates in legibus condendis neglexerunt, ut qui doloris a verbis tantum, causam veram non verba contumeliosa (quas a propriae virtutis consciis statim ut dicta sunt excutiuntur) esle putaverunt, sed Pusillanimitatem hominis verba non serentis.

Etiam Crimen contra Civem privatum, multumaugetur a circumstantiis Personae, Temporis, et Loci. Nam occidere Parentem suum multogravius est Crimen, quam occidere hominem privatumquemcunque. Patri enim debetur post Civitatem honor siimmus, ut cui in filiura ante constitutas Civitates Potestas erat Summa. Spoliare pauperem, Crimen majus est, quam tantundem eripere diviti. Nam pauperi daranum idem sensibilius est.

Item Crimen Tempore aut Loco factum divino cultui consecrato, Leviat, u u u majus majusest, quam si alio tempore aut loco faclum esletj proficiscitur enim a majore Legum et cultus Divini contemptione.

Multa alia Aggravationis et Extenuationis exempla adduci postent; sed per ea, quae adducta sunt, obvium cuique est cujuscumque Criminis propositi altitudinem investigare.

Postremo, quia in omnibus sere Criminibus, injuria inest, non modo homini privato facta, sed etiam Civitati; idem Crimen, quando accusatur a Persona Civitatis, Crimen publicum appellatur; et ludicia publicorum Criminum, ludicia puutca, quae nostri appellanc Hlactta Coronae.

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Counterfeiting Authority

Also the Counterfeit usurpation of publique Ministery, the Counterfeiting of publique Seales, or publique Coine, than counterfeiting of a private mans person, or his seale; because the fraud thereof, extendeth to the dammage of many.

Crimes Against Private Men Compared

Of facts against the Law, done to private men, the greater Crime, is that, where the dammage in the common opinion of men, is most sensible. And therefore

To kill against the Law, is a greater Crime, that any other injury, life preserved.

And to kill with Torment, greater, than simply to kill.

And Mutilation of a limbe, greater, than the spoyling a man of his goods.

And the spoyling a man of his goods, by Terrour of death, or wounds, than by clandestine surreption.

And by clandestine Surreption, than by consent fraudulently obtained.

And the violation of chastity by Force, greater, than by flattery.

And of a woman Married, than of a woman not married.

For all these things are commonly so valued; though some men are more, and some lesse sensible of the same offence. But the Law regardeth not the particular, but the generall inclination of mankind.

And therefore the offence men take, from contumely, in words, or gesture, when they produce no other harme, than the present griefe of him that is reproached, hath been neglected in the Lawes of the Greeks, Romans, and other both antient, and moderne Common-wealths; supposing the true cause of such griefe to consist, not in the contumely, (which takes no hold upon men conscious of their own Vertue,) but in the Pusillanimity of him that is offended by it.

Also a Crime against a private man, is much aggravated by the person, time, and place. For to kill ones Parent, is a greater Crime, than to kill another: for the Parent ought to have the honour of a Soveraign, (though he have surrendred his Power to the Civill Law,) because he had it originally by Nature. And to Robbe a poore man, is a greater Crime, than to robbe a rich man; because ’tis to the poore a more sensible dammage.

And a Crime committed in the Time, or Place appointed for Devotion, is greater, than if committed at another time or place: for it proceeds from a greater contempt of the Law.

Many other cases of Aggravation, and Extenuation might be added: but by these I have set down, it is obvious to every man, to take the altitude of any other Crime proposed.

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Publique Crimes What

Lastly, because in almost all Crimes there is an Injury done, not onely to some Private man, but also to the Common-wealth; the same Crime, when the accusation is in the name of the Common-wealth, is called Publique Crime; and when in the name of a Private man, a Private Crime; And the Pleas according thereunto called Publique, Judicia Publica, Pleas of the Crown; or Private Pleas. As in an Accusation of Murder, if the accuser be a Private man, the plea is a Private plea; if the accuser be the Soveraign, the plea is a Publique plea.

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CAPVT XXVIII — De Poenis et Praemiis

CHAPTER XXVIII — Of Punishments, and Rewards

Poena, Malum ejl, transgressori Legis Authoritate publica insli* clum, eo sine, ut terrore ejus voluntates Ctvium ad Obedienttam consormentur.

Antequam ab hac definitione quicquam deducam, quaestioni nonnullius momenti respondendum est, nempe,unde Civem puniendi jus, incasuquocunque, ortum sit. Manisestumenimest, Pactoobligari poste neminem, vi illatas non resistere; itaque utquis cuiquam jusdederit, vim sibi inserendi, intelligi non potest. In Civitate instituenda, unusquisque alium quidem desendendi jus deponit, sed non seipsum desendendi jus relinquit. Seipsum etiam, in puniendo Cive alio quocunque, illi qui Summam habet Potestatem auxiliari obligat 3 led non in seipso puniendo. Sed auxilium ferre Summo Imperanti nonestjus illi dare quemquampuniendi. Manisestum ergo est jus Puniendi quod habet Civitas (id est is qui personam gerit Civitatis) fundatum non este in Concestione sive gratia Civium. Sed ostensum etiam supraest, quod ante Civitatis constitutionem unicuique quidlibet agendi quod ad conservationem fui videretur ipsi neceilarium, jus erat n3turale. Atque hoc juris, quod habet Civitas Civem puniendi, fundamentum verum est. Nam ut Cives Civitati tale jus concederet, frustra esset, quia jus illud unicuique ante a naturadatum erat. Eotamen, quod jussuum unusquisque deposuerat, is qui Summam habebat Potestatem tantum virium nactus est, ut juresuo naturali ad praeservationem Civium omnium arbitrio suo uti potuit. Itaquejusilludilli non datum, sed relidtumest; &illiso!i, nec minus integrum, quaro fuit ante Civitatis institutionem.

A Definitione Pcenae deduco, Primo, neque injurins, neque ultiones privatorum hominum proprie vocari poile Pcenas, quia non procedunt ab Authoritate Civitatis.

Secun J6, a Summo Imperante negligi, aut non promoveri, Civi Pccnam non este; quia malum nullum illi inslictum est, ied in statu quem prius obtinuit relinquitur illaesus..

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CHAPTER XXVIII — Of Punishments, and Rewards

CAPVT XXVIII — De Poenis et Praemiis

The Definition Of Punishment

"A PUNISHMENT, is an Evill inflicted by publique Authority, on him that hath done, or omitted that which is Judged by the same Authority to be a Transgression of the Law; to the end that the will of men may thereby the better be disposed to obedience."

Right To Punish Whence Derived

Before I inferre any thing from this definition, there is a question to be answered, of much importance; which is, by what door the Right, or Authority of Punishing in any case, came in. For by that which has been said before, no man is supposed bound by Covenant, not to resist violence; and consequently it cannot be intended, that he gave any right to another to lay violent hands upon his person. In the making of a Common-wealth, every man giveth away the right of defending another; but not of defending himselfe. Also he obligeth himselfe, to assist him that hath the Soveraignty, in the Punishing of another; but of himselfe not. But to covenant to assist the Soveraign, in doing hurt to another, unlesse he that so covenanteth have a right to doe it himselfe, is not to give him a Right to Punish. It is manifest therefore that the Right which the Common-wealth (that is, he, or they that represent it) hath to Punish, is not grounded on any concession, or gift of the Subjects. But I have also shewed formerly, that before the Institution of Common-wealth, every man had a right to every thing, and to do whatsoever he thought necessary to his own preservation; subduing, hurting, or killing any man in order thereunto. And this is the foundation of that right of Punishing, which is exercised in every Common-wealth. For the Subjects did not give the Soveraign that right; but onely in laying down theirs, strengthned him to use his own, as he should think fit, for the preservation of them all: so that it was not given, but left to him, and to him onely; and (excepting the limits set him by naturall Law) as entire, as in the condition of meer Nature, and of warre of every one against his neighbour.

Private Injuries, And Revenges No Punishments

From the definition of Punishment, I inferre, First, that neither private revenges, nor injuries of private men, can properly be stiled Punishment; because they proceed not from publique Authority.

Nor Denyall Of Preferment

Secondly, that to be neglected, and unpreferred by the publique favour, is not a Punishment; because no new evill is thereby on any man Inflicted; he is onely left in the estate he was in before.

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Tertio, malum inslidum Authoritate publica, nisi Publica antecedat Condemnatio, nomen Pcenae non habere, ied factum esle hostile. Quia sadum quod punitur probari et judicari prius debuic Authoritate publica.

Quarto, malum inslictum ab eo, qui Summam Potestatem injuria uiiirpat, vel a quocunque, sine Authontate concesia a Civitate, Pcenam non este, ied sadhura hostile; quia actionesejus, qui injuria imperat Authorem non habent perionam condemnatam j neque ergo habent Authoritatem publicam.

Quinto, malum inslictum absque consilio Cives resormandi, Pcena non est sed factum hostile; quia de eitentia Pcenaeest, ut terrore ejus Cives ad obedientiam consormentur.

Sexto, ciim actionibus quibusclam consequentia mala siepislime adhaereant naturaliter; ut cum quis vim alii inserens occiditur vei vulneratur; vel quando quis ab actione aliqua illicita in morbumincidit; malum illud, quamquam respectu Authoris Naturae dici recte possit Pcena Divina, non continetur tamen nomine Pcenae respeclu hominum; quia non inslictum est Authoritate Civili.

Septimo,simalum insliclum minus sit,quam bonum, quod Crimen commislum naturaliter sequitur, Malum illud sub definitione Pcena» non comprehenditur; nam Pretium potius est sive redemptio Criminis, quam Pcena. Nam natura Pcenae finem ejus continet nempe resormationem Civium. Sed Pcena quae minus molestiae habet, quamhabet Crimen jucundi, estedtum contrarium operatur.

Octavo, si Pcena Lege ipsa praescripta et terminata sit, post Crimen autem commistum insligatur Pcena major, exceilus Pcenas posterioris supra priorem Pcena non est, sedsactum hostile. Cum enim Punitionum finis, ultio non sit, sed terror 5 terror autem Pcenae majorisnondum cognitae, minoris Pcenae determinatione tollitur, additio illa, Pcena non est. Ubi vero Pcenam nullam Lex praescripsit, ibi quicquid a Civitate insligitur naturam Pcenae habet. Qui cnim Legem, cujus violatio Pcenam meretur, quae tamen scripto nondum definitur, violat indefinitam expectat Pcenam, id est arbitrariam.

Nono, Malum insliclum ob factum nonduoilege vetitum, Pcena u uu 2 non non est, sed factumhostile. Nam ante Legem, transgreslio Legis e(Te non potuit j Poena autem factum supponit probatum et judicatum, violationem Legis esle.

Decimo, Malum inslictum in Personam Civitatis, Pcena non est, sed factum hoshle, utquod Authoritate publica, id est Authoritate ipsius Personae Civitatis non insligitur.

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Nor Pain Inflicted Without Publique Hearing

Thirdly, that the evill inflicted by publique Authority, without precedent publique condemnation, is not to be stiled by the name of Punishment; but of an hostile act; because the fact for which a man is Punished, ought first to be Judged by publique Authority, to be a transgression of the Law.

Nor Pain Inflicted By Usurped Power

Fourthly, that the evill inflicted by usurped power, and Judges without Authority from the Soveraign, is not Punishment; but an act of hostility; because the acts of power usurped, have not for Author, the person condemned; and therefore are not acts of publique Authority.

Nor Pain Inflicted Without Respect To The Future Good

Fifthly, that all evill which is inflicted without intention, or possibility of disposing the Delinquent, or (by his example) other men, to obey the Lawes, is not Punishment; but an act of hostility; because without such an end, no hurt done is contained under that name.

Naturall Evill Consequences, No Punishments

Sixthly, whereas to certain actions, there be annexed by Nature, divers hurtfull consequences; as when a man in assaulting another, is himselfe slain, or wounded; or when he falleth into sicknesse by the doing of some unlawfull act; such hurt, though in respect of God, who is the author of Nature, it may be said to be inflicted, and therefore a Punishment divine; yet it is not contaned in the name of Punishment in respect of men, because it is not inflicted by the Authority of man.

Hurt Inflicted, If Lesse Than The Benefit Of Transgressing, Is Not Punishment

Seventhly, If the harm inflicted be lesse than the benefit, or contentment that naturally followeth the crime committed, that harm is not within the definition; and is rather the Price, or Redemption, than the Punishment of a Crime: Because it is of the nature of Punishment, to have for end, the disposing of men to obey the Law; which end (if it be lesse that the benefit of the transgression) it attaineth not, but worketh a contrary effect.

Where The Punishment Is Annexed To The Law, A Greater Hurt Is Not Punishment, But Hostility

Eighthly, If a Punishment be determined and prescribed in the Law it selfe, and after the crime committed, there be a greater Punishment inflicted, the excesse is not Punishment, but an act of hostility. For seeing the aym of Punishment is not a revenge, but terrour; and the terrour of a great Punishment unknown, is taken away by the declaration of a lesse, the unexpected addition is no part of the Punishment. But where there is no Punishment at all determined by the Law, there whatsoever is inflicted, hath the nature of Punishment. For he that goes about the violation of a Law, wherein no penalty is determined, expecteth an indeterminate, that is to say, an arbitrary Punishment.

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Postremo, Malum inslictum hosti manisesto, nomine Pcenae non comprehenditur j quia hostes Cives nonsunt. Quanquam autem Cives ante fuerint, si se hostes tamen post declaraverint, non ut Cives, sed ut hostes patiuntur. Sequitur hinc si Civis faclo aut verbo, sciens et deliberato Personae Civitatis Authoritatem negaverit (quascunque Poena Crimini laesae Majestatis Lege prasscripta fuerit) puniri tamen, cum se jam hostem Civitatis esle declaraverit Pcena arbitraria jure potest tanquam hostis.

Pcenae Divin<c suntvel Iiwnanx. De illis dicemus alioloco magis proprio inseriiis.

Ihtmanx. sunt ilke Poenae, qua? Authoritate humana insliguntur j suntque vel Ccrpora'.es, vel Pecuninri*, vel /gnormnia, vel Incarceratto vel Exiltnm, vel ex his mixta.

Toena Corporalts est quae insligitur in corpus per voluntatem insligentis; qualia sunt verbera, vulnera, et earum rerum ablatio, quse corpori jucundae existentes, prius possidebantur.

Quarum Pcenarum aliae capitales, aliae minores sunt. Capitalis, est mortis insliclio, sive simplicis, sive cum cruciatu. Minores Poenae sunt verber3, vulnera, vincula omnisque alia corporis astlictio, quae sua natura non sunt lethales; etsienim per accidens aliquod non prasvisum mors sequatur, non dicecur Poena Capiralis.

Pcena pecuniariaest ablatio non solum Summae alicujus Pecuniae, sed etiam cujuscunque reipecuniacommutabilis. Quod si Lex Pcenam definiat Pecuniariara, eo sine ut a transgreslbribus Legis Pecuniam auserat, Poena proprie loquendo non est, sed Privilegii, sive exemptionis a Lege Pretium; quia factum ipsum non absolute vetat Lextaliscivibusomnibus, sed iilis tantum qui pecuniam definitam non poslunt solvere. Sed in Legibus Naturae, et Legibus de cultu Divinoaliter seres.habet. Nam si in eos qui sine caula juraverint, muldta statueretur pecuniaria, pecunia illa pro Legis dispensatione haberi non po(Iet,cum Leges Divinae et Leges Naturae sint mdispensabiles.

Ignominia inslistio est mali, cui a Civitate nota apponitur turpitudinis, vel deprivatio Boni quod a Civitate prohonore conceslum est. Sunt autem quaedam naturaliter honorisica, ut Fortitudo, Magnanimitas, Prudentia, aliaeque aliquae Corporis et animi facultates. Aliae honorisica facta sunt a Civitate, vt Insignia, Tituli, Officia, et qusecunque gratiae apud illum qui Summam habet Potestatem, signa singularia. Priora illa tolli Lege non poslunt. Posteriora a Civitate, propter Crimina, tolli poslunt; et Pcenas proprie sunt.

Per Incarcerationem intelligo quamcunque Libertatis Corporalis ablationem, quansduabus de causis Civitas propter Crimen tollit. Quarum altera est, utcustodiatur reus ne ausugiat, aitera ut sit pro Pcena condemnati. Prior harum Pcena non est; quia antequam Iudicetur nemojuste puniri potest. Malum itaque quod quis reus antequamaudiatur et condemnetur, per custodiam patitur, plus quam custodiae neceilarium est, contra Leges Naturae insligitur 3 Posterior, Pcena est; quia a Civitate, et propter Crimen auditum et judicatum insligitur.

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Hurt Inflicted For A Fact Done Before The Law, No Punishment

Ninthly, Harme inflicted for a Fact done before there was a Law that forbad it, is not Punishment, but an act of Hostility: For before the Law, there is no transgression of the Law: But Punishment supposeth a fact judged, to have been a transgression of the Law; Therefore Harme inflicted before the Law made, is not Punishment, but an act of Hostility.

The Representative Of The Common-wealth Unpunishable

Tenthly, Hurt inflicted on the Representative of the Common-wealth, is not Punishment, but an act of Hostility: Because it is of the nature of Punishment, to be inflicted by publique Authority, which is the Authority only of the Representative it self.

Hurt To Revolted Subjects Is Done By Right Of War, Not By Way Of Punishment

Lastly, Harme inflicted upon one that is a declared enemy, fals not under the name of Punishment: Because seeing they were either never subject to the Law, and therefore cannot transgresse it; or having been subject to it, and professing to be no longer so, by consequence deny they can transgresse it, all the Harmes that can be done them, must be taken as acts of Hostility. But in declared Hostility, all infliction of evill is lawfull. From whence it followeth, that if a subject shall by fact, or word, wittingly, and deliberatly deny the authority of the Representative of the Common-wealth, (whatsoever penalty hath been formerly ordained for Treason,) he may lawfully be made to suffer whatsoever the Representative will: For in denying subjection, he denyes such Punishment as by the Law hath been ordained; and therefore suffers as an enemy of the Common-wealth; that is, according to the will of the Representative. For the Punishments set down in the Law, are to Subjects, not to Enemies; such as are they, that having been by their own act Subjects, deliberately revolting, deny the Soveraign Power.

The first, and most generall distribution of Punishments, is into Divine, and Humane. Of the former I shall have occasion, to speak, in a more convenient place hereafter.

Humane, are those Punishments that be inflicted by the Commandement of Man; and are either Corporall, or Pecuniary, or Ignominy, or Imprisonment, or Exile, or mixt of these.

Punishments Corporall

Corporall Punishment is that, which is inflicted on the body directly, and according to the intention of him that inflicteth it: such as are stripes, or wounds, or deprivation of such pleasures of the body, as were before lawfully enjoyed.

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Exiliumest,quandopropter Crimencondemnatur Civis adexeundum e dominio Civitatis, sive pro tempore, sivein perpetuum; videturque sua natura sine aliis circumstantiis, Pcenam non esle, sed potius Ausugium, vel mandatum publicum sugiendi Pcenam. Hujusmodi Pcenam in Civitate Romana negat esle Romanarum Legum scient\(Timas Cicero; Exiliumque periclitantium Civiura Resugium vocat. Nam quiexulet,' si tamen bonis fuis reditibusque frui permittatur, solam cceli mutationem patitur, quae Pcena non est j neque ad Civitatis tendit utilitatem, quas Pcenarum finis est, sed potius damnum. Qui enim a Civitate expellitur hostis sit Legitimus. Verum si quis non modo in Exilium mislus sit fortunis autem fuis simul mulctatus fuerit, Pcena ejus inter Pecuniarias numeranda est.

Punitionesciviuminnocentium,sivegraves,sive leves, sunt omnes contra Leges Naturas, &a<sliones hostiles. Punitio enim illorum tantum est, qui Crimen commiserunt.

Caeterum in hominem Innocentem Mali cujuscunque inslictio, si Civis non slt, si sine praecedentis alicujus pacti violatione siat, si denique eo sine siat ut juvetur Civitas, Legis Naturalis tranigressio non est. Omnesenim homines aut Cives suntaut hostes, autpaclx> inter Civitates amici sunt. Sed contra hostes a Civitate Iudicatos, a quibusdamnum Civitatiexpectatur, Iure Naturas bellum facere licitum est; in quo bello neque gladius judicat, neque Viclor distinguit quatenus ad tempus praeteritum inter Nocentes etc. Innocentes, neque cuiquam parcit, niiiquatenus conducit ad salutem Civium. Hinc enim maniseilumestinciveseos qui Authoritatem Civitatis pernegaverint vin- u u u 2 dictam diclam extendi licite posle, non solum ad ipsos, sed etiam ad posteros eorum usque ad tertiam et quartam generationem nondum existentes, et per consequens facti a patribus fuis commisli insontes j quiacriminis hujusnatura consistit in eo, quod Cititatis regimini renuntiant, id est se Civitatis hostes esle prosiientur. Qui autem dc faciunt, non ut Cives, sed uthostes puniri jure poslunt.

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Capitall

And of these, some be Capitall, some Lesse than Capitall. Capitall, is the Infliction of Death; and that either simply, or with torment. Lesse than Capitall, are Stripes, Wounds, Chains, and any other corporall Paine, not in its own nature mortall. For if upon the Infliction of a Punishment death follow not in the Intention of the Inflicter, the Punishment is not be bee esteemed Capitall, though the harme prove mortall by an accident not to be foreseen; in which case death is not inflicted, but hastened.

Pecuniary Punishment, is that which consisteth not only in the deprivation of a Summe of Mony, but also of Lands, or any other goods which are usually bought and sold for mony. And in case the Law, that ordaineth such a punishment, be made with design to gather mony, from such as shall transgresse the same, it is not properly a Punishment, but the Price of priviledge, and exemption from the Law, which doth not absolutely forbid the fact, but only to those that are not able to pay the mony: except where the Law is Naturall, or part of Religion; for in that case it is not an exemption from the Law, but a transgression of it. As where a Law exacteth a Pecuniary mulct, of them that take the name of God in vaine, the payment of the mulct, is not the price of a dispensation to sweare, but the Punishment of the transgression of a Law undispensable. In like manner if the Law impose a Summe of Mony to be payd, to him that has been Injured; this is but a satisfaction for the hurt done him; and extinguisheth the accusation of the party injured, not the crime of the offender.

Ignominy

Ignominy, is the infliction of such Evill, as is made Dishonorable; or the deprivation of such Good, as is made Honourable by the Common-wealth. For there be some things Honorable by Nature; as the effects of Courage, Magnanimity, Strength, Wisdome, and other abilities of body and mind: Others made Honorable by the Common-wealth; as Badges, Titles, Offices, or any other singular marke of the Soveraigns favour. The former, (though they may faile by nature, or accident,) cannot be taken away by a Law; and therefore the losse of them is not Punishment. But the later, may be taken away by the publique authority that made them Honorable, and are properly Punishments: Such are degrading men condemned, of their Badges, Titles, and Offices; or declaring them uncapable of the like in time to come.

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Prarmiumdicisolet, tum quodgratis, tumquodex Pacl:o darur. Quando autem ex Pacto, pro mercede sumitur, et benesicium est pro bono praestito vel promislo debitum. Quando autem gratis datur,benesicium est a dantis gratia prosectum, eo sine ut casreri Cives ad Civitati bene serviendum excitentur; et proprie Praemium appellatur.differtque amercede, quae debita est. Ersi eniro Cives omnes, desertis rebus domesticis,servire Civitatietiamsine Mercede,si opus sit,obligen tur: id tamen non a Lege Naturae neque Civitatis institutione est, nisi Civitas desendi alias non potest. Supponitur enim, illum qui Supremam habet Potestatem fortunis Civium omnium aeque uti posse, quibus, qui Civitatem desendunt, fuis ipsorum rebus relicrjs remunerari debent: adeo ut militum insimus Militiae Mercedem ut Iure debitam postularepotest.

Benesicium a Summo Imperante in Civemcollocatum, metu ne Civitatinoceat, Praemium non est: quia metu extorquetur: neque inlmperante oratia est, sed potius facrisicium, quo Civem malevolum eundemque potentem placarecupit: nec ad obedientiam, sed contra ad raajorem contumaciam Cives alios excitat.

Mercedum autem aliae certae sunt, solvunturque ex Thesauropublico: aliae incertse, oriunturque ab executione ipsius Ministerii: sunt autem saepissime Civitati noxiae: ut in Ministerio ludiciorum, ubi duo inde oriri solent Incommoda: Quorum alterumest Incrementum litium. Vbi enim ex multitudinelitium oritur ludicibus Benesicium. Solentplerique numerumlitium quantum postunt reddere majorem. Alterum est quod diversorum Tribunalium ludices certaturi sunt inter se quis ad Tnbunal suum ab aliis, Tnbunalibus plurimas lites retrahat. Sed in Ministeriis Executionis incommoda illa locum non habent. Atque haec dicta sint de Poenis et Praemiis, quae sunt quasi Nervi et Tendines, quibus moventur Civitatis artus.

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Imprisonment

Imprisonment, is when a man is by publique Authority deprived of liberty; and may happen from two divers ends; whereof one is the safe custody of a man accused; the other is the inflicting of paine on a man condemned. The former is not Punishment; because no man is supposed to be Punisht, before he be Judicially heard, and declared guilty. And therefore whatsoever hurt a man is made to suffer by bonds, or restraint, before his cause be heard, over and above that which is necessary to assure his custody, is against the Law of Nature. But the Later is Punishment, because Evill, and inflicted by publique Authority, for somewhat that has by the same Authority been Judged a Transgression of the Law. Under this word Imprisonment, I comprehend all restraint of motion, caused by an externall obstacle, be it a House, which is called by the generall name of a Prison; or an Iland, as when men are said to be confined to it; or a place where men are set to worke, as in old time men have been condemned to Quarries, and in these times to Gallies; or be it a Chaine, or any other such impediment.

Exile

Exile, (Banishment) is when a man is for a crime, condemned to depart out of the dominion of the Common-wealth, or out of a certaine part thereof; and during a prefixed time, or for ever, not to return into it: and seemeth not in its own nature, without other circumstances, to be a Punishment; but rather an escape, or a publique commandement to avoid Punishment by flight. And Cicero sayes, there was never any such Punishment ordained in the City of Rome; but cals it a refuge of men in danger. For if a man banished, be neverthelesse permitted to enjoy his Goods, and the Revenue of his Lands, the meer change of ayr is no punishment; nor does it tend to that benefit of the Common-wealth, for which all Punishments are ordained, (that is to say, to the forming of mens wils to the observation of the Law;) but many times to the dammage of the Common-wealth. For a Banished man, is a lawfull enemy of the Common-wealth that banished him; as being no more a Member of the same. But if he be withall deprived of his Lands, or Goods, then the Punishment lyeth not in the Exile, but is to be reckoned amongst Punishments Pecuniary.

The Punishment Of Innocent Subjects Is Contrary To The Law Of Nature

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Hactenus de natura Hominis, quem superbia aliaeque Pasliones suae ad submittendum se regimini alicui compulerunt: et Recloris siii Potentia ingente disterui, comparans illum magno illi Leviathan: de cjuo cap. 41. lobi. Dicit Deus Non e(i Totestot sitper lirram, qux comyaretur ei. Socim eji, ita m non metv.at. Vtdet jublimta omnia insra se;

& Rex esi omnium siltorum Superbia. Quoniam autem mortalis est, et ut alia terrcna omnia corruptioni obnoxius: et quia in coelis (quanquam non in terris) est quod metuat, etc. cujus Legibus obedire debet: dicam in duobus Capitibus proxime sequentibus de morbis, et eausismortis ejus, et de Legibus Naturalibus quibus obedireobligatur.

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All Punishments of Innocent subjects, be they great or little, are against the Law of Nature; For Punishment is only of Transgression of the Law, and therefore there can be no Punishment of the Innocent. It is therefore a violation, First, of that Law of Nature, which forbiddeth all men, in their Revenges, to look at any thing but some future good: For there can arrive no good to the Common-wealth, by Punishing the Innocent. Secondly, of that, which forbiddeth Ingratitude: For seeing all Soveraign Power, is originally given by the consent of every one of the Subjects, to the end they should as long as they are obedient, be protected thereby; the Punishment of the Innocent, is a rendring of Evill for Good. And thirdly, of the Law that commandeth Equity; that is to say, an equall distribution of Justice; which in Punishing the Innocent is not observed.

But The Harme Done To Innocents In War, Not So

But the Infliction of what evill soever, on an Innocent man, that is not a Subject, if it be for the benefit of the Common-wealth, and without violation of any former Covenant, is no breach of the Law of Nature. For all men that are not Subjects, are either Enemies, or else they have ceased from being so, by some precedent covenants. But against Enemies, whom the Common-wealth judgeth capable to do them hurt, it is lawfull by the originall Right of Nature to make warre; wherein the Sword Judgeth not, nor doth the Victor make distinction of Nocent and Innocent, as to the time past; nor has other respect of mercy, than as it conduceth to the good of his own People. And upon this ground it is, that also in Subjects, who deliberatly deny the Authority of the Common-wealth established, the vengeance is lawfully extended, not onely to the Fathers, but also to the third and fourth generation not yet in being, and consequently innocent of the fact, for which they are afflicted: because the nature of this offence, consisteth in the renouncing of subjection; which is a relapse into the condition of warre, commonly called Rebellion; and they that so offend, suffer not as Subjects, but as Enemies. For Rebellion, is but warre renewed.

Reward, Is Either Salary, Or Grace

REWARD, is either of Gift, or by Contract. When by Contract, it is called Salary, and Wages; which is benefit due for service performed, or promised. When of Gift, it is benefit proceeding from the Grace of them that bestow it, to encourage, or enable men to do them service. And therefore when the Soveraign of a Common-wealth appointeth a Salary to any publique Office, he that receiveth it, is bound in Justice to performe his office; otherwise, he is bound onely in honour, to acknowledgement, and an endeavour of requitall. For though men have no lawfull remedy, when they be commanded to quit their private businesse, to serve the publique, without Reward, or Salary; yet they are not bound thereto, by the Law of Nature, nor by the institution of the Common-wealth, unlesse the service cannot otherwise be done; because it is supposed the Soveraign may make use of all their means, insomuch as the most common Souldier, may demand the wages of his warrefare, as a debt.

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Benefits Bestowed For Fear, Are Not Rewards

The benefits which a Soveraign bestoweth on a Subject, for fear of some power, and ability he hath to do hurt to the Common-wealth, are not properly Rewards; for they are not Salaryes; because there is in this case no contract supposed, every man being obliged already not to do the Common-wealth disservice: nor are they Graces; because they be extorted by feare, which ought not to be incident to the Soveraign Power: but are rather Sacrifices, which the Soveraign (considered in his naturall person, and not in the person of the Common-wealth) makes, for the appeasing the discontent of him he thinks more potent than himselfe; and encourage not to obedience, but on the contrary, to the continuance, and increasing of further extortion.

Salaries Certain And Casuall

And whereas some Salaries are certain, and proceed from the publique Treasure; and others uncertain, and casuall, proceeding from the execution of the Office for which the Salary is ordained; the later is in some cases hurtfull to the Common-wealth; as in the case of Judicature. For where the benefit of the Judges, and Ministers of a Court of Justice, ariseth for the multitude of Causes that are brought to their cognisance, there must needs follow two Inconveniences: One, is the nourishing of sutes; for the more sutes, the greater benefit: and another that depends on that, which is contention about Jurisdiction; each Court drawing to it selfe, as many Causes as it can. But in offices of Execution there are not those Inconveniences; because their employment cannot be encreased by any endeavour of their own. And thus much shall suffice for the nature of Punishment, and Reward; which are, as it were, the Nerves and Tendons, that move the limbes and joynts of a Common-wealth.

Hitherto I have set forth the nature of Man, (whose Pride and other Passions have compelled him to submit himselfe to Government;) together with the great power of his Governour, whom I compared to Leviathan, taking that comparison out of the two last verses of the one and fortieth of Job; where God having set forth the great power of Leviathan, called him King of the Proud. "There is nothing," saith he, "on earth, to be compared with him. He is made so as not be afraid. Hee seeth every high thing below him; and is King of all the children of pride." But because he is mortall, and subject to decay, as all other Earthly creatures are; and because there is that in heaven, (though not on earth) that he should stand in fear of, and whose Lawes he ought to obey; I shall in the next following Chapters speak of his Diseases, and the causes of his Mortality; and of what Lawes of Nature he is bound to obey.

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COLLATION NOTES

BRICKS 1–9 — CUMULATIVE

N1 — The Introduction's seat. In the 1668 volume the Introductio stands under the display of PARS PRIMA · DE HOMINE, inside Part I's heading; the English sets THE INTRODUCTION before Part I. The edition follows each text's own seating and notes the difference here, once.

N2 — The ending the Latin does not have. The English closes with A REVIEW, AND CONCLUSION; the Latin volume instead appends an APPENDIX of three chapters (De Symbolo Niceno; De Haeresi; De quibusdam Objectionibus contra Leviathan), printed pp. 325–365 of the 1668 book. When this edition reaches the end, the Appendix will face the Review as a structural divergence, not as a translation.

N3 — The Introduction's first page, adjudicated. The folio's opening page (1668 p. 1) carries the decorated initial, and the machine reading of that page interleaves the initial's column with the text until the token classes cannot honestly carry it. This page — and no other in Brick 1 — is set from a reading of the leaf itself, rendered from the secured facsimile PDF (leaf 9): the edition's first exercise of the Source Ledger's spot-adjudication provision, recorded in the Ledger's amendment. The initial itself is restored as [N]aturam. One typographic distinction is levelled by the declared font tolerance and recorded here so it is not lost silently: the 1668 page sets its equation-terms (Anima, Artus, Praemia et Poenae, Nervi, and their fellows) in italic; this edition's DejaVu Serif carries no italic face, and the equations stand in the body face.

N4 — A running head against its chapter. At printed p. 13, inside Capvt III's closing passage (the finite / infinite locus), the folio's running head reads 'Cap. 4' in the machine reading, ahead of Capvt IV's display at the passage's end. Whether the fault is the press's, the scan's, or the reading machine's is UNCHARTED — adjudication against the facsimile leaf has not been performed. The text is set by the display headings, and the anomaly stands here on the record.

N5 — 'fine', thirteen times. The machine reading's 'fine' in these chapters is the press's fine (without), restored to sine under the rule table; finis and its true forms (finem, finis, finita) are protected and stand. The class is recorded because the two words share a shape in the OCR: the readings were adjudicated by context at every locus, and the count is printed so the adjudication can be audited.

N6 — The Conjectura margin note. Capvt III's margin carries 'Conjectura eventi' where the English margin treats of prudence and conjecture; the machine reading split the note and fused its shards into the body lines. The shards were removed under the declared debris class and the note set as a subhead at its locus, as Hobbes's own furniture sets it.

N7 — Paragraph drift, measured. INTRODUCTIO: English 9 paragraph groups, Latin 8; paired 8, unpaired tail 1. CAPVT I: English 5 paragraph groups, Latin 7; paired 5, unpaired tail 2. CAPVT II: English 10 paragraph groups, Latin 9; paired 9, unpaired tail 1. CAPVT III: English 12 paragraph groups, Latin 13; paired 12, unpaired tail 1. CAPVT IV: English 25 paragraph

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groups, Latin 26; paired 25, unpaired tail 1. CAPVT V: English 22 paragraph groups, Latin 21; paired 21, unpaired tail 1. CAPVT VI: English 60 paragraph groups, Latin 62; paired 60, unpaired tail 2. CAPVT VII: English 7 paragraph groups, Latin 10; paired 7, unpaired tail 3. CAPVT VIII: English 27 paragraph groups, Latin 34; paired 27, unpaired tail 7. CAPVT IX: English 45 paragraph groups, Latin 10; paired 10, unpaired tail 35. CAPVT X: English 51 paragraph groups, Latin 53; paired 51, unpaired tail 2. CAPVT XI: English 28 paragraph groups, Latin 32; paired 28, unpaired tail 4. CAPVT XII: English 32 paragraph groups, Latin 37; paired 32, unpaired tail 5. CAPVT XIII: English 15 paragraph groups, Latin 16; paired 15, unpaired tail 1. CAPVT XIV: English 37 paragraph groups, Latin 36; paired 36, unpaired tail 1. CAPVT XV: English 49 paragraph groups, Latin 46; paired 46, unpaired tail 3. CAPVT XVI: English 20 paragraph groups, Latin 19; paired 19, unpaired tail 1. CAPVT XVII: English 20 paragraph groups, Latin 14; paired 14, unpaired tail 6. CAPVT XVIII: English 36 paragraph groups, Latin 22; paired 22, unpaired tail 14. CAPVT XIX: English 27 paragraph groups, Latin 26; paired 26, unpaired tail 1. CAPVT XX: English 24 paragraph groups, Latin 25; paired 24, unpaired tail 1. CAPVT XXI: English 32 paragraph groups, Latin 24; paired 24, unpaired tail 8. CAPVT XXII: English 41 paragraph groups, Latin 36; paired 36, unpaired tail 5. CAPVT XXIII: English 14 paragraph groups, Latin 10; paired 10, unpaired tail 4. CAPVT XXIV: English 19 paragraph groups, Latin 15; paired 15, unpaired tail 4. CAPVT XXV: English 15 paragraph groups, Latin 16; paired 15, unpaired tail 1. CAPVT XXVI: English 55 paragraph groups, Latin 44; paired 44, unpaired tail 11. CAPVT XXVII: English 58 paragraph groups, Latin 50; paired 50, unpaired tail 8. CAPVT XXVIII: English 33 paragraph groups, Latin 28; paired 28, unpaired tail 5.

N8 — Residue, counted. After every declared class, 29 garbled or unresolved tokens stand across Brick 9's Latin (22 distinct forms: afrkiamur, ccmpcfta, effecl, efficut, eflk, fa, facli, fadu, fen, fin, firaul, fj, fme, forie, fra, frry, ft, iutef, mentafem, mmm, pof, recluruseft). These stand in the text exactly as the machine read them; each is a named locus for the facsimile collation that remains UNCHARTED.

N9 — One garbled sentence, flagged whole. Capvt III's sentence on place ('neque aliquid esse totum in uno loco, et totum in altero, tempore eodem…') is garbled in the machine reading beyond the declared classes (its reading carries 'eflk' and 'io altcro' among its ruins). The words are set as read, under the declared classes only; the English face carries the sense; the Latin locus is flagged for facsimile adjudication, UNCHARTED.

N10 — The repairs, counted. The listed token repairs (fused-word splits, drop-cap and ligature restorations, one-letter substitutions in certain words) applied in this brick number 71 occurrences. The table itself stands printed in the builder, build_leviathan_parallel.py, which is part of this edition's record; the classes are declared in §IV of the Preface. No repair is applied that is not in the table.

N11 — Brick 2 scope. Capvt IV (De Sermone), Capvt V (De Ratione et Scientia), and Capvt VI (De Principiis internis Motus Voluntarii) join the parallel text. Capvt VI's title in the folio display runs to three lines and a second sentence (et de Orationibus quibus eae declarantur); the edition's heading carries the title's first sentence, and the whole stands here.

N12 — Capvt IV's opening display. The chapter's display heading stands in the machine

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reading with its initial misread ('G A P V T IV', 'Do Strmone'); the seam was fixed by content — the Typographicae passage that opens the English Chapter IV — and the heading is set from the census. The reading machine's forms stand in this note, not in the text.

N14 — Two more leaves adjudicated (Brick 2). The opening leaves of Capvt V (1668 p. 20) and Capvt VI (p. 25) carry decorated initials and garble in the same way as the Introduction's page; their first paragraphs, with the margin notes the leaves carry (Ratio.; Motus Vitalis et Animalis.), are set from readings of the leaves rendered from the secured facsimile PDF (leaves 28 and 33), under the same spot-adjudication provision, and the Ledger's amendment is extended to name them. One lesser shard of the same family in Capvt IV ('Semwh', an initial-column fragment fused into the chapter's first sentence) is deleted as a listed repair, the sentence's own words being whole on both sides of it.

N15 — Titles that differ within the volume (Brick 3). Capvt VIII carries two title forms in the 1668 book itself: the contents leaf reads 'De Virtutibus et Defectibus Intellectualibus', the chapter's own display 'De Virtutibus Intellectualibus et Defectibusque Oppositis'; the edition's heading follows the chapter display. Capvt IX's Latin title, 'De Scientiarum Distributione' — of the distribution of the sciences — answers an English title of another sense, 'Of the severall Subjects of Knowledge'; both stand as printed, the divergence recorded, not harmonized.

N16 — Capvt IX's tables (Brick 3). The English chapter prints its division of the sciences as two formal tables, which the machine reading carries as fifty-five small paragraph groups; the Latin casts the same division as continuous prose in twelve groups. Pairing follows group order; in this chapter the faces correspond by matter rather than by block, and the drift figure (N7) records the fact without forcing the tables into paragraphs.

N17 — Capvt XI's three titles (Brick 4). The contents leaf reads 'De Differentia Morum'; the chapter's own display reads 'De Varietate Morum'; the English chapter is 'Of the Difference of Manners'. The edition's heading follows the chapter display; all three forms stand recorded here, none harmonized.

N18 — Part I closes (Brick 5). With Capvt XVI the parallel text carries the whole of Pars Prima, De Homine — the Introduction and sixteen chapters — in both tongues. One correction of the desk's own record: Capvt XII's 'fructus' was announced at Brick 4 as a listed repair; it is in fact carried by the genuine-f protection table (the fru- stem), extended at this brick together with frat-, frau-, frag-, frang-, fren-, and front-. The opening leaves of Capvt XV and Capvt XVI carry the decorated-initial garble more heavily than most; their first paragraphs stand as read, garble and all, under the residue rule — the English faces carry the sense, and the loci are flagged here rather than adjudicated. Capvt XIV's first word ('Ius') is restored as a listed repair, its drop-cap initial having fused. Part II, De Civitate, opens at Capvt XVII in the next brick; the Latin volume seats a part title there ('PARS SECUNDA / DE CIVITATE') as it did at the first, recorded at N1.

N13 — Drift and residue are cumulative. N7's drift table and N8's residue count are regenerated at every brick over the whole text built so far; their figures in this volume supersede the same notes in earlier bricks, which stand in the edition's git history.

N19 — Part II opens (Brick 6). Capvt XVII (De Causa, Generatione, et Definitione Civitatis),

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Capvt XVIII (De Iure habentium Summam Potestatem in Civitate per Institutionem), and Capvt XIX (De Generibus Civitatum per Institutionem, et de Successione ad Summam Potestatem) join the parallel text. The PARS SECUNDA display (DE CIVITATE SIVE REPVBLICA) stands in the machine reading at the close of Capvt XVI's seam and drops there under the display classes, as Part I's display did (N1). Capvt XVII's first word is restored as a listed repair — the decorated initial consumed its Q: '[Q]uod homines…'. Capvt XIX's first word is restored likewise ('Distinctio', the machine's D-l for D-i), its sense fixed by the English face.

N20 — A furniture correction, recorded whole (Brick 6). Part II's running heads defeated the drop classes of Bricks 1–5 twice over: the machine sets them in wide spacing the patterns did not allow, and their tails garble past the anchors ('86 De Civitate. Cap. i8„'; '8 4 D* Civitate. Cap. 17.'; 'S8 De Civitate. Cap. i£.'; the signature line carrying its catchword, 'Leviat. n n n exerci-'). The classes are widened to the spacing and the tails, and two consequences reach back into Part I, printed here rather than worked silently: running heads that stood in the earlier printings as note-shaped blocks (and two as text) now drop throughout the volume, as the furniture they are; and paragraph fragments a leaf turn split mid-word — known by their closing hyphen — now rejoin as the text they are, in Part II (Capvt XVIII's Septimo and Decimo paragraphs) and at one Part I locus (Capvt IV). The desk audited the correction word by word against Brick 5's text: no word of Hobbes is lost; what falls is heads, catchwords, and split fragments whose words stand whole at their paragraphs' heads. The earlier printings stand unaltered in the edition's git history; this volume supersedes them, as N13 declares. One debris token is added to the residue register: 'mmm', signature waste standing inside Capvt XVII's definition paragraph, counted at N8.

N21 — Brick 7 scope. Capvt XX (De Dominio Paterno et Despotico), Capvt XXI (De Libertate Civium), and Capvt XXII (De Systematibus Civium) join the parallel text. One title-form divergence stands on the record: Capvt XXX's heading, when its brick comes, will follow its chapter display ('De Officio Summi Imperantis'); the volume's contents leaf reads 'De Officio Summi Imperii'. Both forms are the book's own; the display governs, as at N15 and N17.

N22 — A title-state repair, and the furniture widening continued (Brick 7). Capvt XX's display title ends with the press's comma ('De Dominio Paterno & Despotico,'), and the title state — which ends a chapter's title at a blank only after terminal punctuation, lest a wrapped title be cut — thereby ate the chapter's whole first paragraph ('Civitatem per Acquisitionem voco…'). The state now also closes on a blank after a ONE-LINE title trailing a comma; a wrapped title runs to two lines or more before any blank, so no true title can be cut by the rule, and the paragraph stands restored. The running-head classes were widened once more for this brick's garbles (the chapter number itself misread: 'Cap. zo. T>e Civitate. i o i'; 'H4 D* Civitate. Cap. 22.'); three heads the Brick 6 printing still carried in Part I and Capvt XVIII fall with them, recorded here under N20's doctrine. One shard is listed as furniture: Capvt XX's 'Sc', the ampersand's debris at a leaf turn, its conjunction standing at the next block's head.

N23 — Brick 8 scope. Capvt XXIII (De Potestatis Summae Ministris Publicis), Capvt XXIV (De Civitatis Facultate Nutritiva et Generativa), and Capvt XXV (De Consilio) join the parallel text. Capvt XXV's display stands in the machine reading with its P read as F ('C A F V T XXV.'); the

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display class is widened to admit the variant, and the chapter's heading is set from the census, as at N12. One of the chapter's own running heads stands fused inside its first paragraph in the machine reading ('Cap. if. JDe Cwitate. yzj-'), dropped under the widened head class of N22.

N24 — Capvt XXIII's first words, flagged whole (Brick 8). The chapter opens in the machine reading as 'Mlntsler?#£//«« is est qui in rebus…' — the words the English face gives as 'A Publique Minister is he, that…' (Minister Publicus is est, qui…) garbled past every declared class. They are set as read, under the residue rule; the English face carries the sense; the locus is flagged for the facsimile collation that remains UNCHARTED. Capvt XXIV's signature line, its catchword with it, is listed as furniture (the signature itself misread, 'Ltviat.'); the word it promised, 'omnium', stands at its paragraph's place: 'Vbi enim Civitas non est, ibi omnia omnium sunt'.

N25 — Brick 9 scope. Capvt XXVI (De Legibus Civilibus), Capvt XXVII (De Criminibus, Excusationibus, et Extenuationibus), and Capvt XXVIII (De Poenis et Praemiis) join the parallel text. Capvt XXVIII's display stands spaced in the machine reading with its numeral garbled ('X X V I I L'); the seam was fixed by content — the Poena definition that opens the English chapter — and the heading is set from the census, as at N12.

N26 — The leaf-split signatures, completed (Brick 9). The rejoin class of N20 gains its third signature: a longer note-shaped fragment with no terminal punctuation whose continuation opens lowercase (Capvt XXVIII's 'Nono, … Poena' before 'non est, sed factum hostile'). Five fragments in the earlier text convert with it — Capvt III's sign sentence, Capvt VI's two appetite fragments, Capvt XIV's pact-with-God fragment, Capvt XV's foro-interno fragment — each a paragraph's opening the leaf turn severed, each now standing as the text it is; the word-audit against the Brick 8 printing shows no word lost and no margin head demoted that reads as a complete summary. Capvt XXVIII's decorated-initial shard ('Ade*') is listed as furniture; its word stands whole at its paragraph's head ('A Definitione Poenae deduco…'). Capvt XXVII's one margin note stands as printed: 'Et Mutilatio majus Crimen quam bonorum ereptio' — Hobbes's own summary, complete in the margin.

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COLOPHON

This volume was built at the desk of the parallel edition by the builder build_leviathan_parallel.py, cumulative through Brick 9: front matter, the whole of Part I (De Homine) — the Introduction and Chapters 1–16 — and Part II (De Civitate) Chapters 17–28 in parallel, with collation notes. Sources asserted by hash at build time: Gutenberg #3207 (English) and Internet Archive leviathansivedem00hobb (Latin, 1668). Generation note: set in DejaVu Serif; no synthetic italics are used anywhere in the volume.

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93 — Live, Love, and let Love, Live.